

**THE POPE THE KINGS
AND THE PEOPLE**

BY

WILLIAM ARTHUR A.M.

EDITED BY

W. BLAIR NEATBY M.A.

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THE POPE THE KINGS AND THE PEOPLE

"Take thou the tiara adorned with the triple crown, and know that thou art the Father of princes and of kings, and art the Governor of The world."—*Coronation Service of the Pontiffs*.

THE POPE THE KINGS AND THE PEOPLE

A History of the Movement to make the Pope Governor of the World by a
Universal Reconstruction of Society from the Issue of the Syllabus to the
Close of the Vatican Council

BY THE LATE
WILLIAM ARTHUR A.M

Author of "The Tongue of Fire" etc.

EDITED BY
W. BLAIR NEATBY M.A

Author of "The Programme of the Jesuits" etc.

LONDON HODDER AND STOUGHTON 27 PATERNOSTER ROW 1903

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EDITOR'S PREFACE

THOUGH I am named as the Editor of the present edition of the late Rev. Wm. Arthur's *The Pope, the Kings, and the People*, it is right to say that, by a restriction of my own choosing—for the publishers were good enough to leave me a considerable discretion,—my editorial care has been limited to the work of abridgment.^[1] It was clear from the first that in the short time at my disposal no attempt could be made to verify the multitude of Mr. Arthur's references and quotations, drawn as they were with a lavish hand from the contemporary literature of half Europe. Happily, all his readers must recognise how intelligent, laborious and scrupulous he has been. On the other hand, I had hoped to add a certain number of footnotes explanatory of allusions to events and circumstances that are much less fresh in the public memory to-day than they were twenty-six years ago. I should also greatly have liked to point out the extent, sometimes

remarkable, to which Mr. Arthur's forecasts have been already verified. But I soon found that if I were to introduce fresh matter it must be at the expense of portions of the original edition that were not to be lightly discarded. I have therefore directed my efforts to adapting the book as far as possible to the requirements of the present time by the process of simple retrenchment.

This process I have carried out most scrupulously. Every word in the abridgment is Mr. Arthur's own, and in Mr. Arthur's order. I have not even allowed myself to supply insignificant connecting words, however convenient they might have been, or however plainly they might be implied in the original work. This rule has entailed extra labour, but the gain seems to me immense. Every reader of this abridgment may know that he is reading Mr. Arthur's *ipsissima verba*, and that he may safely quote them as such. Not one word is mine.

And here I may perhaps be allowed to express my opinion that Mr. Arthur's words deserve to be very widely read and quoted. It would be hard to find a book that would shed more light on many of the most urgent questions of to-day. As an *annus mirabilis* of history, 1870 may yet take its place with 1453 or 1789. It was the year in which the Jesuits signalized the triumphant consummation of a struggle, waged during more than three centuries, for the capture of the Papacy. It was the year in which the new Vaticanism was formally constituted, and in which it gave the world notice, plainly and ostentatiously, of the policy to which it held itself committed. It was also the year of the Franco-Prussian war, a mighty convulsion which was after all but an incident in the great drama of Vaticanism, as Mr. Arthur, amongst others, has clearly shown.

I have said elsewhere that "the Jesuits, who brought France to the verge of ruin in 1870, seemed on the very point of completing their work of destruction a year or two since; and [that] he would be a very bold man who would dare to say that the peril had passed even yet."^[2] The writer who makes such a statement assumes a grave responsibility; but if any one wishes to know how abundantly the statement can be justified he has only to turn to Mr. Arthur's pages. Mr. Arthur demands from us no confiding trustfulness. Even at some expense to the flow of his narrative, he wisely made his work a repertory of contemporary documents, either transcribed entire or quoted with great fulness. Without resort to *ex parte*

representations of adversaries, we may thus learn from the Vatican's own organs that clerical education, which has so signally proved itself the bane of modern France, is the very groundwork of Vaticanism. And from the impressive picture of the remorse that embittered Montalembert's last hours as he looked back on the share he had taken long before in shaping the educational policy of his country, we may perhaps learn the great lesson of distinguishing between a false liberalism and the true.

Never more than in this instance is the history of the past the key to the present; and no man, unless his acquaintance with Vaticanism is of quite exceptional extent, can rise from the perusal of this book without feeling that he has obtained a momentous and far-reaching addition to his stock of religious and, perhaps even more, of political knowledge.

W. BLAIR NEATBY.

November, 1903.

PREFACE

THE sources of the information contained in this work are, 1. Official documents; 2. Histories having the sanction of the Pope or of bishops; 3. Scholastic works of the present pontificate, and of recognized authority; 4. Periodicals and journals, avowed organs of the Vatican or of its policy, with books and pamphlets by bishops and other Ultramontane writers; 5. The writings of Liberal Catholics.

Of the official documents the greater part have been officially published. The list of authorities, and the references in each particular case, will sufficiently indicate where these are to be found. Besides these, the *Documenta ad Illustrandum* of Professor Friedrich are a store of documents of special value, both in themselves and as throwing light upon those officially published. They came into his hands as an official theologian at the Vatican Council, and he published them on his own responsibility. The *Sammlung* of Friedberg is a vast store, combining the documents of the Vatican with those of Courts, public bodies, and important individuals.

The official history of Cecconi, now Archbishop of Florence, though professedly that of the Vatican Council, is really occupied with the secret history of the five years preceding the Council. That very curious narrative throws a light back on the foregoing years, and a light forward upon the Council, by aid of which many things otherwise indistinct become well defined. I have waited in hope that a second volume would appear, but in vain. The eight superb folios of Victor Frond come out with an assurance, under the Pope's own hand, of being preserved by due oversight from error, and with a guarantee of divine patronage. They contain a life of the Pope, biographical notices of the Cardinals and prelates, a full account of ceremonies, authentic portraits of men and vestments, with pictures of "functions," and so contribute to enable one to set events in their frames, and to invest them with their colours. Except military annals, perhaps, no history ever had more colour than this portion of Papal history, and perhaps in no history whatever has the action been more deeply affected by the scenery. The *Civiltà Cattolica* fulfils the invaluable office of a serial history, in the pages of which official documents and the chronicle of events illustrate one another, and at the same time discussions often prepare the way both for documents and for events, and always follow and elucidate any that are of consequence. The same office is in a less degree also fulfilled by the *Stimmen aus Maria Laach*.

To appreciate the height of authority on which the *Civiltà* stands, the reader should bear in mind the fact that in 1866,^[3] after it had already for sixteen years been recognized as the organ, at one and the same time, of the Pope himself and of the Company of Jesus to which its editors belonged, his Holiness in a brief and by a declared exercise of apostolic authority, formally erected *in perpetuity* the Jesuit Fathers who composed the editorial staff into a *College of Writers*, which college should be under the General of the Society of Jesus, but, it is added, so "as to Us and to Our successors shall seem most expedient." In this brief the Pontiff recorded, as to the past, the "exceeding gladness of soul" he had felt in witnessing the labour, erudition, zeal, and talent with which the *Civiltà* had "manfully protected and defended the supreme dignity, authority, power and rights" of the Apostolic See, and had "set forth and propagated the *true doctrine*." He also recorded the fact that all this had day by day more and more merited the "goodwill, esteem and praise," not only of the hierarchy, but of men of the greatest eminence, and of all the good. This, coming at a time when the

expositions of the Encyclical and Syllabus given by the *Civiltá* had awakened among Liberal Catholics serious opposition and even alarm, was decisive as to what was, at Rome, held to be the *true doctrine*, and as to who were held to be its real teachers. As to the future, the Pontiff, adopting the well known motto of the Company of Jesus, decreed that, *for the greater glory of God*, the writers should, as we have said, constitute *in perpetuity a college* possessing peculiar rights and privileges. As if formally to claim some share of this glory, the Jesuit editors of the *Stimmen aus Maria Laach*, when in 1869 commencing a new series, notified on their title-page the fact that they availed themselves of the labours of the *Civiltá*—a liberty which no Jesuit durst have taken without the highest sanction.

All the numbers of the *Civiltá* and of the *Stimmen* being under my hand, they have yielded a steady light by which to examine opinions relating to the movement of "reconstruction," whether those opinions were hostile or sympathetic. The Italian journal, the *Unitá Cattolica*, and the French one, the *Univers*, written with a consciousness of the highest favour on the one hand and of an overwhelming influence among the clergy on the other, comment upon the operative clauses of official documents—generally intelligible only to the initiated—in forms more popular than those of the two great magazines. But it is only by the still clearer comment of daily narratives and polemics that the elucidation becomes complete.

The Roman work of the Marchese Francesco Vitelleschi (Pomponio Leto) has now appeared in English—*Eight Months at Rome* (Murray). This is welcome, as enabling one to refer the English reader to his pages, of which even Ultramontanes in Rome do not impugn the accuracy. *Quirinus* is also happily in English. Professor Friedrich's *Tagebuch* ought to be, but is not. Those and smaller works by Liberal Catholics, compared with the sparkling volumes of M. Louis Veuillot and the Ultramontane serials and pamphlets, and with the Old Catholic writers in the *Rheinischer Merkur*, the *Literaturblatt* of Bonn, the *Stimmen aus der Katholischen Kirche*, and so forth, slowly bring home to our English understanding the strange principles and wonderful projects which at first we either fail to apprehend, or else imagine that they cannot be seriously entertained.

On those principles and projects four distinct controversies have shed a steadily increasing light—the controversy on, 1. The Syllabus; 2. The Vatican Council; 3. The Old Catholic Movement; 4. The Falk Laws. The

last two do not come within the scope of this work, but very much of the light by which we gradually come to understand the preceding stages of the movement, is due to the keen discussions to which these two controversies have given rise.

Having subscribed for the *Civiltà Cattolica* for years before the Syllabus appeared, I was not wholly unprepared for the controversy which followed. The *Civiltà* also enabled me to see how Liberal Catholics connected the Vatican Council with a movement in the past, dating from the Pope's restoration, and with a plan of vast changes for the future. While the hopes of the Ultramontanes seemed visionary, and the fears of the Liberal Catholics seemed exaggerated, it did nevertheless appear possible that great events might come out of a deliberate attempt, made by a large and organized force, to reconstruct the world. Soon after the close of the Franco-German war, a visit to Paris, Munich, Vienna, Berlin, Brussels, and other centres, supplied me with much material, casting light on the enterprise in which the Vatican Council was the legislative episode, and from which the Old Catholic movement was the recoil.

It was while engaged in studying such material that I threw off the translation of the discussion held in Rome on the question whether St. Peter had ever visited that city. Soon after broke out the controversy on the Falk Laws. Six weeks spent in a German country town, reading journals and pamphlets, and also in collecting, added to my light, and to the means of getting further light. In the course of the time employed upon the study of growing material was thrown off the review of the Pope's Speeches, under the title of *The Modern Jove*.

Though conscious that I had not yet the groundwork for a well connected account of the whole movement, I began to write, not with any intention of publishing for a long time, should I live, but under the feeling that, should I be called away, it would be right to leave behind me information which had not been gained without cost and labour. After a while appeared the official history of Cecconi. His authentic if incomplete disclosure of the secret proceedings of five years was a stem for many hitherto perplexing branches. A plan now began to shape itself, and I commenced to recast all I had done. Shortly afterwards came out the great work of Theiner, the *Acta Genuina* of the Council of Trent. This settled many points keenly debated between Catholic and Liberal Catholic, affecting the rights of kings, of

bishops, of the divinity schools, of the lower clergy, of the laity, and affecting the relations of all these to the Pontiff.

While I was working with these additional helps appeared Mr. Gladstone's *Expostulation*. The great amount of knowledge it betrayed contrasted with one's previous idea of the state of information on the subject among our public men. The controversy which followed might have brought some temptation to haste, had it not also brought proof that it was even more necessary than I had supposed to beware of assuming that phrases, modes of conception, and projects, well understood in Italy or Germany, were at all understood here. Some of those who reviewed Mr. Gladstone took for strange what in all countries in the south or centre of Europe would have been taken as familiar, and for doubtful what in Rome or Munich was as clear as day. Accredited terms and phrases were treated as inventions; by some as inventions of genius, by others of animosity. It was often more than hinted that principles and designs habitually proclaimed at the Vatican were ascribed to priests only by opponents. Not unfrequently a gentleman would seem to think it more generous to attribute his Protestant ideas to Ultramontanes, than to take it for granted that they preferred their own. It was incredible how political questions pregnant with future controversies, perhaps with future wars, were evaded as theology!

The replies to Mr. Gladstone placed the ignorance of the English public on the subject in a different but a very impressive light. It is often said abroad, by those who know us, that no nation in Europe is so liable as we are to treat gravely statements from priests or their advocates which any reasonable amount of information would render entertaining. The reviews of these replies showed a growing sense of the interests involved, but intensified one's feeling that the elements of clear understanding were wanting. Men did not know the terms, the facts, the publications, or the political doctrines of the movements under discussion. Had what has been written in our best journals during the last twenty years from Italy, or even during the last five from Rome and Berlin, been well read, it would have led to study, and in that case Dr. Newman and others would not have had so cheap a laugh at our ignorance of what is meant because of our false interpretation of what is said. While this controversy proceeded, a stay of nearly three months in Rome, employed in seeking material and

information, added considerably to my stores, which were further increased by two subsequent visits to Munich and one to Bonn.

I have often been reminded of an incident which occurred in Rome. One of our celebrated scholars, hearing what I was engaged in, exclaimed "Oh, Theology!" Of course, he was fresh from home. Not many minutes before, a resident diplomatist, in whose house this took place, having heard me say "I began the study of this subject as a religious question, *but*—" smiled and said, "Yes, *but*—you find it is all politics, and the further you get into it the more purely political will you find it."

The controversy which had sprung up at home showed that a book written as this one had been begun would be frequently misunderstood. In that controversy it was often taken for granted that when an Ultramontane disclaims Temporal Power, he disclaims power over temporal things; and that when he writes Spiritual Power, he means only power over spiritual things; that when he writes Religious Liberty, he means freedom for every one to worship God according to his conscience; that when he writes the Divine Law, he means only the Ten Commandments and the precepts of the Gospel; that when he writes the Kingdom of God, he means righteousness and peace and joy in the Holy Ghost; and that when he writes the Word of God, he simply means the Bible. One reasoning with false interpretations like these in his mind must reason in such a fog as Dr. Newman, in his letter to the Duke of Norfolk, cleverly depicts. Ambiguity similar to that now indicated prevails over the whole field of phraseology—theological, political, and educational. English Ultramontanes are doubtless in part responsible for these misapprehensions, but only in part. If their writings are *studied*, they will be seen to use such terms differently from their fellow-countrymen. But certainly the Papal Press of Rome, and even that of France, is not in any degree responsible for our illusions, but has, on the contrary, left us without excuse.

The consequence of all this is that in this book, where a mere allusion would have been made, a fact is now often related; where the sense of some particular utterance would have been condensed, that utterance is verbally recited; and where one sentence would have been culled out, more are given. Very often, where a statement of the principles of the Papal movement would have been accompanied only by a reference to a contemporary authority, that authority is made to speak for himself, and

occasionally at some length. Terms and phrases, which might have been left to the chance of being understood, are either coupled with narratives or discussions, to bring out their sense, or else they are explained. When I do give explanations, let me not be trusted, but watched. Much will be found of the language both of Catholics and of Liberal Catholics, and with it the reader can confront my strange-looking explanations. In the end he will be able to do what, thank God, every Englishman is inclined to do—form an opinion for himself as to the real sense in which the speakers employed their own words.

It need not be said that this change of method rendered necessary a larger book than was at first planned. It was also unfavourable to the flow and unity of the narrative. Perhaps it compensated for that disadvantage by more fully showing the grounds on which statements are made, and by bringing the reader frequently, almost continuously, into communication with Italian, Frenchman or German, each expressing his own views, whether those of statesman or priest, of journalist or magistrate, of Catholic or of Liberal Catholic.

My thanks are due to many who have forwarded my researches. The kindness of Count Cadorna, then Italian Minister at our Court, procured for me valuable facilities in Rome. My true gratitude was deserved by the distinguished Minister of Education, Signor Bonghi, especially for his personal introduction of me to the great library of the Collegio Romano, not then open to the public. Our own Ambassador, Sir Augustus Paget, and the German Ambassador, Baron Keudell, both rendered me real service, with all possible courtesy. The Marchese Francesco Nobili-Vitelleschi, himself author of a history on which I must often draw, took pains to procure for me valuable material. Among many benefits received from our own countrymen, I must specify that derived from the vast information on all Italian matters possessed by Mr. Montgomery Stuart, and also that arising from the constant kindness of the Rev. H.J. Piggott. Those two gentlemen have kindly read on the spot certain sheets containing local observations. Two German scholars were constant and practical friends, Dr. Benrath and Dr. Richter.

In Munich the National Library, with its clear catalogue and good collection, contrasted with the great libraries of Rome. The kindness of Dr. Döllinger was great and eminently practical. He had kept all pamphlets,

bearing on the subject, which had come into his hands. He not only gave me free access to this collection, but, where he had duplicates, presented me with them. Dr. Reusch, Professor of the University of Bonn, with a collection at least equal, though without duplicates, gave me similar facilities. The lists thus procured, and the energy of the German booksellers, enabled me to get almost everything contained in either collection, including Italian and Latin publications which I had in vain sought in Italy, and even French ones which I could not find in Paris.

The weakness of my own eyesight has increased the obligation which, in any case, I should have felt to my two valued friends. Dr. Moulton and Dr. H.W. Williams, who have kindly read the proofs. Dr. Moulton also compared the translation of the speech of Darboy with the original, and suggested improvements. Dr. Karl Benrath, of Bonn, whose long residence in Rome and whose study of the subject lent to his judgment a special value, has laid me under great obligation by examining every sheet as it passed through the press.

The very frequent translations rendered necessary by the plan of letting men speak for themselves are as close as I knew how to make them. Even where marks of quotation are not used, and yet I profess to give the sense of some utterance, those who can go to the originals will find that the language, though condensed, is preserved, and, in any important matter, closely rendered.

Reversing the ordinary practice as to quotations, where the italics were in the original, I generally mention that it was so. It would have been tedious to say that they were my own in every case where they seemed necessary to direct attention to a phrase or a term having a meaning different from ours, or to one the full significance of which might easily escape notice.

Nothing but a conviction that the movement here traced is of an importance for which ordinary terms are not an adequate expression would have justified me, in my own view, in giving to the study of it years of a life now far advanced. If the authors of the movement are not deceived, the generations that will come up after I am no more will witness a struggle on the widest scale, and of very long duration, during which will disappear all that to us is known as modern liberties, all that to Rome is known as the Modern State, and at the close of which the ecclesiastical power will stand

alone, presiding over the destinies of a reconstituted world. Not at all believing in the possibility of this issue, I do not disbelieve in the possibility of the struggle. To avert any such repetition of past horrors, to turn the war into a war of thought, a war with the sword of the writer and of the orator, instead of that of the zouave and the dragoon, is an object in attempting to serve which, however humbly, a good man might be content to die. Had I at any time during my preparations seen the same work undertaken by some one whose position or whose name would have commanded a degree of attention to which I have no claim, gladly should I have buried the fruit of my labour. Such as that fruit is, I now submit it to the public, in humble hope that the very absence of titles to consideration by which a work on the subject should have been recommended, will turn to a plea for more indulgence in weighing the only claims I have to put forth, those of hard work and honest intention.

May He who has given to our nation the blessings of free prayer, free preaching, free writing, free speech, and free assembly, with their wholesome fruit of equal laws, tempered power, and moderated liberty, grant that this humble labour may in some measure contribute to make those inestimable boons dearer than ever to the hearts of our people, and that it may contribute also to place them in a position more readily to foil every endeavour to snatch those boons or to steal them away from us and from mankind!

CLAPHAM COMMON, 1877.

FOOTNOTES:

[1] Considerably more than a fifth of the original matter has been omitted. Whenever a quotation has been abridged, the usual marks have been employed to indicate the hiatus.

[2] *The Programme of the Jesuits*, Preface, p. v.

[3] See *Civiltá*, Serie VI. vol vi. pp. 5-15.

POSTSCRIPT TO THE PREFACE

June 6, 1877

ON CARDINAL MANNING'S "TRUE STORY OF THE VATICAN
COUNCIL"

HAD not the time occupied in bringing out this work far exceeded my expectations, it would have appeared as early as the first portion of Cardinal Manning's "True Story of the Vatican Council," in the pages of the *Nineteenth Century*. As it is, I have been able to read the fourth paper, in which the Cardinal concludes his narrative of the Council itself, though he intimates an intention of hereafter adding comments on extraneous matters. I cannot but feel that, in more respects than one, the appearance of the *True Story* immediately before that of this book is an advantage. The general reader is thus supplied with means of checking many of my statements, and of estimating the value of my authorities. Although this advantage is limited to such ground as is common to the *True Story* and to my history, that ground is a portion of sufficient importance to afford some criterion for judging of the whole. One of my fears, arising from the way in which, both in recent controversies and in former ones, authorities have been dealt with before the English public, was that we might find it soberly intimated that Cecconi was not a writer of high credit, that the *Civiltà Cattolica* was a private magazine, that the *Acta Genuina* of Theiner was a publication brought out in an obscure place, and so on through the list. Now, however, the reliance placed by Cardinal Manning on authorities which supply essential features of my narrative, and the importance unwillingly assigned by him to others frequently cited by me, will act as a restraint on those who might have made light of them.

Another considerable advantage is this. It almost seemed as if it would prejudice Englishmen against a writer to state what from time to time it was needful to intimate—how histories issued from official or semi-official sources systematically withheld information on the points of chief importance. Such points, so far as the Council was concerned, were the actual differences of opinion between prelate and prelate, the tenor of the debates, the arguments employed on one side or the other, the written memoranda of bishops on the questions disputed, their printed pamphlets, their speeches, their truly important petitions, recording complaints against the Rules of Procedure imposed upon them, and against the disabilities under which the Pope had placed them. Those petitions recorded, further,

their personal disbelief in the new dogma, with the fact that they had always taught in opposition to it, and that they anticipated from its adoption grave perils of collision between Church and State. Other matters kept out of view comprised interesting facts credibly alleged and circumstantially detailed relating to personal acts of the Pope, to proceedings of the Curia and of the Presidents of the Council. Still more interesting, and of graver import, were the reasons assigned by Ministers of State and others, for regarding with more than ordinary jealousy the projected changes in the Papal system. It seemed even more invidious to note the practice of adopting, in order to cover all these suppressions of facts, and of alleged facts, an air of giving information by entering into details of ceremonies, enlarging on unimportant matters, telling, as if it was of great moment, how many meetings of this sort were held, how many of that, how many spoke, at what time this Decree was proposed, and how many votes were taken on another, without in all this allowing a word to transpire of what was said or thought. I am now relieved of all fear about those features of my narrative. Any one who has a relish for the curiosities of literature may match, and perhaps overmatch, what I have told of French priests and Italian Jesuits, by what an Englishman has done.

I had never, however, to accuse the Italian Jesuits of keeping out of sight the political, or, as they generally say, the social aspects of the movement, and of covering them up in theological disquisitions. They did, indeed, use wondrous theological phrases with political meanings, but any one who studied their writings soon penetrated that veil. They also invariably used theology as the motive power of all their politics. But from 1850, when the movement which has characterized the present pontificate began, to 1870, when it reached its legislative climax, they set forth prominently as their object the reconstruction of society, on the model of what, in their own dialect, they call the Christian civilization. They loudly proclaimed, as the elements of that Christian civilization, the revocation of constitutions, the abolition of modern liberties, especially those of the Press and of worship, with the subjection to canon law of civil law, and, above all, the subjection to the jurisdiction of the Pope of all nations and their rulers, whatever the title of those rulers might be. They justly conceived the ills they had to repair, as, having begun with the bad teaching of John Wyclif, in which his doctrine of "dominion" was the head and front of all his offending, and of that of every succeeding age. As he had striven for the emancipation of

kings from the Pope, of legislatures from the ecclesiastical powers, and of the individual from the priest, so did they set themselves to bring back again the dominion of the priest over the individual, the dominion of the ecclesiastical authorities over lawgivers, and above all, the dominion of the Pope over kings. Of this the reader will meet with evidence from their own lips, at almost every stage of our narrative. Those Italian Jesuits did not expound the Syllabus, according to the new and *naïve* notion of Cardinal Manning, as a code containing very little to which "any sincere believer in Christian revelation would, if he understood the Syllabus, object." The Italian Jesuits, ay, and even the German ones, on the contrary, made a boast of its diametrical opposition to every form of Liberalism, and in particular to Liberal Catholicism, of its efficacy as an instrument for overturning the Modern State, and of its solidity as the foundation-stone on which was to be reared the fabric of reconstructed society. In all their writings society was taken as meaning, not families, nor Churches, but nations, and each one of the nations was to form a province within a Church ruling over it and over all other nations in every one of their laws and public institutions.

In speaking of the idea that all believers in revelation would accept nearly all of the Syllabus, I have assumed that Cardinal Manning, writing for an English audience, uses the term "Christian revelation" in the English and not in the Papal sense. To a sincere believer in Christian revelation in the Papal sense, the Syllabus, if not in form, yet in substance, is an infallible and "irreformable" portion of that revelation. And so it would very simply come to pass that a sincere believer in Christian revelation would admit, not merely most of it, but all of it so far as it contains any teaching. And to such a believer the kingdoms of the world will never become the kingdom of God, and of His Christ, but by ceasing to be kingdoms at all in any independent and proper sense, and by merging into provinces under the Priest and King, or, as in phrases still more mystic they style him, the Shepherd-King of the Vatican.

Now a *True Story* of the Vatican Council, in which, to the apprehension of an ordinary reader, all these topics are kept out of view, though to an adept they are not wholly kept out, seems to me like a *True Story* of the civil war in the United States which should largely dwell upon State rights, forgetting all about slavery, or speaking of it only in an esoteric dialect.

The *True Story* affords us some foretaste of what history is to be after dogma has completed the conquest over it which has been promised. Had my narrative been written after its appearance, the topics totally ignored, and those virtually ignored, in the *True Story*, might easily have been thrown into stronger relief. As it is, however, the succession of events necessarily brings them again and again into view, and perhaps the effect of the outline may be rendered more distinct to the English reader through the contrast with the *True Story*.

Of the prelates on this side of the Alps, Cardinal Manning was not the one from whom we should have expected that in an account of the five years preceding the Vatican Council, with a brief retrospect of the whole of the present pontificate, and a history of the Council itself, scarcely one clear utterance should be made as to the bearing of the movement on those governments, liberties and institutions which to the Vatican are very evil and to us are very dear. It was not so in 1867 and 1869. In both of those years the Cardinal indicated the political relations of the movement in words of warning which, if only echoes of those of the Jesuits in Rome, were perhaps more intelligible and vehement than those of any other prelate on this side of the Alps.

Statements of mine will frequently be found to conflict with statements made in the *True Story*. In most of those cases—I hope in all—the materials from known sources furnished to the general reader will suffice for a not unsatisfactory comparison, while the authorities indicated will enable the scholar to form a judgment. In very many of these cases statements of Cardinal Manning, made in previous works and virtually amounting to the same as the most material of those made in the *True Story*, will be found side by side with the statements of other authorities, with official documents, or with facts no longer disputable. Of these statements, one to which the Cardinal seems to attach much importance is his assertion that none of the prelates, or at most a number under five, disbelieved or denied the dogma of Papal infallibility, and that all their objections turned on questions of prudence. This is not a slip, nor a hasty assertion, and it is very far from being peculiar to Cardinal Manning. It is now the harmonious refrain of all that hierarchy of strange witnesses of which he has made himself a part. The point is one on which illustrations will occur again and

again, in events, in words, and in those documents which, in spite of all precautions, have been gained to publicity.

Notwithstanding the method adopted in the *True Story*, the fact crops out at every turn that the modern strife of the Papacy is not to make men and women, as such, godly and peaceable, but to bring kings as kings, and legislatures as legislatures, and nations as nations, into subjection to the Pope. It crops out sufficiently, at least, to be obvious to all who know the difference, in the Cardinal's phraseology, between the two sets of terms employed to indicate those two distinct objects. For instance, what an excellent description of that *Catholic Civilization* which, in the great contest of the Vatican, is ever signalized as the goal, does the Cardinal give when, picturing the "public life and laws and living organization of Christendom" in the times when all these, according to his ideas, were "Christian," he says, "*Princes and legislatures and society* professed the Catholic faith, and were *subject to the head* of the Catholic Church." Cardinal Manning does not here use the word "society" in the domestic but in the political sense. He means, not families or social parties, but nations—as the Jesuit writers almost always do. Any one may, therefore, possess himself of a key to the true meaning of many pious phrases which occur in the following pages, if he will first of all clearly realize in his own thoughts just what it would involve for England; and for us were the conditions stated by the Cardinal fulfilled by our princes, our legislature, and our "society." One seeking to do this must realize the fact that the prince and the legislature not as individuals, and the "society" not in its separate members, but the prince as a prince, the legislature as a legislature, and the nation as a society, shall *profess the Catholic faith*. Ordinary Englishmen do not realize all that is meant by that formula. But beyond that, the prince as a prince, the legislature as a legislature, the nation as a society, are not only to believe in the Pope, but to be *subject to him*. What fulness of meaning that formula possesses will gradually open up to the reader as the narrative unfolds. He will often hear ecclesiastical politicians of the school to which Cardinal Manning belongs, talking in their native dialect, not modulating their voice to win the ear of Protestants. This national *profession of the faith*, and this subjection of kings, lawgivers, and nations to the Pope, constitute in one word the *Civiltà Cattolica* (the Catholic civilization); or, in plain English, the Catholic civil system; or, in other terms, the true Catholic constitution,

the reign of Christ over the world, to establish which in all nations the Vatican is to move heaven and earth.

In his first paper Cardinal Manning seeks to impress us with the belief that the raising of Papal infallibility to the rank of a dogma was not a chief object of the Pontiff, much less his only one, in convoking the Vatican Council. On that point the narrative will often incidentally present the expressions of prelates, official writers, and others, so that the reader will be able to form an opinion of his own. In his second paper the Cardinal shows that throughout the whole of the present pontificate the dogma has been kept in view as an essential object. Of that position illustrations will frequently occur. In the second paper, also, the Cardinal repeats his old allegation that it was Janus who invented "the fable of an acclamation." The course of the tale will tell whether it was or was not Janus who originated the talk of a design to get up an acclamation, and whether that talk was or was not a fable.

The Cardinal, while attempting to justify, though for the most part keeping out of sight, the disabilities imposed upon the bishops by the Pope, disabilities of which they loudly complained, glances at one out of many of the real ones. He says that the Commission which was empowered to say whether any proposal emanating from a bishop was worthy to be recommended to the Pope for consideration, without which recommendation it could not come before the Council, was "a representative commission." The fact is that it was a selection of prelates made by the Pope, who excluded from it all who had avowed themselves opponents of his infallibility, and included in it creatures of his own, who had nothing of the bishop but the orders and the pay which the favour of the Court had given to them.

The Cardinal, after ample time for correction, repeats his old declaration that in the Vatican Council "the liberty of speech was as perfectly secured as in our Parliament." That assertion has the merit of being free from all ambiguity, and moreover is one on which plain men can judge. As I have told the story, the readers will over and over again meet with facts, equally free from ambiguity and equally patent to plain men, which will show whether the assertion is true or not.

On the great question of secrecy the Cardinal risks a statement which exceeds what Italian Jesuits, if writing for a periodical of the rank of the *Nineteenth Century*, would be likely to hazard. He says: "At the beginning of the Council of Trent this precaution (of secrecy) was omitted; wherefore, on February 17, 1562, the legates were compelled to impose the secret upon the bishops." The Cardinal would seem to imagine that there was at least a substantial agreement, if not an actual identity, between the acts by which silence was enjoined, and also between the extent of the silence demanded in Trent and at the Vatican; and that indeed from February 17, 1562, forwards, the Council of Trent was laid under a bond something like that by which the Vatican Council was from the beginning fettered. Was it so? Was there a substantial agreement in the two acts by which silence was enjoined? Was there a substantial agreement in the extent of silence imposed? Was there at Trent a formal decree? Was there an oath imposed on the officers? Was there an exclusion of the theologians from debates, and of the public from the debates of the theologians? Was there any vow required, any threat held out? And does even Cardinal Manning fancy that there was at Trent a new mortal sin made on purpose for the benefit of the bishops? Of all this there was nothing. The act of the legates was simply what it is described as having been by Massarellus, the Secretary of the Council, who says: "The Fathers were admonished not to divulge things proposed for examination, and in particular Decrees, before they were published in open session."^[4]

The Cardinal is apparently also under an impression that the extent of silence imposed in the two cases was at least substantially the same. Was that so? Did the legates censure the admission of laymen to hear the theologians argue? Did they censure the permission given to theologians who were not bishops even by the fiction of a see *in partibus*, to dispute in presence of the Council? Did they censure any remarks made out of doors on speeches, opinions or projects? Did they censure anything but the one indiscretion of circulating proposed Decrees, or other things proposed, while yet the formulae were, "so to speak, unshaped," but were in their inchoate condition made public as if they had been passed? Did the legates suggest that the duty of secrecy extended further than that of not publishing such tentative formulae, of not sending them out of the city, and of forbidding persons attached to the households of bishops to commit those indiscretions? At Trent there were faults and causes of complaint in no

small number. But what Cardinal Manning calls "the secret" which would shut up every mouth as to all subjects proposed, as to all opinions expressed, as to all speeches made, as to all designs mooted—"the secret" which forbade men to print their own speeches, to read the official reports taken of them, to read those of their brother bishops, and other extravagances besides, of which the *True Story* has not one syllable to tell—that "secret," or any such, is not hinted at in the a monition of the legates at Trent. The extent of silence imposed at the Vatican would seem to have been as original as the mortal sin there invented.

Still further, the Cardinal would appear to be under an impression that the reason why at Trent certain inconvenient publications occurred was because that, at the outset, the strict precautions had been there omitted which at the Vatican were not only taken in time, but, with manifold forethought, were, before the time, as our story will tell, tied and bound by edict and by oath. As to disclosures, however, that occurred at the Vatican, which most Romans would tell any Englishman, except a priest or a convert, would be certain to occur, namely, that the "pontifical secret" would be dealt in as a thing to be sold. Did the precautions omitted at Trent, but adopted at the Vatican, prevent so much from transpiring as compelled the Pope to loose from the bond four selected prelates, including the eminent author of the *True Story*, in order that they might disabuse the outside world? Did it prevent the famous canons which opened the eyes of Austrian and French statesmen from making a quick passage to Augsburg and to Printing House Square?—of which canons, by the way, as of most essential matters, the *True Story* tells not a word.

It would be very tempting to select for remark other assertions of the Cardinal, but this may suffice to do all that I here wish to do; that is, to set the reader upon intelligently watching and sifting statements of my own; for what is to be desired on this subject is that the public shall cease to be easily contented with what is said on one side or the other. My statements, like those of others, are sure to contain a fair proportion of mistakes, but when all these are winnowed away, there will remain a considerable peck of corn.

Not content with formally vouching, in his title, for his own truthfulness, the Cardinal formally impeaches that of others. Both of these proceedings would be perfectly natural in a priest in Rome, and especially in one attached to the Jesuit school. Had I foreseen the cautious beginning of such

habits that was so soon to be made by high authority, certainly I should not have so far yielded to the repugnance one feels to put specimens of priestly imputations into our language—a language which had for ages, up to the date of the *Tracts for the Times*, been steadily acquiring an antipathy to all the arts of untruthfulness, and consequently to all the forms in which other languages habitually insinuate or openly allege it. But I cannot regret that my story purposely excludes full specimens, and only by force of frequent necessity admits morsels, of the style in which in Rome every shade of untruthfulness, from suppression and equivocation to the worst kinds of perjury and forgery, is on the one hand charged upon heretics, on Liberal Catholics, on statesmen, and is on the other hand in return, and with extreme good will, charged upon bishops, cardinals and popes.

The veracity of Pomponio Leto—that is, as all Italy knows, of the Marchese Francesco Vitelleschi, brother of the late Cardinal Vitelleschi—is openly impugned by Cardinal Manning. We already know, on more points than one, the opinion of Vitelleschi as to the eminent author of the *True Story*; and retaliation would have been natural had it only been fair. If Vitelleschi wrote English, and if he cared to compare his truthfulness with that of such a competitor, it would be interesting to hear him fairly fight out the question, Which of us two has, to the best of his power, tried just to tell what he knew, inventing nothing and concealing nothing? It does not seem at all certain that the Englishman would bear away from the Italian the palm of straightforwardness. The Cardinal is evidently not aware that certain alleged particulars of the famous Strossmayer scene, which he ascribes to Pomponio Leto, are not in his description of it either in the Italian or in the English version. From where the Cardinal gets them I do not know. But his picture of Schwarzenberg "carried fainting from the *ambo* to his seat," his idea that Pomponio professes on that day to have been outside the Council door and to have seen "the servants rushing," and his other idea that at the fourth session Pomponio professes to have been inside and consequently forgot that many of those who were outside could see through the great door which was wide open, are all alike. He certainly did not get any of them from Vitelleschi. As it is after stating these errors, that his Eminence cries, "Such melodramatic and mendacious stuff!" we must imagine how Vitelleschi will smile at this new display of certain qualities which did not escape his keen eye.

Professor Friedrich is slightly spoken of by the Cardinal. Here again retaliation, if fair, would have been natural; for Cardinal Manning has already felt the steel of Friedrich. Judging from my own impression that under the slashes of Friedrich what the Cardinal had employed as if he took it for argument appeared perfectly helpless, I should expect that the learned professor should think it worth while to try his strength on the sort of history, theology, and logic which the Cardinal thinks may pass in England, they would in his hands, at almost every debatable point, fly to pieces. As to veracity, however, Friedrich has already, on that score, as our story will show, crossed swords with more bishops than one; and whether on that or other matters, certainly he is not the man to turn his back on Cardinal Manning, whose measure he has long ago taken, as, even under the eyes of the Papal police, he did not fear to show.

Cardinal Manning occupies pages with imputations, and with quotations which he apparently thinks warrant the imputations. Does he, or do the witnesses he calls, disprove any of the specific facts alleged? Yes, he does disprove one. Vitelleschi, in describing the great session of the Council, said that Cardinal Corsi and other discontented Cardinals pulled down their red hats over their eyes. Now, Cardinal Manning properly says that on that occasion they had no hats of any colour, meaning that they wore the mitre. Therefore a real blot is hit. And it is curious how exactly this is the same kind of blot as the Jesuits of the *Civiltà* were able to hit in the early part of Vitelleschi's book, when, like the *True Story*, it first appeared in a periodical. They clearly convicted the author, then unknown even to them, of saying that in certain solemnities the robes were red, whereas in fact they were white. We must, however, do the Roman Jesuits the justice to say that from this tremendous error they did not attempt to prove that the writer was given to "mendacious stuff," though they did argue that he was wanting in reflection.

But it is a well-known fact that grave matters—very grave matters—were with sufficient particularity alleged against the Pope, against the Presidents, against the Rules of Procedure, against the authorized Press, against the favourites of the Court among the bishops, against the secret way in which "the Council was made beforehand," and above all against the political designs which were entertained; and, one must ask, with what single fact of all these is any manly attempt made to grapple by the Cardinal, or by the

bishops whom he cites in his support? Besides these facts, of which some were amusing, some absurd, some discreditable, there were others which for all good men except Papists, in the proper sense, were seriously alarming, and these were alleged by Catholic and Liberal Catholic, by men in opposition and by men in all places of authority up to the highest—by Vitelleschi, by Friedrich, by Veuillot, by Guérin, by Frond and his contributors, by *Ce Qui se Passe au Concile*, by Hefele, by Kenrick, by Darboy, by Rauscher, by Place, by Dupanloup, by the hundred and thirty bishops who signed the protest against even discussing infallibility, by the groups of bishops who signed that against the Rules of Procedure, by those who signed the solemn one against the new Rules, by those who petitioned for the A B C of deliberative freedom, by the scores who signed the historical petition of April 10, 1870, by those who protested against the unfair and arbitrary attempt of July 5, and by those fifty-five who, the day before the final session, placed in the hands of the Pope their protest, saying that if they voted in the public session they could only repeat, and that with stronger reasons, their previous vote—that is, of *Non placet*; a protest of which Cardinal Manning has taken a strangely inaccurate and misleading view. Such facts were alleged by *La Liberté du Concile*, by *La Dernière Heure du Concile*, by Mamiani, by Bonghi, by Beust, by Daru, by Arnim, by Acton, by Montalembert, by Döllinger; and still more by the *Civiltà Cattolica*, the *Stimmen aus Maria Laach*, the *Univers*, the *Monde*, and the *Unità Cattolica*; and most of all were they embodied in the words and official manifestoes of Pope Pius IX. What one of these alarming or discreditable or equivocal facts is disposed of by the passages which Cardinal Manning in his need has cited? He cites Hefele to prove that people who were outside of the Council told falsehoods as to what passed inside. But with the wonted sequence of his logic, what he proves out of the mouth of Hefele is that people who were inside of the Council sold the secret, though in doing so they incurred the pains of mortal sin. The proof is quite as apposite as many of those relied upon by Cardinal Manning, and it is no wonder that such a habit of reasoning should have landed him where he is. He cites of all men Ketteler. Now supposing that Ketteler was the person to invalidate serious testimony, what particular fact is disproved by the passage cited? The only one it affects to touch is the question as to whether, in substance, the anti-infallibilist doctrine of Döllinger was not also that of the majority of the German bishops. That question is not faced

in front. Ketteler only raises a side issue. He denies that on some certain occasion, certain bishops had in a certain way made a statement to that effect. Cardinal Manning has not lived so long in Rome, and learned so much there, without knowing something of the value of such contradictions. But if he means—as, however reluctantly, one must take him to mean—to use Ketteler to prove to Englishmen that the majority of the German bishops were not, before July 1870, opposed to that as a doctrine which is now a dogma of their creed, then let Ketteler by all means stand on one side, but pamphlets, memoranda, speeches, petitions, votes, protests stand on the other. Ketteler is cited against Döllinger, and agreeably to the all but infallible felicity of the Cardinal's logic, about the most definite thing Ketteler says against the Provost is that *Janus*, for falsification of history, can hardly be compared to anything but the Provincial Letters of Pascal. Had the Cardinal cited the whole body of the German bishops, he might, indeed, with English Catholics have gained some show of authority; but how would it have been with the fellow-countrymen of those prelates? or with any who, like their fellow-countrymen, had, in the two Fulda manifestoes of 1869 and 1870, and in other words and deeds of those mitred diplomatists—words and deeds which cannot be erased—learned at what rate to prize statements signed by their episcopal crosses? There are in Europe few bodies of functionaries who stood in sorer need than did these German bishops of something to rehabilitate the credit of their Yea and Nay; not that even yet it seems to have fallen quite so low as that of their superiors of the Curia; at least, not quite so low in matters of purely personal reputation, when no official obligation exists to make a public impression which is contrary to the facts, and when dissimulation, if practised, arises from a habit partly professional, partly personal, and one sometimes indulged in as an exercise of cleverness. Cardinals hardly do prudently to raise on English soil questions about truthfulness; for the English public will not much longer be content to take information at haphazard or at second-hand, but will go to the fountains, and learn about things in Rome as things in Rome in reality have been.

FOOTNOTES:

[4] Theiner, *Acta Genuina*, i. 686.

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BOOK I

*FROM THE ISSUE OF THE SYLLABUS TO ITS SOLEMN
CONFIRMATION
(December 1864 to June 1867)*

CHAPTER I

The First Secret Command to commence Preparations for a General Council, December 6, 1864—Meeting of Congregation—All but Cardinals sent out—Secret Order—Events of the 8th—Solemn Anniversary—A historical *coup de soleil*.

ON December 6, 1864, Pope Pius IX held in the Vatican a memorable meeting of the Congregation of Rites. That body consists of some eighteen or twenty cardinals, with a few prelates and a number of consulters. It holds a prominent place among the congregations, or boards as they would be called at our Court, which, taken collectively, may be said to constitute the Roman Curia. It determines not only questions touching the canonization of saints, and the patron saints of towns and countries, but also questions touching relics, rubrics, and the title of sacred images to worship. The all-important matters of robes, adornments, and precedence, are said by different authorities to be regulated by it, and by the smaller Congregation of Ceremonies. The pontifical masters of the ceremonies have a seat at both boards.

The day in question fell within three months after the signing of the convention of September, by which the new kingdom of Italy had succeeded in binding Napoleon III to withdraw his troops from the Papal States, at the close of 1866. It was, therefore, at a moment when thoughts were forcibly directed to the contingencies which might arise to the Papacy should it be left alone with Italians. It was, moreover, only two days before the occurrence of an incident which has already grown into an event, and was designed to mark a new era in society at large. To that era the proceedings of the six years which we are about to trace were to form the introductory stage, up to a grand inauguration both legislative and ceremonial.

We have no information as to the business for which the meeting we speak of had been convened. It was, however, opened as usual by the reading of a prayer. After the prayer, the Pontiff commanded all who were not members of the Sacred College to withdraw, and leave him alone with the Cardinals. The excluded dignitaries interchanged conjectures as to what might be the cause of this unusual proceeding, and hoped that on their readmission they should be informed. But the Pope did not condescend to their curiosity; they found that the Congregation only went on with the regular business, and when events cleared up the doubt it proved that not one of them had guessed the truth.

In the short but eventful interval, Pius IX had formally communicated to the Cardinals his own persuasion, long cherished, and now quickened to the point of irrepressible action, that the remedy for the evils of the time would be found only in a General Council. He commanded them to study the expediency of convoking one, and to send to him in writing their opinions upon that question.

The above incident is the first related in the sumptuous volume of Cecconi, written by command of the Pope, who, after it appeared, conferred on the author the archbishopric of Florence. That volume exclusively narrates the secret proceedings of the five years which intervened between this meeting and the opening of the Vatican Council. But, while telling us what took place on December 6, the Court historian passes in dead silence over the eighth. On that day, however, the Vatican launched manifestoes which had been for years in preparation, and which have been mentioned every day since. These summed up all the past policy of Pius IX, and formed a basis for the future government of the world. They furnished to the Vatican Council, still five years distant, the kernel of its decrees, both those passed and those only presented. They are, in fact, printed with the Freiburg edition of its *Acta* as preparatory documents.

December is to Pius IX, as it is to the Bonapartes, a month of solemn anniversaries. On the eighth of that month, ten years previously to the time of which we are writing, surrounded by two hundred bishops, he proclaimed the immaculate conception of the Virgin Mary as a doctrine of the Church. In his own imagination, this act formed an epoch of glory, to the lustre of which three distinct triumphs contributed. In the first place, a darling bye-belief was lifted from the humble posture of pious opinion, to

that of a dogma binding on all, who must admit changes into their creed with every change of Rome. In the second place, a new and mighty advance in the power of the Papacy was achieved, for a formal addition to the creed was made without the sanction of a General Council. Those bishops who attended manifestly acted, not as members of a co-ordinate branch of a legislature, but as councillors of an autocrat. The absent were placed under the necessity of accepting the *fait accompli*, or of attempting to undo it in the face of the Pontiff, the Curia, and the majority of the prelates. "Gallicanism," said the *Civiltà Cattolica*, "was, in fact, bruised under the heel of the Immaculate, when Pius IX., by his own authority, laid down the definition."^[5] Thirdly, an impression of the personal inspiration of Pius IX was conveyed, with embellishments, so as to prepare the way for the recognition of his infallibility.

When he was in the act of proclaiming the new dogma, the beams of the sun streamed gloriously upon him; the fact being that his throne was so fixed that this must take place if the sun shone at the time. Nevertheless, the visible rays were hailed as evidence of the light which makes manifest things not seen. The Pope sought, in the great fresco of Podesti, to popularize and perpetuate his own conception of this event, which is called, in French guide-books to the Vatican, the *coup de soleil historique*. That picture, filling an entire side of a chamber, near to the renowned frescoes of Raffaele, represents the Virgin looking down from celestial glory upon Pius IX, and, by the hand of an angel, who holds a cross, pouring a stream of supernal light on his enraptured eye. Hence may the faithful gather that this is the light by which he reveals the truth to men.

FOOTNOTES:

^[5] Serie VII, viii. p. 668.

CHAPTER II

The Encyclical *Quanta Cura*, December 8, 1864—Causes of Ruin of Modern Society: rejection of the "force" of the Church—Religious Equality—Pretensions of Civil Law and of Parents to Control Education—Laws of Mortmain—Remedies—Restoration of the Authority of the Church—Connecting Links between Encyclical and Syllabus—Retrospect of Evidences that all Society was in Ruins—The Movement for Reconstruction.

THE tenth anniversary of the auspicious day of "The Immaculate" being now at hand, Pius IX had, as we have seen, chosen its fore-eve for setting in motion the preparations for his General Council. He reserved for the day itself the great deed of publishing the Encyclical *Quanta Cura* and its accompanying Syllabus of Errors. It is said that the inception of those documents dates back to a point not very long subsequent to the proclamation of the Immaculate Conception, and that the first Special Congregation named to prepare them spent more than five years without agreeing, after which it was dissolved by his Holiness, and a second named, which completed the task.

The keynote of the Encyclical is that of an alarm, in the martial sense; not a panic cry, accompanied by a throwing away of arms, but a note of danger, with a call to take them up.

The cause assigned for alarm is the ruinous condition of society—that word being used in its political, not its domestic sense. The very bases of society were shaken by evil principles, which had spread on all sides and raised a "horrible tempest." Before proceeding to the errors to be now condemned, the Pontiff is careful to connect with them those other "principal errors of our sad times" which he had already condemned in previous encyclicals, allocutions, and letters apostolic. He thus lays the logical foundation for the collection of them in the Syllabus. He first reminds the bishops how he had stirred them up to war against these errors, and how he had also commanded the children of the Church to abhor and shun them. Secondly, he enumerates certain additional errors, condemns them in turn, and commands his sons to shun them likewise. Condemnations pronounced in this formal manner are judicial and sovereign. The Pontiff does not speak as a mere teacher, but as the supreme tribunal of the Church. The judgments

pronounced are not for the guidance of individuals merely, but are a rule for every officer of the Church. Every such sentence fixes the state of the law.

After many generalities, the first token of ruin in modern society particularized is the design manifested to check and set aside the salutary *force*^[6] which ought always to be exercised by the Church, not only over individuals, but also over nations, both "peoples" and sovereigns. The second token of ruin is the prevalence of the error that the State may treat various religions on a footing of equality—the error that liberty of worship is in fact a personal right of every man, and that the citizen is entitled to make a free profession of his belief, orally or by the press, without fear of either civil or ecclesiastical power. This is condemned as being the "liberty of damnation." The next token of ruin is hostility to the religious orders, which were established by their founders only by the inspiration of God. Another token of ruin is the belief that all the rights of parents over their children arise out of civil law, especially the claim to control their education. The Pope would seem to think that this notion is the ground for denying the right of priests to take the control of education out of the hand of parents, or the ground for claiming the protection of civil law for the natural and Scriptural right of the parent against the alleged right of the priest. Such denial of the right of the priest is dilated upon as a further token of ruin. The existence of laws of mortmain is an additional token. After these civil and ecclesiastical matters, one theological point is adduced, with formal yet fervent language, as if it were some new plague, broken out in our own times—the denial of the divinity of our blessed Lord. This seems to be the only question in theology proper directly raised in the document. The errors now signalized are all condemned, and formally added to those previously condemned.

Just as the Emperor Nicholas of Russia, before undertaking the campaign that led to the Crimean war, found his sick man and pointed out his symptoms, so had Pius IX done. In the former case, the sick man was only one wide-spread but despotic empire. In the latter, it included everything that could be called, in the dialect of the Vatican, the Modern State.

Proceeding from his enumeration of the evils which mark the ruin of contemporary society to the remedies by which it is to be repaired, his Holiness once more wraps up much of what he may mean in generalities. When he does come to particulars, the hierarchy are directed to teach that

kingdoms rest on the foundations of the faith; that kingly power is bestowed, not only for the government of the world, but still more for the protection of the Church; that nothing can be more glorious for rulers than to permit the Catholic Church to govern according to her own laws (i.e. canon law), not allowing any one to impede her free action, and not setting the regal will above that of the priests of Christ. Here is touched the great question in government. The Modern State had not only emancipated the throne from the supreme tribunal of the Church, that is, the Pope, but it had also emancipated the civil courts from the external tribunal of the Church, that is, the ecclesiastical court. The latter as well as the former evil must be redressed. To such prescriptions for the healing of society is added a proclamation of indulgences, and then follows an exhortation to pray both to God and to the Blessed Virgin, "who has destroyed all heresies throughout the world"—whatever that may mean in history, theology, or rhetoric. "She is gentle and full of mercy; ... and standing at the right hand of her only Son, our Lord Jesus Christ, as queen, in gilded clothing, surrounded with variety, there is nothing which she cannot obtain from Him."

This curious document was a necessary introduction to the Syllabus. The external connecting link between the two was formed by a covering letter of Cardinal Antonelli conveying the Syllabus to the hierarchy by direct command of the Pope, "that they might have all the errors and the pernicious doctrines which have been condemned by him under their eyes."

[7] The internal link lay in the title of the Syllabus, which recited the language of the Encyclical referring to the antecedent judgments of the Pontiff. It is not a syllabus of errors *in general*, nor of errors merely disapproved and abhorred by Pius IX in particular, nor of errors rebuked and denounced by him only in sermons, speeches, or briefs; but a syllabus of *The Principal Errors of our Times, set forth by him in Consistorial Allocutions, Encyclicals, and other Letters Apostolic.*

Before proceeding to consider the Syllabus as the new foundation laid for the reconstruction of society after its ruin, we may for a moment glance at the facts which might seem to prove to observers, looking from the Vatican, that it had been reduced to a ruinous condition.

Coming to the throne in 1846, Pius IX inherited the sovereignty of States which had long been in a condition of chronic disaffection. The state of

things is described as follows by Monsignor Liverani, a learned but seemingly disappointed prelate, who wrote hoping to redeem the glory of the Papacy by the re-establishment of a Holy Roman Empire with an Italian head, after the example of that interval between the line of Charlemagne and that of Otho, when Guido of Spoleto, his brilliant son Lambert, and Berengarius wore the imperial title. "The people," says Liverani, "have spoken for forty years, groaning, agitating, shaking off the yoke by frequent revolutions, accompanied by crimes and continuous misfortunes, by slaughters, wars, bombardments, banishments, and desolations."^[8]

Nevertheless, prelates from the north, coming to pay their homage to the new Pontiff, on reaching the last spurs of the Alps, might embrace in the glance of their mind all thence to Ætna, and say, Happy land! the throne of his Holiness in the centre, the faithful Bourbon on the south, the Hapsburg on the north, with Tuscany under a branch of the Hapsburgs, and Piedmont under the House of Savoy—what a spectacle of Catholic power! Holy land! not a heretic temple; not one teacher but in communion with Peter: blessed scene of Catholic unity!

A poor representative of the oft-extirpated Waldenses might say in silence—for such words durst not then disturb the Catholic unity of Italian air—You forget a few teachers in the valleys behind you, who never left the word of God to turn lords either of the earth or of the faith. Before you there is not a pulpit with the Bible, nor a man who ever drinks the cup of Christ, excepting priests alone; not a temple with God's commandments on its walls, but many a decalogue altered by the authority of a man who, making the law of God reformable, claims that his own shall be irreformable!

Beyond the limits of the Pope's temporal dominions soon arose commotions which spread over the principal seats of his spiritual power. In Switzerland the Jesuits provoked the war of the Sonderbund, and were foiled. Beyond the Atlantic a considerable portion of Mexico passed into the hands of the Protestant United States. Portugal was plagued with revolt. A famine thinned and dispersed the Roman Catholic population of Ireland. France drove away her good king. The Emperor of Austria was compelled to abdicate, and the empire was not saved from dismemberment without aid from Russia. The King of Bavaria also had to lay down his crown. The sovereigns of Tuscany and Naples were compelled to fly; as was, alas! the Pontiff himself. Spain and her Queen were seldom heard of, except for an

insurrection or a scandal. Only two Roman Catholic countries were thriving—Belgium, with a Protestant king, and a constitution which the Church had solemnly and vehemently condemned; and Piedmont, which, worse than Hannibal, had opened the passes of the Alps to religious liberty.

This was the first sweep of the hurricane. During its prevalence, those portions of the world which lay without the Papal circle enjoyed as much rest as was to be looked for beside such troubled waters. Both schismatical Russia and heretical England were stable and expanding. Prussia was for a time seriously disturbed, but, nevertheless, was manifestly advancing to the first place in Germany. Holland, Denmark, and Sweden held on their way; and the United States were growing apace.

From his exile the Pope called on the Catholic powers for armed aid. Austria crushed and held the Emilia. Spain took Fuimicino and the cities on the Tyrrhenian shore. Naples conquered Frosinone and the south up to Palestrina, but was driven back at Velletri by Garibaldi. Finally, France declared herself ready to terminate the war; and, after failing for weeks before the slight defences of Rome, ultimately took the city.^[9]

Indebted for a welcome restoration to the unwelcome hand of a Bonaparte, Pius IX, on re-entering his States, found himself permanently dependent for possession of the capital on the sword of France, and for that of the provinces on the sword of Austria. Under their protection he enjoyed some years of struggling sovereignty. This could hardly be called a restoration of the temporal power, for a power is not really restored till it can again stand alone. Instead of being an opponent of the Jesuits, a Liberal, and a Reformer, as he had been, the Pope was now transformed into a violent reactionary, and had fallen entirely under the influence of the Jesuits. His admirers proudly point to his acts from that time forward as evidence that they have been uniformly aimed at one end. That end, viewed on its negative side, they call combating the Revolution, and, viewed on its positive side, the reconstruction of society. In the introduction to his Speeches, his peculiar mission is said to be that of reconstruction. This reconstruction was to begin with the restoration of ideas, and was to proceed to the restoration of facts.

It is this movement that we are about to trace. First, we shall take a brief retrospect from the time of its inception at Gaeta up to the appearance of the

Syllabus, which, as the ostensible ground-plan of a cosmopolitan code, was meant to be the charter of reconstruction. We shall then, from that stage onward, as far as our materials enable us, detail the progressive steps of the movement up to the end of the Vatican Council, which was meant to complete the constituent arrangements of the new theocratic monarchy. We shall see unfolding a movement for dominion as distinctive as was that of Leo III when he linked the fortunes of the Papacy to those of a new Western Empire; as distinctive as was the movement of Hildebrand when from political dependence he lifted up the Papacy to unheard-of domination; as distinctive as was the movement of the Popes after the Reformation, when through war and the Inquisition they restored in several countries of Europe their spiritual ascendancy. We shall witness the rise of a curious and powerful literature—scholastic, serial, and popular—which has steadily swollen in volume, and now acts with ever accelerating force on the religious antipathies of many nations, pointing to future wars on a scale unheard of, fixing the aim of those wars, and hinting at the disappearance of all existing institutions but the Church. We shall see a well-sustained endeavour, in the name of freedom of instruction, to take all schools and universities out of the hands of parents and of States, and to put them into the hands of priests. We shall see such rights in matters ecclesiastical as in the Church of Rome had still survived to the laity, the priests, and the bishops, gradually suppressed in action till the way was prepared for their abolition in law. We shall see the subordination of the civil law to the canon law, and the subjection of the civil magistrate to the "ecclesiastical magistrate" insisted upon as the essence of social order. We shall see all the inherited rights of kings and rulers, within their own dominions, to put limits upon the action of the Pope of Rome, first impugned, then contested, then defied, and finally, as far as the Church could do it, legislated out of existence. We shall see all kings and rulers challenged to accept the Pontiff as their head, and even as their judge in all matters involving moral responsibility. We shall find it taught and taught again that all Catholic countries have two rulers—the universal and the national one, the universal one superior, the national one subordinate; and that every citizen of those countries is more the subject of the Pope than of his prince. We shall see the relation between the civil and the ecclesiastical authorities as existing within the Papal States solemnly and repeatedly declared to be the normal relation of those two orders of authority, and to be the only example of their

proper relative position extant in all the earth. We shall see the Papal States earnestly held up as the model for the new theocracy in the entire world.

Further, we shall see, for five successive years, secret proceedings of the Court of Rome sufficiently laid open by official divulgence to enable us to note the slow, sure steps devised for depriving kings of all their rights in self-defence against the Pope; for depriving bishops of all their powers of checking or restraining the Pope; for depriving theologians of any voice in the councils of the Church; and for depriving the parochial clergy of their individual and collective franchises. We shall at almost every turn hear modern laws and constitutions—liberty of worship, liberty of the press, liberty of meeting, with representative legislatures and responsible governments—denounced as the curse of mankind in all the varying accents of a strange dialect, or a dialect happily strange to us. We shall witness the preaching of a new crusade, on a cosmopolitan scale, with considerable art, making the bearing of arms for St. Peter to appear, pre-eminently, the life of the Cross, and dying in arms for St. Peter to appear as the martyr's end, the fairest of deaths, and the most enviable. We shall see how the most jealous and obstinate oligarchy in the world were led on from step to step of subjugation till they were made the instruments of reducing their collective body, when in Council assembled, from a co-ordinate branch of a legislature to a mere privy council to the Bishop of Rome, and of reducing the members of their body, when dispersed, from the position of real diocesan bishops to that of prefects of the Bishop of Rome.

Still further, we shall see evolved under our eyes the process by which opinions are elevated into doctrines, and doctrines are erected into irreformable dogma. We shall see how the bishops, while dispersed, were induced, in order to facilitate the making of a new dogma, to discredit their acknowledged standard of belief, tradition, substituting for it the general consent of the Church; and how, when the passing of the dogma was secured, the assembled bishops were induced to disavow the consent of the Church as unnecessary. We shall see ecclesiastical magnates prostrate and petitioning the Bishop of Rome for the elementary liberties of a legislature, and petitioning in vain. We shall see how such magnates in secret petitions represented the principles about to be erected into dogma as contrary to their traditional belief and constant teaching, as fraught with peril to the State, and as certain to bring discredit on the loyalty of any sincere believer

in such dogma; and how the same magnates afterwards in public documents affirmed the opposite in all these respects. We shall see how renowned champions of the Papacy complained late in life that they had been used for its glory and deceived as to its principles. Finally, we shall see set in motion an immense apparatus of means for effecting, in a course of ages, the complete social, political, and ecclesiastical reconstruction of all society, which reconstruction will culminate only when the spiritual and the temporal powers meeting as in an apex in the Vicar of Christ, he shall be by all men regarded as not only High Priest, but as King of kings and Lord of lords; when, all authority and dominion, all principality and power, being put under him, there shall in the whole earth exist only, as we should express it, one master and all men slaves, or, as he would express it, one fold and one shepherd.

FOOTNOTES:

[6] The word is *vis*, which both the *Civiltá Cattolica* and the French *Recueil* translate by "force." But not so the German *Stimmen aus Maria Laach*, which makes it "influence"—*einfluss* (Heft i. p. 10). Such a difference in versions meant for Germans, Englishmen, and Americans is not rare.

[7] *Recueil*, end of preface.

[8] *Il Papato*, etc., p. 188.

[9] The Pope, in the Allocution of April 20, 1849, says that Spain first stirred up the other Catholic nations to form a league among themselves for his restoration (*Recueil*, p. 228). His description of the Holy City during his absence was, "a thicket of roaring beasts"—*silvam frementium bestiarum* (Id. 224). His description of himself at the same time was "being counted worthy to suffer shame for the name of Jesus, and being made in some measure conformable to His passion" (Id. p. 234).

CHAPTER III

Foundation of a Literature of Reconstruction, Serial and Scholastic—
The *Civiltá Cattolica*: its Views on Education and on Church and
State—Tarquini's Political Principles of Pope and King—
Measures Preparatory to the Syllabus.

WITH the year 1850 was commenced a magazine, at the instance of the Jesuits, and under their direction, bearing the title Catholic Civilization (*Civiltá Cattolica*), in opposition to modern civilization. We may here say that the daily organ of the same complexion bears the title of Catholic Unity (*Unitá Cattolica*), in opposition to Italian unity. Above one hundred volumes of the *Civiltá* have been published; and it must ever be named in connexion with Pius IX as the intimate organ of his policy, and the most complete store of his published records. Perhaps its place in the history of literature is unique. Considering the number of books, serials, and journals, in different languages, of which it is the inspiring force, and considering the modifications it has already succeeded in bringing about in the ideas and even in the organization of the whole Catholic society, they can scarcely be charged with vain boasting who call it the most influential organ in the world. The Jesuit Fathers forming its editorial staff reside close to the Pope's palace, and work under his immediate direction. Dr. Friedrich, during the Vatican Council, told some bishops that if they would understand the Council, they must study it with the *Civiltá* in their hands. For our part, before reading that remark we had applied the same principle to the entire movement.

The leading idea of the *Civiltá* is expressed, says the article on the programme, in its title. *Catholic Civilization* is flag, device, and profession of faith.^[10] The substance is civilization, the quality Catholic. Civilization is not polish, but organization in community, under rule. Civilization, after the Catholic ideal, had continued steadily to grow up to the fifteenth century, but was broken in the sixteenth by Lutheranism; was again enfeebled in the seventeenth by Jansenism; yet again was it undermined in the eighteenth by Voltairianism, and now in the nineteenth it is lacerated by Socialism. The evil has actually entered Italy, and even heterodoxy itself threatens to invade the Peninsula. Heresy is, in fact, likely to become connected with that aspiration after national unity by which the people are misled. *Almost everything having been overhauled in heterodox spirit, almost everything must be reconstituted from the foundation.*^[11] These words express the mission of the new periodical, and of the restored Papacy. They are the original announcement of a policy ever since pursued without flagging.

To reconstitute society according to the Catholic ideal is the single object set forth. "On the brink of social dissolution," the one necessity felt,

pressed, reiterated, is that of re-establishing on the Catholic ideal the notion of civilization—that is of the civil system; and of leading back the movement of civilization to that Catholic ideal from which it had been departing for three centuries.^[12]

The essential point in this fabric is "the idea of authority." But the idea of authority cannot be restored except by quickening it, and reinforcing it by the Catholic conception. When the divine authority was shaken, men would no longer hear of the human (i.e. when the Papacy was rejected, civil government fell into contempt). The Catholic ideal is idly reproached with absolutism. But, among Catholics, pure monarchy, if not limited by certain conventional checks, is tempered by a higher law, not abstract, but practical, active, and operative. Absolutism in the sense of despotism is the creation of Protestantism and Voltairianism, and if it may sit on the throne of a king, it is more frequently found in constitutional chambers or democratic assemblies.^[13] Therefore the one sufficing remedy is the restoration in ruler and subject of the notion of authority according to the Catholic ideal. For this the new organ calls for *a salutary conspiracy, a holy crusade*;^[14] two phrases that mean all that has since taken place, and all that has yet to come.

The very first article of the *Civiltà*, after that upon the programme, is on education: "the question which holds all the future destinies of the European nations struggling within its ballot-boxes." With this appreciation of its theme, it takes ground which has since become familiar to Europe, and enunciates principles which have now frequently been reproduced in our own discussions; so that a slight sketch of its reasoning will not be without interest to English readers. The interest is increased by the fact that its aims have steadily gained ground in France. In England, some of them, if not recognized as principles, have been, to a considerable extent, practically embodied, as undetected principles are apt to be.

Beginning with the theme of Freedom of Instruction, it denounces the tyranny and monopoly of the University of France. Had not the spirit of Catholicism, it says, broken the chain, it would soon have become unlawful for one man to tell another the right road, unless he had a bachelor's degree, for doing so was a sort of instruction. The line properly limiting freedom of instruction it finds in the line which divides the truth from falsehood. They who demand liberty of instruction do so in order to teach the truth. But in

excluding the teaching of lies, it may be even "necessary to protect children betrayed by the barbarous apathy of their parents."

The writer then asks, But who is to determine what is the lie? Governments? "Until a government can show itself infallible, it must renounce all pretensions to regulate instruction and opinion." The pretension on its part to do so is tyrannical, because interference here is trespassing on the sanctuary, where the truth alone bears rule.

The position that it belongs to a government to fix the limits of freedom of opinion is denounced as having originated in the Reformation, as being Protestant, and, further, as being destitute of foundation. The Church is the moderator of instruction, precisely because she is the infallible moderator of opinions in all that relates to the moral order. Consequently there is in existence a competent, effectual, and revered tribunal. Then follow taunts at journals which complain of communal authorities for giving up their educational rights to the clergy. These are succeeded by jeers at such statesmen as doubt if the liberty of communal authorities extends so far as to give them the right of surrendering their liberty.

The objection is then faced, that liberty may be as justly claimed by the non-Catholic as by the Catholic. Of course, replies the *Civiltá*, the only case in which that question can become a practical one for Catholics is where they form the majority. Is it to be supposed that a majority shall be bound, for the sake of a minority "to pass a law opening all the pits of hell for its fellow-citizens?... With Catholics the liberty of dissidents cannot be a natural right."

The position taken by statesmen, that the Church is not infallible in politics and economy, and that therefore these subjects must be under the control of the State, is first laughed at. It reminds the writer of a musketeer who should say to his general, "I see that your artillery is of no avail against these Alps; let us open upon them with our rifles." After this comes the principle. The assertion that politics and economy ought to be under the control of the State rests on one or other of three errors: (1) Politics and economy do not belong to the moral sciences; or, (2) The moral sciences are not subject to moral laws; or, (3) The Church is not the authentic exponent of moral law. The first of these errors is refuted by every university in Europe, in all of which politics and economy are classed among the moral

sciences. The second is a contradiction in terms. The third is a heresy in every Catholic ear.

It will help to a clear understanding of many expressions which must occur hereafter, if the reader, at this stage, will set before his mind's eye the scope of the three principles here asserted. Phillips, a modern lay doctor, quoted by the humblest polemic and the mighty *Civiltá*, in his seven volumes on ecclesiastical law (*Kirchenrecht*), discusses the relations of Church and State at great length. He shows that the Church is supreme and the State subordinate, in all things that come under the *divine laws*. Holtgreven, a Catholic judge, and an opponent of the Falk laws, explains this clearly: "To the divine laws, in this sense, belong, not only the ten commandments, but also the canons of the Church, as the Council of Trent shows. The things subject to the divine laws include all such worldly things as are *connected* with morality."^[15]

This much is conceded by the *Civiltá*, that, if danger to the public interests should arise from false teaching of any *material* science, the government may interfere, as it would in a case of adulteration of food. The Church is not infallible in material instruction.

The article, it will be seen, claims the right to take the teaching of the child out of the hand of the parent, and that of the subject out of the hand of the State.^[16] The latter may mix itself up in the matter as to material things, not as to moral. Royal supremacy, in university, college, seminary, or primary school, must not be allowed. It has the twofold evil of setting the authority and responsibility of the parent for his child above that of the priest, and of setting the local authority of the national ruler above the all-embracing authority of the universal one. The State is not only welcome to appear in school, but ought to appear in its subordinate capacity, finding money, secular status, and instruction in *material* things. But in all that part of schooling which may be called education in the higher sense, of a father, a Christian, or a king, the State is not to have a word to say.

It would seem difficult to ask a community to do an action involving a more serious disregard of moral considerations than to find money and power for schools and colleges, and not have a word to say as to the principles taught in them. We are far from ascribing such a disregard of moral considerations to a devout Ultramontane. On the contrary, he is persuaded that the State, in

committing its money and authority to the Church, takes not only the highest human guarantee, but a truly divine one, for the protection of every moral interest. The motto of the article is a sentence intimating that, all over Europe, the question of the future must be the establishment of universities canonically instituted.^[17]

In order to the *restoration of ideas* now undertaken, as preparing the way for the *restoration of facts*, it was a practical necessity to establish an invariable association between the two ideas of the only Judge of true and false, the only Arbiter of right and wrong, and the one holy Roman Church. This association could not be established so well by any arrangement as by making each school an arena on which every day the authority of both the parent and the State should be—not pranced upon, not even trampled upon, but serenely and devoutly walked over, by what M. Veuillot calls the crushing sandals of the monk.

Another article in the first volume of the *Civiltà* gives such expression to the principles which underlie the whole struggle ever since conducted, that some account of it will do more to put the reader in possession of certain of those principles than formal explanations. It is on the central question of the relations of Church and State; or, as the *Civiltà* puts it, of the separation of Church and State—a phrase which, like almost every other, has a different meaning in its pages from what it has with us. The following headings give an idea of the drift of the article: "6. The nation is a part of the Church." "7. The part ought to be subordinate to the whole." "8. Because the Church has authority." "9. The authority of jurisdiction."^[18]

I believe in the holy Catholic Church, in the Apostles' Creed, is thus interpreted: "I believe that every Catholic individual and nation forms a part of the Catholic society, and that only by virtue of its being a part does it partake of the benefit of the whole, through being subordinated to the laws of the whole."

On the point of jurisdiction, the writer first unearths "the serpent," which is the notion that the Church may judge about sins, virtues, doctrines, rites, and such-like, but must not touch temporal jurisdiction. This serpent he

proceeds to kill. First, he solemnly appeals to the faith of the reader. "Do you believe that the Church is infallible in dogmatic Bulls, at least, unless they are formally rejected by the episcopate?" After this, he resorts to pleasantry: "Come close to me, and I will tell it in your ear. The Bull of John XXII condemned John Gianduno and Marsilius of Padua as heretics, because they denied to the Church the right of punishing by corporal pains, and it declared that she could inflict pains even unto death.^[19] But I tell you this in secret, solely that you may know what is the doctrine of the Catholic Church, which you profess—doctrine put in practice through very many centuries, down to the last Council (Trent), which fulminated I know not how many penalties, and material ones, even against counts, marquises, princes, and emperors. Woe to us if they should hear us!" Thus jauntily did those who had only just been reinstated by foreign arms treat the neo-Catholic doctrine, or, as it has since been called, the Liberal Catholic one. "I tell you plainly," adds the writer, "that if the Church cannot rule her sons, even in material things, the Church is lost; at least, the Catholic Church. She might survive as that invisible Church which was discovered by Luther among the ruins of the middle ages, and, reconstructed as the *amphitherium* and *palæotherium*, were discovered in the geological strata, and reconstructed by Cuvier."

Addressing kings, the writer solemnly counsels them to bring forth all their codes, and pass them under a careful examination. But the light by which such examination is to be conducted must be that "of pure Catholicism, to which all other legislation must be subordinated. Restore every article of your code, according to the articles of your creed, not only in what relates to the duties of subjects, but also in what would seem to diminish the rights of rulers. And that the Catholic influence, which modifies codes, may shine in all its fulness, *let it not be ministers or legists, but bishops and the Pontiff, who shall minutely search into your legislation for every anti-Catholic element.*"

The theocratic Papal polity might have been almost intentionally framed to contrast with the first principles of the Mosaic theocratic polity. The latter, put in one word, seems to be this: God as the general Father is the great right-holder, and He identifies the rights of every creature with His own, identifying at the same time their welfare with His own glory. Therefore He leaves no creature to the care of a Vicar, no province to any departmental

divinity. Every act done for the benefit of our fellow-creatures He reckons as a tribute to Himself. Every infringement of their rights He treats as an offence against Himself. Every man was taught to see, not an abstract principle, but a great Father standing beside the gleaner, the widow, the suppleless hireling, the pauper forced to pawn, and having no second coat—was taught to hear this common Father saying for these to happier neighbours, "I am the Lord." Every man tempted to lie, cheat, steal, oppress, seduce, or strike, saw the same great Father rising up against him, and saying, "I am the Lord."

It was of the essence of this theocracy that all who held authority did so by and under a written law in the vulgar tongue. Of this law every father in his own house was made the guardian, and in it he was the responsible instructor of his children. Every prophet professing that he bore a fresh message was to be brought to the test of this written law. Those who were to apply the test were the men of the whole community. Every one who claimed to bear a special commission was bound first to conform to the law, and secondly, to show signs of special divine power. It was a theocracy of direct divine government, not of government by a Vicar; a theocracy of written law, not of arbitrary will styling itself authority; a theocracy of private judgment, not of a veda shut up from the low caste, to be read and interpreted only by the twice-born Brahman. Finally, it was a theocracy in which whatever came from God became its own witness by benefits to God's children not to be mistaken, and obvious to all.

The statement made in the *Civiltá* as to the guidance under which the reactionary policy in Austria was devised, gives light upon the duties then engrossing nuncios and confessors at the various Courts where Papal influence was powerful. All that appeared to the world was, that at every one of those Courts a cold current of reaction set in and ran strong. The Jesuits took it for a tide, and the bark of St. Peter was to sail cheerily over all the shoals. But the Liberal Catholics were proportionably disquieted as to the prospects of the Church. The first days of Pius IX had fired them with hope that Rome might yet be fit to face three things of which she was shy—the Bible, History, and Freedom. But the advent of the Jesuits to power caused serious forebodings, which soon began to be realized. To quote the memorable words of Montalembert, "Who could have thought that the clergy, after crying out for liberty in Belgium, would turn round as they did

in 1852, till we found them beating down all our liberties and privileges—in fact, all our ideas—as held in times preceding Napoleon III?"^[20]

We now find that at the time when the Pontiff was using his clergy to help kings in taking away constitutional rights from their subjects, he was himself preparing to take from the kings what they indeed looked upon as rights, but what he regarded in the light of constitutional concessions, infringing the higher rights of their divinely appointed suzerain. When the Italian government took possession of the *Collegio Romano*, it was found that the Jesuits had left in the great library of the establishment little belonging to the present pontificate. One pamphlet is of some significance. A manuscript note on the title-page proudly tells how his Holiness wished to have it circulated as widely as possible. It also adds that on February 1, 1853, when the fathers of the *Collegio Romano* stood before his Holiness, he singled out the author, Father Camillo Tarquini, in presence of the other Jesuits and of the Court, and addressed him thus: "Father Tarquini, I am delighted; bravo! well done! I confirm it, and confirm it with all my heart."

^[21] This was an early foretoken of the purple in which Tarquini died. He is the writer to whom Cardinal Manning appeals, as softening the doctrine of Bellarmine and Suarez to a temper fitter for our times. The pamphlet signalized by this display of favour aims at proving the wickedness of kings in subjecting the bulls, briefs, or any acts whatever of the Pope, to a *placet*, *exequatur*, or other form of royal assent, before recognizing them as having the force of law in their States. This is one form of the error of regalism.

The power of the Pontiff, argues Father Tarquini, is this—What he binds on earth is bound in heaven. But if the king, stepping in, says, To bind implies the force of law, and your acts shall not acquire the force of law without my *placet*, how then? Why, the Pontiff becomes the one really bound. The king refuses to allow the pontifical judgments to take effect of themselves. It is not with him "said on earth and done in heaven." His *placet* must intervene.

It is competent, indeed, he admits to the Pontiff, to *grant* a right of *placet*; but such a right, founded on the grace of a Pope, cannot be confounded with one inherent in the crown. We quote the following in full:—"You say that the *placet* is a real right, demanded by justice, and essential to political government. The Church condemns it by a series of judgments, perhaps without parallel in her history, extending from her foundation down to Pius IX. She expressly defines it, with Leo X, Clement VII, Clement XI, and

Benedict XIV, as opposed to all justice, as indecent, absurd, rash, scandalous, as insufferable depravity, and worthy of eternal pain. Therefore she punishes it with the greatest of penalties, the anathema.

"In this matter there is no middle course. You must either lay aside the mask of Catholicism, which no longer becomes you, and boldly avow that the Church has defined good as evil, justice as injustice, an inherent right of the crown as an absurdity and a wrong, and done so in a judgment perpetuated from her foundation to our own day; or you must, on the other hand, confess that you are in an error not to be tolerated."

Thus it seems that what with a Christian minister would only be a claim to announce the belief and the moral precepts which he found in the Holy Scriptures, becomes with the Roman Pontiff a claim to put his decree on any matter which he deems conducive to the good of "the Church" into the form of law, and to set it up without, or in spite of, but anyhow above, the national law, be it republican, royal, or imperial. This boundless pretension—for boundless it is—will often be found gently expressed as the right of the Pontiff *to communicate with the faithful*.

The writer then asks what, from his point of view, would seem to be a natural question. Would kings like the Pope to demand that his *placet* should be required before their laws came into force?^[22] He replies that some of them have so far unlearned "Christian doctrine as to say that, in case the Pope did so, he would usurp sovereign rights in their States." But such a proposition is heretical, pronounced to be so by the Holy Office in 1654, with the approbation of Innocent X.^[23] By virtue of this, even our children know that the Church presided over and governed by the Vicar of Christ is a kingdom which has the ends of the earth for its bounds. Therefore it belongs to the Vicar of Christ to make laws in all parts of the world for her welfare and for her government.

Liberal Catholics trembled for the consequences to Church and State of Jesuit Court confessors and far-aiming but short-seeing plans. They knew that the devout Jesuit calls upon all to regard the Papal government as the model for the whole world; and that if statesmen and jurists could be replaced by Jesuits at the various Courts, a combination of plan and an unity of action might be secured everywhere for a great movement to

establish the dominion of Christ in a higher degree than the Thirty Years' War did in Austria and Bohemia.

There is a point illustrated in this pamphlet which seems to enter into the English head more slowly than any other. We mean the conscientious view of a true Ultramontane as to what constitutes religious liberty, or violates it. Englishmen sometimes not only transfer their own views on this subject to Ultramontanes, but betray the feeling that they are generous in doing so. It is never generous, or even just, to ascribe views to a man which he religiously condemns. If the Englishman will clearly set before his mind the first postulate of the Ultramontane, that God has appointed a vicar upon earth, to whom He has committed all power, surely he will see that religious liberty must principally consist in the freedom of that vicar to do all which he conceives it to be in his province to do, and in the freedom of those who receive his commands to carry them out, exactly according to his intentions. If any king or nation limits his freedom to act and command, "the Pope becomes the one really bound." The Englishman may say that, on this principle, no guarantee is left for any liberty but that of the Pontiff, or of those who represent authority derived from him. But that is precisely what the Ultramontane does not believe.

On the contrary, he holds that the highest guarantee for all legitimate liberty lies in the complete freedom of the Pontiff. No liberty can be legitimate that consists in exemption, or assumed exemption, from divine authority. And further, the authority of the Vicar of God, being exercised under unfailing guidance, is not liable to commit violations of any right.

We thus see begun the movement for the restoration of ideas, as preparatory to the restoration of facts. Ranke has traced the course of the "ecclesiastical restoration," which was rendered necessary by the damage inflicted on Rome by the Reformation, without being careful to mark the principles or to track the processes by which "restoration" was effected in Bohemia, Austria, Spain, Italy, and France. That restoration, however, had been real and momentous. A second restoration had taken place after the wreck of the French Revolution, when the Papacy had been smitten by its own sons. It was the pride of the clergy to cite the fact that the rulers of England and Prussia had co-operated in that restoration, as proof that the Papal throne was even in Protestant eyes the central point of order. Now a third restoration was to be effected—one which would do all that had been left

undone by the other two. The Pope's throne was not only to be reared up again in Rome, but was to be gradually elevated to a spiritual supremacy equal to the highest claimed in former Bulls, and to a temporal supremacy as complete as when Hildebrand triumphed at Canossa.

The first of these restorations had been fought out with the weapons of the Inquisition and the war-plots of the Jesuits. The second had been fought out with the weapons of the Liberal Catholics, borrowed from the Reformation and the Modern State. When the Jesuits had pushed, not too far, but untimely far, they were for the day disowned; not, however, as inimical to the Church, but as hateful to the nations, and as, therefore, lowering the credit of the Church with the outside world. Now had come the moment when the Liberal Catholics, having done their work, were in turn to be disowned; but on other grounds. They were to be cast out as children of the world, infected with principles subversive of the "kingdom of God," of that polity in which the priest of God is the king of men, and the affairs of an erring race are unerringly guided by consecrated hands.

FOOTNOTES:

[10] *Civiltá*, vol. 1. p. 13.

[11] *Ibid.* p. 15.

[12] *Ibid.* p. 13.

[13] *Ibid.* pp. 20, 21.

[14] *Ibid.* p. 14.

[15] *Holtgreven*, p. 9.

[16] *Civiltá*, vol. i. pp. 25-51.

[17] *Ibid.*

[18] Vol. i. p. 647.

[19] Cardinal Tarquini (*Institutiones*, p. 35, ed. 4th), whom Cardinal Manning, in his reply to Mr. Gladstone (p. 94), names as teaching differently on such points from the earlier Jesuits, Bellarmine and Suarez, quotes this case, saying that the Bull in question "more particularly attributes to the Church that which is the special property of a perfect society, the power of coercion, even to the use of material force; but Marsilius, who denied this, was on that account condemned as a heretic." His words are, "*Quod maxime proprium est societatis perfectæ, jus potestatis coactivæ etiam quoad inferendam vim materiale; Marsilius autem, qui hæc ipsa negabat damnatur eam ob rem ut hæreticus.*"

[20] Letter quoted in *Unità Cattolica*, March 10, 1870. *Friedbergh*, p. 120.

[21] *Del Regio Placet*: Dissertazione del P. Camillo Tarquini, D.C.D.G. ... Estratto dagli Annali delle Scienze Religiose, Roma, 1852. Tipografia della Rev. Cam. Apostolica.

The note in manuscript on the title-page is as follows: "S.S. Pio IX Voile che presente dissertazione si diffondesse quanto più si potea; e nel di, 1 febbrajo, 1853, veduto l'autore dissegli alla presenza della sua corte e degli altri Padri del Collegio Romano. P. Tarquini me rallegrò, bravo, bene. Confermo, e confermo di tutta volontà."

[22] "It would be very natural that the Church which makes laws from God Himself should demand of the State that it should make no law for her subjects to which she had not previously given her approbation."—*Phillips*, ii. 577.

[23] "In 1644, the Holy Office, in a decree approved by Innocent X, condemned as schismatical and heretical the proposition which asserts that, when the Pontiffs promulge their decrees in places subject to the dominion of other temporal princes, they promulge laws in territories that are not theirs."—*Civiltá*, Serie VII. vol. vi. p. 292. Tarquini says 1654 (*Inst.*, p. 159), the *Civiltá* 1644.

CHAPTER IV

Measures preparatory to the Syllabus—Changes in Italy since 1846—
Progress of Adverse Events—A Commination of Liberties—A
Second Assembly of Bishops without Parliamentary Functions—
The Curse on Italy—Origin of the phrase "A Free Church in a
Free State"—Projected Universal Monarchy.

BEING notoriously deficient in theological training, Pius IX was not unnaturally seized with a desire to reduce the rebel nations by raising contested doctrines to the rank of dogmas. When the reactionary movement in politics had attained its full momentum, he called an assembly of bishops, whose splendour, surrounding his throne, might restore to it some of the departed *prestige*. At the same time, summoning the bishops for consultation and for ceremonial purposes, but not at all for parliamentary ones, would be a secure step of progress in the absorption of the power of the collective episcopate into the Papacy. In the midst of two hundred prelates, as we have already seen, he proclaimed the Immaculate Conception, in 1854. As a display of absolute authority in the highest realm, that of dogma, this act did more to advance the proper ideas than an immensity of writing. We have already quoted the assertion that it crushed Gallicanism. But ideas were only stepping-stones to facts. Professor Michelis asserts that even during the gathering of 1854 an attempt was made in some large assembly of bishops to induce them to proclaim Papal infallibility as a Catholic dogma.^[24]

The prelates, who, on their way to Rome in 1846, had looked with joy on the spectacle of unity, now found that spectacle slightly blemished. One heretic temple stood in Turin—a proof that after all the extirpations of the Waldenses, a root had still lurked in the ground. This temple had no images, and had the Bible in mother-tongue. It bore outside, in words that any cowherd might read, if he could read at all, a verse of Jeremiah: "Stand ye in the ways and see, and ask for the old paths, where is the good way, and walk therein, and ye shall find rest for your souls." And this was not only suffered, but done by the House of Savoy!

As the prelates went south, whispers might reach some of them that in Tuscany the police, now and then, discovered secret bands of Bible-readers,

somewhat as in old times the Lollards were unearthed in England. The historical name of Guicciardini was implicated in the offence, and a number of vulgar people. Even at Rome, Luigi Desanctis, parish priest of St. Maria Maddalena, had abandoned as fair prospects as erudition, character, and favour could well give to an ecclesiastic. He had quietly withstood flattering and influential efforts to bring him back. First he had sheltered under the British flag; but, finding that the flag of Savoy really shed upon Italian soil the all but inconceivable right of freedom to worship God, he had taken refuge under it. He was now devoting his clear, keen, learned pen to teaching Italy the religion of Christ as he found it in the New Testament. Even in writing for Italians he found it needful to say that it was only by living in Rome, and by knowing Pope, Cardinals, and Curia, that they could come to a clear understanding of the religion of the city. The great cause of this difficulty he found in the three separate circles of doctrine in which that religion was wont to be taught, which he called (1) the official, (2) the theological, (3) the real.^[25] The official doctrine was that for use with heretics, the doctrine presented by Bossuet and Wiseman; the theological doctrine was for use with men of culture; the real doctrine was for practical use among the people. The eloquent Barnabite, Gavazzi was now thundering against the Papacy. Nay, even the threshold of the Inquisition had been crossed by the force of Protestant unity. A priest, avowing heresy, who once had held good preferment, had been seized after the French took the city. At the urgent instance of the Evangelical Alliance, General Baraguay d'Hilliers put on such hard pressure that even in sacred Rome a renegade priest walked out of the palace of the Holy Office a ransomed man.

The confidence that the Virgin would reward her new exaltation by corresponding exaltation of him who had procured it, was often expressed in language picturesque and ardent. But scarcely had the incense of the fresh offering cleared away when premonitory symptoms appeared of the storm rising again. Meantime, many Catholics became anxious when they found the Pope's favourite organ treating even such writers as Bellarmine, Suarez, and St. Thomas Aquinas, as too much inclined to Liberalism. Liverani, in referring to articles of this kind, says that Bellarmine had been "the author of the Night of St. Bartholomew," and he thinks that Italian Catholics in the nineteenth century might be allowed to be Liberals up to the standard of Bellarmine and Suarez.

In 1855, Piedmont, sending a force to the Crimea, took her place beside France and England. The next year, at the Congress of Paris, Cavour lifted up his voice among the representatives of Europe, and protested against foreign occupation in Italy. Mexico abolished the external tribunal of the Church, the ecclesiastical court; abolished tithes, offered protection to all of either sex who might choose to forsake their convents, and declared its resolution not to submit its acts to the supreme authority of the Apostolic See. Other nations of South America met the aggressive ecclesiastical movement by asserting the supremacy of civil law, even in matters directly ecclesiastical.^[26] Three years later, the same hand which upheld the Pope in Rome took Lombardy from Austria, and gave it to Piedmont, in exchange for Savoy and Nice. Tuscany, Parma, and Modena banished their dukes; the Romagna cast off the Papal yoke; and all these, uniting themselves to Piedmont, formed the kingdom of Italy.

These events were met, on the part of the Vatican, by more stringent denunciations of modern liberties. In the *Civiltà* these were inveighed against under the name of the principles of 1789. Liverani says (p. 160) that the *Civiltà*, in a Catechism of Liberty, hardly left a man the use of air and water. The article so alluded to gives what the writer of it calls a Litany, which ought to be repeated with the refrain, Good Lord, deliver us.^[27]

"Liberty of conscience is a perverse opinion diffused by fraudulent endeavours of infidels.

"It is a corrupt fountain, a folly, a poisonous error.

"It is an injury to the Church and the State, vaunted with shameless impudence as becoming to religion.

"It is the liberty of error and the death of the soul.

"It is the abyss, the smoke whereof darkens the sun, and the locusts out of which lay waste the earth.

"The liberty of the press is an evil liberty, never sufficiently execrated or abhorred.

"It is an extravagance of doctrines, and a portentous monstrosity of errors, at which we are horrified."

It would be incorrect to suppose that these principles exclude all possibility of toleration in fact, though not by right. Toleration may be allowed, but never on principle; never but as the means of avoiding a greater evil. If more harm to the cause of *religion* would result, in any given country, from intolerance, than from toleration, the latter becomes lawful to the prince of the country. Otherwise it cannot be so. Even this qualified admission of a mere *de facto* toleration of heretics was not left uncontested. Priests of the Appolonare in Rome about this time, publicly maintained the thesis that "it will never be possible to imagine reasons which should induce a Catholic prince to grant liberty of worship to heretics." They maintained other theses, to the effect that unlimited freedom of worship, and civil rights, granted to heretics, laid the prince open to suspicion of heresy, apostasy, or atheism.^[28] This doctrine, cries Liverani, would require the Catholic king of Saxony, with two millions of Protestant subjects, and fifty thousand Catholics, to exterminate the former by means of the latter. It is, he says, putting this alternative—the creed or the stake. Yet this debate was held in presence of the Pope's vicar, Cardinal Patrizi, and was noticed with commendation by the *Civiltà*.

Montalembert proposed that the voting in the Romagna on the question of annexation to Italy should take place under the eye of French troops. Liverani, a native of the Romagna, prelate as he was, replied, "If the French army left, without being replaced by a strong force to guard the lives of the clergy, at the end of a week all the priests and friars would be exterminated, so wild and savage is the public indignation against the government of these last years" (p. 46).

On March 26, 1860, in the famous and terrible Letters Apostolic *Cum Catholica*, all the actors and abettors of the territorial changes were placed under the greater excommunication. The Pope^[29] expressly decreed that no hand but his own, or that of his successors, should have the power of releasing any one of the countless offenders from the ban, except in the article of death. He proceeds on what seems the fair principle that the dominion of the Pontiff, though in its own nature temporal, takes on a spiritual character because of its spiritual design, as giving to the Head of the whole Church a position independent of any one nation. Therefore, robbing him of it becomes a spiritual offence. If he is the representative of God upon earth, it is hard to see how rebellion against him can fail of being

a spiritual offence. If he is not the representative of God upon earth, he has altogether misconceived his own position, and, like any other ruler, may be judged by his merits, not by his pretensions.

Before the publication of the Pope's speeches we were exposed to manifold interpretations of the spiritual import of this anathema. It was even possible that we might find letters in the *Times* assuring us that the Church never curses. But on June 23, 1871, Pius IX uttered language which put his view of the spiritual import of his own action beyond cavil. He had the words afterwards reprinted, with the explanation that the allusion to Peter referred to the death of Ananias and Sapphira. "True," said the Pontiff, "I cannot, like St. Peter, hurl certain thunders which turn bodies to ashes; nevertheless, I can hurl thunders which turn souls to ashes. And I have done it by excommunicating all those who perpetrated the sacrilegious spoliation, or had a hand in it."^[30]

But if to the spiritual eye of Pio Nono his curse had strewn Italy with the ashes of millions of blasted souls, his Bulls were, in a temporal point of view, as powerless as his dogmas. In the autumn of 1860, the Pontiff saw Umbria and the Marches wrested from him by the new kingdom, to which also the whole of the Neapolitan territory was added by Garibaldi. After this, Europe grew impatient of the French occupation of Italy, and that last stay of his temporal power became painfully insecure.

The Parliament in Turin proclaimed that Rome was the capital of Italy; and now we have to note the birth of one of those phrases which, becoming watchwords, grow into appreciable forces in history. Cavour, in a speech, alluding to Montalembert, said great authorities had shown that liberty might turn to the profit even of the Church. Montalembert addressed to him a reply, in October, 1860, in which he made use of the words, "A free Church in a free State." Five months later, when the Turin Parliament set up the claim to Rome, Cavour used the same phrase. Montalembert, with literary jealousy, publicly claimed it: "You have done me the unexpected honour of using the formula I employed in writing to you a few months ago." And, doubly to secure his patent right, as late as August, 1863, in a Catholic Congress at Malines, he declared that it was by the example of Belgium that he had been taught a formula that had now become famous, "which has been stolen from us by a great offender." He printed his address under the title, "A Free Church in a Free State."^[31]

The French father of the phrase lived to write what showed that he had employed it without having defined its terms in his own mind. Had its Italian foster-father, who repeated it in death, lived to govern with it, he would have learned, in the school of action, to select some one of the many interpretations which it invites, or else to discard it as a formula, applicable, indeed, to a Church proper, and a State proper, but incapable of application to a mixed institution like Romanism, which, however much of a Church, is still more of a State.

The loss of Rome, to which political symptoms now pointed as impending, was a calamity to be warded off by all the weapons of the Papacy, sacred and profane. A great assembly of prelates was projected, to surpass in splendour even that of 1854. It was to be equally well guarded against any parliamentary character. In June, 1862, three hundred bishops from all parts of the world were actually collected around their chief. The ceremonies during this assembly displayed a gorgeous pomp, which even Rome, accustomed since the days of the Emperors to government by spectacle, was fain to recognize as an effort, and a success in its kind, worthy of the historical stake in dispute. The ostensible object was the canonization of certain Japanese martyrs; but the real anxiety of the moment was so absorbing that the new constellation in the heavens seemed to rise only to rule and decide questions pending as to boundary lines on the earth.

In these turbulent and pitiless times, said the Pope, when the Church is pierced with so many wounds; when her rights, liberties, and doctrines are so miserably violated, especially in Italy, "we urgently desire to have new patrons in the presence of God," by whose prevailing prayers the Church, buffeted with such a horrible tempest, as well as civil society, may obtain the much-longed-for repose.^[32] The aid of the new patrons was that to which faith and hope pathetically turned, in the concluding prayer put up on Whit-Sunday by the Pontiff: "Regard Thy Church, now afflicted with such calamities: take not away Thy mercy from us; but for the sake of these Thy saints, and through their merits, cause Thy Church," etc., etc.^[33]

Besides the influence to be exerted by the exalted Japanese on behalf of the temporal sovereignty, valuable results might attend a solemn declaration from the episcopate of the whole world. This would at all events silence priests who had dared to think amiss, and would affect not only the calculations of statesmen, but also the complexion of public opinion. The

faith of Romanists in a display is, to all who have been trained not to take an impression for a reason, absolutely incomprehensible. Lamartine, in relating the perplexities of Mirabeau when the gusts of the Revolution had begun to appal even him, exactly pictures what is the outcome of their sensuous training. "He would save the monarchy by a royal proclamation and a ceremony to make the king popular."

A declaration was made by the assembled bishops with all possible gravity and force. The language chosen by Pope and prelates was the strongest to be found. They were not content with pledging themselves to the temporal dominion as a good, useful, helpful, or urgently desirable thing. Staking the future for the present, as well as the spiritual for the temporal, they declared that it was "necessary" in order to the exercise of the full pontifical authority over the whole Church. If this is so, there has been no proper exercise of authority over the whole Church since 1870, nor can there be any till the Pope again finds some few hundred thousand of Italians calling him king. If it is not so, the collective hierarchy, and the Pope with them, erred in setting forth a doctrine, touching the Head of the Church, for the guidance of all mankind. The Pope himself not only said that the temporal power was necessary, but that it had been given by a matchless counsel of Providence. The reason he gives for its necessity is the stock one, that the Pope may not be a dependent of any prince, as if he had not been the helpless dependent of Napoleon III. The bishops, forgetting both this dependence and the sanguinary measures by which the temporal power was upheld, actually used such words as "noble, tranquil, and genial liberty."^[34]

Besides their testimony to the necessity of the temporal power, the bishops put on record words well adapted to prepare the way for the dogma of Papal infallibility—words often afterwards recalled to those of them who opposed that dogma in 1870. "Thou art to us the teacher of sound doctrine, thou the centre of unity, thou the quenchless light of the nations, set up by divine wisdom. Thou art the rock, and the foundation of the Church herself, against which the gates of hell shall not prevail. When thou speakest, we hear Peter; when thou dost decree, we yield obedience to Christ."^[35]

But the new saints of 1862 did not turn the tide any more than the "Immaculate" of 1854 had done. Italy held together, though Cavour was gone. The effort of the two Catholic emperors to secure Mexico for the Church, by placing a monarch of approved principles on the throne, ended

in a tragic failure. The grief felt everywhere at the fate of Maximilian of Hapsburg was intensified for Pius IX, because, as it is expressed by Professor Massi, the promises made to the Pope by Maximilian, when he came to Rome before taking the reins of empire, "were to remain void."^[36] Finally, in 1864, the Convention of September brought home to the Pope the fact that, unless the Virgin should work a miracle for him, he was to be abandoned by the foreign auxiliaries whose presence he hated, but the terror of whom was the only shade in which he could rest. Perhaps he remembered how soon after the foreign Emperor had held the Pope's bridle, the Italian Lambert called him "My Lord," as he would have done to any other baron, and drove him to hard straits.

It was in this position of affairs that the seers of the Vatican beheld all human institutions as if reduced by a cataclysm to a dark and roaring chaos. And on their principles chaos it was. Not only had kings and lawgivers withdrawn themselves from under the authority of the supreme tribunal, not only had civil courts been withdrawn from under the authority of the external tribunal, but almost all governments had ceased to enforce by law the attendance of their subjects on the internal tribunal of the Church which they thus degraded to the level of a voluntary confessional. In each of the three circles of all-embracing authority, therefore, order was now disrupted, and chaos had broken in. The seer could see but one remedy. Society must be RECONSTRUCTED, and that upon the basis of one world-wide monarchy.

It is but slowly that minds accustomed to judge by ordinary standards learn to attach a precise meaning to such expressions as the above, in the language of the Vatican. Even after having learned how definite is the meaning, we do not soon begin to associate ideas of deliberate plan and serious expectation, with what would seem to be only dreams of the cloister. We therefore give a few clear sentences from *Il Genio Cattolico*, a publication praised by the authoritative *Unità Cattolica*.^[37] It describes the true ideal of the Papacy as being "an immense variety of languages, traditions, legislations, letters, commerce, institutions, and alliances, under the moral and pacific empire of a single Father, who, with the sceptre of the word, upholds the equilibrium of the world. The Papacy is not, as German jurists call it, a State within the State, but is a cosmopolitan authority, the moderator of all States, the supreme and universal standard of law and

justice. It is a world-wide monarchy, from which all other monarchies that would call themselves Christian derive *life, order, and equilibrium*."

Coupling this distinct conception of the appointed place of the Papacy in the human commonwealth with the equally distinct conviction that modern society is in ruins, the writer proceeds: "What is the remedy? The recognition of a common father, who shall teach subjects to obey as sons, and sovereigns to rule as fathers; a *supreme judge, to declare and give sanctions to the rights* of the one and the other. Without this, how can the want of balance in the conflicting forces be redressed?"

With views thus radical and all-comprehending did the Court of Pius IX proceed to build up, after a very ancient ideal, an empire over all peoples, nations, and languages, the test of which should be acceptance of the religious symbol set up by the autocrat. In the projected reconstruction the *ultimate end*, the restoration of facts, would always include these cardinal points. Every man and every woman in Christendom, and, by a due extension of "the kingdom of God," every man and every woman living, must be bound by law to appear, at the least annually, in the internal tribunal of the Church, the confessional. In order to this, every civil magistrate must be set in obvious and in practical subordination to the ecclesiastical magistrate or bishop, by the subjection of the civil court to the external tribunal of the Church, the ecclesiastical court. In order to this, every king or lawgiver must be set also in obvious and in practical subordination to the supreme tribunal of the church, the Pope, by a restored state of international law, giving to the Pontiff, or, to speak accurately, recognizing in the Pontiff what God had given to him, full power to deliver sentence as supreme judge upon the rights of all kings, and upon the merits of every law.

We for the sake of clearness, say three tribunals, though technically they are only two, the Pope being in both supreme. Whether the subject enters by the *foro externo* or by the *foro interno*, by the ecclesiastical court or by the confessional, both in the ultimate instance conduct him to the one bar, that of the Judge of judges. The supreme tribunal is he, in all causes not purely material, in all causes whereinto enters any moral or religious consideration. Protestants would seem generally to imagine that the ecclesiastical court is a higher tribunal than the confessional. Not so. When a conflict arises between the sentence of the external tribunal and that of the

internal, the suitor at the bar of God's kingdom is bound by the judgment of the internal tribunal!^[38]

In Carleton's *Traits and Stories of the Irish Peasantry*, where the only symbol of any tribunal is a rickety chair standing on an earthen floor full of holes, the priest of God has no sooner put on robe and stole than "the tribunal" is as truly constituted as when in the palace of Charles V sat Domenico Soto with the imperial penitent kneeling before him, and said, "So far you have confessed the sins of Charles, now confess those of the Emperor." In that tribunal has the peasant bride to learn, and has the Queen to learn, that not the husband is the head of the woman, but the priest of God. In that tribunal has the shoeless Connaught child and has the imperial prince to learn that not the parents are the head of the children, but the priest of God. In that tribunal has the debtor and has the creditor, the executor and the legatee to learn that not the law of the civil bench obliges, but the law pronounced by the priest of God. In that tribunal have all these to learn that not even the law which falls from the ecclesiastical judge in the external tribunal is to be taken, but that which in the internal tribunal, in holy secrecy, between the conscience alone and the judge alone, falls with full force of binding and of loosing from the lips of the priest of God. So in the other, the external tribunal, has every citizen to learn, and every public servant, that not the magistrate is the head of the town, and not the chief magistrate is the head of the city, but that the bishop is head of both one and the other, for he is the head of the priests of God. Finally, at the supreme bar have the princes, the governors and captains, the judges, the treasurers, the counsellors, the sheriffs, and all the rulers of the provinces, to learn that not the president, not the grand duke, not the king, not the emperor, is the head of the nation, but the thrice-crowned King of kings, the Great High Priest of God.

This kingdom, it is held, with some stretching of the facts, did in the Ages of Faith prevail, and it is to be restored.

The restoration of facts could not be effected without a foregoing restoration of the idea of Hildebrand. Constantine had founded a State Church. Leo III, with Charlemagne, had founded what Mr. Bryce accurately describes as a Catholic State, with the Pope as spiritual and the Emperor as temporal head. Cardinal Manning points out that in this Mr. Bryce makes the holy Roman Empire a two-headed monster.^[39] Nevertheless Mr. Bryce

gives the true human history, though doubtless Cardinal Manning, following Boniface VIII, gives the correct Papal doctrine. According to that doctrine, the dualism of a double-headed State amounted to a sort of Manicheism. History, which is guilty of tainting many with one heresy or another, must bear the fault of Mr. Bryce's Manicheism. But Hildebrand would abolish all dualism. The whole world must have one head. Constantine's idea of a State Church had its merit of unity, but it was unity by perversion of rights. The true idea was that of a Church State, embracing the whole world, and placing all mankind as one fold under one shepherd. This true idea was to be restored.

We shall in its place, be taught how we err in calling power over temporal affairs temporal power. More accurately, does Cardinal Manning speak of "the supreme judicial power of the Church in temporal things."^[40] He speaks of "the indirect spiritual power of the Church over the temporal State,"^[41] thus showing the error of the notion that spiritual power means only power over spiritual affairs. He speaks of "the Christian jurisprudence in which the Roman Pontiff was recognized as the Supreme Judge of Princes and People, with a twofold coercion, spiritual by his own authority, and temporal by the secular arm."^[42]

The turn of phraseology in the last sentence is probably not undesigned. Had it been employed by a Protestant, Ultramontanes, *if writing in Italy*, would have cried out, Ignorance and inaccuracy! Does the Cardinal mean that the authority whereby the Pope through the secular arm applies temporal coercion is not his own authority? No, assuredly. Yet he leaves us in a position to slip into some such idea. In such coercion as that of which he speaks it is not that the secular power acts of its own authority, but that it acts with its own arm, but with the Pope's authority. The interesting doctrine of the Brahman as sprung from the Creator's head, and the King-caste as sprung from his arm, reappears in the Papal system, in which the priest anointed on the head and the prince anointed on the arm symbolize respectively the authority that gives law and the force that carries it out.^[43] But Cardinal Manning's definition of *Christian* jurisprudence as that wherein the Pope is recognized as supreme Judge of Prince and People is not only strict, but it also explains a whole set of terms—*Christian* government, *Christian* law, *Christian* order, *Christian* civilization, and so forth.

It was obvious that to effect in Europe such a restoration as these claims implied, a lengthened preparation of ideas must go before the restoration of facts; and that restoration of ideas it was which we now see undertaken.

FOOTNOTES:

[24] *Kurze Geschichte des Vaticanischen Concils*, p. 9.

[25] *Roma Papale*, p. 7.

[26] *Allocution of Dec. 15, 1856. Receuil*, p. 382.

[27] *Civiltá*, Serie IV. vol. iv. p. 430.

[28] *Liverani*, p. 163.

[29] *Receuil*, p. 400.

[30] *Discorsi*, vol. i. p. 158.

[31] See the whole narrative in *Unitá Cattolica*, March 17, 1870. Also Mrs. Oliphant's *Life of Montalembert*.

[32] Schrader, *Pius IX, als Papst und als König*, p. 21. Idcirco summo pere optamus novos apud Deum habere patronos, qui in tanto rerum discrimine validissimis suis precibus impetrent ut, tam horribili discussa malorum procella optatissimam Catholica Ecclesia et Civilis Societas assequatur pacem.

[33] *Papst und König*, p. 23.

[34] *Civiltá Cattolica*, Serie V, vol. ii. p. 721. Their words are: "In nobili, tranquilla, et alma libertate catholicam fidem tueri," etc.

Monsignor Nardi proudly referred Mamiani, in the summer of 1869, to the folio volumes in which 835 bishops had inscribed their adhesion to the necessity of the temporal power. (*Stimmen, Neue Folge*, v. p. 153.)

[35] *Civiltá*, Serie V. vol. ii. pp. 719, 723. "Tu populus lumen indeficiens.... Tu Petra es, et ipsius ecclesiæ fundamentum.... Te loquente, Petrum audimus, Te decernente, Christo obtemperamus." The text even of the Vulgate is changed in the words, Tu Petra es.

[36] *Life of Pius IX*. Frond, vol. i. p. 102.

[37] *Il Genio Cattolico Periodico Religioso—Scientifico, Litterario, Politico di Reggio Nell' Emilia*, 1873.

[38] This is briefly and well put in the *Acta Sanctæ Sedis* (V. 146), where an article of the *Times* on the bull of convocation of the Vatican Council is belaboured through twelve pages of double-column Latin. That journal had the audacity to set up conscience against Pope, and to name Luther. "What do you understand by conscience? for it is solemnly held by Catholics that we may not and cannot act contrary to conscience. Indeed, we confess that, in point of fact, we may be bound to act even against the sentence pronounced by an ecclesiastical authority, seeing that the external tribunal, as we say, does not always concur with the internal tribunal, and whenever the internal tribunal is in

opposition to the external tribunal, we are bound to follow the internal. On this point consult our Catholic authors when they treat of moral theology. Immo fatemur, posse in re facti contingere, ut agere teneamur contra ipsam latam auctoritatis ecclesiasticæ sententiam; quandoquidem forum externum, ut loqui solemus, non semper cohæret cum foro interno: et quoties forum internum in oppositione sit cum foro externo, primum sequi tenemur. De qua re consulendi sunt auctores nostri Catholici de morali theologia agentes."

[39] *Vatican Decrees*, p. 67.

[40] *Ibid.* p. 82.

[41] *Ibid.*

[42] *Ibid.* 84.

[43] "Since Jesus of Nazareth, ... the anointing of princes is changed from the head to the *arm*; but the sacramental anointing is still maintained upon the *head* of the bishop, because he, in his episcopal office, represents the person of the Head. There is, however, a distinction between the anointing of the bishop and of the prince, because the head of the bishop is anointed with the ointment, but the arm of the prince is rubbed with oil, that it may be shown what a difference exists between the authority of the bishop and the power of the prince."—*Phillips*, ii. 621—quoting Bennetti's *Priv. S. Petri Vindiciæ*.

"Now, here are two things to be noted. First, that the emperor holds an office of human creation—the Pontiff an office of divine creation. Secondly, that the office of divine creation is for a higher end than the office which is of human origin."—*Cardinal Manning*, "*Vatican Decrees*," p. 68.

CHAPTER V

The Syllabus of Errors, December 8, 1864—Character of the Propositions condemned—Disabilities of the State—Powers of the Church.

To ordinary readers the Syllabus would rather appear to be a destructive instrument than a constructive one. Its authorized expounders, however, with remarkable unanimity, treat it as the foundation for the enduring fabric of reconstructed society. Its form accounts for the first impression on the part of the outside world. It is a series of *condemned* propositions, drawn from official and authoritative utterances of Pius IX—a syllabus or collection of errors, condemned in judgments pronounced by him as

supreme judge of Christendom. These, taken collectively, form a politico-ecclesiastical system.

The eighty propositions range over most subjects. As all stand under the head of *condemned errors*, each proposition is, logically, to be read with the prefix, "We reprove and condemn the following proposition." Some of these sentences express the beliefs of infidels, and some those of all Christians but Romanists; some the crudest notions of socialists, and some the fundamental principles of free States, or the maxims of all thriving communities; some the crotchets of obscure theorists in philosophy and ethics, and some the postulates of all free science. These heterogeneous beliefs and disbeliefs are strung together and delivered over, before the universe, to eternal anathema.

Passing from abstract to concrete, embodiments of evil are condemned, whether the body is a Church, a Bible Society, a Freemasons' lodge, a pack of communists, or even such clandestine gangs as were known in Christendom only to the territory of the Pope and his favourite Italian princes.

Perhaps the eventual importance of this manifesto was, at the time, exaggerated at the Vatican, and is exaggerated even yet. "In this century," says the *Genio Cattolico*, already quoted, "rises up the sublime and gigantic figure of Pius IX, another Hildebrand. He is charged by divine Providence with the erection in our day of a new edifice upon the débris of the religious and political revolution, as in former times Gregory VII was commissioned to reconstruct a similar edifice upon the scattered remains of tyranny. Gregory had his Dicta; Pius IX has his Syllabus."

The *Civiltà Cattolica* has never ceased to glorify the Syllabus. A periodical, expressly devoted to expounding and commending it to the Germans, and making it the basis of a new social condition in that country, was commenced at a Jesuit monastery near Bonn, under the title of *Stimmen aus Maria Laach*. Catholic journals spoke of the universal scope and pregnant consequences of the Syllabus in terms at which men of the world were more inclined to smile than to take warning. The views taken of the document by learned Catholics not of the Ultramontane school are briefly put by Michelis: "Constitutional freedom, equality before the law, liberty of the Press, all the foundations of modern civilization, were all at once

pronounced to be hostile to the Catholic faith."^[44] Hints were not wanting that it might introduce a conflict which would rage through centuries, and perhaps leave nothing standing but the Church. Still, for the time, politicians were rather annoyed than alarmed, and perhaps no Protestant statesman thought the matter serious enough to feel even annoyance.

Protestant statesmen were still somewhat in the state of mind expressed by Ranke: "What is there that can now make the history of the Papacy interesting and important to us? Not its peculiar relation to us, which can no longer affect us in any material point; nor the anxiety or dread which it can inspire. The times in which we had anything to fear are over; we are conscious of our perfect security. The papacy can inspire us with no other interest than what arises from its historical development and its former influence." This prognostic, the shortsightedness of which the Germans have been painfully taught, obviously sprang out of a confusion of ideas, expressed immediately afterwards, where Ranke identifies changing professions and claims diplomatically presented with fixed maxims, with objects and claims founded on cherished dogma, and felt to be inalienable. As to the Papacy, Ranke says, "Complete metamorphoses have taken place in its maxims, objects, and claims."^[45]

In contrast with the indifference founded on this supposed change was the view of the *Civiltá* in surveying the events of 1864. The year had been, according to it, one marked by that silent preparation of ideas which brings around great events. To the unobserving this preparation was unseen; but the process was going on and the issue certain. Casting a glance around the world, the *Civiltá* showed that everywhere what it calls the revolution, what we call representative government, was becoming ruinous, and the old Catholic ideal of government regaining its place in the mind of the thoughtful. In Belgium, it had come to that pass that an important paper declared that the tyranny of a majority was worse than that of an autocrat. By a manifest Providence, that immense Babylon the United States, founded on the principles of the revolution, was broken up and undone. The new Mexican empire had all the more promise of stability, as it would retain, at least in part, Catholic principles.

This historical article proceeded to say that the greatest merit of the past year lay—

In the highly important pontifical documents with which it had been so solemnly closed. The Encyclical of his Holiness Pius IX of December 8, and the Syllabus accompanying it, speak clearly enough of themselves, and need not our comments. Those exceedingly grave utterances of pontifical wisdom and fortitude are already perused in every tongue spoken by Catholics, that is, by the civilized world. Nor do Catholics alone read them; even Liberals do so too. And already we begin to hear a distant echo of the fear and wrath felt by the Liberals. They, who themselves change moment by moment, cannot understand that the Church should never change, in her principles or in her doctrine. They, who would conciliate everything—and, when they can do no more, conciliate fact with law—by the stupid word *fait accompli*, cannot be at peace, because the Church will not be reconciled to impiety and absurdity. They do not believe with divine faith in the potency of the pontifical word; but they do believe by an instinct of terror, as the devils also believe and tremble. Hence the stream of filth now vainly flowing against those documents from the Italian and foreign journals. The Liberals tremble at this warning, and cannot restrain their vexation, because so many hypocritical efforts to mask their Liberalism under Catholicism are at last brought to nought. They are now compelled to lay aside the mask more and more. No longer can they deceive the simple. They must now declare themselves open enemies of the Church and of her definitions. [\[46\]](#)

Though the Syllabus is not even in profession a proclamation of the glory of Christ, or of the Christian verities, or of the mission of the Church to turn sinners from their sins to God, but is formally a charter of ecclesiastical dominion over civil society, the first fourteen of its eighty propositions are named as if drawn from the domain of philosophy and theology. They, however, lay the doctrinal basis for the political claims that follow.

The fifth proposition illustrates the difficulty of judging of the practice of the Church of Rome by her theory, or vice versa. She condemns the following: "That divine revelation is imperfect, and therefore subject to a continuous and indefinite progress, which corresponds to the progress of human reason." Persons not of her own communion would say that, except for the last clause, this might express the ground on which the fabric of Roman doctrine, properly so called, is built. Believing too much almost

always springs from believing too little. He who believes enough about one God does not want assistant divinities. He who believes enough about one Mediator does not want to multiply the number. He who believes enough about one revelation does not want new revelations. Both the Councils of Trent and of the Vatican keep up the theory of only developing revelation. Practically their proceedings are pervaded with this principle, "That divine revelation is subject to continuous and indefinite progress." The popular effect of this is that new *quasi*-revelations are of frequent occurrence.^[47]

It is, however, at the fifteenth proposition that the framers of the Syllabus emerge into their natural element. In it the opinion condemned is that every man is free to embrace and profess that religion which he may esteem true, following the light of reason. This, with the few other propositions under the head of Indifferentism and Latitudinarianism, prepare the way for a section, in which communism, clandestine societies, and Bible societies are bound into one bundle. This again introduces the two great sections, that on the Church, and that on the State. These together comprise thirty-seven propositions. A section on ethics and one on marriage follow. Marriage is treated not at all in respect to the morals of wedded life, or to the sanctities of the connubial and parental relation, but in respect to those questions which affect ecclesiastical authority and its relation to the civil. The concluding sections treat of the temporal sovereignty, and of modern Liberalism.

Who would look for Liberalism under the improbable heading of *Naturalism*? yet both the *Civiltá* and the *Stimmen*, proceeding on lines laid down by Bishop Pie of Poitiers, elaborately showed how the *fundamental heresy* of all those condemned was Naturalism, because, viewed in the light of the Encyclical, all those errors converged in the "denial of the supernatural character of the Church."

Under the section treating of the Church, the first proposition affirms the important principle as to the Church being a perfect society. Yet this is put into a sentence containing explicitly or implicitly a number of propositions, some negative, some affirmative, and nearly all of great ambiguity. The error condemned is, "The Church is not a true and perfect society completely free, nor is she invested with rights proper to herself and permanent, conferred by her divine Founder; but it belongs to the civil power to define the rights of the Church, and the limits within which those

rights are to be exercised" (prop. 19). This, be it remembered, is the proposition condemned. Keeping in view the ambiguity of the several predicates, the following points are to be noted—1. The Church is a perfect society. 2. The Church is completely free. 3. The Church has the direct authority of Christ for her rights. 4. The State cannot define the rights of the Church. 5. The State cannot even limit the exercise of those rights.

The broad denial of the right of the State to define or limit the rights of the Church, without distinction, is meant to cover, and, to Vaticanists, does cover, the right of the Church to define the limits of her own authority as to its domain and as to its exercise, and consequently the right to define the limits of the authority of the State, both as to its sphere and its exercise.

Yet, what is, at first sight, simpler to superficial readers than denying the right of the State to define the rights of a Church? It is a right of a Church to believe, to pray, to worship, and to preach. Is the State to define such rights? It is a right claimed by one Church to pray any day to "new patrons," whom, as Moses said, "Thou hast not known, thou, nor thy fathers"; yet is the State to assume the function of defining such rights? But one Church also claims the right of employing mercenaries and foreign auxiliaries to force a few millions of men of a fine race, in a fine country, to submit to her chief pastor as their king. She also claims the right to set her priests, in any country, before the princes of the nation; and the right, not merely to ask for an alteration of the law of the land, but to declare it void—the right even to tell subjects when and where they may lawfully break law.^[48] Now, both classes of claims are covered by the one word "rights," and the State is confidently warned off from a fort, or from the pamphlet of a seditious bishop, as if that ground was lawful Church ground; indeed, as if it was holy, like the shrines of faith and worship sanctified by our Lord and His apostles.

Father Buceroni may be taken as fairly conveying the whole effect of the Syllabus on the relations of the State to the Church, when he says that "Catholic civil society is bound to yield to the Church, even in temporal affairs, if the advancement of a spiritual end calls for it"; and "religion should be so positively protected that the *judgments of the Church should never be obstructed.*"

In resenting the prohibition of Napoleon III to promulgate the Syllabus in France, the *Civiltá* spoke thus of the error which misled politicians—

It proceeds from the belief that it is the civil authority which permits the Church to exercise within its territory her jurisdiction over the faithful. Nothing is more false. The faithful, wherever found, are subject to the Church by the will of Christ, and not by the will of the State. They must necessarily be governed by two authorities, by the civil and the ecclesiastical, each freely acting within its proper circle; yet the first in subordination to the second, as the interests of the body are subordinate to those of the soul. The Christian people, to whatever nation they belong, be they Italians, Germans, or French, if subjects of the Emperor as to things temporal, are also subjects of the Pope as to things spiritual, and more of the Pope than of the Emperor.

Laughing at M. Langlais, who in the French Courts argued that the Pope in treating of the very foundations of political institutions had gone beyond his proper sphere, that of faith and morals, the *Civiltá* said—

According to our weak way of thinking, the legitimate argument would have run thus: The Pope has a right to give a decision only within the moral order: the Pope has given a decision as to such and such propositions; therefore those propositions belong to the moral order. [\[49\]](#)

In reading the following abstract it is to be remembered that we aim not at giving a complete but a summary view of the effect of the Syllabus on the relations of Church and State, and that we do not necessarily disapprove of each separate claim specified. Of course neither the disabilities of the State nor the powers of the Church here indicated are embodied in the existing institutions of any country. They are only the disabilities on the one part, and the powers on the other, which would be embodied in the institutions of every country did the tribunal of the Pope acquire the supremacy which it claims. We need hardly remind careful readers that denying a proposition does not necessarily mean asserting its *contrary*. But it does at least imply asserting its *contradictory*. Schrader indeed says that it is the contradictory of the condemned proposition that is to be maintained. But his own counter-propositions do not adhere to that rule. What they assert is sometimes the

contrary of the condemned proposition. To explain these technical terms—One asserts that all Englishmen are shopkeepers. You deny it. That denial does not pledge you to assert that no Englishman is a shopkeeper; which proposition is the *contrary* of the other. But it does pledge you at least to assert that some Englishmen are not shopkeepers; which proposition is the *contradictory*. Two contraries may be both false; of two contradictories one must be false and the other true.

*SUMMARY OF POINTS ASSUMED IN THE SYLLABUS AS TO THE
DISABILITIES OF THE STATE, AND THE RIGHTS AND POWERS OF
THE CHURCH*

DISABILITIES OF THE STATE

(N.B.—The numbers attached to the respective propositions indicate the Articles of the Syllabus in which they are contained.)

The State has not the right to leave every man free to profess and embrace whatever religion he shall deem true. (15.)

It has not the right to define the rights of the Church, nor to define the limits within which she is to exercise those rights. (19.)

It has not the right to enact that the ecclesiastical power shall require the permission of the civil power in order to the exercise of its authority. (20.)

It has not the right to treat as an excess of power, or as usurping the rights of princes, anything that the Roman Pontiffs or Œcumenical Councils have done. (23.)

It has not the right to deny to the Church the use of force, or to deny to her the possession of either a direct or an indirect temporal power. (24.)

It has not the right to revoke any temporal power found in the possession of bishops as if it had been granted to them by the State. (25.)

It has not the right to exclude the Pontiff or clergy from all dominion over temporal affairs. (27.)

It has not the right to prevent bishops from publishing the Letters Apostolic of the Pope, without its sanction. (28.)

It has not the right of treating the immunity of the Church and of ecclesiastical persons as if it were a privilege arising out of civil law. (30.)

It has not the right, without consent of the Pope, of abolishing ecclesiastical courts for temporal causes, whether civil or criminal, to which the clergy are parties. (31.)

It has not the right of abolishing the personal immunity of the clergy and students for the priesthood from military service.^[50] (32.)

It has not the right to adopt the conclusions of a National Church Council, unless confirmed by the Pope. (36.)

It has not the right of establishing a National Church separate from the Pope. (37.)

It has not the right of asserting itself to be the fountain of all rights; or of asserting a jurisdiction not limited by any other jurisdiction, say that of the Pope. (39.) N.B.—*The absence of any distinction between legal rights, of which the State alone is the fountain, and natural rights, of which the laws that create legal rights are but the recognition, is characteristic and pervasive.*

It has not the right even of an indirect or negative power over "religious affairs." (41.)

It has not the right of *exequatur*, nor yet that of allowing an appeal from an ecclesiastical court to a civil one. (41.)

It has not the right of asserting the supremacy of its own laws when they come into conflict with ecclesiastical law. (42.)

It has not the right of rescinding or annulling concordats or grants of immunity agreed upon by the Pope, without his consent. (43.)

It has not the right to interfere in "matters pertaining to" religion, morals, or spiritual government. (44.)

It has not the right to judge any instruction which may be issued by pastors of the Church for the guidance of consciences. (44.)

It has not the right to the entire direction of public schools. (45.)

It has not the right of requiring that the plan of studies in clerical seminaries shall be submitted to it. (46.)

It has not the right to present bishops, or to depose them, or to found sees. (50, 51.)

It has not the right to interfere with the taking of monastic vows by its subjects of either sex, or to fix any limit to the age at which it may be done. (52.)

It has not the right to assist subjects who wish to abandon monasteries or convents. (53.)

It has not the right to abolish monasteries or convents. (53.)

It has not the right of determining questions of jurisdiction as between itself and the ecclesiastical authority. (54.)

It has not the right to separate itself from the Church. (55.)

It has not the right to provide for the study of philosophy, or moral science, or civil law eluding the ecclesiastical authority (57). N.B.—*Moral science includes politics and economy.*

It has not the right to proclaim or to observe the principle of non-intervention. (62.)

It has not the right to declare the marriage contract separable from the sacrament of marriage. (66.)

It has not the right to sanction divorce in any case. (67.)

It has not the right to prevent the Church from setting up impediments which invalidate marriage. It has no right to set up such impediments itself. It has no right to abolish such impediments already existing. (67.)

It has not the right to uphold any marriage solemnized otherwise than according to the form prescribed by the Council of Trent, even if solemnized according to a form sanctioned by the civil law. (71.)

It has not the right to recognize any marriage between Christians as valid, unless the Sacrament is included. (73.)

It has not the right to declare that matrimonial causes, or those arising out of betrothals, belong by their nature to the civil jurisdiction. (74.)

RIGHTS AND POWERS OF THE CHURCH

N.B.—In many cases, the propositions under this head show the powers of the Church directly corresponding to the disabilities of the State expressed under the previous head.

She has the right to interfere with the study of philosophy, and it is not her duty to tolerate errors in it, or to leave it to correct itself. (11.)

She has the right to require the State not to leave every man free to profess his own religion. (15.)

She has the right to be perfectly free. She has the right to define her own rights, and to define the limits within which they are to be exercised. (19.)

She has the right to exercise her power without the permission or consent of the State. (20.)

She has the right to bind Catholic teachers and authors, even in matters additional to those which may have been decreed as articles of belief binding on all. (22.)

She has the right of requiring it to be believed by all that no Pope ever exceeded the bounds of his power; also that no Œcumenical Council ever did so, and further, that neither the one nor the other ever usurped the rights of princes. (23.)

She has the right to employ force. (24.)

She has the right to maintain that whatever temporal power is found in the hands of a bishop, is not beyond what is inherent in his office, and has not come from the State, and therefore is not liable to be resumed by it. (25.)

She has the right to claim dominion in temporal things for the clergy and the Pope. (27.)

She has the right to make bishops promulge the Pope's decrees without consent of their rulers. (28.)

She has the right to require it to be believed of all, that the immunity of the Church, and of ecclesiastical persons, did not arise out of civil law. (30.)

She has the right to require that temporal causes, whether civil or criminal, to which clergymen are parties, should be tried by ecclesiastical tribunals. (31.)

She has the right to alter the conclusions of a National Church Council, and to reject the claim of the Government of the country to have the matter decided in the terms adopted by such National Council. (36.)

She has the right to prevent the foundation of any National Church, not subject to the authority of the Roman Pontiff. (37.)

She has the right to reject any claim on the part of the State to either a direct and positive or an indirect and negative power in religious affairs, and more especially when the State is ruled by an unbelieving prince. (41.)

She has the right to reject the claim of the State to exercise a power of *exequatur*, or to allow appeals from ecclesiastical to civil tribunals. (41.)

She has the right to exclude the civil power from all interference in "matters which appertain to" religion, morals, and spiritual government. Hence she has the right of excluding it from pronouncing any judgment on instructions which may be issued by any pastor of the Church for the guidance of conscience. (44.)

She has the right to deprive the civil authority of the entire government of public schools. (45.)

She has the right to refuse to show the plan of study in clerical seminaries to civil authorities. (46.)

She has the right to fix the age for taking monastic vows both for men and women, irrespective of the civil authority. (52.)

She has the right to uphold the laws of religious orders against the civil authority; the right to deprive the latter of power to aid any who, after having taken vows, should seek to escape from monasteries or

nunneries; and the right to prevent it from taking the houses, churches, or funds of religious orders under secular management. (53.)

She has the right of holding kings and princes in subjection to her jurisdiction, and of denying that their authority is superior to her own in determining questions of jurisdiction. (54.)

She has the right of perpetuating the union of Church and State. (55.)

She has the right of subjecting the study of philosophy, moral science, and civil law, to ecclesiastical authority. (56.)

She has the right of enjoining a policy of intervention. (62.)

She has the right to require the sacrament of marriage as essential to every contract of marriage. (62.)

She has the right to deprive the civil authority of power to sanction divorce in any case. (67.)

She has the right to enact impediments which invalidate marriage, the right to prevent the State from doing so, also the right to prevent it from annulling such impediments when existing. (68.)

She has the right to require all to receive the Canons of Trent as of dogmatical authority, namely, those Canons which anathematize such as deny her the power of setting up impediments which invalidate marriage. (70.)

She has the right of treating all marriages which are not solemnized according to the form of the Council of Trent as invalid, even those solemnized according to a form prescribed by the civil law. (71.)

She has the right of annulling all marriages among Christians solemnized only by civil contract. (73.)

She has the right of judging all matrimonial causes, and those arising out of betrothals, in ecclesiastical courts. (74.)

She has the right to require that the Catholic religion shall be the only religion of the State, to the exclusion of all others. (77.)

She has the right to prevent the State from granting the public exercise of their own worship to persons immigrating into it. (78.)

She has the power of requiring the State not to permit free expression of opinion. (79.)

The importance of questions affecting marriage and betrothal is threefold. (1) Immense revenues accrue to the Court and bureaucracy of Rome from the system of dispensations for marrying within the degrees forbidden in any one of the three separate scales of consanguinity, affinity, or spiritual affinity, i.e., affinity contracted by sponsorship at baptism or confirmation. (2) The grant, every five years, of a QUINQUENNIAL FACULTY to the bishop to issue such dispensations as affect those distant degrees within which dispensations do not pay a tax, or to the poor who cannot pay, holds the bishop in perpetual dependence on the Curia. (3) The whole system of impediments and dispensations subserves the end of extending the control of the priesthood over domestic life through the reluctance felt in families at the time of a marriage, as at that of a death, to cause scandal by a difference with "the clergy."

Phillips says (ii. 639) that in modern times the union of Church and State is frequently compared to wedlock—not an inapt figure, but one calling for care lest it be taken in a wrong sense. "That would be the case if in this union the female partner was taken for the Church, and the male partner for the State. If we employ this simile, we must think of the relative positions as just reversed." This seems reasonable. The legal position of a married woman, a *feme covert*, would appear not ill to correspond with that of a State bound to the husband, who calls himself a mother.

FOOTNOTES:

[44] *Kurze Geschichte*, p. 10. It will be seen that here, as in the *Civiltá*, the meaning of civilization is concrete, the civil system.

[45] *History of Popes*, Engl. tran. 2nd ed., p. 19. The learned author, forty years after he wrote the above, in publishing his sixth edition, referring to these words, says that they expressed the view of the epoch, "but I cannot conceal from myself that a new epoch of the Papacy has commenced."

[46] *Civiltá*, Serie VI., vol. i. p. 172, 173.

[47] Friedrich, in his *Mechanismus der Vatikanischen Religion*, p. 12, says that these revelations no longer need to come from God, but may come from other persons, especially from Mary.

[48] "It is not allowable either that the temporal authorities should make a law, in reference to an ecclesiastical subject, on which the Canons have not determined anything; or, that through their law they should change Canons that are in existence. Every law of the kind opposed to ecclesiastical rules, or enacted in addition to them, if not desired by the Church, or expressly recognized by her, is hence in itself invalid."—*Phillips*, ii. 563.

[49] VI. i. 652-3.

[50] The word is generally translated "clergy" in English. But it is not *cleri* but *clerici*, which includes divinity students, and is commonly translated in Italian by *chierici*. In Italy the class which would have been exempted under cover of the student's right would have been very numerous.

CHAPTER VI

The Secret Memoranda of the Cardinals, February 1865.

THE Cardinals who, in the beginning of December, were commanded to prepare notes on the expediency of holding a Council, did not hurry, but by the beginning of February fifteen such notes were in the hands of the Pope. Their Eminences discussed the subject under four heads: 1. The present condition of the world; 2. The desirableness or otherwise of resorting to the ultimate remedy of a General Council; 3. The difficulties in the way of holding one, and the means of overcoming them; 4. The subjects of which a Council might treat.

The most eminent consulters, or, as our historian loves to call them, the purpled (*i porporati*), showed how the present age was remarkable for progress in invention. This formed its favourable side. But then such progress served only temporal ends. The "Christian government of the world," as it existed in former ages, had given place to a system based on the principle that society, as such, had nothing to do with God. The points in the sad spectacle of this "social apostasy," which most distressed the Cardinals, were as follows—Education was withdrawn from the supreme vigilance of the Catholic Church, and consequently ran into manifold errors; the doctrines of naturalism, rationalism, and various forms of pantheism prevailed, from which sprang socialism and communism.

Coming to political affairs, some of the writers mourned over the prevalence of revolutionary principles in general, some over freedom of worship and of the Press in particular, and some over the tyranny of the State, which controlled education and charitable institutions—thus appropriating to itself all the social forces. Some, again, lamented the violation of the rights of the Church in regard to laws affecting marriage, to those on the holding of land, to the temporal sovereignty of the Pope, to the religious orders, and similar topics.

The practice of magnetism, clairvoyance, and spiritualism is deplored by their Eminences as one great plague and shame of our epoch. Freemasonry, viewed "in its true aspect," not as a benevolent association, but as an institution having for its ultimate aim the erection of a pretended church universal of humanity on the ruins of all religion, is said by several of the consulters to be the arm which carries the modern theories into practice, and therefore is viewed as one of the most potent enemies of the Church.

The next point noted is the influence exerted even upon Catholic teaching by the Reformation and by rationalism. It is shown that in philosophy, as taught in some countries, the ancient system of the schools had been set aside, and, as all sciences are affected by philosophy, it not unfrequently occurred that authors and professors attacked the pure doctrines of the faith. Some of them even evinced a disposition to regard Rome as being ignorant of the relations of Catholic science to heretical and rationalistic science, or, at least, as not appreciating the necessities arising out of such relations. Nay, they even displayed some unreadiness in submitting to her authority.

On the second point, that of the desirableness of holding a Council, nearly all the Cardinals were agreed. "In the present confusion of principles and systems, the whole episcopate assembled in Council, pointing out the way of eternal salvation to nations and sovereigns, and also the true relation between the natural order and the supernatural order, with the rights and duties of governors and governed, would be a luminous beacon scattering the darkness that covers the world. Perhaps in the presence of such a spectacle, heretical and schismatical societies would lay aside old prejudices, and would be drawn to a reunion."

However, the unanimity of the Cardinals was not complete. One advised that the calling of a General Council should be reserved for times when

some great difference within the Church demanded a settlement. A second thought that the delicacy of some of the points to be handled, and the want of that external support which the Church formerly possessed, outweighed any prospect of advantage. A third could not pronounce between advantages and disadvantages, but gladly left the decision with the Sovereign Pontiff, whom God always assisted with special light.

Cecconi's statement as to the general agreement of the Cardinals appears to clash with that made by persons in Rome, who ought to be well informed, and who affirm that, at first nearly all the Cardinals were opposed to the Pope's desire, and only yielded to his ungovernable longing to have his own infallibility proclaimed. Lord Acton says the Cardinals gave their counsel against the project, and that the Pope proceeded heedless of their opposition.^[51] Both statements may be correct; for even if the Cardinals had opposed the project when informally talked about, they might yield when the official initiative taken by their wilful sovereign convinced them that it was to be. One of the counsellors of Ali, the fourth caliph, when rebuked by Abdullah Abbas for giving bad advice in contradiction to good, previously given and rejected, replied, "When a person, either through folly or obstinacy, is found to reject counsels which are obviously salutary, he must expect to receive counsels of a complexion precisely the reverse."

On the third point, namely, that of the difficulties in the way of holding a Council, the Cardinals held that great prudence would be required. The decrees of the Council would be received with indifference by the ungodly and the worldly, or would be made the pretext for new trespasses against the Church. Then, as to governments, would they permit the bishops to attend? Would they not prohibit the execution in their territories of decrees not conformed to the interests of those who held the power of the sword? Again, what would be the use of new canons if the civil power would not further the execution of them, or would even thwart it? And besides all this, the political horizon was clouded, and the Council might be interrupted. So far for external difficulties.

As to internal ones, points noted were, the long absence of the bishops from their flocks, the risk of dissensions in the Council, and of consequent scandal—a risk which appeared the greater as the thorny character of some of the questions to be treated was considered. The Cardinals also felt that there was some danger that a desire might arise on the part of the bishops to

extend their own privileges, already too great, so much so as even to be hurtful to the practical uniformity of ecclesiastical government, as well as to the firmness of ecclesiastical discipline, and to the union of the bishops with the head of the Church.

On the most important point of all, the subjects with which the Council should deal, the summary of the notes given by Cecconi is so meagre as to suggest the idea either that the views of their Eminences must have been crude, or that they did not care to put on paper such views as were matured; always supposing that the summary really represents the whole of the contents. After a few generalities, the first particular subject named for condemnation is the liberty of the Press, after which are named civil marriages, impediments to marriage, mixed marriages, and such like, with questions of ecclesiastical property, and the observance of fasts and feasts.

Only two of the Cardinals mentioned the subject of Papal infallibility. A third named Gallicanism and the necessity of the temporal sovereignty. Only one mentioned the Syllabus.

The omission to name the Syllabus in this instance is one of a series of acts of reticence in respect of that document which are at least curious. It is not mentioned in the Encyclical which accompanied it. It is not mentioned by the official historian at the time of its issue; and when, as we shall hereafter see, the Pope solemnly confirmed it in the presence of five hundred bishops, the act was not mentioned by the Court organs. Further, the Syllabus was not mentioned even in the very document by which the collective hierarchy expressed their solemn adhesion to it. Nor was the adhesion to it by letter of the prelates then absent mentioned till, as our tale will show, all this was brought out by the friction of events.

Points in these notes to be borne in mind, as throwing light on the future of our history, are, that those who desired a Council hoped it would be a short one, and were of opinion that the powers of bishops were too great; and that the relations of the supernatural order and the natural order must be regulated, i.e. reduced to rule. These two commonwealths, commonly called the Church and State, had hitherto adjusted their relations, at least wherever Rome represented the supernatural order, by the rough method of trials of strength and skill. The object of reducing their relations to rule would be to restore that harmony of action which, according to the Curia, formerly

existed in happy ages, but had been lost in the changes of time. Naturally, this desired harmony could only be restored by each abiding, according to rule, in its own place—the lower under the higher, and the higher above the lower.

FOOTNOTES:

[51] *Zur Geschichte*, etc., p. 3.

CHAPTER VII

A Secret Commission to prepare for the Council, March 1865—First Summons—Points determined—Reasons why Princes are not consulted—Plan for the Future Council.

IN March, 1865, Cardinals Patrizi, Reisach, Panebianco, Bizzari, and Caterini were appointed a secret commission to make preparations for the proposed Council. It was in the deepening grey of an evening in Lent that the red coaches drove down the Via della Scrofa carrying those Cardinals to their first meeting, in the palace of the Vicariate. Rome did not know that this represented the first move in the preparation of one of those world-representing displays which had some part in bringing on her ancient decay, and a greater one in gilding it over: displays which, while changing in the accidents of form, have retained the essential character of a sense-subduing pageant, and retained also the purpose of binding the city to an autocrat. The significance of the display now contemplated was to consist in showing both Quirites and Italians that the world bowed down to the tiara, and so to bind Rome to the Pope for ever.

At this first meeting of the Commission, Giannelli read a memorandum intimating his belief that France, Italy, and Portugal would prohibit their bishops from attending a Council,—more particularly Italy; but as Germany, England, America, Spain, and others, would not do so, a considerable number would be able to assemble. This indicates a

consciousness that political distrust of Rome was felt most strongly in Roman Catholic countries.

After hearing this memorandum the Cardinals proceeded to consider the following questions, and gave to each the answer indicated—

1. Is the summoning of an Œcumenical Council under the circumstances necessary, and opportune?

Affirmed.

2. Should Catholic princes be previously consulted?

Negated. Nevertheless, when the Bull of Convocation has been issued, it would be well and becoming for the Holy See to adopt suitable procedures with the princes.

3. Should the Sacred College be consulted before the issuing of the Bull of Convocation, and if so, how?

Affirmed; but in the manner to be determined by the Most Holy—or, in common speech, in such manner as the Pope may please. [\[52\]](#)

4. Should a Special Congregation be appointed to direct affairs relating to the Council?

Affirmed.

5. Should the Directing Congregation, after the publication of the Bull, consult some bishops in different countries as to the subjects proper to be treated, both in doctrine and discipline, regard being had to the variety of countries?

Affirmed.

The reason which led the Cardinals to negative the idea of consulting the Catholic princes is supposed by Cecconi to have been a fear lest obstacles to the holding of a Council might be raised, and also lest the proceeding might be interpreted as a recognition of the supremacy of the State (p. 29).

On the 13th of March these resolutions of the Commission were reported to the Pope, by whom they were approved with one slight modification. Instead of a consultation of certain select bishops after the convocation of the Council, he appointed that it should take place before.

The first step in carrying out these resolutions was the appointment of a Directing Congregation, which was composed of the Cardinals of the Commission, with a few others, the number eventually being nine. That body was in existence two years and a half before the hierarchy generally received an intimation, in a Secret Consistory, of the intention to hold a Council.

At the meeting of the Directing Congregation on March 19, the sketch of a plan for the labours of the Council was presented by one of its members, not named. He proposed that the work should be divided into four branches, and that each should be assigned to a different committee.

1. DOCTRINE, to be committed to the Inquisition, presided over by a Cardinal of the Inquisition, the committee to be enlarged by the addition of some members not attached to the Holy Office. This committee could be subdivided into sections.

2. ECCLESIASTICAL-POLITICAL AFFAIRS, to be committed to the Congregation for ecclesiastical affairs, enlarged by consulters and others.

3. MISSIONS AND ORIENTAL CHURCHES, to be committed to the Propaganda and the Congregation of Oriental Rites.

4. DISCIPLINE, to be committed to the congregation for bishops and regulars, with the addition of consulters, canonists, and theologians.

Each committee was to be presided over by a Cardinal, and all were to report to the Directing Congregation, with which should rest the ultimate authority.^[53]

FOOTNOTES:

^[52] "*Juxta modum a Sanctissimo statuendum.*"—Cecconi, p. 29.

^[53] Cecconi, p. 322.

CHAPTER VIII

Memoranda of Thirty-six chosen Bishops, consulted under Bond of Strictest Secrecy, April to August, 1865—Doctrine of Church and State—Antagonism of History and the Embryo Dogma—Nuncios admitted to the Secret—And Oriental Bishops.

ON April 10 his Holiness sanctioned a letter to thirty-six select bishops of different countries, intimating under the most binding secrecy his intention of holding a Council in the Holy City, at some time yet undetermined, and requesting them to communicate their views as to the subjects proper to be treated.^[54]

In August, nearly all the answers had arrived. Out of the thirty-six, only three bishops cast doubts on the wisdom of the project; all the others were rejoiced.

The letters of the thirty-six, according to Cecconi, expressed views on the present condition of society coinciding with those of the purpled in Rome. The thirty-six generally remarked on the absence of any special heresies. When we come to particulars, the subjects which our author finds specified are: the right of the Church to hold land; her independence of the State; her right to control education; her right to judge what promotes and what hinders religion. Among other matters noted, the chief are: the obligation of the faithful to adhere to the decisions of the Church, and in particular to those of the Holy See, and the necessity of the temporal sovereignty of the Pope, with "similar points."

After Cecconi has apparently concluded his summary of the suggestions of the thirty-six, a sentence is slipped in, saying, that among the verities which ought to be propounded by the Council, some mentioned Papal infallibility—"a doctrine admitted in all Catholic schools, with a few exceptions." Hereupon departing from his general rule, and adopting marks of quotation, he gives the words of one particular bishop, without naming him. These bear directly on the point most agitated before and during the Council. Such English readers as know much of the controversy, will probably risk a guess as to the author, and it may be that persons in Munich will hardly stop at guessing, but will say they know. It plainly was no Bavarian, not even a German, neither of whom would fall into such an expression as "Munich in Bavaria." "At present there are but few who impugn this prerogative of the Roman Pontiff; and they do so, not from a theological point of view, but the

better to assert and maintain the freedom of science. It would seem that a school of theologians has sprung up with this object, at Munich, in Bavaria, in whose writings the principal aim is to lower the Holy See, its authority and its mode of government, by the aid of historical dissertations, and to bring it into contempt, and above all to combat the infallibility of Peter teaching *ex cathedrâ*."

This language intimates that the science for which especially freedom was claimed at Munich was history, which wants no other freedom than that of learning the truth and telling it, that of detecting lies and forgeries and exposing them. Even the Court historian feels the significance of this announcement of the mutual antipathy existing between history and the embryo dogma.

Among the "isms" designated for anathema by the chosen thirty-six, those which have any bearing on divinity proper could be named by most ordinary readers. One "ism" to be condemned is regalism, or the doctrine that the king is supreme in his own country; another is liberty of conscience and of the Press; and of course the bishops no more forget magnetism, somnambulism, and freemasonry, than their purpled superiors of the Curia.

Two points brought out under the head of discipline, are, the mobilization of the clergy, and the educational rights of the Church; strong condemnation being levelled against mixed schools.

After the secret preparations in Rome had been continued for nearly twelve months, the circle of confidential advisers was further extended. On November 17, 1865, the Cardinal President of the Directing Congregation communicated the intention of his Holiness to the nuncios in Paris, Vienna, Munich, Madrid, and Brussels; and requested them to name canonists and theologians of sound principles, exemplary life, and distinguished learning who might be called up to Rome to serve on the preparatory committees.

The next extension of the circle was to the Oriental bishops, who were consulted by Cardinal Barnabò, the Prefect of the Propaganda. They hailed the prospect of a Council, hoping that it might at length remove barriers which held the East in separation from Rome. Of these barriers they name both ancient and modern instances. Among the former the worst appears to be "national spirit," and among the latter we find Protestantism and the everlasting Freemasons. "Nationalism" is a trial to the Papal Church in the

west as well as in the east. Cardinal Manning, in the Pastoral issued just before the Council met, said—

The definition of the infallibility of the Pontiff, speaking *ex cathedrâ*, is needed to exclude from the minds of Catholics the exaggerated spirit of national independence and pride, which has, in these last centuries, so profoundly afflicted the Church. If there be anything which a Catholic Englishman ought to know, it is the subtle, stealthy influence by which the national spirit invades and assimilates the Church to itself; and the bitter fruits of heresy and schism which that assimilation legitimately bears. [\[55\]](#)

The clearest instance of the national spirit invading and assimilating the Church to itself occurred in decaying Rome. The military and absolutist spirit of the empire supplanted in the ministry and organization of the Church the original spirit of humility and brotherhood. The spirit of the national pomps supplanted the primitive superiority to sensation and display. The spirit of the governing classes set up side by side with the simple code of Christ a new code, meant avowedly to restore the old Roman domination of law, under the form of a spiritual empire. The spirit of that domination claimed to impose upon other churches the will of the Church of the capital and did not scruple to call her the mother-church, and to support her claims with lie and forgery oft repeated. But after the Pope, conspiring with the minister of the Frankish king, and rising with him against their two sovereigns, had erected himself into a petty prince, the national spirit of the empire began to narrow down to the municipal one of aboriginal Rome. Ever since that time the municipal spirit has increasingly become the spirit of the Papacy. Whatever that power has effected, it has never been able to make itself a nation. Aiming at a universal empire, the spirit of its rule has become more and more close, local, bureaucratic as that of any wee Italian republic of the middle ages. Men must not only act and move, but must also think and speak, according to rules excogitated by certain guilds within the Aurelian walls.

There is a curious but striking contrast between this professedly supernatural institution and one which scarcely claimed a regular place among natural institutions. Coming up amid the decline and corruption of an empire older, richer, and more populous than had been the empire of

Rome, the East India Company, in a couple of generations, made a nation out of some hundreds of States among which had raged yearly conflicts. That nation still contains many thrones, but within its circle, and in spite of their jealousies, no less than two hundred and forty millions of men, a family immensely greater than Rome ever cursed with war or blessed with law, now live in peace and freedom such as were unknown to the ages which had aforetime passed over their country. On the plains around the presidential cities of India, where a century ago Mahratta, Moslem, and Rajpoot were wont to ravage, now reigns peace at seed-time and peace at harvest. Security sits and sings on every tree, and Industry, building her nest in every bush, sends out broods that, free from fear, busily cover the land. What a contrast with the endless whirl of war which in what are called the Ages of Faith—ages when the spells of the chief priest in Rome had power over semi-barbarous chiefs—ever eddied on the plain around Rome, a glorious plain, growing waste and more and more waste, while kings came, now to be crowned, now to put a Pope in prison, and while Italians and foreigners rose and sank by turn in the alternating surges—foreigners, however, most frequently coming into the fight at the call of a self-asserting but mongrel and parasitical government, which claimed to be the heaven-sent superior, not only of commercial corporations like the East-India Company, but also of the very kings and emperors whom it played off against one another, and on whom it had always to rely. A national spirit indeed! Such a national spirit as we see in reformed countries, and as was once in an inferior degree seen in the Gallican nation, is large, tolerant, and magnanimous compared with the tight, pretentious municipal spirit unconsciously depicted by Liverani when he enumerates the small men from small towns, puffed up with the name of cities, who, in the Curia, swelled themselves out with notions of world-commanding importance— notions rendered possible only by their own helpless narrowness.

FOOTNOTES:

[54] *Cecconi*, p. 324.

[55] *The Œcumenical Council*, p. 52.

CHAPTER IX

Interruption of Preparations for Fourteen Months, through the consequences of Sadowa—The French evacuate Rome—Alleged Double Dealing of Napoleon III—*Civiltà* on St. Bartholomew's—Change of Plan—Instead of a Council a Great Display—Serious Complaints of Liberal Catholics.

IT was on May 24, 1866, that the Directing Congregation held its third meeting, Monsignor Nina acting as secretary in the absence of Giannelli, who was indisposed. But, soon afterwards, dark clouds enveloped the Vatican, and ere the Congregation could again meet fourteen months had passed away.

On July 3, 1866, a shell burst at Sadowa which struck in three different directions, and in each case the blow was heavy. Austria fell from the primacy of Germany, and from her place among Italian States. Italy, acquiring Venice, entered into full possession of herself, Rome alone excepted. The disjointed members of Germany moved to union under Prussia, like bone coming to its bone.

These were deplorable reversals of Papal policy, unfriendly both to the temporal dominion at home and to the spiritual dominion abroad. By the instrumentality of France and Austria it had been possible, for ages, to keep Italy and Germany parcelled into small States, easily played off against one another, inimical to great national organizations or high national sentiment, and glad of an alliance with a small State possessing an organization by which it could interfere almost everywhere, and in almost everything. The long-continued success of the policy directed to this end seemed to stamp it as almost miraculous. Had Germany united under the Hapsburgs, ready to keep Italy disunited, it would have mattered less to Rome. But her uniting under the Hohenzollerns, and aiding Italy to become one, was doubly dangerous. Reconstruction as going on in Italy and Germany must be met by reconstruction on a universal scale.

On November 4, 1866, the people of Venetia carried their suffrages to the feet of King Victor Emmanuel, while Austria and France sullenly acquiesced. The king said, "Italy is made if not completed"—a hint which the Vatican both understood and resented. Five weeks later, at four o'clock

on the morning of December 11, Mr. Gladstone, whose name had already left a beneficent mark on the history of Italy, was watching by the gaslight from a window in Rome as the French troops wound round the corner of a street, and he felt that the seed of great events lay in that evacuation!^[56] That day the flag of red, white, and blue which for seventeen years had cast a light on the Vatican and a shadow on the Tiber, was lowered at St. Angelo. The Pope felt that it would soon be succeeded by the red, white, and green. So that as if by a historical parody on the old furor of the circus, the rage of parties in Rome was once more lashed up by the blue and the green respectively.

"Do not deceive yourselves," said the Pope to General Montebello, when he presented himself to take leave; "the revolution will come hither: it has proclaimed it: you have heard it, you have understood it and seen it."

The *Civiltà Cattolica*, alluding to the "soporifics" administered at this irritating moment by French journalists and diplomatists, asked whether France would hold the same language to Italy, now menacing the Pope, as she had held to Austria and Spain when preparing to assist him, namely, that "any departure from the principle of non-intervention would involve a war with France." She had not so spoken to Italy, and would not do so, for had not Billault said, "It is not possible to turn French bayonets against Italy." This being the case, France might hold her peace and not tease the respectable public with soporifics.^[57]

When Napoleon III, in the discourse from the throne, alluding to the fear of Rome being taken from the Pope, said that Europe would not permit an event which would throw confusion into the Catholic world, the *Civiltà* bitterly exposed his double dealing. Some would take this language as a pledge to uphold the temporal power, but others would see that it was only a shuffling of the responsibility off the shoulders of France on to those of Europe. Had he said France will not stand it? No, but that Europe will not allow it.

It would be about this time that Viscount Poli and Arthur Guillemin, a lieutenant of zouaves and a zealous crusader, sitting over a cup of coffee, saw five gentlemen enter the coffeehouse who were not Romans, but superintendents of a railway then being constructed. One of them laid on the table a nosegay, so arranged that the colours formed "the cockade of a

king hostile to the Pontiff"—doubtless red and white camellias, forming, with their green leaves, the colours of Italy. Guillemin, who was in uniform, heard remarks which showed that the gentlemen knew what the flowers signified. He rose, seized the nosegay, dashed it to the ground, and trampled it to pieces. Then, as the others grumbled, he drew out his revolver, laid it by his side, and went on sipping his coffee, and chatting with the Viscount. [\[58\]](#)

The *Civiltà* was at this time publishing a series of articles on the massacre of St. Bartholomew's, sometimes calling it "the slaughter" and sometimes "the executions of Paris"; and calculating that there might have been some two thousand Protestants put to death in the capital, and, say, eight thousand in all France!

Among his other crimes, Bismarck stayed the preparations for the Council by the campaign of Sadowa. The most reverend Court historian evidently has no sense of any need for giving the world other reasons for the total interruption of those preparations than the political troubles. Yet one who learned Christianity at the feet of Christ would not readily see why the studies of holy men in the mysteries of divine revelation should depend upon a battle in Bohemia, or on the flitting of a French garrison. Surely, divines might go on searching into naturalism, rationalism, pantheism, somnambulism, and freemasonry, whether Germany was uniting or splitting up again. Nevertheless, studies in regalism and Caesarism in the regular subordination of the natural order to the supernatural, and in the best measures for replacing the political system of Europe on the *divine basis*, or, as we should say, for subordinating civil and restoring ecclesiastical jurisdiction, were liable to be influenced by the flights of the eagles. And the augurs who were tracing the lines for the foundations of the reconstruction, found in the movements of the eagles of Prussia and France omens that counselled delay.

According to the original design, the Council was to be opened on the day observed as the eighteenth centennial anniversary of St. Peter's martyrdom. But, owing to these sad interruptions, when 1867 approached the secret preparations were not sufficiently advanced. Such, at least, is the only reason given by Cecconi why the Council was postponed.

The Pope, however, was resolved to cover St. Peter's day with glory. So his own thrice sacred anniversary, that of "the Immaculate," and of the Syllabus, was once more signalized by the issue of letters to the bishops of the whole world, citing them to Rome for the 29th of the ensuing June. They were not only to celebrate the centenary of Peter's martyrdom, but to take part in the canonization of some twenty additional saints, and also to attend certain consistories. The second name upon the list of the "new patrons in the presence of God" about to be created was that of PETER DE ARBUES, "Spanish inquisitor and martyr,"^[59] of whose canonization we shall hear again. This invitation was dated three days before the French evacuated Rome. As trusty bayonets were failing, additional celestial powers were to be called into the firmament.

All this time the Liberal Catholics were becoming increasingly uneasy at the prospect of the dangers on which the Church was drifting. They had hoped to see her first embrace and then dominate modern culture and liberties. This was a dream of O'Connell, of Lammenais, and of Gioberti. At this aimed the erudite and steadfast German Catholics. But every new utterance of the Court, whether in official document or inspired organ, showed that it was determined upon dragging the Church in an opposite direction. According to the policy to which it had fully committed itself, the Church was to conquer, not by adopting the modern age, but by restoring the middle ages. The dominion of the Pontiff over the whole earth as spiritual despot and temporal suzerain was the ideal to which everything must give way. Montalembert, who had been flattered by the opening career of Pius IX, as sailors say they are flattered by what they call foxy weather, expresses himself as follows: "I began as early as 1852 to wrestle against the detestable political and religious aberrations summed up in contemporary Ultramontanism." He showed that when in 1847 he defended the Jesuits of the Sonderbund against Thiers, as he did with equal eloquence and want of foresight, he did not utter one word of the modern doctrines, and that for a good reason, because, he says, "No one had thought of setting them up when I entered on public life." Indeed, he affirms that, in 1847, Gallicanism was dead, but that it had been revived through the encouragement given to extreme pretensions during the pontificate of Pius IX. He then quotes an important letter addressed to himself, in 1863, by Sibour, at that time Archbishop of Paris—

The new Ultramontane school is conducting us to a twofold idolatry—idolatry of the temporal power and idolatry of the spiritual power. When you, like myself, made a splendid profession of Ultramontanism, you did not understand things in this fashion. We defended the independence of the spiritual power against the usurpations and pretensions of the temporal power; but we respected the constitution of the State and the constitution of the Church. We did not sweep away every intermediate power, or every gradation of order, nor yet every legitimate resistance, nor all individuality and spontaneity. The Pope and the Emperor were not then—the former the whole Church, the latter the whole State.

Montalembert goes on to say that the old Ultramontanes had recognized the right of the Pope, in a great crisis, to rise above all rules; but they did not confound the exception with the rule. These cares and apprehensions were for the time concealed, and were only brought to light by the anguish of that moment when the final leap downward was about to place a gulf that could never be re-crossed between Rome and all things free and equal. But when the expression did come, it bore with it the record of previous irritations.

"The Ultramontane bishops," said Montalembert,^[60] "have pushed everything to the extreme, and have argued to the utmost against all liberties, those of the State as well as those of the Church."

"If such a system was not of a nature to compromise the gravest interests of religion, in the present, but much more in the future, we might content ourselves with despising it; but when one has the presentiment of the ills which are being prepared for us, it is difficult to be silent and resigned."

FOOTNOTES:

^[56] *Quarterly Review*, No. 275, p. 293.

^[57] *Civiltà*, Serie VI, vol. ix, p. 126.

^[58] *Civiltà*, Serie VII. iv. 418.

^[59] *Cecconi*, p. 133.

[60] Letter quoted in the *Unità Cattolica*, March 10, 1870. *Friedberg*, pp. 118-121.

CHAPTER X

Reprimand of Darboy, Archbishop of Paris, for disputing the Ordinary and Immediate Jurisdiction of the Pope in his Diocese—Sent in 1864, Published in 1869.

WITHIN a twelvemonth of the issue of the Syllabus, letters of significance were passing between Paris and Rome. One of those letters throws light on the steps taken to grind down any bishop who dared to assert, as bishops used to do, some authority for their own office, independent of the direct and universal meddling of Rome. That some prelates were still tempted to this offence we have seen hinted by the Cardinal consulters, in the original notes upon the question of holding a Council.

One of the most considerable figures in the hierarchy was Darboy, Archbishop of Paris, to whose name a historical death has given tragic immortality. When the preparations for the issue of the Syllabus must have been far advanced, in 1864, he had drawn upon himself letters of censure from Rome. To these he had replied both publicly in the senate, and privately, in a manner which showed that some remnants of old French doctrines yet survived the modern influence in primary schools and episcopal seminaries. And wherever any sense of the ancient office of a bishop did survive, there was constant irritation in the condition of dependence to which the system of *quinquennial faculties* reduced the men who, bearing the old name, held the modern post under the bureaux in Rome. Only a few weeks before the Magna Charta of reconstruction was promulged, on October 26, 1864, a letter was addressed to Darboy which fills no less than ten octavo pages of small type in the documents of Friedberg. [61] Besides its solid value as instruction, this epistle has the interest of a sharp lecture. Furthermore, its very language coloured the most important of the Vatican decrees.

The quarrel arises on the old subject of the "exemption" of the regulars from episcopal control, and the direct action of the Curia in a diocese, over the head of a bishop and under his feet. Readers of Church history will be tempted to think lightly of the Pope's candour when he speaks of Darboy's complaint as a new one, but however this suspicion may touch those who furnished the materials for the letter, it does not attach to the Pope personally, for he is not usually supposed to read history, though he often sets it to rights.

If inaccurate in his facts, Pius IX is orthodox in his policy, for just as bishops must be independent of the government of the country, so must the regulars be independent of the bishops, that power to set wheels in motion may be carried from the engine-house in Rome into the midst of a nation by two perfectly independent shafts. When the Church is a national one, a bishop has some stake in the country, though slight compared with his stake at the Vatican; and he must, at all events, keep up relations with the authorities. The former circumstance brings temptations to a "national spirit"—one of the standing evils cried down by the Curia. The latter circumstance may make it convenient that the bishop should not always know what is really the course of action being prepared. In both points of view the regulars can be utilized. Darius took care to have three separate powers in each province, all directly dependent on the Imperial Court alone. [62] And from his days highly organized Asiatic governments have had, besides the apparently omnipotent lieutenants, confidential agents in every province, depending directly on the metropolitan authorities.

The Pontiff commences his letter by reminding his venerable brother that he made professions of devotion to the Holy See on his elevation to that of Paris. Then he tells him that certain of his letters replying to animadversions of the Pope, show him to hold views opposed to the divine primacy of the Roman Pontiff over the whole Church. Darboy had asserted that the power of the Pope, in a diocese other than his own, was not *ordinary* and *immediate*, but such as should be interposed only as a last resource, in cases of manifest necessity. He had represented the intervention of the Pope, by the exercise of *ordinary* and *immediate* jurisdiction, as turning a diocese into a mission, and a bishop into a vicar apostolic. Moreover, he had said, in the French senate, that when such intervention took place at the private instance of individuals, it rendered the administration of the diocese all but

impossible; and he had added that regulars, Nuncio, and Curia all aimed at bringing about such intervention as an ordinary thing, and that he would resist it and call upon the bishops and people to do so. He had even spoken of submitting letters apostolic to the government, and of having recourse to the lay power; nay, he had gone so far as to mention the *Organic articles*, though he could not be ignorant of how the Holy See had always protested against them.

The Pope could scarcely believe that his venerable brother had uttered such things, and was moved with wonder and anguish at finding him avowing the condemned opinions of Febronius, which a bishop ought to abhor. In denying the "immediate and ordinary" jurisdiction of the Pope, he had denied the decree of the fourth Lateran Council. The words "feed My lambs, feed My sheep" mean that believers all and singular are to be subject to Peter and his successors, as to the Lord Christ Himself, whose vicar upon earth the Roman Pontiff truly is. Every Catholic would reply to the charge as to a diocese being turned into a mission, and a bishop into a vicar apostolic, by saying that it was as false as it would be to say that prefects, judges, or provincial magistrates were not ordinary magistrates, because a direct, immediate, and ordinary power was held by the king or emperor.

St. Thomas Aquinas, continues the letter, had said "the Pope has a plenitude of pontifical power, as a king in his kingdom, but bishops are received into a share of the solicitude, like judges set over particular cities." As a Catholic bishop, Darboy ought to know that all had a right to appeal to Rome, none to appeal from her. Such a complaint as that the interference of Rome rendered the administration of a diocese almost impossible had never been made either in past ages or in the present one. When Darboy spoke of appealing to bishops and people, he ought to have known that the same had been done by Febronius, and that it was an offence against the divine Author of the constitution of the Church.

The Archbishop had not been informed against, proceeded the Pope, by the regulars, but, from other quarters the fact came before his Holiness that the Archbishop had exercised the right of visitation over them, on which he had been admonished, and of this admonition he had been pleased to speak, in the senate, as of a sentence delivered without the cause having been heard. It was hardly to be believed! The Archbishop knew the Decretals, and knew

how, in all ages, the Popes had written in the same manner to bishops when they became aware of something in their sees which was not quite right.

As it was a question of the visitation of regulars, it must be remembered that the right of exemption had long been enjoyed by the Jesuits and Franciscans in Paris, and that the Apostolic See had exercised its own special or "privative" jurisdiction. Darboy had alleged that, by the law of the Council of Trent, regulars could not have canonical existence in any diocese without consent of the bishop, which consent had never been received by the monks in question. But, having been long on the ground, they had acquired a prescriptive right, by virtual, if not by express, consent of successive bishops. And as to the fact that the civil law forbade them to possess land, of what use were such laws in ecclesiastical administration? In these most turbulent and miserable times of noxious, odious rebellion, civil law might even deny to bishops their civil standing.

The Pontiff cannot dissemble his extreme surprise and annoyance that his venerable brother had attended the funeral of Marshal Magnan, the Grand Orient of the Freemasons, and had given the solemn absolution while the insignia of freemasonry were on the bier, and brethren of the condemned sect wearing its orders were present. The sect aimed at corrupting all minds and manners; at destroying every idea of honesty, virtue, truth, and justice; at diffusing monstrous opinions and abominable vices, fostering detestable crimes, and undermining all legitimate authority; yea, at overturning the Catholic Church and civil society, and at expelling God from heaven.

His Holiness cannot pass over the fact that it has come to his ears that an opinion has been expressed to the effect that acts of the Holy See do not compel obedience unless the civil government has given authority to carry them out. This opinion is pernicious, erroneous, and injurious to the authority of the Holy See and to the interests of the faithful. Furthermore, the Pope's venerable brother had incorrectly asserted in his speech that Benedict XIV in his Concordat with the King of Sardinia had agreed that the royal sanction should be required before pontifical acts were carried into execution; and that according to the instructions annexed to the Concordat, they were to be submitted to the senate, except when they dealt with matters of dogma or morals; which false assertion the venerable brother would not have made had he weighed the words of the instructions. The letter

concludes with protestations of the Pope's affection for his venerable brother and his flock.

This epistle, after being long held in reserve, was launched into publicity at a time when Darboy's influence was threatening to be inconvenient in the Council, and when the French government had requested a cardinal's hat for him. ^[63]

It is, perhaps, not superfluous to remark that the terms "plenitude of power" as denoting the prerogative of the Pope, and "*received* to a share of the solicitude," as denoting the origin and nature of the bishop's authority, are not merely happy phrases, but scientific terms fitted to express the Papal theory of the Church constitution as opposed to the Episcopal theory. The Episcopal theory, holding that the office of all bishops is of divine institution, regards the Pope, not as the source of episcopal authority, but as supreme and ultimate arbiter. According to the Papal theory, the authority of the bishop is an emanation from that of the Pope, who, as monarch, unlimited by any co-ordinate authority, retains in his own hands not only extraordinary but ordinary, not only ultimate but immediate jurisdiction over every subject within the bounds assigned to a bishop. The latter is a prefect, not only liable to be discharged or imprisoned, but liable while retained in office to have any matter taken out of his hands and settled contrary to his views. This is the theory which, like a scourge of not small cords, is employed to flog Darboy, while the incongruous epithet "venerable brother," dangles at the handle—a vestige of a past age and an exploded theory. An emperor does not call his prefect "venerable brother."

A portion of the letter which will well repay study is that indicating the attitude of the Curia to all authority not immediately within its own hands, even if in the hands of its "prefects." Against any such authority it will receive the reports of its private agents, and treat those reports as having the status of a legal appeal. It will act, if need be, without hearing the accused, and maintain that none shall appeal from it, though all may appeal to it. This is the case even with the episcopal authority; what, then, is the case with the civil? It is swept aside as an unclean thing; "of what use are such laws in ecclesiastical affairs?" If Archbishop Darboy, strong in his character, strong in his see—the largest in the Roman Catholic world—and strong in his influence at the Tuileries, is thus treated when complained of

by the Jesuits, what must be the case with small prelates who venture to provoke their power?

As to the Freemasons, one is tempted to wish to be in their secret, for then one would possess a rough test of Papal infallibility. If they do not aim at overturning all government, and expelling God from heaven, infallibility does not carry far.

The time for the great assembly was now approaching, and, meanwhile, the Papal organs were enlivened by the prospect of a war between France and Prussia, on the question of Luxembourg. When this hope was deferred the readers of the *Civiltà*^[64] were informed that nevertheless every possible preparation for war was being pushed forward by the French on the largest scale, and with greatly improved arms.

On the 9th of May, 1867, the deputies Angeloni and Crotti were called up in the Italian Parliament to take the oaths and their seats. Angeloni did so; but Crotti, a well-known member of the Ultramontane aristocracy, after pronouncing the words, "I swear to be faithful to the king and constitution," added, "saving always divine and ecclesiastical laws." This formula was at once recognized as being that which had been published in Rome by the *Penitenzieria*, with the declaration that the repetition of it was the only condition on which Catholics could accept seats in the Italian chambers. Called upon to take the oath in the form prescribed by the law of the land, Count Crotti stood firm by the higher law of the *Penitenzieria*, and the Chamber disowning his *salvis legibus divinis et ecclesiasticis*, refused to admit him.

FOOTNOTES:

[61] *Aktenstücke*, pp. 257-67.

[62] Rawlinson's *Ancient Monarchies*, vol. iv.

[63] *Ce qui se Passe au Concile*, p. 16.

[64] Serie VI. vol. x. p. 384.

CHAPTER XI

Great Gathering in Rome, June 1867—Impressions and Anticipations
—Improvements in the City—Louis Veuillot on the Great Future.

THE whole earth had been moved in the hope of not only exhibiting a pageant outshining former ones, but also of carrying the dogma of Papal infallibility by an ecclesiastical *coup d'état*, or, as it is called, by acclamation, without the delays of a discussion.^[65] Had this been accomplished, the legislative form of a General Council would have been rendered futile for the time to come, or at the most, would have been but a grander method of working the institution of "consultative despotism," to adopt the strict definition of Montalembert. The invitation had been enthusiastically responded to. The spectacle of the Papacy menaced with the loss of Rome was touching, and the belief was cherished that a great demonstration of the interest felt by the Catholic world on its behalf would contribute to ward off the peril. Besides these motives, another in full activity was the ever powerful one, especially powerful with Romanists, the desire to see a pageant; and this sight was to surpass all the former displays of Rome.

The city put on its best, the churches were newly embellished, the streets decked in festive array. Bishops came from all the ends of the earth, till the thoroughfares were mottled with the toilets of five hundred. Priests crowded in till, it is said, twelve thousand breathed the sacred air of the city, every one of them proud to tread that spot of our unruly earth, where the priest was king of men.

Besides the clergy, came such multitudes of pilgrims that, according to Cecconi, the population of the city was almost doubled. The Romans saw their familiar rite, the worship of the statue of St. Peter—*l'adorazione della statua di San Pietro*—performed on a prodigious scale. In modern as in ancient Rome, adoration has its degrees; all worship does not imply the ascription of supreme, but only of celestial, honours. No Pontiff in the days of the Republic ever pretended that Quirinus was creator of the world and father of eternity. He was the protecting divinity of Rome, but with very limited powers in comparison with Peter, carrying no sceptre equal to the keys.

Such of the visitors as had seen the city in former times, if not too much pre-occupied with the sanctity of the place to observe such matters, would find several improvements. Side pavements had been allowed in the main streets. Gaslight had, after long and painful efforts, been admitted.

Railways had entered the walls. The personal liberality of the Pope had effected several improvements, both in public works and charitable institutions. The French had done a great deal for the cleansing of the streets, although the filth of some of them, and the indecency of some of the bye ones, were still beyond belief to any one from England. The Pope's army, which as late as 1860 was an odd-looking array, was now a sightly and active force, composed mainly of foreigners, in large part French. And, finally, it had become possible to tell the time of day.

Formerly, midday had been one of the mysteries of Rome. It seemed as if the right of private judgment, banished from the churches, had taken refuge in the steeples, for each particular clock went off at some mysterious impulse, and struck twelve at the noon of its own. Thus for good part of an hour, they do say often longer, the air continued thrilling with the tidings that it was just noon of day. Naughty Romans ascribe the change to General Baraguay d'Hilliers, while in command of the French garrison. Having vainly endeavoured to get a standard of time established, he presumed, with French audacity, to carry the case by appeal from the sacristy to the sun. Placing a gun on Fort St. Angelo, with a burning-glass upon it, he stole the tidings from another world which were not to be got from the temples at hand. ^[66]

One of the most powerful of the pilgrims was M. Louis Veuillot, who as editor of the *Univers* had for very many years done much to second in literature the work done in schools, of reviving antipathies and superstitions which were in danger of dying out in France. His notes of this visit form part of his two octavos. As soon as he reaches the foot of the Alps, at Susa, he begins to scold Italy and the Italians, takes every opportunity of doing so, and goes out of the country scolding worse than when he came in.

But if Italy and the Italians were exceedingly evil in the eyes of M. Veuillot, he found compensation in the perfect loveliness of Rome and the Romans. The very cabmen are loudly praised, and the cabs carry "ideas;" the Press, especially the *Civiltá*, is of course far above the French level. But the Pope

was the grandest spectacle of all. As he entered the Basilica, preceded by a train of five hundred prelates, it made an impression of power greater than if four millions of men had defiled past, armed with the most perfect artillery.^[67]

Naturally, however, the imagination of M. Veuillot was most fired with the prospect of that historical future which was about to open on the human species. Darkness still covers the chaos after the cataclysm, but the breaking of the light draws nigh. The news of a projected Council has reached the ears of M. Veuillot. His first word is, "Rome is officially taking the reins of the world into her hand." Other expressions scattered up and down his animated pages are as follows—

The day that the Council is convoked the counter-revolution will commence.... Pius IX will open his mouth, and the great word, Let there be light, will proceed out of his lips.... It will be a solemn date in history; it will witness the laying of the immovable stone of Reconstruction.... At the voice of the Pontiff the bowels of the earth will be moved, to give birth to the new civilization of the Cross.... Here is the great reservoir whence the future will pour out and overflow the human race.... These days in Rome are a revelation of the state of the world, and the starting point of a renovation.... The pilgrimage of Catholic Europe to Rome in 1867 will have consequences of which the *Moniteur* [alluding to remarks in that journal] will be informed hereafter, and of which the world will become aware when the *Moniteur* would wish them to be unheard of.... For centuries Rome has not seen the Pope in such splendour, nor has he so manifestly appeared in his character as head of the human race.

M. Veuillot is of course one of those who look on the modern liberty of the press as a great curse. We may insert here what came to hand long after these pages were written, as an illustration of the kind of Press that is to be quenched. The *Times* of January 26, 1876, in the letter of its Paris correspondent, gives a morsel from the *Univers*, in the style of M. Veuillot. The *Times* had said something about an interview of the Marquis of Ripon, as a new convert, with the Pope. The *Univers* devotes to that article "a column and a half of invectives," and thus winds up: "The *Times* is now the giant of the Press, and prospers in both hemispheres. But the day will come

when the two worlds will want no more of its agony column, or of its bad literature; and its last compositor, inactive before his immense poison machine, suddenly idle, will wait in vain for copy which will never come." Will the compositor look out of the top window in Queen Victoria Street to see if Macaulay's New Zealander has arrived on London Bridge?

FOOTNOTES:

[65] Acton, *Zur. Ges.*, p. 14.

[66] This was first told me by a Roman tradesman, in presence, among others, of a very good-natured canon, who joined in the general laugh at my innocent surprise. This year (1875) an ex-officer of the Pope's service added, "Ay, but the priests bribed the artillerymen to steal half the charge of powder, and to turn the gun toward the Campagna, so that the report should scarcely be heard." Probably the last statement is a mere rumour, not representing any actual transaction, but indicating, really enough, the state of mind of the people as to what their masters were likely to do. I have heard it said that Sir James Hudson used to declare that when first appointed to Turin he could walk all round the city while it struck twelve o'clock.

[67] *Rome pendant le Concile*, vol. i. p. 35.

CHAPTER XII

The Political Lesson of the Gathering, namely, All are called upon to recognize in the Papal States the Model State of the World—Survey of those States.

"*O*PPORTUNENESS of the Centenary of St. Peter for reviving the True Idea of the Political Order among States," is the heading of an article in the *Civiltà Cattolica* for 1867. The first words are, "He who comes to Rome finds St. Peter become a king"; a proposition of which we should modify the predicate, saying, He who comes to Rome finds a king, professing to be St. Peter. "He (i.e. Peter) has joined the tiara of the Pontiff to the crown of the Prince." Why did not the writer say the "tiara of the Apostle"? That would be too great an offence against antiquity. It is the tiara of the Pontiff, as if Peter had taken over that office from Nero.

However, these are but the introductory notes. The writer proceeds to expound the political effects of baptism. Christianity has not changed the civil power as to its substance, but as to its relations, by making a change in the subject of power. That subject is no longer mere man, but man made Christian by baptism. This doctrine—which frequently reappears as the

theological basis of reconstruction—is more fully stated by M. Veuillot: "They will not deny that the true human race is baptized humanity.... It is, then, baptism which constitutes humanity, and all that has not been introduced into the Church by baptism is, in reality, only a sort of raw material, which as yet awaits the breath of life" (p. cxii.). In order to prevent any conflict between baptized man and the law of the Church, the *civil power must be subject to the Church*. Suarez is quoted to the effect that as a man would not be rightly constituted unless the body were subject to the soul, neither would the Church be rightly established unless the temporal power were subject to the spiritual. And hence, the political conclusion is firmly drawn: "The idea of such a subordination is realized in the pontifical government. Because, owing to the peculiar character of him who here holds the temporal power, it cannot rebel against the spiritual power, civil law can never here set itself against evangelical law, nor is any political act possible which should offend against morals."

The last affirmation will appear boldest to those who best know what political acts have been done in the Roman States, and in the present reign. No one of these acts could offend against Christian morals! for the all-sufficing reason that Peter had become the king, and Peter does no wrong. Thus we find infallibility, as received in the court creed, covering measures of taxation and police, as well as lotteries and monopolies—an abuse of the doctrine made still more obvious by what follows, in which the infallibility of the Government is grounded on its immaculate conception, and consequently perfect nature. Since in the Pontifical States "the laws must be sanctioned by him who holds the place of God on earth, him whom God has given to us for guide and teacher, they can never be in conflict with the divine will."^[68] The infallible Depositary of evangelical interests can never sacrifice them to earthly ones. Though in such a government the two powers [spiritual and temporal] are distinct in form, they are in complete harmony and duly co-ordinated one with the other, presenting to lay States the perfect example of the Christian civil power."

It is granted that lay States can never equal this example, but they ought to imitate it. By their very conception they can never be free from the original taint, owing to which it becomes possible for "the temporal power to rebel against the spiritual power." Not only is it possible, but, by their nature, they are predisposed to that sin of sins. But all rulers of lay States are to

know that in becoming subjects of the Church the subjects of civil power have been changed, though the substance of civil power has not been changed. We do not stay to inquire what may be the substance of civil power, after its subjects have been lifted above obedience to it by another human power, higher than itself in all things wherein the two may come into collision.

In conclusion, the faithful are told that the centenary of St. Peter, by bringing together people from all parts of the world, will give to them the opportunity of beholding "a State in which peace, morality, and justice reign. It is like an oasis amid the desolation of the desert; and it is so because the political order is in full harmony with evangelical law."

The approaching pilgrims, in comparing the oasis into which they were about to enter, with the deserts from which they had emerged, would be able to judge by the experience of centuries as to whether, where Peter reigns, the lifting up of the subject above lay government into the supernatural order had led to the elevation of the laity to supernatural goodness, or to the lowering of the clergy to the level of political officials.

Two writers, as dissimilar as Addison and Edgar Quinet, had, in some degree, anticipated the comparison here challenged, each speaking from a point of view suited to his own day and mode of thinking. The Englishman remarks how great is the difference between Roman Catholic populations where they touch upon reformed countries and where they are under the unbroken influence of the Papacy. Ignorance, superstition, and crime gradually deepen till the Alps and the Pyrenees are passed, when all these become strikingly worse.

The Frenchman says that there was only one model country in Europe. This was correct; for France had never cast out the influence of the Reformation, or made away with all the Protestants; and had, moreover, been the hotbed of what Quinet calls the philosophers. Italy, again, had always been a stronghold of the so-called philosophers, although all the Protestants had been consumed. In Spain, however, as he points out, the Inquisition had really fulfilled its mission; both Protestants and philosophers having been annihilated, schools and letters having been reduced to order, and the whole nation having been made to move for more than two hundred years on the

Papal lines. The consequence was the total ruin of religion in the country.
[\[69\]](#)

The comparison to which strangers were challenged by the Curia had the great advantage of being a comparison of good, not of evil. If the Papal States are to lay States as the oasis to the desert, proof actually lies before us of something more than human superiority—of something amounting to a higher dispensation. If the Papal States are but moderately superior to others, proof of any higher dispensation fails; but proof of human superiority remains. If they are only equal to lay States even proof of human superiority fails. If they are inferior, proof fails both of divine commission and of human superiority, and proof arises of the presence of greater human fault.

The only true book of Positive Philosophy yet (we do not say of Positive Science) is the blessed old Books of books. It brings everything to the test of fruits. It puts the extraordinary man to the test before ordinary men. He who refuses the ordained appeal to the Word, and to fruits, and to the verdict of every man's conscience, writes his own description as a false prophet.

We shall not, therefore, set out to compare evil, but good. We shall not inquire if there are more waste acres in the Papal States, more filthy huts, more wretched villages, more mean little towns called cities, more blighted prospects, talents thrown to waste, and families brought to decay, more liars, thieves, drunkards, blasphemers, and libertines, more depraved homes, more guilty conspiracies, more strikers, robbers, and assassins, more beggars in the streets, more idlers and extortioners in office, more wretches in prison, and more dead men in graves dug by the law, than, say, in our own far from immaculate or infallible England. We shall only look for the opposite of all these, and more of it—so much more as would furnish proof of a special dispensation of God's loving-kindness to men.

In one particular, such of the pilgrims as had heard of the desolation of the Roman Campagna would feel surprise, somewhat similar to that often felt by travellers in the Desert of Sinai. The latter, expecting to find extended plains of burning sand—a Sahara—find a country like another, only that it has no vegetation. So when pilgrims on the Campagna found green plains basking under a lovely sky, they would wonder how men could call it

waste. Only by degrees would they realize the fact that there were no farm-houses, no labourers' cottages, no hamlets. In Arabia vegetation has failed, and with it animal existence. This region is a degree less desert: the herb enjoys life and supports the beast; only man has failed.

A trained observer seeing the plain forsaken and the villages in military positions on the heights, would at once say, as he would in Syria: The land has not learned what rest is! It has not yet experienced, for any continuance, that lot of conscious security in which the family suffices to itself, the lonely house is safe, and the village needs neither wall nor steep. The valleys of Tuscany or Piedmont tell a better tale of law and government.

When, at wide intervals, an inn or what is called a *Tenuia* occurs, perhaps it is announced by a few fine children, ill-clad and begging. The house has an expression of fear. The windows are few and small, and the yard, instead of a fence or low wall, is defended by a high one. There are no stack yards, no farm store and treasure spreading securely and ornamentally around as if conscious of strong, benign protectors. There is no grass-plot, no gravelled or flagged walk, no flower-bed before the door, no flower pot in the window, no garden. The house has never blossomed into the home. It is, after all these ages, but a shelter from weather and violence.

Entering, you find dirt to a degree neither easy to believe nor pleasant to describe, which grows worse and worse the longer and more minutely you observe. The furniture consists of a few stools, a rough table or bench, with a sack or two of straw for a bed. The few utensils, whether of earthenware or metal, are, like the stools and bench, poor in quality, rude in form, and ill-kept. Scarcely ever is there against the walls a print or photograph, an engraved sheet, a clock or plaster bust. You look in vain for book, periodical, or journal. The idea of children's picture-books, or of a cottage library, is out of the question; and the Bible is not to be seen. If there be a picture of the Madonna or the patron saint, it is, in point of art, far below the pictures which often light up the cottage of our humblest labourer. If there is a book, it is a wretched dream-book teaching how to succeed in the lottery. No polished chest of drawers, no white dresser, no fire range bearing witness of taste and "elbow-grease," no pretty crockery, no easy-chair. You may perhaps see a man asleep on the bare bench and another on the floor.

As you let the picture print itself, with all its inevitable comments, upon your mind, it calls up comparisons with what you have seen in the unlettered countries of the world—not with the homes that grow up around a family Bible. Here the arts which bring Art home to the multitude have found no entrance. Engraving, printing, carving, ornamental work in metal, wood, or pottery, gardening, or artistic husbandry, are graces that have not crossed this dirty threshold. The aesthetics, which have had some part in the government of the country have never developed the blessed aesthetic of home.

Physically, you find a race of great capacity. The frame, if wanting the compactness of the French and the solidity of the English, is large and shapely; such as after a few well-fed and well-housed generations would probably be one of the finest in the world. There is a certain sluggishness, which is generally called laziness. Perhaps it is not so much laziness as a lack of that physical elasticity which comes with successive generations of hopeful effort and good condition, but sinks away under hopelessness, or the effects of poor food and bad air. The natural intelligence is quick, and the manners generally polite, often winning. The pleasant word and the obliging act are both ready. But when did these carters and labourers wash? Was anything ever done to cleanse these garments, partly of goatskin with the hair attached and partly of heavy cloth? We do not call raids now and then to keep vermin under, an effort at really cleansing. And the heads of the women and children! Whatever the prevalent aesthetics have accomplished, they have never awakened the sacred aesthetic of the human person, which is not to be confounded with the lower aesthetic of dress.

Turning towards the villages, the observer is again reminded of Syria, where he may have been led on by the prospect of a beautiful city set on a hill, and found a squalid village. Self-defending construction, as in the case of the lone house on the plain, reappears here. No outlying cottages before the village, no detached ones within it, no gardens or orchards behind. The backs of the houses form a continuous high wall, pierced with small windows, constituting an irregular but not despicable work of defence. Again you find the absence of any bit of green, or of flower-beds before the house, or of flowers in the window. The gardens of Nottingham alone would put those of all the Papal States to shame, excepting such as are attached to palaces.

Before entering the houses one feels as if it would be unfair to compare them with those of English villages in our more cultured and sunny counties. But we may take a Yorkshire manufacturing village, near collieries. There the ground is dirty with coal slack; the air dirty with coal smoke and heavy with damp vapours; the houses are of the colour of baked mud, called brick; the sky is low, and more brown than grey. Nature and art seem to have combined to make the house dirty. Here, on the contrary, the ground is as dry as a board, the air bright, the walls of warm-coloured stone, the sky lofty, luminous and blue. Nature has done everything to suggest cleanliness, and also to reward it with such brilliant effect as we can only see in the brightest moments which summer lights up within our English homes. And as to manufacture, its grimy fingers have never touched the place.

Yet under the unfavourable conditions you find tidy women, with tidy children, by tidy firesides. The floor, seats, tables, drawers, dresser, walls, all show that the domestic arts of ornament, in however humble a style, are represented. The cottage child sits with its book on its knee, and you are not afraid to look into the corners. The Bible and hymn-book are probably upon the shelf; and if you do not know that the scene of the cotter's Saturday night is actually enacted there, you feel that it might be.

Under the favourable circumstances, on the other hand, floor, stairs, wall, furniture, utensils, and the persons of the women and children are kept in such a style that one of the women from the Yorkshire cottage would not like to pass a night in the place. And you must not look into the corners. Any stray picture which may be on the walls, only serves to remind you, by contrast, of the wonderful development of illustrative art in England, Germany, and America, and of its penetrating influence in the homes of the remote and poor. Here, sometimes, you may find, even in the village church, prints and dolls, the former of which in England would be considered poor, and the latter tawdry in the village shop. Yet in the same church there may be some real work of art, which has for generations had every opportunity of forming the public taste.

The land in these Papal States, like the people, is nobly capable; but our present inquiries turn, not upon the future, but upon proof of immaculate and infallible government, for the last thousand years or more.

Fixing, then, our attention on the works of man, we find cause repeatedly to wish that we had some measure for exactly determining how much progress has been made, amid these lovely scenes, by the human mind since it passed from under the dominion of Pagan Romanism into that of Papal Romanism. At present we have not the means of accurately settling this question, and perhaps we never shall have, though honest research may yet sufficiently elucidate it for a practical judgment. So long as Christianity worked by its legitimate forces, those of the Spirit alone, with its legitimate instrument, the Word alone, it cast out the cruel and obscene spirits of paganism, silently, but not slowly. In individuals and in families real Christians were made. This continued so long as the ministers of Christ ministered like their Master, reading the Word of God, and preaching it, but no more thinking of performing "functions," like the heathen, than He did; so long as they had neither place nor name in the posts graded and rewarded by human powers; so long as they enjoyed no consideration but what was won through wisdom, goodness, and spiritual fruitfulness; so long as their whole inheritance was not a profession, but a calling, which renounced the world, not by cutting God's holiest human ties, but by abandoning, for life, every hope of title, pomp, or power. So long as this spirit reigned, and whenever it again reappeared, they could point to numbers, whom they found vile but left created anew in Christ Jesus unto good works.

But from the time when Christianity became a public power, the courtier, the priest, and the crowd began to flow into the Church, and carried part of their heathenism in with them. When the device of the Emperors was parodied—and as they had assumed the office of Pontiff to confirm the civil dictatorship, the Roman Bishop assumed the temporal supremacy to confirm the spiritual dictatorship—all the three paganizing forces of statecraft, priestcraft, and popular superstition came more vigorously into play; with the result stated by Gregorovius: "So that Church which arose out of the union of Christianity with the Roman Empire, drew from the latter the system of centralization, and the stores of ancient language and education; but the people utterly corrupted, could not yield her the living material for the development of the Christian ideal. On the contrary, it was just they who in early times defaced Christianity, and permeated the Church, scarcely yet established in the Empire, with the old heathenism."

[70] It was, however, on the new system of conversion that the people could not yield the material for developing Christianity. On the old one they had

done so. When the Church waits for converts till the Spirit of God brings her penitents, she will always find material (often raw and foul, but capable) for doing all her work.

But we find the first step in an inquiry as to the progress which has been accomplished challenged by the Vatican philosophy, which decries modern improvements like the railway, telegraph, steam engine, and so on, as "material progress." When we ordinary mortals say "mental progress" we mean a progress of mind; but when the Pope says "material progress," does he mean a progress of matter? No; then what does he mean? Perhaps to suggest some such idea as the progressive ascendancy of matter over mind; but if so, it is unfortunate for him, as a philosopher, that the inventions he despises represent the advancing ascendancy of mind over matter. And very unhappy is it for mankind that all his influence goes to employ matter in colour, form, and movement, to make man a creature of sensation, and to stay the operation of reason and of faith, exchanging reason for sentiment and faith for sight.

Suppose that an observer before passing from the valley of the Sacco into that of the Anio looks at a historical place like Palestrina, situated on one of the noblest heights of the land; a point whence Pyrrhus and Hannibal, in succession, looked with the longing of warriors across the Campagna to the distant Rome; and whence the Temple of Fortune, emulating Egyptian proportions, and overspreading a whole hillside, dominated the plain, and held forth its lights to the far off sea. This city has a Cardinal Bishop, and a palace of the great Papal-princely family of the Barberini, and yet is what a homely Englishman would call a nasty village. If such a one had to pick his steps up the alleys that serve for streets, in the afternoon, when the issue of the cow-houses is flowing down them, he would rather be at home. The people are civil and apparently industrious, but the energy of the children goes out in begging. The decay and dirt which conquer all, furnish to an English eye a plain instance of material progress—matter gaining upon mind. The palace is neither kept up nor abandoned as a ruin, but, as if to set the town an example of thriftless filth, it is used partly for an aesthetic exhibition, containing as it does one wonderful mosaic, with frescoes and portraits of the Pope and Cardinals of the family, and is partly given up to—matter. Just as confidently as a skilled observer would conclude that Middlesbrough or Cincinnati bore witness against any claim to great

antiquity, would he conclude that Palestrina bore witness against any claim to supernaturally good government. How much lower was the place when it was heathen?

From the ridge between the two valleys, by Civitella, the stranger has one of those prospects of which no previous travel blunts the charm, and no subsequent travel blunts the memory. Here he finds well-made men ploughing, and women with busts worthy of Sabine mothers carrying stones. Looking at the plough, he finds it only a few degrees stronger and better than that used by the ordinary Hindu ryot. It is very far behind the improved ones to be seen in northern Italy, and would be a real curiosity to Bedfordshire or Lincolnshire ploughmen.

If the observation of implements is extended to those of the handicrafts, it confirms the impression of want of taste made by those of agriculture. But tools are not things to make a show, and the noble aesthetic of labour has not been fostered. Labour is not part of the supernatural order, only of the natural; it serves but temporal ends. And who made the natural? And who dares to teach man, created in the image of God, that the daily duty appointed to him—duty to himself, his family, his country, and his race—serves but temporal ends? If neglected, are only temporal ends frustrated? When our Father sends us what fills our hearts with food and gladness, is He working nought but temporal ends? For what is helpful to sanctification commend us even to the stones on the head of the female hodman, rather than to the beads at the waist of the novice nun! Albeit the former is a coarse toil not to be seen without a blush by man born of a woman, yet is it a real lift at the load of life—a load natural and therefore divine; whereas the other is neither work nor play, not tending either to lift the load of life or to cheer on the labour of lifting it, but tending only to weaken all the powers by rendering the mind a slave of charms. Least of all is it spiritual or supernatural. It is simply manipulation applied by the master with sensational skill, and in the subject suspending thought on sensational routine.

How far do the villages of the thrice beautiful Sabina exceed those of our Lake District or of Wales in that poetic property of all villages, "innocence"? The last thing we should do is to set up our own as a standard. But if you hear the friars talk of the villagers, and the villagers of the friars and police, the townsfolk of the countryfolk, the doctor of his practice, and

the priest of the refractory, you will hear mention made, with incidental ease, of crimes which, if committed in the Lake Districts of England, or in the tourists' haunts in Wales, would fill the journals for weeks. And how often here does scandal name the priest before all others!

Do the towns in Papal territory contrast with those in "lay States" as the oasis does with the desert? Suppose the observer to stand before Subiaco, seated amid Sabine peaks in the smiling valley of the Anio—a favourite haunt of artists, and worthy of their favour. A marble arch marks the entrance to the town; a summer palace of the Pope crowns it. A little way off stands the sacred cave where Benedict first taught. That is the Lupercal of Roman monasticism. There arose the institution which became the one grand public institution of Papal Italy—arose out of purposes not only pure, but lofty, though upon plans departing from those both of Moses and of Christ. These made the love of God in the individual a spiritual force to leaven the family, and made the family the basis of all institutions. The monasticism of the further east made spiritual life a dainty too delicate for the fireside. The Christian system made each new convert a moral agent acting within the social fabric. When Christians adopted the Oriental system, each new convert was abstracted from the social fabric, was taught to turn his or her back on the family, and to call being in the family being in the world, and renouncing the family renouncing the world. Out of a life of three-and-thirty years spent among men, our Lord has left us scarcely another trace of thirty of those years than this, that He spent them in the family.^[71] This convent of Benedict still preserves its celebrated gardens, boasted of as a beauty for the whole earth—including the bed of roses, the lineal descendants of those which were transformed from thorns by miracle.

On the principles of Christianity, if this place has for ages enjoyed a spiritual government free from religious error, and a temporal one free from moral fault, and has, in addition, been blessed with the presence of the representative of God upon earth, we shall without fail find it a scene of enlightenment, righteousness, and bliss. It must in these respects be far before places where frail human nature has been in the hands of churches liable to err, and of governments which commit faults every day. If, on the other hand, they who have here been stewards of the unrighteous mammon have employed it ill, who will entrust to them the true riches, who will give to them the keeping of his soul?

At the entrance of the city, on a morning in May, the sound of chanting floats down the street, and a procession of clergy moves along, passes under the marble arch, and proceeds to a church in the suburbs. Then the priests bless the fields to secure good crops, as is done by the priests in India.

The streets of the city paraded by this procession are not beautiful, and had they been steeped for a few years in a smoky, moist Lancashire atmosphere they would be exceedingly ugly. They are not clean but dirty, below the condition of any country town in the Protestant parts of Ireland. They are not busy, but have a listless air, as if people had little to do and not much heart in doing it. The signs of enterprise and of improvement which in towns under good governments silently tell the tale, are not to be seen—signs which already, in 1867, might be traced in most of the towns of the New Italy. The well-dressed portion of the people is small, and the proportion of those poorly but tidily dressed extremely small. A gala costume even of the poor is fine, for whatever is for effect is studiously done. Many men and women, evidently not in abject poverty, but capable of dressing up for a state occasion, are not tidy, but badly the reverse. The number of ragged adults is great, and that of ragged children very great; it is hard to estimate that of the beggars, for even young women employed and not very miserably dressed, will take advantage of a passing stranger to seek a penny; and as to the children, begging appears to be a recognized branch of street life.

A young gentleman from Rome, tall and handsome, on the point of getting into a carriage with his companions, anxiously inquires if the road to Palestrina is safe. Have there not been attacks of brigands lately? The fact is not denied, though he is assured that all will be well. In any talk about quarrelling, the use of the knife—that is, the dagger-knife—is alluded to as a common incident. When any occurrence illustrates the amount of confidence felt by the people in the honesty or truthfulness of one another, it seems generally low on the first point and almost *nil* upon the second.

If the working classes show no sign of having been blessed with a government better than that of all mankind, does any sign of it appear among the trading classes? Beginning at the upper strata of finance and commerce, a merely English eye would look in vain for tokens of their existence. Coming down to the shops, perhaps an episcopal city in the "oasis" would so impress Roman Catholic shopkeepers from Thurles or

Tuam that they would think a comparison profane. Their evil lot has been cast in a lamentable portion of the "desert," the misdeeds of whose rulers, and the wrongs of whose pastors and people, have often made the hearts of the devout in Italy to bleed. Protestant shopkeepers of Munster and Connaught would not be so awestruck but that they could make a comparison. They would not find under the fairer sky, and the theocratic rule, what they would take for symptoms of divine superiority. The shopkeepers of Enniskillen and Portadown, not blessed even with a heretic bishop, would smile at the comparison.

As to the professional classes, they are nearly absorbed in the clergy; for this is a state in which the only way to "found a family" is to begin by taking vows of celibacy, and the only way to bequeath coronets is to begin by renouncing the world. The one unworldly profession counts, among its prizes, a triple crown, scores of princedoms, ministries of state, of finance, and even of war, embassies, exceeding many palaces, honours surpassing those of nobility, gorgeous uniforms, lofty titles, revenues of enormous amount, with powers and dignities bearing a double value—one measurable by the standards of the world, and one immeasurable in the eyes of the faithful. The bulk of the land has passed into the possession either of corporations of clergy or of families founded by priests successful in their profession.

The Mosaic economy is generally taken to be more carnal than the Christian; but Moses, leaving Egypt, where the king and the priests were the only landowners, enacted that the priests should not hold land, and though married men, should have only a house and "a cow's grass." Here, on the contrary, the priest, though renouncing the world in some spiritual sense, comes a hundredfold more into possession of it in a material one. If mind shows its dominion over land and sea, over adamant and wind, over time and space, the feat is labelled for contempt as "material progress." If ministers of the Gospel become immersed in the management of manors, provinces, taxes, lotteries, and even of brigades, the fall is certificated for reverence as "spiritual" ascendancy. In Israel the royal tribe was one "of which no man gave attendance at the altar," and the priestly tribe one of which none came to the throne. Here the priest is king, and the temporal prince kisses his foot. A favourite image is that of the mystic David, pastor and king in one. Here is the cure of *political* NATURALISM.

The clergy of the Pontifical States included the two widest extremes of professional life to be found in Christendom—that of show and dressiness beyond what our courtiers or soldiers display, and that of personal meanness and social degradation to which no professional class among us approaches. Society seemed to avenge itself for the humiliations it had to suffer from the court priest, by the contempt with which it treated the clown priest. We once asked an advocate if all the priests did not read the *Unità Cattolica*, and we give his reply, not as describing what priests are, but as showing what men of education may say of them—"All?" said the Dottore; "well, nearly all that can read." "But you do not mean to say that there are priests who cannot read?" "Well, not precisely; but there are many that could not read a journal intelligently, so as to enjoy it."

The co-existence of fear with hatred of a dominant priesthood may be observed in any country where priests have been the governing class, and perhaps, after the Pontifical States, may be best observed in India. The Brahmans, however, have not in the popular eye so direct a command over the lot of the departed as Rome has secured for her own priests, nor have they any such pecuniary profit out of the faith of the survivors. On the other hand, no class of Brahmans sinks so far below the average of respectability, among their countrymen, as do the lower clergy of the Roman and Neapolitan States.

But the contempt of the Italians for the priesthood is no more thorough than is their reverence. The man who will not introduce a certain priest to his daughters, will pay him to save the soul of his mother out of the pains of purgatory. To the Monsignore Don Juan, to use a term of Gregorovius, he will manifest profound respect, while in his heart he scorns him. To the not worse but less successful priest he will manifest contempt and spend some wit upon his vices, and yet, in his heart, will fear his occult power over the souls of his departed kindred.

The worldly professions have no such lot as the sacred one. Except the show corps for inglorious pomp around the sovereign, the military sphere for Romans is narrow, foreigners taking the lead. *Letters are no profession*. The civil service is principally in the hands of the priests. The law exists, and there are men with the titles of advocates and judges. But if we drew any idea of the status and "chances" belonging to such titles, from England, it would be altogether misleading.

Chief Justice Whiteside has shown how wide the difference is, and he spoke of the great city. In the little one of which we now speak, two English gentlemen, who could not find room in the inn, were directed to the house of an advocate, who played my host with assiduity and good humour, and charged four francs each for dinner, bed, candles, and service. The doctors seem most like men with a professional standing; and if they keep from politics, they have a fair chance of leading a quiet life in obscure usefulness.

Yet is the whole world called to take this state of things as the model of the subordination of the layman to the priest. "The idea of that subordination," we are told, "is realized in the Papal government." The ideal! This absorption, then, of the State into the so-called Church, this suppression of king, nobles, and people under the priest, is not an abnormal and monstrous *lulus ecclesiae*, but is the ideal of the new "political order." Any one can understand it—the king merged in the prince-bishop or else a vassal of the priest; the noble the retainer and jewelled ornament of the priest; the people the helots of the priest. That is the model. Here is realized for us the ideal of *the one fold and one shepherd*.

The English labourer knows that his son may, like James Cook, walk the quarter-deck, or, like Robert Stephenson, sit in the legislature. The Roman noble knows that the utmost his son, if not a priest, can rise to is to wear pearls and stars at the court of a priest, and kiss his foot when he makes a great show.

The kindly monk who, at Subiaco, shows a stranger over the Sacred Cave of Benedict, glories in far-famed gardens, which any peasant from Appenzell could tell him might be equalled in some private houses in such a village as Heiden. Fame sometimes draws out the dying notes of her trumpet unaccountably long. The monk is careful to enlist your admiration for several meritorious works in painting and sculpture, but to Protestants one gem is shown only by request. It is a portrait of the devil painted on the wall, in dark passages, and not visible except when a light is flashed upon it. This done, it appears for a moment, or longer, as the operator pleases, through one opening, fitted with real iron gratings, athwart of which the demon glares out of the gloom upon the spectator. Such a picture is capable of being put to uses that would meet the strongest views of those who call for something to strike the senses, and through them to affect the feelings.

As long ago as the days of the man of the land of Uz, the monotheistic way of depicting a spiritual presence was, "I could not discern the form thereof"; and, surely, even in that remote time, the aesthetic was higher than that of the Sacred Cave.

Following the smiling valley from Subiaco to Tivoli, one would, in 1867, probably see youths in the uniform of the zouaves, lounging on a bank, near one or both of the towns. Foreign mercenaries! would the Italians say. Foreign, certainly, and some of them mercenaries; but some, even in the dress of a private, would unmistakably show the gentleman—no mercenary, but a crusader who, in answer to the cry raised after Castelfidardo, has come from afar to fight for St. Peter, to "die for religion."

Even in this mountain valley the villages still keep to the heights. Where is the squire and his generous hall?—no room here for his magisterial office or commanding influence! Where is the farmstead, full and cozy, warm nest of fruitful brood sure to store a land with golden eggs? When the squire was quenched under the mitre of the abbot, the farmer was smothered in the cowl of the friar. Where are the parsonages and manses, homes where thought-culture is generally at the maximum, and external show often at the minimum, Christian families rooted in nature, blessed by divine ordinance, where woman is doing what the Mother of our Lord was doing at the head of her house—families holier a hundred times than the "religious" family, artificially substituted for nature and gospel? If from the list of bright names written up in England since the Reformation were blotted all that were first inscribed in the family Bible of parsonage or manse, that list would be more shortened than most men would imagine.

From the Villa d'Este at Tivoli, with its grandiose, ill-kept gardens, the prospect across the Campagna, when the distant city and its unique dome are limned against the sunset sky, is one of rare enchantment. Suppose that on these Sabine or on the Alban Hills you ask some intelligent inhabitant if these are not the Delectable Mountains, the summits of the true Celestial Empire, where no act of moral wrong has been done by the authorities for, say, the last ten hundred years. Perhaps you might hear such a statement as we once heard. It was from a gentleman in the pay of the government; but he knew that he had not to speak either to a priest or to that denationalized creature which Romans soon detect under the English form, a *convertito*. The statement may not have been correct. But it was such as under our

unblessed lay government is never heard. It was such as under a good government could never be invented. Such a statement, professing to be made from a man's own knowledge, one never heard in Europe, except in Naples under the last two kings; but one might hear such in Egypt, and one could easily hear such, many years ago, in the Mysore, from old men talking of the times of Hyder Ali.

The desolation of the Campagna is the true and terrible material progress. Here physical impediments to health and life have conquered, not being encountered by moral and mental force. What natural riches are here! If England has wealth in its coal, how much has Italy in its sunshine? How much has that saved in the last thousand years in clothes, bedding, and fuel? How much in the wear and tear of buildings, and of implements? How much has it given in ripening what we can never ripen, and in ripening quickly and perfectly what we can ripen but slowly and in part? How much has it both saved and given in diminishing the physical temptation to intemperance? This soil, this sun, and in addition the tribute of nations, poured out here for ages in all the endless forms of Peter's gain—where is all that wealth gone? Here we are amid the riches of nature, to which successive centuries have brought riches of tribute, and yet are we wrapped around by silence, vacuity, and fear. Sleep not here! whispers every friendly voice. Wealth of matter, poverty of man! The Papal government is sometimes accused of bringing the malaria. No; it only let it come and let it stay. Like many who will not believe in invisible mind, it would not believe in invisible matter. The miasma was the hand of God, and was not to be fought against.

The Papal government is also accused of bringing all the foreign hordes who wasted this once glorious plain. It did not always bring them. It only brought them so often that had it been done by any faction in the heart of a country not being priests, mankind would have sunk the memory of the faction under eternal disgrace. Now, the sickly Campagna labourer, the thing like a Fijian hut which to him is home, and the buffalo, seem a meet monument to the memory of Saracen and Lombard destroying, and of Cardinals plundering, till only the grass was left. Who would have the heart to ask himself, Is this the proof that the oasis of priests amid the desert of lay States, is a garden planted of the Lord?

Roughly speaking, Rome is about the size of Dublin. All the Catholic world sighs over the woes and desolations inflicted on Ireland by Protestant cruelty. Where has Rome set up a suburb like Kingstown, Dalkey, or Bray? Where sown a tract of country with rich smiling homes like those which spangle the emerald from Dublin to the Wicklow hills? Where in the oasis could a bishop on returning to Belfast point to a creation of wealth and beauty made in Papal times equal to Hollywood, or the Antrim shore? And could his colleague of Cork dare to make the people who look on the lone banks of the stream from Rome to the sea mourn for those who hang their harps by the "pleasant waters" that flow within sound of the bells of Shandon? Had the Roman Curia reigned there, the vale would now be insecure; a wretched village or two, with skeletons and clouts by way of relics in tawdry churches, would crown the heights; instead of villas, mansions, and cots, a monastery or two walled up to heaven would hold the best points on the hills, inviting artists, but perhaps ill rewarding them, while nursing idlers within and beggars without. And had Rome less reigned at Cork than she has done, a scene many degrees livelier and richer than that which now surrounds the fair city would have noted the response of intelligent industry to the boons of a very bountiful Providence.

Inside the capital of the oasis!—capital of a region where for a thousand years, at the very least, no act morally wrong has been done by authority, true bower of a peerless Eden! Let no Englishman say that these pretensions are not to be treated seriously. We should all have said so thirty years ago. But now men from any nation in Europe, some blaming us, some vaunting over our return, will tell us that of late years more has been done to accredit these pretensions by a portion of the English clergy than by any educated class in Europe, and that more to adorn and sanction these pretensions has been done by a portion of the English aristocracy than by any privileged class in Europe. This is one instance more of the fact that not interests but principles are the safeguards of mankind.

Is the city, then, morally the perfection of beauty? Is it so rich in the Christian graces as to accredit the claim to be the central seat of an infallible power, the one spot on earth where it is directly touched by a divine authority? The priest at once tells you how holy the city is: there are eight basilicas, more than four hundred churches, and more than two hundred convents. Yes, but perhaps the "religious family" fabricated by

teaching woman that her holy place is not the family which God founded, and in which every man has his own wife and every woman her own husband, may not in operation have proved a better thing than the Christian family. Poor creatures put into an artificial family where duties ordained by God are made void, and ties set by Him as strings in the harp of nature to make holy melody, are rudely unstrung—a "family" in which many of the things called *good works* are neither virtues nor graces, but vain repetitions of fantastic forms—a family where the obedience called for is not obedience to any natural authority or to any divine law, but to arbitrary will; communities of poor creatures such as these, we say, may not in the long run have proved centres of holiness. When we ask if the city is holy, we mean nothing about basilicas, or churches, or convents; but we mean, are the people like Jesus Christ, like a people prepared as a fit population for a sinless heaven?

We shall in reply give nothing but a statement on one side from the *Civiltà*, and one on the other from the prelate Liverani, so that neither heretic nor foreigner, nay, not even a layman, shall disturb the testimony. The *Civiltà*, [\[72\]](#) after the occupation of the city by Italy, showed that one of its characteristics had been the perfect subordination of all civil arrangements to evangelical law. *Christ reigns, Christ governs*. This motto had in Rome a worthy and complete application. Not only individuals, but the family, the city, laws, policy, all social institutions, felt the salutary influence. In the metropolis of Christianity, marriage, education, instruction, the administration of justice and charity, public and private manners, had to be regulated by Christian laws and evangelical principles:—

Such to a nicety was Rome. It was called the holy city, that is, the city more than any other consecrated to God and forming the expression of the kingdom of God upon earth. And the effect of this Christian order was seen in the very virtues of the civil population. The Roman people was not second to any other in piety towards God, and in propriety of conduct; and not only so, but it seemed the most dignified, the gravest, and the furthest removed from vulgarity and tumult.

The prelate on the other hand says—and we begin at the Vatican (p. 87):—

Thus came it to pass that at the Court of Rome, that is, the house of the lieutenant of Him of whom it is written, "*The evil shall not dwell with Thee, neither shall the unjust remain within Thy sight,*" turned into a sink of scandal and a sewer of every foul iniquity (p. 87).... It was always to me a mystery how the Roman clergy, rich in gold and lands till most of the Agro Latino is in their hands, with their splendid temples and sumptuous ceremonies, with their retainers diffused among all classes, with control of the charities, the pulpit, the confessional, the confraternities—how it is that with all these elements of power in their hands I hear from one end of Rome to the other the cry, Death to the priests! (p. 87).... The particulars hitherto related disclose [in the Court] an iniquity only too deeply rooted, and even turned into blood and nature; they disclose sores both inveterate and envenomed, hard to cure and hard to eradicate. It was this that made Clement VIII say to Bellarmine, "I have not strength to contend with such a flood of bad habits; pray to God to release me soon, and to shelter me in His glory." Also the brave Marcellus II was accustomed to repeat a sentence of Onofrio, which I do not wish to copy (133).

As to the people, we shall give but one word. Liverani, remarking on objections raised against modern Italian rule by the "good Press," because certain houses existed in the cities, says:—

It reminds me of a pleasantry of the old rector of the parish of St. Angelo in *Pescheria*, who one day said to me that when he took charge of the parish he found one house bad and one not so, turn and turn about; but he soon found that they were all alike. This editor is ingenuous and innocent as if he wrote in a land of angels, instead of in the place where not long ago a prelate-judge abused his office to the point of using violence with arms in his hands against the sister and daughter of the convicts, so that he was prosecuted before the Vicar and before the Holy Office, and removed from the bench; but after a few years, the good nature of the prince being overcome by powerful intercession, he was reinstated in another judicial office.

We shall not go further into this subject than to add that one of the bitter reproaches cast upon the Italian senate by the *Unità* was that when the most

noted and most respected living man in Italian literature and politics, Mamiani, said, speaking on the conscription, that at all events the morals of the barrack-room were better than the morals of the convent, the senate received the statement with loud applause.

However correct or incorrect may be the views of the several witnesses from whom we have heard a word, there can be no hesitation in pronouncing that any attempt to show evidence of divine superiority utterly fails—so utterly as to be more than ridiculous. But if there is not divine superiority, there must have been false pretensions. The one or the other is inevitable. If the States of the Church have not for the last thousand years been ruled by the representative of God, they have been ruled by one who was himself deceived and a deceiver of others.

FOOTNOTES:

[68] "I have no need to declare myself ready to repel and reject that which the Pope cannot do. He cannot do an act contrary to the Divine law."—*Cardinal Manning, Vat. Dec.*, p. 41.

[69] *Ultramontanism et la Société Moderne.*

[70] Vol. i. p. 14.

[71] The principle here alluded to is elucidated in an instructive manner in *Nazareth and its Lessons*, by the Rev. G.S. Drew.

[72] VIII, i. 132.

CHAPTER XIII

Solemn Confirmation of the Syllabus by the Pope before the assembled Hierarchy, and their Acquiescence, June 17, 1867.

THE twenty-first anniversary of the accession of Pius IX occurred shortly before the day for which the great assembly of 1867 was convened. As the Court historian omits all mention of the Syllabus when first issued, so does he also omit to say a word of its definite confirmation by the Pontiff on June 17, 1867, and of its formal acceptance by the episcopate. We are

indebted for the details in this case to an author who published before the events of 1870. Important as the transaction was, we cannot find that at the time any of the ordinary organs of the Vatican notified it to the world. Many of the learned disputants in the controversies which were soon to arise took ground which showed that they were unaware of this decisive event.

It was Archbishop Manning who related how Mass was celebrated in the Sistine Chapel, and how the Pope retired, at its close, to robe in the Pauline Chapel. Here the Cardinal Vicar, Patrizi, followed by the whole of the Sacred College and the bishops, presented an address of congratulation, concluding with hopes for many years of additional life to Pius IX, that he might behold the peace of the Church, and her triumph.

As recorded by the Archbishop, the terms employed by his Holiness in reply were of historical importance.^[73] It will be remarked that the watchwords, deprecated by the Pope, are not those of heretics, but of statesmen—Unity and Progress; and no Italian or German could doubt what were the unity and progress decried—

I accept your good wishes from my heart, but I remit their verification to the hands of God. We are in a moment of great crisis. If we look only to the aspect of human events, there is no hope; but we have a higher confidence. Men are intoxicated with dreams of unity and progress, but neither is possible without justice. Unity and progress based on pride and egotism are illusions. God has laid on me the duty to declare the truths on which Christian society is based, and to condemn the errors which undermine its foundations; and I have not been silent. In the Encyclical of 1864, and in what is called the Syllabus, I declared to the world the dangers which threaten society, and I condemned the falsehoods which assail its life. That act I now confirm in your presence, and I lay it again before you as the rule of your teaching. To you, venerable brethren, as bishops of the Church, I now appeal to assist me in this conflict with error. On you I rely for support. When the people of Israel wandered in the wilderness, they had a pillar of fire to guide them in the night, and a cloud to shield them from the heat by day. You are the pillar and the cloud to the people of God.

Here the bishops learned, with the full weight of pontifical authority, that the Syllabus was "the rule of their teaching." Some explained the Syllabus as affecting discipline, and therefore liable to alteration. The *Civiltá* and the *Slimmen* had always asserted that it was purely doctrinal, and therefore above all change. In pronouncing it the "rule of teaching" the Pope settled that vital point. Some, again, had been tempted to think that the Syllabus might be laid up, like an ancestral weapon; they were undeceived, and given to know that it must be tested in war. Such were placed in the dilemma of having to offer resistance to the sovereign thus surrounded, or of having to observe a silence which must ever after carry the effect of consent. Even if they did not feel with the Pope, that the foundations of universal society were crumbling in unprecedented decay, they did keenly feel with him that the foundations of his own temporal power were crumbling. Every doubter held his peace, and the Pope's act became virtually what, as we shall see, in a few days it became formally,—the act of the whole episcopate.

The Pope is not fortunate in quoting Scripture, often showing that he takes glosses for the text. He imagines that the "cloud by day" was not a pillar before the host, but an extended field of clouds overshadowing the wide-spread multitudes and not merely the tabernacle.

FOOTNOTES:

[73] *Centenary of St. Peter*, p. 6.

BOOK II

*FROM THE FIRST PUBLIC INTIMATION OF A COUNCIL TO THE EVE
OF THE OPENING
(June 1867 to December 1869)*

CHAPTER I

First Public Intimation of the intention to hold a Council, June 26 to July 1, 1867—Consistory—Acquiescence in the Syllabus of the assembled Bishops—The Canonized Inquisitor—Questions and Returns preparatory to Greater Centralization—Manning on the Ceremonies—O'Connell on the Papist Doctrines—The Doctrine of Direct and Indirect Power.

JUNE 26, 1867, was the day of the Secret Consistory, to which not less than five hundred bishops from all regions of the earth lent their splendours. The Pope in his allocution deplored the evils which had overtaken the Church, and, as he supposed, in equal measure had overtaken all society. And now, at length, did he reveal his intention of convoking such an assembly as had not been witnessed for three hundred years. He had firm hope that from a General Council the light of catholic truth would shine forth and scatter the darkness which enveloped the minds of men; and that the Church, like the battle-array of an unconquered host, discomfiting her enemies, rolling back their onset, and triumphing over them, would spread abroad over the earth the dominion of Christ.

Though journalists and bishops at the time bravely reproduced this martial figure, the Jesuit historian Sambin (p. 13), writing after the battles of 1870, makes the Pope say that the Church would gain her fairest triumphs by converting her enemies.

The very name of an Œcumenical Council, uttered in the tones of Pius IX, instinct with personal and official hope, caused among the assembled prelates a movement of effusive joy. They felt that such a council would prove a "marvellous source of unity, sanctification, and peace." On July 1, assembling in the great hall over the portico of St. Peter's, with all possible accessories of form, they presented to his Holiness what they called a Salutation. This had been drawn up by Archbishop Haynald of Colocza, assisted by Bishop Dupanloup, Archbishop Manning, and others. It had been proposed to proclaim Papal infallibility in the document itself; but this set the French prelates up in arms.^[74] Though stopping short of that goal, the bishops go far in their approaches to it.

"May the unmeasured benefits assured to society by the Roman Pontificate," say the bishops, "be, by this deed of Thy providence, once more displayed to the world, and may the world be convinced of the powers of the Church, and of her mission as the *mother of civil humanity*!" They were persuaded that a Council would have the effect of showing that everything tending to consolidate the foundation of a community, and to give it permanence, is fortified and consecrated by the example of authority, and of the obedience due thereto, presented in the divine institution of the Pontificate. Princes and peoples would not, "in the face of such a display, allow the highest sanction of all authority, the august rights of the Pope, to be trampled upon with impunity, but would see him secured in the enjoyment both of the liberty of power and the power of liberty."^[75]

The words in which the bishops confirm their testimony of 1862, to the "necessity," of the temporal power are few and firm. They then proceed to cover the space between that time and the present. "With grateful feelings do we recall, and with fullest assent do we commend, the things done by Thee subsequent to that time, for the salvation of the faithful and the glory of the Church." This is a waymark showing that the old doctrine still ruled the practice of the Court, though long banished from its theory. The acquiescence of the bishops was practically necessary to give the ultimate sanction to the acts of the Pope.

Then comes the solemn adhesion of the assembled hierarchy to the condemnations collected together in the Syllabus—"Believing Peter to have spoken by the lips of Pius the things which have been spoken, confirmed, and pronounced by Thee, for the safe keeping of the deposit, we also declare, confirm, and announce; and we reject with one heart and voice those things which Thou hast adjudged to be reprobated and rejected, as being contrary to divine faith, the salvation of souls, or the good of human society."^[76]

So it was done. The Pope had called for the express submission of the episcopate to his own acts, hitherto variously understood and discussed, and they had given it in round terms. Dr. Manning, in characterizing their document as "The Address or Response, in which they united themselves in heart and mind to their supreme Head,"^[77] might well speak of "the gravity and moral grandeur of that act," for with him vastness always seems to

prove grandeur, and an act of vast moral consequence this surely was. We shall hereafter see the fact tardily come to light that absent prelates were called upon to give in their adhesion by letter, and did so.

On either the Papal or the Episcopal theory, the Syllabus had now the status of Church law, and had become to all the clergy "the rule of your teaching." On the Papal theory, because it was the formal act of the Pontiff for the teaching and ruling of the whole Church; and on the Episcopal theory, because the collective hierarchy had not only tacitly acquiesced but openly accepted it.

Yet it is worthy of special remark that the Syllabus is not mentioned in this Salutation. More than two years later, however, the *Civiltà* said, "There is no doubt that the prelates had the Encyclical and Syllabus in view, since in these two documents are contained all the things which the Pope has *spoken, confirmed, announced, and reproved* in matters of doctrine."^[78] And even as early as one year from the time, we shall find that the double authority of the Bishop of Rome, and of all other bishops, was declared to be outraged by Darboy when he practically disowned the Syllabus.

The next point touched by the prelates was one lying near to the heart of the Pope. They had been moved with joy on beholding the loyal faith, love, and reverence of the Roman people for their most indulgent prince. "Happy people and truly wise"—*Felicem populum ac vere sapientem*.^[79] So, whoever had doubted as to the Model State, it was not the five hundred. Were they sincerely ready to make the people of their respective nations "truly wise" by bringing them to look on that government as the model?

The bishops evidently knew that they were initiating a movement which would test the combative qualities of both Pope and prelates. Every discerning man among them must have felt what Archbishop Manning expressed, "This event may be taken, I believe, to be the opening of a new period, and to contain a future which may reach over centuries."^[80]

Under anticipations so serious do these old men, addressing a very old one, thus conclude—

Courage, most Blessed Father! Guide the bark of the Church with a firm hand, as has been Thy wont, certain of gaining the port. The Mother of divine grace, whom Thou hast saluted with fairest titles of

honour, will defend Thy course, by the aid of her intercession; she will be to Thee the star of the sea.... Thou wilt have the celestial choirs of the saints favouring Thee; those whose glory Thou hast, with diligence and apostolic toil, sought out, and also hast proclaimed to the exulting world, both aforetime and in these recent days. May the princes of the Apostles Peter and Paul stand by Thee!... At the helm now held by Thee once stood Peter. He will intercede with the Lord that the bark which, by the aid of his prayers, has for eighteen centuries traversed the deep sea of human life, may under Thy command enter the celestial haven, all sail set, and laden with richest spoil of souls immortal.^[81]

It is to be remarked that in this passage Peter is not honoured, like his successor, with capitals to all his pronouns. Again, he and Paul are coupled together as if they might have been somewhat on a level. Perhaps in both points the bishops made an unconscious concession to history, but in the state of things now initiated, such jots and tittles were to become symptomatic.

One allusion in the Address, which would pass with a smile in England, had great significance for the mind of Pius IX. It is that made to his claim to peculiar aid from the Blessed Virgin, because of the higher exaltation which he had procured for her, and also to his claim upon new saints whose titles he had made out. In the case of the Japanese saints, we have already seen how practical were his views. He was fighting for the territory of his predecessors, and, finding that he had not hosts enough on earth, he reversed the ordinary process of binding on earth and leaving it to be ratified in heaven, and now bound in heaven, by creating "new patrons in the presence of God," leaving it to be ratified on earth by a corresponding increase of forces.

The vision of these new heavenly auxiliaries dazzled the imagination. Even the professor of history in the university speaks of the awful moment when the Pope raised them to their thrones as "the sublime rite, during which heaven and earth hung upon the lips of the Pope."^[82] The expressions of confidence in these new-made powers, as champions in the thickening struggle for that patrimony which, though costing so much blood, forgery, and intrigue, so much dependency on foreign arms, so much slaughter of

Italians, had been retained through evil report and good report, irresistibly remind one of Licinius when menaced by the advance of Constantine, under the auspices of one God only. Licinius feels the advantage he has in the numbers of gods on whom he can rely.

"This present day," he, as reported by Eusebius, says, "will either declare us conquerors, and so most justly demonstrate our gods to be the saviours and true assistants, or else, if this one God of Constantine's, who comes from I know not whence, shall get the better of our gods, which are many, and at present do exceed in number, nobody in future will be in doubt which God he ought to worship, but will betake himself to the more powerful God, and attribute to Him the rewards of victory. And if this strange God, who is now a *ridicule* to us, shall appear to be the victor, it will behove us also to acknowledge and adore Him, and to bid a long farewell to those to whom we light tapers in vain. But if our gods shall get the better—which no person can entertain a doubt of—after the victory obtained in this place we will proceed to bring a war upon those impious contemners of the gods."^[83]

Even if this does not describe what Licinius really said, it does represent the view of the early Christian, as to the heathen mode of thought, putting confidence in a multiplicity of celestial patrons, in the lighting of tapers and such like.

The name of Arbues, the Spanish Inquisitor, has been mentioned as being second on the list of those now to be canonized. Professor Sepp, of Munich, long known as a Catholic theologian and Oriental traveller, says in his *Deutschland und der Vatican* (p. 52)—

Nothing was more calculated to degrade the Church, and render her unpopular, or to bring a flush of shame to the cheek of every Catholic, than this revival of the most disagreeable recollections of history. Had Arbues contended against the burning of heretics, we should have welcomed him, in the name of God, as a saint. But history gives us no information about the man except that he discharged the odious office of a Torquemada, and that the long-persecuted Jews brought him to an

untimely end. The most that can be said for him is that he died for the idea of the Inquisition; and for that he is to be set up on our altars.

Many another Liberal Catholic blushed with Sepp. Baron Weichs, in Vienna, cried, "A single example will show you the difference between the spirit which reigns here and that which reigns on the banks of the Tiber. While here we speak of abolishing the penalty of death, there they canonize an Inquisitor, covered over with the blood of the victims whom he had immolated because they worshipped God in their own way." The *Civiltà* exclaims, "And men of this sort are to be reputed Catholics, and to make laws for Catholics. *O tempora! O mores!*"^[84]

The Cardinals of the Holy Office had drawn up a list of questions on points of Church discipline, which was delivered to the bishops while in Rome, and afterwards sent to many, probably to all, of those who were absent. Lord Acton points out that these questions do not touch the depths of existing wants.^[85] And Michelis seems to look upon them as a blind, to cover the real point at which the Council was to aim. They are, however, clearly framed to elicit facts bearing on uniformity of discipline, and especially on points of administration in mixed questions—that is, questions wherein both civil and ecclesiastical authority are concerned; for instance, schools, mixed marriages, civil marriages, domestic relations, and the like. The returns which the answers would supply would be of great value in the study of plans for reconstruction, and would seem to be of more practical importance than Lord Acton imagines, for the purpose of governing a mobilized clergy through bishops turned into prefects, by orders from one bureau, and of impressing through them a uniform movement on both institutions and families, in matters affecting national law.

The five hundred bishops soon dispersed to the four corners of the earth, carrying into their respective spheres enthusiastic descriptions of the beautiful, the grand, the splendid, the superb, the glorious, the unutterably majestic ceremonies which they had just witnessed, and no less enthusiastic hope of "the greatest event of the age," when the princes of the Church should assemble around her head to overawe her enemies and build her up anew. We do not use the epithet "divine," but it is perhaps right to say that the *Civiltà* described the appearing of the Pope "upon the portative throne,

in all the majesty of his divine rank ... the Pope-king, the supreme representative of the two-fold authority which rules the nations in the name of God."^[86] It of course celebrates the "standards which represented the glory of the Princes of the Apostles," and does not forget the "twenty thousand wax candles."^[87]

Archbishop Manning reminded his clergy that in the solemn adherence of the bishops to those acts of the Pontiff, they did not confirm those acts as if needing confirmation, or accept them as if needing acceptance, or imply that they had been "of imperfect and only inchoate authority until their acceptance should confirm them." ... "They did not add certainty to what was already infallible."^[88] The infallibility, he contended, belonged to all the approbations and condemnations alike—not, as some "blindly say," by virtue derived from canons, councils, or ecclesiastical institutions, "but from the direct grant of our Lord Jesus Christ, before as yet a canon was made or a council assembled." This is a somewhat crude statement of the doctrine which all the Irish and French Catholics we ever knew in our younger days resented, when ascribed to themselves by Protestants. They called it the doctrine of the "Papists," and contended that Protestants wronged all such Roman Catholics as were not Papists, by calling them so, indiscriminately. What we call "temporal authority," what the Jesuits have taught Rome to call "spiritual authority over temporal affairs," was one point, and the infallibility of the Pope was a second point, on which the Papist was at issue with the Liberal Catholic. In this sense Montalembert and O'Connell were not Papists. The latter says—

I am sincerely a Catholic, but I am not a Papist. I deny the doctrine that the Pope has any temporal authority directly or indirectly in Ireland. We have all denied that authority on oath, and we would die to resist it. He cannot, therefore, be any party to the Act of Parliament we solicit, nor shall any Act of Parliament regulate our faith and conscience. In spiritual matters too the authority of the Pope is limited: he cannot, although his conclave of Cardinals were to join him, vary our religion either in doctrine or essential discipline in any respect. Even in non-essential discipline the Pope cannot vary it without the assent of the Irish Catholic bishops. Why, to this hour the discipline of the General Council of Trent is not received in this diocese.^[89]

The utterances of Archbishop Manning, though sweet to the ears of those who had the dispensing of the purple in Rome, were, nevertheless, hard on those who, as children, had learned that such doctrine was no part of their creed. In his day Alban Butler had proudly said, "But Mr. Bower never found the infallibility of the Pope in our creed, and knows very well that no such article is proposed [propounded] by the Church, or required of any one."^[90]

Dr. Manning went on to declare that he had received the Syllabus at the first "as a part of the supreme and infallible teaching of the Church."^[91] In this he proved how far he went before most prelates of experience on this side of the Alps and Pyrenees, although he coolly credits them, every one, with having done likewise.^[92]

Just as the episcopate had been committed in 1862 to the temporal power, so was it committed in 1867 to the Syllabus. Whether a bishop believed that his assent had any constitutional effect or not was now a matter of comparative indifference, for his future action was bound; and the Syllabus was to prescribe the decrees and direct the deliberations of the future Council—in fact, to be its basis and its guide.

The language of Manning was treated by many Catholics as the menaces of a zealot; but the zealot knew that he spoke for the Pope and the Jesuits. During the conflict now on the point of breaking out, many honest men fought against the supposed design that the Syllabus should receive "doctrinal authority" from the Council, while in the mind of those in whose hands lay their future faith, the Council was under the doctrinal authority of the Syllabus. The Council might contribute to administration by turning the propositions into canons or constitutions, but could not add to their authority.

The anticipation of Archbishop Manning as to the political effect of the doctrinal change then impending was clearly recorded, and in terms never to be forgotten—

"Civil governments, so long as their Catholic subjects can be dealt with in detail, are strong and often oppressive. When they have to deal with the Church throughout the world, the minority becomes a majority, and subjects, in all matters spiritual, become free. We are

approaching a time when civil governments must deal with the Church as a whole, and with its head as supreme; and a General Council which makes itself felt in every civilized nation will powerfully awaken civil rulers to the consciousness that the Church is not a school of opinion, nor a mere religion, but a spiritual kingdom, having its own legislature, tribunals, and executive."^[93]

Some seven years after sounding this note, preparatory to a powerful awakening of civil rulers, the Archbishop, having seen some beginning of the results of that policy to which he was helping to hurry on his Church, could say, "I must add that they who are rekindling the old fires of religious discord in such an equal and tempered commonwealth as ours, seem to me to be serving neither God nor their country."^[94]

The language of O'Connell, as above quoted, was not employed loosely. He spoke as a Catholic, and as a lawyer; but, above all, as a politician. Had his declaration with regard to the spiritual power been less explicit, that upon the temporal power might, though not without violence, have been open to an Ultramontane interpretation. It might have been said that he only meant that the Pope had no authority in Ireland, which either directly or indirectly sprang from a temporal origin; for, in the language of the Ultramontanes, temporal authority does not mean authority over temporal affairs, but authority of temporal origin. His statement on the spiritual authority however, precludes any such interpretation. Even the spiritual authority he declares to be limited, both in doctrine and in discipline: it cannot "vary" doctrine, and cannot even vary the essential points of discipline, without the consent of the Irish bishops. If spoken to-day, this reserve in favour of the bishops would involve nationalism; and O'Connell's denial of the Pope's infallibility, without the consent of the bishops, would be heresy. Archbishop Manning, with a great many others, sought to prove, before the Council sat, that the latter position was proximate to heresy. So O'Connell and Montalembert must always lie under the brand of having lived and died as proximate heretics. The elect champion of the Pope's faith to-day may, if he refuses to change, be the butt of his anathema to-morrow.

NOTE

DR. NEWMAN ON THE SYLLABUS

It was eight years after the Syllabus had been formally confirmed by the Pope, and after its ratification by the collective hierarchy had been officially communicated to the Papal clergy in England by Archbishop Manning, that Dr. Newman treated of it in his letter to the Duke of Norfolk, in reply to the "Expostulation" of Mr. Gladstone. The assertions in that reply are among the most unaccountable known to the history of our literature. Still, such as they are, they have been made in a pamphlet bearing the name of an English duke on its title-page, and that of an English gentleman at its end. Moreover, they were received by our Press—and the fact is known throughout Europe—with perfect gravity.

Dr. Newman (p. 78) asks and answers an important question as follows—

"Who gathered the propositions out of these Papal documents, and put them together in one? We do not know." After no more than three sentences he adds: "The Pope has had the errors, which at one time or other he therein condemned, brought together into one, and that for the use of the bishops." On the next page he asks: "Who is its author? Some select theologian or high official, doubtless; can it be Cardinal Antonelli himself? No, surely; anyhow, it is not the Pope." First he tells us that we do not know who put it together, then that the Pope has done it, or has had it done. Again, in the same manner, he first tells us that it is not Cardinal Antonelli's, and then more than once calls it Cardinal Antonelli's (p. 91), as if his authorship of the document was an established point on which arguments might be grounded. Dr. Newman in this manner procures for himself a double set of premises, which he employs throughout, with frequent shifting. His argument now assumes the affirmative, namely, that the Syllabus is the work of the Pope; and now it assumes the negative, that the Syllabus is not the work of the Pope; and this is what the English Press with, so far as we know, unanimity agrees to call logical.

"But," asserts Dr. Newman, "the Syllabus makes no claim to be acknowledged as the word of the Pope" (p. 80). The very heading of the Syllabus sets up the claim to be accounted the word of the Pope; ay, and his word in official, public, and teaching acts. The heading is, "The Syllabus of the Principal Errors of our Time set forth in Consistorial Allocutions, Encyclicals, and other Letters Apostolic, by our most holy lord, Pope Pius IX." This claim is not incidental, but formal and capital, incapable of being either overlooked or put aside. No man's judgments are here introduced but

those of Pope Pius IX, and of his judgments not one here recited is less official than are Letters Apostolic.

"The Syllabus, then," further asserts Dr. Newman, "has no dogmatic force. It addresses us not in its separate portions, but as a whole" (p. 81). The affirmative is true, the Syllabus addresses us as a whole. The negative is not true, namely, that the Syllabus does not address us in its separate portions.

Does Dr. Newman mean that there is a single one of the eighty propositions which does not bear the Papal brand, "error"? It is very wide of the mark—no man in England better knows *how* wide of it—to talk about different brands, some more and some less damnatory, such as "heretical," "false," "impious," or the like.

"There is not a single word in the Encyclical to show that the Pope in it is alluding to the Syllabus" (p. 82). This is said to refute an allegation of Mr. Gladstone, which Dr. Newman calls "marvellously unfair." That allegation is, that the Encyclical virtually, *though not expressly*, includes the whole of the errors condemned. It will be seen by any one who refers to our own remarks upon the Encyclical (pp. 5-7), that had Mr. Gladstone read it as we do, he would not have written what he did. He would have written instead of it something to this effect, that the Encyclical includes the whole of these condemnations, not by reciting them, but by clearly expressed reference. What he did say, instead of being unfair, comes short of what is required by the evidence contained in the documents. The reference in the one to the other is formal. "In pursuance of our apostolic ministry, and walking in the illustrious footsteps of our predecessor, we have lifted up our voice, and in several published Encyclical Consistorial Allocutions, and other Letters Apostolic, we have condemned the errors of our sad times." This language proves that Mr. Gladstone in saying that the whole of the Pope's condemnations were virtually though not expressly included in the Encyclical, was within the limits of the evidence. They are expressly referred to, and those additional ones contained in the Encyclical itself are linked on to the previous ones as a complement, making them a whole. In itself the point is of no consequence whatever, but Dr. Newman has chosen to make it important, and for *his* theory it may have some importance.

"All we know," says Dr. Newman, "is that by the Pope's command this collection of errors is sent by his Foreign Minister to the bishops" (p. 78).

That is not all we know. We also know that the Foreign Minister did not, by the Pope's command, send it as the work of Cardinal Antonelli. We know that he did send it as the work of Pope Pius IX. We know that he recited in one and the same note, once for all, the language common to the two documents. 1. As regards what is condemned—"the principal errors of our times." 2. As to who it was that condemned them—the Pope. 3. As to the official acts in which he did condemn them, namely, Allocutions, and so on.

The next assertion we have to note is made in a strong interrogative form. "How can a list of errors be a series of pontifical declarations?" (p. 84). We reply, how can it be otherwise? What does an error mean in the language of such a document? It means errors declared to be such by the Pontiff; a list of such "errors," therefore, is simply a list of pontifical declarations. Dr. Newman knows as well as he knows his own name, that every clause of the Syllabus is a pontifical declaration that the words there written express an error.

Alluding to the forty-second of the condemned propositions, namely, that in the conflict of laws, civil and ecclesiastical, the civil law should prevail, Dr. Newman says this is a universal, and the Pope does but deny a universal. A universal may be denied in two ways. First by its contradictory, which may amount only to saying in popular language that the rule is not without exceptions. But there is another way of denying a universal, namely, by its contrary; that is, asserting that the rule is just the contrary of what some one has stated.

Now if Dr. Newman believes that when the Pope denies that, in case of conflict, the civil law should prevail, the Pope means no more than that there are exceptions to that rule, he believes what is in flat contradiction to the whole tenor of the Pope's language, and that of his organs year by year—language cast in forms as forcible as the case admits of. If he does not mean that, his repeated statement about denying universals is, in a technical sense, incorrect, and, in a popular sense, misleading.

Dr. Newman's treatment of the Sentence (24) which condemns those who say that the Church has not the right to employ force, is very instructive. First, he says (p. 89), "Employing force is not the Pope's phrase, but Professor Nuytz's." And what then? Is this phrase, "It is an error to say the Church has not a right to employ force" Professor Nuytz's or the Pope's?

Next Dr. Newman says that what the Pope means is, "It is an error to say with Professor Nuytz that what he calls employing force is not allowable to the Church." And what then? What does Professor Nuytz call force but force? Schrader translates it "outward force." Dr. Newman does not venture so far as to translate it "spiritual coercion." The whole sentence is about temporal power and the use of force—*Vis inferendae—potestatem temporalem*; it never glances at spiritual censures in the popular sense.

At the next step, Dr. Newman professes to "set down what the received doctrine of the Church is on ecclesiastical punishments" (p. 89). Does he do so, or make any straightforward attempt to do it? Not by any means. "Ecclesiastical punishments" is a term of wide extension, embracing great varieties of penalty, from the deposition of an Emperor to the paltry penance of a nun. In all this range of inflictions, the single point touched by Dr. Newman is that of corporal punishment. The selection of this one point proves that he was perfectly aware that both Nuytz and the Pope meant force when they said force; and this fact reduces the talk about Nuytz's sense of that term to what it is.

But having selected corporal punishment as the whole of ecclesiastical punishment, how does Dr. Newman set down the received doctrine regarding it? By quoting a passage which, under the appearance of surrendering something, really claims something additional, according to a common usage with Papal writers (p. 89). Cardinal Soglia, as quoted by Dr. Newman, makes a merit of giving up on behalf of the Church "the corporal sword by which the body is destroyed, or blood is shed." This, however, the Church *formerly* never claimed to hold *in her hand*, but *only in her power* and *at her beck*, in the hand of the temporal ruler. But, in giving up the corporal sword, Soglia is not contented to claim for the Church in her own hand what the bull *Unam Sanctam* claims; that is, the spiritual sword. He does of course claim that, but he further claims that the same hand should have and hold also the corporal instalments "of lighter punishments," such as imprisonment, flogging, and beating with sticks—anything "short of effusion of blood." The last penalty is the stroke of the corporal sword, and is left to the temporal arm. The Church did not in past time claim two swords in her own hand, the spiritual one and the corporal. She only claimed a spiritual sword according to Boniface VIII; and according to Dr. Newman she claims also a cat, a cudgel, and a rack.

Neither in what he writes, nor in what he quotes, on this subject does Dr. Newman allow even an allusion to appear to the question whether the corporal sword is or is not *in the power* of the Church. He cannot be unaware that untrained Englishmen, in reading the statement of his authority to the effect that the corporal sword is by some writers withdrawn from the Church, would suppose that they taught that it is not in her power. Dr. Newman knows that such an impression upon their minds would be a false one. He knows that Cardinal Soglia does not give any hint that the corporal sword is a weapon which the Church may not employ. Dr. Newman himself does not give any such hint. To ordinary readers, indeed, he seems to resent the assertion that she may employ it; but even in seeming to resent it he does not venture to affirm that she may not do so. Much less does he say, in plain English, that such is the received doctrine. He engages us in chat about flogging and thrashing, and forgets all about where his Church keeps her corporal sword—the only one we care about. Not that we like even the instruments of flogging and thrashing, much less the instruments of other corporal pains which fall short of the "effusion of blood."

Dr. Newman, at one time, says that the Syllabus does not address us in its separate portions; and at another, shows that every one of its portions refers to an original document, in which that portion is to be found. These documents, he admits, *are* authoritative; but the Syllabus, which culls out the really authoritative parts of them, is not authoritative. We can hardly credit Dr. Newman with making a distinction of the following sort: that one is to feel bound by the Pope's judgments when they lie buried in a clumsy document, and not feel bound by them when they have been culled out by himself, and put simply before us. If Dr. Newman feels free to teach in opposition to any one of the eighty sentences as read from the Syllabus, though bound to teach according to it when read in the original document, what he has written on the subject may have some kind of serious meaning for himself, though incomprehensible to other people.

One other point we would notice. "When we turn to these documents which *are* authoritative," says Dr. Newman, "we find the Syllabus cannot even be called an echo of the apostolic voice." We certainly do not profess to find that it is so. It is an echo of a voice very unlike an apostolic one. But Dr. Newman means the Pope's voice. Of that voice the words in the Syllabus

are not an echo, because they are its own words. Dr. Newman says that, as uttered in the Syllabus, they are not an exact reproduction of the words of the Pope; meaning by that, as found in the original documents. The words in the Syllabus are the exact words of the Pope used on a second occasion, and sometimes slightly varied from those he originally did use.

Dr. Newman has a passage in his own history which is not to be forgotten, and which ought to have made it difficult for him to stand on points about a variation of language made by a Pope, objecting that it impairs the authority of solemn documents.

There was a moment in the life of Dr. Newman when he still retained the freedom of a Christian man to teach the Catholic faith, ancient, strong and true. But he was on the point of parting with it—in the very act of swearing away that blessed birthright of his soul. He had already recited the form of sound words called the Nicene Creed, and had come to the point where the plunge must be made from the rock of Scripture, on which it builds, into the quicksands of tradition. In the modern form of oath which, at that dark moment, he was venturing to take upon his conscience, the first sentences, after parting from the language of the Catholic Church, the first that are the work of Rome, shift to another foundation from that laid under the old, scriptural, abiding verities. The true and noble old words, "the life of the world to come," built on the living Rock, are immediately succeeded by such preparation for modern inventions as the following: "I most firmly admit and embrace the apostolic and ecclesiastical traditions, and the other practices and statutes of the said Church. I do also admit the Holy Scripture according to that sense which holy Mother Church has held and does hold, to whom it belongs to judge as to the true sense and interpretation of the Holy Scripture; nor shall I ever receive or interpret it except according to the unanimous consent of the Fathers."

This new thing in a creed was said by the Pope to have been ordained by the Council of Trent. If Dr. Newman had taken the trouble to see how far the terms to which he had to swear were an "echo" of those of the Council, he would have found that there was a discrepancy, considerable in words, but, in practice, monstrous. The Council decreed that no one should interpret Holy Scripture against the unanimous consent of the Fathers. That decree was confirmed by the Pope. It had thus acquired all the warrant of infallibility, and the most solemn guarantee for being irreformable that

Rome had it in her power to give. This decree was "of faith." How long did it continue to be "of faith"? Only until the Pope prepared his Bull, collecting the dogmatic decrees into a novel creed. Then it was altered. The men who, henceforth, were to be the priests of Rome found themselves called upon to take oath, not as the Council willed it and worded it, that they would never interpret Holy Scripture against the unanimous consent of the Fathers, but that they would never interpret it except according to the unanimous consent of the Fathers. This was another will and another wording altogether. The latter amounts to little less than an oath that they would never interpret it at all, except on very few points.

To make the scope of this alteration clearer, let us suppose the case of Dr. Newman himself, while yet in the enjoyment of that ministry of the English Church which he afterwards threw away. Had he then been required not to preach anything contrary to the unanimous opinion of the bench of bishops, he might have felt tolerably free. But had he been required never to preach anything except according to the unanimous opinion of the bench of bishops, he would have felt—Why, I can hardly preach at all. Yet this vast change is made in a creed while its articles are passing through the process of being culled from the original documents, and presented in a collected form. In this form it was imposed by oath upon the consciences of men for ever. One and the same Papal hand signed its infallible certainty and irreformable permanency in one shape, in a little time afterwards altered its tenor, destroyed its certainty, reformed its scope, and then signed its infallibility and its irreformable permanency in the new shape. And an Englishman who swallows this camel in the creed stands between us and the light, straining out a gnat that he says has got into the Syllabus.

But what is the real teaching, as to the use of physical force, of Cardinal Soglia, who is soberly put forward by Dr. Newman before the English public as justifying him in crying out against Mr. Gladstone for accusing the Church of claiming the right to use force? Page 216: "The Church, exercising her power in the external tribunal, has been long accustomed to chastise offenders even with prison, exile, confinement in monasteries, whipping or flagellation, with fine, and other similar penalties; which, inasmuch as they affect the body, are commonly called corporeal." Page 219: "We affirm that in the inherent authority of the Church, by which she can coerce offenders with salutary penalties, is certainly contained the right

of awarding such temporal penalties as consist in fine, exile, prison, whipping, and other things of the same kind." Page 222: "If a case occurs in which severer punishment appears necessary, the ecclesiastical judge may not himself resort to it, but he is to hand over the delinquent to the secular power to be punished according to its will. Besides, it is evident that the crime of heresy itself was brought under the cognizance of the ecclesiastical tribunals up to the point when the heretics, being convicted, and found obstinate, were first punished by ecclesiastical censures, and afterwards, being subjected by the lay power to capital penalty, were exterminated." Page 222: "The Church never pronounced a sentence of blood. Even the Inquisition smote heretics with the spiritual sword, and prison, but the lay princes subjected them to the last capital penalty." Page 217: "Perhingius believes that the Church does possess the right of inflicting capital punishment, but that she is not accustomed to exercise it, or to carry it out by ecclesiastical ministers and judges, but through lay ones, and by means of the temporal power, because the latter is more becoming, and more appropriate to the claims of the Church." What follows would, by internal evidence, seem to be added by Vecchiotti, but no intimation is given to that effect. Page 217: "He [Cardinal Tarquini] held that there is no kind of penalty with which the Church may not in her own right punish offenders; and thus temporal goods, reputation, rights of office and of heritage, and life itself, are subject to the ecclesiastical power. Otherwise the Church could not compel disobedient rebels, or avenge herself for their crimes, nor could she cut off rotten and noxious members from the body." Soglia, or rather his continuator, speaking of the moderns, Tarquini and "other doctors," and their doctrine of physical force, says (p. 217), "They derive it from the character and constitution of the Church herself, or from the nature of a perfect society and its end. Hence, just as in a perfect civil society the right of execution *jus necis* belongs to the lay power for the good of the commonwealth and of the citizens, so do they assert that none can deny that by stronger reason the same right resides in the ecclesiastical power for the spiritual good of the faithful."

FOOTNOTES:

[74] Acton's *Zur Geschichte*, pp. 13, 14.

[75] *Acta* (Freiburg edition), p. 35.

- [76] *Acta* (Freiburg edition), p. 33.
- [77] *Centenary of St. Peter*, p. 5.
- [78] Serie VII. vol. vii. p. 587.
- [79] *Acta* (Freiburg edition), p. 34.
- [80] *Centenary of St. Peter*, pp. 12, 13.
- [81] *Acta* (Freiburg edition), p. 36.
- [82] *Fronde*, i, p. 82.
- [83] Eusebius' *Life of Constantine*, lib. ii. c. 5.
- [84] Serie VII. vol. vii. p. 23.
- [85] *Zur Geschichte*, p. 4.
- [86] Serie VI. vol. xi. p. 165.
- [87] *Ibid.* p. 234.
- [88] *Centenary of St. Peter*, pp. 33, 34.
- [89] *The Select Speeches of O'Connell*. Edited by his son, 1862. P. 447.
- [90] Life prefixed to the *Lives of the Saints*, vol. i. p. 14. Ed. of 1836.
- [91] *Centenary of St. Peter*, p. 38.
- [92] *Ibid.* p. 34.
- [93] *Centenary of St. Peter*, p. 95.
- [94] *Vaticanism*, p. 155.

CHAPTER II

Six Secret Commissions preparing—Interrupted by Garibaldi—A Code for the Relations of the Church and Civil Society—Special Sitting with Pope and Antonelli to decide on the Case of Princes—Tales of the Crusaders—English Martyrs—Children on the Altar—Autumn of 1867 to June 1868.

WHILE in the provinces the bishops were kindling enthusiasm for the coming assembly, and for the movement of reconstruction in general, in Rome six Commissions were at work, under the Directing Congregation, making secret preparations for the Council. Each of these Commissions had of course a Cardinal at its head. The first, that for Theology, was under

Cardinal Bilio, a monk, and a native of Piedmont, only forty years of age, and but lately raised to the purple.^[95] Rightly or wrongly, as Vitelleschi says, he is credited with the principal share in the preparation of the Syllabus. Others, however, are named for the same honour. We ourselves heard a member of the original Congregation for the preparation of the Syllabus assert that it was Passaglia who first suggested it. Passaglia was a great Jesuit theologian, who lost position by declaring against the temporal power. The second Commission, for Ecclesiastico-Political Affairs, was under Cardinal Reisach, a man of sixty-five, an accomplished Bavarian, but so denationalized in manner and spirit, that his countrymen sometimes accused him of affecting to have almost forgotten German. For some years he left Rome to hold high place in his native country. As Archbishop of Munich he did much to supplant the old national faith by the Vatican one, and to unsettle the previously existing relations of Church and State. Under his eye the popular catechism of Canisius was changed. The answer, "The Pope by himself is not infallible," had done good service for centuries; but now it had to make way for a new one; and eventually the whole book was transformed by the French Jesuit Deharbe.^[96]

The Commission next in importance was that on Ceremonies. If the theological one had to formulate the principles on which the world was to be governed, and the ecclesiastico-political one had to draft the rules and frame the executive machinery by which those principles were to be carried out, the Commission on ceremonies had to devise the scenic effects with which the movement should, to use a frequent expression of Roman, French, and even of German Catholic writers, be put upon the stage—the *mise en scène*.

Oriental Affairs, the Religious Orders, and Ecclesiastical Discipline, were the subjects committed to the other three Commissions.

A seventh, of which the official history makes no mention, was, according to Vitelleschi (p. 26), an object of great public attention. It was for Biblical matters, and the revision of the Index. Its President was Cardinal de Luca. But it inclined to a more liberal procedure in regard to the Index, gave offence, and after a few meetings, was discontinued. The official organs, as the same author says, buried it in oblivion, though its labours were of great public interest.

The renewed preparations had not proceeded long before they were once more interrupted by political events. From August to December the Directing Congregation could hold no meeting. General Dumont had been sent back to Rome, by Napoleon III, to inspect and harangue those French soldiers who now formed a principal part of the so-called Pontifical, or Œcumenical army. The national Italian party was excited by his presence and his speech. France forced them to feel that foreign occupation was discontinued only in name. Garibaldi, supported only by feeble forces, moved upon Rome with the reckless valour which had succeeded in Sicily. The movements of the Italian Government to restrain him were altogether inefficacious. The efficiency and zeal of the little army of "Crusaders" had been utterly underrated by the Italians. The Dutch, English, Swiss, German, and French youths who fought for the Crown of martyrdom were a different material from the soldiers of Ferdinand or from those of the old Papal corps. They faced great odds, and did right daring deeds. But they were too few. The ready French were once more called in. On November 3 they secured for Pius IX another respite by the battle of Mentana; but the Pope's own historian does not even name the French. For all that is said by Cecconi, not a foreign mercenary might have been in the Pontiff's pay, not a foreign regiment might have been sent to his relief. Indeed the word "foreigner," as applied to any baptized person bearing arms for the Pontiff, is offensive language—another fruit of this degenerate age. In opposition to certain "ill-advised" Catholics, who thought it a pity to have recourse to foreign arms, the *Civiltà* cries: "Foreigners?—the word is a great and odious lie! At Solferino the French were foreigners; at Mentana they were in their father's house."^[97] So does the one belief that the Pope is the appointed lord of the world change the lights that fall on every national movement. We only saw the fact that at Solferino the French killed Teuton invaders of Italy, and that at Mentana they were the invaders who killed Italians. We shall find French mothers of "martyred" counts calling him for whom they fell, "our King."

When the lance of Garibaldi was thus, for the second time, shivered against the shield of France, who would have said that when next lifted it would be in her defence, after the armies that had for twenty years upheld the temporal power had gone into captivity?

The martial value of the religious motives and principles which animated the Crusaders, as contrasted with the Garibaldians, became a favourite theme for sacred pens. The Crusaders showed by their bearing that they were "conscious of serving the majesty of the God of battles." They lost no passing opportunity of renewing their strength at the altar.

The proud lads, in full equipment of war, bowed the knee before the altar, offered up their lives to God, and consecrated their bayonets to St. Peter; or hastily receiving the Sacrament, they arose with joy and seized their pieces, which had been laid down by the rails of the sacred table. Happy he who with his eyes beheld such elevation of thought, such constancy of purpose, such sanctity of Christian war march triumphantly through the Roman territory.^[98]

On October 8, the correspondent of the *Times* at Berlin stated that Napoleon III had bound himself to leave Victor Emmanuel free as to Rome, provided the latter would help him in case of war with Prussia. Earlier than this, in the month of September, the Austrian bishops found themselves menaced with an abolition of the Concordat, and had to make a formal appeal to the Emperor against such a step.

"We have at this time of day," said Baron Weichs, "to decide whether we shall be an independent State, or whether, as in Japan, we shall have two sovereigns; the one, subordinate, residing at the Burg in Vienna; the other, the omnipotent Master, having his throne in Rome, at the Vatican, or, more properly speaking, at the Jesuit establishment."

The *Revue des deux Mondes* had spoken of these words as wise, even as very wise, and the *Civiltá* replied, "To us they seem to be nothing but buffoonery."^[99]

In November, Napoleon III proposed that the European Powers should meet in a Congress, to decide upon some solution of the Roman question. After this proposal had failed, his Minister, M. Rouher, pronounced, in the Assembly, his celebrated "Never!"—the French would never permit Rome to be occupied by the Italians. This exclamation is often printed by the "good Press" in the largest capitals.

A fortnight after the day of Mentana the activity of the Commissions was resumed, and invitations were sent out to the theologians already selected in different countries, to come to Rome and enter on their labours. The Nuncio at Munich had not recommended any one from the renowned faculty of that city, but had sought his men at Würzburg. England was represented by Monsignor Weathers, and the United States by Monsignor Corcoran. On October 2, Cardinal Caterini wrote to Bishop Ullathorne of Birmingham, instructing him, in the Pope's name, to invite "the priest John Newman." Three weeks later the bishop replied, enclosing Dr. Newman's answer, which, however, is not printed. According to the bishop, Dr. Newman said that a journey to Rome would be perilous to his life, and though deeply touched with the kindness of the Holy Father, he believed that the latter would not desire him to come at the risk of his life, especially as nothing would be advanced by his presence in an august solemnity of such moment, unskilled as he was in matters of the sort. [\[100\]](#)

The language of Dr. Newman, as reported in this correspondence, shows that he had but faint light on the part which mere divines were to play in the Council. Probably he was misled by history into supposing that their part would be public and considerable. His place, had he gone, would have been upon an unseen commission; his share probably anything but an important one; and, as likely as not, his opinion might have been asked only in writing, and upon a question of Oriental affairs, instead of upon theology, as was that of his famous fellow oratorian Theiner. Of the very few German scholars invited to Rome who were not of the Jesuit school, one was Haneberg, who, according to Michelis, was so little consulted that he was soon back in Munich, to avoid idling away his time.

In March the Pope intimated his intention of issuing in June the Bull of Convocation; and then the purples had to consider who should be summoned. The most serious doubt arose as to those useful fictions called *bishops in partibus*. They have much of what goes to make a bishop—the orders, robes, title, and consequence, everything but the office. Their want of this is delicately expressed by Cecconi—they have no determinate flock; which in lay language means no flock at all. The number of these Court followers have been so increased that Sepp illustrates the case by that of a government creating a batch of peers to carry some measure.

But such peers do not depend for their living on the men who want their votes. Even the Cardinals had not the courage to assert that creatures like these had a *right* to sit in the Council. They did raise the question of right, and left it formally unanswered; but their next question was, Is it expedient to invite them? They boldly affirmed that it was expedient.

In May 1868, it was decided that the only proceeding to be observed with respect to Catholic princes was that of communicating a copy of the Bull of Convocation to each Court. But should the princes be invited to attend? This question "was much debated among the purpled consultants, and was negatived."[\[101\]](#)

The decision thus taken was logical, for no one is a Catholic prince "as such" who does not place the law of his land under canon law; or, in proper language, who does not maintain "harmonious laws," recognizing politics as lying in the domain of morals, and therefore as being under the spiritual authority. When the controversy on the Syllabus began, the *Civiltá* had enjoyed a triumphant laugh at M. Langlais, a distinguished French advocate. M. Langlais had argued that the Encyclical would not have transgressed its proper boundary had it treated only of faith and morals, but that having touched the foundations of political institutions, it had transgressed that boundary. The *Civiltá* cried—

There exist then, according to M. Langlais, foundations of political institutions outside of the circle of morals! outside, consequently, of the circle of manners; or maybe, outside of the circle of human actions.... His argument assumes that the political order cannot be at the same time moral, or at least founded in the moral order, and assumes further that it must be separate from it, else he could not say that the Pope, simply by entering upon the political order, had gone out of the moral order (VI. i. 652-53).

It is not said that Antonelli in particular took alarm. But it is said that fears arose lest the "novelty" resolved upon should prove perilous; therefore the subject had to be reconsidered in the presence of the Secretary of State. The danger that might follow the brusque exclusion of princes was so felt that the former decision was on the point of being reversed. This shows Antonelli's ascendant. But his colleagues had a resource. Only six days

before the date fixed for publishing the Bull, a special summons, not from Giannelli, but from Antonelli himself, called together the Commission at a quarter past eight o'clock in the evening, to a meeting to be held "in presence of the Most Holy" (*coram sanctissimo*)—i.e. before the Pope.^[102]

Before the Most Holy! Thus are we placed in presence of the Eleven, and the kings are on their trial. The Nine are joined by the two men so dissimilar and so indissoluble, Pius IX and Antonelli, in whom, as an official biographer puts it, he early discerned "the man of God," appointed as his succour and stay in his divine office. At the head of the Eleven sits the portly, good-looking Pope, the beau-ideal of an important squire in a remote place—full of will, spirit, and self-confidence, with more art in governing than he has got credit for, at least in that domineering and deluding which avails with priests. He would be as hilarious as a squire who never put to death anything more precious than a pheasant, and never cursed even a gamekeeper with any intention that his curse should be bound in heaven.

Pius IX would now feel all the weight of his office. He was sitting as supreme Judge, to decide upon the claims of the kings of the earth. Were they worthy or were they not worthy to be received into the Council which was to lay "the corner-stone of reconstruction," the Council in which the prerogatives rightfully claimed by his predecessors of blessed memory, but from which the Church, slow of heart to believe, had hitherto withheld her former sanction, were at last to be openly acknowledged in his person?

No one could doubt what view Pius IX would take. The kings were clearly guilty. They had consented to the voice of their people against the voice of the Church. They had abolished harmonious laws. The internal tribunal was reduced to a voluntary confessional; the external tribunal, in most places, was removed, and everywhere subordinated. Even as to the Supreme Tribunal, who hearkened to the words, "Know that thou art the Father of princes and of kings, and the Governor of the world?"

When the call for Trent went forth, the only doubtful crowns were two lying away between civilization and Cimmerian night in England and Sweden. Now on every hand the word was, There are no Catholic princes. That old English crown was now represented by two monsters of power, the British Empire and the United States. Two other monsters had come up, Prussia and Russia. Spain was fallen, Poland was extinct, Italy was hostile, Austria

was enfeebled, France was strong but not sound—there were no Catholic States. The social system was indeed in ruins. It was only by clearing away that the foundations for reconstruction could be properly laid; but clearing away was attended with danger. The princes were not to be invited, but they were to be allowed to claim admission. The Bull was then and there altered in this sense. [\[103\]](#)

Meanwhile symptoms of the coming conflict began to appear. Catholics of all classes looked forward to great events for the Church and the nations. Those who did not share the hopes of the hidden Council, or who recoiled from the dogmas likely to be decreed, felt anxious. The Press began to pour out pamphlets and reprints, enabling all to read up on the question of Councils.

"The Crusaders of St. Peter" was the title of historical tales now regularly appearing in the *Civiltà*, which continued for years. The object was to make the blood of Mentana the seed of a great œcumenical army. Every incident was described with vivid conception and boundless faith in the destiny of the Papacy, with faith too in the duty of all to rear up sons for the Crusade, and faith that those who fell escaped purgatorial pains and found direct entrance among the beatified.

The following are passages scattered here and there—

It was a sight to rejoice the angels in heaven, that of these brave men laying down the carabine to perform the little office of the Virgin, and then turning from the little office of the Virgin to take up the carabine.... On the march fatigue was lightened by reciting the prayer which had so often conquered the foes of the Church, the rosary.... The masters of war know that on the field of battle the last army to deserve ridicule is an army fresh from confession and communion.... A young gentlewoman gave birth to her first-born. "How long it will be," she said, "ere he can carry a musket! But Pius IX can do anything. He can make a zouave even now of my Eugenio." Melted by such faith, the Pope wrote a benediction on a paper "consecrated to him" by the infant. The venerated word was placed in the domestic sanctum, and in return for it "the zouave at the breast will do a soldier's service." Some weeks later, on receiving from him a first oblation, the Pope again wrote a word for "his soldier in swaddling clothes." The family were

overjoyed at being permitted within five months to kiss two Papal autographs. The mother wrote, "Eugenio was asleep. I ran to put the Papal benediction on his head and forehead. He immediately broke out in a smile, and to me he looked like an angel. I could not restrain my tears. He still slept, but bounded for joy as long as I kept the blessed letters on his little head.... Should the avengers of Mentana try their hand, the zouave will lisp his first word crying *Viva Maria!*"

Arthur Guillemin said to his crusaders as he led them to the attack at Monte Libretti, fresh from absolution, "You are all in the grace of God; do not count them, they will fall into our hands." They marched into battle, some with the rosary round their neck, some with the Carmelite scapular on their breast, and some with the cord of St. Francis round the loins, just like that model of a crusader St. Louis. The young Count de Quélen, who fell heroically at Monte Libretti, had just received a letter from his mother. "If thou art to die, my good Urban, die like a hero, like a soldier of God." After his death she writes to a friend in Rome—

"My beloved son is dead—died for his God. Oh what a comfort is that thought amid this desolation! He fell like the brave, defending the Church and our venerated Pontiff. Was it not a signal favour granted to him by that Lord who is so good that He put it into his heart to shed every drop of his blood for Him, and by this very means to bring him to paradise, where Urban henceforth—yes, I dare believe it—enjoys the vision of his God, and is beatified for all eternity, with beatitude unmixed?" [Thus it was plain that having fallen in battle he had, as the writer of the story says, "seized the palm of martyrdom, as he, following St. Louis, called it," and so had escaped the pains of purgatory.] "If," continues the mother to her friend, "you go to a reception of our holy and venerated Pontiff and King, assure him, I pray you, that I am happy that my son has shed his blood for him."

When the body arrived at Quimper, two hundred priests and a crowd uncounted from the surrounding Breton villages came, "rather to venerate than to pray for the departed." The houses were draped in black, the black was decked with the French and the Papal flags; on the coffin lay his sword, twined with laurels and crowned with vermillion. The bishop pronounced

the panegyric "magnifying him as a martyr for religion." Mrs. Stone, a volunteer sister of charity, went from Rome to Nerola to visit the wounded prisoners in the hands of the Garibaldians, and especially Alfred Collingridge. The dying crusader said, "The Lord has given me the favour I asked—to die for the Holy Father. Oh, yes, may God accept of my death and my blood for the triumph of Holy Church and for the conversion of England!" He complained that his rosary had been taken away, and Mrs. Stone supplied him with her own. Alfred Collingridge, from Oxford, "was the first of the English who laid down his life in the Crusade of St. Peter." The writer prays, "May this first English blood shed on Roman soil rise up before God, and descend again in a dew of mercy on the land of Britain!" Of Alfred's countrymen were present, his own brother George, two Watts-Russells, David Shee, and Oswald Cary, "all soldiers of St. Peter" (VII. v. 155 ff.). The father hearing from George of the death of Alfred, had only one regret, that he could not himself step into his vacant place.

When Arthur Guillemin fell he was unhappily consigned to a grave in common with Garibaldians; because it "was not then possible to separate in the grave the friends of God from His enemies." Six months later, Fathers Wilde and Gerlache, with others, piously sought the body of the martyr to restore it to his native Aire-sur-la-Lys, by express desire of Pius IX. Canon Druot had come to Rome to claim it in the name of the family, the country, and the Church of Guillemin's birth. The seekers of the relic included an O'Reilly, a Le Dieu, a Bach, a Loonen, and a Mimmi. "You will find him," said a peasant, "with a Garibaldian at his feet." The first object recognized was a Carmelite scapular. "It is like mine," cried an officer; "two both alike were given to him and me by the Countess Macchi!" Soon was seen the end of the cord of St. Francis, worn by the deceased in imitation of St. Louis of France. As the corpse was borne off to Rome, the people pressed around and cried *Evviva!*—Long life to him! This cry "strange around a bier," expressed a "profound sense of the marvellous," and threw "a glittering light upon the idea formed by Christians of those who fall fighting in the modern crusade." At Rome, in the great Church of St. Louis of France, the bier was surrounded by ambassadors, prelates, and officers, including the Minister of War. At home, the "precious deposit" was received in an illuminated chapel, decorated, not with symbols of death, but of glory. "The crowd of pilgrims from the whole of northern France" thronged the town. The bier was adorned with symbols of victory, the work of Roman artists.

The coffin was borne by the youth of the town, emulous by changes to come under the coveted burden. A party of pontifical zouaves in uniform attended. From the corners of the hearse rose trophies of the pontifical flag "garlanded with triumphal laurel." While yet the corpse lay in the illuminated chapel, a new-born nephew of Arthur was borne in by the mother, who "piously laid him upon the coffin, as used the ancient Christians to lay their little ones on the sepulchres of the martyrs. A thrill of reverence went through the assembly." During the funeral procession, the eyes of the multitude "were fixed with devout curiosity on a piece of his uniform spread out upon the bier, in which was seen the rent made by the wound" (VII. iv. 415).

Aire-sur-la-Lys is not very far from our own shores, beyond Calais.

FOOTNOTES:

[95] *Cecconi*, p. 62.

[96] An interesting account of this change is given in Sepp's stirring speech in the Bavarian Parliament on the Mering case, *Deutschland und der Vatican*, pp. 182-85.

[97] VII. iii. 559.

[98] *Civiltá*, VII. x. 161.

[99] Serie VII. vol. vii. p. 22.

[100] *Cecconi*, pp. 370, 371.

[101] *Cecconi*, p. 122.

[102] *Cecconi*, p. 382.

[103] *Cecconi*, pp. 121-24.

CHAPTER III

Bull of Convocation—Doctrine of the Sword—The Crusade of St. Peter—Incidents—Mission to the Orientals, and Overtures to Protestants in different Countries—June 1868 to December 1868-69.

IT was on St. Peter's Day, June 29, 1868, that the Bull of Convocation was issued. According to the Pope's promise, the Council was to meet on the Feast of the Immaculate Conception, December 8, 1869.

The language of the Bull was diplomatically vague as to the objects of the assembly, but awfully explicit as to the authority by which it was convened. Not in an *obiter dictum*, but in legislative language jointed to bear the strain of ages, a claim is set up, as Sepp points out, to exercise the authority of the whole Trinity, and, indeed, we may add, whatever further authority Peter and Paul can lend. "Confiding in and supported by the authority of Almighty God Himself, Father, Son, and Holy Ghost, and of His blessed Apostles Peter and Paul, *which we also exercise upon earth*."^[104] It ought to be remembered that M. Veuillot writes down the date of this Bull as the day on which the middle ages died. The indication of objects, though vague to us, sufficed for the initiated. *Ce qui se Passe au Concile* says (p. 9)—

The Pope repeatedly intimates that the Church has the right "to redress the errors which turn *civil* society upside down, ... to preserve the nations from bad books and pernicious journals, and from those teachers of iniquity and error to whom the unhappy youth are confided whose education is withdrawn from the clergy; ... to defend justice, ... to assure the progress and solidity of the human sciences." This somewhat confounds things spiritual and temporal; but those political allusions drowned in the usual digressions of Pontifical documents, passed unobserved.

If they passed unobserved in Roman Catholic countries, where journalists did know a little of the modes of pontifical speech, how much more in countries like England and America, where at that time it was considered unintelligent to speak or write upon the subject from knowledge, the proper thing being a serene superiority to study, and a judicious expression of opinions caught in the air.

To obviate the objection that the assembly would be only a synod of the Western Church, and not an Œcumenical Council, the Bull was followed by Letters Apostolic addressed to all prelates of the Oriental Churches not holding communion with Rome.^[105] Until the Vatican Council these were regarded only as schismatics, not as heretics. Therefore the Pope invited

them to come, and by submitting to the See of Rome to complete the union. This invitation was dated September 8; and on the 13th of that month a "paternal letter" went forth, to Protestants and other non-Catholics. All these, from Anglican Ritualists down to the smallest sects, were grouped together, not being called to take any part in the Council, but to seize the occasion of joining the Pope's Church by renouncing their heresies and submitting to his authority.

Although the approach of the Council excited little attention in Protestant countries, it began to be discussed in Roman Catholic ones with an interest which rapidly warmed to excitement. The tremendous significance attached by Ultramontane authorities to the Bull, especially to the non-invitation of princes, and to the coming struggle with the Modern State, was enough to rouse Catholics who did not sympathize with the aims indicated. The *Civiltà* put the alternative as between the end of the world or its salvation by the Council. "Either, in the inscrutable designs of God, human society is destined to perish, and we are close upon the supreme cataclysm of the last day, or the salvation of the world is to be looked for from the Council and from nothing else."^[106] Language like this is not to be smiled at when it goes to the heart of perhaps half a million of ecclesiastics, each one of whom transmits the impression through a wide circle. The following passage in the same article may be laid to heart. A good part of it is quoted by *Janus*, with the remark that it needs but a step further to declare the Pontiff an incarnation of God.

The Pope is not a power among men to be venerated like another. But he is a power altogether divine. He is the propounder and teacher of the law of the Lord in the whole universe; he is the supreme leader of the nations to guide them in the way of eternal salvation; he is the common father and universal guardian of the whole human species in the name of God.... The treasures of revelation, the treasures of truth, the treasures of righteousness, the treasures of supernatural graces upon earth, have been deposited by God in the hands of one man, who is the sole dispenser and keeper of them. The life-giving work of the divine incarnation, work of wisdom, of love, of mercy, is ceaselessly continued in the ceaseless action of one man, thereto ordained by Providence. This man is the Pope. This is evidently implied in his designation itself—The Vicar of Christ. For if he holds the place of

Christ upon earth, that means that he continues the work of Christ in the world, and is in respect of us what Christ would be were He here below, Himself visibly governing the Church.... It is, then, no wonder if the Pope, in his language, shows that the care of the whole world is his, and if, forgetting his own peril, he thinks only of that of the faithful nations. He sees aberrations of mind, passions of the heart, overflowing vices; he sees new wants, new aspirations; and holding out to the nations a helping hand, with the tranquillity of one securely seated on the throne given him by God, he says to them, Draw nigh to me, and I will trace out for you the way of truth and charity which alone can lead to the desired happiness. [\[107\]](#)

Such divines as held that the proper work of a General Council was to heal schisms or combat heresies, remarked on the absence of both. Such as were unwilling to see the Church straining after temporal power, and placing herself in antagonism to freedom and light, could ill conceal their anxiety. But the Jesuits everywhere hailed the dawning of a wonderful day.

On Saturday, October 17, 1868, the Abbé Testa, accompanied by three other priests, went to the palace of the Patriarch of Constantinople, bearing the Pope's letter to the Oriental bishops. The Vicar-General received the four Latin priests, and introduced them to his Holiness the Patriarch, whose hand they kissed. The Patriarch, on his part, embraced them, and expressed his pleasure at seeing them. The Abbé Testa then drew a richly adorned little book from his pocket and offered it to the Patriarch, while one of his brethren told his Holiness, in Greek, that they had come to invite him to attend the Œcumenical Council, and begged him to receive the letter of invitation.

His Holiness motioned to the Abbé Testa to lay the little book down near him, and said, "Had not the *Giornale di Roma* published the letter whereby his Holiness summons us to Rome to a Council, which he calls œcumenical, and had we not thus learned the object and contents of the letter, and also the principles of his Holiness, we should have received a communication from the Patriarch of old Rome with the utmost pleasure, in hope of finding some change in his mode of thinking. As, however, this invitation is in the journals, and as his Holiness has proclaimed views in direct opposition to the principles of the orthodox Churches of the East, we declare to you,

Reverend Fathers, with grief and at the same time with sincerity, that we cannot receive either such an invitation or such a letter, which only assert principles opposed to the spirit of the Gospel and to the declarations of the Œcumenical Councils and of the Holy Fathers."

The Patriarch proceeded to refer to the Pope's former advances, and delicately hinted that when they had objected that he held principles which were to be regretted, his reply showed that he was so much pained that it was better not to put him to grief a second time. "In short, we look for the true settlement of the question to history. Ten centuries ago there was one Church, confessing the same faith in East and West, in old Rome and new Rome. Let us go back for that period, and let us see who has added and taken away. Let us suppress innovations, if such there are, and then shall we imperceptibly find ourselves at that point of Catholic orthodoxy from which Rome was pleased gradually to diverge in the earlier centuries, ever widening the gulf of separation more and more by new dogmas and definitions which depart from the holy traditions."

The Abbé Testa asked what principles his Holiness spoke of.

"Without entering into minute points," replied the Patriarch, "we can never admit that wherever the Church of our Saviour extends upon earth any Chief Bishop exists in the midst of her except our Lord, or that there is a Patriarch who is infallible whenever he speaks *ex cathedrâ*, who is exalted above the Œcumenical Councils, to which alone infallibility attaches, seeing that they always held to holy scripture and apostolic tradition."

The Abbé referred to the Council of Florence, and received a full and courteous answer. The Patriarch at last said, "If you would see that union realized which we all desire, place yourselves on the ground of history and of the General Councils; or, if that is too hard upon you, let us all pray to God for peace to the world and prosperity and union to the Church. For the moment, we declare, with pain, that this invitation is fruitless and this circular of no effect."

The four Latins urged that prayer alone did not suffice; if one was sick we not only prayed but employed means of cure. "When the sickness is spiritual," replied the Patriarch, "the Lord alone knows who is the sick man, how he suffers, what is the root of the malady, and what the real cure. I say

again there is urgent necessity for ceaseless prayer to the Lord of the whole earth, that He may guide all to conclusions well pleasing to God."

The Patriarch then directed the Vicar-General to hand back the little book, and the four abbés took their leave, accompanied to the stair by the Vicar-General. ^[108]

Speaking of this interview, the *Stimmen aus Maria Laach* said, "Neither by his words nor his deeds did the Patriarch manifest polish, theological science, or ecclesiastical education." ^[109]

The invitation was rejected by the Metropolitan of Ephesus, and the Bishops of Varna and Thessalonica. The Metropolitan of Chalcedon wrote upon it *Epistrophe*—"Be converted"—and returned it. The Patriarch of Antioch sent the letter back, and his ten bishops did the same. So also the orthodox Greek Patriarch of Jerusalem and his bishops (*Friedberg*, p. 70). The Bishop of Thessalonica assigned four reasons, the last of which called forth a laboured reply from the Jesuits of Laach. "The Pope is a king," said the Oriental, "and wields the sword, which is contrary to the gospel." The reply was that the existence of the small but heroic army of the Pope was not due so much to any will of his as to the nature of his office as chief shepherd of the universal Church. The army and the temporal power, "without which this office cannot exist," were manifestly necessary. But then the "schismatical bishop" asks if bearing the sword is not contrary to the gospel. No; for in the very words of the gospel Christ allowed the apostles to bear two swords.

Having reached this practical point in the teaching of Boniface VIII, the writer goes on to show that Peter was not told to cast his sword away, but only to put it up into the sheath; which clearly meant that he was to bear it. If he was reproved for using it, that was because, though he had asked permission to do so, he had not yet received it; for, in fact, at that point of time, the supreme power promised to Peter had not been actually bestowed upon him. But seeing that he was told to keep the sword, are we to suppose that when he did become ruler, he and his successors for all time were to keep it hanging at their sides, as a useless weight? Certainly not; "he beareth not the sword in vain." The writer would probably have called any one an infidel who expected a literal fulfilment of the words "all they that take the sword shall perish with the sword."

In reviewing the reception given in the East to the Bull, consolation was drawn from the fact that the Armenian Patriarch in Constantinople had raised the brief to his forehead. But the Catholikos of the same Church in the See of Etschmiazin rejected it with decision. The ill-success of these overtures displeased the "good Press." Pius IX had been flattered into the belief that he had in great measure "restored" the ascendancy of the Pontiff over the East. Even Archbishop Manning had said enough in print to show that he came back from Rome in 1867 with some such idea, and prelates of more experience had done the same.

Representations as to the readiness of Protestants to submit, had led to the letter to Protestants. Bishop Martin of Paderborn had strong hopes of those in Germany, and set store by some odd letters, said to be from Protestant clergymen, which, however, seem to be either spurious, or from men not likely to lead anybody.^[110] Archbishop Manning, after several sentences coloured by a pontifical imagination, had said, "The Council of Trent fixed the epoch after which Protestantism never spread. The next General Council will probably date the period of its dissolution."^[111]

Between the date of the Bull of Convocation and that of the invitation to the Orientals, the Pope performed two journeys to the Alban Hills, which were celebrated by Court journalists. At Rocca di Papa, where Hannibal is said to have pitched his tents, the little army of his Holiness was, after modern usage, encamped. The Pontiff went on purpose across the Campagna and up the hills, passed through the ranks of his defenders, and himself celebrated Mass for their benefit. When his next birthday was celebrated, the zouaves made a special display in the Piazza of St. Peter's, of which the *Civiltà* gives a long but lively description. The last formation mentioned is to us new in military evolutions. The zouaves "formed so as to make the letters composing the august name Pius IX."^[112]

Ever since 1860 the preaching of "taking up the cross," of the glory of "dying for religion," and of the pure, bright martyrdom of falling on the field for St. Peter, had been rather heavy work. Now the gleam of victory at Mentana lighted up the future. Vistas long and luminous led the eye of the fighting sons of Loyola away to other scenes, where John VIII as Admiral, or John X as General, or Pius V rejoicing over Lepanto, with other martial glories of the Papacy, paled before what the Virgin and St. Michael were

about to bring to pass. Loud and ringing sounded forth to the faithful the call to the crusade of St. Peter. The youth of the Catholic world were assured that not the fall of Richmond nor the capture of Sebastopol, not Solferino nor Sadowa, had moved human society as did the tidings from Mentana. Stories true and often very touching were mixed with fables and with ecstasies.

The tales were those of youths from the noblest houses and from the lowliest cots. The young Duke de Blacas "dedicated his sword to the tomb of St. Peter, as his forefathers dedicated theirs to the tomb of Christ." In his death youths are to see the martyr palm for which it is noble to pant, and mothers are to see a privilege which they might well seek in prayer. Peter Jong, a poor Dutch lad, only son of his mother, a widow, who gave him up rejoicing as if God had granted her great grace, fell, it is said, after having slain fourteen Italians. He receives this tribute: "For St. Peter he inflicted many just deaths; for St. Peter he worthily met his own." It is told how the King of Holland keeps Jong's photograph in his portfolio, and shows it to other intending crusaders as an encouragement. Another Dutch youth writes: "Mamma, blessed is he who sheds the last drop of his blood. The martyrs of all the centuries descend to meet him and to conduct him to heaven." This, though Protestants may not know it, is spiritual warfare! for "to defend the Church of Christ is a spiritual object." One proof constantly alleged that bayonet and ball used for St. Peter are to re-establish truth and righteousness is, "This is the victory that overcometh the world, even our faith."

The young Duke de Blacas, not having been in action, seemed in dying to think that he should not escape purgatory. Care, however, is taken, in a studiously written biography of a Goldoni who also died before battle, to show that in point of martyrdom, as to the old crusaders, no difference was made by St. Bernard and St. Catherine of Siena between those who died in battle and those who died in the service. Also, that no difference had been made between these two classes of the crusaders of St. Peter by Pius IX. He had comforted a father who regretted that his son had not fallen in battle, by telling him that he had "the supreme" consolation, because the son had died in the service of the Holy See. And he had, in his solemn Allocution, compared both classes alike to the martyred Maccabees. The father of Goldoni, pictured as a devout and humane physician, is represented as often

putting up the prayer for his only son, "Oh that God would inspire him to take up the cross!" Young Goldoni was a diligent reader of the *Unità Cattolica* and the *Civiltà*, from which "sources of religious and of pure intellectual culture he drew a generous and daring spirit." Though he died unhappily before battle, his biographer sees him seated among the celestial martyrs, between the Duke de Blacas and the Count Zileri de Verme, with whom do rejoice and glory others who died at a distance from the fight. When Goldoni received his "call" to the crusade, he started in haste. "It seemed as if the Spirit of God carried him." The Archbishop of Modena specially blessed "our young crusader." He then received the Sacrament, and so "heart to heart with Jesus Christ consecrated his life to Holy Church." Moreover, in parting, "the young cavalier of Jesus Christ put upon his bosom, as if a breastplate, an image of Mary." The night before leaving home he, "in the manner of the old crusaders," knelt at his father's knee and asked his blessing. While the father "shed upon him the holy water and the prayer," Antonio burst into weeping.

Arrived in Rome, Goldoni sought a Jesuit to "govern his soul." The Jesuit made allusion to the dangers of his new life. "I have made up my mind to be a martyr for the Holy See," replied Goldoni. "The Holy Father has declared the temporal power necessary to the spiritual. Therefore, fighting and dying for the temporal power, I should indirectly be a martyr for our holy religion." The Jesuit was overcome at hearing these generous sentiments from a youth so superior. Two days after, the Jesuit and Goldoni met "in the tribunal of penitence."

Goldoni soon caught a fever, and in the hospital often confessed. On the Feast of St. John Berchmans^[113] he declared that he had obtained from the saint the grace to be with him in Paradise on the day of the Assumption of the Virgin. He reiterated that he should on the day of the Assumption go to heaven to see the Madonna and St. John Berchmans. His good father, called from Modena, arrived in time to bless and pray for his departing Antonio. At the last moment he left him, for it would seem that those around thought that the presence of the earthly father would come between him and the heavenly Father. So he lay, with his lustrous eyes fixed on heaven, as if, says the chaplain, "he was awaiting the appearance of his John Berchmans, who was to present him at the throne of the great Virgin." At seven o'clock on the morning of the Assumption he passed away.

FOOTNOTES:

[104] *Acta*, p. 6.

[105] Archbishop Manning gave reasons for looking upon the motive here assigned as "a transparent error."

[106] Serie VII. vol iii. p. 264.

[107] Serie VII. vol. iii. pp. 259, 260.

[108] *Friedberg Aktenstücke*, pp. 250-53.

[109] *Neue Folge, Erstes Heft*, pp. 72, 73.

[110] These productions are published by Friedrich—*Tagebuch*, p. 453 ff.

[111] *The Centenary of St. Peter, and the General Council*, p. 90.

[112] *Civiltá*, Serie VII. vol. v. p. 234.

[113] Technically, Berchmans seems to be only a beatified, not a saint.

CHAPTER IV

Princes, Ministers, and their Confessors—Montalembert's part in the Revival—His Posthumous Work on Spain—Indignation against the New Assumptions—Debate of Clergy in Paris on the Lawfulness of Absolving a Liberal Prince or Minister—Wrath at Rome—True Doctrines taught to Darboy and his Clergy.

IN proportion as this Popery of physical force came into view, did the mental stress of Catholics who had put their faith in finer forces increase.

Chateaubriand, who played a brilliant part in the Catholic reaction which followed the great French Revolution, especially in that phase of the movement which aimed at linking together, in the imagination, Rome and ideas and hopes now dear to mankind, left a work, at his death, which he called *Memoirs from Beyond the Grave—Memoires d'outre Tombe*. Montalembert, who played a still more brilliant part in the Catholic reaction which followed the Revolution of 1830, also left behind him a work, to appear after his death. In that work we can trace the pains of a

representative mind, showing what must have been those of multitudes at the time of which we now write.

Montalembert saw, in "the absolutist politics, the retrospective fanaticism, the embittered hostility to all modern ideas and institutions, flaunted everywhere by the religious press,"^[114] not only a blot on the cause, which had been his life-passion—a passion of feminine flame but of masculine vigour—but also a personal wound. It made his past look like a well-played hypocrisy. He had enthusiastically and victoriously argued for Catholicism under plea of liberty. "I neither can nor will," he cries, "keep silence, as to the monstrous articles published this very year (1868) by the *Civiltà Cattolica* against liberty in general, and precisely against those Liberal Catholics who, like me, have had the *naïveté* in the Parliamentary tribune to assert the rights of the Jesuits, and cause them to triumph in the name of liberty."^[115]

On the second anniversary of that mysterious Thursday in February 1848, when King Louis Philippe, of the Tuileries, suddenly changed into Mr. Smith in a street cab on the way to exile, Montalembert and Thiers pleaded in the National Assembly for "freedom of instruction" on behalf of the Jesuits. "It was only," says our orator, "in the name of liberty, of modern constitutions, of modern liberty, of the liberty of conscience, of the Press, and of the tribune, that we made the claim." He adds that the victory was won only by Thiers brandishing the text of the Republican constitution in the face of the furious Mountain, a constitution proclaiming equal freedom of worship and association to all. The italics are his own—

"We were all wrong, it is clear. In sound theology M. Renan alone was right—he and the like of him who maintained that Catholicism, and above all, the Jesuits, were absolutely incompatible with liberty. Only—we ought to have been told it *then*. It was *then*, and not now, that they ought to have taught us that liberty was a *plague*, instead of taking advantage of it, and that by our help, in order, twenty years later, to come insulting and repudiating both it and us, at one and the same time.

I have long passed the age of disappointments and passionate emotions, but I declare on reading these bare-faced palinodes I have reddened to the white of my eyes, and shivered to the ends of my nails.

I am no longer child enough to complain of the inconsistencies of men in general, or of Jesuits in particular, but I loudly say that this tone of the puppy and the pedant (*ce ton de faquin et de pédagogue*), employed towards old defenders, all of whom are not dead, and in respect of old struggles, which may be renewed to-morrow, does not become either monks or reputable men. It may be perfectly orthodox. In matters of theology I am no judge, but I think I am a judge in a matter of honour and decency; and I declare it is perfectly indecent."

We give but one more extract from this unconscious palinode of the high-souled Montalembert, who could not even then see that the Liberal Catholicism of his ideal was a generous phantasy, irreconcilable with the Popery of Rome, as much so as was his beloved parliamentary system in politics with the Second Empire. No more could he see that Pope and Jesuit were true to themselves in urging their old and fixed principles, and had been equally true to themselves in using instruments like him so long as they struck or stayed their hand at "the beck of the priest," and in disowning them so soon as they set up to keep a conscience for themselves, "as if the rod should shake itself against them that lift it up." He and his friend Lacordaire carried to Rome the large ideas of a great people, and bathed the quaint figures of the Curia, and the quaint objects of the city, in the tropical light of their own genius, just as Lamartine had done with the withered remnants of the East. After such pictures as Montalembert had drawn in his books, and his speeches, of his ideal Catholic Church, it must have been mortifying to have, in age and sickness, to write as follows—

"Certainly, a strange way has been invented of serving religion, of making the modern world accept, comprehend, and love it. One might say that they treat the Church like one of those wild beasts that are carried about in menageries. Look at her, they seem to say, and understand what she means, and what is her real nature! To-day, she is in a cage, tamed and broken in, by force of circumstances. She can do no harm for the present; but understand that she has paws and tusks, and if ever she is let loose you will be made to know it" (p. 641).

As he wrote this sad passage, in all probability there would rise before his imagination one of the most memorable scenes in the life of any orator.

When glorifying the return of the Pope to Rome, restored by French force, and deprecating any attempt at a conflict with the Church, he said that from any such conflict only dishonour could result, as to a strong man would result dishonour from a combat with a woman. And then, turning upon his audience, he said, "The Church is more than a woman; the Church is a mother," with a gush and a power which produced such a scene as perhaps has hardly ever been witnessed in any parliamentary assembly. And both ideals were quite sincere. The Church of Montalembert's imagination was a mother; the Church of the *Civiltà Cattolica* is a dam, holding to her young while they continue in sheer dependence, treating them as strangers when they can take care of themselves. His Church is the dream of an exceptional few, the Church of the *Civiltà* is the strong reality.

The articles which called forth this protestation of Montalembert, were among the most curious even of the *Civiltà*. They dealt with France—Paris and Darboy. On February 5, 1868, the Archbishop of Paris held a conference of his clergy in the Church of Saint Rocque, and there argued the following case of conscience. By some exceptional feat of the worst of all evil genii, Publicity, the discussion, and its result, were reported in the *Patrie*; and this indiscretion caused the world for once to gain a real peep into the consultations in the judges' chambers, behind the *internal tribunal*.

"A man engaged in politics," says the case of conscience, "declares to his confessor that he has no intention of renouncing the doctrines which prevail among modern nations, the principal points of which are, liberty of worship, liberty of the Press, and the action of the State in mixed affairs. The confessor asks if he is to grant absolution to a penitent in this state of mind, or to deny it."—*Civiltà*, VII. ii. 151.

The reasoning ascribed to the supposed penitent is the following—

You, as my confessor, have not the right to lay on me as you would on a private man, the duty of devoting a certain day, and of adopting certain means for the conversion of this or that person. Doubtless, I ought, by word and example, to lay myself out for the conversion and edification of my neighbour; but it rests with me as a free agent to select the means and to discern the opportunity. In like manner, you cannot order me as politician, legislator, or prince, to take, this very

day, this or that measure, against blasphemy for example, or Sunday labour, or the licence of the Press. Lay it upon me to attend to the propagation of righteousness and truth; but leave it to me to judge of the opportunity, and to choose the means. And, I pray you, consider the grounds of my opinions. In the first place, whenever we speak or act, we have on one side the truth and right, which certainly ought to be respected; but on the other side we have fitness and opportunity, of which also we must take account, if we would speak to good purpose. Now, in this respect, I know better than any other what I can do, and what I cannot, in my family, or in a political assembly, or in the nation. In the next place, perhaps you do not see the absurdity which would follow the opposite opinion. It would follow that you had the right to decide and *regulate all my actions*, because into every one of them *morality may enter*; and every one of them may be connected with religion. You would be able to dictate my will, to tell me what vote I ought to give, to determine whether I am to declare peace or war. Mere trifles, you say. But what, in that case, would temporal power be, but a passive instrument of the spiritual power, and a mere machine? These are the reasons why I stand to my old notions on this point, and have no thought of changing them for others.

In this case, as thus put, and in the ensuing discussion, we see the confessor of a king or minister preparing to meet his "penitent." In the language of Montalembert, we see the feeling of a politician in facing the "tribunal," under an Ultramontane confessor; and in the papers of the *Civiltà* we see the glaring eye of Rome searching out every movement of the one and the other.

The case being thus stated, both as to its substance and as to the reasoning of the supposed penitent, the discussion began. Abbé Michaud, of the Madeleine, maintained that the confessor ought to grant absolution. Abbé G——, a Dominican, maintained that he ought not to do so. Archbishop Darboy now and then interfered, to moderate the opposition of the latter. The Abbé Falcimagne interrupted the Archbishop, declaring that he would deny the absolution, for the supposed penitent was unworthy of it. Finally, the Abbé Hamon, Curé of Saint Sulpice, read out four conclusions, which were fully accepted by the Archbishop, and which allowed the confessor to grant the absolution. The *Opinion Nationale* and other journals said that this

conclusion showed to how little the condemnations of the Syllabus amounted.

Both the conclusion and the grounds on which it was rested gave huge offence at Rome. The *Civiltà* was not content with less than five long articles, making ninety octavo pages. It is in these that the things are set forth which fired the embers of Montalembert's true love of liberty, and damped his dying hope of ever seeing his ideal Catholicism and actual Popery seated on the same throne. We need not quote the passages which are echoed in his indignant repudiation; but we give a few others, which show that, strongly as we have seen him put the case, he was not guilty of any injustice. The Abbé Michaud said that the liberty condemned was not moderate liberty, but unbounded liberty.^[116] The *Civiltà* took it for granted that he could not have been sincere.

"Similar to liberty of worship, is that worst of liberties, never sufficiently execrated or abhorred—liberty of the Press, which some dare to invoke and promote with so much clamour." It continues—"In respect of religion and the Press, it is idle to distinguish between two sorts of liberty, one wise and the other unbridled, as the Abbé did. In such matters, all liberty is a delirium and a pestilence. There is no healthy man's delirium; all delirium is that of a sick man. There is no praiseworthy and harmless plague; every plague is deadly.... Hence, it is never a decent thing to introduce such liberty into a civil community. It is only permissible to tolerate it in certain cases, in the same way that a pest is tolerated" (p. 160).

The Abbé Michaud had said that, in mixed questions, the State interfered by *the same right as the Church*! Such an utterance savoured of our bad times. It was infected with the idea of the independence of the civil power in regard to the ecclesiastical. This idea was born with Protestantism; but it has been received by some Catholics, sincere, it is true, though not discerning.

It is true that the temporal prince is invested with supreme power and authority, in his order; but from this it follows only that he is not subject to any other earthly power. It does not follow that his authority, sovereign in its order, cannot be subject and is not subject to another

authority of a more perfect order; that is, the spiritual.... It is necessary that whoever holds power, even sovereign, for temporal rule shall be regulated by the Roman Pontiff (pp. 161-63).

So far for the independence of the State. Now as to its right of intervention in mixed questions, and above all, as to the defining of limits between the two powers—

The State ought first to learn, from the Church, what are mixed questions, that it may not take spiritual matters for mixed ones, confounding both the one and the other with those which are called temporal ones. Each separate kind of corn must be tied up into a separate sheaf. The State ought to arrange with the Church every time it puts a hand to what is temporal in these mixed matters, in order that it may not violate what is spiritual.

The *Civiltá* quotes M. Renan, where he shows how the Syllabus has proved his assertion of 1848. "The Syllabus is a luminous demonstration of the proposition I maintained, that Catholicism and liberty are two things incompatible." The *Civiltá* adds that, in order to know this fact, M. Renan did not need to be a profound theologian, but only needed to read the works of any author sincerely Catholic. It points out that the Liberal Catholics fancy that the Popes, in condemning liberty of worship and of the Press, only spoke of part of the subject, that is, of some sorts of liberty; and that it was, therefore, some liberty, not all, that they called madness, poison, and pestilence. But the Popes, asserts the *Civiltá*, on the contrary, thought that all liberty of worship and of the Press bore those characters (p. 314).

The Abbé Falcimagne insisted (p. 316) that the supposed penitent should be at once treated as a sick man, and as being not of sound reason—

He comes to submit himself to my tribunal, and at the same time rejects my authority. To see how far I can yield to his spiritual infirmity I must see how far the authority of the confessor over the penitent extends. On this point, I shall cite the words of Domenico Soto, who, after hearing the confession of Charles V, said, "So far, you have confessed the sins of Charles; now confess those of the Emperor." Soto at least thought that the actions of his penitent, although they

belonged to the political order, nevertheless came within the cognizance of his tribunal. Our patient is of a diametrically opposite opinion. He will not recognize in me the right of judging him in what touches doctrine and morals indirectly. But I hold that, as confessor, I have a right to judge my penitent, be he a legislator, or even a prelate of the Church, in things pertaining to dogmas and morals, and to prohibit what is contrary to either, whether directly or indirectly. So I can command him to cease from holding presumptuous tenets.

The Archbishop then asked the Abbé Falcimagne, requesting him to give a direct answer, if he had a right to order his penitent to leave a hundred thousand francs in his will to be distributed among the poor. To this the Abbé Falcimagne made no reply. He said the point now was to know whether the penitent, who would not renounce his modern ideas as to liberty, was or was not guilty of presumption, *temerarius*. "Guilty of presumption," replied the Archbishop, "is that confessor who lays his hands on temporal things, assessing what he has no right to assess." "But," retorted Falcimagne, "I have the right to judge my penitent as to his disposition; and if he comes to me, and says that he wishes to maintain his principles, and declares that I have not a right to judge him, I tell him that his pretensions are illegitimate; that his reason is disordered by modern principles; and that, if he will not renounce those principles, I cannot absolve him."

The *Civiltà* thinks that, at this point, they came to the heart of the matter. On one side they began to allege that the confessor could not require his penitent to renounce his opinions unless they were heretical, or were opinions condemned by the Church. A very false doctrine! exclaims the oracle; for, in addition to heretical opinions, a true Catholic must renounce many others—those, for instance, which are proximate to heresy; those which are presumptuous, scandalous, and all indeed that are offensive to pious ears. The teaching power of our Church is not merely infallible, and not only does it define with infallibility when defining articles of faith, but also when defining any truth, scientific or practical, political or historical, which is connected, in any manner whatever, with dogma and morals; and whoever would be a sincere Catholic must conform not only in respectful silence, but with interior assent of the intellect (p. 318).

The *Civiltà* proceeds to quote the opinions of the "good journals" of Italy, laying stress on the point that the opinions held by the supposed penitent could not be probable opinions—being in fact those which were already condemned in the Syllabus. It proceeds with great vigour to maintain that the Syllabus was the decree, not only of the Pope, but also of the five hundred bishops who had adhered to it last year (1867). Of these, the *Civiltà* correctly says that Darboy himself was one. It next contributes an important item of information, which completes the evidence of the perfect and formal ecclesiastical authority of all the condemnations of the Syllabus, on either theory of the constitution of the Church, the Papal or the Episcopal. After the address of the five hundred bishops present in Rome, all the absent ones, asserts the *Civiltà*, sent in their adhesion by letter, which they hastened to forward to this Roman chair, where, with the living Pontiff, resides the "spirit of truth" (p. 324). Hence it draws the inference, which is a just conclusion, if we may say so, in the face of a hundred English writers who, following an old tradition, when reviewing what Dr. Newman put upon paper on this subject, called it logical.

"This penitent (says the great organ of the Vatican), openly opposes the teaching power of the Church, whether that teaching power is considered as being exercised by the Bishop of Rome alone, or as being exercised by him in conjunction with all the bishops of Christendom. That teaching power has pronounced in the one mode and in the other, and has proscribed those opinions. In both ways has it condemned opinions, not imaginary or belonging to bygone times, but opinions which to-day, and under our eye, are pertinaciously maintained and reduced to practice" (p. 324).

Returning with intense earnestness to this point, it says (p. 543)—

The universal Bishop has spoken alone, and further, he has spoken conjointly with the bishops of the particular Churches. To contradict after this, is in effect to separate oneself from the whole of the pastors, and from him who is supreme among them all.

This is not enough. Some pages later, hesitation, on this question so vital to practical government, is again censured, in replying to the plea that the

supposed penitent might be worthy of absolution on the ground of invincible ignorance—

We shall never tell him that ignorance consists in this, namely, that after he has read the Encyclical and the Syllabus, and re-read them, he could not understand that the modern opinions, which he retained, have been truly condemned, or that they have been condemned rightfully. This is not ignorance. It is an error and a pertinacity proper to a man not far removed from heresy. In this case, we once more repeat, confession is not the thing wanted. The first elements of the faith, and of the Catholic profession, have to be set straight in this man's head (p. 547).

It would almost seem as if Montalembert was personally pointed at in the two later articles. It is not a little curious to learn here that his bosom friend, Lacordaire, long the charm of the French pulpit, was called to Rome in 1850 to answer for his doctrine. The points on which he had to set himself right with Rome were anything but, in our sense, religious ones: (1) The coercive power of the Church; (2) The origin of sovereignty; and (3) The temporal power of the Pope. He did set himself right. Father Jandel, the General of the Dominicans, exulting over his answer on the question touching the coercive power, says, "It avenges his memory from the suspicion of complicity with certain opinions which some Catholics would fain shelter under the authority of his name."^[117] Avenges his memory! It proves that whatever Lacordaire believed, he submitted to write as his own the doctrine of Rome, that the Church has power to "employ external force," and to inflict bodily pains. And so France sees the memory of her Bossuet held up to reproach, and the memory of her Lacordaire yoked by the Dominican General to his beloved Inquisition. She sees her Montalembert driven from public life, assailed, yea, reviled, while living, preparatory to being insulted when dead.

Any one acquainted with the high spirit and immense emotional force of Montalembert, can imagine his reddening and shivering at finding the following among the citations from Renan to prove that the sceptic understood the doctrine of "Catholicism" better than its professed friends in France—

The remedy applied by the Church of Rome to the liberty of worship and liberty of thought is the Inquisition. The Councils have established and approved the Inquisition, the Fathers and bishops have counselled and practised it. The Inquisition is the logical outgrowth of the whole orthodox system, and the quintessence of the spirit of the Church. [\[118\]](#)

Strongly as our sympathies are with Montalembert and Darboy, we feel that, so long as the Jesuits have to prove that persecution is the doctrine and has been the practice of the Church, they have it all their own way against the Liberal Catholics, till they creep up to the early ages.

FOOTNOTES:

[\[114\]](#) *L'Espagne et la Liberté*. Bibliothèque Universelle de Lausanne, 1876, p. 626.

[\[115\]](#) Ibid. p. 635.

[\[116\]](#) *Civiltà Cattolica*, VII, ii. p. 150 ff.

[\[117\]](#) Serie VII. vol. iii. p. 65.

[\[118\]](#) Serie VII. vol. iii. p. 56.

CHAPTER V

What is to be the Work of the Council—Fears caused by Grandiose Projects—*Reform of the Church in Head and Members*—Statesmen evince Concern.

CURIOSITY as to what the particular work of the Council was to be grew all the more rapidly, because no authoritative indication of it was given. Were the Jesuit tenets of Papal authority and Papal infallibility to be raised into dogmas? Was the Pope to make another offering to the Virgin by proclaiming as an article of faith, that her body had been carried to heaven? By the repetition of such questions, tens of millions partially awoke to the consciousness that they belonged to a religion which knew not what might

be its standard of faith next year, much less did it know to what particular tenets it might be committed.

Then, as to the position of the bishops, were they to be only councillors, or also judges? If the latter, they would first hear the doctors, as did their predecessors at Trent; would next deliberate, and finally would formulate decrees, which decrees without alteration, would be confirmed by the Pontiff. But if the bishops were no longer judges of the faith, but simply councillors of the one judge, their place would be to argue points, as the doctors had done at Trent, while the decree should be that of the Pope, and they would merely assent.

Again, as to the composition of the Council, were the bishops *in partibus* to be members? Was Darboy, whose diocese counted two millions of souls, to be balanced by some Court creature with a title from Sardis or Ecbatana? or was Schwarzenberg, with Bohemia at his back, to be balanced by an instrument of the Curia, who, independently of his patrons, had not a month's bread to call his own? Were those who represented ancient and numerous churches, and who were as far free agents as men under Rome can be, to be voted against, man for man, by vicars apostolic, without churches, or with only new and ignorant ones—men depending on the Propaganda even for their travelling expenses and board?

Finally, as to the mode of procedure, were the bishops, as they did at Trent, to agree upon their own rules of procedure, to evolve by mutual consultation the questions demanding solution, and to discuss them till all were ready to vote? Or could there be truth in the suspicion that everything was being cut and dried beforehand, and that the Court would impose ready-made rules of procedure, and allow no one but itself to introduce any subject for discussion?

As to the burning question of moral unanimity, would projected formulae be passed from hand to hand, as was done at Trent, examined in meetings of groups, retouched, and, if need be, remoulded till a form was arrived at in which all but two or three acquiesced? Or was it possible that formulae for new articles in a creed prepared behind the backs of the bishops would be imposed on millions and for ever, by a majority made up with the help of the bishops *in partibus*?

All this time, the nine determined men forming the secret Directing Congregation, were coolly looking at the same questions, and, step by step, as we shall see, when events bring out the secret plans, were settling those questions in the sense most dreaded, and going to lengths not, we believe, suggested in any of the anticipatory expressions of fear.

Earnest theologians who had not been converted by the infallibilist propaganda of recent years, were thrown into consternation. Some bishops, able administrators, saw no essential difference between Papal infallibility as a doctrine taught in many of the schools, and believed by great numbers if rejected by others perhaps greater, and the same opinion as an article of faith. In such a view, the men of thought saw the superficial glance of "practical men," as they call themselves, who never discover anything but by feeling it, and who live by acting out to-day what others thought out in time gone by.

Little difference! thought the men of foresight. We are going to be compelled to alter our catechisms and creed in the face of the Protestants; going to be compelled to teach the opposite of what we have always taught; going to part with immemorial safeguards against altering the conditions of salvation, or further narrowing the terms of membership in the Church—to part with the necessity before every such change of the open and formal process of a General Council! The proposed dogma is unlike any now in the creed, in the all-important point of being self-multiplying. If it is adopted, we shall be liable to have eternal obligations laid upon our souls, without a week's warning.

Beside fears like these, others perhaps more general were those of quiet Catholics wishing to live in peace and serve their respective nations loyally, who being conscious that even now they were liable to suspicion of a divided allegiance, feared that if the Jesuit tenets became the creed, their political relations would be less comfortable, and their prospects of office not so good. "At the Vatican," says *Ce qui se Passe au Concile*, speaking of the mystery and the uneasiness of this moment; "At the Vatican they spoke in low tones of grandiose projects that were to transform the world, and by exalting Pius IX were to confound the enemies of the Church." It was those grandiose projects which made good citizens fear for their own future political standing.

Even feelings of this sort, as represented by *Holtgreven*, ought to touch us, being those of silent millions awaiting in the dark the sentence of their lords in Council. He says—

When we left the gymnasium, soon after the year 1860, there was no pupil who could say that, even by hint, he had been taught there that the Pope was infallible by himself, and without the consent of the Church. The answer 128 in Martin's *Handbook of Religion* is still too fresh in the memory of all; an answer which affirms that the grace of infallibility belongs only to the collective body of bishops, as successors of the Apostles.... Persons in office and out of it, clergy, laity, and exalted Church dignitaries, agreed that the pretensions of the Pope to power over kings and nations, in matters of allegiance and such like, were not part of their religion, but arose out of the state of the civil laws in the middle ages.... Thus does the Catholic teacher teach in his lectures on Church history, thus does the student learn; and this view, which captivates the youth, putting his German heart at rest, and rejoicing it, still gives him repose and removes every scruple when, as a man, he lifts up the hand to swear allegiance to the laws of the fatherland. [\[119\]](#)

Those of the French clergy whose education had been carried beyond the usual round of Latin, logic, and manners, began to manifest misgivings as to the effect of the impending change on men of enlarged culture. It was in March, 1869, that the *Unità* published the Pope's famous letter to the Archbishop of Paris, described in a former chapter. The Paris correspondent of that journal, commenting upon it, calls the dignitary who, in the eye of the world, would be his metropolitan and ordinary, "a pretty fellow"—*bel soggetto*—whom no one would any longer look upon as a candidate for the rank of Cardinal. In the same letter he says that war against Prussia must break out, whether the occasion be the Belgian railways, or complaints that Prussia violates the treaty of Prague.

Fears as to coming changes, in their effect on men of culture, were felt still more deeply in Germany, where the general education of the clergy was higher than elsewhere. Both the German clergy and the nobler of the French were unprepared for what they began, in secret, to call Pius-cult, as it appeared in the language employed by the favoured organs. One word in

the prayer for the Pope, recommended by the *Unitá*, on March 12, grated not on Protestant ears only. The *Ave Maria* was for a week to be followed by these petitions: "Eternal Father, defend Pius IX! Eternal Word, assist Pius IX! Holy Spirit, glorify Pius IX!"

Perhaps none of the publications now flowing from the Press excited greater attention than one which was announced as being from the pen of one of the best known of the Austrian clergy. It was entitled *The Reform of the Romish Church in Head and Members*. Not only does this author oppose the attempt to restore laws enforcing unity of creed, but he actually does so on principle, as well as on the ground of expediency. The longing of Rome for the subjection of the States of the world, and for power again to employ the arm of the State in her service, is, he contends, a delusion which will lead only to her overthrow. Moreover, he lays down the startling principle that the Church has nothing to ask but liberty to act in her own sphere *like any private society*. This last position is utterly irreconcilable with all the ordinary theories. He holds that anything granted to the Church by the State beyond what is given to any other private society is an evil, and also that every case, in the past, wherein Church and State have joined hands in order to help one another to gain their respective ends, has turned out ill for both of them. In modern times his ideal of the normal relation of Church and State is that existing in America, which he imagines works favourably for Romanism.

The author of *Reform in Head and Members* looks on the system of lower seminaries for boys and higher ones for young men, in which the future clergy pass their youth separated from all society, leading an unreal life, pursuing narrow studies and without knowledge of men, or the possibility of acquiring any breadth of mind, as producing only a race of priests unfit to lead an educated age. He declares that in France, Italy, and Spain the system of close seminaries has destroyed theological science among Catholics. He manifests the ordinary contempt of German scholars for the showy and wordy pupils of the Roman seminaries, and contends that Catholic theology does not bear any comparison, as to talent and learning, with Protestant theology in any country except Germany, where the priests have to study at the universities. He further believes that the lamentable moral condition of the Romish clergy is not a little to be ascribed to the seclusion and unreality in which their youth is passed (p. 161).

The young priests in whose hands the guidance of the people is to be placed, squander the fair and precious years of youth in enclosures shut off from the world, and out of them do they go forth into life without experience of men or of the world. Then does the world, with all its charms, allurements, delights, and seductions, rush in upon those narrow, inexperienced young clergymen; and alas! only too many of them sink in a sea which to them is new, strange, and untried.

He demands a thorough reform of this system, insisting that the contempt shown by all respectable Italians for the priesthood is not to be accounted for except on the ground of this wretched system and of its wretched moral and religious results.

Another demand boldly made by this Austrian priest is for the abolition of the vows of celibacy, so far as they are either perpetual or obligatory. He would admit of vows that were both voluntary and temporary. The corrupting effects of celibacy evidently leave him no hope that it is capable of being rendered consistent with tolerable morality. He treats this institution as purely local and Romish, regarding its imposition upon the Catholic Church as a great public evil, impossible to be justified. At page 117 he says, "Upon the law of the Romish Church fall back all those moral abominations, beyond measure and beyond number, which have arisen out of it, and which will stain the Church as long as that law remains in force." When the writer approaches the subject of bureaucratic centralization, the Catholic rises against the Romanism which has fastened itself on the Churches of other nations. This system of centralization as carried out by the Curia is much too narrow legitimately to claim the name of national. Our author wants to see an end of the system. He wonders what may be the annual revenue paid into Rome from all quarters of the globe for indults, dispensations, indulgencies, remissions of sins, and the fees gained by all the inventions for what he calls selling poor parchment and bad writing very dear. He does not, like many writers when they touch this subject, break out into a passion against the huckstering of their religion, but manifests a cold contempt, feeling that the system is low and hollow.

The modern contrivance for making a bishop a tenant on a short lease is calmly exposed. Formerly, as the author points out, a bishop used to rule his own diocese; now he is no more than a delegate. He is allowed to distribute

such dispensations for the smaller sins against Church law as do not pay any money tax, but his power to do this, as also his power to perform several other of the acts essential to his office, is no longer conveyed to him with the office itself. On the contrary, for that power he is dependent upon a lease, never given for more than five years, called the *QUINQUENNIAL FACULTIES*. If at the expiration of one of these terms the Faculties are not renewed, he becomes a mere lay figure in his chair, and would be at once exposed to his clergy and people as under disgrace. By this means is he kept a perpetual pensioner on the favour of the Curia, and in addition to the periodical expiration of the ordinary lease, he is a tenant at will, liable any day to have his Faculties withdrawn by the Holy Father.

The centralizing of the government of the Church in the See of Rome, to effect which it was necessary to destroy the rights of metropolitans and to curtail the jurisdiction of bishops, is a state of things so unjustifiable and ruinous, that the well-being of the Church urgently demands its removal. This absorption of all the powers and rights of Church government is not to be justified either by pleading the necessity of preserving the unity of the Church, or by pleading the supreme hierarchical power, which belongs to the See of Rome. The very necessity of manifesting unity presupposes a number of persons entrusted with independent functions of government; and if the incumbent of the highest power of the Church strips the subordinate functionaries of all authority, he makes himself the sole seat of power in the Church.

This writer would restore worship in the mother tongue.

Statesmen began to feel concern, at least such as did not belong to the class finely laughed at by M. Veuillot, who do not think it necessary to inform themselves on "the small affairs of the Catholic Church," although speaking, legislating, and perhaps writing on matters of which those affairs form a considerable element.

Naturally such fears were sooner and more seriously felt by Roman Catholic statesmen than by Protestant ones. Though *Von Lutz*, Minister of Worship in Bavaria, spoke after the event, he tersely expressed the apprehensions felt at this time—

"The Church lays down the principle that the Pope is Prince of princes, and Lord Paramount (*Oberherr*) of all States. Do you think it possible that States will put up with that? That the State will quietly stand by while the bishop orders the parish priest to preach against the law of the land, and while he deposes him if he will not comply? Or must the State itself drive the parish priest out of his home for refusing to misuse the pulpit, against the State?"^[120]

Bishop Fessler, of St. Pölten,^[121] in a lengthy manifesto, gave a clear intimation that the infallibility of the Pope would probably be defined by the Council. This set many Catholics in Germany on preparing to combat the intention announced, and set still more on saying that as Fessler had been the first to face the German public with this intimation, his fortune was made at Rome.

Bishop Dupanloup, of Orleans, put forth his best literary power in what was called, by the *Constitutionnel*, an attempt to bring about a reconciliation between the Council and the principles of 1789.^[122] He urged that they greatly erred who looked upon the approaching Council as a menace against modern society, or as a declaration of war with progress. On the contrary, freedom, fraternity and progress, so far as they were true and good, had nothing to fear from this "senate of humanity."

Bishop Von Ketteler, of Mainz, declared that the forthcoming Council was the greatest event of our age^[123]—

At least (added this doughty pupil of the Jesuits), in the work of reconstruction; for as to destruction, certainly, there have been greater events. As God provided for the Church and the world in the century of the so-called Reformation, by means of the Council of Trent, so has He in our century, which, still sadder to say, is the century of Revolution, the century of demolition and universal destruction, inspired the High Pontiff with the supreme remedy, the convocation of the Vatican Council. The work of destruction is manifestly hasting to its end. It is time to commence the work of reconstruction, on the ancient foundation laid by Christ once for all. This is precisely the work to which the Council is called.

These words we quote from the *Civiltá*, to which the whole document seemed highly laudable.^[124] But its translation is strong. Ketteler did not use the term "reconstruction" for his German audience, but "construction." He did not say that God had inspired the Pontiff, but that the Spirit of God again assembled the General Council, the highest Court of Judgment for the Truth on earth. This last form of words had the merit of which our English tongue has within the last few years presented some examples of all but incredible skill—the merit of suggesting to a Protestant an idea that would not awaken his political fears, and yet of representing to the Jesuits of the *Civiltá* the true doctrine. The Pope himself began to take part in the controversy now gradually rising. The Abbé Belet had translated into French the work of the Jesuit Father Weninger, published in New York. The Pope wrote a brief to thank him, taking occasion at the same time harshly to censure the great Bossuet, as a bishop who, in order to flatter the civil power, contradicted his own proper opinions, and contradicted the original doctrine of the Church.^[125]

Pleasant to the military palate of Pius IX were the words of brave Colonel Allet, in a soldierly order of the day, issued in December, to his zouaves. After recounting in terse, strong terms, their services against the Garibaldians, he says—

Soldiers! all is not over. Great dangers still threaten the Church. Remember that in your regiment you stand, not merely as soldiers marching side by side; you also represent a principle before the world, the principle of the voluntary and disinterested defence of the Holy See. You are the nucleus around which will unite in the hour of danger the prayers, the succours, and the hopes of the Catholic world. Be, then, true soldiers of God. You have not merely duties, you have even a mission, and you will not fulfil it without union, discipline, moral conduct, and military instruction. A third battalion is formed. Your swelling ranks assure to you a larger part in future struggles. We shall march together to the cry of "Long Live Pius IX!"

Funereal solemnities on behalf of the fallen are proudly recorded as having been celebrated in France, England, Germany, etc.

To these military consolations were added such as a crown and a nation once great could now bestow. Queen Isabella strongly recommended from the throne, and her Cortes almost unanimously voted, that the forces of the nation, acting in alliance with the Emperor of the French, should be ready to defend the Holy See.^[126] What was more important, the King of Prussia, in reply to Ledochowsky, spoke clearly in support of the temporal power. It was also told with satisfaction how, at banquets, both at Malines and Namur, the health of the Pope was drunk before that of the King of Belgium, and how pleasantly the Nuncio gave the health of the local and subordinate sovereign after that of his master, as the Lord Paramount, had received its meed.^[127]

It is not easy for us, whose faith has always rested on the fixed standard of God's Word, to enter into all the feelings of suspense which are to be read between the lines of a lecture by Professor Menzel, then of Braunsberg, now of Bonn, printed for private circulation among his former pupils.^[128] He is teaching them the doctrine of *Church* infallibility, but not, as he had hitherto done, in the twofold confidence of persuasion and personal security. Persuasion abides, reinforced by fresh study and animated by assault. But security is gone. The consciousness that he may never more be allowed to teach this doctrine weighs upon all he utters. Before another session, should his own faith not change, that of his chair probably will. The Church which he had served, as permitting the membership of those who denied the infallibility of the Pope, had been catholic enough for him. But now, after pausing since the Reformation, she had actively resumed the process of narrowing the terms of membership by dogmatizing new shibboleths. One had been already added in his own day. Another now hung overhead, still more momentous, because it not only altered the doctrine of the Church, but altered the standard of doctrine, and was moreover self-propagating—a seed bearing fruit after its kind.

"This complete subversion of the old Catholic principle, *everywhere, always, and by all*," cries the poor Professor, "has found its most doughty champions in the Jesuits of the *Civiltà Cattolica*, with their branch at *Maria Laach*, and in the Archbishops of Malines and Westminster, Deschamps and Manning."^[129] In the struggling argument of the Teacher of this year, we cannot help hearing, by anticipation, the sighs of the excommunicated of next year; excommunicated for holding fast what he had always taught,

with the sanction of the Church, and from one of her chairs! And as the iron enters into his soul, he evidently feels it hard that an English hand should be one of the foremost in driving it home.

Professors looked from the chair on their classes not knowing what they might have to teach a twelvemonth hence. Preachers looked from the pulpit on their congregations weighted with the same uncertainty. Editors wrote that the Catholic faith was thus and thus, feeling that, perhaps, soon they must write the reverse, or else drop the pen. Heads of families were perplexed as to what they should say to their children, if compelled to believe what they and their fathers had always resented as a false accusation against their religion. Jurists wondered if they must either break with their clergy or begin a campaign for reinstating canon law over civil. Kings whose forefathers had compelled nations, by the sword, to wear the yoke of Rome, chafed to think that their religion was to be "changed over their heads." But all this time the silent arbiters of the Catholic's destiny were patiently framing the decrees. Men moved and combined to prevent new fetters from being forged for their souls next year; but link was being already noiselessly added to link, by old, cool, and resolute masters. The Emperor set to defend the Gallican liberties for the millions of France, and the Emperor set to uphold the Josephine safeguards for the millions of Austria, had no access to the subterranean forge *Antra Ætnaca* where chains and thunderbolts were on the anvil, away from the ears of men. Turnus had not less power over the island cave where the arms by which he was to fall were being tempered. But, on the other hand, the Vulcan of the Syllabus had more than one Venus at the Court of each potentate, wooing in his interests, and pleading for his will. The truth, however, was to dawn upon their subjects from behind gorgeous clouds of their beloved pomps and ceremonies.

FOOTNOTES:

[119] *Holtgreven*, pp. 4, 5.

[120] Menzel, *Jesuitenumtriebe*, p. 119.

[121] *Das Letzte und das Nächste Concil*, p. 59.

[122] *Lettre sur le futur Concile Œcuménique*.

[123] *Das Allgemeine Concil und seine Bedeutung für unsere Zeit*.

[124] Serie VII. vol. vi. p. 93.

[125] *Friedberg*, p. 487.

[126] *Civiltá*, VII. i. pp. 228-30.

[127] *Id.* 622.

[128] *Ueber das Subject der kirchlichen Unfehlbarkeit. (Als Manuscript gedruckt.)* Braunsberg: 1870.

[129] P. 7.

CHAPTER VI

Agitation in Bavaria and Germany—The Golden Rose—Fall of Isabella—The King of Bavaria obtains the Opinion of the Faculties—Döllinger—Schwarzenberg's Remonstrance.

THE proximity of Bavaria to Italy on the one hand, and to Protestant Germany and Switzerland on the other, had assisted in giving to the schools of Munich a juster appreciation of the effect to be expected in the world at large, from new additions to the dogmatic burden which Catholics must carry. For a considerable time a conflict had been silently growing up between the theology of the German schools and that in recent years imported direct from Rome by the new type of priests there trained. The catechisms—even those prepared by the early Jesuits—had been gradually altered, till first the denial of Papal infallibility disappeared, and secondly the statement of Church infallibility was so obscured as to prepare the way for further change.

Jesuit establishments had been springing up in defiance of the law. The Ultramontane Press had raged against the unity of Germany under the leadership of Prussia, writing so as to lead foreigners to believe that France had only to invade Germany and she would find the Catholics on her side. A *littérateur* named Fischer being arrested at Landeck in June, 1868, a letter was found from Count Platen, saying, "A league of the small states with France, for the common end of breaking the power of Prussia, is the duty of all." [130]

The feelings of the educated classes generally resented such attempts with indignation. We have seen how Sepp spoke of the canonization of Arbues. The painter Kaulbach executed a picture of an *auto da fe* celebrated under the eye of this new celestial patron. A priest preached against the sale of the engravings; and Kaulbach wrote a letter, which was printed in the *Cologne Gazette*, hailing such reproach as an honour, and appending a sketch of the Roman twins drinking in the milk of the she-wolf. Of his Romulus and Remus, one wore the crown of imperial France, and the other the tiara. ^[131]

German writers assert that Napoleon III induced Queen Isabella of Spain, in the spring of 1868, to pledge herself to send into Italy forty thousand men to protect the Pope, in case he should be obliged to withdraw his troops by entering on a war with Prussia. Other authorities say that it was to be in case of a war with Italy. At all events, the most select favour the Pontiff had to confer on the worthiest lady of his Church, the golden rose, was sent to her most Catholic Majesty. This distinction placed Isabella on a level with the Queen of Naples and the Empress Eugénie, the only two lambs in all his fold hitherto held worthy by Pius IX of this pontifical seal of stainless whiteness. But to the daughter of Queen Christina the golden rose proved to be the last rose of her summer. In September 1868 this elect lady, after outliving more insurrections than any sovereign in Christendom, was compelled to flee. An expression fell from the *Catholique* of Brussels on the news that the crown of Isabella was threatened, which throws light on the Ultramontane dialect: "Spain will be lost to Catholicism, lost to the cause of order in Europe, and *the last Christian government* will have disappeared from the Old World."^[132] This drew from Montalembert the remark: "To wish modern society, or any Christian born in that society and destined to live in it, to esteem the condition of Spain under Isabella II more highly than that of England under Victoria, and to wish this in the name of the Catholic Church, in the name of the party of order in Europe, is to impute to that party and to that Church the saddest of responsibilities, and the most menacing."^[133]

But all Catholic political personages were not as good Papists as Queen Isabella.

Montalembert, full of thoughts suggested by the questions rising in the Church, saw in her fall but an incident of the decay of Spain, which, again,

was but the most striking example of the condition of most Roman Catholic countries. He wrote what, as we have seen, appeared only after his death. Confessing that the reign of Isabella had lasted "too long," he traced the ruin of the country to "despotism, spiritual and temporal, absolute monarchy, and the Inquisition." After showing that both municipal and parliamentary liberties had been well developed in Spain in the days when she struggled, rose, and took the lead, he dates the beginning of her fall from the combination of Church and State, under Charles V, to work unitedly in quenching civil and religious liberty. Though no advocate of the separation of Church and State, he says, "A thousand times better the fullest separation with all its excesses, than the absorption of the State by the Church, or of the Church by the State." No better expression could have been chosen than the former of these phrases to designate the effect of the Jesuit polity of Church and State just about to be adopted by Rome.

He takes the social and political effects of the Inquisition to have been disastrous—"That monstrous institution ceased to act only when it had no more to do, when it had substituted emptiness, death, and nothingness for the life, the force, and the glory of the first nation of the middle ages, the one which we may justly call the pearl of the Catholic world." Aiming a two-edged thrust at Bonapartist legislatures, and at the character of the coming Council, he says that the "ill-omened" Charles V was the inventor "of consultative despotism," or representative absolutism, of which the Napoleons are wrongly accused of being the originators. For one who had spent his life in battling for the Papacy, but always with the hope of reconciling it to liberty, it was bitter, when death was in view, to write: "There is not in the history of the world a second example of a great country so ruined, so broken down, so fallen, without foreign conquest or civil war having materially contributed to the result, but by the sole effect of institutions of which it was the prey."[\[134\]](#)

Had the Prime Minister of Bavaria at the juncture in question been a Protestant, he would have been slower in seeing the political bearings of what was taking place. One of the three brothers of Prince Hohenlohe was a cardinal, and otherwise his means of information had been good. Besides, though Bavaria had often served the Papal cause to the hurt of Germany, it had never, like Prussia, given up its *placet* and other guards of the royal supremacy. The Prime Minister submitted questions for the formal opinion

of the two Faculties of Theology and Law, in the University of Munich, as to the effect which the definition of Papal infallibility as a dogma would have upon the relations of the civil and ecclesiastical authorities.

The Faculty of Theology, in its reply, after referring to the work of Schrader, and quoting some of his propositions, says—

Should these or similar conclusions be adopted (i.e. the conclusion of the Syllabus against freedom of religion, of the Press, etc.), it would lead to great confusion. The counter principles are so established, both in the theory and practice of all European constitutions, that anything contrary to religious equality and freedom of opinion can scarcely again obtain a footing. Were it laid upon Catholics, as a duty of conscience, to repudiate those principles, undeniably collision between their civil and ecclesiastical obligations would result, and in certain circumstances consequences would ensue, burdensome and hurtful both to the individual members of a national Church and to the collective body.^[135]

The statesmen had asked the divines what was meant by speaking *ex cathedrâ*. The Faculty replied that among those who asserted the doctrine of Papal infallibility, there were some twenty theories on the subject, none of them authoritative or generally received, and all arbitrary; "because here it is impossible to frame a theory from Scripture and tradition."^[136]

The Faculty of Law said—

Should the propositions of the Syllabus and the Papal infallibility be made dogmas, the relations between State and Church hitherto subsisting would be altered in their very principles, and nearly all the legislation fixing the legal position of the Catholic Church in Bavaria would be called in question.^[137]

The chief of the Theological Faculty was Dr. Döllinger, whose aged but erect head was to every scholar in the University a crown of glory. The professors were proud of him, and of their attainments made under his eye. In common with the scholars of other Catholic seats of learning in Germany, they habitually manifested contempt for the *Doctores Romani*,

the imported pupils of the Jesuits from the *Collegium Germanicum* or other seminaries in Rome—a feeling which they extended to the great bulk of the men of the Curia.

Döllinger had been a firm Tridentine Romanist, devoutly bearing the burden of the new dogmas which the Council of Trent bound up and laid upon men's shoulders. But being profoundly versed in antiquity, he was not disposed for more accretions of the same sort, and he had long been detested by the Jesuits, as standing in the old paths and resisting their innovations. Superstitions newly carried over the Alps did not thrive under his eye. As a historian he had not feared to narrate and censure the enormities of Popes.

While these agitations were arising in the provinces, the secret preparations in Rome were being pushed forward. The fact became known that the six Commissions were at work. The names of those serving upon them no sooner transpired than a cry arose that only favourites of the Jesuits were appointed. So few names from Germany appeared that offence was given, even in a national point of view. This feeling increased when it appeared that celebrities of whom the Catholic faculties were proud had been passed over, and that inferior men, known only for devotion to the Curia, had been selected. These feelings were partly theological, partly personal, and yet more strongly patriotic. The Germans knew that a double peril for the Fatherland lurked in the anti-unionist policy of Rome—peril of disruption from within, and of invasion from France.

Dissatisfaction must have run tolerably high when Cardinal Prince Schwarzenberg wrote to Cardinal Antonelli, formally remonstrating as to the selection made. The fact, he submitted, that all those selected belonged to one well-defined theological school, was in itself open to objection. As to the reputation of the favourites, he said, "I have had fears lest their qualifications should not prove equal to their weighty responsibilities." He names Munich, Bonn, and Tübingen, as Universities where fit men were to be found as well as at Würzburg, and goes so far as to mention names, among them that of Döllinger.

This letter was politely answered by Antonelli, after a couple of months. He said that Döllinger would have been invited only that his Holiness had learned that he would not accept the duty. [\[138\]](#)

One of the theologians at whom the innuendo of Cardinal Schwarzenberg was aimed was Hergenröther. Yet Archbishop Manning wrote to *Macmillan's Magazine*, and, after speaking of the men of Munich as if they were of little more account in the esteem of students than in that of ecclesiastical courtiers, told us that if we wanted to learn anything of the true relation of Catholics to national law, we must not go to them, but must study Hergenröther.^[139]

FOOTNOTES:

[130] Menzel, *Weltbegebenheiten*, Band i. p. 123.

[131] Menzel, *Jesuitenumtriebe*, p. 21.

[132] Quoted by Montalembert, *Bibliothèque Universelle* 1876, p. 194.

[133] *Ibid.* p. 195.

[134] *Bibliothèque Universelle de Lausanne*, 1876, p. 27.

[135] Friedberg, *Aktenstücke*, p. 300.

[136] *Ibid.* p. 302.

[137] *Ibid.* pp. 313-23. Archbishop Manning places the time when these questions were put "about the month of September 1869," being "about" half a year too late, as he places the publication of *Janus* about a year too early.—*Vatican Decrees*, p. 114.

[138] Both letters are given in *Documenta ad Illustrandum Concilium Vaticanum*, I. Abtheil, pp. 277-80.

[139] No. 183, p. 259.

CHAPTER VII

Intention of proposing the Dogma of Infallibility intimated—Bavarian Note to the Cabinets, February to April, 1869—Arnim and Bismarck.

IT was in February, 1869, that the fears and hopes which had long been more or less distinctly directed to a given point, were both quickened by fresh light. The *Civiltà Cattolica*, in the letter of its French correspondent,

published suggestions that the Council should sit for but a short time, that it should proclaim the doctrines of the Syllabus, and that the infallibility of the Pope should be adopted by acclamation. It was at once alleged that the finger of Pius himself gave this sign. The suggestions thus made explain what the Cardinals consulted in the first instance meant when they hoped that the Council would not last so long as some might think. They had in 1854 induced the bishops to acclaim a new dogma, and in 1867 to accept the Syllabus without demur, and surely they could get any portions of that document which it was necessary, for greater clearness, to formulate into decrees, passed in the same delightful way; and this would be still more desirable for the dogma of infallibility. Archbishop Manning treated the idea of an intended acclamation as a pleasantry; but he charged the ventilation of it on a wrong time and on a wrong publication. "*Janus* first announced the discovery of the plot."^[140] It may have been *Janus* who first clearly indicated a certain English prelate as the man chosen by the party of acclamation to give the signal. But he was long behind the first to announce the plot. The laity generally were offended and alarmed, at least those north of the Alps, and many bishops who were ready to vote for the Curia did not feel flattered at having the whole world informed that they were not wanted in Rome as judges of the faith, but as adornments of a grand pageant. The translation or assumption of the body of the Virgin was also suggested in the same article, as a doctrine which it was desirable to make into a dogma.

As time wore on, the excitement became more intense. In France, the action of the government, as in most things under the Second Empire, was ambiguous. It seemed to dread the impending innovations, and every now and then what appeared to the world as a menace was half uttered. Yet it was plain that the Curia was not disturbed. Nothing can be more tranquil than the letters in the *Civiltà* from its French correspondent. There is an apparent sense of solid support, such as no gusts of the popular winds will seriously shake. M. de Banneville, the acceptable representative of France in Rome, continued in his post. When the question of the presence of princes in the Council was to be faced, Cardinal Antonelli had the comfort of treating it with this trusty friend. It was comparatively easy to convey to him the intimation which, in a few words, represented, as M. Veuillot had showed, a radical revolution in Church and State. *There were no more Catholic States*. The term "Catholic arms" continued to be applied, by official writers, to those of France and the other countries which had

reconquered the lost States of the Pope. But arms are perhaps, like gold and silver to the Brahmans, substances which never contract pollution. The monarchs were outside the door. Even France, whose flag at Civitá Vecchia was the only protection of the temporal power, was told that she was no longer a Catholic State—she, the eldest daughter of the Church; she whom the Pope, in parting with General Failly, had for love of her chassepots—the "prodigious chassepots," as they were called—blessed as the "most Christian nation!" The Curia knew that the hold of the Pope on the priests and schools was stronger than that of the Bonapartes on army and nation; and they were rearing up their champions, while the Empire was wearing out its own.

The same number of the *Civiltá* which records the death of Antonelli states the case in the following terms. The Pontiff could not invite powers "of which one, like Italy, was in open hostility to the Church; of which another had, like Austria, of her own motion, torn up the Concordat; and another had, like France, a turncoat and a perfidious traitor to the Holy See upon the throne."

The Ultramontane priests enjoyed this disfranchisement of kings; but they were not yet all prepared to find that the Order of Priests was also to be disfranchised. Not a man of them was to be allowed to plead in presence of the Council. The Cardinals, in their close and still Commissions, were preparing to put, not only laymen, but priests and bishops too, more on the footing of a marching army than ever before.

On April 9, 1869, Prince Hohenlohe addressed a circular to the European Cabinets in the name of Bavaria. It was not to be believed, he said, that the Council would confine itself to purely theological questions, of which, in fact, none were pressing for solution. The only dogmatic point that Rome wished the Council to decide was that of Papal infallibility, for which the Jesuits in Germany and elsewhere were agitating. "This question," added the Prince, "reaches far beyond the domain of religion, and is in its nature highly political; for the power of the Pope in temporal things over all princes and nations, even such as are in separation from Rome, would be defined, and elevated into an article of faith."

The smooth reply of the German Jesuit organ was that something of the kind had been said before in the *Augsburg Gazette*. But the circle of Church

authority would remain the same, whether the organ of that authority should be the Pope singly, or the Pope in conjunction with the bishops; just as the powers of a national government would be the same in extent, whether in the hands of a monarch or of a republican executive.

This is characteristic. The discussion was not about any proposal to enlarge or contract the theoretic circle of Church power, but about a proposal to declare that the Pope alone, without the bishops, was the depositary of that power. If the theory of Rome was correct, no extension of the circle of power was possible, but the depositary of power was now to be changed.

If, among ourselves, it was proposed to give the power of life and death to the Crown, without judge or jury, we might be told that the power of life and death was the same whether exercised by royal warrant or through the traditionary courts. The circle of power would not be extended.

The Bavarian note did not elicit a practical response from other Cabinets. The reply of Austria was, perhaps, influenced by the fact that Count Beust, then Prime Minister, was a Protestant. His despatch bears marks either of non-appreciation of the import of terms and acts, proceeding from the Vatican, such as would be natural in one not trained to watch them, or of a desire to evade the gravity of the question. He thought it best to wait and to be on his guard.^[141] On behalf of Prussia, Bismarck also took up an attitude of observation, but with more insight into the reasons for the suggestion of Prince Hohenlohe. The Italian Government had expressed itself in favour of common action, but practically let things take their course. England naturally declined to interfere. As to France, she thought herself protected by the Concordat against all eventualities—another proof that her statesmen handled affairs without mastering ideas. Perhaps not one of them had read what Rome had lately been teaching as the true doctrine of Concordats.

The *Unità Cattolica* (June 23), however, put this tranquil attitude of France in a different light—

Hohenlohe is sold to Prussia, and torments the Catholics of Bavaria to push them to throw themselves into the arms of Prussia, where Catholicism enjoys the utmost liberty, thanks to the fox-like policy of Bismarck. This is known in Paris, and hence Napoleon is said to have looked darkly on the perfidious proposals of the Bavarian Minister.

FOOTNOTES:

[140] *Priv. Pet.*, Part III. p. 37.

[141] *Friedberg*, pp. 325-28.

CHAPTER VIII

Indulgences—Excitement—The Two Brothers Dufournel—Senestrey's Speech—Hopes of the Ruin of Germany—What the Council will do—Absurdity of Constitutional Kings—The True Saviour of Society—Lay Address from Coblenz—Montalembert adheres to it—Religious Liberty does not answer—Importance of keeping Catholic Children apart from the Nation—War on Liberal Catholics—Flags of all Nations doing Homage to that of the Pope.

ON April 11, 1869, was issued another of those Bulls proclaiming indulgences on which the world has almost ceased to look as one of the forces of history. Nevertheless each of them is a monument to an authority obeyed by disciplined millions, as holding executive power both in this world and the other. Once more were long Latin sentences filled out to tell the faithful that he who had power to bind and to loose proclaimed to them, on the occasion of the Council, full remission of their sins, and indulgence, on condition of their visiting certain basilicas, and saying certain prayers. [142] "This pardon," says the Archbishop of Florence, "was to extend not only till the opening of the Council, but through the whole of its continuance." [143] Millions were thus put under the necessity of imbibing the conviction, that sin against our neighbour and our God admits of being cancelled in such a way, or else of seeming to believe what they did not believe, or of bowing and not asking themselves whether they believed it or not.

About this time was inaugurated, with great display of dignitaries, military and spiritual, a monument to two brothers Dufournel, who lie in S. Lorenzo.

The monument bears all the emblems of martyrdom which the art of the catacombs can supply. Instead of the usual request to pray for the repose of the soul, into which Romanism fell from Christianity, stands the word of the early Christians, "They rest"—here applied because martyrdom had merited what grace was no longer believed to give. Emmanuel Dufournel, on meeting the Garibaldians, shouted to his men, "Here, lads, is the spot to die; in the name of the Father, the Son, and the Holy Ghost, forward!" When expiring, he said, "I am pleased to see my blood flow from fourteen wounds for the glory of Holy Church." The people of Valentano, where he died, said to his men, "Let us kiss the bier; we do not come to pray for his soul, but to commend ourselves to him" (VII. vi. 547). "Such"—adds the reverend writer—"such is the Christian instinct which distinguishes between combatants in any other cause, however just, and the heroes of the Christian religion." To develop instincts of this sort, it is impossible to conceive writing more skilfully adapted. And these are the men who, at every breath, call the Italians Mussulmans!

The other brother, Diodato Dufournel—young, handsome, polished, rich—soon after the death of Alfred, met Father Gerlache at daylight entering St. Peter's: "I go to say a mass for our dead on the Apostle's tomb." "I go too," replied the Captain, and they entered the crypt. The priest asked the zouave what had caused his strange absorption in prayer. "Father, I was praying to the Virgin for the favour of dying for Holy Church." Ten days afterwards he fell mortally wounded during the Garibaldian disturbance in Rome. When the white-headed father arrived, it was too late to see either son alive, but he was instantly received by the Pope. The sovereign tried to fasten on his breast the order of the Piano, but was blinded by his tears. Maria, the sister of Diodato and Emmanuel, came between the two weeping old men, and, guiding the hand of the Pope, fastened the decoration on the breast of her father. The writer concludes by representing the ladies of the house hereafter as pointing out to their little ones the glove, the sword, the fatal ball, and other relics, the victor palm and the exulting angels, and saying, "Their souls are in paradise, lovely and resplendent, and are interceding for us. Children, kneel down and pray to God that none of our family may degenerate from the example of Diodato and Emmanuel Dufournel!"

Bishop Senestrey, of Regensburg, known as a pupil of the Jesuits and an ardent Ultramontane, made a speech at Schwandorf, which has not yet been

forgotten in Bavaria, and was soon heard of in other parts of Germany. He said—

We Ultramontanes cannot yield. The antagonism can have no issue but in war and revolution. A peaceable settlement is not possible. Who makes your temporal laws? We observe them only because a force stands behind which compels us. True laws come from God only. Princes themselves reign by the grace of God, and when they have no longer a mind to do so, I shall be the first to overturn the throne. ^[144]

To the Germans, who were just rising to a consciousness of their unity, the threats of breaking them up again were cruel, especially when coming from within. "The foreigner," said Sepp, "has always counted on the internal splits in the German oak, to drive in his wedge, and rend us to pieces."

The scorn with which talk of recognizing Italy was treated at this proud moment, may be judged from the words of the *Unità* for January 27, in an article headed, *Dying with Italy or Living with the Pope*. The Marquis de Moustier, it remarks, having promised to study a *modus vivendi*, proposed by Menabrea, was seized by mortal illness. In a similar way Morny, Wallewsky, Petri, and Billault were struck with death, by urgent study of means for making revolution live side by side with the Pope.

Parliamentary government, hateful everywhere, was viewed as monstrous in Italy. The *Civiltà* cannot "accurately study" the proceedings in Florence, because of "the ineffable weariness, the disgust, the disdain with which the mind is seized, on reading those speeches, often vulgar, and running over with sophism and effrontery."^[145] It proceeds to say that the famous boons of 1789, *liberty of worship, liberty of meeting, liberty of the Press, and liberty of instruction*, led in practice "to the triumph of irreligion, to the tyranny of the State, to unbridled licence in handling through the Press the most sacred and inviolable rights, and to the barbarizing of the young by more infamous ignorance." Yet, at the same time, it records with satisfaction efforts of its own friends to obtain liberty of instruction, after their ideal; that is, the State giving up to the priest the control of what is taught to its subjects with its own money.

The *Civiltà* gloried in the disappearance of the Liberal Catholic priests, utterly extinguished, as it held, by the Syllabus and by the prospect of the

Council. There might still linger some slight remnant of Liberal Catholics among the laity. But Catholics in Italy were now to be noted for their hope, their joy, and their perfect withdrawal from political life. They were no more to be found seeking situations from the government, but were all ardently drawing close to Pius IX. Since he uttered the "prophetic word," Let us wait upon events, above all since the Council was summoned, they had betaken themselves to pious works and to waiting on the hand of the Almighty.^[146]

In the same publications which struggled against unity of nations, the loss of another unity was bitterly deplored. "Catholic unity" in Spain, hitherto existing by law, alas! exclaims the *Stimmen*, exists in fact no longer. By religious unity is meant the state of things which forbids men to worship God except under direction of the Pope. Massimo D'Azeglio exclaimed as to Italy, Religious unity is the only unity we have left. We should say, No wonder!

The attempt to place the unity of Christians not in faith in Christ and manifestation of His spirit, but in subjection to one human being, has had just the same results as had the attempt to place the unity of mankind in obedience to one sovereign, treating all who did not yield as enemies. Human unity is larger and nobler than one throne will ever shadow, and so is Christian unity. The lust of uniformity that erected the Inquisition, fettered the Press, sentenced free opinion and free speech to death, reformed the Decalogue, and laid bonds upon the Bible, has never given a nation rest, and has only been an endless source of division and scepticism. Azeglio, in the same breath in which he speaks of this "unity," calls Italy "the ancient land of doubt," where even at the time of the Reformation people thought little of Rome and nothing of Geneva. And the *Stimmen* says that those Spaniards who had broken down "religious unity" were "not Protestants but sceptics."^[147] So that in both Italy and Spain the result of that uniformity which is no unity, was scepticism in religion and decay in politics.

To the race the bond of unity lies in a common Father, and to the Church in a common Lord. In the one case and in the other the maintenance of unity consists not in putting down variations, but in treating them with brotherly regard.

Very great political significance was lent by all the Papal Press to festivities in honour of the Pope's fiftieth year of priesthood. The demonstrations of devotion to him at this moment were fervent and grand, and the supplies of money laid at his feet were immense. Great care was taken by the *Civiltà* to ridicule the idea of the *Opinione* that these manifestations had nothing to do with politics. On the contrary, cried the leaders of the "good Press," humanity, bewildered and almost in despair, was hastening to the feet of the only deliverer. All society needed a saviour, as every rational creature knew. "The Pontiff is now almost alone in the world, the representative of truth, justice, and good sense." And hence, the poor world, swimming in error, fraud and absurdity—"the world sees in Pius IX a true master, a true judge, a true sovereign, and it cleaves to him as the bulwark of society." The Syllabus suffices to prove that the Pope alone declares the truth: "the Syllabus which burst like a thunderbolt out of a serene sky, both illuminated and blasted." The nations seem to be saying, To whom *should we go*, but to the Supreme Pastor of the Christian flock?—*thou hast the words of eternal life*. Pius IX, by rejecting the counsels of the prudent, "now has become morally the strongest support of order in the world, so that those who have fallen, and those who wish not to follow them, lean upon him." And not only so, but the

new queen of the world, Public Opinion, is now altogether in favour of the Roman Pontiff, and protects and saves him, almost of herself alone, against every violence and every intrigue, so that it now may almost be said that all those in the world who are not with Pius IX from love are with him by force (VII. vi. pp. 310-11).

The writer then goes on to argue that the people can never understand how one and the same person can have two consciences, one as a constitutional king and the other as a man. This, however, is a necessary condition of a constitutional king, but it is not the case in the Pontifical States, where nobody would ever suppose such a condition of things possible.

The Pope has only one conscience, and neither majority nor universality of votes and suffrages would ever lead him to sanction that which is contrary to morality, to justice, to equity, and to the well understood interests of his subjects and of the flock. The Pope can say

with truth, "Although all, not I"; and on this account the eyes and the hearts of all in the world who hate fictions and impostures, and who love truth and rectitude, are turned to the Pope thus reigning and governing (p. 312).

We make no attempt to inquire how many consciences a Pope may have. The *Civiltá* contends that he cannot have more than one. We have heard Romans contend that one is above the number. Liverani (p. 140), alluding with much personal respect to Father Mignardi, the Jesuit confessor of Cardinal Antonelli, who, though not Pope, had much to do with the perfect model of government above commended, evidently thinks that a director of Antonelli's conscience held a sinecure. He asserts that no one knew that his Eminence had a conscience till April 2, 1860, when he declared the fact in a despatch to Count Cavour! And this is the language of a prelate!

The more distant prelates were already bidding their flocks farewell. The Bishop of Montreal, in doing so, cited the example of the valorous Canadian youths, who had enrolled themselves among the zouaves to defend the Pope at the cost of their blood, exhorting his clergy with similar courage to contend against the errors pointed out by the Pope.^[148] From Jerusalem five priests wrote to announce that they would commence a concert of prayer, on the slopes of Calvary: 1. For the happy result of the Council; 2. For the union of the Oriental schismatics; 3. For the conversion of erring priests. At the same time that it announces this fact, the *Civiltá*, quoting from the *Tablet*, says that in Russia, "under the appearance of *external unity*, there is great division of religious sects"; and that there is some desire for union with Rome.^[149]

In June 1869 the Catholics of Coblenz presented an address to the Bishop of Trêves, protesting against the innovations proposed by the *Civiltá Cattolica*, and suggesting reforms in a spirit contrary to that of the Syllabus. Great interest was excited by the warm adhesion of Count Montalembert to the address. His services, both to the spiritual and temporal power, had been conspicuous. He was now in the grip of a mortal disease. France will always respect his piety and his genius, but she will increasingly have cause to deplore the direction of his influence, as the slow but sure results of priestly power in education develop themselves.

"Twice within the last few weeks," he writes, "have I touched the brink of the grave." So he feels that he may speak of this world as one whose personal interest in it is as nought.

Speaking of the address, he says: "I cannot express how much I have been moved and charmed by that glorious manifesto, flowing from the reason and conscience of Catholics.... At last I seemed to hear a manly and a Christian tone, amid the declamations and adulations wherewith we are deafened." He would have signed "every line" of it, but he felt somewhat humbled that it did not proceed from French Catholics, with whose antecedents it would have harmonized, as well as with those convictions which made them, in the early part of this century, the champions of religious liberty on the Continent. ^[150]

It was hard for the Jesuits to own that Montalembert stood in their path, to be pitilessly struck down. For the present they tried to reason. Like him, many, especially in Belgium, had imbibed the conviction that civil and religious liberty were good in themselves, and might be made to work favourably for the Church, which they thought incurred great danger by setting herself in opposition to both, and by using her spiritual engines for the overthrow of constitutional government. Such men argued that the perfect liberty existing in England, the United States, and Belgium had many advantages for the Church.

To reasoning of this sort the *Stimmen aus Maria Laach* replied by first of all uttering encomiums on religious liberty, and also on those excellent Catholics who favoured it, thinking it might prove best for the Church. But though this view of the case had its noble aspects, there was another side to it. Experience proved that under such a system the losses of the Church were deplorable. Not to speak of Europe, the case of the United States would suffice. As much as thirty years ago, Bishop England, of Charleston, had said that whereas the Catholics ought to have six millions of the population, they really had less than two. And this terrible loss was aggravated at the present day, for considering the enormous immigration of Catholics and the addition of Mexican territory in the meantime, they ought now to number fifteen millions; but in fact they did not dare to claim more than six. A good authority had showed that the Church lost more souls in the State of Wisconsin in a single year, than she gained in the whole Union. The loss among the children of the Irish was greater than among those of

the Germans. This the writer attributes to "the pestiferous air" of non-denominational schools, and complains that the system prevailing in America deprives children of a well-ordered and continuous Catholic education, such as would protect them, among other dangers, from the necessity of learning English. [\[151\]](#)

This anxiety to keep up the German tongue in America illustrates the cry raised in the German Press against that tongue being put out of the schools, both in Posen and in the Tyrol. "Liberty of instruction" had been so used that whole districts, once speaking German, had been educated into the use of Polish in the one case, and of Italian in the other. In both these countries the same reason which in America made it desirable for Rome to keep up German, turned the other way. In America, the German tongue would enclose a people, in the heart of the country, walled off and apart from the nation. In the other cases, that tongue would be a channel connecting the people with the ebb and flow of the national mind. Even a comparatively small population, kept well in hand, inaccessible to the common thought, and ready to obey every touch of the leaders, may be made a formidable political power. Had Wales been in the hand of Rome! [\[152\]](#)

Among the causes of chagrin to Montalembert would be a recent article in the *Civiltá*, directed against the Liberal Catholics by name, and plainly meant to thwart any influence with which they might have hoped to approach the Council. A pamphlet being taken as a text, the positions of the Liberal Catholics are stated, as—1. That modern nations deserve more liberty than ancient ones; 2. That liberty of worship should be conceded, as now inevitable; 3. That "the distinction between Church and State" is not now to be got rid of, and has its advantages; 4. That Catholics ought to avail themselves of all liberties. On the first point it is replied that modern society has made only material progress, but gone back in faith and morals, and therefore deserves not more liberty than ancient society, but less. On the second point, resenting an allusion of the Liberal Catholic to the fact that Pius IX had himself granted a constitution at the opening of his reign, the *Civiltá* alleges, first, that it was conceded *in circumstances of imperious necessity*; and, secondly, that it was free from the essential faults which would deservedly brand it as Liberal—"it lacked the criminal principles of liberty of worship, of the Press, and of meeting." Moreover, it issued in the exile of the Prince, "which seems to be the inevitable result of modern

constitutions." So the Pontiff was obliged to revoke it, and to condemn it to oblivion.

The Liberal Catholic writer had quoted passages, even from Jesuits, to prove that it was lawful for princes, in given circumstances, to tolerate liberty of worship. Certainly, replies the *Civiltá*, it is lawful to tolerate it, if imperious circumstances render it necessary in order to avoid a greater evil. But that is one thing, and admitting liberty of worship as a principle is another. "What meaning have the words of the present Pontiff when he declares that liberty of conscience and of worship is madness, and the pest of the nations?" What did he mean when he condemned President Comonfort for admitting religious liberty into Mexico? Did Gregory XVI and Pius IX talk to the middle ages? Did they tell the present generation what was suitable or not suitable for the middle ages? Catholics may not be able to change the state of things where liberty of worship already exists, but it is in their power to prevent its entrance where it does not, and to demonstrate its criminality, and its moral and social balefulness. As to Catholics availing themselves of all liberties, that idea is no patent of *Liberal* Catholics. Of course Catholics avail themselves of all liberties of which they can make use. But to take part in the elections of a kingdom like that of Italy, formed by iniquity, and binding up in itself a perpetual sacrilege, is impossible. The words of the Bull which hurled an excommunication against king and people, are paraded, and the unfortunate Liberal Catholic is reminded that those words apply to *adherents* of the spoliation.^[153]

A London correspondent of the *Civiltá* told how the journals had at first affected to ignore the Council, but now began to speak of it. The Anglo-Catholic party were discussing projects of union, and he gives an account of a meeting for that purpose, not naming time or place, but making the Rev. Edward Urquhart prominent. It is said, he adds, that one bishop will go to the Council; and the Ritualists think that many of their party will do so. There is much cause for hope. Some persons of high station have publicly said that they would submit to the Council, and many say so privately. They do not feel safe in Anglicanism.

The prelate who replaced the Bishop of Montreal in his absence, delivered an address, from which the *Civiltá* repeats these words, that Pius IX had a mission, and his mission was to recall, to confirm, and to defend in the

world, the law of the "Most High," the essential principle of authority, and thus to "save at once both the Church and Society."^[154] But as a while ago we heard of toasts in which the Pope, as universal king, was put before the national king, so now on British ground is held up to admiration the trophy of banners in the Church of St. Sulpice as the fairest tribute of "New France," as Canada is called. The flags of all the societies in Montreal, and also those of all nations, were gathered together "*in homage to the standard of Pius IX, to express the obedience of the Catholic nations to the supreme authority.*"^[155]

FOOTNOTES:

[142] *Acta*, p. 18. Freiburg edition, p. 62.

[143] *Cecconi*, p. 144.

[144] Menzel, *Jesuitenumtriebe*, p. 173.

[145] Serie VII. vol. vi. p. 234-5.

[146] Serie VII. vol. vi. pp. 226-27.

[147] *Neue Folge*, Heft iii. p. 75.

[148] *Civiltà*, Serie VII. vol. vi. p. 229.

[149] *Ibid.* p. 229.

[150] *Friedberg*, p. 88.

[151] *Stimmen*, *Neue Folge*, Heft iv. pp. 59, 60.

[152] Curious examples of this use of education are given by Menzel, *Jesuitenumtriebe*.

[153] Serie VII. vol. vi. pp. 445 ff.

[154] Vol. vi. p. 488.

[155] *Ibid.* p. 488.

CHAPTER IX

Publication of Janus—Hotter Controversy—Bishop Maret's Book—
Père Hyacinthe—the Saviour of Society again—Dress—True
Doctrine of Concordats not Contracts but Papal Laws—Every

Catholic State has Two Heads—Four National Governments
Condemned in One Day—What a Free Church means—Fulda
Manifesto—Meeting of Catholic Notables in Berlin—Political
Agitation in Bavaria and Austria—Stumpf's Critique of the Jesuit
Schemes.

LITTLE more than three months remained before the opening of the Council, when the intellectual movement respecting it received a new impulse. A book under the title of *The Pope and the Council*, by Janus, issued from the German press; and conjecture at once ascribed the principle authorship to no less a person than Döllinger, although it was assumed that he had availed himself of aid. The profound impression made by this work may be accounted for, partly by the excitement in the midst of which it appeared, and partly by its own force. It combined a minute knowledge of the inner history of the Church, with comprehensive views of the questions, both doctrinal and constitutional, which were now raised.

After a few clear passages from modern utterances of authority. Janus strikes the keynote rather higher than he is prepared to sustain it—"So they find themselves under a delusion, who believed that in the Church, the spirit of the Bible, and of old Christianity, had got the upper hand of that spirit of the middle ages according to which she was a penal establishment, able to send men to prison, to the gallows, or to the stake."

Beginning with the *Magna Charta* which Innocent III condemned, while he excommunicated the Barons, Janus cites case after case in which the establishment of free institutions, and especially of freedom of worship, brought down the solemn condemnation of the Pope. The case of Austria in 1868 is the latest. With the quietness of scientific knowledge, he states what at the time would have required from an English writer arguments and proofs in detail, namely, the simple but most important fact that the oft-quoted word of the Apostle, "We must obey God rather than men," means, in the Jesuit sense, We must obey the Pope as the representative of God upon earth, and the infallible interpreter of the Divine will, rather than any civil superior, or any law of the State (p. 33).

The tone of Janus is calm and scholarly, without being cold; and the acuteness of his analysis is such as is found only where clear intellectual insight is united to trained habits of weighing language with reference to

possible interpretations by such casuists as are formed by the Curia and the Jesuits.

He clearly proved that the Church was on the eve of one of the greatest constitutional changes ever effected in any commonwealth. If, in the past, the forged Decretals of the pseudo-Isidore had facilitated inroads upon the constitution of the Church, how much more would an authentic article of the creed, containing in itself the power of making any number of other articles, and assuming as its basis the unlimited authority of the Pope, pave the way to far-reaching civil and ecclesiastical encroachments! When Archbishop Manning said of Janus that by some it was "regarded as the shallowest and most pretentious book of the day" (*Priv. Pet.*, iii. p. 114), he greatly moderated the tone of his Continental friends. Most bad things that could be said against a book, or its writers, were said in very bad language. The Archbishop himself could not let it pass without twice calling it "infamous," and that in a pastoral.

The excitement in Germany now reached a point at which the bishops began to be alarmed. The "good Press" undertook to extenuate the importance of the changes dreaded, and threw doubts on the probability of their being adopted. The perplexity became greater when, in France, appeared a book in two volumes from the pen of Monsignor Maret, said by some to be the most learned prelate in the country, and who, at all events, was Dean of the Theological Faculty of the Sorbonne. He combated the proposed innovations with French tact and skill, raising a voice, if not for the old Gallican doctrines as a whole, at least for some remains both of them and of the liberties with which are identified the names of the most renowned Churchmen in France since the Reformation.^[156] The book made a profound but passing impression. It was called *Religious Peace and the General Council*; but the Jesuit historian Sambin (p. 47) styles it a brand increasing the conflagration. The question raised was that between a constitutional but oligarchical government and a personal one for the Church. Maret holds that in her constitution a check upon the monarch was provided by the "aristocracy," that is, the bishops (vol. ii, p. 107). The democracy is formed by the priests and the laity. But we may point out that this is very loose language. *Democracy* means a people with power, not a populace excluded from all functions of government. The people in the Papal Church are absolutely stripped of all part in government. They are a

mere populace. The clergy are disfranchised officials. That Church is a society with a populace, but without a democracy. Before the Vatican Council, it had a constitutional aristocracy. Since then, the bishops are nobles without any but delegated power. Maret clearly states the familiar fact, that in the earlier centuries both clergy and laity took part in the election of bishops. But when he comes to speak of the part taken by kings in their election, the facts glide out of sight, as noiselessly as writers of his school generally say that they are wont to do in the hands of a Jesuit. A reader might imagine that kings first got the idea of a right in the election of bishops by some grant of the Church; whereas even the Bishops of Rome were for a long time elected on imperial or royal order, coming from Greek or Goth, from Arian or orthodox prince, as the case might be.

Maret quotes Cardinal de la Luzerne as saying that a General Council, in which the order of priests was not represented, would be illegitimate though not invalid (vol. i. p. 125); and gives it as the general opinion of theologians that their presence was *necessary*. He also admits that the presence of laymen in the Councils is attested by a large number of documents.

Von Schulte reviewed this work in the *Literaturblatt* of Bonn (v. pp. 2 and 54). Looking at it in a popular sense, Schulte thought it was a book to mark an epoch. It was likely to produce a great effect among the clergy, little among the laity. Time has not justified this anticipation. The fact is, all the younger clergy had been educated out of French ideas and sympathies, and such of the young laity too as had been brought up by priests. Men were but beginning to find how the Christian Brothers, and convent schools, and episcopal seminaries had changed France.

The *Civiltà*, in reply, objects even to Maret's formula, *the Pope with the bishops superior to himself alone*. Such an objection implies that in Council all the bishops add to the Pope nothing at all. So many mitres without any heads in them would add at least as much. We believe, indeed, that great thinkers have doubted whether a judge with his wig is not superior to the same judge without his wig. But the Pope with all the bishops is not superior to the Pope without any bishop! The Jesuit writer says that he thinks he expresses the mind of Maret with exactness when he puts it thus, *The supreme power resides in the Pope together with the bishops; in the Pope as supreme, whose strict duty it is nevertheless, to obey; in the*

bishops as subordinate, who, nevertheless, have the right to command (Civiltá, VII. viii. p. 257 ff.).

The choicest auditories of Paris had often crowded noble Notre Dame, quaffing with delight the sparkling eloquence of the Carmelite preacher Hyacinthe. Now the ear of the country was thrilled for a moment, by a cry from that eloquent voice. "By an abrupt change," he wrote to the General of his order on September 20, 1869, "for which I blame not your own feelings, but a party in Rome, you now accuse what you did encourage, and blame what you did approve, commanding me to hold a language, or to preserve a silence, which would not represent my conscience."

Placed in this difficulty, he must forsake General, order, and convent. He continues: "My profound conviction is, that if France in particular, and the Latin races in general, are delivered over to social, moral, and religious anarchy, the principal cause is, not assuredly Catholicism itself, but the manner in which it has been understood and practised for a long time."[\[157\]](#)

St. Peter's Day, always a great day in Rome, was, of course, of surpassing importance in the year of the Council. The *Civiltá* celebrated it in an article very like one of the Pope's Speeches. This article yields an example of a dualism in the government of the universe which must glide in as the unconscious but inevitable complement of the doctrine into which Papal writers fall, in explaining away what to others seems the blight of Providence on whatever they rule according to their own principles. They begin by separating the God of Providence from the God of grace. They end by turning the bounties of Providence into the bribes of the evil one. It will be seen that in what follows national prosperity comes from the devil. The increase of our fields, the blessing in our basket and our store, are in reality a curse. This, though unseen to the poor Pope who teaches such things, presents a true and a very hurtful form of Manicheism. It is another proof that they who readily forge and hurl bad names are not safe from the errors which those names when correctly used denote.

In June the Curia had to set up a strong resistance to the movement originated in Austria for the abrogation of the Concordat. That instrument, which had formed the diplomatic triumph of Cardinal Rauscher and had crowned the professional reputation of Schulte, had legally restored to the Papal Church much of what it calls its liberties; but the clergy complained

that they never practically got all that was promised upon paper; In the *Fronde* biographies of the Cardinals, that of Rauscher describes the condition of the Church in Austria, under the Josephine laws, as deplorable! Instead of leaving her, like Protestant Prussia, to manage her own affairs, without having defined either what "manage" or "her own" meant, Austria, knowing how Rome interprets, had taken a different course. There was left, according to our authority, no canon law, but only such legislation as was imbued with Febronianism and Caesarism. Bulls, briefs, rescripts, and even the pastorals of bishops were subject to the royal *placet*. Marriage was withdrawn from under the control of the Church. The State pushed into everything, "and the Catholic Church had none of the liberties claimed by the tolerance of the age for all religions." Rauscher had succeeded in getting these grievances redressed, but now the national spirit was rising against his work. His Concordat bound Austria to concede to the Church "all rights and privileges to which by the divine order and by canon law she is entitled." Probably the Emperor but imperfectly comprehended what that implied. Rauscher comprehended it. He was as honest a man as any Papal priest is likely to be. He was the adviser of the Emperor, and his sworn personal friend. Any one may tell what such friends do for princes who will only master what Rauscher managed to bind his sovereign to. The minister, Von Hasner, put the plea for the abrogation of the Concordat on ground exceedingly offensive to the Pope and those around him. When the Concordat was contracted, said Hasner, Rome was an independent State. Now, it has ceased to be so, and is sustained only by foreign arms. The reply from the Vatican was: So long as the Pope is sustained by Christian arms, he can never be sustained by those of foreigners. The reply of the politician would have been that in 1855, when the Concordat was concluded, the Papal State was as much dependent upon foreign arms as in 1867, the only difference being that at the former time the arms holding a great portion of it were those of Austria.

On the anniversary of the Pope's accession, his speech, addressed to the Sacred College, contained the following passage: "The two societies of which the world consists," said his Holiness, are, first, the Tower of Pride, i.e. Babel; secondly, the society whose prototype is seen "in the upper room, on the day of Pentecost, where Peter, the Apostles, and thousands of the faithful of different nations, heard one and the same language and understood it." Those who wish to form a clear idea of what these two

organs of two hostile societies are—the Babel tongue and the Pentecostal tongue—must just keep their eyes open as we go on. (*Civiltá*, VII. vii. p. 130.)

The Pope, on June 25, calling governments before "his tribunal," and sitting in judgment, pronounced censure on the governments of Italy, Austria, Spain, and Russia. Italy was discussing a law to subject students even for the priesthood to the conscription. Austria was miserably wronging and injuring the Church. Spain was doing likewise, or worse. And Russia was persecuting the Polish bishops and sending them into exile. The high spirits of the Court at this moment appear in the comments on these sentences. We give a few specimens from the *Civiltá* (VII. vii. p. 135, etc.)—

From no other lips could those words burst forth, save from those of him who is set by God as ruler of His Church, with divine power, above all human powers.... Only the Pope can thus menace, reprove, and instruct, because he only is set in a region above all human greatness between heaven and earth.... When science gloried in being Catholic, and authority in being derived from God, both were, when they spoke, echoes of the word of the Pope. But science and authority have become unchristianized. The Pope has remained what he was—the herald, the oracle of the Lord.

The article proceeded to show that the Pope had menaced in the same breath one republic, Spain; two constitutional monarchies, Italy and Austria; and one absolute monarchy, Russia. This could not be done unless the Pope was king. Then follows a specimen of history as it flourishes under Pius IX. The Roman Emperors used to imprison the Popes, in order to reign in Rome; and Constantine, *not wishing to imprison* the Pope, abandoned Rome. But a king not Pope, and a Pope not king, never were able to live here together, and never will be able to do so. (*Civiltá*, VII. vii. p. 131 ff.)

Great attention was awakened by the prominence given by the *Civiltá* (p. 210) to a publication of Bishop Plantier, of *Nîmes*. It was "splendid and profound." Plantier spoke of the suggestion that the two doctrines of Papal infallibility and the assumption of the Virgin should be defined by acclamation. He alleged that such a mode of definition could be conveniently and infallibly adopted, and asked if the Council should adopt

it, what would be the harm? He ridiculed the idea that the assistance of the Holy Spirit would be given to a decision by vote and not to one by acclamation. The appearance of this in the *Civiltá*, after all that had passed, quickened the fears of the anti-infallibilists and also of the anti-opportunists lest the Pope should be determined to carry through the definition by acclamation.

Early in September the bishops of Germany met at Fulda, and issued a collective pastoral. They solemnly deprecated the rumours spread abroad as to the intentions of the Council. The bishops went on to asseverate that the Council would never define any new doctrine which was not contained in holy writ or in tradition, but would define only principles which were written "on all your hearts by faith and conscience" (*Friedberg*, p. 276). The Catholics of Germany took this solemn language in its apparent meaning; and the persuasion that their bishops would stand fast, and that the Curia would not ride roughshod over such a body, tranquillized most men. Only ecclesiastics appear to have suspected that the assurance might amount to little more than carefully dovetailed words.

The German bishops, in giving the assurance that nothing but what the faithful believed would be defined, probably hoped that the fact of their having to give such an assurance would weigh at Rome, as a hindrance to the plans in contemplation. If so, they only furnished one more proof of the truth which we in England have been told by Dr. Newman, that *no pledge from Catholics is of any value to which Rome is not a party*.^[158]

If the German bishops read as little as Dr. Friedrich says they do, they perhaps do not read the *Unitá Cattolica*. There is no doubt that it, at least, speaks language agreeable in the highest quarters. In its number for the preceding 1st of May, it commented on the same assurance as having been flung before the French people. "If the Council," says this real echo, "should only define what all believe, the Council would be useless, for in points which all believe all are agreed." To say, it proceeds, that an Œcumenical Council should express what all the faithful think, is to confound the Teaching Church with the Learning Church. "The pen falls from our hands, and we have not courage to contend against such nonsense."

After having put this assurance before their nation, certain of the bishops felt it necessary to address a private appeal to the Pope, drawn up by Dinkel, Bishop of Augsburg, representing the great danger to the Church in Germany which the proposed alterations would involve, and praying him to abandon "the far-reaching projects which were ascribed to him."^[159] A similar appeal was sent to his Holiness by the prelates of Hungary, in which country a notable commencement had been made in restoring the laity to a part in the management of Church affairs.^[160]

In June 1869 a remarkable meeting of Catholic notables was held in Berlin; with an account of which Sepp opens his book. The chair was filled by Peter Reichensperger, since noted for his Ultramontane zeal, and Herr Windhorst, now the Ultramontane leader in the Reichstag, was present, with even Dr. Jörg, of Bavaria, whose allusion, in the winter of 1874, to the attempt of Kullman on the life of Bismarck called forth a remarkable speech from that statesman. These gentlemen, thinking, or professing to think, that their bishops would defeat what the Curia had planned, adopted an address expressive of confidence in them, and of their hope that the threatened collision between the Church and their governments and nation might be averted.

Sepp himself went to Prague to present the document to Cardinal Prince Schwarzenberg. The latter read it slowly, thought it over, and said, "It is far too weak. With Rome you must hold very different language from that." In further conversation Sepp said to the Cardinal, "You have in Prague the first canonist in Germany (Schulte), the man who drafted the Austrian Concordat, and surely he can be employed in similar work for the Council." The reply was: "You have in Munich the greatest Catholic theologian in Germany, and the gentlemen in Rome will not hear of his being invited" (*Sepp*, p. 4).

Large numbers of priests had been returned to the Bavarian Parliament, all burning with zeal against Prussia, and against union under it. In 1868 the clerical agitation had gone so far that, in November of that year, President Badhauser, when closing the Landsrath, addressed the members in unwonted language—

When the government of the country and its organs, the chamber which represents the people, and the new laws, are daily held up to

suspicion, mockery, and contempt, when the peasantry are excited against the townspeople, and when men, throwing off all patriotic shame, feed themselves with hopes of foreign intervention, threatening our German warriors with the chassepots, then must every honourable man condemn such proceedings; for the venom daily instilled will, in time, poison the honest country people, as occurrences in Upper Bavaria already show.^[161]

Secret associations for Ultramontane objects were formed even among children. Those of the clergy who would have warned the authorities were still kept still by secret terrorism. The meeting of the Council and the necessity of overthrowing Prince Hohenlohe were closely connected with this turmoil. And the Liberals plainly said, "The whole Catholic world is to be fanaticized, to enable the great Catholic powers, after crushing Prussia, as they hope to do, to carry out a grand reaction."^[162]

The *Vaterland* went so far, when Napoleon III took his last *plébiscite*, as to tell its readers that a French intervention in Germany would soon follow, that it was eagerly looked for, and that all would join France to break the hated yoke of Prussia. Morally, Prussia was already at an end, but it was for France to put an end to her physically. "Who can tell if we shall have any North German Confederation, Zollverein, or Prussian monarchy in 1871?"^[163] Similar hopes of great events often pointed to the year of the Council, or the year after. The *Civiltà* did not scruple to tell Napoleon III that he owed the new *plébiscite* to Mentana. So far from concealing the Pope's direct action in a question affecting the stability of a throne, his confidential writers exaggerated his influence.

In Austria a struggle had set in against the supernatural order. Laws on civil marriage, education, and registry of baptism were passed by the legislature, and tardily assented to by the Emperor. The Bishop of Linz issued a manifesto saying that he would not acknowledge the new illegitimate laws—of course under the plea of obeying God rather than man. Turning on the Emperor, he said that he had pledged his faith to the Concordat as a man and as a kaiser. Other prelates, in milder language, set Papal above Austrian law. Finally, as we have already seen, on June 22, 1868, the Pope himself laid the new laws under his condemnation.

A Catholic meeting against the school law was being held in the church at Schlanders, and while the curate was making a speech Count Manzano, the local authority, declared the meeting closed. Cries of "Down with him! kill him!" were raised. He was thrown to the ground, beaten on the breast, and barely escaped to the barracks of the gendarmes.

When the Council was closely approaching, great excitement broke out in Austria against the religious orders. The spark which kindled the blaze was the discovery of a nun confined in the Carmelite convent of Cracow. She had been kept in one cell for twenty years, with incredible privations and in bestial filth. The rage of the public forced the government to go as far as some show of action. Orders were issued for the inspection of convents. Sentences of bishops condemning priests to confinement in ecclesiastical prisons were declared invalid unless the culprit voluntarily consented. The bishops were also required to give in lists of the voluntary prisoners.

These measures were resented as an "insult to the episcopate." The Bishop of Brünn won himself an honourable mention in the *Civiltá* by a circular in which he repelled the pretensions of the government, refused the list required, and told the superiors of monasteries to pay no heed to the orders. While this second government was set up, beside that of the country, the voice of Rome cheered it on in taking the upper hand. The same voice railed against the constitutional ministers, the parliament, and the laws.

The combative Bishop of Linz, in a great meeting, said that he did not cast any doubt on the religious feeling of the Emperor, but he was now nothing more than a constitutional sovereign. Instead, therefore, of merely saying that they had confidence in the Emperor, they must come to his aid. This was repeated in Rome, with the explanation that it had been said that the bishop in this appeal for aid to the Emperor was only uttering the sentiments of his Majesty as expressed to the bishop. Thus were bishops commended by the organ of the Papal Court for breaking the laws of their country, and credited with influencing the mind of the sovereign in a sense hostile to the constitution. [\[164\]](#)

The Ultramontane party had frequently, during the year (1868) been encouraged by correspondents in Paris to expect a war of France against Prussia. On March 10, the *Unitá* contained a letter expressing fears that Austria and Italy might agree to remain neutral, but quoting a passage from

the *Volksbote* in favour of French invasion of Germany. On April 23 it was said that for a year past the Emperor had allowed no opportunity of rousing the war spirit to pass. A week later a crusading significance was given to the approaching anniversary of Joan of Arc. It was announced that more than twelve archbishops and bishops would attend—among them Cardinal Bonnechose—and that the Empress would grace the scene. On May 1 the fact that the appearance in Paris of Benedetti, the French ambassador at Berlin, was officially said to have no connection with political prospects, was noted for a smile. On the 13th the display at the festival of Joan of Arc at Orleans, with a great array of prelates, was described as "one of the noblest ever connected with war and religion, well adapted to excite a nation which aims at uniting the cross with the sword." On June 19 it was said that the mission of General Fleury to Florence was with reason taken as a sign of approaching war.

Yet, while the Emperor of the French was looked to as leader against the foe whom the Church had marked out for the first victim, every sign of discord in France, every outbreak or disorder was eagerly paraded as proof of the anarchy to which all countries must come under any régime but that of the Church. At the same time every crime, riot, or difficulty in Italy was magnified and dwelt upon with the same moral. "Let the Chamber invoke the authority of the Council, and proclaim its canons as the laws of the State," was the demand of the *Unità* eight months before the Council met (March 21). Another saying was, There are three Italys—the Italy of Pius IX, which prays; the Italy of Mazzini, which conspires; the Italy of Menabrea, which trembles (March 27). Menabrea was then Premier. Again

The Council is drawing near, and Babylon is trembling, hell is blaspheming, and before long the world will hear the infallible word of truth and righteousness. Hallelujah!... The revolution which for nine years has been bent on marching to Rome is disgraced, senseless, divided. The traitors are betrayed, the robbers plundered, and the rebels plotted against by rebellion. Hallelujah! (March 28).

The *Unità* found that the threefold opposition of governments, rationalists, and heretics showed itself most strongly in May, the month of Mary, which only means that the Immaculate has set her heel on the three heads of the

Hydra. Here the mention of governments as one head of the Hydra is no slip of the pen, that is, governments which dwelt in Babylon, as we have just read, or in the tower of Babel, as it is more frequently expressed. Three days later (May 23) the *Unitá* cries, "It is time for Catholics to be up in defence of the Council. It is the only plank of safety for shipwrecked society." The *Memoriale Diplomatique* says that "governments are less and less disposed to interfere in religious questions, unless their rights are infringed; but such reserve is war against the Council, which *being infallible cannot infringe any right*." The italics here are our own; and would that we could print the words on the mind of every rising man in England. That would save vast waste of words.

The courage of the *Civiltá* was stimulated by the French elections in the summer, and its hatred of United Italy boiled over. The ever faithful *Univers* had given the watchword to the electors. "The temporal power, and liberty of higher instruction!" In the cry "liberty of higher instruction," we have the popular side of the original call of the *Civiltá* for universities all over Europe, canonically instituted. One hundred and twenty deputies were pledged to the program, and the French electors ought to be proclaimed as having deserved well of Catholicism. "The illustrious Louis Veillot," as the *Civiltá* styles him, had shown that what the Voltairians wanted was the separation of Church and State, from which would follow the decay of Christian worship to such a point that it might be feasible to annihilate it.

Noble, Catholic, chivalrous France is contrasted, by the *Civiltá*, with vile Italy. The latter, in a serious catalogue of crimes, is said to have "reduced the bishops to the extreme of poverty, has at its own caprice impeded the divine word, and showed more than sixty dioceses widowed of their pastors." The French voters had said, "We go to the urn as the delegates of the universal suffrage of Christendom." "The monstrous edifice of Italian unity must crumble," says this Romanist, who was no Roman. It is founded on the ruins of the temporal power of the Pontiff, which cannot perish. (VII. vi. 611 ff.)

The plea of the Liberal Catholics for freedom of conscience became more and more offensive to the Catholics. The Fathers of Laach, in censuring the address of the laymen of Coblenz, went so far as to say that the treatment of the Jews in Rome "showed no want of humanity or civil tolerance." These educated laymen well knew that the proper condition of heretics,

according to the same principles, ought to be much worse than that of the Ghetto Jews. The latter, not being baptized, were theoretically not subject to the jurisdiction of the Church, but the others, as Bellarmine shows, *though not of the Church, belonged to the Church*. Stumpf, writing in the *Bonn Literaturblatt*, did not content himself with questioning the intolerant doctrine of the Jesuits; he directly attacked it. He took an important step further—one, indeed, which seems like a new life in the Roman Catholic intellect. He told the Jesuits plainly that their exclusive principle of one *fold* rendered religious freedom and unity impossible. Here he touched the distinction between the grand and the huge, which Romanists carefully keep out of sight, and which the sincerest advocates of liberty in their ranks had hitherto overlooked. They took for a grand conception of the unity of Christians, as consisting in submission to one human head. That conception is narrow and illusory. It fails of grandeur by monstrous disproportion. Stumpf goes on to declare that the absolute dominion of the Church over the State, although the favourite doctrine as he admits, in Rome, is in contradiction to the fundamental principle of Christianity. He would no longer be content, as a Liberal Catholic, to plead for freedom of conscience merely as a compromise. He says, We now represent a principle. The theocratic principle menaces society, and that principle will never be satisfied till the acknowledgment of civil rights is made to depend upon the profession of the Catholic faith. He adds that a promise to compromise *till we had the power* would content no one, because the modern world has learned that nothing is settled till the principle is settled. He says, We are determined to have the Church a Church, and the State a State. But this a postulate which demands, as its condition, individual freedom. According to him it was Christ that introduced among men the idea of independence, and that of a limit existing to the power of the State, by distinguishing His own kingdom of love and grace from that of law and compulsion. "When the Church authorities," says Stumpf, "do admonish the rulers of the State, their first counsel should be to consider it their highest duty to protect freedom of conscience. They ought to warn them, before any other kind of unrighteousness against the use of force, for or against any form of religion which is not inconsistent with the maintenance of moral law"; and he adds, what we shall emphasize, "*privation of civil equality is an employment of force*." Such, he says, was the counsel given by the early Christian teachers;

and though later teachers reversed it, their course is not to be justified before the law of Christ.

The *end* of the State, as viewed by Stumpf, is much loftier than that assigned to it in the Papal theory. In the great collection of families called by men a State, he does not see a body politic without a moral mission, existing, according to the ruinous theology of Rome, only for temporal ends—a body politic which would be unworthy of God or man. According to Stumpf, the end of the State is *the maintenance of general moral order*. This theory does not bind the families of a country acting in their collective capacity, to prescribe the creed and cult of individuals. No more does it bind them, on the other hand, to resign all moral aims, leaving every moral question to be decided for them without any appeal to the common conscience, to fruits or to the Bible, by a power which would strip the State of every moral quality, and would also prescribe the creed and cult of all. The theory of Stumpf holds that the collective authority of the nation, in the affairs common to all the families of that nation, is called to regulate action so far as action affects the common good, but does not hold that it is called to regulate belief. Claiming for the Church the full right of asserting and urging moral principles, Stumpf, with great solemnity, claims for the legislator freedom to frame law according to his own conscience, and to his belief in what tends to the maintenance and the perfecting of moral order. This he has to do without the direction of any ecclesiastic, but knowing that he must give account to God. *No omnipotent word of Church authorities can or shall deter us from this work*. Then he interjects, Would it not be pleasant to have to consult the theologians of the *Civiltá* and the *Stimmen*? The Jesuits, he alleges, had no conception of any exercise of moral power upon one another but in the way of commanding and obeying. The Church in the middle ages, by her influence in secular affairs secularized herself, and lost her moral influence, which was never recovered to Christianity till the States had done what the Jesuits call apostatizing from Christ, and so opened the way for a return of true moral Christian influence. The early Church, he truly and nobly points out, was able, in the face of the omnipotent heathen authorities, to pervade society with her true moral influences; and he contends that nothing can give back to the Church her position as the first force in culture, but the recognition of the independence of the State.

One very curious part of this grave and forceful essay is the protest of the layman against the twisting of Scripture by the Jesuits. He puts together a number of the texts upon which they ring the changes, making them prove their own ideas by the simple process of putting those ideas into them, and reiterating them again and again. The first of the texts which he quotes is, "Teach all nations." He, apparently, is not aware that this is now as handy a weapon with those theologians as "obey God rather than man." In their lips "teach" means "make laws," and "all nations" means, not *every creature*, but, collectively, all States. Therefore the words "*teach all nations*" are, in the lips of the Jesuits, a commission to the Pope to give laws to all countries, or, in highflown language, "to exercise the supreme magisterial office." The Jesuits had saucily told the laymen of Coblenz to ask the nearest theologian for an explanation of the relations between the natural order and the supernatural. But this particular layman gave them as good as they brought. When men write as he does, they have begun to be Catholics, have ceased to be Papists, and are, however unconsciously, in process of ceasing to be Romanists.

The Allocution of June 22, in which the constitution and new laws of Austria were condemned, had proved as distasteful to Liberal Catholics as it had been agreeable to the Jesuits. "The Curialistic notion," says the author of *Reform in Head and Members*, "that the law of the Church must be the inviolable rule for all laws and statutes, and for all and every kind of activity in the life of the State, runs through it like a black thread. The Austrian *Magna Charta* of civil, political, religious and scientific freedom was called a sacrilegious law. Moreover, the Pope," he proceeds to say, "had declared that these laws themselves, together with *all that should arise out of them*, are and ever will be invalid and of no effect.... Every enlightened person among the Catholics of Germany and France concealed himself in silence and in mourning at this rude opposition of Rome to the public law of the entire Western world." Count Beust, in a despatch dated about ten days after the Allocution was delivered, said that "the Holy See had extended its animadversions to subjects 'which we by no means can allow to be under its authority.'" We shall hereafter see how clearly and

completely Count Beust had now grasped the question as between the Papacy and the life of nations.

FOOTNOTES:

[156] Monsignor Maret boldly quotes Eusebius as saying (Book II. cap. xiv.) that Peter was not only the greatest and strongest of the Apostles, which is like what he says, but that he was the prince and patron of them all, which he does not say. That is said for him by the Latin translator. The one word προήγορον, "spokesman," or champion, of Eusebius is deliberately turned into the two, "prince and patron"—*Principem et patronum*.—*Maret*, vol. i. p. 97.

[157] See the original, *Vitelleschi*, p. 266.

[158] *Letter to the Duke of Norfolk*, p. 14.

[159] *Friedberg*, p. 19.

[160] See Lord Acton, *Zur Geschichte*.

[161] *Weltbegebenheiten*, 336.

[162] *Ibid.* i. 327.

[163] *Ibid.* 340.

[164] *Civiltá*, VII. viii. pp. 209 ff.

CHAPTER X

Conflicting Manifestoes by Bishops—Attacks on Bossuet—Darboy—Dupanloup combats Infallibility—His relations with Dr. Pusey—Deschamps replies—Manning's Manifesto—Retort of Friedrich—Discordant Episcopal Witnesses.

IN November 1869 the Bishop of Versailles, writing of Bossuet, said that the fame of the Eagle of Meaux was from day to day declining (*Friedberg*, p. 81). This was but a symptom of the new war against nationalism. Professor Ceccucci, though writing for a French audience, did not scruple to say, "If Bossuet escaped excommunication, he owed it to the benign and paternal indulgence of the Holy See" (*Fronde*, iv. p. 112). Bishop Dupanloup soon took occasion to show that Innocent XI sent Bossuet two briefs congratulating him on having written in a manner calculated to win back heretics and increase the propagating power of the Church.^[165] If the Church, even before infallibility had been proclaimed, began to be so

conscious of its narrowness that it could hardly contain Bossuet, what will it be when a few centuries more have passed over it?

As the opening of the Council drew nearer, feeling grew warmer in political and religious circles. Archbishop Darboy sketched the impending dangers in a pastoral—

"You have been told that articles of faith which hitherto you have not been bound to believe, are to be imposed upon you; that points affecting civil society and the relations of Church and State are to be treated in a spirit opposed to the laws and usages of the age; that a certain vote is to be carried by acclamation; that the bishops will not be free, and that the minority, even if eloquent, will be treated as an opposition, and will soon be put down by the majority.... It must be owned that much has been done to spread these alarms by writers taking different sides."[\[166\]](#)

Bishop Dupanloup, when about leaving home for the Council, published a memorable letter. He seemed to regard the desire of the French clergy for centralization as the origin of the cry for a dogma. The change, however, from a national to a Papal spirit was natural. Was it likely that youths from the schools of the Christian Brothers, passed through an episcopal seminary, would comprehend the national spirit and episcopal convictions of Darboy or even of Dupanloup?[\[167\]](#) The lower education of the country had been just long enough in the hands of Rome to begin to bear fruit. Dupanloup meant no ill to France when he succeeded in binding Louis Philippe to Gregory XVI, by inducing him to give the priests their way in schools, in return for forbearance in baptizing the Comte de Paris, as the son of a mixed marriage, and of a mother who refused to abjure her Protestantism. But he then did one of the most hurtful deeds to France, and to the future of European peace, that man could have done.

This letter, cries Sambin, gave an episcopal head to the revolt; ... the objection was pointed against the opportuneness of defining the dogma of infallibility, but it was hardly possible to be deceived—the principle of infallibility itself seemed to be attacked.... The acts of the sovereign Pontiff were presented in a light so far from the truth, that a feeling of profound astonishment passed through the ranks of pastors and people.

They were grieved to see the paling away of the triple halo which had hitherto hovered around the author's brow (*Sambin*, p. 49).

This was published in France in 1872, after Dupanloup had "submitted," and rendered new and conspicuous service to the Papacy. As Dupanloup's pamphlet will be hard to find hereafter, and as it is a representative document, we may give a general idea of the argument it presents.

For two years, says Dupanloup, thousands of printed papers have been circulated in the streets, containing a vow to believe in the personal infallibility of the Pope. Agents have got them signed by persons who did not understand the first word of the question.

He contrasts the confidence and freedom of speech granted to the *Civiltà* and the *Univers* with the secrecy observed toward bishops. Naming Manning and Deschamps as the leaders in the agitation for the new dogma, he adds, "I say new, because for eighteen hundred years the faithful have not, on pain of ceasing to be Catholics, been bound to believe it." Alluding to the freedom which, it was said, the bishops would have in the Council, he asks what freedom was left to them even now, when any who expressed an unwelcome opinion were denounced in the papers, beforehand, as schismatics or heretics.... "After having taught for eighteen hundred and seventy years, the Church is now to come and ask in a Council, Who has the right of teaching with infallibility?... When the oak is twenty centuries old, digging to find the parent acorn under the roots is the way to shake the tree."

The Bishop proceeds, with tact and great earnestness, to plead for the necessity of moral unanimity in defining new dogmas. He relates a fact of interest, and one very closely affecting the person of Pius IX. We have seen that, in 1864, the Pope formally initiated official preparations for the Council; that he had long before 1867 decided important questions as to its constitution and procedure; that he had set commissions to work, consulted bishops in different countries, and ordered nuncios to select theologians; and that it was only political perplexity which prevented the assembly of 1867 from being the General Council.

Yet Bishop Dupanloup, whether then aware of these facts or not, makes the following statement—

I well remember, and more bishops than one who were present in Rome in 1867 can recall, the fact that one of the most serious anxieties of Pius IX, before deciding on holding the Vatican Council, was, lest questions should arise calculated to provoke stormy discussions, and divisions in the episcopate. But the Pope remembered the sagacious conduct of the Council of Trent and of Pius IV, and proceeded, in the hope that it would not be forgotten at the future Council.

One of Dupanloup's solemn sayings is, "I have read and read again the catechism of the Council of Trent, on purpose to find if it spoke Yes or No about the infallibility of the Pope; I have ascertained that it does not say a word about it."

Again, he states that in 1867 one hundred and eighty-eight Anglican ministers wrote to the Pope asking for the basis of a union. In his reply, the Pope spoke of the authority of the Church and the supremacy of the Pope, but he did not speak of his infallibility. Yet journalists, screening themselves behind his name, tried to shut the mouths of bishops by attacks full of violence and gall. This was meant for M. Veuillot, who was not slow to reply.

As to Greeks and Protestants, Dupanloup points out that what is proposed amounts to telling them, "A ditch now separates us; we are going to make it an abyss.... Two years ago. Dr. Pusey said to me in Orleans, 'There are eight thousand of us in England, daily praying for a union.'" ... When Pitt thought of relaxing laws against Catholics in England and Ireland, he asked several learned bodies what was the real doctrine of the Roman Church on the power of the Pope. "I have under my eyes the replies of the Universities of Paris, Douay, Louvain, Alcala, Salamanca, and Valladolid." They all "answer expressly that neither the Pope nor the Cardinals, nor yet any body or individual in the Roman Church, hold from Jesus Christ any civil authority over England, any power to release the subjects of his Britannic Majesty from their oath of fidelity." Such doctrine was calculated to reassure Pitt, as against the contrary doctrine, professed in celebrated Bulls by more Popes than one. But what if the Pope be declared infallible?

As to Catholic governments, their standing jealousy of the ecclesiastical power would be increased. Had not Boniface VIII taught that the temporal sword also belonged to Peter, and that the spiritual power had a right to

institute and judge the temporal? Had not Paul III released all the subjects of Henry VIII from their oath of allegiance, offered England to any one who would conquer it, and given all the goods of the dissident English, real and personal, to the conqueror? Was not that Bull a great misfortune to Christendom? "I am sad—and who would not be sad?—in recalling these great and painful historical facts; but they force us to it—those whose levity and rashness have stirred these burning questions." After the dogma shall have been proclaimed, he contends that from the point of view occupied by governments, "all civil and political rights, like all religious belief, will be in the hand of a single man." The journals which claim to be purest in their Romanism "treat the doctrine, so strongly held by the Catholic sovereigns, as well as others, that each of the two powers is independent in its own sphere, as tainted with atheism."

The following passage in the Bishop's argument suffices to show that there may be more senses of the statement that Catholics do not owe any divided allegiance, than plain English folk ever dreamed of in their philosophy—

We lately read, as quoted with praise in a French paper, the following, which compares those to the Manicheans who deny that the two swords are in the same hand: "Are there two sources of authority and power, two supreme ends for the members of the same society, two different objects in the intention of the Being who orders all and two distinct destinies in one and the same man, who is both member of a Church and of a State? Who does not see the absurdity of such a system? It is the dualism of the Manicheans if not atheism."

We ought to interject the remark that "the two swords in the same hand" is not strict but popular language. The two are in the same *power*, but only one is in the spiritual hand. Again, the taunt of Manicheism frequently falls from Jesuit pens. Boniface VIII set the example of calling people something like Manicheans, if they believed in any supreme power in princes on a level with that of the Pope.

Coming to the crucial question, What is speaking *ex cathedrâ*? Bishop Dupanloup shows that the diversity of doctrine on this point is almost endless, and perplexing beyond belief. The lay Professor of Theology in the seminary of the Archdiocese of Westminster, Dr. Ward, formerly an

Anglican minister, goes beyond the great majority. They hold that a condition necessary to an infallible utterance is that the Pope shall address the whole Church, but Dr. Ward thinks that this is not necessary. The majority think that the intention of binding the belief of the faithful must be clearly expressed, but Dr. Ward again thinks that it need not be so. Phillips, the German doctor, holds that the Pope need not consult a Council, the Roman Church, the Cardinals, or any one; nor is it necessary that he should maturely deliberate or carefully study the matter by the light of God's written word and of tradition, or even that he should put up a prayer to God before pronouncing sentence. "Without any one of these conditions," says the Bishop, "his decision would not be less valid, authentic, or obligatory on the whole Church, than if he had observed every condition dictated by faith, piety, and good sense." He adds the words of Phillips, that the definition *ex cathedrâ* may be verbal or written and with or without anathema, but must be given by him to all believing Christians as Vicar of Jesus Christ, in the name of the Apostles Peter and Paul, or in virtue of the authority of the Holy See, or in other similar terms. The Church, he says, according to Phillips, has no right to fix any condition or restriction whatever.

Citing the cases of Popes Stephen VI, Honorius, and Pascal II, Dupanloup shows that heavy facts obstruct the historical path to the new dogma.

He proceeds to point out that the difference between the universal infallibilists and the dogmatical infallibilists is very grave. The former argue that the dogma, if adopted in the sense of the latter, would involve a peril. A Pope infallible in some cases and fallible in others is, they think, a contradiction. If, as a private teacher, the Pope should err in doctrine, might he not impose his error on the Church? If this is not possible, you have either a Pope who thinks one thing and defines another, or a perpetual miracle! And why distinguish, ask the universal infallibilists, when Christ has not distinguished? "That thy faith fail not"—that means the faith of Peter in every sense, personal and pastoral. These theologians contend that a Pope could not, even if he would, fall into an error, public or private.

As to the effect of the change on the episcopate, Dupanloup contends that Councils will be rendered superfluous. Hitherto, the bishops have been judges of the faith, real judges, though in union with the Pope—co-judges, as was said by Benedict XIV. But if the proposed change is made, their

judgment before or after will be of little account; as Monsignor Manning has said, the Pope can determine "without the episcopate, and independently of it." The bishops, he proceeds, are now Doctors, not mere echoes. With the Pope they constitute the Teaching Church. After the change they will not be a voice, only an echo.

Drawing a glowing picture of the services of the French bishops to the Papacy, he says—

"Ah! I dare to affirm that so much devotion to Rome and to the Catholic world gives to the Church of France the right to be trusted, to be heard." He adds, anticipating his arrival in Rome, "I shall no sooner touch the sacred ground, no sooner kiss the tomb of the Apostles, than I shall feel myself in peace, out of the battle, in the midst of an assembly presided over by a father and composed of brethren. There the noises will all die away, the rash interferences will cease, the indiscretions will disappear, the winds and waves will be calmed down."

The statement, frequently repeated, that Bishop Dupanloup in this letter admitted the doctrine, and contested only the opportuneness of defining it, is incorrect. This was pointed out at the time by Dr. Reusch, of Bonn, in the *Literaturblatt*. Dupanloup once or twice says that he will not touch the question of its truth, one way or the other. He never, directly or indirectly, indicates belief in it. Many of his arguments more than indirectly oppose the very substance of the doctrine. He plainly feels that it is unscriptural, uncatholic, and unwise; but he knows that it is and has long been gospel in Rome.

Bishop Dupanloup was replied to by Archbishop Deschamps, of Malines. Monsignor Deschamps was following the straight path to the purple. He roundly lectured Dupanloup. "Why should not that trouble me which rejoices the enemies of the faith and of the Church?" "You have committed an error, Monsignor," he says, repeatedly. He correctly states that Dupanloup has not confined himself to the question of opportuneness. "You have handled the principal question, ... your fears have disturbed your vision."^[168] Dupanloup prepared a rejoinder to Deschamps, but was prevented from publishing it by circumstances which taught him that in

leaving France for Rome he had not passed from disturbance to tranquillity, but from regulated conflict to all-triumphant violence, compelling inaction, unless action was on its own side. In Rome, where any movement of an ecclesiastic is often accounted for by the prospect of some ribbon, robe, or perquisite, it was freely said that Napoleon had promised Dupanloup the archbishopric of Lyons if he would head the Gallicans. An English paper repeated this Roman scandal, fathering it on well informed circles. Certain circles are always well informed as to the motives of men who oppose them.

The pastoral from the banks of the Thames forms a contrast to that from the banks of the Loire. True, Archbishop Manning no longer speaks of the extinction of Protestantism, or the restoration of the Pope's dominion over the East, as probable effects of the Council. He even shows some dawning consciousness that the war which he had announced in 1867 with a light heart, would not be carried through so lightly. In the earlier part of his treatise he more than once coolly speaks of the bishops as being unanimous in the belief of Papal infallibility! Before the conclusion, Bishop Maret's work extorts the admission that he must now call that doctrine Ultramontane, which two years before, he had asserted to be Catholic. He none the less eagerly presses for the carrying out of the programme. The Church is far too large. She permits differences of belief, which are not only unseemly, but dangerous. After an outbreak of questioning thought and conflicting will, such as had been occasioned by a simple demand for only one or two new dogmas, tighter and tighter binding up seems to Dr. Manning to be not merely becoming, but even necessary.

While panting for additional fetters for his own Church, he speaks of Protestants as sighing for something beyond insular narrowness. In fact, it would seem as if he had no perception of the difference between a big sect and a large creed, or of the possible harmony between a local organization and a universal brotherhood. There is no insular narrowness, much less Pontine-Marsh narrowness, in the definition of a Church given by the English Church, whereby she marks her relation to all other Churches. That definition is large, catholic, and scriptural. It leaves the English Churchman free from any obligation to unchurch other Christians, and therefore he may rest and be thankful, when others feel bound, by the narrowness of their sect, to unchurch him. The Church of Christ was catholic when she could

number only one hundred and thirty adherents in the whole world. She will never become more catholic than she was then. No sect can increase its catholicity by adding millions of ignorant and bigoted people, and calling them Christians.

Dr. Manning resented, as a sort of rebellion, objections taken against multiplying terms of membership, and adding new conditions of salvation. To him every increase of narrowness seemed an increase of unity. If there are men in the English Church sighing in a similar way for bonds and anathemas which, thank God! our island does not forge, they are not the men inspired by the catholic creed of their own Church, but men infected by the municipal creed of the Popes.

Like Dupanloup, Archbishop Manning made an attack and provoked a retort. He denounced the historical school of theologians in Germany, and especially in Munich, and was pitilessly cut up by Friedrich, in the *Literaturblatt*. The Archbishop, like Auguste Comte, had reached a point in the development of theory when it was necessary that it should conquer history. Preparatory to the attack on the Catholic Faculty of Munich, he writes in mother English matter like the following (p. 10): "*The day is past for appeals to antiquity*. If Christianity and the Christian Scriptures are to be maintained in controversy against sceptical criticism, the unbroken, world-wide witness of the Catholic Church must be invoked."

A number of equally exposed positions are taken up in face of the Liberal Catholic scholars, and that with all the contempt which official power often feels for reasoning power—

"They who, under the pretensions of historical criticism, deny the witness of the Catholic Church to be the *maximum* of evidence, even in a historical sense, likewise ruin the foundation of moral certainty in respect to Christianity altogether" (p. 125). "No historical certainty can be called science except only by courtesy. It is time that the pretensions of 'historical science' and 'scientific historians' be reduced to their proper sphere and limits. And this the Council will do, not by contention or anathema, but by the words 'It hath seemed good to the Holy Ghost and to us'" (*id.*).

However confused in his ideas of catholicity and of historical authority the Archbishop had become, the struggle he had done something to occasion and to exasperate already began to awake him to the difference between an ordinary addition to the creed and that change of base which he was moving heaven and earth to procure—

There is a difference, also, between a definition of the infallibility of the Pope and that of any other Christian doctrine. In the latter case the authority of the Church may be sufficient to overcome any doubt. In the former *it is this very authority, the principle and foundation of all certainty in faith*, which is in question (p. 31).

These portentous words tell where Dr. Manning had placed himself—in pupilage to a power which, having left the divine "fountain of all certainty in faith," was disputing as to what cistern, of all the cisterns it had hewn out, was the one into which the true spring overflowed. Where will the dogma be found to conquer the history made by the Archbishop's own hand when he wrote those words—history proving that after he had been for years flourishing before Anglicans his Papal Society as affording absolute certainty in faith, he himself declared her to be in the throes of a combat as to "the principle and fountain of all certainty in faith"? Where will a dogma be found to conquer the history made at the moment when his Papal Society, in accordance with his wishes, adopted an unchangeable decree, which, *if true*, proves that for all the time of her existence, she had not only been fallible, but had indeed failed, and that right grievously—failed as to the doctrine of her head, by withholding from him the recognition of his attributes and rights? If from the beginning the Popes were infallible, the Church, which never consented to recognize them as such till 1870, had up to that year failed in the doctrine of her head, and failed in opposition to her head. If they were not from the beginning infallible, she in 1870 failed in the doctrine of her head, and failed in conjunction with her head. The decree of 1870 fixes her in the fork, and out of it she cannot wrestle: if the decree was true she had been in a fault of faith up to that day; if it was not true, she committed that day a fault in faith.

Archbishop Manning did not fail to hold out once more a warning to the governments. For some months past the tone of the Vatican Press had been that of men who felt that they now held the internal peace of many a nation

at their mercy; being able to menace almost any government with serious unrest, and some with overthrow. The habit of insinuating such threats seems to be native to the bad air which Dr. Newman truly speaks of as hanging around the foot of the Pope's rock.^[169] But the following is too close a copy of those revolutionary vaticinations for the banks of the Thames—

The Catholic Church now stands alone, as in the beginning, in its divine isolation and power. "Be wise now therefore, O ye kings; be instructed, ye judges of the earth." There is an abyss before you, into which thrones, and rights, and laws, and liberties may sink together. You have to choose between the Revolution and the Church of God. As you choose, so will your lot be. The General Council gives to the world one more witness for the truths, laws, and sanctities which include all that is pure, noble, just, venerable upon earth. It will be an evil day for any State in Europe if it engage in conflict with the Church of God. No weapon formed against it ever yet has prospered (p. 130).

The last words might be enough to account for Cardinal Manning's dislike of history. They flatly contradict it, and it flatly contradicts them; for by the Church of God is here meant the Church of the Pope. The weapons which have most prospered from the days of the Reformation to this day are those that have been turned against the Pope. The nations that have most prospered have been those that have declared him a pretender; and in these nations the reigns that have been distinguished for prosperity have been the most decidedly Protestant. England was long ago put to the choice between the Reformation and the Church of the Pope, and happily chose the good part, and as she chose, so, ever blessed be the God of nations, has been our lot. We will repeat the choice of our fathers, and the lot of our children shall be better and better. And they will have to pity, even more than we are called to pity, those who, having rejected reformation, have placed themselves under a continual terror and a liability to a periodical outburst of revolution.

Friedrich, in the *Literaturblatt* (v. p. 164), replied to the attack on the historical theologians of Munich. He said that the abuses of the middle ages had crept in through the total neglect of history. On the other hand, Protestant theology had risen up and had matured as a strictly historical

theology. Baronius had attempted to win this weapon back to the service of Rome, and the Munich scholars had followed in his steps. If archives and original works were to be wrested out of their hands, it meant nothing more nor less than laying down their arms in the presence of their antagonists. Friedrich would not allow the ambiguous expression "the witness of the Church" to cover anything more than her infallible utterances.

He said that the Archbishop had a false idea of the way in which a Council should proceed, because he seemed to think that the Church might speak without first using all human means to ascertain the truth. If he thought so, he was under a delusion of which a careful study of the history of the Councils might cure him. The statement of Manning, "I have already said," that the proofs of Papal infallibility outweighed those of the infallibility of the Church without the Pope, provoked the remark that as the Archbishop had adduced only his own authority, "I have already said," we might still doubt the infallibility of the proofs until he had produced his credentials as one inspired. Friedrich says that while blaming others for attempting to influence the Council, Manning himself tried to impose his authority upon it, in such a manner that it might be fancied that the Council was not to utter the words of the Holy Ghost, but those of the Archbishop of Westminster. Thus he indignantly flings back in the face of the prelate the assertion that it was an attempt to interfere with the freedom of the Council when the Theological Faculty of Munich gave an opinion to the king of the country in answer to questions put by him. The Archbishop, he protests, has no title to deprive theologians of their calling, or of their right to investigate historical evidences or to give their views, so long as the Church has not spoken.

He reminds the Archbishop that, severe as he is against those who do not go as far as himself, even he does not go far enough, for his allies now begin to require people to say, that the Church may define dogmas without having any support in the Bible and tradition, and that indeed when nothing but apocryphal documents are in favour of the definition. And, moreover, that the authority of a General Council (as distinguished from that of the Pope) is only human authority. These innovations, says the sturdy German, we abhor; and then he leaves the Englishman to the care of his Jesuit allies with these words: "If what everybody here says" (he writes in Rome) "is true, that the Archbishop, at every opportunity, declares we have only one school

to fear, the historical school, I grant to him and grant to his allies that they have the light of history to fear."

With various feelings the bishops now set forth to bear witness as to the faith of their respective Churches. This was the most dignified of the professed duties of a bishop in Councils as they used to be. It had some show of a foundation so long as the rule of "apostolic" tradition was adhered to. Of course, however, that became antiquated. So "ecclesiastical" tradition was set up side by side with apostolic, as what was so called had been set up side by side with the Word of God.

Darboy set out, from his diocese of two millions of souls, to bear witness that the doctrine of Papal infallibility was not the faith, and never had been, on the banks of the Seine. Manning set out to testify that it was the faith and the tradition on the banks of the Thames. Clifford set out from Clifton to declare that it was not the faith on the Avon. Deschamps went to prove that it was the faith in Malines. Dupanloup went to prove that it was not, and never had been, the faith in Orleans. Cullen left Dublin to demonstrate that it was, and ever had been, the true faith of Ireland. MacHale left Connaught, bracing up his fourscore years, to go and bear witness that it was not the faith he had learned, no, nor any of his coevals. Spalding embarked from Baltimore to testify that it was the ancient faith in America. Kenrick set forth from St. Louis to protest that this was the reverse of the truth, and to prove that he had never been taught it in Maynooth, and even to tell of the first time when the doctrine was broached within the walls of that college. Rauscher left Vienna and Schwarzenberg Prague; Haynald left Hungary and Strossmayer Croatia; Von Scherr left Munich, Melchers Cologne, and Förster Breslau, to testify that the faith and tradition of their Churches had not ignored, but had withstood, the new doctrine. They had to add that the conscience of the people was so set against it that it was as much as the authority of the Church was worth to attempt to impose it upon them. Von Ketteler left Mainz to testify loudly, but with so uncertain a sound that no ordinary man could "know what was piped or harped."

On the other hand, the bishops of Spain, Italy, and South America almost unanimously sallied forth to testify that in their Churches the new dogma was an old doctrine.

Their testimony was reinforced by some from more ancient sees. Hassun set out from New Rome, as the Orientals call Constantinople, to bear witness, as Patriarch of Cilicia, that the City of Paul, and the Churches planted by him, had always held the faith and tradition of Papal infallibility. Valerga turned his back on the Mount of Olives, on Sion, and on Bethlehem, to give evidence, in the sight of God and man, that the Church of Jerusalem had always held the faith, and conserved the tradition, that the Roman Pontiff was infallible and his decrees irreformable.

Darboy, in his farewell pastoral, said to the Catholics of Paris, "In these matters, bishops are witnesses who prove, not authors who invent."

Had the contest lain between these two forces, the weight of talent, character, and supporting Churches would have decided it in favour of the *status quo*. But bishops sailed from Jaffna in Ceylon, and Jaro in the Philippines, from India, China, and Siam, from Swan River and New Caledonia, to swamp with their traditions those of Bishops from Churches which might pretend to have a tradition. The fact that theirs could not set up any such claim was one objection urged against their votes, another being that they were dependent on the Propaganda. With these came also a number of Oriental bishops, in the same financial position, of whom Vitelleschi says that they brought the finest wardrobes and the steadiest votes. In aid of these a thick growth of bishops *in partibus* sprang out of the well-warmed conserves of Court patronage.

Roughly stated, the result was, that out of Italy and Spain old and educated Churches, when represented by prelates trained in their own bosom, generally declared in opposition to the new dogma. Where they did otherwise, they were often represented by prelates trained *in Rome*, and, like Cullen and Manning, specially selected to imbue the National Church with the municipal theology of Rome, and, in case of need, to impose it upon the clergy. Those from really ancient cities, like Jerusalem, who supported the Curia, were dependents of the Propaganda. With these came the occupants of sees created by Pius IX, most of which, from Westminster to Oceania, were represented by witnesses in favour of infallibility.

Many of the bishops had for travelling companion a small pamphlet. It was called *Considerations* (*Erwägungen?*), and put the case against Papal infallibility in a form and compass seldom equalled, in any composition, for

clearness, depth, fulness, and compression. It was no secret that the author was Döllinger, but he had not chosen to put his name on the title.

In this manner was prepared for the world a drama of many scenes, which has left permanently in the eye of history four great spectacles—(1) How an ancient aristocracy, claiming to be the senate of humanity, was made the instrument of destroying its own legislative rights; (2) How masters of ceremony, habituated to employ it for both political and religious ends, were made its victims, ceremony being brought into operation to carry away surreptitiously their constitutional forms, and with them their legal privileges; (3) How they who had declared "ecclesiastical" tradition to be as good a foundation for doctrine as the Word of God, went through the process of building on the sand; (4) How a Head of the human species, a King of kings and Lord of lords, was erected by priests, and humiliated by Providence.

FOOTNOTES:

[165] Letter as printed in *Otto Mesi*, p. 413, and now (but also in French) in *Eight Months at Rome*, p. 277.

[166] *Friedberg*, p. 287.

[167] The author of *Reform in Head and Members* says (p. 156): "The theological lecture-rooms of the Sorbonne are empty, and the fame and splendour of France in theological science, in which she once took so high a place, have been extinguished, since the clergy began to receive their education—that is, as much education as was indispensable—in the smaller episcopal seminaries, and their theological training in the greater ones. There is no theological science at all in France now." He supports this broad assertion by details given by Bouix, a well-known Ultramontane writer.

[168] *Stimmen*, N.F., vi. p. 57.

[169] *Letter to the Duke of Norfolk*.

CHAPTER XI

Diplomatic Feeling and Fencing in Rome, November 1869—Cross Policies on Separation of Church and State—Ollivier, Favre, De

Banneville—Doctrines of French Statesmen ridiculed at Rome—
Specimens of the Utterances approved at Court—Forecasts of
War between France and Prussia—Growing Strength of the
Movement in France for Universities Canonically Instituted.

THOSE who arrived in the autumn months in Rome, perhaps with the hope of preventing the dreaded proposals from being brought forward, or with the intention, if they could not succeed in that, of organizing an opposition to them, found to their surprise that the tone of the Curia was very gentle. The Cardinals and Monsignori, for their part, really did not care about infallibility. Indeed, the subject might have been passed over in silence had not such false rumours as to the designs of Rome been set afloat. Lord Acton names Cardinals Antonelli, Berardi, and De Luca, and also Bishop Fessler, the Secretary of the Council, as declaring that the utterances of the *Civiltà* were not to be relied upon, and that if the idea of proposing infallibility had been entertained, it was given up. He also quotes a letter written home by a bishop, afterwards known among the Opposition, saying that there was no ground for the idea that in Rome they meant to make infallibility a dogma. That seemed to be an imagination, spread abroad with no good design. Still, after the agitation which had taken place the Council could hardly pass the matter over in silence. The Holy See would not curb the zeal of the bishops if they resolved to give effect to their persuasion, but would not itself take the initiative. But if anything was done, it would be some moderate measure, that would satisfy all, and give no pretext of a party triumph.

Lord Acton further says, what is confirmed from many quarters, that Cardinal Antonelli feared that the Pope was about to bring upon himself difficulties similar to those which beset the earlier years of his pontificate. Some treat Antonelli's apparent coldness as a *ruse*. But, Englishman-like, Lord Acton takes the hypothesis that requires least dissimulation, crediting the foresight of Antonelli with real apprehensions.

Lord Acton expresses a belief that there might have been some idea of finding a substitute for infallibility in the suppression of freedom of faith and conscience; with the expectation that the most prominent hindrance to the new dogma would be removed so soon as the Inquisition should be recognized as having one and the same legal position with Catholicism

itself. He thinks that a great step in that direction would have been taken if the proposition of the Syllabus had been confirmed which condemns the assertion that the Pontiffs and Councils had ever transgressed the bounds of their power, or usurped the rights of princes. As to usurping the rights of princes, a writer like Lord Acton is at a disadvantage, compared with one like Professor Ceccucci, who wrote the history of General Councils, for the voluminous work of Frond. Ceccucci settles the point with an ease of which Lord Acton has no idea. The Church "never did usurp political power; that possessed by her has always been the most legitimate on earth" (*Frond*, vol. iv. p. 358).

But one point stated by Lord Acton is that infallibility had been looked upon as a means to an end; and this is the kernel of the matter. Just as, logically, the doctrine of infallible judgment was developed out of that of unlimited power, so, practically, unlimited power must be exercised by an infallible judge. Admit that God has given all power upon earth to one man, and surely you will not deny that, in mercy to His creatures, He will make that man infallible. Admit, on the other hand, that the judgment which bids the secular arm smite this and shield that is infallible, and surely you will own that the secular arm should obey. Liberal Catholics were, not unnaturally, incensed at the writing in the *Civiltá* at a moment when those in power might have been expected to set an example of moderation. The Freemasons were told that the reason why they dreaded the Council was that they would be condemned, and that no respectable persons would join them after that. And the Liberal Catholics were told that their reasons for dreading the Council were much the same. They professed similar principles with those of the Masons, which were sometimes called Principles of '89, sometimes Principles of Modern Society, or Toleration, or Liberty of Conscience and the Press, or Modern Constitutions, or the Rights of Science, or the Boons of Progress, or Liberalism. No wonder that men who had championed the Church of Rome as the Catholic Church, should tremble when they saw her sinking into a sect so strait as to put all these principles under ban (*Civiltá*, VII. viii. p. 285).

On November 9 the Pope received the Marquis of Banneville, newly returned to his post as ambassador of France. After many signs of vacillation, the Emperor had finally decided not to ask for the admission of an ambassador. This policy met the views both of the Papal party and of

those who desired the entire separation of the Church and the State. The latter had adopted the notion that they took a step towards separation by leaving the Church, while still an establishment of the State, to legislate for the nation over the head of the State. As early as July 10, 1868, M. Emile Ollivier, in the *Corps Législatif*, dwelling on the fact that the Pope, in his Bull, did not name the Emperor, and that he held all those addressed in it bound by it simply through its being posted up in Rome, said: It is declared that, by the simple fact of its being issued in Rome, every bishop in France is bound and must betake himself to Rome, on pain of disobedience. The Emperor or the civil power is not thought of. It is the gravest act accomplished since 1789. It is the separation of Church and State, proclaimed, for the first time, by the Pope himself.

On April 9, 1869, Ollivier again raised the subject, protesting that the abstention of the government from the Council amounted to an abrogation of the organic articles of the Concordat. Jules Favre said that it was the separation of Church and State, and as such he gratefully accepted it. These consequences were denied by the minister, M. Baroche, who asserted, "After the Council, the rights of France will remain entire."

This boast passed in France, but not so at the Vatican. The *Unitá Cattolica* for April 14 showed that the usual ambiguity of the Bonaparte policy marked the replies of the ministers on this critical occasion. The bishops were to go to the Council with "their conscience in full liberty," and yet "after the Council the rights of France were to remain entire." "What," asks the *Unitá*, "does that mean? Does France want to be free either to relieve or to oppose what the Council will define? After having permitted her bishops to take part in an assembly which every Catholic must believe to be infallible, does Napoleon III mean to hold himself free to prosecute them if they preach the doctrines defined, and enforce the discipline enjoined by the Council?"

This straightforward question shows that M. Picard hit nearer to the point than either Ollivier or Favre; for he cried, "It means a Church free in a State not free."^[170] Even that is not quite the truth; which strictly is, A State not free in a Church which is free; for the State is part, and the Church whole; or, to recall the image from the early pages of the *Civiltà*, the State is the leg and the Church the man. We have seen it roundly asserted by the *Civiltà* that the Church free means canon law free. That being so, for any man to

speak of the State being free, in any modern sense, is trifling. In its expositions of the Syllabus the *Civiltá* had laid down the true doctrine as follows: *The first condition of an efficient alliance of the laws of the State with the laws of the Church, is the application in every case wherein spiritual penalties are insufficient of the means of coercion whereof the State disposes.* The voice of the pastor has not always efficacy sufficient to drive away the rapacious wolves from the fold of Christ. Therefore does it appertain to the prince invested with the authority of the sword to arm himself with its force, in order to repel and put to flight all the enemies of the Church (VI. ii. 137). Refusing to stand in this position is, in the esoteric sense, separating the State from the Church. To a conscientious Ultramontane it is absurd to say that a State in this manner subject to the Church is not free, as it would be to say that a body ruled by its informing mind is not free. That is the figure of speech which recurs at every turn of discourse on the subject.

After it had been determined to ratify the policy censured by Picard, De Banneville had his interview. Most writers describe him as a willing tool of the Curia, and as doing all he could to lead France in the way which it might trace out for her. Lord Acton regards him as honestly hoping to compose a difference between the Italian and German schools of theology, by the moderating weight of French influence.^[171] Banneville's despatch, on the occasion now in question, would rather seem to countenance the former opinion than the latter.^[172] But the Pope in the interview did not say a word indicating his personal opinion as to the questions to be decided. He did, however, say that all must be left to the wisdom of the Fathers—as if all had not been prepared, and doubly prepared. He further said that the rash conjectures of hasty spirits—in manifest allusion to the *Civiltá*—were to be regretted, as also the premature discussion of questions which would have been better reserved to the Council itself.

It is not probable that this deceived M. de Banneville as to the past, for he well knew how the Pope had encouraged the "premature discussions"; but he might take it as the covering of a retreat from a position found to be too advanced. But a wary man might have felt that perhaps the retreat was only a feint.

The despatch of M. de Banneville shows that Pius IX, like every Italian, knows how to keep his own counsel. Even his renowned saying, I am

tradition—*La tradizione son io*—is no more than what M. Veuillot had said in proving that the Pope could not be an innovator—"Peter can no more be an innovator than the Holy Spirit, which reveals tradition to him."[\[173\]](#)

The tranquillity of the Curia on this occasion was that of perfected preparation. The dissimulation would not provoke a remark from a Roman. The effect of both was to prevent the anti-infallibilists from organizing any opposition.

Some examples of the points kept before readers arriving at the Holy City at this particular time may be of permanent interest. The Canadian Bishop of St. Hyacinthe was quoted as writing, "Sublime assembly, in which the eye of faith contemplates with wonder, poor and simple mortals who, sitting as judges, do not hesitate *to impose the responsibility of their decisions and judgments on the Holy Spirit*, because they know and believe that they form together with Him one tribunal." The emphases are given as we find them.
[\[174\]](#)

A Latin pamphlet on the crisis, by a layman, was ridiculed, and one point, which seemed most comical to the reviewer, was that the author proposed two such queer anathemas; first, if any one offends against charity, let him be anathema; secondly, if any one begins war, let him be anathema.

The Archbishop of Lima, being ninety-four years of age, was unable to come in person, but sent his pastoral staff as a present to the Pope. It was of pure Peruvian gold, and of the value of two thousand pounds.

From the thrice-blessed Republic of Ecuador came the Archbishop of Quito, presenting a chalice of gold, rich with precious pearls. He bore valuable gifts in addition. That "illustrious Catholic," the President, Garcia Moreno, had, on a public occasion, been presenting prizes to students, when they joyfully laid down their medals to send them as an offering to the Holy Father. On seeing this, the President took from his breast a medal of rare value, all studded with gems, which had been presented to him by the government for distinguished services to the country. This he added to the tribute of the youths, and the Archbishop had the joy of laying the united oblation at the feet of the Pontiff.
[\[175\]](#)

From Venezuela the Archbishop brought more than three thousand pounds in money. His people had also laden him with their valuables, ladies having

taken off earrings, bracelets, necklaces, and rings to send, as tokens of their devotion to the impoverished Pope.

Had our English journalists devoutly pondered the elaborate description given at this cheerful juncture of a bell designed by a priest, and presented for the use of the Presidents in the Council, they would not have wasted so much criticism as they did on the rhetoric of a speech reported in the *Daily News*, in 1875, as having been made by the Pope, censuring Mr. Gladstone. His Holiness spoke of that gentleman as a viper attacking the bark of St. Peter, or something of that sort. Now the bell in question was described as being symbolic, within and without. The clapper of it was the ship of Peter, round the hull of which was coiled a serpent attempting to board the vessel, but it was finally precipitated with its head down, and the three-forked tongue shooting out.

The doubt of our men of letters as to whether the Pope could use a metaphor describing a snake attacking a bark, illustrates, in general, what Cardinal Manning said of those gentlemen on the particular occasion of the Council—"When English Protestants undertake to write of an Œcumenical Council of the Catholic Church, nothing less than a miracle can preserve them from making themselves ridiculous."^[176] It would require a miracle to prevent any one from making himself ridiculous who should criticize the Speeches of Pius IX, assuming that his metaphors must have been subject to some rule.^[177]

We find the revolution called by the *Civiltá* "the executioner of the Church"; and it is said that the Pontiff in his distress is rendered more and more like Christ upon the Cross, whom he represents, and with whom he can repeat, "My God, my God, why hast Thou forsaken me?" (Id. p. 514).

The Word of God is shown to be the source of human redemption, and then the following applications are made of this principle—^[178]

"The State indeed must be civilized and modernized by separating it from the living Word in the Church, that it may die.... The laws must be civilized and modernized by putting them in opposition to the laws of the Word, that they may be laws of death.... Some would wish the Word to reconcile Himself with Satan.... Schools must be civilized and modernized by separating them from the schools of the Word, that they

may be schools of death. Wedlock must be civilized and modernized by separating it from the consecration of the Word, that it may be the wedlock of death. Public speech must be modernized and civilized by separating it from the influence of the Word, that it may be the speech of death. Everything, in fine, must perish, since everything must be secularized, or torn away from that God who *upholdeth all things by the Word of His power....* The modern revolution, inspired by Satan, would find that all its weapons directed against the Vatican were destined to have no other effect than that of multiplying the victories of the Word of God, who reigns there in the humble person of His Vicar" (pp. 522-26).

The Court, if we may judge by its organs, was deeply affected at the want of faith displayed by many Catholics, who expressed fears lest the Council should define anything that it ought not to define. Did they not know that the Holy Ghost would preserve it unerring? Why then all this solicitude? Could they not trust a body so guided to go right, without their advices and warnings? They treated it "as an ordinary human assembly." This sounded like mockery to those who had any idea of how much Rome had done in employing *art and man's device* to prevent the Council from going wrong and to forestall all possible impulses in any direction not predetermined. Had they only known of the long labour and the jealous precautions which we shall see gradually coming to light, the retorts they did make would have been much more indignant.

FOOTNOTES:

[170] *Friedberg*, pp. 93, 94.

[171] *Zur Geschichte*.

[172] *Friedberg*, p. 330.

[173] Vol. i. p. cxxi.

[174] *Civiltá*, VII. viii. 335.

[175] Under Moreno, Ecuador attained the distinction of being often mentioned, with solemn commendation, as the one and the only *Catholic State* in the world; the one in which the principles of the Syllabus were applied.

[176] *Priv. Pet.*, iii, p. 3.

[177] *Civiltá*, VII. viii. 490. The inscription on the bell in question is as follows

—
Invocata—Immaculata
Pius Nonus—Pastor bonus
Per Concilium—Fert auxilium.
Mundus crebris—tot tenebris
Implicatus—obcoecatus
Per hoc Numen—et hoc Lumen
Extricator—illustratur.

[178] The term *verbo* is employed, which in Italian has about the same effect as *logos* would have in English writing.

CHAPTER XII

Mustering, and Preparatory Stimuli—Pope's Hospitality—Alleged Political Intent—Friedrich's First Notes—The Nations cited to Judgment—New War of the Rosary—Tarquini's Doctrine of the Sword—A New Guardian of the Capitol—November and December, 1869.

WHILE the chiefs of the Curia and the leading prelates were testing their diplomatic skill, and the former were, on that field, meekly winning the prizes, the rank and file of the hierarchy were flocking in from all the winds of heaven. The Roman nobles in many cases gave up their palaces to the Fathers of the Council. With his habitual personal liberality, the Pope freely offered hospitality to all who would accept it. This simple act, natural to his station, and still more to his disposition, was smiled at as a good bid for votes. About three hundred bishops made themselves, in whole or in part, dependent for their daily expenses on the bounty of the man upon whose exaltation they were to decide. The *Civiltá*, as if to emphasize their dependence, told how they were lodged, supported, and assisted by him in all the necessities of life. Hence the mocking name of the "Pope's boarders," which greeted any manifestations of opinion on their part. It is said that his expenses for the entertainment of the bishops amounted to one hundred pounds per day.

A case of history repeating itself is suggested by these allegations as to the diplomatic value of the Pope's hospitality. Dr. Karl Benrath has restored to his place among Italian worthies one of the most picturesque figures of the many-hued life of that nation in the sixteenth century. This was Frà Bernardino Ochino, the all-eloquent General of the Capuchins, whom the blot of the Inquisition had covered from the common eye for three centuries. Ochino, who became a guest of Cranmer and a prebendary of Canterbury, wrote on the banks of the Thames, among other works, one called *The Tragedy*. Conceiving of the Papacy exactly as all modern Italian Protestants do, as the anti-Christ, and the masterpiece of Satan, he traces the rise of this dread power. Besides supernatural sources of ascendancy, he alleges the fact that in early ages the Bishops of Rome entertained bishops out of the provinces when they fled to the capital from persecution, or came from other causes, and thus the Roman prelates acquired great influence over the others. Their object then was "Primacy," out of which infallibility was in our day to come. Ochino puts into the mouth of the secretary to the Emperor, after he has discovered the Pope's yearnings, the following words: "O Lord God, that there can be so much ambition in the heart of a man! it is no marvel that he entertains in so friendly a manner all strangers who come to Rome."

Besides bishops came a mixed multitude—the devout Catholic, the keen politician, the commonplace tourist from every country, the gay sightseer, the American politician, the artist, the charlatan, the Indian civilian on furlough, and the learned official theologian. Few, but intent, came a new class of spectators—Italian Protestants, watching with eyes as open to all priestly arts as men of the sixteenth century, but with a readiness to affiliate each part of a Roman show on its Pagan original, much beyond what was even then common among our countrymen.

The Count Henri de Riancey, beholding the hierarchy pressing to the sacred walls, exclaims—

Open then thy gates, metropolis of the world; open thine everlasting gates, that the Queen of glory may come in! And who is this Queen of glory? It is the Church.... Make way, then, for the angels of the Churches, spoken of by St. John. Make way for the divine hierarchy,

the ranks of which are moving, with order, force, and holiness, terrible as an army with banners (*Fronde*, vol. i. p. 9).

One of the theologians has published a diary (*Tagebuch*), which will always remain one of the original sources of information on the Council. Its accuracy, like that of the *Letters of Quirinus*, has been assailed, and with not dissimilar result. Strong general assertions and weak proof, except on such minor points as show that the substance is unassailable, leave its accuracy but slightly impeached, and its truthfulness not at all discredited. The author states things which, by our standard, would be held private; but however that may be by the standard of his own country, the things, when once published, take their place among the materials of history.

Dr. Friedrich, a professor of Munich, was appointed theologian for the Council to Cardinal Hohenlohe. He began his diary before leaving home. He found that it was vain to seek in the palace of Archbishop Von Scherr for such works in the original as a set of the Fathers, or a collection of the Acts of the Councils. The Reverend Secretary said, "You know little of bishops if you think that those people study anything." This gentleman, who was to be the Archbishop's theologian at the Council, himself read only pamphlets. When Friedrich was on the railway platform, observing the two Archbishops of Munich and Bamberg, taking their departure for the Council, the confidential servant of the latter came up to the Professor and said, "You are not surely coming to Rome as a spy?" Answering not the man but the master, he replied: "Let bishops take care that they do not betray the Church, for just as they are bound to speak to the best of their knowledge and conscience, so am I as a theologian."

Thus Friedrich evidently expected to have to speak, as it would seem that Newman also did. He did not know how the secret plans had put aside all such possibilities. But if surprises awaited him as to the new part reserved for the doctors, there were surprises for the bishops also.

Friedrich remarked that, as he travelled farther south, less and less respect was shown to the clergy, till in Italy the difference, as compared with Germany, became painful. At Trent, a scholar warned him to beware of poison, and said that it was well that Döllinger had not gone to Rome, as he would never have returned.

The theologian, full of the lore of Munich, standing in the quaint Alpine city, on the Adige, with the image in his mind of the doctors who, three hundred years ago, there disputed before the bishops and before the world, would naturally form an exalted idea of the work awaiting him in the grander assembly on the banks of the Tiber. The church of St. Maria Maggiore would swell, in his anticipation, into St. Peter's; the listening prelates to a threefold or fourfold array. The struggle itself was to be much more concentrated, turning on one vital point. It was not now merely a question as to what was to be taught, but as to who was the divine teacher. It was not a dispute about one doctrine or more, but about the very fountain of doctrine. It was not any question between the Church and her enemies, but one between the Church and her head. It was to be decided whether the oracle was the whole Church, or the Pope without the Church. The dispute was awkward. Raising it showed Protestants that Rome, while claiming infallibility, had not yet settled where it lay.

After a narrow escape of being murdered on the railway near Terni, Friedrich reached the Holy City. Such was the throng, already, that he had to pay ten francs for the use of a room for a while in the afternoon, before going to his home in the Palazzo Valentini with Cardinal Hohenlohe. That palace stands in the Piazza of the Twelve Apostles, full of reminiscences of days when Alberich and his descendants ruled the city, and held the Popes, sometimes in prison, but always in subjection to the chiefs springing from Theodora and Marozia.

On November 28, a discourse was delivered in St. Peter's, by Father Raimondo Bianchi, Procurator-General of the Dominicans, which was thought sufficiently important to be printed with the Freiburg edition of the *Acta* (p. 130). If good preaching lies in saying much and suggesting more, in the least time, this sermon is perfection; for it occupies less than four octavo pages. A note which we have already heard delicately touched by Archbishop Manning, a note at that time as often sounded as any in the episcopal scale, was given forth with full power: "Be wise, O ye kings; be instructed, ye judges of the earth."[\[179\]](#)

On December 4, the Dominicans appeared again. The Pope, departing from the usual course, had appointed Father Jandel as their general; some say selecting him that he might amend the theology of the order, the members of which were known to be weak Immaculatists, and suspected of not being

sound Infallibilists. Father Jandel now broke out in a circular, which twenty years ago we should have smiled at as at new *gri-gri*, but which now seems to be more like to the red cross of the Muster. We shall presently see how scientifically Tarquini had demonstrated that the right of *directly* wielding the temporal sword did, in spite of all denials, belong to the Pope and a General Council, and we have already seen with what fascination popular pens were surrounding the life and death of the "soldier of the Cross."

"We hasten," exclaims Jandel, "to announce to you the joyful tidings, and we make speed to convey to you the pontifical brief which grants new indulgences for the recitation of the rosary during the whole continuance of the Vatican Council." The brief thus heralded looks as if the inspiration of St. Peter Arbues, "first inquisitor of the kingdom of Aragon," was beginning to operate. The Pontiff informs the faithful that St. Dominic, armed with this rosary, as with an invincible sword, crushed the infamous heresy of the Albigenses. Therefore, in the present crisis, equipped with the same armour, and *with the authority of the Vatican Council*, they will be enabled to "overthrow and extirpate the manifold monsters of error that prowl around." To invite all to arm themselves with this holy weapon, special indulgences are granted to those who will daily recite ten rosaries, so long as the Council lasts. We believe a rosary consists of one Paternoster, ten Ave Marias, and one Gloria; so that each week seven hundred prayers to the Virgin, seventy to God, with seventy doxologies, would have to be repeated. The Pope strongly expresses his simple faith in the efficacy of this expedient. [\[180\]](#)

All who know what has been going on in Europe of late years know that the time for smiling at rosaries is past. A charm or a *chupattie* ceases to be a trifle when it becomes the symbol connecting devotion with deeds of blood. At a time when millions upon millions of children are in the hands of those who, with gentle manners and profoundly conscientious views, instil antipathies which time can scarcely extract, charms become formidable when to such antipathies they are the symbols of—as the *Civiltà* puts it—a pure conscience, a sublime cause, and an immortal hope.

The significance of these demonstrations was greatest for those who had watched the doctrines which were being elaborated by the Jesuits and diffused both through periodicals and such scholastic books as that of Tarquini. The doctrine of Boniface VIII, that the material sword was not in

the hand of the priest, but only at his beck, was being replaced by a higher one. Boniface accused those of Manichean dualism who did not confess that both swords were in his *power*. But it proved that he had himself leaned too much towards dualism, for he denied the material sword to the priest's own hand. This doctrine would no longer do. Cardinal Tarquini, who, it must not be forgotten, is set before us by Cardinal Manning as the modern example of teaching milder than that of Bellarmine and Suarez, goes beyond the theology of former times, and claims the *direct* right of the sword, even in war, for the *hand of the Pope and a Council*, though still denying it to inferior ecclesiastical authorities.

I admit, says Tarquini (p. 39), that the Church is a spiritual society as to its end; I deny that it is so as to its substance—that is, as to the members composing it, since they are not mere spirits but men. I admit that it ought to use spiritual means—that is, means *which are adapted to the attainment* of the spiritual end. I deny that it should use only means which are spiritual in themselves and in their nature. Every one who is not a simpleton knows that men (in whom soul is joined with body) are to be moved, corrected, and coerced; hence they cannot be led to an end, even a spiritual one, by purely spiritual means. But the matter, quality, and proportion of the means is to be determined by the requirements of the end.

As to the words of our Lord, that His disciples shall not exercise lordship as the kings of the Gentiles do, he admits that they bind the Church to shun dominion *so far as that means a spirit of ambition whereby any one might subject others to himself for his own glory or advantage*; but he denies that they require her to shun dominion in so far as it means the office of ruling, and that of administering means contributing to the attainment of her end.

He labours to meet the objection against the use of force by the Church, drawn from her own doctrine, that men are to be called to her bosom freely and without compulsion. He asserts that liberty here means freedom from *intrinsic necessity*, but not from *extrinsic necessity*, or coercion. This coercion or compulsion does not prevent either merit, or the attainment of the spiritual end; indeed, when applied by the Church, greatly promotes them. He admits that compulsion is not to be used towards infidels—that is,

unbaptized persons—but denies that it is not to be used towards baptized persons.

As to the objection founded on 2 Tim. iv. 2-5, that "the weapons of the Church are altogether confined to exhortations and tears," he simply says, I deny it. Then he argues that the words of St. Paul in this place rather weaken than support those who oppose the use of force; because the terms he employs are both *general and sharp: reprove, rebuke, be instant in season and out of season*. All means which necessity may call for are included. He admits that longsuffering and doctrine are to be employed, if necessity demands no harsher means; but denies that they are to be employed exclusively. He demands that the character of the times in which these texts were written shall not be forgotten, namely, times in which the Church, being under the unfriendly government of the heathen, *was not able to put forth the fulness of her power*. But it cannot be proved by any arguments that this right (*jus gladii*) may not be *immediately* exercised by the supreme magistracy of the Church, if necessity call for it; for the contrary indeed may be demonstrated from natural law, since the Church is a Perfect Society; and no passage can be cited from positive divine law in which it is really prohibited, for Matthew xxvi. 52 is quite inapplicable, where Christ says to Peter, *then a private man*, "Put up again thy sword into its place"; and 2 Cor. x. 4, where Paul, declaring the might of his own power, says, "*The weapons of our warfare are not carnal (that is, are not fragile or futile), but are mighty through God to the pulling down of strongholds.*"

The fact that the meaning of carnal weapons is coolly assumed to be fragile or futile ones, is not to be overlooked. It would naturally follow that the chassepots at Mentana, which were neither fragile nor futile, were not carnal weapons. Of course Tarquini would have said that though in their proper nature carnal, when serving a purely spiritual end they took on a spiritual character. But we cannot forget that the "strongholds" which the weapons of Paul were mighty to pull down were "imagination," and the captives they led bound were "thoughts." That is a sphere in which the proper weapon is not either shot or fether, but the word and the works of men whom God makes wise to teach and holy to charm. There is one symbol which the Vatican never sees, that of the true and only Head of the Church, with no sword in His hand, much less two, but one sharp sword

with two edges proceeding *out of His mouth*. That alone is the weapon that is not carnal but mighty through God.

We now begin to see the grounds cropping out on which Mr. Bryce's doctrine of two heads to the Catholic State, one civil and one spiritual, was condemned. The days of dualism and Manicheism in any form were numbered.

With their complaints that the Jesuits, both in the confessionals and in their text-books, corrupted Catholic morality, the Liberal Catholics mingled loud and bitter complaints that they sought to make the people superstitious and to keep them ignorant. It was often alleged that even their schools, or those under their virtual if not ostensible control, were themselves preserves of ignorance and superstition, keeping the scholars from an education, according to their capacity, for one "suited to their position," and at the same time preparing them to receive all kinds of fables and "lying wonders,"—a term not infrequently quoted by Liberal Catholics. Those fables and wonders would open a field so large, and one lying on a level so low, that we have not cared even to glance at them. As found in local clerical papers, or books of what is called "devotions," they are so gross that a writer could hardly repeat them without incurring loss, not only in the respect of others, but in self-respect. Liberal Catholics, however, know that they are a real power in Jesuit hands, one of the powers in the future war against science, the Press, and free government, and through these, against Protestantism. One specimen of the higher order we may give, from which some opinion may be formed of those vented in small places, by ignorant men, through low publications.

We speak of the great *Civiltá*,^[181] of the "metropolis of the Christian world," and of a deliverance of the Capitol itself. The plan of the Garibaldians, insists the *Civiltá*, in October 1867, was to seize the Capitol and to ring the great bell, at the sound of which all over Rome their hordes were to rise. But Anna Maria Taigi, who had died thirty years before, in the odour of sanctity, had seen prophetic visions of Rome wasted with fire and sword, and dreadful with heaps of unburied corpses, breeding dire pestilence. Some thought that 1849 might have been the fulfilment of the vision; others that it was the attempt of 1867. But by the special "devotion" to this saintly woman, such dread event was to be averted. On the evening when all felt that the shock was coming, but no one saw whence or how, a

priest of ninety years old, "well known to all in Rome," said to another, "I feel assured that the venerable Anna Maria will defend the city; and her image must at once be carried to the Capitol, for that is the point they will aim at; the Capitol once saved, Rome belongs to the Pope." The other priest objected that the hour was late and the streets unsafe. The old man insisted, reassured him, blessed him, and sent him away with the image, charging him to place it on the highest point. As the priest, bearing the image, reached the steps of the Capitol, a friend from a window, perceiving him, earnestly warned him to go home. Trembling, yet resolute, he pressed up the hill. All was silent as a desert. Having reached the utmost height under the bell-tower, he was fixing up the image, when he heard people move, and a door opened. A woman appeared. "I came," said he, "solely for the purpose of setting up an image." It would appear that it was a picture, for he had brought wafers with him to fasten it. Carlotta (for that was the woman's name) looked at the image, and cried, "Why, that is the venerable Anna Maria Taigi; I also practise devotion to her." The priest withdrew in silence and in haste. Meanwhile a priest from Bologna went in to visit the nonagenarian devotee of Anna Maria. "Don Pedro," cried the old man, "the Venerable has taken possession of the Capitol in the name of the Pope, and she will defend it from the Garibaldians." The attempt on the Capitol was almost immediately made and failed. Those who remember the tale of the Capitol when Brennus was the Garibaldi will be tempted to ask how great is the present elevation of faith above that of the days of the sacred geese.

FOOTNOTES:

[179] Bryce (p. 177) quotes from the second excommunication of Henry IV by Hildebrand as follows: "Come now, I beseech you, O most holy and blessed Fathers and Princes, Peter and Paul, that all the world may understand and know that if ye are able to bind and to loose in heaven, ye are likewise able on earth, according to the merits of each man, to give and to take away empires, kingdoms, princedoms, marquisesates, duchies, countships, and the possessions of all men."—*Holy Roman Empire*.

[180] Guérin, pp. 61, 62; Friedberg, p. 82.

[181] VII. vii. 432 ff.

CHAPTER XIII

Great Ceremony of Executive Spectacle, called a Pro-Synodal Congregation, to forestall Attempts at Self-Organization on the part of the Council—The Scene—The Allocution—Officers appointed by Royal Proclamation—Oath of Secrecy—Papers Distributed—How the Nine had foreseen and forestalled all Questions of Self-organization—The Assembly made into a Conclave, not a General Council—Cecconi's Apology for the Rules.

THE event now to be described was called a Pro-Synodal Congregation. Being designed to give parliamentary effect to secret decisions of the Court, it was in reality a Ceremony of Executive Spectacle. Such a description seems obscure, but the official name is misleading. *Congregation* is the word used in Councils for deliberative sittings, in which measures are proposed and debated, in contrast to *Sessions*, which mean only grand public solemnities, where decrees already voted are formally adopted. Therefore the word Congregation would suggest deliberation and some sort of consultative participation, by the bishops, in the proceedings.

This prelude to the Council was not a vain show, but had been contrived by the best diplomatic and artistic skill of the Curia. After the Directing Congregation had spent nine months in elaborating rules of procedure to bind the bishops neck and foot, the Nine began to see that, should the Council meet before it was organized, it might fall into the temptation to organize itself. Some one skilled in parliamentary forms might move to elect officers, and to have, as in former times, open discussion, in order to hear questions of theology argued by the doctors, before they, the judges, began to frame their sentence. Some one might even suggest that they should agree upon their own rules of procedure. Now, all these points had been irrevocably settled beforehand against the episcopate by its superiors, and any attempt to discuss them might cause the greatest confusion. If some spirit, perhaps like Darboy, as is gravely said, "excessively enamoured of liberty," should once stir such questions, the records of Trent were there to show that it might cause trouble to settle them. Therefore the Nine were disquieted. Such possibilities must be forestalled.

Moreover it had been resolved that, to take time by the forelock, the all-important Rules should be printed in advance, and should, before any possible self-action of the Council, be distributed during the grand public ceremonial of opening. Doubtless, when first adopted, this resolution seemed not only satisfactory, but far-seeing. It was not till as late as the month of August that some one pair of eyes among the Nine caught sight of the fact that, the opening ceremony being legally a Session of the Council, some "advanced spirit" might take advantage of that circumstance to assert that the Rules, being issued in a sitting of the Council, were an act of the Council, and therefore were liable to revision by it. That would never do. Therefore, at two sittings, on August 16 and 22, the former resolution was rescinded, and the ingenious expedient was devised of the Ceremony of Executive Spectacle now to be described. The Rules could be issued as part of the ceremony, and thereby would every pretext for declaring them an act of the Council be forestalled.

The Sixtine Chapel, connected in the imagination of the Fathers with all the glories and sanctities of their Church, was specially fitted up for the event. From every region under heaven gathered prelates richly attired, each feeling the splendour of the scene, and consciously augmenting it. Their susceptibilities of spectacle were vividly awake. As boys, those susceptibilities had been trained and forced. As men, they had themselves trained and forced the same susceptibilities in others. Now, in old age, they came to have the art of government by spectacle practised upon themselves; practised by masters to whom their consciences, sympathies, and imaginations taught them to look up. Under the skilled touch of those masters were they now about to let drop, without a word, and for the most part unconsciously, privileges of their order, which had been guarded by their predecessors as carefully as they would themselves guard their episcopal rings. The place, the men, the scene, the coming displays, and the dawning future, big with events, were, for the moment, all in all to them. It was the historic eve of the day of days; and deep feeling fluttered under their silk and brocade and gold.

Before their eyes spread the wonderful painting of Michael Angelo, in which, according to M. Frond he "reproduced" the scene of the last judgement. It is a monument to the power of genius, even when driven to work on what the true aesthetic of the painter told him should be left to the

imaging of the spirit, and should not be attempted by the pencil. There, again, stood the vacant throne, waiting for him who, when he first ascended it, had, as the reader will remember, these words solemnly impressed upon his ear, in the house and by the ministers of God: "Know that thou art Father of princes and of kings, and art Governor of the World." The Cardinal Priests and Cardinal Bishops were on the right of the throne, the Cardinal Deacons on the left. Near it stood Patriarchs, Primates, and Archbishops, in regular gradation, and after them in regular gradation came Bishops, Abbots, and Generals of Orders. Every brilliant figure in that throng was standing, except the Cardinals. Through a door, preceded by his household, was seen entering the form of him who holds the place of God upon earth. The Sacred College stood up, all clad in violet, with rochette, mantelletta, and mozzetta. Then all cast themselves down upon their knees. The Pontiff, blessing his prostrate vassals, moved to the throne, seated himself, and, with beaming visage looked paternally down on the rulers of docile millions—rulers whose many-tinted splendour was but the effluence of his own majesty.

Now, in his hale, ringing voice, the Pope read an allocution. It expressed much affection for his venerable brethren, and solicitude for the success of their approaching deliberations. To those who had come up full of confidence in the moderation of the Curia, all that they heard was reassuring. To those who had been troubled with fears of hazardous innovation, the bearing and words of the initiated had been soothing, and so was all that now fell from the throne. Still, the few who really studied would look in vain for light on the questions which had been agitated. Those who had such questions in their minds did not know that from December to the middle of October the Nine had been engaged in answering them, and had already taken care that every seam through which any constitutional liberties might leak in should be tightly caulked.^[182] Nor did they know that they were to-day gathered together for the very purpose of having many of these questions laid so deep that they should never rise again. Had they known the whole plan, was there one of them man enough to defeat it? Mighty against civil authority, were they not weak as water against a higher and more domineering priest?

Even the few would hardly have time to realize the fact that the paternal and cordial allocution gave no light upon practical matters, when lo!

Cardinal Antonelli on the right of the throne, and Cardinal Grassellini on the left! And, presently, Cardinal Clarelli, the Secretary of Briefs, comes forth and proclaims—

Our Most Holy Lord Pius IX, Pope, for the good ordering of things to be done in this Council, as more largely contained in the Letters Apostolic to be forthwith distributed, hath elected and named Presidents of the General Congregations, to preside over the same in his name and with his authority, the Most Reverend Lords Cardinals Charles de Reisach, Bishop of the Sabina, Antony de Luca, Joseph Andrew Bizzarri, Aloysius Bilio, and Hannibal Capalti (*Acta*, p. 30).

This was immediately followed by the proclamation of the name of Bishop Fessler as Secretary, and the names of other high officials. Upon this announcement the Pope solemnly gave the pontifical benediction. Without the Council, and before the Council, he had bound on earth the question of presidents, of secretary, of officers, and of rules. But his first deed was not bound in heaven. Reisach, proclaimed by him as chief president of the Council, was never to behold it.

As the Fathers took their seats, the master of the ceremonies led in Prince Orsini in the insignia of Prince-in-Waiting. The temporal prince kissed the sacred foot, and then took his place on the steps of the throne.

Now a long line of dignitaries was presented, and going down on the ground, formed a crescent of beautiful kneeling figures before the sovereign. Two Cardinal Deacons brought out the volume of the Holy Gospels, and, standing close to the Pontiff, held it above his knees. Monsignor Jacobini then read out as follows—

We, elected by your Holiness officers of the General Vatican Council, promise and swear upon the Holy Gospels, faithfully to discharge the duties required of us respectively, and moreover not to divulge or disclose to any one outside of the bosom of the said Council, any of the matters proposed for examination in the said Council, nor yet the discussions, nor the speeches of individuals, but on all these, as also upon other matters committed to us, to observe inviolable secrecy. [\[183\]](#)

Thereupon, each one rising in turn, and advancing in front of the priest-king, laid his right hand upon the book, held by the two Princes of the Church, and then said: "I, N.N., promise, vow, and swear, according to the tenor of the words just read. So help me God and these God's Holy Gospels!" He then kissed the book and the sacred foot. ^[184]

About the middle of the long succession rose John Baptist de Dominicis Tosti, and stood to take the oath as one of the promoters of the Council. Suppose that a voice had at that moment cried: "Some two years hence, this de Dominicis Tosti and Prince Chigi shall sit side by side with two ministers of the Reformed Faith, as joint presidents over a public discussion, in this city, on the question whether Peter ever visited Rome, between Catholic priests on the one side, and Evangelical ministers on the other." What an anathema would have burst from the disgusted prelates! No such shadow of an impossible shade dimmed the brilliancy of the scene.

While under the various charms of that scene, the beauty of the colours, the perfection of the postures, and the grace of the men, few would remark that the form of oath, binding, as it did, to strict secrecy on the very subjects discussed, and even on speeches, turned their forthcoming assembly from a General Council into a Roman conclave. A few indeed might see, but the overwhelming majority would not see, that several points which Councils had settled for themselves, even when they met under Emperors, were now being splendidly settled for them beforehand—in their presence, indeed, but without their co-operation, and scarcely with their consciousness. How could they think of such commonplace affairs in a moment like that? What with the glorious garments of the Sacred College, the stars and ribbons of Prince Orsini, the beauty of the enthroned Priest-King, the crescent of kneeling dignitaries before him, and the touching symbol of the temporal prince kissing the priestly foot and reverently waiting at the priestly throne, there was enough to dazzle men less under the spell of robes. True, the temporal prince was here but a pale reminiscence of better days—of those days which some of them had called to the mind of the people since the gathering of 1867; days when kings, ere they received the crown, lay prostrate before the altar, and swore on their knees to administer canon law; days when they had, moreover, to take both sword and sceptre from the hands of the bishop. ^[185] Still, this temporal prince served to assert rights

which had never been renounced, and was a comforting token of brighter times after the Council.

No sooner was the swearing of the officers over, than the Pope took his departure. Then came the master of the ceremonies, and distributed some papers to the Fathers.^[186]

They proved to be the Allocution just delivered, the Program of Ceremonies for the opening of the Council, and another document, Letters Apostolic—longer, and seemingly duller, than the Program. But this, too, was distributed by the master of ceremonies. At Courts where government by spectacle is preferred to government by reason, ceremonies enclose a wide area. What was the right of proposition, or the right of definition, or the right of public discussion, or the right of printing, or the right of meeting, in comparison with the proper places, forms, and postures? Did not Article 136 direct that the sacred pallium was to be taken off the Holy Father by the Cardinal Deacon, and to be delivered over to the Sub-Deacon Apostolic? Did not Article 39 direct that the Sub-Deacon Apostolic, accompanied by two judges of the High Court of the Signet, should bear the slippers to the throne; and Article 40 direct that the Pontiff should put them on?^[187] Probably for one bishop who after retiring looked first into the fateful Rules, ninety would look into the Program.

It was two days after the issue of these documents that Professor Friedrich arrived in Rome. He found the Archbishops of Munich and Bamberg and the Bishop of Augsburg with the Program in their hands, and also the Rules of Procedure. They were full of confidence that the Curia did not intend to propose anything dangerous. But Friedrich wanted to learn what were the subjects to be proposed, on which point the bishops knew nothing. The members of Commissions had all been bound by oath to conceal, even from their own diocesans, what was prepared for them to vote. It was to be presented to them with this alternative: Vote it, or become marked men!

On reaching the Palazzo Valentini, Friedrich found that all that was known by Cardinal Hohenlohe as to the subjects which he would have to vote upon amounted to this—a few days previously Cardinal de Angelis had asserted that nothing would be done beyond condemning the principles of 1789. This proves that the purple, at least of Cardinal Hohenlohe, was kept as far aloof from the secrets of the Nine as the black of Friedrich. Quirinus says

(p. 77) that the most distinguished theologian in Rome, Cardinal Guidi, was not only kept in perfect ignorance of all that was being prepared, but was never admitted to an audience with the Pope after he had expressed to him his own views. Another notability is said by the same author to have been also out of the circle of the trusted, and many writers share this view; this was Father Beckx, the General of the Jesuits. Words ascribed to him by Quirinus are these: "To recover two fractions of the States of the Church they are pricking on to a war against the world; but they will lose all."

Friedrich found that the decision of constitutional points of vital importance was to be wrapped up in a gay gauze of ceremonies. The very form to be given to the Decrees was slipped in among the items of the pageant. The conciliar formula used at Trent was replaced by that of Papal Bulls. The collective hierarchy were not to be permitted to say, It seemed good to the Holy Ghost and to us; nor to say, This Holy Council ordains and decrees. The name of the Pope alone was to appear as decreeing, and the only words in the decree indicating the existence of any Council were "The Holy Council approving." Matters like this, affecting not only the framework of the Church, but the seat of dogmatic authority, were settled without a note of preparation, in a program of ceremonies, among directions about faldstools, incense, and the Pope's slippers. It was as if the Lord Chamberlain, when the Queen was about to open a new Parliament, should put out a program of precedence, costumes, and ceremonies, foisting in a few clauses indicating that Her Majesty would promulge a statute or two, with the approbation of the assembled Lords and Commons. It would be no trifle if he did so of his own motion, but would become tremendously serious if it had been done with full cognizance of the monarch. [\[188\]](#)

No wonder that the keen-eyed Professor was driven from the Program to the Rules of Procedure. But the fact that the other was the document first read, even by him—a man in whom the decorative element is evidently too feeble for a useful priest, and the critical element too strong—indicates the direction which the studies of gentlemen like his archbishops and bishops would take; gentlemen, who knowing that they had been jealously kept in the dark respecting what they were to be called to vote upon as the faith of their Church for ever, were nevertheless satisfied, by a few bows and smiles, that it was to be something of no importance.

Friedrich was deeply moved by what he found in the Rules, coupled with what he considered the ignorance of the bishops.

Every adept, he cries, must see that virtually the form here used in propounding decrees contains Papal infallibility. It is the Pope, and he alone, that defines and decides. Infallibility is even now attributed to him, and not to the Council, and then, seeing that this formula is to be acted upon in the first session (or public ceremony), it is the Pope who formulates the decree without having taken even the advice of the Council, and without any discussion on its part. It is not so much as known what are to be the subjects of the Decrees which the Council will adopt; and yet Decrees containing definitions are announced for the 8th. What can this mean? Are we really to have Papal infallibility carried by acclamation, as the *Civiltá* suggested, or shall we only have a Decree, as they had at Trent, declaring the Council open, and regulating the mode of life of its members? Who can tell? For my own part I am uncommonly disquieted (p. 10).

This disquietude of Friedrich represented the first shock of collision against sunk fences, which had cost the Nine long labour. According to their faithful historian, the "most arduous and thorny of their tasks was that of settling the procedure."

It was admitted by the Nine that, even in the fifth Lateran Council, the question was put to the Fathers, whether the Rules drawn up were acceptable. It was also feared that the bishops might be offended if the Pope settled the Rules without hearing their opinion. But, on the other side, there were three arguments: first, the danger of "interminable" discussions; secondly, the danger of "some spirit excessively enamoured of liberty, and of too advanced opinions"; and, thirdly, the history of former Councils (p. 148). So in June it was finally determined that the Council should not be permitted to have a word to say to its own rules and forms of procedure. And in August, as we have seen, the perfect plan of forestalling all attempts to say a word upon them was contrived.

One possible objection was brought under attention, by the history of previous Councils, namely, that there might be a danger of the Pope restraining the rightful liberty of the bishops. This idea, however, was

dispersed by the light logic which passes at Court. "It would be no less a folly than an insult to think that a pontifical law could aim at lessening the liberty of the Council" (p. 147). In this happy sentence the now mitred historian refines on the words of M. Veuillot, who was content to say that all would be free because the Pope would be free.

The consultations of the Nine must have been serious upon the critical point of denying to the Council the right of introducing proposals. The course finally decided upon called for boldness in the deed, combined with art in the drapery. It was first settled that the right of proposition *belonged* to the Pope alone. Then it was argued that if this right was *granted* to the bishops, "it would turn the Council itself into a constitutional assembly"—which was just what, with all their faults, the earlier Councils had been, and even that of Trent, in an inferior degree.

The serious question of excluding all members of the Church but those constituting the Council had to be faced. Cecconi cannot conceal that at Trent the entrance to the Council Hall, during the discussions of the Doctors, was free. Massarellus, the indefatigable secretary of that Council, in his minute of those present at the first session, gives more names of laymen than of archbishops. The insertion of their names means more than that they were in the building—they had seats of honour.^[189] The number of the order of priests present at that first sitting far exceeded that of the bishops. True, they had no vote; but they had a most important office, that of discussing points of doctrine, in the presence of the bishops, before the latter themselves began to do so. They were the Bar, the prelates, the Bench. Massarellus himself, secretary from the beginning, was only a doctor, till the Council reached the days of Pius IV, who made him a bishop.^[190]

All the dragooning of the middle ages had not taught men that it was right for millions to sit outside in the dark, while a few priests consulted, and determined how their creeds, catechisms, ordination vows, marriage obligations, parental rights, and national duties were to be altered. The vast changes consummated at Trent had not yet done their work in reducing the human mind to servility. The Bible had not been shackled by a General Council. The Press had not been scientifically gagged. Authors and booksellers had not felt the scourge of the Index. Schools and colleges had not been shut up against discussion and free inquiry, in any such degree as was then introduced. Consequently the Western Catholic of that day, though

in a sense Roman, was by no means that passive creature of priestly authority into which three centuries of the sway of the Tridentine Decrees, administered by a monarch never checked by a public legislature, have moulded the modern layman.

At Trent the people were present to hear what was said. At the Vatican their political position and religious belief were both to be decided upon by decrees not reformable, like all that men do; but irreformable, as if God had made them. Yet the presence of the people was looked upon as "the interference of persons from without," and this, it was felt, would be "a deplorable inconvenience," notably aggravated by the temper of the times because of the enormous diffusion of the Press. The journals could not be prevented from writing about the Council; but means were sought to keep the subjects under discussion from the knowledge of the "democracy," as Maret calls priests and people. They should learn the tenor of Decrees adopted only when they were ratified (*Cecconi*, p. 253). To this end, three points were resolved upon: first, the General Congregations (that is, the deliberative sittings) should be altogether private; secondly, the public Sessions (that is, the grand solemnities for adopting and promulgating Decrees already framed and voted) should be open only in the liturgical part, the legislative part being strictly close; thirdly, all the Fathers and officers should be bound to the deepest silence (p. 254).

We are far from saying that the bishops of the time before Trent would have accepted a Roman conclave like this, in lieu of a General Council of the Catholic Church; but if they had done so, the laity of that time, from Emperor to burgher, would not have suffered it. The laity then did not represent the offspring of ten generations successively confined in the Tridentine cribs. Their rights, though roughly defined, were readily asserted, and sturdily maintained.

The Directing Congregation, having now existed for nearly five years, had preordained all that was to come to pass in the Council. It had held fifty-nine formal meetings, very many of which were devoted to the Rules of Procedure. Beyond the purpled Nine, not a soul was ever admitted, save only Monsignor Giannelli, their secretary. Five of the Nine were the destined Presidents of the Council. So that, of the whole College of Cardinals, only four besides the Presidents were in the secrets of this body. Just at a few of the last meetings, Bishop Fessler, the secretary of the

Council, was called in. It is not needful to say that the Directing Congregation was in constant official communication with the Pontiff.^[191]

FOOTNOTES:

[182] Cocconi, p. 161.

[183] *Acta*, p. 32. Also *Civiltá*, December 1869, p. 740. Cecconi, *Documenta*, lix.

[184] *Fronde*.

[185] A picture of this scene, full both of regrets and latent desires, will be found drawn since the Council in Manning's *Four Great Evils*, p. 87.

[186] *Stimmen aus Maria Laach, Neue Folge*, Heft vi. pp. 154-55. *Civiltá*, Serie VII. vol. viii. pp. 739-40. *Fronde*, vol. vii. pp. 64-71.

[187] *Signaturae Votantes*; see *Fronde*, iii. p. 10.

[188] Theiner, speaking of the relation of the three Popes under whom the Council of Trent sat, to that Council, says: "It is as clear as the sunlight that these Pontiffs were not Dictators but Approvers of the laws which the Fathers, in conjunction with the Legates, framed." In support of this he cites two letters, one from Paul III and the other from Pius IV. They both faithfully promise to confirm whatever the Council adopts. The former says, Even though it may somewhat conflict with the decisions of former Councils, or with the privileges of the Holy See. When this was read in the Council, the Bishop of Fiesole cried out: "Let it be without prejudice to the universal authority of this Council." (*Acta Genuina*, vol. i. pp. xvi and 154.)

[189] "Post praelatos sedent nobiles, si qui adsunt."—Massarellus, *Acta Gen.*, i. 5.

[190] *Acta Genuina*, vol. i. 29, 30. Licet sub Paulo III, et Julio III, essem tantum utr. jur. doct. et protonotarius apostolicus, sub Pio autem IV, eram episcopus Telesinus.—*Acta Gen.*, i. p. 5.

[191] Cecconi, p. 268.

CHAPTER XIV

The Eve of the Council—Rejoicings—Rome the Universal Fatherland—Veuillot's Joy—Processions—Symbolic Sunbeams—the Joybells—The Vision of St. Ambrose—The Disfranchisement of Kings.

THE *Civiltà* described how, in beholding prelates daily arrive, the joy of Rome rose higher and higher; joy resembling but surpassing that of the great events of 1854, 1862, and 1867. Not only prelates came, but champions of the sword, the pen, and the tribune, ready to face the world in the cause of the Pope-King. Count Henri de Riancey begs pardon of Rome for indulging, at such a moment, in a word for France. Yet his heart does not turn to France, except on account of what she has done for the Pope.

Let Rome, the fatherland of all fatherlands, permit to us this flash of patriotism. It is France which has the honour of guarding the last fragments of the pontifical dominions ... She has loved righteousness; and that is the reason why she is anointed with the oil of gladness above her fellows (*Frondeur*, vol. i. p. xix.).

Poor France! that love of righteousness, which had made her slay so many Italians to keep up the temporal power, was not to avert from her, "in the year of the Council," a baptism other than that of the oil of gladness.

Ordinary Christians would not catch the reference in the above quotation. To them, "loving righteousness," especially when connected with the person of the Messiah, is not identified with, but in holy opposition to, the idea of setting Christian ministers in rank before secular princes, and in power above kings. But "He loved righteousness and hated iniquity" stands upon the tomb of Hildebrand, who sought to establish the "dominion of Christ," the "kingdom of God," the "reign of righteousness," or as many similar expressions as you please, by subjecting all the kings of the earth to the Priest of God. Pius IX is frequently spoken of as the founder of the lordship of the Pope over the whole earth in the future, as Hildebrand was the founder of his lordship over it in the past. Therefore the sweetness felt by a good Ultramontane in connecting the two together.

I am bewildered with joy, cried M. Veuillot. I try to depict that joy, to swim in life. There is an unspeakable gladness in men's souls. People feel an aurora. I picked up a number of journals, and was going to answer a lively article against myself, in the *Gazette de France*; but the author has no idea how all his eloquence falls short of a man who, in one and the same day, has seen Pius IX, Rome, and the Sun.

Pius IX had not admitted M. Veuillot to kiss the sacred foot for merely literary service. The devoted advocate laid at the feet he kissed three thousand pounds in money, collected, through his paper, for the expenses of the Council. M. Veuillot scolds M. Taine grandly, for having made some comparison between Rome and Paris—Paris, stretching from the field of Pantin on one side, to the Follies Belleville on the other; and Rome, which has no limits but those of the world, and does not accept those—Paris, which gives birth to M. Rochefort; and Rome, which directs the nineteenth Œcumenical Council! Had M. Taine seen Rome yesterday, full of processions of all colours, and bishops of all countries, he would have said it was more lovely than Paris.

The processions of all colours were no fancy stroke. Nine days of solemn service in honour of the approaching anniversary of the Immaculate, and at the same time of the Council, gave an opportunity of showing to strangers all the confraternities of Rome. They marched to the various basilicas, especially to St. Peter's; the ostensible object being to worship the sacred relics which, with uncommon magnificence, were exposed to their veneration.

The clergy of all lands saw and were seen with wonder and delight. "When therefore," said Eusebius, speaking of Nicaea, "the Emperor's order was brought into all the provinces, persons set out as if for some goal, and ran with all imaginable alacrity, for the hope of good things drew them, and the participation of peace, and lastly a new miracle, to wit, the sight of so great an Emperor."^[192] Dr. Friedrich does not express himself so prettily as Eusebius on the appearance of the assembled clergy. The Asiatic cries, "And one city received them all, as it were some vast garland of priests, made up of a variety of beautiful flowers." The Bavarian says, "The clergy of every country have sent a strong contingent, from the proud monsignore to the dirtiest village priest."

The importance of sunny weather for public events, great everywhere, is perhaps exaggerated in Rome. Pius IX is believed to be peculiarly susceptible to sunbeams. Three of his most memorable days are, by his adorers, connected with a sunburst which shone for him especially. Professor Massi relates how, on the day of his taking "possession," the *apostolic cortège* followed the "brilliant carriage" of the new Pope from the Via Sacra up the Coelian Hill, the Cardinals being mounted on "steeds

richly adorned"—doubtless worthy to be compared with those Sicilian steeds which bore Gregory the Great, of whose stud Gregorovius soberly says, "We scarcely doubt but that Pindar would have thought the apostolic horses worthy of an ode."^[193] The day was overcast—which omen had a damping effect—but just as the new Pope approached the Lateran, a glorious rainbow spanned the east, gladdening all with the certainty of a reign of peace. In like manner, Professor Massi tells of that proud April evening when the Pontiff, after a long exile, once more looked down upon the earth from his own Olympus. The clerical writers do not exactly call it heaven, but content themselves with speaking of the figure of the Pope so exalted, as "standing between earth and heaven," or as a spectacle which reminds us of the Divinity (*Fronde*, p. 16). The secularizing of sacred terms, till we come down to "apostolic cortèges" and "apostolic horses," and the materializing of spiritual terms, till "the kingdom of Christ," sometimes means the temporal power, is a process which must go on until the heaven of the materialized imagination will be levelled to the height of the noblest dome, and to the beauties of the best decorator. The peerless piazza of St. Peter's was, on the day in question, filled with French uniforms. At the foot of the great staircase rose a platform covered with purple, and decked with flying banners. The heavens, all day covered with clouds, suddenly turned azure, and the setting sun poured his beams on the dome of Michael Angelo, on the cross of the Obelisk, and on the statues which adorn the Colonnade, just as Pius IX "raised his paternal hand to bless the arms which had avenged his throne." The third day on which the sun shone expressly for Pius IX has been already mentioned, that of the Immaculate Conception.

It was not only, as some say, the nuns, but also priests and *littérateurs* who took it as both indispensable and certain that St. Peter's should be bathed in the brightest gold the skies could send on the day which was to unite three glories—the anniversary of the Immaculate, the opening of the General Council, and the probable acclamation of Pius IX as infallible.

On December 7, when the midday gun was fired from St. Angelo's, a peal of joybells rang out from more than four hundred churches. From the distant Coelian came the deep note of the Lateran, floating over Coliseum and Capitol; from the Esquiline came that of Santa Maria Maggiore, floating over the Quirinal. These two met the boom of St. Peter's swinging across the Tiber, and, blending with it, formed, in that sea of sound, a

rolling base for the billows, on whose crests every variety of bell-note clashed and sparkled. Far beyond the gates, the lone and beautiful St. Paul's lifted up its voice, as if bidding the untilled plains to tell the unfrequented shore that there was joy in the cloister capital.

Hints from Jesuit pens lead us to see some of the Order standing on the Janiculum, by S. Pietro in Montorio, drinking in the view of the renowned panorama, while the impressions of years would be brought to a focus by the sensations of a moment. Every thrill would be taken either for a proof or a promise. Things done by the Order were being glorified, things to be done were being assured by the voice of many churches. Before memory would rise the figures of Hildebrand, Dominic, Ignatius, illuminated by the imagination of the past. Before hope would rise the figure of the new Hildebrand, with his now unlimited sceptre, and new Loyolas and Dominics, illuminated by the imagination of the future. Other German Henrys would be seen standing in penance, other English Johns signing away their supremacy: and surely if at Ingolstadt the Order had trained a Ferdinand II, another could now be trained, and the Virgin and St. Ignatius would not fail to raise up a more successful Tilly, and a more faithful Wallenstein. "Be wise now therefore, O ye kings; be instructed, ye judges of the earth," would seem ringing with articulate speech from the tongue of every bell.

As the *Ave Maria* sounded in the sunset, the guns of S. Angelo saluted the happy eve. The Pope rode in state to the Church of the Twelve Apostles, and the crowd lined the entire way. The Jesuit writers heard enthusiastic cheers at every point. Some partial illuminations were attempted, but the weather was unfavourable. This, however, damped not the spirits of any one, for there was to be a glorious illumination on the morrow, when the rain was bound to cease. M. Veuillot, buoyant as were his spirits, admitted that, with all his love for Rome, he could not deny that it rains there in winter. But hope was exulting, enthusiasm unbounded. The preparation of ideas had, it was thought, done its work; the restoration of facts was now not far off. The *Civiltà* asks, Did ever Council meet under such a Pope, with his graces and his virtues, his rich experience, his burden of palms won in incessant victories over the enemies of Christ; the restorer of the hierarchy in two nations, the founder of many dioceses; the conqueror of the fallacies, hypocrisies, and fraudulence of the politicians of our day, the glorifier of

the Virgin, who "sensibly" covers him with her mantle, and takes delight in twining roses with the thorns whereof the tiara that crowns him is altogether composed?^[194] The words of a French layman equal those of the Italian Jesuit. It is again the Count Henri de Riancey who cries, "The Father of the Fathers, Sovereign Pontiff of the Bishops, refuge of the bishops; he is the Universal Patriarch, the Prefect of the house of God, the Guardian of the vineyard of the Lord. He it is who confirms the faith of Christians; he is Abraham in his patriarchate, Melchisedek in order, Moses in authority, Samuel in jurisdiction, Peter in power, Christ in unction" (*Fronde*, i. p. xxx.).

It was St. Ambrose's day. M. Veuillot, in imagination, saw the saint "appear on the threshold on which the eyes of the human species are fixed, full of hope," But M. Veuillot seldom meets with a saint, dead or living, but a political end soon appears. This was, he cries, a felicitous rencontre. What made it so? When Ambrose had become bishop, he excommunicated the Emperor Theodosius for the crime of inhumanity. His image in this act is to M. Veuillot evidently the prototype of Pius IX leaving the kings out of the Council. But it is one thing to refuse the Communion, which was open for the humblest believer, to the greatest potentate alive, because his word has wantonly handed his subjects over to death; and it is another thing to refuse to all believers in existence a place, even as hearers, in the chamber where new laws binding them and their children for ever are to be decreed.

The scene at Milan, and that at St. Peter's, similar to the ardent Ultramontane, would strike us rather by contrast. On the former threshold we see a Christian pastor guarding the Lord's Table. On the latter, a king, and an aspirant after universal political supremacy, guarding the secret of his own counsels. Outside the Milan threshold we see one sinner in purple, while the common Christians are free to approach. Outside the Vatican are all members of Churches whom the king in purple and scarlet acknowledges as members of his own Church. The people are disfranchised with the princes at their head. The priests had long been losing their franchise in the election of their bishops. More recently they had been losing their freehold in their parishes. When the Jesuits obtained possession of Pius IX, the parish priest had a life interest in his parish subject to good behaviour. But this formed too much of a tie to the nation. The parochial clergy had to be mobilized. So, gradually, they had been put into berths only by temporary appointment, and held the place *ad nutum*, at the nod of the

bishop. They had been glad that the sword *in the hand* of the king should not be in his power, but at the nod of the priest. It was scarcely so pleasant that the parish, in the hand of the priest, should be at the nod of the bishop. The making of it so had already to a large extent been accomplished. It was now to be completed; but those tyrannous kings might attempt to check the move by what they would call protecting the lower clergy, what the Vatican would call destroying the liberty of the Church.

The whole spirit of the Jesuit Press at this period indicated that the Modern State had so wearied out the Vatican that the only chance for kings to make their peace with it would lie in separating their cause from that of parliaments and constitutions. If they meant to be tolerated long after the Council, they must not only reign but govern—govern Catholic States under the Syllabus. A ruler by divine right—which among the baptized means one instituted by the Pope and corrected by him—is the essence of the matter. "THE POPE AND THE PEOPLE!" is the last exclamation of M. Veuillot, on the eve of the day when the nations were to come to judgment—on the eve of the day when the salutary conspiracy recommended by the *Civiltà* with its first breath was to hold its crowning conclave, when the holy Crusade, heralded with the same breath, was to receive both its legal warrant and its world-wide impulse. A triumphal arch was to mark the completion of a stage of toil and the entrance upon a stage of transformation. "THE POPE AND THE PEOPLE. I believe that these words are invisibly written on the door of this Vatican Council, which door forms the entrance to a *new world*; rather is it a triumphal arch erected on the rediscovered highway of the human race."[\[195\]](#)

That triumphal arch and that rediscovered way of the human species which, to M. Veuillot, made the entrance to the Vatican Council sublime, invested it, to the eyes of Liberal Catholics, with clouds of doubtful omen. The triumph vaunted was real and even stupendous, but it was a triumph over the principles in the name of which Liberal Catholics had fought and won the battles of the Church. The rediscovered way was no other than the broad road of clerical dominion over spiritual and temporal things which, in the ages before the Reformation, had led the Church down to a degree of corruption now denied by none—a broad road, which had since then been swept and mended, but to which had in the meantime been added the countless sidepaths of Jesuit morals. If all those sidepaths should by

authority be opened for the winding and the straying of human guile and passion, what would the Catholic nations come to? Studious Liberal Catholics were aware of the two sides of the Jesuit system of morals, whereof Protestants generally were cognizant only of one. These knew, indeed, that a lawful end renders the means to it lawful; but Liberal Catholics knew that it was also taught that an unlawful end did not infect with guilt the means by which it had been reached, provided only that in themselves those means consisted of acts not necessarily unlawful. Thus on both sides—that of seeking a lawful end by unlawful means, and that of employing lawful means for an unlawful end—was the gate made wider, the road broader, and the way more smooth for guile to creep or passion to roll downward, but attended all along by the comforts of absolution, and sprinkled with holy water. ^[196]

And as to the new world to which the Council was to be an entrance, Liberal Catholics had seen the Pope's special *college of writers*, in the *Civiltá*, dwell upon the act whereby Alexander VI drew a line from pole to pole, and gave to Spain all regions that should be discovered to the west of it, and to Portugal all those that should be discovered to the east of it; and contend that the Pope, in saying of those regions, I *give, concede, and assign* them to this king and to that, acted simply as the Vicar of Christ; nay, that by that act the autonomy of the Indians was not in the least offended; and that, moreover, what in the jargon of infidel and of heretics was called the pretensions of Rome, was nothing else but the exercise of a clear and sublime right, resorted to by the Pope in seeking a solid protection, in new countries, for the autonomy of nations and of individuals, when otherwise, to the offence of religion, it might have been violated by barbarians. ^[197] But was this supreme power to dispose by sentence of the lot of nations, even though unknown, without in so doing offending in the least against their rights, to be exalted into eternal dogma? If so, and if mankind would endure it, well might the door of the Council be regarded as the entrance to a new world. But whether future ages will reckon it as the entrance to a new world or not, we are about to see that it was indeed the entrance to an arena on which was to be witnessed a process of revolution from above and a struggle of priest with priest,—a process as instructive, a struggle as curious, as any that our age has produced, among its many transformations of polity and redistributions of power.

FOOTNOTES:

[192] *Life of Const.*, lib. iii. cap. 6.

[193] *Geschichte der Stadt Rom*. ii. p. 60.

[194] Serie VII. vol. ix. p. 21.

[195] Vol. i. p. 14.

[196] See Gury, especially his *Casus Conscientiæ*. A small duodecimo *Doctrina Moralis Jesuitarum* (Celle, 1874), gives copious extracts from Jesuit authors with a German translation. For the English reader, Mr. Cartwright's work on the Jesuits supplies a good outline.

[197] VI. i. 662-80.

BOOK III

FROM THE OPENING OF THE COUNCIL TO THE INTRODUCTION OF THE QUESTION OF INFALLIBILITY

CHAPTER I

The First Session, December 8, 1869, or Opening Ceremony—
Mustering—Robing—The Procession—The Anthem and Mass—
The Sermon—The Act of Obedience—The Allocution—The
Incensing—Passing Decrees—The *Te Deum*—Appreciations of
various Witnesses.

AT dawn, on Wednesday, December 8, 1869, the guns of Fort St. Angelo saluted the long looked for day, while from the other side of the Tiber those of the Aventine replied. The bellowing of these beasts of war awoke the city to witness a Council of the ministers of peace. As the sounds reached the ear of peasant, monk, and nun, already plodding in the dark from places outside the walls, the sky was low, and pouring down a truly Roman rain.

Unlike towns round which smiling homes are sown broadcast outside of the bounds, Rome, when approached by most of the routes, first shows the city walls, and not till a good while later does it show the beginning of habitations. The poor suburbs which lie outside a few of the gates are less dreary than the space inside, where lonely roads, shut in by blank walls, lead amidst crumbling mementoes of rulers of the world, and marks of the actual reign of drones not able to master ordinary difficulties. Every now and then comes a church, or one of the two hundred and more convents and nunneries which sanctify the place. But scarcely any of these have an outline such as to yield, in twilight, the effect of either Gothic spires or Moorish minarets, or even of good Grecian colonnades.

Many a cowled figure struggled under the drenching rain along these desolate ways. One would pass the spot where Peter was arrested by his Master, when the Fisherman uttered the famous "Lord, whither goest Thou?" and was turned back to Rome to die. Another would pass by the vale of Egeria and he might well wonder if Numa ever had to seek inspiration there in such dismal gloom. Crossing the open ground about the Lateran, some of the monks might think of the terrible morn when Totila, in mercy, halted his troops inside the gates, sending the clang of his trumpets through the dark, all over the city, to give the wretched Romans the chance of flight.

Other monks coming from St. Agnese, and entering by the Porta Pia, would reflect upon the adornment of that gate by the Holy Father, and upon its happy name which links it both with Pius IX and with its own founder. Its founder, Pius IV, signed the Creed of the Council of Trent, and Pius IX was to sign the new Creed of the Council of the Vatican. This beautiful coincidence would, with the monks, make the gate an emblem of the Church, against which the gates of hell should never prevail. If they only happened to recollect that its old name *Nomentana* marked it as the Mentana Gate, the encouraging impression would rise almost to the brightness of a revelation. The day, only two years before, when the conquering crusaders marched in, and the welkin rang with shouts of "Long live Pius IX!" "Long live the zouaves!" "Long live the Crusaders!" "Long live Catholic France!" would return to memory as the pledge of mightier Mentanas. Had an invisible hand drawn aside the veil, and shown them that gate, some nine months later, admitting the Italian troops, followed by the

dog Pio drawing a little cart full of Bibles; and then shown, still later, the residence of a British Ambassador to the King of Italy inside the gate, and on the outside the residence of Garibaldi, the monks would have vowed by all the saints, old and new, that the vision came from a lying spirit.

Some, again, crossing the Tiber by the Milvian Bridge, would, in spite of the blinding rain, see the figure of Constantine victoriously dominating the heights, and that of Maxentius being hurled into the stream. A while afterwards, when passing near the Broken Wall, where St. Peter himself had kept watch, and with his own hand had blinded and routed the Goths, they would feel that now when his successor was to be at last duly exalted, the Apostle would surely keep the city more jealously than before; and if there was need of a Belisarius to crush the Italian barbarians, the Lord would raise him up at the intercession of Peter.

As they came further inwards, the crowds of the city were already in motion. Down from the Coelian and Esquiline were they pouring past the Coliseum, reflecting men delighting in the thought that all high things which exalt themselves against the Church would fall into her power just as the Coliseum had done; for the "high things" of the Romanized imagination are naturally material ones. The Arch of Titus, darkly outlined in the morning grey, would be the prophetic pledge that the Jews, however stubborn, would yield to the Pontiff at last. But where was the golden candlestick—where the temple vessels? After Genseric carried them off, had they ever returned? The ruinous Palatine would symbolize woes coming to modern Caesars, as sure as those which had crushed the ancient ones. Indeed, it is not impossible that some would see visions like those seen by monks of yore, who beheld the soul of the great Theodoric dragged into the crater of Stromboli.

From the Aventine, where Peter resided with Priscilla and Aquila, and which is now little but a site for monastic establishments, many would come, passing by the place where once stood the Circus Maximus. The thoughtful would there have in their eye the grand spectacles of Pagan Rome. It was by a spectacle that Romulus allured the Sabines to unity by violence; and it was by a spectacle that Pius IX was now wooing the world to wedlock with the Papacy—ready, if only able, to take short measures with the coy. But what were the shows of the old rude times to this? What if three hundred thousand pairs of eyes did gleam together on the spectacles

which, with bread, made up the earthly all of the Roman *plebs*? They never had looked upon such an array of holy bishops, from the whole earth, as would be seen to-day. The colours for which they went mad, their idolized blues and greens, were but few, and ill-combined, compared with the colours now about to be displayed. The ancient cry, "Bread and Spectacles!" was indeed still kept alive by Roman authorities, but was to-day to be satisfied in a Christian style glorious beyond Pagan example.

Along the Via Sacra few foreigners would appear, but from the Capitoline Germans would set out. It is natural to think of some student, fresh from the pages of Gregorovius, his imagination vividly setting face to face the ancient Rome and the actual. He would think of the exclamation, "Renowned, queenly, immeasurable Rome, a sea of beauty surpassing all power of speech!" Where were the glory and the beauty now? Inside the churches and palaces indeed were masses of decoration and artistic stores of wealth, but the city viewed, on that dismal December morning, as a city, was poor and ill-kept. The glory which once compelled men at this central point to call her Golden Rome was departed. What now represented the Temple of Jupiter—its pillars on gilded bases with gilded capitals, its gates of gilded bronze, and its roof of tiles of gilded brass? There stands the Church of the Aracoeli; Jupiter is succeeded by the Bambino, a doll, carved by St. Luke, which is driven in a stately carriage round the city to the beds of the dying.

Crossing the Bridge of Sixtus the student might see vividly, as students do, the scene of that sacrilegious morning when the lone old stream, with no Horatius now, was swarthy boatmen swinging the oar with the stroke of the rover, and as each galley shot out of the bend of the Aventine, the chief, from under his turban, eyed the opening prospect of plunder with the glance of an Ishmaelite. When they rifled the grave, would the student say, if they found anything of the Fisherman, certainly they did not leave anything. If the ashes of Peter ever did rest there, were they not sent by the Saracens to await those of Wycliffe in the sea?

A pamphlet, by a Hebrew, with the title of *The Ghetto and Rome's Great Show*, reminds us that from under the flank of the Capitoline some would come out of the pen in which the Popes had, for ages, shut up the children of Israel. No doubt some travelled Rabbi would do so. Such a man would have mentally dwelt all his life among the ancients, and personally he

would have seen the Pyramids and Thebes, the Tomb of Abraham, with Jerusalem, Baalbec, and probably the Remains upon the Euphrates, if not those on the Tigris. To him Roman dates were modern, and Roman monuments, though great for Europe, were on a scale comparatively small, not equalling in magnitude those of Asia, not approaching in grace those of Hellas. In his eye all the princes of the ancient monarchies laughed at the notion of Gregorovius, that the idea of a world-empire originated with the Romans—nay, no more than did the idea of the Trojan War.

Towards Pius IX personally the feeling of the Jew would be rather kindly, for he, like Sixtus V, had relieved the Hebrews from some of the severities to which they had long been subjected by preceding Popes. But this would not prevent the whole tormented past from rising in memory before the Rabbi and stirring him to hope that he might now be going to witness the last show ever to be exhibited by one of the cruel race of the Pope-Kings. The pen in which his people had been shut up, the distinguishing badge, the differential taxes, the religious worry, and the manifold enormities committed upon them in the name of Christ who loved them, of Peter who lived for them, and of Paul who gave himself repeatedly to death for them, had long helped to set him and his on hating Christ, and Peter, and Paul. "Hard as their lot was under the Caesars," says our pamphlet, "it became harder still when the ecclesiastical Head was crowned by Pepin Le Bref king of the States of the Church, and actually ruler of the world." The day was now past when the Corso, in carnival-time, rang with the shouts of so-called Christians, hailing the spectacle of Jews naked, except a girdle round the loins and ropes round their necks, forced to run races against riderless mules, and asses, and buffaloes. For a long time this service had been performed for the sacred city by riderless horses, goaded by spiked balls slashing into their sides. Nevertheless, those former days would rise up before the Rabbi's eye, as would also the price paid for ransom. As he passed along, between him and the Corso stood the one pile still entire which to memory represented the Pagan Romanism under which his first ancestors in the city had suffered, and to the eye represented the Papal Romanism under which their descendants had continued for so many ages to groan. Dedicated by Agrippa to Cybele and all the gods, it had been rededicated by Boniface IV to Mary and all the martyrs. Though still best known as the Pantheon, its name in Rome is St. Mary of the Rotunda.

Our Rabbi would naturally, on such an occasion, compare it as it had been and as it now is; for the associations of the day would suggest to his mind that gathering of the provincials in the plain of Dura, when some of his forefathers had to bear witness against the longing natural to those who imagine themselves heads of the human species, to set up new idols, and to insist on unity by means more urgent than godly. That was the first clearly recorded scene in the fiery drama of Catholic Unity; a unity bending, breaking, or burning all nations, peoples, and tongues into religious and political submission to one human head. Probably the Rabbi would admit that there was some ground of justice in the words of *Joseph de Maistre*, that the Pantheon had been devoted to all the vices, and now was devoted to all the virtues. Thus far the Christian element in Papal Romanism had asserted its moral superiority. But the Rabbi would feel that there was exaggeration upon both sides of De Maistre's assertion. The gods of the Pagans were not all personified vices, any more than are now all those of the Hindus. Many of them were so, and that is enough. On the other hand, not all the saints of the Papal Pantheon represent personified virtues, judged by any code but the sad one of the Popes themselves. The Rabbi would hardly recognize St. Peter Arbues, red with the blood of thousands of the seed of Abraham, as one of the Virtues, any more than as one of the Graces. He would, however, recognize the correctness of Joseph De Maistre's estimate of the kind of change made by the Popes in the Pantheon. He would also admit the good judgment of M. Fisquet in selecting the following passage of De Maistre, when describing the ceremonies of Rome for Frond's history—[\[198\]](#)

It is in the Pantheon that Paganism is rectified and brought back to the primitive system, of which it is only a visible corruption. The name of God is exclusive and incommunicable. Nevertheless, there are many *gods*, in heaven and in earth. There are intelligences, better natures of deified men (*hommes divinisés*). The *gods* of Christianity are the *saints*. Around God are assembled ALL THE GODS, to serve Him in the place and order assigned to them.

The Rabbi might say, The Law pulls down the word "gods," by applying it to magistrates, thus making it mean little; but these ignorant priests lift it up to mean something more than the Pagans ever did mean by it, as if the latter

had imagined that each god was a supreme being, or something near it. De Maistre, however, had more sense. He knew that "saints" was another name for gods, only they were not to be vicious, which was no doubt the original idea.^[199]

By this time the dull and dripping air would begin to vibrate with the roll of carriages. Both in the rain and under cover, the throng was pouring towards one point. From the poor streets, where once stretched the glorious Fora of the Caesars, from the old Suburra, from the regions covered by the gardens of Sallust, from the spot where the persecuting name of Diocletian and a splendid church are now locally associated, from all the flanks of the Quirinal, would the stream come pouring towards the old Field of Mars. Bishops, artists, and the models of the artists, priests and beggars, quaint peasants, handsome artisans, well-dressed tradesmen, pressed in slush and silence past the lone pillar of Trajan, nobly sad, standing amidst memories of might and signs of impotence.

In the crowd speckled by ecclesiastical and peasant costumes, many an English figure, both home and colonial, steadily made way, and many an American one, and a few of the swarthy South Americans. At least one Scotch bonnet and plaid pushed through the throng.^[200] And he who wore them saw the well-known cap of the German student. Though, in general, not much addicted to attend solemnities, the Roman shopkeeper would on this occasion be well represented. His motto had hardly been "Bread and Shows," but rather "Shows and Bread." The city had, to a considerable extent, lived upon its exhibitions; and every grand one designed by the priests raised them in the eyes of shopkeepers, lodging-keepers, and cabmen.^[201]

The grand Piazza of St. Peter's would have been at its grandest that day had the sky been true to the Papacy. Nothing but the heavens failed. From every opening into the Piazza flowed the eager crowds. They passed the two hundred and eighty columns, natives sheltering under their umbrellas, strangers compelled by admiration to look up. They passed the Obelisk, those who had history in their memory, thinking of Nero and of the scenes by him enacted. They passed the Inquisition, perhaps wondering what priests were imprisoned now, and if there were any bishops, and who; perhaps thinking how strange it was that side by side should stand the

memorials of Nero and the chambers of the Inquisition. Then up the steps and across the Portico. At the same time, the coaches of the great swept to the right into the Vatican. About three hundred of these were splendidly horsed, gilt round the top, gilt at all available points, hung high on springs, with four or five servants, in yellow and blue, red and green, embroidered, powdered, and in cocked hats. The few pensive monuments of retrospective royalty that still clung to the skirt of the Pontiff, formed the first line of this array. Then came the thrice-splendid princes of the Church. Each rode in his state carriage, followed, says Frond (vol. vii. p. 91), by a second carriage, "less sumptuous." and if a prince—we presume by birth—followed by a third. Then came the nuncios, ambassadors, bishops, and notabilities with starry breasts, and ribbons like streamers among the stars—stars that dazzle Romans far more than all the constellations in the sky. The Roman nobles, always splendid, were that day in their fulness of gold, and pearls, and costly array; and their equipages are said to have counted several hundreds. No less than five hundred private ones and some two thousand street carriages completed the train. Roman ecclesiastics could not help remarking, even in print, that from a one-horse hackney coach might be seen alighting a couple of bishops, and four from a two-horse one; a sight which they contrasted with the princely splendour of Constance and of Trent. At the bridge of St. Angelo, and at other important points, rose up in the rain the mounted figures of the Papal dragoons in their long white cloaks. A plentiful display of soldiers, said to amount to about six thousand, increased the variety. Black-clad Barnabite, and brown Franciscan, broad-hatted Jesuit and white Camaldolese, with all the costumes of the barrack, the convent, the nunnery, mingled with those of the drawing-room and the village festival, spangled the thickening crowd.

The clergy of the city had early assembled in sufficient number to line the whole course of the procession, until it reached the statue of St. Peter. Within, the crowd is not represented by any writer as having been excessive. Some say that the church was full, some that it was not quite so. The people arrived in wet clothing, and as none of them, least of all the monks, were given to excessive ablutions, even the correspondent of the *Stimmen aus Maria Laach* alluded to the quality of the air. So also did the Special Correspondent of the *Times*; but he remarked that "incense covers a multitude of perfumes." In the various side chapels, Masses were being celebrated, each priest, as he came up to the altar, or retired from it, being

preceded by two soldiers under arms, and followed by one. There were upon duty in that temple of peace, opened for a great council of peace, one battalion of zouaves and one of the line.

The soldiers of Diocletian and Galerius, when beginning their work one February morning, while the two Emperors watched them from their palace windows in Nicomedia, would not have been so much at a loss had they entered a temple like St. Peter's, as they found themselves in the Christian church into which they then broke. "They searched in vain," says Gibbon, "for some visible object of worship. They were obliged to content themselves with committing to the flames the volumes of the Holy Scriptures." They could have found no Bible in St. Peter's to burn, unless they had taken to a sumptuous book, in a dead language, containing portions of the Gospels. But they would not have searched in vain for visible objects of worship. Just as even Father Abraham had been turned into chief idol in the Caaba by the heathen Arabs, so here the chief of the images set up was Peter. But never had he been so dressed in Galilee or Jerusalem, in Antioch or Babylon, with alb, girdle, stole, and tiara. The Popes might have ill copied the living Peter, but the bronze Peter had well copied the Popes. The Fisherman would have been surprised at his own pluvial. As clerical writers would blush not to tell, it was of red silk, striped with gold. On his breast was a golden cross; on his right hand a golden ring, with a large ruby, and a circle of "flashing brilliants," and the left hand held a golden key all decked with precious stones. Before him burned a lamp, and four superb wax candles painted like the illuminations of books. As all men honour their gods with what they value most, the Vatican honours Peter by feeding the jeweller and laceman in his soul with marrow and fatness, and by the sight of men kissing his feet. Peter had his faults, but he never deserved to be so paganized. True, he did forget himself when he got into the palace of the Jewish priest, but not in the same way as the bishop on the Tiber forgot himself when he got into the palace of the Roman Pontiff. That, however, was Peter before he was converted. Peter, after he was converted, passed the threshold of a Roman. Then, he strengthened his brethren, not by lording it either over their persons or their faith, but by teaching a lesson in action, to the effect that no human being should ever degrade his person before a fellow-man, and that the forms of worship, as well as the spirit of it, are to be reserved for Him whom alone it is lawful for the offspring of God to adore. Peter would not break the commandment

that said, "Be not ye called rabbi: for one is your Master, even Christ; and all ye are brethren. And call no man your father upon the earth: for one is your Father, which is in heaven. Neither be ye called masters: for one is your Master, even Christ" (Matt. xxiii. 8-10).

There in a nutshell lies the whole theory of a direct government as against one by proxy; of a father's government of adult sons, as against a master's government of slaves through upper servants; of one all-watching love, and one all-working care, as against an imperial reclusion that leaves affairs to departmental divinities. "Our Father which art in heaven," deeper is Thy love to the least of us, more tender and closer far than could be that of any patron whom we might set up! In numbering the hairs of our heads, no Vicar dost Thou employ! In drawing near to Thee, no interest of Thy freedmen do we require, for we are no longer slaves, but in Thy love, the love of a Father, dost thou invite every one of us to the adoption and therefore to the access of sons!

He, who had once shaken his brethren, did not afterwards strengthen them by telling them that they must all accept him as rabbi, father, and master in the absence of their Lord, while to him there was but one Master, Christ. Just as Peter was ready, in his own person, to keep the commandment, "Be not ye called masters," so would he have been the very first to uphold the corresponding commandment, "Call no man master." He well knew that this applied pointedly and particularly to the ministers and disciples of the religion of Christ as such; for he was one of the first to teach both due reverence and due obedience to that civil authority which the Popes live to make little more than a sword under their own power.

The Italian Protestant and the Rabbi would both watch the thousands performing the adoration of St. Peter. The Italian Protestant would think of rites to Romulus, or perhaps to Hercules, whose local story was still more mythical. The Rabbi would think with scorn of the impossibility of such a spectacle in a synagogue over a dressed-up image of Aaron, for the Jews had never reformed the decalogue. He would mentally quote Jeremiah: "The stock is a doctrine of vanities. Silver spread into plates is brought from Tarshish, and gold from Uphaz, the work of the workman, and of the hands of the founder; blue and purple is their clothing, they are all the work of cunning men."^[202] Educated Hindus are now often to be seen in Rome. Any of them who witnessed this scene, and heard priests complacently point out

the distinctions by which simple Westerns are lulled into the notion that this is theoretically a different kind of worship from that paid to lesser gods and to images by Brahmans, would take the distinctions in his supple fingers and snap them as easily as he would so many threads of the finest Dacca looms. The Pundits were in this, as in many things, elder and abler brethren of the priests.

Friedrich, in his Doctor's robes, formed one of the promiscuous crowd; for mere theologians in Rome did not pass for much. No one has told us where Quirinus stood, or what was his toilet. It is not even clear whether his spirit was vested in a German or an English frame, although probabilities are in favour of the latter. Vitelleschi was there too, with his Roman familiarity with men, forms, and projects. And there was Lord Acton, the Roman Marchese, brother to a bishop, soon to be a Cardinal; the English Baron nephew to a Cardinal. M. Frond would be in exceedingly great glory. M. Veuillot, frightened, *he says*, by the rain, was in his rooms by the Piazza di Spagna, describing to the *Univers* what he calls "the moral of the ceremony"—a fact which he states long afterwards (i. p. 73). He acknowledges that he did not smell the odour of the crowd; but not on that account is he to be told that he did not see the first session. He went to the top of the Pincio about noon, saw the dome and the Vatican wrapped in fog and rain, and the sky laden as if with storms for all time. But he saw the Council as one ought to see it, and as history will see it; and never on the sunniest morning did the hill of Peter, the mountain where God dwells, appear more luminous to him.

Correspondents of the *Civiltà* published on the spot, of the *Stimmen* published on the Rhine, of distant journals in America and the East, were revelling in the Catholicity and brilliancy of the spectacle, and preparing to transmit across the Alps and across the seas some vibration of the transports by which every now and then they were themselves thrilled. The untensored but inevitable correspondents of the profane Press were there, odious in forms unknown.

Liberal Catholics from different countries were there in numbers, striving to hope against hope, now thinking of the courage of their national bishops, now of the moderation of the Pontiff; and now exercising faith in the good stars of the Church, but trusting that, somehow or other, credit to the

Catholic cause would result from the Council, instead of Jesuit fighting, followed by disaster, which they had too much ground to fear.

On the other hand, the Jesuits were quietly exulting in the knowledge that the days of the Liberal Catholics were numbered. "Weighed and found wanting" were words often upon their lips at that time.

The feeling of the Protestants, of all classes, was chiefly that of curiosity. Such of them as believed that Rome yet retained enough of the Christian element to be capable of reform wished that the Jesuits might fail. Those, on the other hand, who believed that at Trent Rome had written upon herself the doom *irreformable*, thought that the only thing now before her was to go down deeper into her own errors, and to make herself formally what she long had been virtually, the religion simply of the *fait accompli*, a system in which each error once committed must enter into the blood, and even form abnormal bone. Perhaps the words "judicial blindness" were never so often quietly uttered by charitable men as then, and during the months ensuing.

The tomb of Peter shared with his statue in the honours of the morn. In the ray of its lamps knelt many a figure of "fair women and brave men." The men hoped to rise braver for the coming struggle. The words of the Pontiff were vividly in the memories of the devout—words uttered to five hundred bishops. "We never doubted that a mysterious force and salutary virtue emanated from the tomb where repose the ashes of Peter, as a perpetual object of religious veneration to the world; a force which inspires the pastors of the Lord's flock with bold enterprises, noble spirit, and magnanimous sentiment."^[203] Pius IX would hardly have seen the force of an inquiry, should any one have dared to make it, whether there was any known case in which one of the Apostles had in Jerusalem sent even the most ignorant of Christians to the tomb of the proto-martyr, ay, or to the tomb of tombs, in order there to seek some blessing that could not be found by going into his own closet, and praying to his Father who seeth in secret.

The *Civiltá*, however, gave a more intelligent turn to this Papal suggestion

It is to be hoped (it said) that this Council, announced on the centenary of St. Peter, convoked by a Bull dated on the day of St. Peter, and

assembled round the wonderful tomb of St. Peter, will be *par excellence* the Council of St. Peter. That means the most obsequious to the prerogatives of Peter, whose divine authority, the centre and foundation of all social authority, is at the same time that which is most combated by the spirit of the world, according to the words of the Saviour, "The whole world lieth in wickedness" (1 John v. 19).

While the people waited, the bishops were robing in the Julian corridor, and the patriarchs in one of the adjoining apartments. Over the grand portico of St. Peter's is a hall, well known on Holy Thursday as the place where the twelve apostles celebrate the Supper—the hall in which the five hundred presented their salutation in 1867. This had been converted into a chapel, by the erection of an altar. Here assembled the members of the procession. Each prelate, on completing his costume, made for the hall, but was not permitted to have any attendant. It being the Day of the Immaculate Conception, the colour of the vestments was white; a rule, however, which did not bind the Orientals. The cardinals were robing in a room apart. Each of them having done so, entered the hall followed by his train-bearer. Bishops, prelates, and cardinals waited while the Pope robed. This he did in the Pauline Chapel, attended by three cardinals, two bishops, the sub-deacon apostolic, two protonotaries, and a few minor officials. They adorned him with amice and with alb, with girdle and with stole. Then did the cardinal-priest in waiting bring the censer, and the Pope put the incense on. Then did they further array him in the "formal," the pluvial, and the precious mitre. At about half-past nine o'clock, Pius IX, in all the glory of gems and garments, entered the hall, where between seven and eight hundred bishops stood before the altar, awaiting their royal head. He did not wear either the tiara or the usual golden mitre, but a special *precious mitre* made for the occasion, "This" says, Vitelleschi (p. 3), "was to indicate a certain equality with the other bishops, which, however, is confined to these little accessories of the ceremonial." The white pluvial was fastened on his breast by an enamelled clasp, about which clerical writers are particular. The clasp was set with jewels in the form of a dove, with outstretched wings, surrounded by a halo of rays, and *representing the Holy Ghost*. The Pope passed among the Fathers holding out his fingers, in the usual manner, on this side and on that, giving them what is grotesquely called the *pontifical* benediction. Then kneeling at the faldstool he took off his mitre

and prayed. Two cardinals, approaching the kneeling Pontiff, placed a book before his eyes. He looked upon it, lifted up his aged but resounding voice, and sang—

Creator Spirit, come!

This strain was taken up by the choir, and the first verse was sung, all kneeling. The Pontiff then rose, put on his mitre, and was seated in his portative throne.

The portative throne is a contrivance for exhibiting a dignitary to the gaze of a multitude, which does not remind one of anything to be seen elsewhere in Europe, but does strongly remind one of the way in which a great Guru is carried in India. It is a gorgeous litter, on which is placed a gorgeous chair, under a gorgeous canopy, called a Baldachino. In the chair is seated the Pontiff. Men robed in crimson bear the litter; others bear the canopy on long gilded decorated poles, and beside it others bear gigantic fans of peacocks' feathers.

Even in a secular procession, more serious than an election triumph, this sort of chairing would be of doubtful taste; but in a religious act, above all an act done in the house of God, it would be impossible, except where the aesthetic of faith had expired, and the aesthetic of thought had long surrendered to the aesthetic of sensation. As the Pontiff was set on high a shot fired from St. Angelo told the waiting multitude that the procession was formed.

We have said that the clergy of the city lined the whole course of the procession on either side. This extended from the door of the hall, through some of the apartments of the Vatican, down the celebrated Royal Staircase, through the magnificent portico of St. Peter's, up the nave to the statue of the Apostle, then to the altar at his grave, and finally, to the right of that altar, into the hall of the Council. As the head of the procession emerged from the hall, the manifold costumes of the clergy formed the skirting of the lofty walls, in the apartments through which it slowly swept. The most noticeable of these was the Royal Hall, *Sala Regia*, where frescoes, suggestive of more swords than one, appealed, by Papal memories, to Papal hopes. There was Gregory VII giving absolution to the penitent emperor Henry IV. There was the attack upon Tunis in 1553, there the massacre of St. Bartholomew's, the League against the Turks, and Barbarosas receiving

the benediction of the Pope in the Piazza of St. Mark. From the Royal Hall descends the Royal Staircase *Scala Regia*. All down its two flights the reverent clergy lined the way, as the "Church Princes" swept by. In the lower flight the Ionic capitals of the colonnade gracefully lengthened out the perspective, while the stately march of mitres glanced between the shafts. With a supreme sense of the importance of the act did the train pass down the noble stair; each prelate no less sustaining the dignity of the moment because just then the eye of the outer world beheld them not. In the view of a real Vaticanist a great procession is a good in itself, and a very high good, apart from its uses; or, perhaps more properly, it is felt that its effectiveness for use wholly depends upon the sense of discipline in its members.

Finally the foot of the stair was reached. The portative throne passed the statue of Constantine, the first who ever drew sword for the Church. It swept round and faced the statue of Charlemagne, the first upon whose head the Church ever set imperial crown. Each stood at an end of the magnificent vista formed by the portico—grand watchers at the door of the Pontiff, ever telling that the kings whom his Church wants are not merely nursing fathers but champions in fight. As the sight of their uplifted monarch burst upon the people, and that of the people upon their king, the heavy guns from the Aventine were firing alternately with those of St. Angelo, while all the bells were trying to exceed the joy-peal of the preceding day. Before his Holiness reached this point, the procession had already entered the nave in slow and gorgeous order.

In front came chamberlains, chaplains, and officials of sixteen ascending grades. After these came the Fathers of the Council,—first the generals of orders, next mitred abbots, and then followed bishops, archbishops, primates, and patriarchs, in succession of still ascending rank, every man in appropriate splendour. The Orientals outshone their western brethren even more than usual; for the robes of the Latins, being confined to the white of the day, were at a disadvantage beside the eastern coats of many colours. The Senator, as the incumbent is called of a quaint old office under the Papal government, which we might call that of honorary mayor of Rome, marched between the prelates and the throne in golden robe of rich variety. He was accompanied by the conservators, whom we might call something like honorary councilmen, and also by the commandants of the three orders

of guards—the noble, the Palatine, and the Swiss. Finally, sitting aloft, with the fans and the bearers, and the poles and the canopy, came the Pontiff. The moving throne was followed by a lengthened rear procession, formed of sundry officials, and closing with the priests, who had for some time been practising shorthand, in order to act as reporters.

The faithful from east and west gazed with enraptured eyes. Many were proud to recognize their own bishops; some still prouder to see their own gifts in robe or gem shining among the adornments of the day. Any Hindu present, looking at priest and soldier, might have exclaimed in the words of the *Bhagavad Gita*: "Many a wondrous sight, many a heavenly ornament, many an upraised weapon; adorned with celestial robes and chaplets; anointed with heavenly essence, covered with every marvellous thing."^[204]

From early morn, "*the holiest*," to use the term of one of the priestly descriptions, had been exhibited upon the altar; but out of tenderness to the throng had been veiled till the procession approached. As it entered the temple, every member of it uncovered to "*the holiest*." Those who were not members of the Council, after reaching the high altar, defiled to the left. The Fathers of the Council approaching the altar, each in his turn bent the knee before the Host; and then turning to the right, beheld the front of the Council Hall erected between two of the piers which sustain the great dome of Michael Angelo. Over the door was a picture, professing to represent the Eternal Father. The door was kept by the military figures of the Knights of Malta and the noble guards. Each prelate, in turn, entered the hall, bowed to the cross erected upon the altar, and was shown to the place assigned to him, according to his rank and seniority; for care was taken that the bishops should not group themselves either according to nation or according to opinion. There, standing and bareheaded, they awaited the Holy Father (*Frondeur*, vii. p. 98).

After the procession had been for some time moving up the nave, a whisper, "The cross, the cross," passed from lip to lip. The cross was borne immediately in front of the Fathers of the Council. Priest told priest of its choice beauty and immense costliness. Designed in the Gothic of the thirteenth century, and rich with gems, it represented Christ, not in His passion, but crowned, as conquering Lord, in glory. Among the expressions of delight, the proudest was, "It is a present to the Pope from the English convert, the Marquis of Bute."

The Pope did not, on this occasion, as he usually does, pass up the whole of the nave on his portative throne—a process which guide-books describe as representing the Lord of Glory entering Paradise. He now alighted at the entrance of the basilica, and, with deliberate step and thrice radiant smiles, his head alone mitred while all others were uncovered in presence of the "holiest," he marched among soldiers, priests, and subjects, a sovereign *in excelsis*. Before him went his hundreds of lieutenants, in attire which would have dazzled ancient Pontifex, Flamen, and Augur. Every one of them was prepared to contend with princes in his cause, to set his name before that of their king, and to claim, in their respective countries, a supreme sway for his sceptre. Not a few of them had endured prosecution or prison to uphold his law against that of their country, and no note of the lyres that sounded the praises of the day was sweeter than that which commemorated the name of any martyr-bishop, hero of the kingdom of God, against the naturalism of the age.

The Cardinals had not followed the bishops into the hall. They now stood near the high altar. Two bishops were at the faldstool, with book and candle. At the altar itself stood the officiating Cardinal, with a priest, a deacon and sub-deacon, a master of the ceremonies, five acolytes bearing candles, and three clerks of the chapel. On arriving at the altar the Pontiff bowed upon the faldstool. Then the last strophe of the *Veni Creator* was exquisitely sung by the choir. To use the words of a priest, written, not for Spaniards or Brazilians, but for Germans: "Every member of the historical procession cast himself upon his knees before our God and Saviour in the form of bread, before whom all kings bow."^[205]

After the adoration of the Host the Pope, still kneeling, recited aloud the prayer, "Look upon us, O God our protector!"—*Protector Noster Aspice Deus*—and for some time he continued reciting prayers in alternation with the choir. "Rising up," says Monsignor Guérin, "he recited a prayer to the Holy Sacrament, another to the Holy Spirit, a third to invoke the aid of the Holy Virgin and that of the Apostles St. Peter and St. Paul, a fourth to God" (*Guérin*, p. 76).

The Cardinals, with their train-bearers, now turning to the right, entered the Hall of the Council, where the bishops had been waiting for some time.

As the Pope advanced to the eventful enclosure, two former comrades in one lawyer's office held the corners of his pluvial—the Cardinals Antonelli and Mertel. If these ministers deserved half of the ill that was said of them by the common voice of Rome, or even by a writer like Liverani, who shuns private scandal, and only treats of public acts, Pius IX was not at that moment to be congratulated on the character of his companions. Confiding in the patronage of her whom he had set on high, he once more passed among the ornate hundreds of his mighty but docile servants. Approaching the altar he offered up a prayer; then passing to the throne at the far end of the Hall, he, in the words of Sambin, "dominated the whole assembly, and appeared like the teaching Christ" (p. 55).

The German Jesuit who wrote for the *Stimmen* said, "The bloodless offering was being presented on the altar, and soon must the *invisible Head of the Church be present in form of bread*. Opposite sits His representative upon a throne; below him, the Cardinals; around, the Catholic world, represented in its bishops" (*Neue Folge*, vi. p. 162).

This localized presence, not yet actual, but to come at the word of the priest, was the same as that "divine presence" which Cardinal Manning, when leaving home, said many in the English Church were sighing for as having formerly been in their churches. The early Christians saw the most sublime token of God's presence in that absence of any similitude which perplexed the heathen soldiery at Nicomedia, which, in India, first perplexes and then awes the Hindu, and which to spiritual worshippers says, in the deep tone of silence—

Lo, God is here, let us adore!

At this point, rather more than twenty of the particulars set down in the program had been got through, but there were one hundred and forty-eight of them in all. It would be well worth while for any merely philosophic politician to follow them one by one, marking the directions by which every act, posture, and prayer, whether audible or silent, was prescribed. The science of government by spectacle really deserves study by men of sense, because the practice of it is so mighty with all who take an impression for a reason. The program is in the *Acta*, and those who choose to read it will find a prescription for each minutest move.

The Archbishop of Iconium, whose real office was that of Vicar of St. Peter's, approached the throne, holding his mitre in his hands; he made a profound obeisance, then drawing near, he kissed the Pope's knee. After this, mounting the pulpit, he preached, in cope and mitre, a sermon unlike that of Father Bianchi. It was long and tame, and hardly had the true Infallibilist ring. He felt that they were entering upon an untried and thorny path. "Tribulation," he said, "will arise, bitter days and innumerable sorrows" (*Acta*, pp. 204-214). After the sermon the Pope rose and gave the benediction, during which the cardinals and bishops stood, the abbots and generals of orders kneeling down. "It is," says Monsignor Guérin, "the Moses of the new law, with his shining brow." He then offered up a prayer, with invocation of the Church triumphant and of all saints, "the formidable army which is drawn up around the Pope and the Council, and which assures victory to the Church," as Guérin expounds it. The preacher then published the indulgences from the pulpit. Now came an interlude preparatory to a transaction of grave importance. To prescribe the action of the interlude, it required all the articles of the program from thirty-seven to fifty. To perform that action took up in a Christian place of worship probably a full half-hour of the time of seven hundred bishops, of several thousand clergymen, of Knights of Malta, of noble guards, Palatine guards, Swiss guards, of some two thousand soldiers, and of probably twenty thousand people. Two bishops, with book and candle, draw near to the throne. The Pontiff recites *Quam dilecta*, etc. The sub-deacon apostolic, who is a judge of the high court of the Rota, called the Supreme Tribunal of the whole Christian world, advances. He is accompanied by two judges of the high court of the Signet, to which even the Rota, in spite of its title, is subordinate.^[206] The three judges solemnly bear to the throne in a scarf of silver cloth the apostolic stockings and slippers trimmed with gold lace. The Pontiff puts on stockings and slippers. Monsignor the Sacristan takes his place at the altar ready to give out the robes. The two judges of the high court of the Signet stand at the altar ready to take the robes from Monsignor the Sacristan, and to hand them to the cardinal deacon. Then the cardinal deacon approaches the throne. The senior cardinal priest ascends the steps of the throne and takes the ring from off the Pontiff. The judges of the high court of the Signet bring the robes to the throne. Then the senior cardinal priest, assisted by the cardinal deacons, takes off from the Pontiff the mitre, takes off the formal, the pluvial, the stole and the girdle; after which he puts

on the cord, the pectoral cross, the fanon, the stole, the tunic, the dalmatic, the gloves, and the white chasuble wrought with gold. The sub-deacon apostolic now bears the pallium to the throne, and one of the judges of the high court of the Signet accompanies him, bearing the pins. The cardinal deacon then puts upon the Pontiff the sacred pallium, takes the mitre and replaces it on the Pontiff. Finally, the senior cardinal priest again ascends the steps of the throne and puts on the ring which he had before taken off. And seven hundred bishops, and several thousand priests, and a couple of thousand soldiers, and some twenty thousand people, all were agreed that this was imposing, impressive, divine.

This public toilet was in preparation for what Cecconi calls "the sublime and moving rite called the Obedience"; the homage of the vassals to the ruler of the world. First the Cardinals one by one arose, slowly approached the throne, performed an obeisance, and kissed the hand of the sovereign. Then patriarchs, archbishops, and bishops, approaching in their turn, made low reverences before the steps of the throne, and, slowly drawing nigh, kissed the Pope's right knee. Abbots and generals of orders knelt before reaching the steps of the throne, rose, drew nigh, knelt again, and kissed the king's right foot. For an hour and a quarter this act of homage was continued. From the banks of the Thames and of the Seine, of the Ganges and the Hudson; from the Alps and the Andes; from historic lands of Asia, whence the light of history had long faded; from emerging countries in the New World, on which its first beams were beginning to strike—came forward lordly figures of men accustomed to command, and sometimes to domineer. Each, with chosen and awe-struck movement, drew near to the king of his heart and conscience, and rendered up his homage, like gold and frankincense and myrrh.

Vitelleschi, in a vein generally Roman, alluding to these "five quarters of an hour" spent in bowing, kneeling, and kissing; says, "What strength of memory is necessary for him who being humbly entitled the Servant of the Servants of God, had to keep that modest formula in mind during the whole ceremony!" But if the scene at this particular point might tax the memory of the Pope, it would surely cheer the hopes of those "august minds" that, having adapted their code to the views of confessors, were now idle spectators of the Council, while other kings were on their thrones. The ex-sovereigns of Naples, Tuscany, and Parma, looking on that display of

widely-extended power, and viewing through the stained windows of a Catholic imagination the political forces represented by it, might be both excused and commiserated if they saw signs of happy days returning.

The Jesuits said, "Surely those non-Catholics who witnessed this action must have perceived that Catholicity, like unity, is found only where Christ lives, speaks, and reigns—in Peter; that is, in the Roman Church, of which Pius IX is now Peter." But we may quietly ask, Could even those writers fancy Peter, at the only Apostolic Council, seated upon a throne somewhere on Mount Zion, while John, James, and Paul came up in the presence of the assembled Church and kissed his knee, and Philip, Barnabas, and others knelt and kissed his foot? Far as the aesthetics of those Jesuits had descended, by a long materializing process, they must surely have read enough of the Holy Scriptures to feel that the scene enacted in St. Peter's, though a fine edition of a Durbar, was a sad fall from an Apostolic Council. You promise the pupils of Plato a higher wisdom than they ever knew in the Academy, and they find for wisdom the gewgaws of Freemasons. Such a scene was bad in manners, bad in politics, and bad in religion. In manners, it tended to make men servile in a lower position and arrogant in a higher; in politics, it tended to make them either slaves or despots; in religion, it tended to make them either unbelieving or superstitious. Is it part of the penalty of Rome that barbaric forms should linger at its Court, when the spirit of Christianity has banished them from the Courts of Christian kings? Our own monarch, at the head of her two hundred and eighty millions, is too good a Christian to make her subject Rajahs, as a spectacle for her commons and her troops, come and fall down and kiss her foot. The words which commanded the followers of Christ not to exercise over one another the kind of lordship which the kings of the Gentiles exercised over them were, with pompous action, publicly trampled upon in this scene of "the obedience," and that both in the spirit and in the letter. He who complacently sat and acted out that scene in the house of God for an hour and a quarter, might better claim to represent many known in the history of ambition, than the lowly Lord of Peter.

Up to this time only sixty-seven articles of the program had been performed. Thirty more were exhausted by postures, manipulations, and devotions. The officiating cardinal-priest then came forward, bearing the reeking censer. He waved it before the enthroned priest, around whom

swelled up the clouds till subject eyes looked up to him through a sacred haze, and till he looked down on his subject creatures from a sky of fragrant mist. This ceremony fulfilled, all took their seats with their mitres on, and the Pontiff, rising, delivered his allocution. It overflowed with joy and hope. It clearly pointed out the enemy to be destroyed. "A conspiracy of the wicked, mighty by combination, rich in resources, fortified with institutions, and using liberty for a cloak of maliciousness." Obviously this enemy was not a theological but a political one. Vitelleschi, who naturally heard with Italian ears, says that the language, though *using a cloak*, was plain enough to show what enemy was meant.

As the Pontiff drew to the close of his allocution, he, with a burst of feeling, put up two invocations, one to the Holy Spirit, the other to the Blessed Virgin. After this, with contagious intensity of emotion, he threw up both hands to heaven. At a bound, the whole assembly stood up. Then he poured forth the final invocation with the fullest resonance of his wonderful tones—tones which might have served in chanting from Gerizim to Ebal. He invoked angels and archangels, Peter, Paul, and all the saints, more particularly those whose ashes were venerated on that spot. This speech from the apostolic throne, exclaims Monsignor Guérin, beginning with the liveliest joy, afterwards expressing divine agonies, concluded with firm and tranquil confidence!

Now followed another round of ceremonies, at the close of which the master of the ceremonies proclaimed, "Let those who are not members of the Council withdraw." The royal and noble spectators left the scene; the doors were closed. The Knights of Malta and the noble guard stood sentry between the faithful, who were to receive the creed as it might be shaped, and the Fathers, who were to decide for them what their creed should be. What would take place before those doors should be opened again? Persistent rumour had said that the extreme party meant to attempt an acclamation. Therefore many believed it possible that in one brief sitting the basis of infallibility might be shifted from that of an infallible Church to that of an infallible man.

Other rumours asserted that some French prelates had let it be known that if any attempt at getting up an acclamation should be made, they would leave the Council. But what might take place behind those charmed walls, who could tell? All that could be said with certainty was that now, for the first

time in the history of man, one hundred and seventy millions, perhaps two hundred millions, were standing idle spectators of the process of altering their creed. They had not a single representative; not one channel of expression, not one possible resort in appeal. What used to be a general council was now a conclave; sitting behind a guard of armed men. King and priest, councillor of state and doctor of divinity, were equally shut out. The Catholic multitude appeared indifferent. The few who were not indifferent were powerless. They had all been parties to narrowing the idea of the Church to that of the clergy. That idea was now, without the consent of any one being asked, formally narrowed from that of the clergy to that of the bishops and Court prelates. It might further be narrowed from that of the Episcopate to that of the Pope. It appears to us not very easy to call men fanatics who have done so much with mankind, when they propose and expect to do still more!

The point at which we now stand in the program of the day is the 109th Article, which is the first of several prescribing a ceremony with a substance. Bishop Fessler, Secretary of the Council, and Bishop Valenziani of Fabriano, approached the throne. The Secretary handed a document to the Pontiff. The Pope handed the document to Valenziani, who thereupon, ascending the pulpit, turned towards the throne, made a profound obeisance, took off his mitre, and read out as follows—"Pius, the Bishop-Servant of the Servants of God, with the approbation of the Holy Council." Having now pronounced the title of the decree, he again put on his mitre, seated himself, and proceeded to read the substance of the Decree. This consisted of one sentence, declaring the Council opened. In that ill-constructed hall few heard what was read; and many were wicked enough to hint that, if ill-constructed, the hall was not ill-contrived. Once more laying aside the mitre, Bishop Valenziani rose and asked, "Is the Decree now read agreed to?" The bishops were seated in their mitres, the abbots standing bareheaded. There was no formal vote. Those who understood what was said, cried *Placet*, and others repeated the cry. No one dissented. This result was communicated to the sovereign, and he from the throne proclaimed—"The Decree now read is agreed to by the Fathers, none dissenting; and we decree, enact, and sanction it, as read."

These forms were exactly repeated, and a second Decree was passed. Like the first, it consisted of a single sentence, which fixed the next public

session for January 6. The two Promoters of the Council, as they were called, now advancing, first knelt on the lowest step of the throne, and then addressed the notaries, saying, "We pray you, Protonotaries here present, to draw up an authentic document, recording all and singular the acts done in this public session of the all-holy Œcumenical Vatican Council." The senior protonotary then appealing to the Majordomo and the High Chamberlain, who stood on the right hand of the throne, said, "We shall draw it up, ye being witnesses" (*Fronde*, vii. p. 119).

The constitutional crisis had come and gone, and very few were aware of it. Those who had thought of the program as anything more than the order of a pageant, must have observed that the signification of those acts amounted to no less than putting aside the conciliar form of Decree, and adopting in its stead that of the Papal Bulls. We have already seen that Friedrich, as a Church historian, saw this at a glance. It need not be said that the ancient Councils, representing the whole Church, spoke in their own name, themselves *decreeing* and *enacting*. As to the only Council "over" which Pontiff Peter I "presided," it would not do to cite it as an example.^[207] As late as Trent, every Decree bore upon the face of it the words, "*This holy Council enacts and decrees.*" All the statutes of the Council of Trent, without alteration of a word, were immediately confirmed by the Pope, he having beforehand promised, in writing, to do so. The formula then used was, of course, liable to the interpretation that it indicated the superiority of the Council to the Pope. That interpretation had been actually put upon it by schools in the Church, at one time, including whole nations.

The Decrees now passed had never been before the Council for deliberation, but were handed from the throne ready made. The Pope, according to the formula, did not merely sanction, but *decreed*, *enacted*, and *sanctioned*—that is, he took the part of both parliament and crown.

The Council is only mentioned as "approving" of this absorption of its own powers into those of its head. The part thus allowed to this so-called Œcumenical Council, this Senate of Humanity, in framing Decrees, is less than the part allowed to the College of Cardinals in the framing of Bulls. Take, for instance, the Bull of Convocation. It expressly says that, in issuing it, the Pope acts not only with the consent of the Cardinals, but by their counsel.

This expresses more than "with the approbation." All, therefore, that the collective episcopate did for the College of Cardinals was somewhat to curtail its relative legislative importance. Alone, both its counsel and consent were recognized. When united with all the bishops, only its consent. This looked like telling the bishops that their counsel was superfluous. In the Bull history conquered dogma. The counsel and consent of the Cardinals was the memento of the historical fact that the Bishop of Rome originally spoke with authority only when he spoke as the mouthpiece of the local clergy. In the Decree dogma conquered history. The Bishop of Rome alone was to appear as speaking with authority, and all other bishops were to appear only as approving, but neither as counselling nor confirming; as for the clergy, they were no longer of the Teaching Church. The substance of the Decrees passed was perfectly innocent. They had, moreover, the advantage of exactly copying the acts done in the first session at Trent, while destroying the forms there employed. In the *Acta* of that Council two resolutions, declaring the Council opened, and fixing the day for the second public session, were entered as constituent acts, before the heading given to Decrees of the constituted body began to be used. The two constituent resolutions were not even headed by the name of the Council, while the name of the Pope does not occur in the heading of any of the Decrees, much less does it stand as the sole legislative authority.

At Trent it was not a private member of the Council, like Bishop Valenziani, but the first presiding legate, Cardinal De Monte, who read out the draft of a resolution, in the form of a question declaring the Council opened. To this question the Fathers "all with one consent answered, *Placet*." The second resolution was put in the same form. Both, as we have intimated, were entered without the heading of Decrees, and stand as the acts of a body organizing itself, but not as legislative acts of that body when organized. Every subsequent Decree is a real legislative act, and therefore bears the formal heading, "The All-Holy Council of Trent, in the Holy Ghost lawfully assembled ... ordains and decrees."[\[208\]](#)

The formula adopted in the Vatican Council had the advantage of determining, once for all, what that Council was to be, namely, a secret consistory of bishops, to give an approval to Papal Constitutions. Its Presidents were Cardinals, an office unknown to the Christian Church—princes simply of the Court of Rome, though most of them bear the orders

of priest. Of the members of the Council a vast number, though called bishops, were really no more than mitred equerries and chamberlains. In the means it took to deprive the diocesan bishops of their inherited powers in Council, the Curia knew its men. Brought up in the sentiment that an effective "function" is the sublimest stroke of civil or ecclesiastical government, it would have been a revolt against all their instincts to disturb a pageant so unrivalled as the one in which they that day had the felicity of bearing a part. The Curia placed them in this dilemma: Either they must rise up amidst that blaze of splendour and resist the act of the sovereign at whose feet they had just bowed, or they must learn at a later stage, if they should then challenge the Rules of Procedure, that the moment for objection was past. The success of the Curia was complete. The general drew out his men for a review, and turned the Thermopylæ of the opposition without having ever seen a Spartan. Those who had come up resolved to oppose changes in their creed soon found that the one pass that might have been held against overwhelming odds was already in the enemy's rear. The Nine had not spent nearly ten months on the Rules of Procedure for nothing.

When this brief episode in the drama of the day had passed over, the doors were thrown open, and the spectators who had been excluded resumed their places. Many of the priests outside would feel disappointed that they had not heard the hall resound with the voices of an acclamation. That would have told that Papal infallibility was adopted without discussion. Friedrich lets it appear that he felt relieved at the opening of the doors before there had been any exulting sound, and doubtless many shared his feeling.

Rumours, persistently kept up, declared that Archbishop Manning would propose the dogma, and that the majority, breaking out into acclamation, would bear down all opposition. If such a design was ever entertained, it had been thought—some say it had been found—that it would prove wiser not to proceed so hastily. The passing of two Decrees in the form of Papal Constitutions was enough to carry "the forms of the house," while the issuing of the Rules of Procedure as a Bull, before the Council was opened, had taken away every pretext for alleging that they were open to revision by the Council itself, as being its own acts.

Archbishop Manning, on his return to England, in a pastoral, treated the rumour of an intended acclamation as if it was only laughable. A reason which he assigns for this is that Rome had had enough of acclamations,

seeing that many who acclaimed infallibility in 1867 had openly turned against it. The rumours, however, were too consistent, and too well supported by the hints of the *Civiltà* and by the plain words of Monsignor Plantier and others, to be prudently dismissed with a smile—at least, anywhere but in England. They were not what Dr. Manning represents them, rumours of an acclamation without a definition, but of a definition carried by acclamation, as in the case of the Immaculate Conception. On the other hand, Archbishop Manning's thrust at those who had in 1867 signed language that might seem to mean everything included in infallibility, without themselves intending to express that doctrine, is natural in one who had not wholly unlearned the Protestant worth of words. Nevertheless, of all grounds on which the prefects of the Pope should begin to trip one another up, the ground to be selected by preference is scarcely that of finesse in the interpretations they put on what they say. As to the part assigned to Dr. Manning personally, it is possible that the rumour represented no more than the fact that both they who hoped for an acclamation, and they who feared it, mentioned the name which occurred to them as that of the most likely instrument of such a procedure, and both happened to pronounce the same name. As if to justify this instinctive selection of both parties, Dr. Manning, on his return home, said that if the Council "had defined the infallibility at its outset, it would not have been an hour too soon; and perhaps it would have averted many a scandal we now deplore."[\[209\]](#)

A Roman noble thus notes the zeal of Dr. Manning—

No one is so devoted as a convert. Having himself erred for half his lifetime did not restrain him from becoming the most ardent champion of infallibility. This circumstance raised a presumption of a deficiency, on his part, in that traditional ecclesiastical spirit which is never fully acquired but by being early grounded and by long continued usage—a presumption which was justified by his excessive and intemperate restlessness. This seemed a cause sufficient to lessen his authority with the Conservative portion of the ecclesiastical world, which judges with more calmness and serenity.[\[210\]](#)—(*Vitelleschi*, p. 35.)

The real work of the day was now done. It was time to sing the *Te Deum*. The Pontiff sounded the first note, and was followed by the Fathers of the Council, by the choir, by the thousands outside in the Basilica. The strain

was caught up in nave and aisles, in every chapel and every gallery; it mounted aloft into vaults and dome, till all who were beneath the gorgeous roof thrilled under that returning swell of exulting sound; and many felt as if the world was falling, overwhelmed with harmony, at the feet of Pio Nono.

The eighteen articles of the program still remaining contained little beyond unrobing, re-robing, and dissolving.

The people had been for seven hours in the Cathedral. It still rained in torrents. The clerical organs said the providential rain had prevented mobs in different places from making hostile demonstrations. During the time spent in the Cathedral, the people had not heard—except so far as some of them could make out the Latin—a sentence of the Word of God or of the words of man. The seven hours of the twenty thousand had been spent in an intermitting gaze. All went away, not only praising the pageant of the day, but extolling it. Friedrich quotes a diplomatist who said it was "superb." The correspondent of the *Times* said: "It has been my fortune to see many pageants in Rome, but none of them equalled, in majestic solemnity, the scene presented by the procession of bishops from all countries in the world."^[211] Monsignor Guérin cried: "It offered the most majestic and enchanting spectacle which it was ever given to mortals to behold here below." M. Veuillot said that bishops were there from the rising to the setting of the sun—men who would invade regions as yet closed against them—the light-bearers and the God-bearers.^[212] These old men, he added, would overthrow darkness and death, and the day would break (vol. i. p. 12). Vitelleschi remarked that there was indeed a bishop from Chaldea and one from Chicago, but the former did not represent a Catholic Chaldea, nor the latter a Catholic Chicago. Even, he added, in countries called Catholic, what proportion of the population are really of their flocks? He might have further added, And if their teaching is true, what proportion of their flocks are really Catholics?—for they teach that a doubt on any single article of faith propounded by their Church, or a doubt on one of her interpretations of a text of Scripture, taints one with heresy. How many Italians were, on the day of the opening of the Council, free from that taint?

We are reminded of an Englishman whose name, when he was only thirty years of age, gained for him distinguished attention at the Vatican. His Protestantism was much influenced by his early study of the corruptions of

Christianity at the centre of them. Had John Milton witnessed that pageant we know exactly what he would have said. First he would have shown that when the filial spirit of Christianity had been lost, the servile spirit of Paganism supervened. When men ceased to come to God as children to a father, they sought circuitous access through upper servants. Then followed what he describes in a sentence with a strong flavour of the Phædrus—

They began to draw down all the divine intercourse betwixt God and the soul, yea, the very shape of God Himself, into an exterior and bodily form, urgently pretending a necessity and obligation of joining the body in a formal reverence, and worship circumscribed; they hallowed it, they fumed it, they sprinkled it, they bedecked it, not in robes of pure innocency, but of pure linen, with other deformed and fantastic dresses, in palls and mitres, gold and gewgaws fetched from Aaron's old wardrobe, or the flamin's vestry: then was the priest set to con his motions and his postures, his liturgies and his luries, till the soul, by this means of over-bodying herself, given up justly to fleshly delights, bated her wing apace downward: and finding the ease she had from her visible and sensuous colleague the body, in performance of religious duties, her pinions now broken and flagging, shifted off from herself the labour of high soaring any more, forgot her heavenly flight, and left the dull and droiling carcase to plod on in the old road, and drudging trade of outward conformity.... They knew not how to hide their slavish approach to God's behests, by them not understood, nor worthily received, but by cloaking their servile crouching to all religious presentments, sometimes lawful, sometimes idolatrous, under the name of humility, and terming the piebald frippery and ostentation of ceremonies, decency.—*Of Reformation in England, first book.*

A writer in the *Stimmen* thought that if those who were separated from the Church had only been present they might have been won back. It would be an easy way to settle the merits of a religion, if it could be done by the simple experiment of what body had the grandest building for a display, or the greatest number of richly dressed men to perform. We do not presume to say whether Peter ever did visit Rome or not; but, supposing that he did, the question between him and the sovereign Pontiff of the day, as to the value of their respective religions, would soon have been settled in favour of

Nero, if it had gone by buildings, statues, robes, and retinues. Probably the poor itinerant preacher was so conscious that, as Milton would say, his religion "to the gorgeous solemnities of paganism, and the sense of the world's children, seemed but a homely and yeomanly religion," that he would not have challenged comparison with the purpled Pontiff on that ground. Any writer who could imagine that the tendency of a "function" performed in the manner of the one we have described is to convince Protestants that the Church of Rome has in her forms much likeness left to the Church of Christ, must be unaware of the first elements of a comparison. When we search the Scriptures daily to see whether these things are so, the estrangement of the Papacy from the Christianity of Christ, and its affinity to the Romanism of the Pagan Pontiffs, become more and more impressive.

The feeling in St. Peter's did not permit guards to be dispensed with. It transpired that extreme precaution had been taken to prevent the Basilica from being blown up. At the time, the general impression appeared to be that some of the National party had played upon the fears of the priests, hoaxing them with hints of such a design. But after what occurred in Paris during the reign of the Commune, one can hardly think it impossible that some of the violent and ignorant may have entertained wild plans. In 1867, a startling example of what might be done had been shown in the blowing up of a barrack of the zouaves. When populations which have long been governed by spectacle, set out for a political sensation, they sometimes go dreadful lengths to find a stirring one.

The city was to have been grandly illuminated, but the drenching rain would have mocked all effort to keep in the tender life of the lamps. Let us hope, said the clerical writers, that the blue sky of Rome will smile on the close of the Council, and that then the eternal city will glow brighter even than Ephesus in 431 (*Stimmen*, N.F., p. 166).

In addition to human helps to faith, it was announced that divine helps had been vouchsafed. On this ever-memorable day the bones of the martyrs at Concordia had distilled water, which in that part of Venetia was a recognized presage of a joyful future. This is announced in the organ of that Court which was soberly undertaking to inaugurate a new era for all the societies of men (*Civiltá*, VII. ix. 104).

The same periodical in the very next sentence gave samples of *fanatical* English Protestants. Citing the *Pall Mall Gazette*, it told how a series of meetings had been held in Freemasons' Hall, at the suggestion of Dr. Merle d'Aubigné, to pray for the Council. It went on to say that the Chairman, Mr. Arthur Kinnaird, had told how similar meetings for prayer were to be held all over the world, and even among the Protestants of Italy. It quoted two of the petitions said to have been offered up. Canon Auriol prayed *that all the machinations of Rome might be turned to confusion*, and Dr. Cumming that *the day of her imagined triumph might prove to be that of her prophesied ruin*.

It was much pleasanter work to tell of the Anti-Council of the Freethinkers at Naples. Praying Protestants are to be hated and extinguished. But vaunting infidels are to the Jesuits what fires are to insurance offices—their apparent foes, but their only real supports. That assembly spent a couple of days in vague and sometimes vast talk. It abused the Pope, and the Jesuits say it blasphemed God. It proposed to find a code of morals without religion, those flowers without any stems which are the holy grail of such knights errant. Finally, it attacked the French Emperor and the Italian monarchy, and was dissolved by the police. Demonstrations of a somewhat similar kind were attempted in a few other cities of Italy. In France, on the contrary, the following cities were illuminated, and were lauded not only in their local clerical journals, but in the great *Civiltà*: Lyons, Bordeaux, Marseilles, Toulouse, Limoges, Clermont, Saint-Etienne, Laval, Moulins, Nismes, Auch, "and others." Even in Paris many convents illuminated their facades. (*Guérin*, p. 78.)

At Vienna a meeting of the nobility, gentry, clergy, and officials composing the Catholic Societies, and numbering, it is said, four thousand, was held to celebrate the day. The only Italian city specified as having made any favourable demonstration was Brescia; and the account amounted to no more than that of an attendance of some Society of young men at Mass, and of the sending of a promise of adhesion to the Council.

FOOTNOTES:

[198] *Fronde*, iii., p. 254. M. Fisquet is author of the work *Gallia Christiana*, in fifty volumes.

[199] The Hindu *Bhagavad Gita* thus represents the distinction between God and the gods. "I behold, O God! within Thy heart the *dews* (gods) assembled, and every specific tribe of beings. I see Brahma (the creator, only a god) sitting on his lotus throne, all the Reeshees, and heavenly Ooragas.... I see Thee without beginning, without middle, and without end.... The space between the heavens and the earth is possessed by Thee alone, and every point around.... Of the celestial bands, some fly to Thee for refuge; whilst some, afraid with joined hands sing forth Thy praise. The Maharshees holy bands hail Thee"; and then follows an enumeration of various orders of celestials, who "all stand gazing on Thee, all alike amazed."(a)

(a: Wilkins' translation, Garrett's ed., pp. 34, 55.)

While thus Hinduism long anticipated either Pagan or Papal Romanism, in a system of inferior worship to inferior powers, it more logically attached inferior paradises to such worship. "Those who worship the *Devatas* (gods) go unto the *Devatas*; those who worship the Patriarchs go unto the Patriarchs; the servants of the spirits go to the spirits; and they who worship me go unto me."(b) That is sensible as a polity, if fallen as a religion. But it may be doubtful whether those who worship the Inquisitors would like to go to the Inquisitors.

(b: Ibid., p. 46.)

[200] Dr. Philip, author of *The Ghetto and Rome's Great Show*.

[201] See Liverani at full.

[202] Chap. x. 8, 0.

[203] *Allocution* of June 26, 1867.

[204] Wilkins' translation, Garrett's triglot edition, Bangalore, p. 53.

[205] *Stimmen, Neue Folge*, vi. p. 116.

[206] *Fronde*, iii, p. 10.

[207] In the list of Popes, the name Peter is repeated only in the case of one, and he was an anti-pope.

[208] The form of the opening resolutions and of the Decrees is found in any edition of the Canons and Decrees of the Council; the full account of the proceedings, taken down at the time by Massarellus, the Secretary of the Council, in Theiner's *Acta Genuina*, vol. i. 28, 29.

[209] *Priv. Petri*, Part III. p. 36.

[210] This version, made before the publication of the English translation, differs from it only in immaterial points. (See *Eight Months*, p, 22.)

[211] *Times*, Dec. 14, 1869.

CHAPTER II

First Proceedings—Unimportant Committees and All-Important Commissions—No Council if Pope dies—Theologians discover their Disfranchisement—Father Ambrose—Parties and Party Tactics—Were the Bishops Free Legislators?—Plans of Reconstruction—Plan of the German Bishops—Segesser's Plan—New Bull of Excommunications.

THE day following the wonderful Wednesday, of which the proceedings filled up the last chapter, was not too much for rest, and probably, indeed, was too little for the bishops to tell how effective the function had been. On the Friday, however, they had again to meet for the first General Congregation, or deliberative sitting. This was presided over by the Cardinals appointed, whereas the Pope in person presided over the Public Sessions, or solemnities, for formally promulging Decrees. Cardinal De Reisach, Chief President, was not in his chair, but upon his death-bed. As we have seen, he had superintended the drawing up (it is believed that with his own hand he had drawn up) the first code of laws to regulate the relations of the Church to civil society; but his code has never met the public eye.

From this first General Congregation, writes Friedrich, even the theologians were shut out.

The occupation of the day for nearly eight hundred bishops was to elect two committees of five each: one to examine applications for leave of absence; and the other to settle contests as to precedence, and similar matters, which contests at Trent often proved to be serious, indeed ere now the streets of Rome have witnessed bloodshed arising out of disputes of this sort between bishops. The members of these committees were called respectively Judges of Excuses and Judges of Complaints and Disputes. The mode of election was simple; every one wrote five names on a card. It proved that Fallibilists

must not expect the smallest share of office. Cardinal De Luca took the chief place, and opened the Congregation with a few simple sentences. These were translated by interpreters for the Orientals who did not understand Latin. The prelate who on this occasion celebrated Mass at the opening of the sitting was the Bishop of Osimo, afterwards Cardinal Vitelleschi, to whom some have ascribed the authorship of the work of his brother, which we often quote. [\[213\]](#)

The real business of the day, too important to be left to the episcopate, had been done without them. It consisted in appointing the Commission of Proposals. Twelve Cardinals, twelve archbishops, and two bishops were announced as the men whom the Pontiff had put in charge of the rights of their brethren. Prelates with titles from Antioch, Jerusalem, Thessalonica, and Sardis; one from Chili and one from Baltimore; one from Spain, one from Westminster, two Italians, and a few others, were empowered to say whether the men who ruled the sees of Paris, Lyons, Munich, Cologne, and Milan, and those of Hungary and Portugal, were or were not to be recommended to the Pope for permission to bring forward any proposal. The Commission could not grant them leave to do so, but it could report to the Pontiff, who alone could determine.

As some seven hundred and fifty bishops found all their hopes of proposing anything placed at the discretion of these twenty-six men, it was not for them to reason why: it was for them simply to read in the names now announced the record of past services and the fate of future suggestions. [\[214\]](#) They had not stayed the proceedings when they found that the Pro-synodal Congregation had been used to fasten upon them an edict which took away their right of self-organization, and it was now hopeless to attempt to recover that right. The three youngest archbishops on the list were Giannelli, Manning, and Deschamps; the secretary of the Nine, and the two hottest Infallibilists—all three on the way to the purple, which they have since received at one and the same time.

But the sensation of the day, perhaps brought about at this moment to divert attention from the painful inroad just made upon episcopal rights, was a Bull determining the course to be taken should the death of the Pontiff occur during the Council. This edict determined that the bishops must not, in that case, elect a successor or transact any business, but that the Council must be held as suspended till another Pope should be duly elected by the

Cardinals alone, and till it should be again called together by him. Pius IX ordained that this law should endure for ever, as the rule in all similar cases. This measure made the Council an appendage to the person of the Pope, not capable of sustaining its existence without him, and consequently having no imaginable power over him. It also made it inferior to the College of Cardinals—an abnormal body, composed of "creatures" of the crown, without any pretence to a constitutional place in the Christian Church—"Princes," and some of them, like Antonelli, not even priests. "Pivots," as their name imports, true "pivots"^[215] of the Court, which has turned a religion into a school of costume, policy, and arms, they have, we repeat, as Cardinals, neither name nor place, neither order nor office, in the known constitution of the Catholic Church. When men who held that bishops were successors of the Apostles allowed the right of all the bishops in the world to choose their own head to be confiscated by an edict in favour of these Court officers, they were not likely afterwards to be strong supports of any true authority, only of that arbitrary will which finds all the sanction of its acts in itself. The Cardinals may well denounce nationalism, since to uphold their pretensions the mitres of all nations must bow to the hat of a prince in the suite of one little king. It would be unreasonable to think less of a man for wearing a scarlet hat and scarlet stockings, if his position in life calls him to it; almost as unreasonable as to think more of him for it. But to put a prince into that grotesque Court dress, and then turn him, by virtue of his Court position, into a titular bishop, or archbishop, and to expect his irregular office to be recommended by his incongruous attire, is a proof of the unlimited faith of the Curia in costume.

The experience of the day taught two lessons. First, the hall proved to be utterly unfit for deliberation, as every architect or public speaker must have known that it would prove, though about twenty-four thousand pounds had been spent in adapting a space within the Cathedral. But the second lesson of the day's experience was of a different kind. It had become plain that Fallibilists and Infallibilists were to be parted off from one another by a hard official line, and that no distinction would be made between Fallibilists and Inopportunistes. The Curia, instead of showing any fear of the minority, was evidently resolved on letting it be known that Rome was not the place to form an opposition. The Rules had in fact already disposed of the minority.

We have intimated that possibly theologians came up to the Council with no more knowledge of what awaited them than the bishops. This was at least the case with Friedrich. On the Monday after the opening ceremony, accompanied by Kagarer, theologian to his Grace of Munich, he waited on the Secretary of the Council. I knew, says the Professor, that at Trent every theologian was not entitled only, but bound, to take part in the labours of the Council, by preparing papers and publicly discussing questions. But, he adds, "we were undeceived with a witness." The Secretary told them that the duty of theologians in connexion with the Council was "nothing." They were only to give information or advice to their respective bishops, as it might be asked for.

The decision thus announced to the doctors had been taken eleven months previously. The Nine, at their meetings of January 24 and 31, (*Cecconi*, p. 205) had determined that there should be no congregation of inferior theologians, as the doctors were called, in opposition to the bishops, the superior theologians. The open discussions which had given light to the people on the one side and to the prelates on the other were thus quenched. The people were no more to have any means of ascertaining what was being done with their creed, nor even, when something had been done, were they to have means of ascertaining what were the processes by which the new dogmas had been established. All that they were now to learn was to be the *fait accompli*, henceforth to become the standard of faith for all and in all. The order of priests was to be shorn of its last vestige of representation in the Councils of the Church. The bishops, on the other hand, were not to be allowed to know what could be said for or against a proposed dogma, before they were called upon to close it up for ever. This one turn of the screw wrung even from *Cecconi* a mild but distinct expression of doubt. He feels (p. 205) that "the Fathers generally lost a mighty assistance in the discharge of their high office." He ventures to quote Pallavicino, the Jesuit historian of Trent, whose language shows that the old Jesuits had broad views compared with those now ruling. Pallavicino's words remind us of the cry of poor Monsignor Liverani: "We might be allowed to be Liberals up to the mark of Bellarmine"—

Many of the bishops were learned in the science of theology, but the most eminent, as is the case in all sciences, were the private theologians, since they had not been diverted by public cares from

regular study, without which eminent prudence is often acquired, but not eminent erudition.

But Pius IX had no intention of allowing bishops to satisfy their consciences by hearing all that could be said on both sides before they gave a judgment.

It would be hard to find a neater specimen of the terms in which the abolition of a venerable franchise may be couched than in the words of Cecconi. He lets us know that on the 4th of July, 1869, the Nine resolved to "confer on the theologians of bishops the right of being eligible to be called to serve the committees of the Council." It would be only in keeping with a system of quotation regularly practised if this statement of Cecconi should be, hereafter, used to prove that the theologians at the Vatican Council did not suffer any curtailment of their rights, but received an increase of them. But exclusion from the right of pleading before "my lords" was not all the degradation awaiting the unfortunate doctors. Bishop Fessler told them that they were free to give information or advice each to his own bishop, but, adds Friedrich, *only to him*. We wonder what man was not free to give private advice if asked for it. They were not to be allowed *to attend meetings of the bishops; not even to meet among themselves to consult in common upon questions affecting the Council.*^[216] Friedrich was not the most to be pitied of the theologians. Father Ambrose, a Carmelite, had been brought up from Germany by his general, a Spaniard. At the first interview the general told him that the all-important question was that of Papal infallibility. Father Ambrose declared himself a Fallibilist, and produced a work which he had prepared on the subject. He at once lost his post; and the general wished to send him off to Malta. Cardinal Hohenlohe pleaded for his restoration, but in vain. The general feared that the order would be utterly put to shame if in addition to the scandal of the Cracow nun, and that of Father Hyacinthe's defection, a theologian of the Order brought up to the Council should be known as a Fallibilist. The poor man had even to go to Cardinal Hohenlohe, and to beg of him to give him back a copy of his little work which he had presented to his Eminence. This the Cardinal refused to do, saying that even if the general had ordered it, he had nothing to say to a Cardinal. Ambrose was permitted to return to Würzburg, and before he started a prelate said to him, "I should rejoice if any one recalled me or sent me home. We bishops have been ordered here to the Council without being

told what we were to deliberate upon, and now that I know it, I could gladly turn my back upon the Council and Rome."

Another minute touch of Friedrich at this moment shows how he heard a devoted Roman adherent of the Papacy say that an officer had sent him twenty scudi (about four pounds) as an offering to Peter's Pence; but he had returned the money, telling his friend he would do better to spend it on his family. "His conscience had dictated this course," for he knew how Peter's Pence were spent.

The correspondent of the *Stimmen* must have been under the triumphal influence of the opening, when he informed his German readers that wonderful unanimity reigned, and that what might be called the Opposition was daily shrinking up into nothing, and would soon reward only microscopical research.^[217] The *Unità Cattolica* of January 1 alleged that the *Français*, in using the expression, "A fraction of malcontents," might possibly be right, if it meant an almost impalpable fraction; but if it meant anything more, it was false. The alleged discontent, it went on to say, was spoken of as if it related to the Commission of Proposals appointed by the Pope. Some were said to wish that the Council itself should have had the selection of a committee. It was false; no one complained. It could not be disputed that the Pontiff, having the right to convoke, rule, and guide the Council, had also the right to determine what questions should be submitted to it. Pius IX had, indeed, himself confirmed this in the Bull by which he settled the Rules of Procedure. This is not conscious but unconscious irony. It reflects the course of the Papacy, displaying its administrative force and its logical infirmity in one word. A right is first desired, then secretly assumed, next insinuated in indirect forms, and finally embodied in an act assuming it as already ascertained; after which, this very act is taken as proof that it was previously established. When the Nine met, they confessed that it was questionable if the right existed to lay down rules for a General Council of the Catholic Church by a sub-committee of the Cardinals. But they assumed the right as unchallenged, embodied the assumption in an edict, and now turned to that edict as proof of the pre-existing right. A few days later, the correspondent of the *Stimmen* again said that, while the intelligence furnished to the ordinary journals was absurd, one thing might be relied upon, namely, that what was called an Opposition was daily diminishing.^[218]

Another Jesuit, writing after the Council, did not confirm these statements of the inspired organs, but followed the profane journals, whose intelligence was at the time decried—

Behold, says Sambin, two camps face to face! On one side, Rome and her Sovereign Pontiff, surrounded by a vast majority of the bishops, displaying the banner of the Church as set up by her divine Redeemer. On the other side, an uncertain number of men belonging to all ranks of the hierarchy, seduced by illusory appearances or frightened by the danger of attacking modern ideas in front—men who fancy that the Church ought to parley with the notions of the age.^[219]

The orthodox view on this point was expressed by the *Civiltà* in its first number after the Council was opened. "The Press and public meetings are the two mainsprings by which the spirit of the age, or Masonry, or, to give things their proper names, Satan, moves public opinion for his own ends."^[220] At that moment Satan was busy not only with the Italian and German Press, but with the *Standard*, *Saturday Review*, and other English papers.

Another aspect of the Council was exhibited, not in the secular newspapers, but in the clerical periodicals. Eight days after the opening session, the *Stimmen* was informed how, on an afternoon as mild as summer, the grounds of the Villa Borghese were enlivened by a review in honour of the Fathers of the Council. The troops were much commended, not omitting the *Squadriglieri*, whom the Italians profanely charged with having been recruited from the brigands but whom the Jesuits described as excellent Catholics. The *Civiltà* was really edified by this display. In the military review, it says—and we repeat word for word—the profane spectacle was dominated by the thought of the *new crusaders* defiling before so many bishops, spectators and a spectacle no longer witnessed at a military review. It was well and truly said that this *review* looked like a *function* in St. Peters'.^[221]

A few days later, the faithful, whose supply of news never related to either doctrine or discipline, were edified by an account of a performance in a military casino, in honour of the Austrian and Swiss bishops. It is inferred that the Pope's foreign troops must be highly educated, because the beautiful scenery had been entirely painted by the soldiers. The curtain

represented St. Michael the Archangel overcoming the *first great rebel*. The first great rebel, by some wonderful prolepsis, was clad in a red shirt, and wore the features of Garibaldi. No writers so well know as the Jesuits how to make fun of Garibaldi's bit of ritualism, with his red shirt and poncho. A German war-song of the middle ages, addressed to St. Michael, was sung with loud applause, and sung *encore*. Cardinal Prince Schwarzenberg, the Archbishops of Salsburg and Cologne, the Bishop of Mainz, and the Prussian Military Bishop, with a retinue of counts and one prince, hallowed and graced the performance. ^[222]

In spite of these diversions, and the protests and assertions of perfect unanimity made by the clerical writers, the indications which had for some time been making themselves obscurely felt of a Court party and an Opposition party, had at last emerged into painful consciousness on both sides. The idea of a sovereign above any party was too lofty for the place. One party, as we have seen stated by Sambin, was Rome and her Pontiff, while the other was an opposition, not against the opinions of Infallibilists, or the plans of a Cabinet, but against the Sovereign. Both sides had been very reluctant to acknowledge the reality of such antagonism, even long after its existence began to be tolerably evident. The Curia had nursed the hope, as we shall see, of all but unanimous adhesion to its preconcerted plans. It reckoned on the ascendant of the Pope when in presence, on that of the Sacred College, on the sympathy of numbers, the witcheries of ceremony, the baits of promotion, and, if need should arise, on wholesome fear.

On the other hand, even the prelates who most feared what was about to be done, disliked the idea of being in opposition, not only to the Curia, but to the Pontiff, and that on a personal question. They flattered themselves, moreover, that the good feeling of the Pope would lead him to moderate his prompters, and would not allow him to expose bishops to difficulties with their flocks and their governments, which they clearly foresaw. The men hoped that the general would modify his plans, and would win the campaign by strategy, without forcing them against stone walls.

Even before the opening, a painful feeling, according to Friedrich, had seized upon some of the bishops, when studying the Rules of Procedure. Fessler, he states, had told Dinkel, of Augsburg, that some dogmatic Decrees would be forthcoming on the opening day. Yet not a hint had been

given as to what these Decrees might be; and such secrecy on matters so solemn was taken ill.^[223] So far as the Curia was preparing a counter revolution, it acted only like any other political body in keeping its plans hidden. But it was a different matter to make secret preparations for effecting changes in a creed that men had taught until they were grey-headed, and then to expect them to face the alternative of either accepting the change or ruining their official prospects.

Scarcely had the opening session passed, when an address was signed by fourteen French prelates and the powerful Croatian Bishop Strossmayer, representing to the Pope in humble yet clear terms the danger of any restraint on the liberty of the Council. They did not rise in their places and move that the Council itself should frame its Rules of Procedure; they did not even move to accept the Rules laid before it in the Bull *Multiplices Inter*, with certain specified amendments. Nothing short of this would have asserted the freedom of their Assembly. On the contrary, like all men trained under absolutism, they did not know how to maintain their inherited rights against encroachment and at the same time to abide loyal and true; but submitted, grumbling at their wrongs, and groping for some opening in the wall which shut them in. Had they attempted to bring forward such a motion as we have supposed, it would soon have been seen whether the assertions were or were not true which were made by English and American bishops about the Council being as free as the Senates of their own nations. Any one attempting to make such a proposal would have been informed that in the Pro-Synodal Congregation the Rules had been issued as a Papal Bull, and that in the first session the forms therein prescribed had been acted upon; so that those Rules, not being an act of the Council, but of the Pope, were not subject to revision by the Council; and, furthermore, that the Council had already practically adopted them. In fine, the prelates stood to some ideal Council in some such relation as we stand in to the Parliament; we cannot propose a motion, but we can send in a petition. Yet our petition would go to the House itself, not to the Cabinet. It would be named in the hearing of the House, and noted on its records. The petition of the poor bishops could not be presented in the Assembly, no trace of it is in the *Acta*; its only open way was to the steps of the throne. It was never answered, never mentioned in the official documents, and the faithful who sought information in the accredited organs that rang with charges of

misrepresentation against worldly ones, never received a hint of any such transaction.

"Unless the thoroughness of examination and the perfect freedom of discussion are as clear as day," say the fifteen prelates, it is to be feared that the effect will be to lower religion in public esteem and to aggravate the troubles of the Church.^[224] The first point on which the petitioners fastened was the right of proposition. Yet, simple as this right was, they had not the courage to claim it. Perhaps even they were deceived, as Quirinus and many other writers evidently were,^[225] at the first glance, by the way in which the denial of that right was veiled over in the Rules of Procedure. The mode of putting it is one often employed in the documents of the Roman Court. When some serious restriction is to be announced, you may find at first a sentence or paragraph which conveys an impression of something different, perhaps opposite to what is to be the conclusion. Indeed, practised Liberal Catholics sometimes write as if with them it was a tacit canon of interpretation that when in Jesuit teaching you find a principle affirmed in the opening of a paragraph, that is the principle which is to be rendered nugatory by qualifications ere you reach the close; and when you find a principle disclaimed, that is the principle which, under veils and covers, is to be set up.

In the Rules of Procedure the section on proposals did not say that no Bishop should be permitted to propose anything in the Council, which was the thing meant. To plainly say what was meant, would be to copy the Tower of Babel, the wicked modern Parliament. The section said that though the right of bringing forward proposals belonged to the Pope alone, he wished the bishops freely to exercise it. This sufficed to set many writing good news home. They did not wait to weigh the following words. These showed that the right of proposition, handsomely announced to the Fathers of the Council, was just the right which everybody in the world possessed, that, namely, of forwarding a suggestion to the Pope. Curiously enough, even that common right was granted here only in a circuitous way, for the Pope himself named a Commission to receive propositions from the bishops, to consider them, and to report to him. If, after such report, he should wish any of them to come before the Council, he would send them forward. Most of the bishops, being unused to Parliamentary forms, began only by slow degrees to realize the fact that thus they had no right of

proposition whatever. It was a good while before they became aware that they were simply in the position of private people. Anybody in Rome, or in Calcutta, could forward a suggestion to the Pope without going to a Royal Commission.

The address of the fifteen bishops requests that authors of proposals shall be admitted to a hearing before the Commission, and also that the latter shall be required to assign reasons when it reports against any proposal. But the bishops do not even ask leave to put their suggestions upon the books. That would, at least, have given members the right of letting their fellow members know what they wished to see done. The idea of entering a notice of motion would of course have been in that atmosphere not liberty but licence. They do, however, venture to suggest that some members of the Commission might be elected by the Council. They also point out that secrecy cannot be really maintained. The address, as we have said, was not even answered.

Hergenröther, the writer on whose authority Cardinal Manning requires us to rely, devotes some strength to this question. He begins by affirming that in Trent there was no fixed order. His proof for that assertion is that there is no written Code of Procedure, the record showing only the course actually followed from time to time. He also asserts that the bishops in the Vatican Council *had perfect liberty* of proposition. He moreover informs those who learn from such as he, that in all great assemblies the right of the President includes that of proposition, at least so far as to give him the decision, as to the order in which the proposals are taken.^[226] Hergenröther, moreover, affirms that Friedrich wished to deny the right of proposition to the Pope—a blunder arising from not distinguishing between a right and an exclusive right. The Directing Congregation made a distinction as singular as was this failure to distinguish on the part of Hergenröther. It held that the Pope had the direct right of proposition, and the bishops the indirect right. But the fact was that they had no right of proposing to the Council whatever. They had no right beyond that of making a suggestion to the Pope, which, we repeat, anybody in the world could do; the only difference being that the one suggestion went before a Royal Commission, while the other did not.

The Directing Congregation had been first of all inclined to let the Fathers choose a committee of their own, but finally determined that the Pope himself should appoint a commission. This was an arrangement open to

objections which even they did not wholly fail to see; but the Court historian finds a perfect answer by saying that if a good proposal should rest unheeded the author of it would have the satisfaction of having done his duty, and he must trust to divine Providence, which would never fail the Church.^[227] Clouds of words were raised about this simple matter. The Catholics made solemn asseverations that the bishops had as perfect liberty of proposition as the members of any public body. The Liberal Catholics protested that they had not. They were cried down as slanderers.

Hefele, a learned German, gave confused and even contradictory advice as a consulter; first contending that the bishops should have a right of proposition, and then suggesting the very arrangements finally adopted. Sanguineti, a Roman consulter, plainly stated what was to be aimed at, namely, that the Pope alone should have the right of public proposition, leaving to the bishops what he calls the right of private proposition; as the directing Congregation calls it, of indirect proposition, or, as we call it, of suggestion.^[228]

The result, then, was that the bishops could not bring in any substantive motion, could not move for a subject to be taken into consideration, could not put a notice of motion on the books, could not move an amendment on what the President proposed, could not move the previous question, could not move to decline taking the matter into consideration, could not move to postpone it. All that they could do was to speak to what the President proposed, to send suggested amendments before a committee, and finally to vote Yea or Nay upon the question, in the form into which that committee ultimately put it. No minutes of proceedings were printed, or even read day by day. No knowledge was allowed to speakers even of the reports taken of their own speeches; no sight of the reported speeches of others.

Notwithstanding all this, bishop after bishop returned from the Council to denounce in pastorals those who had said that they had not the liberty of proposition. Even our English tongue had to make itself the vehicle of such statements for two mighty nations. Bishop bore witness to bishop, and they were true and all men were liars. Archbishop Manning told how bishops "of the freest country in the world" had *said truly*, "The liberty of our Congress is not greater than the liberty of the Council."^[229] We fear that American

bishops might have quoted similar declarations from English ones. It is for members of Congress and of Parliament to judge.

La Liberté du Concile is a tract which, Friedrich says, if not written by Darboy, was inspired by him.^[230] Only fifty copies were printed during the Council, for distribution exclusively among the Cardinals, and with the strictest injunctions of secrecy. The whole is given in the *Documenta ad Illustrandum*.^[231] It is introduced by an article from the *Moniteur* of the 14th February, 1870. One of its earliest sentences compresses the secret history of Cœcconi into a few words. "The first unhappy thought, and that from which the Council now suffers, was the wish, so to speak, to make the Council beforehand, and to make it without the bishops." It is right to mention that M. Veuillot says that this writer recounts ill, reasons worse, and draws inferences worst of all.^[232]

For two years, complains this writer, the bishops had been refused any programme. They had not been afforded any possibility of studying questions about to be raised, or of preparing themselves to discuss them.^[233] It would seem that the writer did not know that the preparations had extended over five years instead of two. He says that the Council had not made its Rules of Procedure; the Pope had imposed them. It had not chosen one of its officers, not even a scrutineer; the Pope had selected them all beforehand. The reason for the restraints imposed on the liberty of the bishops was stated by M. Veuillot as being to take away the liberty of evil, which the writer considers an insult to the bishops. We may remark that this is a principle which, had it been acted upon by the great government above us all, would have precluded every question as to the origin of evil. This tract affirms that the Commission for Proposals was composed exclusively of declared partisans of the Court. That statement is not quite accurate. Rauscher was a mighty instrument of the Curia in its ordinary aggressions on the civil power, but too sensible to approve of its present projects. Cardinal Corsi also, though at last he voted with the majority, was all along reputed as averse to the definition of infallibility. The next complaint is that the Committees for the important subjects of Dogma, Discipline, the Religious Orders, and Oriental affairs, are permanent, chosen once for all, and chosen by a strictly party vote, excluding every Fallibilist. Thus, is it urged, only ninety-six bishops out of nearly eight hundred would ever know anything of those real deliberations which principally determine the results

of the Council. These Committees would have to decide upon all alterations to be made in Drafts of Decrees after the first Drafts had been discussed by the bishops generally. They would have the sole responsibility of bringing them forward in the definitive shape in which they must be voted upon, Yea or Nay. Thus, he repeats, seven hundred out of eight hundred are absolutely excluded from a share, at any time whatever, in the most important operations of the Council. The indignation of the author would not have been lessened had he known that this particular point had been carefully weighed by the Nine. They at first resolved to allow the Council to elect, as had been done at Trent, committees for each particular matter as it arose. It was, however, subsequently foreseen that this regulation might open the way to the election of men who were not safe. After a discussion, a man who had displayed ability in treating the matter in hand might be elected on the committee for that reason alone! If, on the other hand, committees were chosen once for all, it would be easy to secure the exclusion of wrong names in that one election, and no opportunity of changing them would ever arise. [\[234\]](#)

The writer of *La Liberté du Concile* proceeds to say that a number of bishops urgently requested the Pope, in order to ensure a wise selection of these all-controlling committees, to direct that the Fathers should be divided into groups, and should in these discuss pending questions separately, on the plan adopted in the *Bureaux* of the French and Italian Chambers. Thus the Fathers, who for the most part were perfect strangers to one another, would in a little time learn who were the capable men, and would be in a position to make a proper selection. This appeal, probably the one we have already mentioned, was not even answered.

The lords of wide dioceses, accustomed to rule their clergy with military authority and to face statesmen with considerable pretensions, were now reduced to struggle for very small liberties. They attempted to form themselves into groups, by nation or by language. So far as the French were concerned, this arrangement failed. Each of their two Cardinals, De Bonnechose and Matthieu, received a group in his own house. Cardinal De Bonnechose would not consent that all the French bishops should meet together. Even when they divided, he went for advice to Antonelli, who intimated that they ought not to meet in *larger groups than fifteen or twenty*. The effect of all this was, that when the time for making arrangements for

the election of the committees came, they had no concert among themselves; and the writer states that after that election, the annoyances confronting Cardinal Matthieu were so great, that he felt obliged for a time to leave Rome. Hereupon the bishops who had previously met at his house resolved to go to that of Cardinal De Bonnechose, who had, for once, to receive them; but he again consulted Antonelli, and declared that this first general meeting should also be the last.

The bishops desired to select the best men of their own nation to be nominated as members of the permanent committees. The Curia, however, had provided for all that. The "ticket" of Cardinal De Angelis, as it would be called in America, was the counter move. The German and Hungarian bishops had shown more cohesion than the French. They met together, and made a selection of the principal men from their own number; but that resulted in nothing. The Curia had selected those whom it preferred, setting aside the men who stood high with their fellow-countrymen, and putting forward those who with them would have had no chance. An official list was prepared bearing the name of Cardinal De Angelis. Of course the bishops *in partibus*, the missionary bishops, and all the mere dependents of the Court, voted for the official list; and thus the whole of the four permanent committees were composed, as the secret preparatory commission had been, exclusively of the nominees of the Curia. The Jesuit Press gloried over this result. M. Veuillot said that the Committee on Faith was an echo of the great commission appointed by the Pope. Sambin recorded the triumph, with satisfaction, for permanent history. The result showed that the Court could count on about 550 votes.^[235] De Angelis was appointed to the vacant post of Chief President, in room of Reisach. Cardinal Schwarzenberg was not on any committee, Hohenlohe was out of the question. Even the Archbishop of Cologne was only on a petty committee for granting leave of absence. But Bishop Senestrey, of Regensburg, the author of the throne-upsetting speech, was on the all-important committee for dogma.

This manœuvre excited strong indignation amongst all shades of the marked men. They found themselves shut off from such a part in deliberations as would have been granted by any worldly cabinet to an honourable Opposition. Then, the mode of securing the result by the expedients of a political election caused bitter recollections of frequent

admonitions, given both verbally and in the Press, not to reason about the Council as an ordinary human assembly, but to evince a worthy confidence in the all-guiding power of the Holy Ghost. The *Rheinischer Merkur* remarked that the Romans had a saying, that at the beginning of a conclave the devil reigns, then the world carries all before it, and only at the last does the Holy Ghost turn both out and regulate things according to His own will. This genuine specimen of Roman mockery is applied to the Council by the *Merkur* saying that as yet the third stage had certainly not set in.^[236] The selection, said the *Merkur*, of committees was one-sided and narrow-minded. The Archbishop of Paris and the Bishop of Orleans saw themselves thrown aside, and nominal bishops put in the places they ought to have occupied. The German bishops, who had strongly confided in the moderation of the Curia, found that no amount of trimming would avail; nothing short of a sound profession on the question of infallibility. Vitelleschi says that the clearest, most sincere and disinterested opposition was that of the German bishops. They knew what they meant, and also knew that they expressed the collective sense of their people; besides, they always acted with moderation. He ascribes this moderation to two causes, namely, the fact that they consciously did express the views of their people, and that they were, more or less, influenced by Protestant modes of thinking. We confess that we see little proof that any German bishops but the Curialistic ones were clear. We should rather have said that they were at sea. As to the moderation, however, Vitelleschi adds that no such moderating influence of Protestant opinion appeared in the case of the English prelates. "Several bishops, with Manning at their head, more Catholic than the Pope, are noted for their Ultramontanism" (p. 45). He adds, that even the Irish bishops were less uniformly Infallibilists than the English. Of the Belgians, he says that some naturally took the more liberal direction. De Mérode, well known in Rome as a Court prelate, placeman, and speculator, like Dupanloup, had been a champion of the temporal power, but now proved to be an anti-infallibilist. *Et tu, Brute, fili mi!* exclaims the Roman. As to the Spaniards, Vitelleschi says that they had been trained in the school of Torquemada; and if they were content with being only Ultramontanes, that was something gained. These are the divines of whom Quirinus says that if ordered by the Pope to vote that there were four persons in the Trinity, they would do it. Vitelleschi remarks that the prelates of the United States were simpler than their brethren, and less

practised in ecclesiastical politics. Their want of any political importance at home, he believes, had predisposed them to warmer sympathy with Curialistic views than might have been expected from them. Nevertheless, it proved in time that, under the forms of ecclesiastical discipline, the spirit of citizens of a free country did now and then make its appearance among them. Another of his remarks is, that, with the exception of Portugal, most of the bishops from small countries were in the interest of the Curia. Speaking of Mermillod, from Geneva, Quirinus says that he "rivals Manning in his fanatical zeal for the new dogma." Of course the Italian bishops, with very few exceptions, were Infallibilists, and those from South America were all upon the same side. The bulk of the Opposition bishops were German, Hungarian, and French, reinforced by some of the older ones from Ireland, a few of the English, a good many of the North American, and only about twenty of the entire body of the Italian.

The various groups had now everything to stimulate them to put their proposals into shape. Those of the Curia were in shape already. They naturally took the old direction of conforming the creed to innovations in practice. At Trent this was done with many innovations, which must either fall into discredit or be lifted above dispute. In this way was the demand for a reform of the Church to raise her to the level of the creed, met by a determination to bring down the creed to the level of the Church. The two movements were confronted. Reformation, on the one side, renovating the condition of the Church; and Conformity, on the other side, adulterating the creed. Both together resulted in the wide separation which has been witnessed ever since. The necessity now pressing sprang from different causes. No party had arisen to challenge the primacy of the Pope, even in the form of all but unlimited monarchy, into which, under cover of the gentle word "primacy," it had been monstrously developed. On the contrary, indeed, of late years the faithful had shown increasing submissiveness, proportioned to the dangers surrounding the Pope. But the Papacy itself was moving for constitutional powers which demanded a new dogmatic basis.

In comparison with the magnificence of the scheme of one fold and one shepherd, the notions of the German bishops, as disclosed by Friedrich, are an illustration of how administrators putter when immense issues press for solution. While the architects were designing a new coliseum, the joiners and stone-cutters were great upon cusps and corbels. In answer to the

seventeen questions issued in Rome at the centenary of St. Peter, the German bishops had deliberated at Fulda for five days. Marriage, as a mine yielding richly to the local authorities in fees, and to the Curia in dispensation taxes, and also as a means of power over females, and over the education of children, was naturally one of the main points. Another point included the offences for which parish priests should be liable to deposition. On this the bishops advised the addition of two offences to the list—notorious fornication and open concubinage.

Hints were thrown out about abolishing all benefices, as they were said to be feudal. The clergy could not be fully mobilized but by the abolition of permanent appointments. The whole effect of the questions was to bring out the existence in Germany of too great toleration of intercourse with Protestants; intercourse to a degree not consistent with the militant footing on which things were to be put. This applied to christenings, weddings, burials, and other events of life, where the milk of human kindness sometimes will overflow, and men will forget that they belong to a society which scarcely regards those who are not of it as morally entitled to existence. The bishops naturally desired that the number of *causae majores*, or reserved cases, should be curtailed, as that would increase their own freedom and power. They also expressed a wish that censures should not be enforced against Catholic judges who found themselves obliged to pronounce sentences adverse to the canon law. This they advised in order to avoid the exclusion of Catholics from the judicial bench. They moreover suggested that unreasonably contracting debts and habitual drunkenness should be added to the list of causes warranting the removal of a priest. They did touch a few minute points of a properly religious kind, connected with the forgiveness of sins, ordination, and other questions.

Friedrich remarks that these ideas tended to the omnipotence of the bishops by sacrificing the parish priests. This object, however, was a natural complement of the sacrifice of the bishops to the Curia. If the bishop is himself an absolute dependent on the Court, all his subordinates must be left to his mercy. The Curia knew how to lure on the bishops to the forfeiting of their own franchises, by using their love of power against the franchises of the priests.

Friedrich gravely says that the movableness of the parish priests would not cure the moral evils complained of. It is not by outward correction that a

man becomes morally better, but by the ennobling of the inner man, which, alas! is so little aimed at among the clergy. When a French bishop can say in the Senate, "My clergy are a regiment; they are bound to march, and they do march," he only shows how the Christian spirit has evaporated from among the hierarchy. A few weeks before Friedrich left home he had conversed with Döllinger upon the seventeen questions, and he says that they were the only points respecting the Council on which they did converse together. What the aged provost said, observes Friedrich, will always remain in my memory. "On one occasion, Windischmann remarked in my presence and that of others, 'If I was compelled to answer according to the contents of the ordinary's book, whether celibacy should be abolished or not, I should have to speak unconditionally for its abolition.'"

We have seen, in a previous chapter, that some of the lower clergy had indicated plans of considerable range, but they pointed in a direction in which Rome was incapable of going. Great attention was attracted by a project, appearing with the name of a learned layman in Switzerland, Dr. Segesser.^[237] His charter had no less than twelve points, which are well worth a moment's notice.

1. He held that the Church, in having, for the first time in her history, declined to invite the co-operation of governments with the Council, must now declare for the separation of Church and State.
2. The Council must be a Reform Council in the fullest sense of the word.
3. It must certify the freedom of its members to the world.
4. It must be declared that all who believe in the redeeming work of Christ belong to the Christian communion.
5. No dogma must be added unless urgently called for, not only by theologians, but by the faithful.
6. The primacy being divine, but the Papacy being only a joint product of Roman jurisprudence and theology, the dogma of the pontifical infallibility of the Pope, which would lead back to theocratic ideas, would set the Church and State on a war of mutual annihilation. Therefore it is the absolute duty of the Church to declare herself completely released from the theocratic ideas of the great Popes of the middle ages.

7. The question of infallibility must not be passed over in silence, but must be solemnly declared to be in opposition to the right idea of the constitution of the Church.

8. In mixed questions, such as those of the Church and State, laymen should have some voice.

9. The temporal power must be treated as a local Roman institution, and not confounded with the affairs of the universal Church.

10. Freedom of teaching, of organization, and of worship, and equality with all other communions, must be proclaimed; and the Church would do well if she gave up all claim to the immunity of her property, and placed it entirely under the control of the common law.

11. The Index to be given up.

12. We give this in full: "The Christian State was a great ideal, but a yet greater is a State of Christians. To attain to the last the Church must not domineer, but must possess freedom, and give it."

The language of this Liberal Catholic, brought up among German Protestants on the one hand and Swiss ones on the other, would sound altogether alien to the ears of the Cardinals, and would only deepen their painful impression of the evil influences of Protestant teaching upon the children of the Church. Enough occurred at the Council to show that, even among the bishops, there were one or two who would have dared to propose some of the points in Dr. Segesser's scheme, had the members of the Council been permitted to make proposals.

FOOTNOTES:

[213] *Acta Sanctae Sedis*, vol. v. p. 279.

[214] *Ibid.* p. 18.

[215] The popular explanation "hinge" is quite correct; the ancient hinge was a pivot inserted in a mortise, on which the door turned.

[216] Compare *Quirinus*, 86, and *Tagebuch*, 25.

[217] *Stimmen*, N.F., vi. p. 170.

[218] *Id.*, p. 172.

[219] *Sambin*, p. 41.

[220] VII. ix. 6.

[221] *Civiltá*, VII. ix. 103.

[222] The first number of the *Civiltá* for 1876 (p. 104) contains an account of an audience in which the Pope made a speech to pilgrims from Brittany. Among other things, calling to mind how, on the day of Pentecost, the mockers said that the disciples were full of new wine, he went on to say that there were not wanting leaders of the revolution shameless enough to call by such names as a gang of toppers the "respectable and truly Christian youths who, forsaking domestic comfort, came to expose themselves even to blood in defence of this holy see." Liverani, as Canon of Santa Maria Maggiore, lamented his good opportunity, as living near barracks, of estimating the Christian virtues of the "Œcumenical Army." He says very hard things of them; and as to drunkenness makes no scruple of describing the Irish members of the force, in particular, as being not unmindful of home traditions that are no rule of faith, and a bad rule of practice.

[223] *Tagebuch*, pp. 13, 14.

[224] *Documenta ad Ill.*, Ab. II, p. 380. The exact date is not given, but only as "before the 10th of December."

[225] See *Quirinus*, p. 62.

[226] The statement of this writer is no worse than that of many bishops made in pastorals. It is this: *Den Bischöfen war vollständig ein Propositionsrecht zugestanden, welches nur der Controle der dafür be stimmten Deputation unterlag, ähnlich wie das auch zu Trient geschehen war.*—*Katholische Kirche und Christlicher Staat*, p. 50.

[227] *Cecconi*, p. 162.

[228] *Cecconi*, p. 160. Hefele, when recommending that the bishops should have the right of proposition, quotes what occurred at the Council of Trent, when the Archbishop of Capaccio-Vallo, on May 10, 1546, repelled the claim of the Legate, Cardinal De Monte, to the exclusive right of proposition. The Archbishop cried, "What am I to do if anything occurs to me which ought to be proposed in this holy Council?" To this De Monte replied, that if either his Grace or any other prelate wished to propose anything, they must submit it to the Legates, who would bring it forward, if they thought well. But should the latter unjustly, or without cause, refuse to bring it forward, then the author, whoever he was, should himself do so. But Hefele does not point to the fact that De Monte made this concession only after being driven to it by force of opposition. Earlier in the very same day, he had asserted the exclusive right of the Legates to propose, and had been confronted by the Cardinal Archbishop of Trent with the plump declaration that he did not want to take the right of proposition from the Legates, but he thought he also might propose what seemed to him right. Then the Legate and the Cardinal, who had been for some time engaged in a passage of arms, apologised to one another. That, however, did not prevent De Monte from again attempting to establish the claim of the chair to the exclusive right of proposition, by once more asserting it. It was on this second attempt that the Archbishop of Capaccio-Vallo reclaimed, and then the Legate had, with ill grace, to give way. (See *Acta Genuina*, vol. i. pp. 100, 101.)

[229] *Priv. Pet.*, Part III. p. 32.

[230] *Doc. ad Ill.* ii. p. vi.

[231] I. 129.

[232] I. p. 275.

[233] This complaint is ably put in the *Rheinischer Merkur*, first number.

[234] *Cecconi*, pp. 181, 182.

[235] *Acton*, 68.

[236] Vol. I. p. 2.

[237] Reviewed in the *Literaturblatt*, vol. v. p. 157.

CHAPTER III

Further Party Manœuvres—Election of Permanent Committees—Bull of Excommunications—Various Opinions of it—Position of Antonelli—No serious Discussion desired—Perplexities of the Bishops—Reisach's Code suppressed—It may reappear—Attitude of Governments.

AUTHORS differ as to the actors in an incident which marked the second General Congregation, on December 14. Quirinus and Fromman say that Darboy and Strossmayer (Friedrich says that Dupanloup and Strossmayer) attempted to speak on the Rules of Procedure, but were stopped by Cardinal De Luca, on the ground that what the Holy Father had decreed could not be discussed. The official writers at the time said not a word of the incident, nor is it named in the *Acta Sanctae Sedis*, nor in *Fronde*.

Thus the bishops had now ascertained their position, but too late. Quirinus naturally says that had the assembly been, in some measure, prepared for the Rules, there would have been opposition; but good care had been taken that the assembly should not be prepared, and should not have any chance of offering opposition. The first gleam of hope, adds this author, excited by the announcement that the bishops would be allowed to propose measures, had speedily vanished. Lord Acton says (p. 63): "The bishops felt themselves in an entangled position. Some began to speak of going home.

Some complained that the Rules foreclosed questions involving divine rights, and said that they felt bound to put even the existence of the Council to stake."

The election of the Permanent Committee on Dogma was the great work of the day. Archbishop Kenrick's Latin note^[238] states that lithographed lists were distributed some days before the election, with the inscription, *To the honour of Mary, conceived Immaculate*; and that these lists were recommended by the name of Cardinal De Angelis. Four hundred of the votes sent in gave the list entire. It was by these tactics that every Fallibilist, without exception, was excluded from the committees. But Canon Pelletier, who wrote what in *Fronde* passes for the history of the Council and is a good history of the ceremonies and the dresses, declares that the election proved the perfect freedom of the Fathers, for though all the names on the official list were chosen, they were not brought in according to the order in which they stood on that list. The French prelates of the minority were especially incensed, both against their leaders and against those whose superior tactics had frustrated their unskilful attempts to unite. Every Frenchman felt that all who represented the traditions and the spirit of the Roman Catholic Church in France were now, in Rome, placed under a species of ostracism. The Fathers left this exciting sitting with another Bull in their hands. Again Letters Apostolic to the present! The *Acta Sanctae Sedis* affirm that the work of preparing this Bull could not be got through in time to send it to the Fathers before the Council. Its title was gentle. It was a Bull to Limit the Censures of the Church. Quirinus mentions a mission undertaken by Cardinal Pitra, a Frenchman, with the intention of bringing the prelates of his own country into accord with the Curia. This he followed up by a similar attempt with the German bishops. Pitra began by describing Dupanloup to the latter as "a mischievous teacher of error," but he was stopped, and told that the Germans agreed with Dupanloup.

A favourite topic of conversation now was the chance of disorganizing the Opposition. The first checks appeared to have had the effect of consolidating it, but the resources of the Court were generally assumed to be efficacious. Over and over again was it asserted that the hope of a robe of some distinguishing hue, or of a title on the list of domestic prelates of the Pope, would win over almost any bishop, an assertion which proved not to be correct.^[239] Quirinus, in common with German writers generally,

speaks of the honour of being on that list as one that ought to be coveted rather by menials than by dignitaries; and Italians may often be heard saying much the same thing. Again, faculties enabling a bishop to give absolution, or dispensations, in certain reserved cases, yield to him both power and fees. "Nine bishops out of ten want favours"—an assertion of Quirinus—seems bold, but it was written in Rome.

The Bull professing to limit the censures of the Church, was found to be another case of a winning title to a dreadful document. The censures with which it dealt were only a portion out of Rome's store, those, namely, under which one falls by the very act of committing the offence, without any need of trial or sentence. They are called offences *Latae Sententiae*, or judged already. He that confesses to one such act is, *ipso facto*, excommunicate, or, in the less heinous cases "suspended." The Bull, as we have said, professed to limit the number of these cases; many of which represent multitudes in all Roman Catholic countries, who must either shun the confessional, knowing that in that tribunal they are judged already, or must go to it to find themselves pronounced outside of the kingdom of grace, and incapable of restoration except by special powers granted from Rome, which always imply special fees.

It was freely said, This is a re-issue of the Bull *In Coena Domini*, the terrible syllabus of excommunications, at one time annually published; a custom which had ceased since the days of Clement XIV. This cessation was often cited as indicating greater mildness in the spirit of the Roman Court. In the new Bull *Apostolicae Sedis* these excommunications reappeared. They were under different heads. Three classes were reserved to bishops, so that no ordinary priest could release from them. Twenty-nine classes were reserved to the Pontiff, so that no bishop could release from them. Four classes were not reserved to any one.^[240] Some bishops declared that they found excommunications here of which they had never been aware up to that moment. Vitelleschi said that if some found in old books were omitted, the Bull re-enacted all of the penal code of the Church that was in force. According as men looked at this document, from a fiscal, hierarchical, or monarchical point of view, their appreciation of it varied. Beyond excommunicating all heretics and heretical books, with the readers, abettors, and so forth, it dealt with few matters which any true theologian would not gladly banish from his bounds, as trespassers.

The hierarchical aspect of the Bull was striking. More than one of its sections pronounced excommunication upon the sin of appealing from any act of the Pope to a future General Council. This was the mortal blow to the doctrine that a Council could judge, and even depose, the Pope, as Councils had done. Being issued in the face of a General Council actually sitting, no alternative remained but that of conflict between the Council and the Pope, or else final abandonment of this once vigorous doctrine. The defiant crowings of the Gallican cock were for ever hushed by this one grip in the claws of the Vatican eagle. This Bull, as compared with the action of the Council of Constance, which deposed two Popes and itself elected one, served to measure the decline of the episcopal and the growth of the pontifical power in the Church. Many of the bishops were old enough to have maintained the doctrine that the Council was above the Pope, against Protestants, who innocently accused all Roman Catholics of being Papists. If any one of them thought of standing by the old flag, what was he to do? To put a notice of motion on the books? That was not permitted. To send a suggestion to the Twenty-six? It might as well go into his own wastepaper basket as into theirs. To speak upon the point? That would be out of order, for bishops were to speak only on matters proposed, and nothing was to be proposed but what the Pope proposed. Moreover, even if in speeches irrelevant matter should be allowed, such matter as that now contemplated would be at once pronounced rebellion. It would be an attempt to discuss what the Holy Father had already decreed. Thus the question of the relative judicial powers of the single Bishop of Rome, and of all the other bishops of the world collectively, was settled by an arbitrary sentence, uttered in the face of all the bishops assembled in conclave; and their assembly, though called a General Council, had no liberty to canvass the decision!

It was a hard dilemma for a man to be placed in who had a sense either of human rights or of a divine office to defend. But the hand of power was over the bishops. No man who opposed even embryo Decrees could ever reasonably hope for a hat; and he who should venture to attack a Bull actually issued must expect to see his mitre reduced to an empty dignity by the withdrawal of his faculties. So the bishops saw a Bull which "thrust the souls entrusted to them by thousands out of the Church"; and what could they do? "The more excommunications, the more perplexed and tormented consciences," cries Quirinus—reminding us of what might often be heard in the old times from thoughtful men in Rome. The whole effort of the priests,

they would say, is to keep the conscience in agony, or at least in unrest; for this drives people to the confessor, and hence no end of gains.

A diplomatist regarded the political aspects of the Bull as serious.^[241] Excommunicating men for an appeal to a General Council was, as he took it, both the forerunner and the application of the dogma of infallibility. Excommunicating all who should punish bishops, or higher officers of the Church, without making an exception for any breach whatever of law, and, moreover, excommunicating any who, directly or indirectly, should obstruct the execution of Papal mandates, were not only blows but stabs at all civil authority. The diplomatist argued that the way in which the Pope abolished privileges granted by his predecessors was a poor pledge of the value of any engagements into which the Papacy might enter. The diplomatist ought to have known that the immunity of the clergy from lay jurisdiction was an essential part of the restoration to be accomplished. He ought also to have known that "the free communication" of the Pope with the faithful, or his right to promulge in all countries his decrees as their highest law, was equally essential. The excommunication, not only of heretics, but of all who should harbour or defend them, ay, or should even read their books, led Vitelleschi to raise a question for young theologians, whether the Pope has not excommunicated himself and his own government, seeing he had done more than harbour heretics in an inn, by allowing them a church outside the *Porta del Popolo*.

The Bull, said some, is only one of a series of measures to be framed, assuming the infallibility of preceding Popes. The dispute as to Bulls which taught any dogma in theology or morals must for ever end. The very points which Liberal Catholics had alleged to be without binding force must be beyond appeal bound on earth, and of course ratified in heaven. A little circumstance not without significance was the fact that, in publishing this document, the *Civiltá* did not, as it usually does with official documents, furnish a translation of the Latin; and the *Stimmen*, for Germany, followed the example.

In Germany or other Protestant countries an unfavourable impression might be taken of the means to be resorted to for restoring Papal ascendancy when, in the terrible category of offences judged already, without power to remit the sentence being *reserved to any one*, even to the Vicar of God, were found the following deeds, which many Christians would do with as

cool a sense of duty as that with which under slavelaws they would have befriended a fugitive slave: "Injuring or intimidating Inquisitors, informers, witnesses, or other ministers of the Holy Office; tearing up or burning the papers of its sacred tribunal; or giving to any of the aforesaid aid, counsel, or favour." If the day ever comes for attempting to put this law in force on the now happy soil of England, blessed among her sons or daughters will that one be who first has grace to endure the torments of the Holy Office rather than not break the wicked law!

The fiscal bearing of the Bull would be the one first to strike and most to occupy the Romans. Among men of the different orders, it would occasion many a chat over questions of sin, sacraments, crime, communion, dispensation, remission, and redemption from purgatory, and of the fees flowing from each respectively. Quirinus represents the Jesuits as beholding both the present and the future in rosy hues. The bishops would not be able to give absolution in the reserved cases, but the Jesuits, in very many of them, would have *plenary power*. Hence the bishops and the parochial clergy would suffer both in fees and influence, while the confessionals of their powerful rivals would be thronged. "So, each of those multiplied excommunications is worth its weight in gold to the Order, and helps to build colleges and professed houses."^[242] Against the complaints which greeted the Bull, the *Civiltà* alleged that it contained nothing new, and above all that it had been posted up in the customary places in Rome, and was therefore already the law of the Church universal. It was, on the other hand, boldly alleged that there were many new cases of suspension, interdict, or excommunication. Cardinal Antonelli, however, said that there were three hundred excommunications which were not included in the Bull. Lord Acton (p. 70) quotes a passage from the organ of the Archbishop of Cologne, which shows that a good many more will have to be added before all actions are placed under perfect control. The Bull, it is said, does not prohibit "the works of Jews, since Jews are not heretics; nor does it prohibit heretical pamphlets and journals, for these are not books; nor is the hearing of heretical books when read aloud forbidden, since hearing is not reading."

Some doubt hangs round the feeling of Cardinal Antonelli as to the Council. It was often asserted that he had been opposed to it from the first, and was still decidedly so. This seems very probable. A worldly-wise man, capable of amassing a colossal fortune amid the ruins of a petty State, was hardly

likely to believe that the *à priori* fabric of Tarquini and the other Jesuits, and the hot-headed schemes of the Pope, were solid enough to bear what was to be built upon them, or would lead to anything but defeat of the Papacy, and misery to the nations. But in contradiction to this view, Quirinus says that Antonelli was too good a statesman and financier not to see the gain that would flow from the new dogma in power and revenue. The new dogma would doubtless enormously increase the power of the Curia within the Church and over all her organizations. It would thus increase the facility of bringing pressure to bear on a government by threats of disaffection and agitation; but it would at the same time arouse all statesmen, and eventually all intelligent men, except real disciples, against this sacerdotal empire. The most likely explanation of any zeal Antonelli may have shown for the new order of things would perhaps be that while retaining his own view of the risks about to be run, he knew that what was to be was to be, and determined to make the best of it.

Papers immediately preceding the Bull in the pages of the *Civiltà*^[243] seemed to indicate steadiness in the purpose either to bend the States or to break them. One article rang the changes on the old theme of the royal *placet* or *exequatur*, "the crime whereby ecclesiastical judgments are submitted to lay examination." "The Church," it adds, "is not a foreign power, and hence concludes that the State has no right of precaution *jus cavendi*, in respect of her." The internal power on which the Curia counts, in any country, being that of threatening political agitation, the denial to the State of all right of precaution is essential to the full application of the principle of the Pope's "free communication" with all his subjects. A physical impediment to the promulging of a Bull was, in old times, not more a precaution than is, in our day, the principle that the law of the land is supreme. Just as the physical impediment was unlawful, so is the legislative one; both stay the free course of "the divine word." The old dukes, kings, and emperors, knowing that in the popular conscience the law of the Pope ranked above all civil law, put a check upon the promulgation of his Bulls. We say, Promulge what you please, but the law of the land is the only law in the land. "Here is the ground on which the future battle is to be fought out."

Just between this article and the catalogue of excommunications came a discussion on unfulfilled prophecy. The Jesuit Father, Soprano, had, by comments on the prophecies of Balaam, Daniel, and the Apocalypse, clearly

proved (according to his reviewer) that the city of Rome was destined of God to be in perpetuity the centre of the Catholic Church. The war against the kingdom of Christ was to fail, because "she" could not lose her empire. But certain points as to the issue of the war now raging between the innovators and the kingdom of Christ, were open to inquiry—"What dynasties will survive, what forms of government will prevail, what end will such and such kingdoms come to? Finally, we may ask whether the Holy City, the mount of God, the capital of the Catholic world, Rome, may *for a time* fall under the power of sinners and parricides, to be outraged by fire and sword, and defaced with crimes." But, on the other hand, as to Rome being the stable domicile of catholicity, we might doubt of that only if the mount which cannot be moved could be levelled with the ground.

This expositor is true to the old interpretation that the Babylon of the Apocalypse is Rome, but that was the Pagan Rome, which "fell with the victory of Constantine." It will be observed that he takes the possibility of a temporary fall of the sacred Rome into the hand of the enemy as but an episode in a war that is to continue through a long series of years.

Since 1870, such forecasts as the above, when uttered, have not the same triumphant tone. Nevertheless, they are now as clearly expressed as ever. But at the time of which we speak, if the bishops only read what was written for their learning they could not doubt as to the kind of service which was expected of them in the future. Friedrich intimates that they did not read it, when he relates that, in trying to enlighten one of them, he told him that the only way to understand the Council was to study it with the *Civiltà Cattolica* in one's hand. But some of them showed a solicitude that could not be explained on any ground short of a perception of the dangers on which the Pope was running the hierarchy. They evidently did not take the view either of those who thought that the Pope, erected into a vice-God, was about to become the real as well as the titular governor of the world, or the view of those who looked on such dreams as matter to laugh at. The calculations which produced the Crusades and the Thirty Years' War, were dreams; but could the Church afford the indemnity which mankind would exact for the miseries of such another struggle?

December 16 marked the second failure in the organization of the Council. The first was the irremediable one of the absence of Cardinal Reisach, and now, before serious discussion had begun, the third General Congregation

had to be postponed from the 16th to the 20th, ^[244] because nobody could be heard in the hall. So six days passed without a sitting. Debates were actually to take place—a thing which had neither been desired nor expected. The hall was a good place for spectacle, but a bad place for a parliament. In vain do bishops frown and editors sneer at the writers who said that the Curia had not expected much discussion. Cecconi comes to the support of the "liars," as in official indignation they were called who told just what there was to tell (p. 180)—

It was a deeply-rooted belief of the Directing Congregation that but rarely would anything have to be referred to the committees of the Council, because the Directing Congregation so well knew how profound had been the attention given by the Preparatory Commissions, that it seemed extremely difficult to believe that the Drafts so prepared should not be received with general favour by the Fathers.

This, in fact, is the excuse put forward by the Nine for not having given the bishops a word to say to the Drafts of Decrees before they were confronted with them, as being already in a form to be voted upon. The practice at Trent had been to state the question as a question. Then it was first discussed by the doctors in the presence of the bishops, who after that appointed a small committee of their own number to put resolutions into shape. The Council proceeded to discuss the Drafts so prepared, amending and again amending them, until they were in a form on which (if the subject was doctrine) almost every one could agree.

It was now, however, coolly assumed that so complete had been the work of the secret commissions that the bishops would not raise any difficulties.

Great variety of opinion, say the Nine, would probably be rare, seeing that the matters to be treated would be already prepared, with great accuracy, by the special Commission, formed by his Holiness, in conjunction with the Directing Congregation (*Cecconi*, p. 180).

Cecconi repeats that the great confidence felt in the excellence of the work of the theologians had generated in the majority of the members of the Directing Congregation this conviction. He is candid enough to give the

reason for bringing the Drafts ready made into full assembly, which was to prevent them from being exposed to the influences which a restricted number of prelates might exert. That amounts to saying that the able men whom a free assembly would have chosen to consider and digest its forms of resolution, were not to be allowed any chance of unitedly studying the forms prepared in secret for them. The Court would bring its own plans, with all their details and complex notes, before the full assembly, which could never thoroughly sift them, and in which the majority was assured.

While in almost everything else the rejection of parliamentary forms was commended, as becoming an assembly which had to contend against both the principles and results of parliamentary government, the practice of our own Houses in bringing in Bills ready drawn was pleaded in favour of the course taken in preparing extended drafts of dogmatic decrees. But our Parliament has never yet been called together to vote that laws are as good if issued by the Crown, without the advice of Lords and Commons, as with it. Nor has it ever been asked to pass a measure which neither it nor any succeeding Parliament could recall. Our Parliament is never asked to discuss a Bill without first having the right to say whether it shall or shall not be brought in. It never finds a Bill before it which, if it pleases, it may not refer to a special committee. Any member can move the rejection or the postponement of the whole, can move the omission or amendment of any part, and can take the sense of the House. None of these things could be done at the Vatican Council. The bishops could make Latin speeches in a row, first on the Draft as a whole, and then, in a second row, on the parts. But only twenty-four of their number could ever put a hand to the amending of the proposed statute. With those twenty-four were associated irresponsible persons, non-members. As that mixed body finally shaped the propositions, must the Fathers vote upon them, with a Yea or Nay that sealed the creed of their churches for ever.

It was not wonderful that the Curia should believe in the perfection of the Roman theology, since they took their own government for perfect, and the capital for a model city of the saints. The German estimate of the Court theology is indicated by Quirinus when he says that "though the Pope had four hundred theologians, theology is now rare, very rare, in Rome." He goes on to assert that if one should say that ability to read the Greek Testament and the Greek Fathers in the original was a necessary

qualification of a theologian, "he would be ridiculed." As to the divinity even of the bishops, the evidence of Quirinus is little more flattering than that of Friedrich; but the discussions yet to come will show that men of real power were not wanting.

The first Scheme or Draft of Decrees on dogma now appeared. It was nothing less than a book of one hundred and forty quarto pages, containing eighteen chapters and fifty-four paragraphs. Frond makes it folio and of 131 pages.

The *Rheinischer Merkur* quotes a Catholic journal which in admiration of this masterpiece says that when adopted by the Council it would form a text-book. Yet this mass of divinity, any phrase, almost any word of which might affect the vital truths of religion, was put before the bishops with only a few days to study it, and they were expected to vote it as an irreformable creed, to be ready for promulgation, as bound on earth and bound in heaven, on January 6, the day decreed in the first session! Friedrich, looking at this bulky pamphlet, cries, All through we have the language of the schools; any one familiar with the Jesuit writings sees at once by whom it has been prepared.

Graf W., a Roman prelate, paid Friedrich a visit arrayed in all his vestments and decorations. Surprised at such a display by a stranger, Friedrich asked himself, Does he want to make an impression upon me, or to excite a longing for similar clothes? The conversation turned upon infallibility, and the Count Monsignore said that it would be carried through; for when the Curia had committed itself to anything, it was not to be balked. Friedrich, saying that for his part he had nothing to do but to speak according to his conscience, and that as a priest he knew well what must be his course when once the point was decided, went on to state that, not having his eye on a canonry or a bishopric, and being happy in his independent position as a professor in the university, he felt free. This surprised the Curialist, but Friedrich in turn was still more surprised when the man in soft raiment and living in kings' houses said that it was otherwise with him. He belonged to the Roman prelacy, and if he meant to continue in it, he must do what he was bid.

The German doctor was struck by hearing people assure him that life was tolerably safe in Rome if you were sure of your cook, your doctor, and your

chemist (p. 30).

The German bishops had not, like the French, asked permission to meet among themselves, but their place of meeting had been cared for. Monsignor Nardi, a slashing writer, and a conspicuous member of the Curia, spared no pains to secure them for his own house. Cardinal Hohenlohe offered his for the purpose, but he scarcely received a civil answer. Even German bishops said as much as that they should compromise themselves by being identified with him. They began to feel their position very delicate. As they were assembled on December 22, with Cardinal Schwarzenberg in the chair, they were joined for the first time by three favourites of the Curia—Senestrey, Martin, and Leonrod. But when Senestrey found that they were discussing the propriety of petitioning the Pope for a relaxation of the Rules, he remembered that business required his presence elsewhere. We may be ready to smile at men, holding professedly the position of members of a Council, who durst not rise in their places and insist on having liberty to propose what their consciences dictated; and who, when refused that liberty, instead of declining to take part in the mock Council, went into a caucus, and drew up a petition to the autocrat who had snatched away their rights.

But their position was very difficult. If they attempted in their places to speak on the matter, the fatal sentence fell upon them that what the Holy Father had decreed could not be discussed. What then could they do but decline to take part in the Council? This would be coming into direct collision with the Pope. The moral education of their lives had aimed at fixing in their own minds, and they, in their action upon others, had aimed at fixing in their minds, one conviction—that the crime exceeding and comprehending all others was to break with the Pope. They were so placed as to have no alternative but either "disobedience" or the surrender of their individual and collective rights. They seem, indeed, to have thought that it was rather a spirited proceeding to send in a petition.

Archbishop Haynald of Hungary proposed that they should request the Pope to divide the Fathers into eight national groups. This was suggested with some idea of counter-balancing the fictitious majority made up by titular bishops and vicars apostolic. Had one nation been allowed to balance another, the effect no doubt would have been considerable; but how these venerable men could imagine that this scheme had any chance with the

Pope, we cannot tell. The bishops *in partibus*, and the missionary bishops, being mostly Italians, would have been well nigh lost in such an arrangement. The Curia well knew that it had been tried at Constance, and was not to be caught.

What Friedrich heard of the opinions of the prelates as to the Draft Decrees, was unfavourable. Cardinal Rauscher was reported to have said that he would allow the paper to be read in his seminaries as the work of a student, but that to propose it to a German Council was too bad (p. 35). Many of the bishops said that its condemnations were untimely, and that it was unworthy of the dignity of a General Council. It was said to be the work of the Jesuit Fathers Schrader and Franzelin; but instead of the latter, Kleutgen was often named. The Dominicans spoke slightly of it. The Bishop of Ascoli, a Carmelite, said he had only patience to get through half of it, and then he threw it away. Strossmayer said to Friedrich, Why must the Council at this time of day pronounce condemnations as to squabbles heard of only in the schools, and worn out even there? (p. 37). Kagerer told Friedrich that the bishops had agreed not to tell their theologians what passed at their private meetings; on which Friedrich remarks that the bishops were right, for the chaplains and secretaries by whom they were served could not be properly described as theologians. He then gave a sigh for Hefele. Meanwhile, he said, it was hard to listen to the talk of men, like Kagerer, who had come up without preparation, who were not furnished with books, and who drove a trade in theology by guesswork.

Monsignor Nardi's hospitality to the German bishops had not a smooth course. After having met at his house for the greater part of December, when they alighted one night in the Piazza Campitelli, they found the servant of Cardinal Schwarzenberg posted there to send them back again. The Cardinal had received from Nardi a request to be relieved of their further presence, giving so short notice that there was no means of meeting the case but that of setting the servant to turn the bishops away from the door. Thenceforth they found a German host, Cardinal Rauscher. ^[245]

The General Congregation of December 20, after learning the names chosen for the Permanent Committee on Faith, had been occupied with the election of the Permanent Committee on Discipline; but as the *Acta* contain no records of any transactions of the Congregations, beyond the bare lists of the committees elected by them, the strictly official means of ascertaining

what passed are all but *nil*. The *Acta Sanctae Sedis* may be fairly considered as official in a looser sense; and it is strange how the brief but clear occasional notes of particulars which they contain, almost invariably confirm the profane writers in statements denied, or apparently denied, at the time by faithful ones. Deputations, including among others Strossmayer, went hither and thither in search of a hall to meet in. Quirinus thought that the one in the Vatican by the Sistine Chapel would not be of good omen, on account of the picture of St. Bartholomew's massacre. Had any real wish existed to find a place in which seven hundred gentlemen might sit and speak, it could easily have been done; but the wholesome exhalations from the tomb of St. Peter would not have been so potent anywhere else, even in Rome, as in the Vatican. One-third of the space in the hall was now curtained off. The debates were to open on December 28, that is, after twenty days had been lost.

News of the death of Cardinal Reisach destroyed the hope that his influence might prevent the Germans from standing with the Opposition. The preparations for a code regulating civil and ecclesiastical relations, on which he had spent years, were not to see the light. It had already been resolved not to present to the Council the Drafts prepared by his Commission on Ecclesiastico-Political Affairs. Cecconi (p. 266) thinks that probably the absence of the Cardinal "contributed to the shipwreck" of his proposals. The subject was "thorny"; and again, it was not decorous to make inoperative laws, or expedient to make combative ones. It would seem that the supreme cause of the shipwreck was the practical consideration that nowadays civil governments, "which form an essential element in such matters," oppose ecclesiastical laws, instead of taking charge of their execution. The official historian, however, is of opinion that the failure of this first attempt to indite a code of ecclesiastico-political law is not final. A time, he thinks, may come when it can be renewed, with hope of success—a declaration full of instruction as to the future. The time for renewing the attempt to prepare such a code will, according to the Archbishop of Florence,

arrive when this rapid and ceaseless movement, political and social, going on under our eyes, and making us daily spectators of great and often of unlooked-for events, shall have reached its ultimate period, to which will certainly succeed (unless the last days succeed) an entirely

new era in the history of the human species. When that day comes, I know not what portion of the old institutions will remain standing; but sure I am that one of them will have survived, though peradventure externally bruised and lacerated. She alone will be mistress of the field that day, and the princes (if indeed the sound of that name will still be heard), but certainly the nations, having then, after long and cruel experience, made up their minds that out of her there is no well-being, either in this life or beyond the tomb, will demand from her the laws of tranquil repose, together with the earnest of eternal happiness (p. 301).

This language is the more significant as having been written since the war in 1870, and even since the outbreak in Germany of imperial resistance to the movement for priestly domination. With regard to princes, it seems to breathe the threat which was screeched out by the Jesuit organs in 1869 and 1870, that if they were not to sink in the coming struggle, they must make peace with the Church.

As to the nations and the laws of the Church, it adroitly represents the nations, not as submitting to receive the law at her dictation, but as demanding from her the laws which give repose. The ever-recurring alternative of submission or disturbance, if not destruction, is smoothly but gravely put. Still, the historian seems as if he wrote thus rather by official duty than by personal impulse. But, like all the "inspired" writers, he takes it for granted that the Church holds the "repose" of nations in her power. Cardinals count on the effect of thorns planted in the pillows of statesmen. They know how to teach principles that form a people within the nation ready to obey a foreign word of command, and they know how and when to give the word. They always—so say men in Italy—know how to find an Ahithophel, and how a Delilah!

Fears were often expressed lest an attempt should be made on December 28 to carry Papal infallibility by acclamation. The bishops, however, seem to have had backbone enough to determine upon a formal protest should this occur. Friedrich tells how those dignitaries who make little of denouncing the laws of their respective countries were very anxious in Rome to find some mode of giving expression to their complaints and desires without printing, which in the Model State they durst not do.

He also states that on the day before the opening of the discussion the Pope was greatly depressed. It may have been a diplomatic depression. What bishop could be so heartless as to make speeches that would weigh on the spirit of the Holy Father, and in fact to call in question Draft Decrees prepared by his authority and proposed in his name? What bishop, by obstructing their adoption, could occasion a risk that the day fixed by Decree for the second session should arrive without any Decree being ready? One of Friedrich's statements, which, before Cecconi published, seemed the most improbable of all, was that Cardinal Bilio, the President of the Preparatory Commission on Dogma, had reckoned on the Draft being carried with scarcely any discussion. Much as we knew of the displacement of the idea of conviction by that of submission, this statement seemed too monstrous. But the Archbishop of Florence appears unconscious of anything strange in the case. If Italian novelists and journalists, with whom the indifference of the national mind to religion is a favourite idea, had combined to give an illustration of that indifference, they could hardly have invented anything so expressive. A Cardinal taking it for granted that seven hundred bishops could hastily adopt for ever as doctrine binding upon themselves, their successors, and their Churches, a considerable work, every single phrase of which any serious man would weigh before he accepted it for his own creed, but would weigh ten times more carefully before he imposed it upon others—before he took it upon his soul to curse all who did not accept it, and to declare them cut off from the kingdom of God! Yet it is plain that not only Bilio, but the Curia generally, expected the passing of the Draft as almost a matter of course. In their minds the idea of submission to the Papal authority had first displaced, and then completely replaced, the idea of religious conviction.

The first Vatican Decree passed after the Council had been declared open, fixed the feast of Epiphany (January 6) as the day of the second session, in the expectation that this Draft, or a portion of it, would by that time have been adopted. But, like the first Vatican appointment, the first Vatican Decree had been not ratified in heaven. The *Civiltà* said (VII. ix. 227), "As the discussion on the Draft proposed is not terminated, no Decrees will be published in the second session." The *Acta Sanctae Sedis* curtly wrote, "No Decree was published because none was ready."^[246]

Meantime the relative attitudes of the Council and of the Catholic governments had become more clearly defined. Following France, and rejecting the view of Bavaria and Portugal, the governments had determined not to interfere. Portugal had sent to her minister his credentials as ambassador to the Council, but finding that he should be alone, Count Lavradio did not present them. France, which for the last ten years had been abused by the Papal organs, was now loudly praised. Even M. Veuillot said that she was more liberal and more Christian than the other nations, for her bayonets were at Civitá Vecchia to restrain the violence of the Italians, and God would not forget it to her. True, French statesmen every now and then did show some apprehension as to what might come to pass if every child in France should learn in his catechism that the Pope was infallible, and if most of them should grow up under teachers who would gently show how the Modern State rebelled against the divine constitution of the world as implied in that fundamental truth, for the government of the nations. It was even said that Darboy plainly declared that should infallibility be proclaimed, the French troops would no longer remain in the Papal States. However that might have been, all that fell from the inspired pens was pervaded with quiet reliance on France. It seemed as if the writers believed that, just then, events depended more on one Spanish lady, in the Tuileries, than on all the Frenchmen in Paris and the departments.

It cannot be said that the compliance with the wishes of the Curia shown by politicians, was repaid by a milder attitude. The new Bull, technically called *Apostolicae Sedis*, popularly called the new *In Coena Domini*, was menacing. The grave *Civiltà* (VII. ix. 134) said—

Whom would the people obey? God and the Church, or the State?... As it is evident that the Church assembled in Council can only repeat, and that more strongly than ever, that as between God and men, as between the Church and the State, obedience is to be rendered to God and the Church instead of to man and the State, and as it is evident that in Catholic and civilized countries, in spite of all the efforts of sects, respect for the Church endures, and increases, while all respect for States and governments diminishes, it is clear that the Liberals, who are dominant almost everywhere, tremble at the Council, which is bound to proclaim more loudly than ever, We must obey God rather than men.

Even the little review at the Villa Borghese set M. Veuillot reflecting on the restoration of that "Christian order" which consists in the due submission of the natural to the supernatural order—

If we only think that the Council has to re-establish the Christian order without restoring the ancient aristocracy, irremediably fallen, and has to replace the social laws in a position where property and liberty shall be freed from the grasp of democracy, which is no more than an administrative aristocracy, we shall conclude that the task is not a trifle, and that the seed to be sown is not of a kind to ripen in a day.

In most Papal countries, indeed, the ancient aristocracy has fallen, and, much as priests like titles and stars in their train, they like broad acres still better, and legislative power even better still. Even when barons held lands in fief under prince-bishops and abbots, they were frequently tempted to insubordination. And in the Model State, the career open to a lord was as nearly as possible that which in our chaotic state is open to a lady. So, the aristocracy were not to be restored. But in the new Christian order both freedom and property were to be taken out of the hands of the democracy. This had been well done in the states of the Church, and partly done elsewhere, in the middle ages. In the formula, "The Pope and the People," people does not, we repeat, mean democracy, but subject populace, with a ruling priesthood and nobody to come between priest and mob. Matters would be greatly simplified if both an aristocracy and an administrative democracy were removed out of the way. But, true to the far-aiming plans of the school, M. Veuillot was thinking of the seed-time, knowing that the harvest was as yet far off. When the prize is no less than the supremacy of the world, a year may well be counted for a day.

M. Veuillot, alluding to those profane creatures the correspondents of worldly newspapers, said he had had to do with government spies, but Press spies made him respect the former. The Press spies detested respectable men, seeming to think that they spoiled the profession, and prevented it from enjoying all the hatred and contempt it merited (i. 33). M. Veuillot could afford to assume this attitude. The *Univers* was sanctified by the Pope's blessing, and certified by his brief. This high-caste scribe had not, however, said a word about the device by which the election of committees had been carried, though he gloried in the choice of men. He had not

mentioned the electoral tickets, nor alluded to the prohibition of collective meetings of the French bishops, nor to the petition sent in by some of their number for a few morsels of liberty. He had, however, told the faithful that none of the bishops had any desire to be put on the committees, and that a prelate from South America, on finding himself elected, wept and said, "What do you mean? I am not fit. I know nothing." Writing on January 20, after the division of parties had become clearly defined, M. Veuillot said that should an Opposition group be formed, as some feared would be the case, it would only be small, and would be rather outside of the Council than in it. "Outside," said a bishop to me yesterday, "there is some room for the spirit of man; inside there will be no room for anything but the Spirit of God; and though unanimity is by no means necessary, it will nevertheless seldom fail." It was, at this time, still hoped that the "pontifical secret" would leave no chink by which the tenor of the debates could leak out. "How," exclaims M. Veuillot, "will this assembly be able to distribute its incalculable labours, and carry them to an end? Immense questions arise on all sides. It is the human species that has to be set in march. Nature feels its infirmity." Still, it will prove, he asserts, that the Council can more easily make decrees for centuries, than modern governments can make constitutions to last a few months.

An address to the Holy Father, from the Society of Catholic Italian youth having its headquarters in Bologna, declared that in answer to the infernal fury of the enemies of the sacred Council, they protested their resolution to obey its Decrees as the holy gospel, as the decrees of God Himself, and to defend its disciplinary acts as the acts of God Himself. In conclusion, they call the Pope, among other titles, the living Peter, the infallible mouth of the Church and of Christ Himself, the Vicar of God, "whose word for us and the Catholic universe is the truth of God which endureth for ever."^[247] A strong force of equally well-trained youths in every country would do something to give substance to the dream of universal empire, by a Crusade of St. Peter.

To say that the *Civiltá* and the *Unitá Cattolica* contradicted nearly all the facts reported by the journals of Europe, would be a tame statement of the case. They not only gave the lie, but did so with all sorts of aggravating epithets. The Italian papers were most belied, because they, feeling no respect for the men of the Curia, did not care to put on any, but tore off false

covers relentlessly, and even with mockery. According to an ordinary Italian saying, respect for the Curia begins outside the walls of Rome, and increases in proportion to distance. Still, the French, German, and English papers, though more respectful—the last, in comparison, deferential—were denounced as lying and lying again. This went smoothly till the lie-givers descended to particulars. Even then it answered, to some extent, till time brought facts to the test. Now, it is sad to look at these contradictions, and compare them with documents registered in the same pages, or with facts which even there are no longer disputed. Any one who wants a lesson in the art of giving the lie may go to an article in the *Civiltà* (VII. ix. p. 327), and succeeding ones. After studying them an Englishman would be more charitable to Romans when they say that if the Jesuits contradict a thing well, they begin to think it must be true. But he would discover that, under an apparent contradiction, there is often preserved a possibility of saying that there was no real one. A statement has been made containing one main fact, which was perfectly true, but with two or three accidental appendages, some one of which was not true, and the whole is treated as false. For instance, the whole tale of Nardi dismissing the German prelates is to appearance ridiculed, because one journal says that Nardi had made a secret door, at which he played the eavesdropper. Of course it was an Italian journal—*La Nazione*—which thought that a probable action for a monsignore of the Curia.

The *Nuova Antologia*, a review of high standing in Italy, published articles on the Council, which formed the basis of Vitelleschi's book. The *Civiltà* assigned them to Salvatore de Renzi, spoke of them as being not more inaccurate than others, and after general charges came to particulars. The author's "want of reflection" appeared in his supposing that though abbots and generals of orders both had seats, only the former had votes. Moreover, he had said that in the sessions the Fathers always wore the read pluvial and mitre; whereas in the first two sessions they had worn the white ones, and the statement as to the mitre was *falsissimo*, as false as could be, for in Rome, and in the presence of the Pope, they always wore one of white silk or cloth. When all Catholics were in serious excitement, when they knew that hands were laid on their creed to alter it for them and their children, it was such matters as the above which weighed upon the minds of the Jesuits, and justified outcry against men who strove to get and give some little information.

The first article of professed intelligence in the *Civiltà* after the Council had really got to work, spoke of giving only the *external* news, which was what all the "good Press" professed to give. What it gave was indeed external. A person turning to these official pages in hope of learning what he would have to believe by-and-by, found paragraphs about "clothes" (VII. ix. 99). "We have told our readers of the vestments worn by the Fathers in the public session. They will be pleased to have a translation of the notice appointing the ceremony to be observed in the Congregations"—the ceremony meaning the ceremonial garments. The men who were undertaking to change for the priests and people the conditions of their membership in the Church, to revolutionize their relations with their neighbours and even with their nations, were yet persuaded that while all this was going on, priests and people must be thinking of how the gowns of the Fates were dyed, and not of what threads they were spinning. So, with conscientious exactness, the faithful were informed that the Most Reverend and Most Eminent Lords the Cardinals would wear the red and violet mozzetta and mantelletta over the rochet; and the Most Reverend Patriarchs the violet mozzetta and rochet, etc., etc., etc.

A touching incident of private life came to soften the feelings of the Fathers on the eve of the struggle. The son of De Maistre, the champion of the pen, and the daughter of Lamoricière, the champion of the sword, had, four months previously, been married. "Two such fair names," exclaims M. Veuillot—yes, two stately figures, bending in vain to stay a falling oak. The young wife was smitten with death, and the widow of the hero could only reach Rome in time to close her daughter's eyes. The whole city united in sorrowing over the mingled tears of the houses of De Maistre and Lamoricière. Noble Lamoricière! During the four dreadful days of June, 1848, in Paris, his chivalrous sword formed a shield behind which thousands sat in safety. None who were of the number, as we were, can ever without gratitude think of him, or of the stainless Cavaignac.

FOOTNOTES:

[238] *Documenta ad Illustrandum*, i. 245.

[239] Of those domestic prelates the *Annuario Pontificio* for 1870 gives above two hundred and thirty names; the list in 1875 is over four hundred, in the *Gerarchia Cattolica e la Famiglia Pontificia*.

[240] Though issued during the Council, this Bull is not, like the others, printed in the *Acta*. It is in the Freiburg edition, p. 77; and also in *Acta Sanctae Sedis*, v. p. 287.

[241] *Tagebuch*, p. 32.

[242] *Quirinus*, p. 106.

[243] VII. ix. p. 189.

[244] *Tagebuch*, p. 27

[245] *Tagebuch*, 47.

[246] V. 323

[247] *Civiltá*, VII. ix. 238.

CHAPTER IV

First open Collisions of Opinion—Pending Debate—Fear of an Acclamation—Rauscher opens—Kenrick—Tizzani—General discontent with the Draft—Vacant Hats—Speaking by Rank—Strossmayer—No permission to read the Reports, even of their own Speeches—Conflicting Views—Petitions to Pope from Bishops—Homage of Science—Theism.

THE moment had come at last when it was to be seen whether the parliamentary proceedings of a discussion suspended in the Catholic society for three hundred years, was actually to be revived; or whether the bishops, justifying the confidence in their gravity and wisdom which the Curia would fain have cherished, would now set the world an example of magnifying authority, by adopting the all-comprehensive dogma of Papal infallibility by acclamation, without running the risk of any debate. That once done, minor points would settle themselves, whether in the Council or out of it. The fears of a scheme to organize an acclamation were strong, not to say feverish. Cardinal Schwarzenberg wrote, "In case a demonstration is attempted for an acclamation, a formal counter demonstration is already provided for."^[248] Before the commencement of the sitting, Cardinal De Luca, now Senior President, gave an assurance that no acclamation would be attempted; adding, however, that he could only give the pledge for that

one sitting. Strossmayer, relating this fact the next day, in the house of Cardinal Hohenlohe, added that, should it be attempted hereafter, the bishops of the minority would put in a protest, in the name of Christ, of the Church, of their rights, of their people, and of sound reason.^[249]

Lord Acton's picture of the scene before the sitting is more distinct than that of the other writers. It is Darboy whom he describes as demanding an assurance that there would be no acclamation. When the promise for the first sitting was coupled with a statement that there could be no guarantee for the future, he said a hundred bishops were resolved, in case that proceeding was resorted to, that they would leave Rome, and "carry the Council away in their shoes."^[250]

The uncertainty which had hung over everything but dress was so great that some prelates had prepared their votes, thinking that, owing to the determination to have some Decree ready for promulgation at Epiphany, a division would be pressed on that day.^[251]

In print, the tribune, or desk, prepared for the Council, is a laudable specimen of Roman art. To look at, it is what we must call a commonplace pulpit. It was carried from place to place—more than one writer says, carried all round the hall—to try to find a spot in which it would be possible for a speaker to be heard. When the desk was at last fixed, two priests, as reporters, took their place in front of it.^[252] Cardinal Rauscher, Archbishop of Vienna, was the first who ascended. Behind him he saw his own achievement—that Concordat by which he had secured for Rome the abolition in Austria of the Josephine Laws. Before him lay the Draft of Decrees, for the most part, as it was believed, the handiwork of Schrader, whom he had himself installed as a professor in the University of Vienna, and who was doubtless a fit man to make it what it was—a dogmatic reflection of the earliest portions of the Syllabus. The sagacity of Rauscher told him that the success of these proposed Decrees would be the doom of the Concordat. Hence, he rose, not to support the theology of his nominee, but to save his own diplomatic achievement.

So the discussion opened with a brilliant address, as Friedrich calls it, delivered in the round, rough Latin pronunciation of the Germans. Darboy soon left the hall, saying that it was undignified to sit professedly listening to speeches which one could not make out. What with the mocking of the

echoes and what with the pronunciation foreign to all but Germans, none could understand but the few in whose favour combined all the advantages of keen ears, a good position, and some familiarity with German intonation.

All that we know of the discourse of Cardinal Rauscher has become known in spite of the silence of every official organ; and it amounts to no more than the fact that he opposed the Draft Decrees with firmness and ability. The strict Church régime assured by his Concordat to Austria had not been followed by the halcyon days which such a régime was said to guarantee. Loud complaints were made that the moral statistics of Vienna, previously very bad, had, under the new law of marriage, become worse. However that might be, there was no doubt that under the Concordat Austria had undergone both Solferino and Sadowa. If, after all this, new fetters were to be forged, Rauscher was well aware that the chain would snap.

After Cardinals, Archbishops! So the Irish-Latin of Archbishop Kenrick, of St. Louis, succeeded to the German-Latin of Rauscher. The voice from the Mississippi joined that from the Danube in making light of the theological performance of Rome. The next who followed was Tizzani, nominally Archbishop of Nisibis, really Chaplain-General of the Papal army. A blind old man, he did not mount the desk, but, speaking from his place, he was the first who gave forth the Latin in the clear, full pronunciation, which must be nearer to the natural one than the others. He said that the Draft was words, words, and nothing but words. Three other Italians followed on the same side. It was still the turn of the Archbishops; and Connolly, of Halifax, Nova Scotia, closed the discussion of the day. There are two versions of his concluding innuendo. One is, that the Draft was to be honourably interred; and the other, that it was not to be amended but erased. *Cum honore esse sepeliendum ... non esse reformandum censeo sed delendum*. Fourteen names had been entered, but when seven had spoken, it was one o'clock, and the weary work of attempting to hear was brought to an end. The old men had been already four hours in the hall.

The *Giornale di Roma* and the *Civiltà* gave the names of the speakers, but not a syllable of information as to what they said. The same course was taken by all the "good Press." It professed to give information only of the exterior of the Council. Even the *Acta Sanctæ Sedis*, in its Latin veil, does not utter a hint of what view any speaker took. It does, indeed, say that no one replied to observations for, against, or beside the proposals of the

Decree, thus confirming the common remark that there was no real debate. [253] Among all the charges of lying, shameless lying, lurid lying, and so on, brought against the lay Press, we do not remember any attempt to contradict the particulars circulated as to this day's proceedings, unless indeed it be Cardinal Manning's general treatment of all that had been said respecting an intention to get up an acclamation, as ridiculous rumours.

Cardinal Bilio, as President of the Commission on Dogma, from which the Draft had emanated, would naturally be, as Friedrich says he was, downcast; and we may well believe the same witness, that the Cardinals generally were disconcerted. On the other hand, Cardinal Schwarzenberg said, "It has gone excellently"; and Archbishop Scherr, of Munich, thought that it was as if one had heard "the rushing of the wings of the Holy Ghost"—one of the expressions in which that sacred name was often lightly taken during the Council, and which, from hints found elsewhere, seems to have fallen on this occasion also from other lips. Strossmayer was by no means so elated, knowing that the Curia was in a position to hold its own.

This discussion raised the spirits of the minority, and filled them for a while with illusory hopes. It seemed as if the one liberty left, that of making Latin speeches, might turn to great account. Meanwhile, according to Lord Acton, speculation ran on the possible effects of fifteen vacant hats, which were supposed to have the power of doing wonders, and which the genuine Romans would certainly expect to turn episcopal heads in whatever direction they might happen to be held. Darboy said, "I have not a cold in the head: I do not want a hat."

Quirinus points out the bearing of such multiplication of anathemas as was aimed at in the Draft on the ascendancy of the Jesuits. These anathemas would supply abundant matter for accusation, and so enable the Jesuits to keep men belonging to other orders in constant fear of being charged with heresy. This would tend to make other theologians dependent upon their order. He adds, moreover, that if the Draft Decrees should be passed, scarcely any professors of Old Testament exegesis would escape the charge of heresy.

Two days later the debate was resumed. The archbishops were still in possession; but after one more of them had spoken came the turn of the bishops. Rank carried it against the rule that in council all are equal.

Athanasius the deacon, and Constantine the layman, were both outside the door. And outside the door were also the "presbyters" who alone at Nicæa represented Rome. Unity had come to mean a sharp separation of the Church into the *Teaching Church* and the *Learning Church*. The *Teaching Church* consisted of the Pope and bishops; the *Learning Church* consisted of priests and people.

Those who desired to speak entered their names at least one day beforehand; and of those so entered Cardinals spoke first, Patriarchs next, then Archbishops, Bishops, Abbots, and Generals, according to their grade.

The first bishop who rose was Strossmayer. As he had before attempted to speak upon the Rules, so did he now attack the heading of the Decree, namely, the formula "Pius IX., with the approbation of the Council," instead of the Tridentine formula, "This Sacred Council decrees." He was called to order by Cardinal De Luca. That point, he ruled, was not to be discussed, for it had been settled in the Rules of Procedure, and also in the form used in the opening session. No one supported Strossmayer in his objection, and, in point of form, the President was doubtless right. The bishops had allowed their birthright to be taken away, and it was now too late to reclaim it. True, if they had been united, they might have alleged that the taking of it away had been done both violently and stealthily; but still, it had been done before their eyes.

Strossmayer's speech gave to modern Rome a sensation strange to her, though familiar to ancient Rome—the feeling caused by the echoes of impassioned reasoning in favour of freedom. And this time it was freedom commended by the voice of a bishop! The degree of freedom advocated was, indeed, only such as anywhere else would have been a minimum. The reports given of the eloquence of the speaker were exciting, and it would appear that even those of opponents were often laudatory. Lord Acton gives the following passage—

What do we gain by condemning what has been already condemned? What end is promoted by proscribing errors which we know to have been already proscribed? The false doctrines of sophists have vanished like ashes before the wind. They have corrupted many, I confess, and infected the spirit of the age. But can we believe that the contagion of corruption would not have taken effect had errors of this sort been

smitten down with anathema, by Decree? We have no means given to us beyond cries and prayers to God, whereby to defend and conserve the Catholic religion, but those of Catholic science in complete agreement with the faith. The heretics assiduously cultivate science unfriendly to the faith, and therefore true science friendly to it should be cultivated among Catholics, and advanced by every effort. Let us stop the mouth of opponents, who cease not falsely to impute to us that the Catholic Church represses science, and restrains all free thought, so that within her bounds neither science nor any liberty of intellect can flourish or exist. Further, it has to be shown, and that both by words and deeds, that in the Catholic Church there exist true liberty for the nations, true progress, true light, and true prosperity.^[254]

This proposal to fight thought only with thought, and to allow institutions to be tested by their fruits, was well fitted for any soil where the Bible was the statute-book, but was untenable ground in Rome. The excitement was great.

Ketteler embraced Strossmayer as he came down. Senestrey, on the other hand, stated that he had said things for which he must have been called to order in any assembly. Dinkle said he had spoken on his own account, and showed no inclination to share risks with him.

The first French prelate who came to the desk was Ginoulhiac, of Grenoble, who also spoke against the Draft. What he then said we know not. What he had just previously published under his own hand we do know. Resisting the idea of an acclamation, he said—

To insist upon dispensing with previous examination, because of the immense importance of the question, or because the subject of the question was that which in the Church is greatest, would be not merely to depart from the practice of all ages, but it would also be to commit a most serious error, and to awaken in all grave minds just suspicions of the decision which might be arrived at. In past times nothing was so feared as the appearance of not devoting to important decisions sufficient time, and of not giving sufficient satisfaction even to the minds of the prejudiced (p. 43).

Speaking of the liberty essential to a real Council, he had said (p. 46)—

Little does it matter whether the liberty of deliberation and of vote be violated in one way or another, whether by fear or by guile, whether the violence exerted is physical or moral; so soon as liberty is gravely hampered, the Church no longer recognizes herself as truly represented.

Friedrich tells how Strossmayer, the day before, had said that he would write out his speech and send it in; for the reporters were so unskilful that their manuscripts were of little use. But we do not see how he could do more than guess what their reports were. At the same time (it was in the house of Cardinal Hohenlohe), he said that now, since he had been in Rome, he could understand how both the Reformation and the Greek Schism had originated. It was in his view a real crime for the Pope to claim to be the successor of Christ instead of the successor of Peter; the way in which bishops were driven was, he added, inconceivable, when one remembered that it was they that kept up the dignity of the Pope, and prepared the minds of the people to acknowledge it.

A prelate of different views was he to whom Friedrich had said that, in order to understand the events of the Council, one must read the *Civiltá*, further adding that had he been Prince Hohenlohe in Bavaria, he would have answered the *Civiltá* by expelling the Jesuits from Regensburg. "They are innocent people," said the Bishop. "Individually," replied the Professor, "they may be innocent people, but they represent an order which propagates doctrine dangerous to the State." He tells also how it was found that the French, German, Austro-Hungarian, and American bishops had an International Committee of three; but that the Pope, regarding this as savouring of Nationalism, and of a revolutionary spirit, forbade it. Lord Acton (p. 52) mentions another prohibition scarcely less significant, namely, that the printed Rules of Procedure of the Council of Trent were, with the utmost strictness, withheld from the members of the Vatican Council. These rules, and the real minutes of that Council, had at that time never been published, and only saw the light in 1874, by the private efforts of Theiner. Of course, the Decrees and Canons had long been before the world. Among the many denials we do not remember any attempt to deny this specific allegation. An argument could be easily constructed, on the principle now accepted, to prove that it was no interference with liberty to deprive the bishops of the physical possibility of informing themselves of

the extent of rights which they had inherited from their predecessors at the latest General Council.

Lord Acton says that one effect of the determination to keep the discussions secret was that it led the bishops to express themselves more strongly than they would have done had they expected their words to be read at home and conned over by Protestants. At the same time, much leaked out. All agree that the inhabitants of Rome took little interest in the discussions, while, in the religious aspect of the question, the Italians generally took scarcely any; and this indifference reacted on the interest they might have taken in its political aspects. They committed the error of despising their enemy. Knowing the men and their communications, they allowed their own estimate of the worth of priests to affect their calculation as to their influence.

There is a well accredited story of Lord Acton going to Florence, full of the burning questions which were to affect the future of every Roman Catholic. Dining with a relation in the very centre of the political circle, and meeting several members of the Cabinet, he naturally expected to find them taking some interest in the cosmopolitan politics then under treatment by the Senate of Humanity, the Supreme Legislature of the Human Species. But the Italians were buried in some passing question of grist, or the like, and had no ear for the principles which were to shape the future of nations. They saw little in the proceedings more than that the Pundits of an expiring caste were passing resolutions to adjourn the nineteenth century and to conserve the eleventh.

German and English Catholics were not capable of thus treating principles as husks. Whether Fallibilists or Infallibilists, they knew that the destiny of that Society, which both agreed to call "The Church," was now at stake, and that, at least, the repose of nations, if not their destiny, was also implicated. The Liberal Catholics, holding that the attempt to restore a theocracy would only lead to wars, and that humanity would avenge itself on the Papacy for again fomenting bloodshed, hoped that somehow God would save the Church from the blindness of the Curia. The Catholics, on the other hand, equally aiming at *ultimate* peace, and even regaling their imaginations with a vision of millennial repose, so soon as all nations should have accepted the Vicegerent of God as the representative of Christ Himself, were in the

meantime profoundly convinced that the only way to obtain that repose was through the very conflict from which their faint-hearted brethren shrank.

The Infallibilists could not harbour the idea of the Church failing in the struggle. That was to them like supposing that the gates of hell should prevail. To the Liberal Catholics the Jesuits were conspiring against humanity and all its franchises. To the Jesuits, on the other hand, the Liberal Catholics seemed to be risking the loss of such an opportunity as might never recur, of putting the Church in a position to constrain governments to accept the principles by which alone nations could be saved. Therefore did they look upon any shrinking from the struggle as indicating worldly fear rather than foreseeing care for the Church. If Liberal Catholics looked upon the Jesuits as conspiring against humanity, the Jesuits looked upon the Liberal Catholics as agitators against divine authority. No wonder that in such a state of feeling, what Lord Acton describes took place, "The word-war of the hall was always fought over and over again outside, with the addition of anecdotes, epigrams, and inventions."

It was on Sunday, January 2, that two petitions were sent in to the Pope. The first was signed by forty-three prelates, headed by Cardinals Schwarzenberg and Rauscher, and the Primate of Hungary.^[255] This was no Bill of Rights, not containing even a challenge of that exercise of prerogative which it sought partially to relax. The privileges for which two princes and forty-one magnates petitioned, "prostrate at thy feet," were—

- (1) That the Fathers might be distributed into, say, six groups, in which Draft Decrees could be considered in the principal living languages before being brought on for discussion in Latin, in the General Congregation.
- (2) That speeches delivered in the General Congregation might be printed for the exclusive use of the members of the Council, and under the same bond of secrecy as that under which the Draft Decrees were communicated to them.
- (3) That the Draft Decrees on faith and discipline might all as soon as possible be laid in a connected form before the Fathers, and should not any longer be presented, as hitherto, piecemeal.
- (4) That the Fathers, after having in the vernacular meetings considered the Draft Decrees, might be allowed to send a couple of delegates from each group to the committee to represent their views.
- (5) That the Fathers might be

allowed to print, in addition to speeches delivered in the General Congregation, writings in which questions could be treated more thoroughly; these however to be printed subject to the same bond of secrecy as the Draft Decrees. (6) "Prostrate at thy feet, we crave the apostolic benediction for ourselves and the faithful committed to us."

We do not know that even the last of the six things here prayed for was granted, for the petition never received an answer. These dignitaries clearly state to their royal master the grounds on which they petitioned for some of the elementary rights of human creatures. They say that Decrees cannot be really sifted by speaking a dead language in an assembly of seven hundred persons from all parts of the world, unless, first, in companies speaking living languages, the Fathers have had the opportunity of examining their contents. And further, that however well acquainted with Latin all might be, there were many prelates who did not speak it. Moreover, the petitioners, admitting that the Council Hall was admirable as being so near the tomb of St. Peter, state that in the first General Congregation, though some of the speakers had excellent voices, not one of them could make himself heard by all. Even since changes had been effected, the greater part of the members could not hear all the speakers. Another of their points is this: Although men well worthy of confidence—*viri fide dignissimi*—had assured them that the reports of the speeches should be distributed to the Fathers in print, so that they might read what they had not been able to hear, "in this hope we have been disappointed."

They appeal thus to their master, "Most Blessed Father, by thine excelling wisdom, wilt thou perceive that, as the Fathers can neither hear what is spoken, nor read it, proper consultation is not possible."^[256] They go on to urge that even if the discussions were held in a place where men with the weakest voices could be heard, it would still be desirable that the members should be in a position to look over what had been advanced in successive sittings. "Matters of weightiest moment," they add, "are being treated, and frequently the addition, omission, or change of a single word may adulterate the sense." If, say they, the Fathers had the opportunity of explaining their views in writing, they could lay many things before their fellow members which could not be brought into speeches. As to obtaining an understanding of the proposals, they urged that, in questions of doctrine, one thing so connects itself with another, and discipline is so much affected by doctrine,

that they are not in any position to give a judgment on Draft Decrees, obviously forming but part of a scheme, while as yet other parts of it are kept from their knowledge. The relation between the unknown parts and the parts before them is an element in any judgment to be formed.

The second petition, dated on the same Sunday,^[257] was signed by twenty-six prelates, including several of those who had signed the other, and a few additional ones, such as Kenrick of St. Louis. Cardinal Rauscher did not sign it, but Cardinal Schwarzenberg did. It set out by indirectly asserting more in principle than the other; but it ended by asking less in practice. It seemed both to assume the right of proposition on the part of the prelates, and to imply that the taking of it away would deserve blame; but it had not the courage to say that it had been taken away. Those are not wanting, say the petitioners, who interpret the Rules as not recognizing the right of the Fathers to propose in the Council what they may think conducive to the public good, but as conceding it only exceptionally and as a matter of grace. This may be a diplomatic way of indicating what the Rules said without confessing the fact that they did say it. But what they did say was too plain for any such finesse. The prayer of the petition is confined to two points: that some members of the Commission on Proposals should be elected by the Committee, and that the authors of proposals should have access to the committees, and thus have some part in the treatment of the particular matter in which they were interested.

These petitions say more than all the assertions of the much contradicted Liberal Catholics about the want of freedom in the Council, and the want of the old spirit of bishops in the men who composed it. According to Friedberg, the first of the two was drawn up by Cardinal Rauscher (xli.). No name of an English, Irish, or Colonial prelate is attached to either petition. Nearly all the names are those of Germans and Hungarians, the only American one being that of Kenrick. His signature proves that the English-speaking group knew of the petitions, and the absence of all other names belonging to that group would seem to indicate that members of the hierarchy from America, the British Isles, and our Colonies did not approve of bishops of their Church being entrusted with such extensive liberties as those for which their brethren petitioned. It is pretty certain that the American archbishop who signed this petition was not one of the prelates who told the Archbishop of Westminster that their Congress was not freer

than the Council. Do senators and members of the House prostrate themselves at the feet of the President, petitioning for leave to meet in a place where they can hear and be heard, for leave to read reports of one another's speeches, and for leave to print memoranda—for leave even to elect a few members of a committee which decides what may and what may not be recommended to the President, to be proposed should he approve of it? If they do not, we must only believe that America sends some citizens to Europe whose information as to the institutions of their country is not to be relied upon. Did Ginoulhiac, whose observations on the necessity of perfect freedom in a Council we have lately seen, consider legislators free who had to petition for such things? Outside of the number of Cardinals resident in Rome, could even a Cardinal have been found beforehand to assert that liberty would not be gravely hampered, in any legislative assembly, whenever those who were called legislators were compelled to indite petitions such as we have described? We doubt if even a resident Cardinal would beforehand have dared in terms to deny that when, in a professed Council, liberty is gravely hampered, the Church does not recognize herself as represented. Now, it is easy to turn the point of all such arguments. Peter the Infallible has only to say what rights James and John, Thomas and Paul shall enjoy, and in exercising them they possess all the freedom that God has been pleased to grant to them.

The allusion in the petition to the ease with which the sense of a speech may be altered seems like a remark of Strossmayer, quoted by Friedrich, that reports which were under no check but that of the Curia, and which even the speakers themselves were not allowed to inspect, could not be of any use. To this Friedrich adds, How much would the weight of the remark have been increased after an incident on July 9, "when the majority of the Council, and a committee of the Council, did not scruple formally to deceive the minority."

The prayer of the petitioners for a sight of the whole scheme, as prepared, before they should be called upon to erect part of it into irreformable Decrees, was doubtless caused in part by the obvious relation between the Drafts already brought to light and the Syllabus. That compendium was not mentioned any more than it had been in many other public instruments, but the first Draft fitted to its first sections, just as the Encyclical which accompanied its issue had done to the whole document. Notwithstanding its

authority, its form made it of doubtful interpretation, and these Decrees aimed at giving statutory form to its sentences. An *Index Schematum*, or List of Drafts, had come to light,^[258] which let the bishops see that what had hitherto been produced was but the first instalment of projected legislation covering all the ground occupied by the Syllabus. The first Draft treated only the philosophical and theological portion of the subjects; but how were the principles enunciated to be applied, when the sections on Church and State should be arrived at? The somewhat obscure teaching in the Draft on the elevation of man into the supernatural order, would, to mere politicians, look like theological nebulae, and, to mere theologians, like ill-digested divinity. To men versed in the esoteric dialect, it was clearly intended to prepare the way for the doctrine of the elevation of man by baptism above the control of civil law, in all that affects his loyalty to the supernatural order of the Church, whose Decrees had, by that regeneration, become his supreme statutes, her courts his supreme tribunals, and her priests his supreme magistrates. It was the dogmatizing of the principle which has already passed under our eye, that in baptism the subjects of the civil power are changed. Another principle now habitually underlies that one, namely, that man by redemption through Christ is raised above the government of the natural order, and placed under that of Christ, through His Vicar. The studious among the Liberal Catholics knew that under the name of Naturalism their principles were condemned.

On the Monday following the day of the petitions, when the Congregation opened, after the prayers had been read, Cardinal De Luca rang the bell, and solemnly addressed the Fathers. Here, for once, we are able to give the very words that sounded in that hall of concealment, and this time not from an unofficial publication of official documents. It is the *Acta Sanctae Sedis* that now actually give us a speech. But it is a speech about the dead. The Cardinal is not so confident as to their happiness as were the writers of the Crusaders of St. Peter respecting that of those who fell in the Crusade. But he presents the two forms of the Papal worship of and for the dead, which differs from both the Chinese and the Brahminical. We see the two sides of it—the patronage of the living by the dead, and the patronage of the dead by the living. The Cardinal said—

MOST REVEREND FATHERS,—It is known to you that since the opening of the Œcumenical Vatican Council four Fathers have passed away by a

death precious in the sight of the Lord, namely, the Most Eminent Charles Augustus de Reisach, Bishop of the Sabina and First President of the General Congregations; the Most Eminent Francis Pentini, Deacon of St. Mary *in Portico*; the Most Reverend Anthony Manastyrski, Bishop of Przemyśl of the Latin rite; and the Most Reverend Bernardin Frascolla, Bishop of Foggia. The Christian virtues and the shining merits towards the holy Church of God and this Apostolic See, wherewith they were most largely adorned, inspire us with a sure and pleasant hope that their souls already enjoy rest eternal in the embrace of the Lord, and that in the presence of God they patronize our labours by their intercession. Since, however, human frailty is such that they may even now stand in need of our suffrages, let us not neglect earnestly to commend them to the divine mercy.

After this De Luca announced that in place of Reisach had been appointed Cardinal De Angelis. Thus one who, just before the Council opened, knew, or professed to know, so little that he told Cardinal Hohenlohe that nothing was to be done beyond condemning the principles of 1789, but who had served the Curia by the device of an election ticket, took the first seat, in which elevation the Opposition saw the reward of service in the elections. Next was announced the appointment by the Pope of Cardinal Bilio as President of the Committee on Faith, and that of Cardinal Caterini as President of the Committee on Discipline. The committees were not allowed to choose their own chairmen, nor yet was the Council allowed to name the chairmen of its committees.^[259] The next day, after Mass had been celebrated by Archbishop Manning, again had Cardinal De Luca to announce a death. It was that of the Bishop of Panama, a Dominican. The statement as to his sufferings here is plain. But as to his happiness hereafter, the full confidence felt in the case of the Crusaders, and the qualified confidence felt in the case of the two Cardinals, and of the two bishops whose deaths were reported with that of Cardinals, are both wanting. We have not here the "in peace" which in Rome, before priests learned to make a commerce of the dead, the poorest Christian wrote, it might be in the roughest scrawl, over the head of his wife or child; nor have we here the life and immortality whereof the light makes the happy believer "rejoice for a brother deceased." Eduardo Vasques was not a Crusader, and was not a Cardinal, and had not even the happiness of being reported dead in

company with a Cardinal. He was but a bishop, and, without doubt, in the pains of purgatory; so De Luca just said that he had died last night, after great suffering, borne with exemplary patience. "Proper mortuary services will, as soon as possible, be performed. In the meantime, let us commend him to the mercy of God, both by the sacrifice of the Mass, and by other works of Christian charity."^[260]

The day before the second session, a procession moved to the Vatican, of seventeen carriages, carrying seventeen deputations, each bearing an address, with signatures, in a richly bound volume, for presentation to the Holy Father. These addresses conveyed that homage of science to the Pontiff the appeal for which has been already mentioned. *The cultivators of science at the feet of Pius IX*, and, *The cultivators of science at the throne of the Holy Father*, were the titles of articles in Catholic journals. The way was led by the deputation from the pontifical academy of the Immaculate, which had initiated this movement.

They were received in the Throne Room. A long address to the Pontiff was read. He sat, unmoved, to hear it. Then, "he lifted his eyes to heaven with an ineffable expression," and uttered a prayer that the sentiments conveyed in the address might spread among the multitudes of scientific men whose false science was ruining society. The Pope would quote Scripture, as he often tries to do; and his text was *Captivantes intellectum vestrum in obsequium fidei*—Taking your intellect captive to the obedience of the faith. Probably he was thinking of 2 Corinthians x. 5, "Bringing every thought into captivity to the obedience of Christ," where the Vulgate translates, "Every thought (νόημα), every intellect." He then assured them that pride was the sin of the day, and that it was all a repetition of the original "*I will not serve*"—alluding to Satan's "Better reign in hell than serve in heaven." Cold men of science hearing this language from him who was striving to put all human honours, titles, and powers below his own, might think that some scientific test of his humility would not be amiss. The Pope rose, the *savans* knelt down, and he gave them the benediction.

Having then resumed his seat on the Throne, "Here I am," he said, familiarly; "here I am, to receive your gifts." There was a scientific test of their professions! The President of the Academy of the Immaculate advanced, presented his volume containing the address and signatures, and with it an elegant purse full of gold. The head of the next deputation

followed, presented his volume and his purse of gold, and so on, until the seventeen had completed their offering. The Pope had a pleasant word for each. Then saying, "God grant that your example may be followed by many," he closed the audience.^[261] How different was it now from what it was when "science was the echo of the Pontiff," or even from what it was when Galileo had to face the Inquisition, and to argue with Bellarmine!^[262] At the latter moment, the two revolted tongues, German and English, with their smaller kinsmen, Dutch, Danish, and Swedish, were unknown in the schools. Their libraries were yet to be. They had but lately received into them the source of their literary life—the Bible. But into them had the Bible come, not lapped in the languor of the cloister, but instinct with the life of a great revival.

Except a few northern schools, which had made themselves a name in the strife of the Reformation, all seats of learning on the Continent were on the side of the Pope. Now, how changed! Out of his own Model State, where were the universities canonically instituted? They had ceased to be. Meantime, the nations which at the Reformation were but emerging out of barbarism, had become learned in all the learning of the ancients and moderns. The two revolted tongues, German and English, had filled the world with a literature such as the Latin, even when Augurs and Pontiffs were called Cicero and Aurelius, had never known. The Portuguese, which had at one time promised to be the *lingua franca* of all the ports from Morocco to Japan, had given place, first, largely to the Dutch, then universally to the English. The Spanish and French, which had promised to divide between them North and South America, were sundered, and were both overshadowed by a dominating growth of English. That north-western tongue, cradled amid stern winds, was found by the Reformation as the rude but hardy dialect of some six or seven unlettered millions. Now it had become the wealthy and flexible, the noble and all-expressing speech of at least eighty millions. Thirty millions in Europe, with between forty and fifty millions in America, called it, with a common family pride and a common family joy, their mother-tongue. In Australasia, a future Europe promised to call it her mother-tongue. In India it was teaching the pundit, in China the mandarin, in Japan the daimio, in Africa the Kaffir chief, the Negro freedman, and the merchant of the Nile. That single language had now more schools and colleges, more laboratories and institutes of research, more

books and journals, more patronage and discussion of Art, than all the Papal languages put together. And as to the German, if the lack of equal liberty had reined the people in, while the effects of the Thirty Years' War, joined to those of the chronic splitting up into small States, had prevented their growth and expansion in a similar measure, they had, nevertheless, with huge and patient power, piled up a Titanic literature, and in many a movement in the higher march of intellect their banner led the van. Men of the Catholic schools of Germany so felt their own superiority to the science and literature of actual Rome, that the strokes of their contempt not unfrequently fell even on the reputed sages of the Curia, sometimes laid on in a fashion more scholastic than scholarly.

In the General Congregation of January 4, the Curia had the satisfaction of hearing, not only a diocesan bishop, but a German one, defend the Draft. [263] It was Bishop Martin, of Paderborn, to whose eminent qualities official writers bear loud testimony, though in the eyes of the Liberal Catholics he does not seem to be a prodigy. He blamed the manner in which the bishops had treated a document proposed by the Pontiff, which ought to have been handled with reverence, and rebuked such language as "to be erased." He desired the adoption of the Syllabus just as it stood. As the way to bring back the stray sheep to the Holy Father, he enjoined the recognition of his infallibility, which would reclaim Protestants. Both the expectation of Martin and Manning that the new dogma would facilitate the conversion of Protestants, and that of all the Ultramontane leaders that it would hasten the submission of governments to the Lord Paramount of the world, lose part of their marvellousness when we find bishops like Bonjean proclaiming it as of great importance for the conversion of Hindus. Bishop David, of St. Brieuc, alluding to Martin's warning, said if he must not say that the Draft was to be erased, he would say that if it was dead let it rise again; but some bishop must breathe new life into it. Friedrich says that Cardinal Bilio was particularly hurt by this speech.

Bernardou, Archbishop of Sens, read a speech for Audu, the Patriarch of Babylon. The Chaldean solemnly pleaded against the levelling proceedings of Rome, maintained the ancient immunities of his Church, and ventured to throw out a warning against innovations, lest the Orientals should be altogether alienated. He afterwards received a message to repair to the Vatican, and to come unattended. About seven o'clock on that January night,

the man of seventy-eight passed the Swiss guards, in their stripes and slashes of yellow, black, and red, with their halberds and their helmets, and while lonelily pacing the corridors, had time to remember how the house of the Inquisition stood over the way, and how utterly he was in the power of the King of the Vatican. It will be some time before what befell him comes to light.

Theiner, the celebrated Prefect of the Vatican Archives, had been long engaged, as was universally known, in preparing for publication the *Acta* of the Council of Trent. He had been arrested in this project. This was attributed to the instigation of the Jesuits. On January 4 Friedrich went to Theiner to beg permission to consult the *Acta* of Trent. "Theiner told me that he was now forbidden to let any one even see the *Acta*. All I could obtain from him was this—he showed me the piles of the copied documents in the distance" (p. 65). There is a picture for the days of an Œcumenical Council! ^[264] The day following, another German on the banks of the Spree, was busy with the Council. To Bismarck the state of things so far was chaotic. "I should not think it wise," he says to Arnim, "for us to intermeddle in this misty chaos, where we do not yet see clearly enough to choose the right basis of operations." He sees that Rome may make aggressions, but rests in proud repose in the power of the nation to throw her back within her proper bounds. The continuance of peaceful relations is greatly to be desired, but it is not for the government to attempt to give a direction to the events of the Council. It can only cherish sympathy with the efforts of the German bishops, and, *if they desire it*, give them its support. Bismarck expressly declines to support by any diplomatic step the proposal for vote by nations. Such a step would involve a serious recognition of the pretensions of the Curia. We must, he says, hold ourselves aloof from the Council, and free to bring its conclusions to the bar of our laws. He, therefore, does not deem it wise to attempt a permanent united meeting of diplomatists, with a view to influence the Council. All that can be done is to encourage the German bishops, and to assure them that their rights will be maintained in their own country. But they must be made fully to understand that serious changes in the organization of the Church would compel the government to alter its relation to her, both in legislation and in administration. ^[265] Had Bismarck known all the plans of the five preceding years, and all the events that were to follow, it is doubtful if he could have

taken a better course. And had his main object been to live at peace with Rome, and not merely to do the wisest thing for Germany, he could hardly have guarded more jealously against undue or premature interference.

FOOTNOTES:

[248] *Tagebuch*, p. 44.

[249] *Tagebuch*, p. 45.

[250] *Acton*, p. 73.

[251] *Tagebuch*, p. 44.

[252] *Acta Sanctæ Sedis*, v. 316. i.

[253] Vol. v. p. 316.

[254] *Acton*, pp. 74, 75, both in German and Latin.

[255] *Documenta*, i. 247.

[256] "Consultationem sicut decet haberi non posse."

[257] *Documenta*, ii. 383; also *Friedberg*, 410-14.

[258] *Friedberg*, xlv.; *Cecconi*, 483-89; and *Fronde*, vii. p. 263.

[259] *Acta Sanctæ Sedis*. v. 317-18.

[260] *Ibid.* 319.

[261] *Civiltà*, VII. ix. 358-9.

[262] Valuable light has lately been thrown on the two trials of Galileo by Dr. Reusch, of Bonn; and Signor Berti, ex-Minister of Instruction in Italy, has published the original record of the trial. The last I have not seen.

[263] *Tagebuch*, p. 63.

[264] This tale of Friedrich may form a pendant to one of Theiner's own. He relates how, in seeking for Tridentine documents which ought to have been in the Vatican, but were not, and some of which were in the library of Lord Guildford, he proposed to make a journey all the way to England. His brother oratorian, Dr. Newman, applied to Lord Guildford requesting that Theiner might have access to them. This was refused. That nobleman could not see why the Prefect of the Vatican Archives should come so far to examine documents of which there must be abundance there! Poor Theiner had found poverty, not abundance. There had been removal, as well as concealment. His ill success in England did not prevent him from saying that the honour of first publishing the minutes of Paleotti was due to the Rev. Joseph Mendham, an Anglican presbyter,—"which, certainly, is not to our honour or glory" (vol. i. pp. vi. vii.).

[265] *Cologne Gazette*, April 1, 1874.

CHAPTER V

The Second Public Session—Swearing a Creed never before known in
a General Council—Really an Oath including Feudal Obedience.

THE same tone of disappointment in which the *Civiltá* had said that as the discussion of the Draft was not concluded, no Decree would be promulgated in the second session, pervaded the additional remark that the world would describe as a vain ceremony the recital of the creed with which it had been resolved to fill up the day. Writers of different shades, as if by concert, did describe it as a religious ceremony,—a mere ceremony, an empty ceremony, a vain ceremony, and a tedious ceremony.

So far from taking this session as a vain show, we take it for one of the most distinctive footmarks left in the deposits of history by the mammoth which we call the Papacy. Without contrivance of man—in contravention, indeed, of arrangements made with patient forethought—the Vatican Council was compelled, under guise of reciting a creed, to exhibit its bishops as if barons swearing allegiance to a prince in peril of losing his estates. The creed recited was one never before seen or heard of in any General Council. An apparent accident set the faith of the early Church, and the modern composite oath and creed, before the eye of history in a contrast sharper than any artist could have devised.

A cause similar to that which led to this day being employed in setting face to face the old creed and the new, had at Trent led to the act that formed the reverse of the medal. At Trent, on the day fixed for the third session, no Decree was ready for promulgation, just as none was ready at the Vatican on that fixed for the second.

Consequently, at Trent, after much reluctance, the Fathers, rather than let the day appointed pass without a session, consented to fill up the time in doing what many of them felt would expose them to ridicule—in reciting the creed. Thus did they create an example which the Curia now followed. Two unforeseen accidents, linked together only by the association of precedent, led to the placing of the Catholic creed as it existed up to the Council of Trent, and the Romish creed as framed after Trent, side by side in a framework so impressive as to ensure the exhibition of the two in contrast to all ages.

At Trent the Fathers said that they would set forth as the firm and sole foundation, against which the gates of hell should not prevail, the creed used by the Roman Church, which was the *principium*, wherein "all who confessed Christ" of necessity concurred,—an expression which seems as if it was the last breath of catholicity on the lips of the Papal society. Another slight reminiscence of catholicity appears when it is said that the creed is given in the exact words in which it is read "in all churches,"—a terminology proper to apostolic pens, or to the lips of our glorified Lord, speaking to His servant John, when the word "churches" was the Christian vernacular, and "church" as a collective was rarely used, and only in the very largest sense possible.

Led by a way which they knew not, the Fathers at Trent set up a memorial of the faith of the Christian Churches as they found it in the creed. Led also by a way which they knew not, the Fathers at the Vatican set up an everlasting remembrance of what their predecessors at Trent had done with the faith.

The Cardinals arrived on the morning of the Epiphany, dressed in red; but they changed to the white proper to the day. Patriarchs, primates, archbishops, bishops, abbots and generals of orders, were all in white, except the Orientals, who had never surrendered to the primacy of Rome on the sacred subject of vestments. The Pope entered the hall, as he had done at the first session, between Antonelli and Mertel.

After Mass, Dominici-Tosti and Philip Ralli, the two Promoters of the Council; reverently drew nigh to the throne, and addressing the Pontiff, said:—

Inasmuch as, by ancient appointment of the Fathers, the sacred Councils of the Church have been wont to set the Confession of the Faith in the forefront of all their doings, as a buckler against every heresy, we, therefore, the Promoters of this Vatican Council, do humbly pray that profession of the Catholic faith in the form prescribed by thy predecessor of sacred memory, Pius IV, be made this day, in public session by all the Fathers of this Vatican Council.

The Pontiff replied, "We enjoin and command accordingly."

Then arose the sovereign from his throne, took off the sacred mitre, and, with loud and clear voice, recited for the first time in the history of man, as the belief of a General Council, the creed of Pius IV. Near the end of it, he came to the clause which swears obedience to the Roman Pontiff. This he omitted. The conclusion swears to maintain the faith just recited, and, as much as in the confessor lies, to enforce it "on all those committed to him." The Pope simply said to enforce it "upon all," and then he closed according to the regular form,—*"I, Pius, promise, vow, and swear, so help me God, and these God's Holy Gospels."*

Bishop Fessler, Secretary of the Council, and Bishop Valenziani, now came to the throne. The Pontiff handed to them the creed of Pius IV, just as he had handed his own Decrees at the first session. Valenziani, ascending the pulpit, recited it, in his own name and in that of all the Fathers. When he came to the portentous obedience clause, omitted by him who owes no account to man, tribunal, or nation, the bishop, read, *"To the Roman Pontiff, successor of the blessed Peter, prince of the Apostles, and Vicar of Jesus Christ, I promise and swear true obedience,"*—as if it was an installation in a feudal order. No wonder that Canon Pelletier, writing in *Frondeur* (vol. vii. p. 170), should say that this act of homage, "in the circumstances of which all are aware, had an immense importance." Valenziani then concluded the form as the Pope had done, only, instead of enforcing obedience "upon all," it was "on all committed to him."

Patrizi, the Senior Cardinal present,^[266] now rose, came to the throne, knelt, laid his hand on the volume of the Gospels, and lifting up his voice, said, *"I, Constantine, Bishop of Porto and Rufina, promise, vow, and swear according to the form now read, so help me God, and these God's Holy Gospels";* and he kissed the book.

Then Cardinals and Patriarchs, one by one, after them Primate, Archbishops, Bishops, Abbots, and Generals of Orders, in regular gradation of rank, first two and two, and, later, four and four,^[267] came successively to the throne, and during the space of two hours, knelt down, laid the hand on the book, repeated the above words, each inserting his own name, kissed the book, and so swore allegiance to the King of the Vatican, under the form of a profession of the simple and loving faith of Christ. The two creeds, recited at Trent and in St. Peter's, are below, in parallel columns—the one representing what the Council of Trent found, and the other representing

what it left. Future epochs will have to mark subsequent innovations. We put *the clause forming the basis of the new dogmas* in italics. The other italics are those given in Dr. Challoner's recension^[268]:—

THE CATHOLIC CREED BEFORE THE
REFORMATION

"I, N., with a firm faith, believe and profess all and every one of the things which are contained in that creed which the holy Roman Church maketh use of; namely—

"I believe in one God, the Father Almighty, Maker of heaven and earth, and of all things visible and invisible: and in one Lord Jesus Christ, the only-begotten Son of God, *born of the Father before all ages*: God of God; Light of light; true God of true God; begotten, not made; consubstantial to the Father, by whom all things were made; who, for us men, and for our salvation, came down from heaven, and was incarnate by the Holy Ghost of the Virgin Mary, and was made man. Was crucified also for us under Pontius Pilate; He suffered and was buried, and the third day He rose again, according to the Scriptures; He ascended into heaven, sits at the right hand of the Father, and is to come again with glory to judge the living and the dead; of whose kingdom there shall be no end.

THE ROMISH CREED AFTER THE
REFORMATION

"I, N., with a firm faith, believe and profess all and every one of the things which are contained in that creed which the holy Roman Church maketh use of; namely—

"I believe in one God, the Father Almighty, Maker of heaven and earth, and of all things visible and invisible: and in one Lord Jesus Christ, the only-begotten Son of God, *born of the Father before all ages*: God of God; Light of light; true God of true God; begotten, not made; consubstantial to the Father, by whom all things were made; who, for us men, and for our salvation, came down from heaven, and was incarnate by the Holy Ghost of the Virgin Mary, and was made man. Was crucified also for us under Pontius Pilate; He suffered and was buried, and the third day He rose again, according to the Scriptures; He ascended into heaven, sits at the right hand of the Father, and is to come again with glory to judge the living and the dead; of whose kingdom there shall be no end. And in the Holy Ghost, the Lord and Life-giver, who proceeds from the Father one holy catholic and and the Son, who together

And in the Holy Ghost, the Lord and Life-giver, who proceeds from the Father and the Son, who together with the Father and the Son is adored and glorified, who spoke by the Prophets; and (I believe) apostolic Church, I confess one baptism for the remission of sins, and I look for the resurrection of the dead, and the life of the world to come. Amen."

with the Father and the Son is adored and glorified, who spoke by the Prophets; and (I believe) one holy catholic and apostolic Church, I confess one baptism for the remission of sins, and I look for the resurrection of the dead, and the life of the world to come. Amen.

"I most steadfastly admit and embrace apostolical and ecclesiastical traditions, and all other observances and constitutions of the same Church.

"I also admit the holy *Scriptures*, according to that sense which our holy Mother, the Church, has held, and does hold, to whom it belongs to *judge* of the true sense and interpretation of the *Scriptures*; neither will I ever take and interpret them otherwise than according to the unanimous consent of the Fathers.

"I also profess that there are truly and properly *seven sacraments* of the new law, instituted by Jesus Christ our Lord, and necessary for the salvation of mankind, though not all for every one; to wit, *baptism, confirmation, eucharist, penance, extreme unction, orders, and matrimony*; and that they confer grace; and that of these, *baptism confirmation, and orders* cannot be reiterated without sacrilege.

"I also receive and admit the received and approved *ceremonies* of the *Catholic Church*, used in the solemn administration of all the aforesaid sacraments.

"I embrace and receive all and every one of the things which have been defined and declared in the holy Council of *Trent*, concerning *original sin* and *justification*.

"I profess, likewise, that in the Mass there is offered to God a true, proper, and propitiatory sacrifice for the living and the dead. And that in the most holy sacrament of the *eucharist* there is *truly, really, and substantially*, the *body* and *blood*, together with the *soul* and *divinity*, of our Lord Jesus Christ; and that there is made a conversion of the whole substance of the bread into the body, and of the whole substance of the wine into the blood; which conversion the *Catholic Church* calls *transubstantiation*.

"I confess, also, that under *either kind* alone, Christ is received whole and entire, and a true sacrament.

"I constantly hold that there is a *purgatory*, and that the souls detained therein are helped by the suffrages of the faithful.

"Likewise, that the *saints* reigning together with Christ are to be honoured and invoked, and that they

offer prayers to God for us; and that their *relics* are to be held in veneration.

"I most firmly assert that the *images* of Christ, and of the Mother of God, ever Virgin, and also of the other saints, are to be had and retained, and that due honour and veneration are to be given to them.

"I also affirm that the power of *indulgences* was left by Christ in the Church, and that the use of them is most wholesome to *Christian* people.

"I acknowledge the holy catholic and apostolical Roman Church, *The Mother and Mistress of all Churches; And I Promise [and Swear] True Obedience to the Bishop of Rome*, successor to St. Peter, Prince of the Apostles, and Vicar of Jesus Christ.

"I likewise undoubtedly receive and profess all other things delivered, defined, and declared by the sacred Canons and General Councils, and particularly by the holy Council of Trent. And I condemn, reject, and anathematise all things contrary thereto, and all heresies which the Church has condemned, *rejected*, and anathematised.

"This true Catholic faith, *Out of Which None Can Be Saved*, which I now freely profess, and truly hold, I, N., promise, vow, and swear most constantly to hold and profess the same whole and entire, with God's

assistance, to the end of my life; *and to procure, as far as lies in my power, that the same shall be held, taught, and preached by all who are under me, or are entrusted to my care by virtue of my office. So help me God and these Holy Gospels of God."*

Among the seven hundred men who repeated this set of propositions, unknown to Holy Scripture, we may feel assured that there were not wanting some who as they approached the end of the old, thought, That was the faith as it was professed before Luther; and as they entered upon the new, thought Where was this religion before Luther?

What a contrast between the old and the new! If ever it was true, it is here true, that the old is better. Under the old creed, the conscience is not hampered by any question about the authority of traditions, either apostolic so-called, or such as were confessedly ecclesiastical. The conscience is not perplexed with a fear of interpreting Holy Scripture differently from the unanimous opinion of the Fathers. It is not weighted with seven sacraments, not contracted with scruples about mere rites and modes of administration, not burdened by having to take for gospel every word which some past Council has said on some specified doctrine; not bewildered by a professed repetition oftentimes of the sacrifice once offered up forever, full, perfect, and sufficient; not materialized by transubstantiation of the substance of the bread and wine, not mystified by taking half a sacrament for a whole one, and by asserting that the deliberate evasion of Christ's sacramental command was a true performance of it; not secularized by the mercantile reckonings of purgatory; not let down from filial Christianity towards servile polytheism by the worship of saints, relics, and images; not demoralized by the traffic in indulgences; not narrowed by the domination of one municipal Church over all others; not cramped and degraded by identification with the sins and follies of one human head, much less by an allegiance to that head, as a lord of the faith and a sovereign of the conscience; not envenomed by anathematizing all who do not accept every article that we ourselves accept.

Trent diminished the comprehensiveness of the Papal Society by many new and some grotesque conditions. The present Pontiff has added others, and so far has the shrinking process been now carried that a *reductio ad absurdum* cannot be logically far off. Believing too much, which comes to believing too little, ends in believing nothing. All these successive submissions of conscience to "authority," of spiritual inquiry and private judgment to priestly dictation, end in the paralysis of the believing faculty. They render a man capable of nothing but submitting.

The ordinary oath of the Papal bishops has often been shown to be in substance the oath of a feudal vassal to his liege lord. It has but a flavour of any evangelical office or work of the soul-winning ministry of Christ. The Emperor Joseph II clearly saw that any man bound to the Pope by that oath could not be reckoned as the subject of any other prince, except by one of those generous fictions which on behalf of the Pope, by way of exception, governments have admitted. But even that oath was not enough; the confession of faith in God must, for all the clergy, be turned into an oath of loyalty to the Bishop of Rome—an oath to a human head in a creed!

The process of taking the oath lasted, as we have said, two hours. The crowd was not great. The session did not raise enthusiasm in any one. Friedrich, who viewed the act of homage from the gallery for theologians, said that nothing could be more tedious. He did not feel flattered with his company in that gallery. Formerly, only doctors were known at Councils as theologians, and, as we have seen, they had real work to do. Now, he says, the chaplains and secretaries of bishops, and even the men who carry the red caps of the Cardinals, figure as theologians—"an edifying company." Even the *Stimmen* had only a few sentences for this session; and the *Civiltá*, though read principally by persons who may be supposed to have already seen the creed of Pius IV, filled up room by printing it at full. Quirinus wondered whether this "profusion of superfluous oaths was reconcilable with the scriptural prohibition of needless oaths." They had seven hundred and forty-seven oaths taken.

Only the genius of M. Veuillot sufficed, so far as we remember, to cheer the gloom of the day. It was the Epiphany, and in the portions of Scripture included in the offices of the day, he saw the interpretation of the ceremony. The royally robed potentates who bowed before the enthroned priest-king were *the kings of the Gentiles* prostrating themselves and worshipping the

Church, presenting their gold, and frankincense and, myrrh. The words of Isaiah, "The nations shall come to Thy light, and the kings to the brightness of Thy rising," had the same grand meaning. So he cries (i. 79):—

Behold St. Peter's! The throne of the Pontiff and the Cardinal at the altar, and between throne and altar eight hundred bishops! Behold the prophecy and behold the fact!

M. Veuillot remarks that in the galleries were present diplomatists and princes who had fallen; but the Church abides! In the crowd, he says, was an Italian "revolutionist, Signor Minghetti, once a subject and minister of the Pope. He bowed with propriety under the benediction of his Father and his master, who was betrayed by him; but he abides!" The fallen princes represented those who, having supported the Papacy, both temporal and spiritual, had been brought to ruin by its bad teaching and worse example. Signor Minghetti and his bow represented those who, rejecting the temporal Papacy, wished to conserve at least the show of the spiritual Papacy. It is for future time to tell whether they to whom he will bequeath the tangled undertaking, will take their place with ex-kings, ex-dukes, ex-princes, and so forth, in the gallery of failures, or whether they will take their place among the wise men who, rejecting the spiritual as worse than the temporal Papacy, and risking all to found States on the principles of the Word of God, have built up great and happy realms. Italy not does think a principle worth running any risk for. She thinks it practical to say to the Papacy, We have found thee unfaithful in the unrighteous mammon, and therefore do we take it from thee, but we commit to thy trust the true riches.

The *Acta Sanctæ Sedis* say that no date was fixed for the next session. The confidence in the readiness of the Fathers to swallow a large pamphlet of creed in a few days was shaken. "No one," is it pensively added, "could foresee when Decrees would be in readiness, because many Fathers might probably be lengthy in their discourses."^[269] The learned editor seems as if he would fain emulate the flight of M. Veuillot, but he soars with weighted wing. In a long apostrophe to Rome, he styles Pius IX "the captain who gloriously fills the place of thine ancient Caesars."^[270] In one of his speeches made to Roman professors, Pius IX calls himself "the Cæsar who now addresses you,"^[271] and to whom alone are obedience and fidelity due."

It is evident that the Curia left this session under the damping effects of a disappointment. It is also evident that some of the bishops felt that they had now performed two sessions, with a month between them, and that the only distinct impression left upon the mind was that they had been twice exhibited, before the whole world, at the feet of a man more richly robed than themselves, seated on a throne in the house of God, and calling himself Father of kings and princes, and Governor of the world. Canon Pelletier points out the great advantage which the Church had obtained by having the Creed of Pius IV "consecrated" in a General Council.

FOOTNOTES:

[266] The Dean of the Sacred College, Cardinal Mattei, was unable to attend the sittings.

[267] *Acta Sanctæ Sedis*.

[268] *The Grounds of the Catholic Faith*, p. 3. The obedience clause in Challoner, not being meant for the clergy, does not contain the word *swear*. For the same reason is the final clause, which implies authority, omitted. The translation of that clause given here is from Mr. Butler's version.

[269] *Acta S.S.*, v. 327.

[270] "Sub co duce qui locum veturum tuorum Cæsarum gloriose occupat."—*Ibid.* 324.

[271] *Discorsi*, i. p. 255.

CHAPTER VI

Speech of the Pope against the Opposition—Future Policy set before France—Count Arnim's Views—Resumed Debate—Haynald—A New Mortal Sin—Count Daru and French Policy—Address calling for the New Dogma—Counter Petitions against the Principle as well as the Opportuneness.

ON the Sunday following this disappointing session, the Pope received fifteen hundred persons in a public audience. Even the language of M. Veuillot does not exaggerate the effect of his speech upon that occasion.

"What he said on the Council will loudly resound through the Catholic universe." What he said cut the bishops of the Opposition, and Liberal Catholics generally, to the heart. We quote from the version of M. Veuillot:

Would-be wise men would have us treat certain questions charily, and not march against the ideas of the age, but I say that we must speak the truth, in order to establish liberty. We must never fear to proclaim the truth or to condemn error. I want to be free, and want the truth to be free. Pray then, weep, force the Holy Spirit, by your supplications, to support and enlighten the Fathers of the Council, that the truth may triumph and error may be condemned.

After his first version of the speech, M. Veuillot said that a word had been "unfortunately omitted." The Pope had said that those who opposed certain measures were

blind leaders of the blind. Well, if the leaders want not to lead any but the blind, and cannot see their game, the Church, preserving her own liberty, will know how to win without them or against them, the game which they obstinately set themselves to lose (i. pp. 86 and 100).

This was treated, not as a mere gust of temper, but as a calculated appeal through the press to the clergy, and to the devout generally, against the bishops of the Opposition. Yet the longing of the Pope for his liberty was natural. He had always believed himself to be infallible. The Jesuits told him that the full recognition of that attribute, and the free use of it, were the only remedies for the misfortunes of the Papacy, and for the troubles of mankind. He read in the *Civiltà* how all nations were at this moment looking to him as the one saviour, capable of lifting them out of the Slough of Despond into which the Reformation first and the Revolution next had plunged them. He heard of faithful bishops, learned authors, able journalists, one after another, intimating in prophetic strains an era of glory to follow the recognition of his rights. All asked, how could the world do otherwise than stumble and fall so long as the divinely appointed guide was not recognized? All asserted that nothing could prevent the world from rising up, healed and created anew, when the Vicar of God, acknowledged by the Church, in the plenitude of this authority, should speak the word,

Let there be light, at which chaos would flee away, and when he should follow it up with the supreme word to kings and nations alike, which all must learn to obey. Heretics would resist, but the faithful, under the banner of the Vicar of God, would certainly prevail. Nothing stood in the way of all this blessing and glory but a few bishops.

These bishops were represented as being partly calculating men, unwilling to get into trouble with their governments; partly cowards, who actually feared that the standard of his Holiness might fall in the struggle. Some were represented as jealous priests, paltering about the little prerogatives of their Sees, instead of merging all in the glories of the Holy See. If, in a matter so great, the Pope chafed at delay caused by such inconsiderable men, it was not more than might be expected from human nature so incensed, and so persuaded, even in the case of one less vehemently suspected of vanity and self-will than is Pius IX. He said that some thought that the Council was to set everything to rights, and some that it would accomplish nothing. "I am but a poor man, a poor feeble man, but I am Pope, Vicar of Jesus Christ, and head of the Catholic Church, and I have assembled the Council, which will do its work."^[272]

M. Veuillot also was becoming a little impatient. He apparently wanted to see the beginning of the "clearing away" of which he had spoken in 1867. The following passage, tracing out the policy that might save the Second Empire, is a specimen of skilled writing, clear to his clerical readers, dim to heedless Parisians. The new minister (Ollivier) must accept this program:—

To break with the Gallican, revolutionary, and Cæsarian prejudice (which are all one) by frankly recognizing the liberty of the Church; to assure all liberty by and through the assertion of this liberty, as mother and mistress; to prepare the accessions necessary to the honour and the conservation of peace; to permit men to be made against this perpetual plague of revolution which exudes only courtiers of the mob, or courtiers of Cæsar; this is the grand game he has to play. In the interest of the Emperor and the dynasty, I wish he may win it. Alas! during the last twenty years the game has been lost, more than once, by the fault of the chief player! But Providence is pleased to be obstinate, and to leave the game open, with favourable cards in the same hands (vol. i. p. 98).

In the gloaming of these January evenings, two men, might be seen walking somewhere between the Ripetta and the Via Condotti, and the tall figure of one of them was that of Count Harry von Arnim. A letter which he on one such occasion handed to the other was published, in 1874, by the *Presse*, of Vienna, ^[273] and bore the date of the day before the impatient speech of the Pope. To whom the letter was addressed is not stated. Alluding to the petition of the bishops, Count Arnim says: "You see they are modest, and organization is as defective as courage." He feels the want of practical tact in the bishops. If they had meant to succeed in their opposition, they ought to have impugned the composition of the Council, and the Rules imposed upon it. Had they first of all rent the net which the Vatican and the Gesu [the Jesuit establishment] had cast over the wise but timid heads of the bishops, infallibility would have fallen through the meshes. The Count is not sure that the Curia will persevere with the dogma of infallibility; and does not see of what advantage it would be to them, when they can at any time call a Council and prescribe to it how and what it is to speak. Some of the Fathers feel as if they were in some sort the Pope's prisoners since they have entered on the course into which they had been drawn. They had allowed themselves to be led so far in a certain direction during the last twenty years, that it was only when they saw that it was to be turned to earnest, that they began to ask how they could make black white at home, and how the Catholic people would take it. That was the feeling that produced "Fulda." People belonging to the Curia say that the bishops need a couple of months in the air of Rome to inspire them with the grand conceptions of the place; and after that all will be of one mind. He cannot understand how the German Catholics are going to let five hundred Italians, and among them three hundred boarders of the Pope, dictate laws to them in spite of their own bishops. Under the pretence of Catholicity, exclusive Romish-Italian formulæ are imposed on the Catholic mind of all nations.

If Rome resented the obstinacy of the provincials, some of the provincials began to open their eyes at what they found in Rome. Friedrich quotes one well acquainted with the Curia, whose words may be matched out of Liverani. "The Cardinals," said this authority, "are red-stockinged ... not fit, with the exception of four or five, to be curates in a village church." Friedrich himself had begun to think that their principal function was "parading." But at that Court did not everything depend upon parading? Many of the Cardinals might be no better men than the tongue of Rome (not

a scrupulous one) made them, and no greater theologians than Liverani and Friedrich said that they were, but some of them assuredly had great abilities, and all had shown themselves to be blessed with the faculty of getting on, which is generally some qualification for ruling. Disgusted by the low appearance of the monks and their mendicity, Friedrich yet confessed that, in present circumstances, such swarms of them had an advantage, as keeping a certain sort of population out of mischief. How different the view of M. Veuillot! To him the monks were the ideal of Christ's benefit to mankind. Free from the world, from the care even of a name or a tomb, the world "must allow their crushing sandals to pass over the poisons which its pride has sown" (i. p. 223). It remains to be seen whether the plants springing from seeds that quickly fall from a free Bible, a free soul, a free pulpit, and a free press, will die crushed as poison plants under the sandals of the monk, or whether they will yet flourish like grass of the earth, and the fruit of them shall shake like Lebanon, when *fakir* and monk shall together be remembered among the things that fatally decay in the shade of a growth which, though at first the least of herbs, becomes afterwards the greatest of all trees.

In the street Friedrich met Graf A., doubtless one who then proudly filled a proud post, but who now unhappily lies under a heavy cloud. The Count told him that a petition in favour of bringing forward the question of infallibility, drawn up in Manning's sense was already signed by five hundred bishops. Another of Friedrich's touches is, that *Janus* always lay on Darboy's table, and Hergenröther's *Anti-Janus* on that of Ketteler. After calling the latter work very dishonest, he says "The upshot of this book is, that the Pope alone is invested with divine authority, and before this Baal of the Jesuits, the majority of the Council means to bow the knee. Will not that amount to decreeing the death of the Church? She may lay herself down crying, 'Jesuits, you have conquered me.'" As a specimen of what bishops even in Council assembled had come to, he quotes the memorable words of Hergenröther, "*The bishops have nothing to do but to set the conciliar seal to a work which the Jesuit Schrader has prepared.*"

"Happy bishops," cries the poor theologian, himself tormented by opinions, and unable to let others believe for him. "Happy bishops! you may give dinners, see works of art, take your siestas, parade in pluvial and mitre, for the Jesuit Father has taken care of all the rest; and, then, setting to the

conciliar seal is not hard work! There is nothing to do but to say *Placet*, and all is over." Much depended on the interpretation men gave to their oath. Canon Pelletier (*Fronde*, vii. p. 170) says, not unnaturally, that at the moment when the Fathers prostrated themselves at the feet of the Pope, the majority was formed. All who understood "obey" in the sense of the Court, would vote what the Pope told them to vote. But Ginoulhiac, of Grenoble, soon to be Primate of France, had taken care, beforehand, to protest against such an interpretation. Though expressing some fear in citing it, he did cite the language of Bellarmine, to the effect that so free must a Council be that the bishops, their oath notwithstanding, must not only say what they think, but must even proceed against the Pope should he be convicted of heresy. [274] Such language, in the mouth of Bellarmine, as contrasted with that of Deschamps, Manning, and the other zealots of infallibility, marks the progress made by the Papal claims in our day.

The General Congregations were resumed on January 8, when two new Drafts on discipline were distributed. The Congregation of the 10th was remarkable for striking speeches, and for an unforeseen turn of the debate. Haynald, Archbishop of Colocza, replied to the few who had defended the Draft, especially to Martin, and Räss of Strasburg. He charged them with having attempted to deprive the Fathers even of the liberty left to them by the Rules, for they had reproached them for discussing what was laid before them. Did not even the formula at the head of the Decree, for speaking on which Strossmayer had been called to order, say, "the Council approving"? which surely implied that it was open to it to disapprove. Martin had said, We shall say "It seemed good to the Holy Ghost and to us;" But, rejoined Haynald, though Martin may know that we are to say so, we do not know it. This speech was described as one of remarkable power, second in that respect only to the speech of Strossmayer. Cardinal Capalti, one of the Presidents, listened with outstretched neck, and both hands behind his ears; but so skilfully was the discourse constructed, that Haynald escaped being called to order. He was often applauded, especially at the conclusion. It is said that Cardinal Bilio, who was responsible for the Draft, being, for a Cardinal, strong in German, knew three words of it,—*Deutsche* (German), and *freie Wissenschaft* (free science). He leaned back, often repeating, with an inward shudder, *Deutsche, freie Wissenschaft*.

Bishop Maignan, of Chalons, who followed Haynald, did not mount the pulpit, but stood before the Presidents. His speech was also spoken of as having been very striking. He attacked the Draft, especially its phraseology. What, he asked, was meant by *anima est forma corporis* (the soul is the *form* of the body)? The Greek Bishop of Grosswardein defended the Draft, saying that at first he had doubts, but that the more he studied it the more he was satisfied. As he had previously said, in the meeting of German and Hungarian prelates, "I do not like many dogmas,"^[275] when he next appeared among them some one said, "Greek faith is no faith," and he appeared among them no more. A Chaldean prelate, Kajat, speaking with a fine, clear voice, said, "It was scarcely becoming for a General Council to be occupied with matters so local as the opinions of this or that German professor"; and repeated the unwelcome words, "Free science," as Haynald and Maignan had done. The debate now seemed as if it might prove very searching. The minority had strong, if ill-grounded, hopes, but a new proof of the way in which the Rules played with deliberation was now sprung upon them. If a free assembly can close a discussion when it deems it already ample, it can also continue it so long as the conscience of its members cries out for a hearing. After the speech of the Bishop of Grosswardein, up rose the President, and said that, in pursuance of power given in the Rules, of Withdrawing a Draft Decree when disputed, the Draft should now be withdrawn from the Council, and should be remitted to the Committee, to be moulded by it. What! could not the Council go on with its investigation? Had it not control over a proposition once laid before it? No; the Twenty-four, with the theologians of the Court, were now in sole possession of the proposed measure!

Had the Council been free to form itself into a committee, or to select one from among its own members after this discussion, doubtless some of the men who had shown that they were capable of sifting the clauses would have been put upon the committee, beside the few who had defended the Draft. But that was the very danger which the Nine had foreseen, and against which they had provided by a permanent committee, elected before the question was argued. This provision was effective for its end, reducing the part left to the bishops to that of making Latin speeches in rows, according to rank and seniority. One other liberty they had—the momentous one of saying Ay or No. Had not the Council been weighted with creatures of the Court, that single liberty might have sufficed to stay the great organic

change necessary to the scheme of reconstruction. We do not know whether the sitting we have just described^[276] is the one of which Quirinus stated that Cardinal Antonelli withdrew from it much disgusted, saying to a diplomatist that if the Council went on so it would never have done.

While, therefore, the Curia, disgusted with the bishops, had seen their perfect work torn to pieces day by day, now the bishops, astounded at the Curia, saw the future creed shut up in secret even from them! In its absence, they began on the fourteenth to discuss discipline. That was a notable day. It witnessed the creation of a new mortal sin. The *Acta* do not contain the document by which this was done.^[277] In Councils that were really general, a Christian bishop would have considered it a duty to tell his clergy and people what he said, and what he heard others say, about the faith of Christ. But on this day, Pope Pius IX turned this sacred duty of the bishop into a mortal sin. Secrecy, the genius of the Papacy, and publicity, the child of light, now closed for a life and death grapple. Any man of that assembly who should hereafter tell out of it what passed within it was to be guilty of mortal sin. The oath imposed before the opening upon the officers, and the injunctions of secrecy upon the bishops, had not availed. The step taken by the Pope was a loud acknowledgment that truth had leaked out. In a surly way this is admitted by the *Acta Sanctæ Sedis*. Shameless journals—*effrontes ephemerides*—had reported, as having been spoken and done in the Council, things partly true and partly false. "This had probably arisen from some one or another, who lightly held the *pontifical secret*, having given information, so taking upon himself to ignore the dignity of the Apostolic See in treating ecclesiastical questions."^[278] Vitelleschi, Roman as he is, asks,—If the Council is a supreme assembly, who is entitled to impose this penalty of mortal sin? Men of the Curia, accustomed to the making of innocent acts into sins, and of sins into licensed actions, would not scruple to read such a document in the face of such an assembly. Such is their state of conscience, that, far from feeling any shame, probably they would enjoy the idea of the shame and confusion of conscience which they were inflicting on the bishops. But men brought up in England and America could sit there, while this new yoke was fastened upon them, and say not a word! The bishops were really to be pitied. They were entangled in the creed. Their oath had shut them in. There is no hint of a protest having been raised by any one. To speak of these gentlemen in one aspect as citizens of

free nations, and in another aspect as prefects of the Pope, is scarcely any longer accurate. It is but by a fiction of the frailest sort that men so tied and bound by the chain of the foreign potentate can be called citizens. We have seen that the *Civiltá* holds it as-beneath their dignity as ambassadors to the citizens elsewhere than in Rome. Still, professing to be citizens, they were to be pitied. And if they were to be pitied, still more was human society to be pitied that had to bear the influence of seven hundred masters of a multitude whose consciences had come to such a pass. "A bishop," says Quirinus, "who should show a theologian, whose advice he wanted, a passage from the *schema* under discussion, or who should repeat an expression used in one of the speeches, incurs everlasting damnation.... A Papal theologian whom I questioned on the subject appealed simply to the statement of Boniface VIII, that the Pope holds all rights in the shrine of his breast" (p. 164).

Count Daru, who now appears on the political stage in Paris, afforded some entertainment to Don Margotti, who is to Italy what M. Veuillot is to France, the leading Papal journalist, having, according to a saying of the *Français*, more power than all the bishops. According to Quirinus the redoubtable pair are "the two modern Fathers." Count Daru said, on January 11, that "our national maxims in matters of religion, the independence of the civil power, and liberty of conscience, cannot be menaced." This was child's play to Don Margotti. In his view, France needed the new Pope-Suzerain almost as much as Italy needed the restoration of the old Pope-King. Don Margotti^[279] contends that the doctrine of modern parliaments is that they are themselves infallible. This he proves by a text from Emile Ollivier. That oracle on one occasion had said "We are justice!" but Don Margotti prefers an infallible Pope to an infallible people. Menabrea, Sella Minghetti, and such as they in Italy, according to him, represented God, the State. Margotti, therefore, looks on the *mot* of Ollivier as

providential, for it proves the necessity of an infallible Pope. The world absolutely needs a permanent and infallible authority; if the authority is not the Pope, up starts Ollivier, and ascribes it to himself. It is time that infallibility should be defined, that we may have no more such absurdities as Ollivier proclaiming "We are justice!" Oh, let the dogmatic definition of infallibility speedily sound from the heights of

the Vatican, and free us from modern justice, which calls itself now Baroche, now Ollivier!

Freeing us from modern justice and from M. Emile Ollivier are two different matters, though it is natural for Don Margotti to hail as providential an opportunity of treating them as one. The assumption of infallibility by parliaments is rather a favourite notion of Jesuit writers. They seem to mean that any authority which will not acknowledge its subordination to the Vicar of God must claim to be itself infallible. Yet, we might deem our own Parliament wiser than the Pope and his Curia, and morally superior, and still not think them anything more than erring mortals, with infallibility some way off. An English member of Parliament, repeating the Jesuit oracles, says that our Parliament claims to be infallible.

[280] It would seem that no assertion of the Jesuits is too ridiculous to be seriously repeated by their Oxford converts, though many are kept back, but for other reasons than their absurdity. The decree in which the Parliament does declare its acts irreformable would be a great curiosity. So would even such an expression as the following, quoted by Don Margotti (January 18) from the archbishops and bishops of the province of Vercelli:—

Most Blessed Father, now and always shall we be found, in obedience and reverence to your Holiness, approving, and disapproving, whatever you, from your apostolic chair, do approve and disapprove; from which chair Jesus Christ Himself speaks in the Holy Spirit to the bishops and people of the whole world.

The meeting of the Italian Parliament having been postponed, to give time to a new ministry to prepare measures, Don Margotti, viewing the paralysis of the Parliament as a moral effect of the presence of the Council, said (January 22):—

The word of Rome imposes silence at Florence, and the Council of the Vatican does just as our Lord once did when He closed the mouth of the Sadducees. Gentlemen, you have talked enough. Now stand still, and hear the great word of God. Your day is past, the day of the powers of darkness; and now the days of the Lord will dawn, the days of truth and light.

The Address in favour of a definition of the dogma of infallibility had now become the talk of all. Vitelleschi (p. 85) states that it was carried round by the Archbishop of Westminster, and the Fathers of the *Civiltà Cattolica*, as the Jesuits are called who form the editorial college of the great magazine. A letter, inviting adhesions, and signed by several bishops, chiefly belonging to the class who had not any national ties, was circulated with the address. The signatures to that document itself were headed by the names of Manning, Spalding of Baltimore, and Senestry. What had been felt from the first was now openly declared on all hands, although the utterance of it had often been charged as a great sin upon the Liberal Catholics. We mean, that the object of the Council was the definition of Papal infallibility, and that all the rest was manœuvring. Brief as are the historical notes in the *Acta Sanctæ Sedis* they state that we may almost say that the whole Council was convened for the sake of the fourth session. ^[281]

Vitelleschi notes the fact that the citations given in the Address to prove that earlier Councils had propounded Papal infallibility, were not apposite. Quirinus says that the Address "bristles with falsehood." Veuillot, on the other hand, finds its arguments cogent,—indeed, unanswerable. Vitelleschi remarks that the writers speak with indifference or contempt of schisms which might arise from the measures they demanded. Friedrich calls it a compound of untruth and slander. Veuillot urges that the contradictions to the doctrine had now reached such a head as rendered its definition absolutely necessary. Yet all this contradiction had arisen since the personal organ of the Pope gave the signal for an acclamation.

That liberty of the Church which existed nowhere else upon this sinful earth, except in Ecuador, did exist in Rome; and, therefore, all other liberties were secured; that is, the liberty of doing everything not forbidden by divine authority. But printing in Rome, except by licence, was forbidden by the authority that never can be in contradiction to evangelical law. The Address for making that authority into an infallible one was, however, circulated in print, without *imprimatur* of any sort. This sign was understood on all hands. It was not to be mistaken. The divine authority asked for signatures. The canvass for them was keen.

Vitelleschi relates that the promoters of the Address were charged with dragging a question forward prematurely, which in the natural course of things, would have come on for discussion when the prerogatives of the See

of Rome should be considered. To defend themselves, they said that the step they had taken was sanctioned by the Cardinal Presidents. This "indiscretion," he proceeds to say, "exposed the Roman Curia to the reproach of itself begging for its own apotheosis, devoid of feelings of the simplest propriety." Even the clergy, he thinks, were disconcerted at this proceeding, except the Jesuits. These were urged on by a fatality to proclaim "the infallibility of Clement XIV, who abolished them, and that of Pius IX, who had almost done so too, while they must find a formula to interpret the judgment of the next Pope who shall abolish them once more."

This Roman noble accounts for the strange vehemence of Manning on the ground that he had been a Protestant:—

He had seen his own religion from within, and not from without; and had seen the Catholic religion from without, and not from within. In Protestantism he had seen only the infinite internal divisions and subdivisions; and in Catholicism he had admired only the magnificent effect of its unity. He had not appreciated the good results produced by the former, through moderate liberty and the constant exercise of private reason and conscience; and he had not felt the dangers which, in the latter, flow from excessive authority. He is enamoured of authority, as much as the slave is of liberty. This want of equilibrium, and of a just Catholic feeling in his dealings respecting the Council, was charged against him, even by the most faithful and devoted of the clergy in Rome (p. 89; Eng. ver., 60).

A counter Address was sent in from German and Hungarian prelates; one from French, one from Italians, one from Americans, and one from Orientals. But these, not being in the interest of the Court could not be printed without a licence, and could not hope to obtain one. Even Cardinal Rauscher had failed to attain leave to print a short treatise on the Papal infallibility in Latin, and had to send it to Vienna.^[282] So the Opposition had to dispense with type. Then, what were they to do with their Address, when complete? The course of their opponents was clear—they had only to send in theirs to the Commission on Proposals; and some, in their bitterness, said that that Commission had been formed for no other purpose than that of receiving and forwarding it. But these Opposition addresses did not propose anything to be done, but simply requested the Pope not to have

a certain thing proposed. The bishops had no power to move in the House that the subject should not be considered, or to move that it should be deferred till the meeting of the next General Council. Care had been taken that they should not have "the negative right of proposition" any more than the positive. Then, what could they do? Nothing whatever, but what they had done already, namely, petition the Pope. Their former petition, indeed, had received no answer. Still, that was a request for the recalling of a *fait accompli*, or, at least, for its modification. This, on the other hand, was only a request that a thing suggested should not be done. "Can any more singular relative position be imagined," says Vitelleschi, ^[283] "than that of a man who receives a number of people into his house, with a design of proclaiming his apotheosis, and at the same time receives from them a pressing supplication to renounce that honour?"

None of these various Addresses stated that the signers opposed the new dogma only on the ground of opportuneness. This ought to be carefully noted. The opposite is now almost always either asserted or assumed; but the documents have not perished. ^[284] Such a position was skilfully avoided. It is quite true that the only grounds, formally stated in all the Addresses *but one*, are grounds which might be concurred in by men who objected to making the opinion of Papal infallibility into a dogma, though they did not object to it as an opinion. But the German Address was clearly distinguished from the others. It plainly and forcibly demurred to the principle, though couching its objections in terms of great courtesy. After alluding to questions of opportuneness, the German and Hungarian bishops proceed:—

We cannot pass in silence over the fact that other grave difficulties exist, arising out of the *dicta* and the acts of the Fathers of the Church, out of genuine historical documents, and out of Catholic doctrine itself, which, unless they can be entirely removed, it would be impossible that the doctrine commended in the above named address should be propounded to the Christian people as being revealed of God. Our spirit recoils from the discussion of these difficulties; and, confiding in Thy benevolence, we implore that the necessity of such deliberations may not be imposed upon us.

This is signed by men who speak of themselves as "prostrate at thy feet." This passage, however, stood in the German Address alone. The others wished to get as many signatures as they could, and perhaps fancied that they gained ground with the Curia by omitting plain objections to the principle. The American Address indicated the existence of differences on the point of principle, by alleging as its first reason against raising a discussion on infallibility, that such a discussion would "clearly show a want of union, and especially of unanimity among the bishops." The German, French, and Italian Addresses put forward another point, namely, that the dignitaries belonging as they did to *the most important Catholic nations*, and knowing the probable effects of the proposed measures, felt that those effects, even with the best men, would be damaging to the cause of the Church, and would supply unfriendly ones with occasion for new invasions of her rights.^[285] The German address, as printed in the *Documenta*, has forty-six signatures, including two Cardinals and the Primate of Hungary; one American prelate Mrak, of Sault Sainte Marie, in Michigan, closed the list. The French Address has thirty-eight names, and among these are three Portuguese prelates and four Orientals. The Italian Address has seven names, the American twenty-seven—among which two Irish Sees, Kerry and Dromore, are represented, and a single English one, Clifton. The Oriental Address has seventeen.^[286]

M. Veuillot, speaking of the Opposition Addresses as one whole, said that of all who had signed it, not two, perhaps not one, was opposed to infallibility in principle (i. p. 149). Later he had the candour to attack the bishops for having impugned not only the opportuneness of the definition, but the doctrine itself (i. p. 180). Archbishop Manning, however, even after the close of the Council, said, "I have never been able to hear of five bishops who denied the doctrine of Papal infallibility."^[287] This particular statement is advanced as evidence of a general one, that the question raised among the bishops "was a question of prudence, policy, expediency; not of doctrine or truth." A question not of doctrine or of truth! Forty-six prelates in a petition expressly directed against Dr. Manning's own Address had put the question as one not only of prudence, but of revealed truth, alleging against any attempt to define the dogma three classes of obstacles—those arising out of Catholic doctrine, out of the *dicta* and acts of the Fathers, and out of historical documents. Perhaps we ought, with the forty-six prelates,

to say *genuine* historical documents. But Englishmen must be forgiven if in their limited intercourse with the Papacy they have not yet found it necessary to put labels on such words. The Donations of Constantine, and the Decretals of the Pseudo-Isidore, are historical documents, and also genuine as specimens of forgeries.

The fate of the Opposition petition is wrapped in mystery. Who presented it? how was it received? what became of it? are questions to which the satisfactory answer must be left to time. Some asserted that the Pope refused to receive it. Quirinus says that he returned it (p. 174). M. Veuillot told how it was delivered at the Vatican by an ordinary messenger, and that a monsignore received it with ordinary papers. This public affront to two Cardinals and nearly a hundred and forty bishops was aggravated a few days later by the remark that it was not yet known whether the monsignore had ever thought well to deliver the Address. Still later it was said that the Pope being consulted as to what was to be done with it, said that it might go to the Commission on Proposals, he intending, personally, to ignore it (i. p. 202). At a yet later date, January 28, Friedrich learned that every one being afraid to present it. Cardinal Schwarzenberg sent it by his chamberlain, who delivered it to Monsignor Ricci, the Pope's chamberlain. The Pope was excessively angry, and ordered it to be sent to the Commission.

When M. Veuillot trumpeted forth this example of how to deal with cardinals, archbishops, and bishops, did he mean to suggest that other Courts might treat them with like neglect,—Courts to which these officials hold themselves related as citizens only in an inferior order, an order which "obliges" them only when the higher order does not contravene? The documents in question bore the signatures of the Sees of Prague, Vienna, Munich, Cologne, Mainz; those of Milan and Turin; those of Paris, Rheims, Orleans, and the principal Sees of Portugal; those of New York, Cincinnati, St. Louis, Halifax, and St. John; those of Kerry and Dromore, and of Clifton; and from ancient countries the signatures of Antioch, Babylon, Tyre, Sidon, and Seleucia. Not often in the history of manners have titles representing so many ancient claims and such considerable modern station been treated with equal discourtesy.

The *Univers* of January 30^[288] said that when the minority thought that the majority were about to come to a decisive vote, they sent Bishop Freppel, or some one else, to propose conciliation; but when reassured, they began their

opposition afresh. It further said that Cardinal Hohenlohe acted in Rome in the interests of his brother, the Minister, and that his theologian, Friedrich, who had been chosen by Döllinger, was the writer of the letters in the *Augsburg Gazette*; that Cardinal Hohenlohe, with Schwarzenberg and Haynald, had succeeded in making an impression at certain embassies; and that the Austrian ambassador put the petition against infallibility before bishops, and asked if they had signed it.

Not content with the far-reaching policy which aimed ultimately at a cosmopolitan counter-revolution, the party of movement desired to begin forthwith by a local counter-revolution. Italy was to be reconstituted as a confederation of four States—the Papal States, Naples, Tuscany, and Piedmont. This, cries Friedrich, is a new task for a Council,—a Council called to make a revolution!^[289] But the bishops knew more of the world than the Curia.

Party spirit now ran high. Those who had adopted the tactics of opposing infallibility only on the ground of opportuneness, while they really objected on principle, found that they had gained nothing in point of conciliation, and had lost almost everything in point of moral power. How could ordinary consciences understand a man who admitted, or seemed to admit, that a doctrine, affecting the representative of God on earth, was true, and yet denied that it ought to be proclaimed? Compared with this position, that of the Pope was bold sensible and Christian. "We must never fear to proclaim the truth or to condemn error." Many, as well as Dupanloup, who first departed from the false line that he had seemed to mark out, found that they must object to the principle. Even if they had not previously studied the question at all, the glaring attempts now made to palm off admissions of primacy for assertions of infallibility opened their eyes. An ex-Anglican like Manning might easily accept that or grosser fallacies, but others had been taught to distinguish. The party of movement, on the other hand, raised a cry for action, which swelled higher at every sign of opposition. Their allegations are briefly expressed by Sambin (p. 105):—

Pontifical infallibility is the sign to be spoken against. If it is defined, the question is near to its settlement. The Catholic social Liberalism of France, and the scientific Liberalism of Germany, are indeed menaced.

It is, therefore, a question of life or death for Liberalism, as for Gallicanism and Febronianism.

The opposition to "the divine prerogatives of the Pontiff," says this author, [\[290\]](#) "had now become so pronounced that it was necessary to act."[\[291\]](#) Saviours of society always come to that point on the eve of the *coup d'état*.

M. Veuillot, who had long endeavoured to smother the opposition by asserting that no opposition existed, now declared that the opposition was so grave that it made the proposed definition a necessity. Quirinus says that the Address in favour of infallibility owes its preponderance of signatures principally to the three hundred *boarders* and the South Americans, while the counter-address represents "the overwhelming predominance in numbers of souls, in intelligence, and in national importance" (p. 173). One topic of constant complaint on the part of the Opposition was the disproportionate number of bishops to people in Italy as compared with other nations. For the seven hundred thousand people then in the Papal States there were sixty-two bishops, while for the twelve million Catholics of Germany there were fourteen. One million seven hundred thousand in the diocese of Breslau had but a single prelate, and he was not placed on any committee whatever. The nine millions of ignorant and superstitious people in Naples and Sicily had no less than sixty-eight bishops. On the other side of this question, M. Veuillot played off the name of London. If Paris and Vienna, Munich and Lyons, Milan and Turin, were on the wrong side, the Archbishop of London was on the right one.

Spalding, Archbishop of Baltimore, issued a project for a decree which, without formally defining the dogma of infallibility, should bind all to an interior assent to the infallibility of Papal decrees in faith or morals. He pointed out the evils attendant on a formal definition, and that in a manner which afterwards enlivened the controversy between Dupanloup, Deschamps, and himself. The work wherewith Deschamps regaled his Christmas Day was that of proposing no less than ten *anathemas*; [\[292\]](#) for if the Fathers could not propose things in Council, they could send a suggestion to the committee. Ten new anathemas dated expressly on the Nativity of our Lord by a Christian bishop! That day Reisach died.

FOOTNOTES:

[272] "A French prelate, commenting upon the text of this discourse, sneered at the simpletons who allowed themselves to be led by a one-eyed man (*un borgne*). It is well known that the Bishop of Orleans has lost an eye by study."— *Ce Qui se Passe au Concile*, quoting the *Moniteur* of March 24.

[273] We quote from the *Cologne Gazette*, April 4, 1874, which, quoting the *Presse*, says, "The Count will remember the walks in the gloaming, and another by the baths of Diocletian, and so will be able to tell where the letters come from."

[274] *Le Concile, etc.*, par Mgr. L'Evêque de Grenoble. Paris, 1869.

[275] How strong this language was considered in Rome may be judged from what the *Civiltà* said of the Minister of Public Instruction, Signor Bonghi: "In the sitting of May 14, 1873, Bonghi, then a private member, dared to say, blaspheming like a true son of Lucifer, 'The Catholic Church has multiplied her dogmas too much'" (IX ix. 242).

[276] We have taken the outline of this sitting from the *Acta Sanctæ Sedis*, and in the filling up we have principally followed Friedrich.

[277] The Freiburg edition does, p. 162; also *Guérin*, p. 113; *Friedberg*, p. 461; and the *Acta Sanctæ Sedis*, v. p. 337.

[278] V. p. 337.

[279] *Unità Cattolica*, January 16.

[280] *Contemporary Review*, February 1876.

[281] Vol. vi. p. 3: "Cujus causa quasi diceret concilium ipsum, tanta episcoporum frequentia, fuisse convocatum."

[282] *Tagebuch*, p. 108.

[283] P. 91; Eng. ver. 61.

[284] *Documenta*, i. 250 ff.; *Friedberg*, 473 ff.

[285] *Documenta ad Illustrandum*, i. p. 251.

[286] Bishop Martin's *Collectio Documentorum* gives nearly the same numbers, but seems to omit the American Address. It give Schwarzenberg's note fixing the sum at 136. Dupanloup frequently calls it 140. See his reply to Deschamps.

[287] *Priv. Pet.*, iii. p. 27.

[288] Quoted *Tagebuch*, p. 155.

[289] *Tagebuch*, p. 155.

[290] *Ibid.*

[291] P. 112.

[292] *Martin's Collection*, p. 91.

CHAPTER VII

Matters of Discipline—Remarks of Friedrich on the Morals of the Clergy—Also on the War against Modern Constitutions—Morality of recent Jesuit Teaching—Darboy's Speech—Melcher's Speech—A Dinner Party of Fallibilists—One of Infallibilists—Gratry—Debate on the Morals of the Clergy.

THE Draft Decrees on discipline now in the hands of the bishops affected their remaining rights. It had taken three hundred years to develop the practical effects of the legislation of Trent in curtailing those rights. Paolo Sarpi may say that the prelates entered Trent as bishops and left it as parsons; but it was long before new regulations had worn down old procedure so far that an Archbishop of Paris, for instance, could be treated in the manner in which we have seen Darboy treated. The bishops, however, now feared, says Vitelleschi, lest their office should be further mutilated.

According to Friedrich (p. 88), when, at one of the first meetings of the German and Hungarian prelates, Strossmayer said that the matter before them was the resignation of their collective rights and the centring of the whole in the hands of the Pope, he was ridiculed; but when he repeated that statement, on Saturday, January 8, it was received with universal assent. On the other hand, Roman ecclesiastics were alarmed at the pretensions of the bishops. Two Dominicans begged Cardinal Hohenlohe to use his influence to prevent the Germans from speaking as extravagantly as the French. "It is really frightful," they said; "what is to become of Rome? These bishops want spiritual decentralization." Friedrich now thinks that he begins to see what is the religious principle of the Roman clergy—domination, as a means of existence. The bearing of this remark on spiritual decentralization rests on the fact that spiritual causes referred to Rome bring money to the bureaux, and the bureaucracy are the clergy.

The professional observations of Friedrich on the Drafts touching discipline give insight into certain interior aspects of Romanism, which affect not only its own condition, but, through it, affect all society. We therefore let him speak directly (p. 89 ff.)—

The first chapter on the Office of a Bishop closes so abruptly that only at the end is it said that bishops must be examples for the flock. It is, however, praiseworthy that they are told to take the lead of the faithful even in knowledge. Alas for this pious wish: It will be as it has been! Further on, the words "let ecclesiastical discipline be maintained" strike the eye, and that in respect of the *mulieres subintroductæ*, or γυναῖκες συνεισάκτοι, in which character the parsonage cooks appear. This regulation is the most insulting imaginable; the most degrading for the parish priest, the most lowering and humiliating for the curates; altogether a dark spot in Church life. No regulation stands in such glaring contrast with Canons and Councils. It is a great offence against Christian morality, by which it is forbidden that any one should be placed in proximate occasion of sin; but in this manner the independence of a clergyman, and the placing of him in proximate occasion of sin, are connected together. The Fathers of the Council must themselves say whether this is or is not the greatest of cankers in the life of the clergy. They can tell whether it is necessary to direct the attention of the Council to this sore spot. One of the Fathers of the Council himself told me that he once spent a night in a parsonage where the rural dean (Dechant) and the cook were parents of both curates. It is said in the Draft, *De vita et honestate clericorum*: "If a clergyman, unmindful of his own dignity, is given to immodest defilements or to impure concubinage, or dares either in his house or elsewhere to have a woman of whom suspicion may be entertained, or to seek her company, let him be proceeded against, with the penalties prescribed by the sacred Canons, especially by the Council of Trent, and that without noise or the forms of a trial, only by simple inquiry into the truth of the facts." But what will this avail? Those directions have long existed, yet things go on as of old, and any such directions must necessarily be insufficient. Why is not the regulation of the ancient Church once more taken up, and carried through with a firm hand, according to which every woman, except nearest relations, was suspected, and was not to be admitted to the house of a clergyman? If our Church-princes of to-day will not return to the old regulation, which indeed sufficed not to hinder all excesses, and if they are incapable of finding new and better ones, it would be preferable, at all events, and would involve less responsibility for them, if they allowed

their clergy to marry outright rather than give them up to arrangements which place their reputation in so ambiguous a light. The fact that this subject had to be brought forward here in its regular place is sad enough, and should be taken as proof that we cannot go on in the present way. Has it not already come to this, in certain dioceses, that the bishops find themselves obliged to hush up, rather than to punish?

Further on, in the same chapter, it is said, "While they preach to the people due reverence and obedience towards the powers of this world, let them all with one mind and heart, taking counsel together and uniting their deliberations and strength, earnestly maintain the rights of the Church and of this Holy See, so that their common guard and defence may more perfectly assure the interests of the common cause; but let them admit of nothing which will lower the honour and dignity of their rank, and let them keep the admonitions of the Council of Trent on this point under their eye." These sentences are doubtless well meant; but, practically, will be without result. Nothing is gained by such general propositions. This being self-evident, nothing should be said in Decrees of a Council beyond the laying down of positive directions. The conclusion of the chapter is vague, but, perhaps, very dangerous. "We require princes and magistrates to cover and protect the sacred chief pastors (antistites) and ministers of the Church, and their most excellent work, with their powerful patronage and defence, *that due honour, respect, and obedience may be paid by all to the ecclesiastical authority.* Knowing that bishops promote not only the cause of the Church, but also that of their nations, and that above all the boldness and wickedness of men who perversely seek to mislead minds and corrupt manners may be restrained and constrained by them in the exercise of their pastoral office."

First of all, what is meant here by most excellent or highest work (*optimum operant*)? who are included in *by all* (*ab omnibus*)? Not only is honour to be paid to the spiritual authority by all, but obedience. According to the notes, *by all* includes princes and nations; that by the Council princes and nations may be moved to venerate the sacred pastors, and to render them obedience and reverence. Are we to understand that the unbelievers and misbelievers in a State are to pay obedience to the bishops? Does this wrap up the mediæval notion that

heretics after all are under the jurisdiction of the Catholic Church, as Bishop Martin lately gave himself out as the bishop of the heretics in his diocese? Also that unbelievers have no moral right of existence, and so on? And what is meant by the concluding words? Do they imply that the bishops have a right of interfering with the freedom of the press, of belief, and of conscience as granted by modern constitutions? A General Council should speak clearly and definitely. [\[293\]](#)

But who would have believed that in the second chapter on the Residence of Bishops a condemnation of the constitutional usages of modern times should be attempted, even indirectly? It provides that bishops must not be absent from their sees more than two, or at the utmost three, months in a year, whether continuously or at intervals. Such absence cannot be allowed even for causes otherwise admitted as lawful—*alias jure admissis*—except by express permission of the Pope, or, in the United Greek Churches without the permission of the Patriarch. One is here compelled to ask, Could not those cases have been foreseen in which seats in Upper Houses are permanently connected with many bishoprics. Why this needless increase of requests for dispensation? But, according to the *Civiltà Cattolica*, it is only as compelled by existing circumstances that bishops can properly take part in the objectionable constitutional life. It is said in the notes that the necessity of an express apostolic permission is to be remembered as being even now required by the constitution of Boniface VIII—*Sancta synodus*—even if there exists one of the four grounds of absence admitted as legitimate by the Council of Trent in its twenty-third session. These four grounds were, visiting the thresholds of the apostles (*i.e.* Rome), attending provincial synods, attending a General Assembly in which ecclesiastics are wont to sit, or discharging an office or duty to the State connected with the Churches themselves. But (says the note) because the Decrees of Urban VIII contemplate assemblies of a kind which do not at present exist, mention of this as a just cause of absence was omitted in the Decree, in which also was omitted, for a similar reason, mention of discharging an office or duty to the State. Thus the Chambers which have taken the place of those ancient assemblies do not exist for the Curia, or it feels bound to ignore them—quite in harmony with Jesuit fantasies. Should

the session of the Chamber last more than three months, those Bavarian bishops who are members of the Reichsrath would require an express permission from the Pope to fulfil their duty to the State. They might receive from the Pope a prohibition against staying any longer at the Reichsrath and fulfilling their obligations as citizens. Very edifying for our governments and States! They, however, would know how to help themselves, and would simply withdraw such a seat from the bishop.

Friedrich then dwells on the new contrivance of centralization by which every metropolitan is ordered, before publishing the acts of a Provincial Synod, to send them to Rome. The Curia is not to give them any formal approbation, but to *correct them*, should anything seem to call for correction. After this they are to be issued as the acts of the Provincial Synod. To execute this feat of shaping provincial decrees within the chambers of the Curia, Pius IX had appointed a new Board or Congregation. Friedrich calls this a new censorship. That would appear to mean that whereas formerly only private authors required an *imprimatur*, now even the collective episcopate of a province requires one. It would, however, seem to involve more than a censorship, because the new matter inserted in Rome has to go before the world under the provincial names. Authors were not compelled to father the corrections of the censor. They could leave the work unpublished.

That sense of impending danger to the Church which, of late years, had weighed on many Catholics, arose not a little from the moral teaching of the Jesuits, whose influence, under the smile of the Pope, they saw gradually rising. Out of regard for the honour of the Church, many Roman Catholics suppressed the horror they felt at what they discovered in the books of the Jesuits. Only those who have read some books—those which reflect the modern phases of their moral teaching—can appreciate the weight that must have lain on the hearts of some good men when striving to uphold before their imagination the Church as the perfection of beauty. Among the disciples of the Church of Rome are many who hold close to the Christian side of her theology, and seem to forget its Pagan side; many who avoid what is material in her cult, and, by aid of that same theology, cherish spiritual worship; many who turn to the noble morals of the Gospel, from the lower and ever deteriorating morals of the schools; and many to whom

the secular spirit of the Papacy and the earthly empire aimed at by the Jesuits are repugnant.

Friedrich learned, in Rome, that those who confess to the Jesuits are not to be trusted. Any one who will read even one hundred pages out of the seven hundred of Gury's *Casus Conscientiæ* would not think of trusting—would only think of pitying any creature into whose head the principles of that bad book had been put. Friedrich evidently does not repeat any light talk when he says that he heard it stated, upon good authority, that the Jesuits in Rome were in the habit of employing women as lures to procure the overthrow of men who stood in their way, which women would then return to the Jesuit confessionals as penitent Magdalenes; and this, he adds, the Pope knows right well. When Vitelleschi speaks of the evils arising from severity against errors of the intellect, and indulgence to errors of the will, he means what we should describe as strictness as to Papal principles, and laxity as to moral practices.

According to Vitelleschi, Darboy had only to stretch out his hand to take a Cardinal's hat. The impression that this was the case, and the terms on which he was known to stand with the Curia, gave great interest to his first appearance in the desk, which took place on January 19. How gladly would the Curia have seen him stretch forth his hand in the direction where the hat hung; but no, he reached it out in that direction where he had only reproaches to gather. [\[294\]](#)

We are told that we are not to make long speeches, but I have a great deal to say. We are told again not to repeat what has been said by others; but at the same time we are kept shut up in this Hall, where for the most part we cannot understand one another; we are not allowed to examine the stenographic reports of our speeches, and the only answer made to our representations is always the same, "The Pope wills it." I do not know, therefore, what has been said by the speakers who have preceded me.

He then went on to speak of the rights of the bishops, of their degradation by the Roman centralizing system, of "the caves wherein the Roman doctors have buried themselves from the light of day," etc. Two sayings are ascribed to him after this speech. The first, "Like Condé, I have thrown my

marshal's baton into the midst of the enemy;" and the second, "This Hall is deaf, dumb, and blind." Hard as it was for the Curia to listen to Darboy, with his diocese of two millions of nominal Catholics, it is said that they were even more pained by the language of Melchers of Cologne, whose diocese counted one million, and from whom animadversions were not expected. The fear of the French troops forsaking Rome saved the Archbishop of Paris from the tinkling of the mystic bell; but it arrested the metropolitan of the Rhine Province.

Melchers strongly objected to the increase of centralization in Rome, and advocated decentralization. He declared that, as now employed, dispensations from Rome were not necessary. Cardinal De Luca interrupted him, and told him that he was not speaking to the point, and that he must send his proposals to the Commission. He replied that he had sent his proposals to Rome long ago, and had received no answer; and then proceeded with his speech. An attack on centralization and on dispensations, from such a prelate, was a practical matter in Rome, as much as in Manchester would be a movement to cut off all the customers in some great county.

On January 23 and 24, Cardinal Hohenlohe gave two dinner parties—the first to Fallibilists, and the second to Infallibilists. At the former, Hefele, who now reappears on the scene, no longer as theologian, but as Bishop of Rottenburg, complained that he had lost the important sitting of that morning through an order from Cardinal Antonelli to attend the baptism of a child of the ex-Duke of Parma, which eleven other prelates who like him had apartments in the Quirinal were also obliged to attend, and at which six Cardinals gave their presence.

Archbishop Melchers of Cologne did not flatter Friedrich by telling him, what he already knew, that his Grace had forbidden his theological students to go to the faculty at Munich. His Grace, says Friedrich, did know the name of Döllinger, but not that of Reithmayer; and as to those of the younger professors, not the name of one. The Archbishop of Munich was not able to resist the temptation of telling Friedrich, as a good story, that when the bishops at Fulda, in the previous autumn, spoke of recommending Friedrich's Church History to the clergy, as a work which they ought to procure, his Grace of Cologne confessed that he did not know the name of the book. The pendant which the author archly hangs to this tale is, that

when the copy of that work which he had presented to his Grace of Munich fell, after some years, again into his hands, it had never been opened.

Bishop Förster of Breslau mentioned how Ketteler was going to propose, in the meeting of German and Hungarian prelates, that they should disavow the letters in the *Augsburg Gazette*; but, said Förster, we stand too high, and besides, the letters contain too many truths. Some one at table threw out the idea that the best thing to be done would be to give the Drafts of Decrees to the bishops, and let them go home and study them for a year or two, and then return and discuss them. They had come to Rome without books. Points of the greatest gravity in doctrine and discipline were laid before them for decision, and, as every one knew, it was difficult to find help in the libraries of Rome. Even that of the Vatican was closed, not only upon every holy day, but also on all those days on which General Congregations were held. The bishops were not allowed to take either books or manuscripts out of the libraries; still more, both in the Vatican library and the Vatican archives, the order had been given that nothing bearing on the Council should be delivered to them. Their regret at this was lessened by the discovery that the libraries contained scarcely any modern theological works, especially German ones. In his day, Addison remarked that books were not the attractions you went to see in an Italian library. But, of recent years, a real library of books, in addition to the old celebrated one of manuscripts, had been added at the Vatican. It was not catalogued, and was not open to the public. Some one in the company stated that it was now understood that theologians were to be brought into the Council in order to defend the Drafts of Decrees. So far as the *Theologi Minores*, or doctors, were concerned, Friedrich thought this improbable; and as to the higher theologians, or bishops, he wondered who they were to be. Can any one fancy, he said, such a man as Senestrey being treated as a theologian? At Trent, with the ideas then prevailing of what constituted a theologian, he would not have been dreamed of; but he passes in Rome as learned because he is a pupil and a favourite of the Jesuits; and by their standard, indeed, adds his countryman, he may even pass as holy, understanding so well as he does the principle that the end sanctifies the means.

As to what Friedrich next relates, we can only say that the ascertained fact for history, in her present stage, is that the following are things which a learned professor, with a position and character to take care of, deliberately

publishes, things which the gravest men receive. Friedrich relates how when Senestrey was seeking the bishopric, King Maximilian II was in Rome, and often visited Theiner, whose fame all Germans prized. His rooms in the Vatican, off the *Via dei Giardini Pontificali*, well known to scholars, are often pointed out to visitors going up towards the sculpture gallery by the present circuitous approach. Here the royal visitor would chat with the learned Prefect of the Archives, and enjoy the landscape. At that time Theiner had no better friend than Senestrey, who, knowing that Theiner was in bad odour with the Jesuits, showed himself very hostile to them, so that even his experienced friend confessed to Friedrich that he had allowed himself to be deceived. This Roman tale is followed by a Bavarian one. A person well acquainted with official circles told Friedrich that Senestrey actually offered his services to the government, saying that if appointed bishop, in case the other prelates ever entertained anything disagreeable to the government, he would give information and do everything to counterwork them. In January, 1872, Friedrich heard Senestrey named in a company where one was present who had been a companion of King Maximilian II on his journey to Rome, and who broke out saying—

Yes, that man talked so much in Rome to King Maximilian II and his suite against the Jesuits and against the misgovernment of Rome, that the King said, That is the right man! He must be the bishop!

No sooner was he in the bishopric than it proved that the king had lost his subject, the government its supporter, Theiner his friend, and that the whole of Senestrey belonged to the Jesuits.

The company of the second day, January 24, consisted of Infallibilists. Before dinner Friedrich was introduced to Senestrey, who looking at him, said roughly, "So you are Professor Friedrich," and turned his back. At table Ketteler broke out in loud denunciation of the letters of Quirinus. This Friedrich knew was meant for him, for although the bishop has since then laid the sin at the door of Lord Acton, he seems at that time to have suspected Friedrich. He blamed a statement that a certain piece of distinctive attire, not worn by any other bishop in the West, had been granted to Bishop Lavigerie of Algiers to adorn his shoulders, as a means of winning his vote; as if, said Ketteler, the whole episcopate was to be bought

by a bit of dress! We do not remember that Quirinus said that they were all to be bought by it. Our impression is that he only said something to the effect that it was incredible how far that sort of thing did go with them. Considering their training and habits, with us the thing incredible would be that things of that sort should not go far with them. And their constant study is to make things of that sort go far with all mankind. But the sally of Ketteler was responded to by the Military Bishop of Prussia, Namszanowski, who might be supposed to be even more than others susceptible of colour and decoration. He, evidently not being well read in Quirinus, missed the point of Ketteler's protest, and said, "Quite right, brother of Mainz. The same offer was made to me just at the outset, but I repelled such an imputation with contempt." This luckless reply probably made Friedrich think of his own visit from the much-vested Count Prelate W——. The eye of Ketteler flashed. Friedrich, who sat next to Namszanowski, hinted that he had missed the point of Bishop Ketteler, who ranted on—*tobte weiter*. When he had finished his tirade he looked Friedrich in the eye, as if to see whether he was not well abashed. "But I had no occasion to fear Ketteler, and looked him in the eye quite as sharply." Just after coffee the voice of Ketteler made the room ring,— "The chief advantage of the Council so far is, that the bishops learn to know one another, and to compare experience. For in his own diocese, of course, a bishop never hears the truth from his clergy, in consequence of his immeasurably higher jurisdiction." Friedrich, being the only priest present, said to Namszanowski, "Ketteler must lead a pretty regiment, when his clergy dare not tell him the truth. Any one who wants to hear the truth, and can bear to hear it, will hear it." He added that were it not for the impropriety of provoking a scene in the house of Cardinal Hohenlohe, he would indignantly repel this insult to the whole of the lower clergy. None of the bishops intimated any dissent from the view of Ketteler, while Senestrey, and Leonrod of Eichstädt, simpered approbation. But here Friedrich inserts a note saying, Time has shown that Ketteler knew the lower clergy better than I did.

Just at this time came another token that the content or indifference with which the Roman Catholic world watched the impending change in its Church and creed was broken in exceptional cases. An accomplished French oratorian, a member of the Academy, Father Gratry, published a letter on January 18, which in almost any other country than France,

coming from such a man on such a subject, at such a moment, would have caused, not a passing talk, but a profound impression. All the abuse was no longer for Döllinger and Montalembert. Father Gratry had a share allotted to him, sufficient to prove his importance. "Does God need your lies?" was a question he repeated with solemnity, as he dwelt on the false decretals and on the falsifications even of the breviary. His French clearness and point sent these reproaches home so as to be extremely cutting. It seemed as if accusing "the Church" of lying and forgery was a sin not to be forgiven. Few things were more discouraging for those who hoped that moral ground still remained for a reformation within the Church of Rome, than the perfect ease with which the benefits of the lying and the forgery were accepted, and the fury with which the crime of mentioning those incidents was denounced. "False decretals as much as you like," said Veuillot, "but the sense of the false decretals is the faith of the Church";^[295] so, if God had not needed the lies the Church had assimilated them. Father Gratry, said the *Civiltà*, never tires of calling the school which teaches pontifical infallibility, a school of error. Does he know where that school has fixed its abode, and holds its chair? If he does not know, we shall tell him. "Its home is Rome, its chair is that of the Roman Pontiff, is that of St. Peter."^[296] Father Hyacinth said, at a later time, "God never has need of lies, but lies often have need of God, and they are never so powerful as when they present themselves in His name."^[297]

Still, the weight of wrath continued to fall upon the original offender. The *Unità Cattolica* of January 25, in the letter of its Munich correspondent, called Döllinger a bag of wind and a whited sepulchre, and suggested that the Archbishop of Munich should prohibit theological students from attending his classes. The *Unità* shows that Dr. Döllinger in his works "has always hidden a rebellious spirit under a learning which was often that of a charlatan."

In the General Congregation of the 21st, as the Cyprian Archbishop who said Mass used the Oriental rite, the Fathers would have been unable to follow, but the Master of the Ceremonies, lifting up his voice, gave a signal for each important movement.^[298] In the Congregation of the Monday, Strossmayer spoke for an hour and a quarter (*Tagebuch*, p. 133). He insisted that reform was called for, and reform from the Pope downwards, and moreover that the whole of the canon law should be reformed. On the

following Tuesday, this last proposition was supported by the Bishop of Saluzzo. On the same day, a speaker not named regretted that the word "concubinage" should have been used, as it gave occasion to the world to say that celibacy was a failure. Friedrich, while vehemently sharing this regret, admits that no means were suggested for doing away with concubinage or immorality. The Curia, however, could not be blamed for the scandal caused by the discussion on this matter of discipline. No one of the official organs ever breathed a word on the subject. Monsignor Guérin, whose history, says the preface to the second edition, reproduces the Council entire, might never have heard of this subject, and the same is the case with Sambin. The *Acta Sanctæ Sedis*, even in Latin, are equally reserved. The title of the Draft Decree on the general subject of the life of the clergy is mentioned in *Fronde*. Henceforth we cease to be able to check the statements of the unauthorized writers by those of the *Acta Sanctæ Sedis* as to the names of those who spoke on given days. That amount of information was no more afforded. One day the record was that five spoke, another seven, and so forth. Who the speakers were, what they spoke upon, what they said about it, were matters swallowed up in the pontifical secret.

On the same day, the challenge to the College of Cardinals to reform itself was taken up by Cardinal Di Pietro, who admitted that such a demand might have been reasonable at Trent, at which time the Cardinals held many pluralities, but at the present day it was groundless. The only reform now called for was a financial one, as the revenue of the Cardinals was not adequate. He told the Fathers that if they only knew all, the Cardinals were not to be envied. This even Friedrich admits, saying that not once during the Council had the Pope summoned them to hear their opinions.

On January 27, Simor, Primate of Hungary, spoke on the life of the clergy, and recommended the "common life." Martin of Paderborn also advised that the cooks^[299] should be superseded, and that "common life" should be resorted to. Martin had appealed to Cardinal Hohenlohe to support him in a proposal that Protestant clergymen who wanted to join the Church of Rome should have both marriage and the cup in the Lord's Supper conceded to them. Verot, Bishop of Savannah, spoke on the breviary. He urged revision, stating that he durst not, without subjecting himself to condemnation, say what was in the breviary from Augustine. Hereupon the bell of Cardinal De Angelis rang loudly, and Verot was told that the Fathers could not be spoken

of in that manner. As we understand Verot, he had not found fault with the Fathers. The sons would not allow one another to say what the fathers had said. The American waited a moment, went on, and said the same thing of Gregory the Great. Now came a second call to order, and he was told that if he would not speak on another subject, he must leave the desk. So, after a few words more, he did leave it (*Tagebuch*, p. 138). The Prince Archbishop of Olmütz asked if the Primate of Hungary was ready to lead the "common life" with the canons of his chapter, adding that he should not object to lead it with his own chapter, but he feared that the canons of Olmütz would object. The following day, Melchers of Cologne supported the views of Verot as to the breviary. He censured the proposal to introduce lay brothers into the parsonages instead of the cooks. It would be better if the latter could be altogether got rid of; but as that was scarcely to be expected, it would be well to require that they should be fifty years of age, or at least forty. On January 31, Bishop Dinkel of Augsburg is said to have spoken against concubinage in the strict sense, but allowing it to the clergy in a wider sense. [\[300\]](#)

Perhaps, as, about the middle of January, men in the *Englischer Garten*, or Park, of Munich, lifted their hats to the Provost as he took his afternoon walks, they might fancy that the spare figure was weighted with rather more than a scholar's gravity. Neither the passing carriages, nor the race of *Isar* rolling rapidly; neither the fine effects of the westering sun behind the steeples of the city, nor the pleasant view from the brow beyond the river, could fix the old man's well-lighted eye. That eye was then watching the process which was putting the faith and labour of seventy years to a cruel test. The Church he had toiled to rehabilitate before the intellect of the Fatherland, striving, by letters, to connect her more firmly with the past, and to equip her more nobly for the future, had been cast into the cauldron. The very basis of dogma was to be changed. A new standard was to be set up. The adoption of that standard would change the relation of the Church to the Bible and to the Fathers, to General Councils and to the Episcopate, to the people and the king, to letters and all lights, to liberties, constitutions, and every human hope. Principles which had been charged upon them by Protestants, and which they had resented, saying that the accusers confounded opinion with dogma, were now lifting their heads in a General Council. He had striven in silence to avert the evil without raising a conflict of persons or names. But now the Infallibilists felt their conscience

oppressed by having to recognize him, and those like-minded with him, as Catholics. They could not enjoy the fulness of their own belief as long as the Church tolerated his creed. And the Infallibilists were the Pope, the Curia, the Jesuits, and the majority of the bishops, at least of the nominal ones. If there was yet a hope, it rested in the strong help which God often gives to the effort of one self-risking man. The moment was come either to run all hazards and trust to that blessing, or to float down the stream like one of those winter leaves on the Isar.

It was on January 19, just when Gratry was issuing the first of his letters, and when Darboy threw his marshal's baton into the midst of the enemy, that in the quiet house in Von der Tann Street, the formidable name of Döllinger was signed to a protest against the Infallibilist Address. Through the *Augsburg Gazette*, this presently rang all over Germany, and a little later echoed in every corner of Europe. "One hundred and eighty millions of human beings are to be compelled by threats of exclusion from the Church, of privation of the sacraments, and of eternal damnation, to believe and profess what hitherto the Church has never believed or taught." So began an appeal destined to elicit proof that large numbers of educated Roman Catholics, under all their external quiet, were agitated; and that at the same time the masses, whatever little opinions they might have, were as to action completely under the dominion of the priests.^[301]

It was now that Dupanloup wrote a letter to Deschamps, Archbishop of Malines. Two days after the opening session, Deschamps had published a reply to the famous pastoral of Dupanloup. It was at once inserted in the journals of Belgium, France, and Italy. Dupanloup, who had in France professed to expect in Rome profound tranquillity, found himself sharply attacked. He had warily reserved the merits of the question for argument in the secret ear of the Council, treating before the public only its accidents. But, cried Deschamps, you have pointed out the difficulties of a definition: how could you have the courage to do so?

When the brilliant Bishop of Orleans was ready for the press, he found that the press was in good keeping.

Father Spada [the censor] told me that an *imprimatur* was necessary, and at the same time said that such an *imprimatur* would be refused to me. Perhaps, Monsignor, you probably will think with me that, in these

circumstances, all discussion between us is impossible; and you will feel it natural that I should preserve the silence befitting the position in which we are placed.^[302]

The French thus saw their own prelates, under their own flag, deprived of the right to defend opinions identified with their national history. This fired Gratry, and added fresh bitters to the cup of the dying Montalembert.

Quirinus says (p. 201)—

The word "freedom" has nowhere so ill a sound as at Rome. Only one kind of freedom can be spoken of here—freedom of the Church; and, in their favourite and accustomed manner of speech, by the Church is intended the Pope; and by freedom, dominion over the State, according to the Decretals.

Some weeks later, Dupanloup did print his reply in Paris.^[303] You, he said to Deschamps, ask how I could have the courage to point to the historical difficulties of a definition of infallibility; but, my dear Lord, I ask you, how you can have the courage to close your eyes to them? Repelling the idea of acclamation, and insisting on a thorough sifting of the matter, he says, and the emphases are his own—

The Church in an act so solemn, one which she never recalls, ONE WHICH PLEDGES HER FOR EVER, ONE WHICH, UNDER PAIN OF ANATHEMA AND OF DAMNATION ETERNAL, IS LAID UPON THE FAITH OF ALL SOULS FOR ALL AGES, does not proceed inconsiderately, or without having elucidated all obscurities and difficulties (p. 8)... As to the truth of the doctrine, I reserve the discussion of that for the Council itself, in case the question is brought on (p. 9)... You belong not to that deplorable school of apologists who fancy that they are defending religion when they make history lie (p. 15).

He shows how even Spalding and his associates in their proposal for a method of establishing belief in infallibility different from an express definition, said that such a definition would

extend its effects to all past centuries, would revive all the disputes heretofore allayed, would afford to Protestant and to rationalistic science a new battle-field, and would open up to the enemies, of the Church a discussion upon the whole field of history, and the whole of the collection of Papal Bulls (p. 14). Quoting Melchior Canus, he says: Peter has not need of your lies, or of your adulations.... To no one, my Lord, will it be agreeable in Rome, and amid the difficult circumstances wherein we stand, to engage in a discussion as to the common Father, in an investigation of the most delicate facts of history, and in a dissection of texts of Scripture before Europe and before the world which are observing us (p. 16).... The Fathers at Nicæa did not proceed by way of a summary discussion, much less by way of acclamation written or oral (p. 17).

A few other expressions of Dupanloup may be recited—

Far from putting an end to the discussions in the press, it will cause them to break out more terrible than ever.... If the difficulties, theological and historical, of a definition are such that simply exhibiting them as I did involves by inevitable consequence a grave attack on infallibility itself, how could you say that the difficulties are nothing?... You had the confident idea that nearly all the Fathers were with you, and were going enthusiastically to vote the definition off-hand (p. 18).... Certainly in the Church there must be an infallible doctrinal authority; but is it necessary that this authority should be the Pope ALONE? Would it not suffice if it was the authority of the Pope and the bishops united? (p. 20).... I asked why Pitt thought it well before taking a step towards Catholic emancipation to consult the most famous Catholic universities of Europe on the question of the pontifical power. You have deemed it well to answer not a word (p. 23).... In the ninth century we lost about one-half of the Church; in the sixteenth at least a third of the other half. At the present moment perhaps a half of what remains is more or less broken in upon (*entamée*). We have to reconquer.... Would you all at once, as several bishops from America said to me yesterday, change for the whole of the Catholic clergy who live in the midst of Protestant populations the entire ground of religious controversy? (p. 24).... In France, the

Parliament, the Senate, the Legislative Corps, the Councils of State, the public officers, the bench, the bar, the young collegians, the army, the navy, commerce, finance, the arts, the liberal professions, the workmen of the cities, the electors in the country districts, the great mass of those who with us and elsewhere determine the course of affairs,—in a word, the nation, assuredly is not with you (p. 25).... Have you not heard the cry of the bishops of Germany, Hungary, Bohemia, and of so many others? (p. 25).... Three centuries ago a wave passed over Germany, a wave over England, Holland, Switzerland; and at this hour the wave has not subsided, but is still encroaching on the shore (p. 26).... Brazil is sick, Mexico is sick, the old Spanish colonies proceed from revolution to revolution, and it is my mournful conviction that what you, my Lord, are preparing, will give to the Church in all those countries a new and terrible shaking (p. 26).... Some say the great evil of our day is that the principle of authority is laid low. Let us exalt it in the Church, and we shall save society.... To think that by proclaiming the infallibility of the Pope you will roll back the revolution is, to my view, one of those illusions which sometimes, in human societies, desperate parties make for themselves on the eve of a supreme crisis (p. 27).

His statement of the condition of things before he first wrote would appear to be meant to depict what existed in Rome as he was now writing—

No, it was not unanimity as to the question debated among us which reigned ere I spoke. It was on the one side violence, and on the other side astonishment, silent and downcast. If any voice was raised, speedily was it covered with clamours and insults (p. 31).

This reply called down from Veuillot many pages of taunts, gibes, and sneers.

Means of humiliating the bishops of the Opposition were found by the sovereign, which seem new in both kingly and parliamentary warfare. Priests wrote against them, and the Pope sent to those priests for publication letters of approval, containing sharp cuts at the unfortunate prelates. To the Jesuit Ramière, the Pope said that he had set Maret "in contradiction with himself, so that you have constrained him to demolish the edifice with his

own hands" (*Friedberg*, p. 490). The Vicar-General of Nîmes had written against Dupanloup, and forth comes an epistle of Pius IX praising him for his elegant refutation of the empty sophisms which had caused a disturbance of minds deplored by all (*Friedberg*, p. 488).

Continental Catholic writers generally put Dr. Pusey as one of the most important promoters of the Church of Rome. Yet they were aware that he did not belong to it. In his second pamphlet Dupanloup spoke with feeling of the value of the Ritualistic party, both in England and America, as pointing to Rome. *Ce Qui se Passe au Concile* says (p. iii., troisième éd.),—"In England Dr. Pusey, the originator of the Ritualistic movement, which has led so many persons, eminent for intellect to the Catholic religion—Pusey, whose loyal sincerity no one ever suspected," had written that nothing would be more fatal to the prospect of reunion than a declaration of Papal infallibility. This was not likely to make much impression upon the Curia. They knew that what for England was called reunion, for Rome was called submission; which Manning told them would be facilitated by definition; and Manning served them so punctiliously that they were fain to believe him. Moreover, what Desanctis in that remarkable book *Roma Papale*, had many years previously described as the plan of the Curia for operations in England, would be little affected by a doctrine or two more or less. His account, in one word, was that they would mission England through the senses, leaving doctrines and arguments in the background. It was a question of spectacle, not of reason or Scripture. And love of spectacle was adorned with the name of aesthetics, and sensible Englishmen were to be led captive by the power of clothes. In this point of view, one who promoted the use of the chosen means might better serve the end from the very fact that he did not himself aim so low.

FOOTNOTES:

[293] We should be curious to know if the writer would now comment on these terms so doubtfully. Further study would probably have given greater decision. The meaning of the obedience of princes and nations was as distinct as possible from that of the obedience of private persons, whether Catholics or heretics. The Church is all through the movement proceeding, as *mother of civil humanity*, to secure the obedience of rulers and States.

[294] *Quirinus*, p. 195.

[295] Vol. i. p. 235.

[296] Serie VII. vol. ix. p. 685.

[297] Letter to the *Débats*, printed in *Le Concile du Vatican, et le Mouvement Anti-infallibiliste*, vol. ii. p. 63.

[298] *Acta Sanctæ Sedis*, v. p. 341.

[299] We use Friedrich's word. Housekeeper is the one generally employed in languages other than the German.

[300] *Fromman*, p. 96. As a Protestant author, Fromman is hardly ever quoted by us; but he is so careful, and in this case so specific as to date and person, that we do not feel at liberty to suppress his statement.

[301] *Friedberg*, p. 495. Also reprinted separately in *Stimmen aus der Katholischen Kirche*.

[302] *Friedberg*, p. 87.

[303] *Réponse de Mgr. L'Evêque d'Orléans à Mgr. Deschamps*. Duniol, 1870.

CHAPTER VIII

Church and State—Draft of Decrees with Canons—Gains Publicity—Principles involved—Views of Liberal Catholics—The Papal View of the Means of Resistance possessed by Governments.

"**I**NFORMERS against the Church," was, in a word, the name now hurled against the *Augsburg Gazette* and the *Times*. "Conspirators against human society" was the retort of the general press of Europe upon the Curia. The secret labour of five years was ruthlessly exposed by two unconsecrated offenders. How the "breach of the pontifical secret" had occurred, of which Cardinal Antonelli complained in despatch after despatch, may perhaps be known some other day. What we now know is that publicity took possession of the results, though secrecy had presided over all the processes. Even the bond of mortal sin had proved too weak for what Curran might have called the irresistible genius of universal illumination. The decrees, canons, and anathemas proposed on the subject of Church and State were now before the world.

On January 21, the Schema, or Draft of Decrees on the Church, was distributed to the bishops. Hefele told how a diplomatist laughingly boasted

that he had received one at the same time.^[304] This Draft was to that on faith what the application is to the sermon. It laid down principles in fifteen chapters, and reduced them to operative shape in twenty-one canons. Vitelleschi says (p. 85)—

Now, on summing up these Canons, what do they amount to? Sole religion, the Catholic; sole head, the Pope, "who has full and supreme power"; his laws superior to those of the State, on which he exercises his judgment "concerning the lawful and the unlawful," and disposes of permissions and punishments. Dante has imagined an Emperor and a Pope, who between them shall direct the world; but if the idea of these Canons were fully carried out with regard to civil society, there would remain the Pope only.

This object, the Pope only, which rests in the logical view of Vitelleschi, as the result of his examination of the Canons, is the same object which long previously stood before the illuminated vision of M. Veuillot, whose means of reaching conclusions were not so circuitous. The Pope only is the object which Archbishop Ciccioni even now sets out as the paramount figure of the future, albeit with no extatic confidence. And the Pope only is precisely that crowning beauty in the image of the world-empire which Cardinal Manning reproached Mr. Bryce with missing in his conception of the Catholic universe. Mr. Bryce, like Dante, was a dualist. Dualism, however, was to be done away with, except in the wholesome form of light and darkness, the two opposed forces. All the labour and the silence of the recent years had been employed in preparing an inauguration which vulgar eye was not to disturb till the King should burst forth in his plenitude of supreme authority with unerring judgment, so arrayed that all the tribes of Israel would hail the mystic David the one King-shepherd and Shepherd-king of a world at last unified.

The description of the effect of these canons given by Quirinus (p. 203) was not so elegant as that of Vitelleschi. He wrote for Germans menaced with a change; while the Romans to whom the Marchese spoke, had for ages been themselves delivered from dualism, and could see in the new measures only an effort to extend to all the human race that perfect Catholic unity, religious and political, of which their States had been the sole blameless example. They well knew who was the *spiritual David*, the one shepherd of

the one fold,—shepherd with sling as well as pipe, shepherd with sword as well as crook,—on whose future reign over one kingdom the eye of the Jesuit, gazing through the glass of Ezekiel, dwelt with rapture, expounding: "I will make them one nation in the land upon the mountains of Israel; and one king shall be king to them all: and they shall be no more two nations, neither shall they be divided into two kingdoms any more at all.... And David my servant shall be king over them, and they all shall have one shepherd."^[305]

Quirinus, writing as one to whom this unity had been perhaps gorgeous in the distance, but who saw it now in a new aspect, cried: "These transparent Decrees and anathemas may be thus summed up: the Christian world consists simply of masters and slaves. The masters are the Italians, the Pope, and his Court; and the slaves are all bishops (including the Italians themselves), all priests, and all the laity." Whether Quirinus had studied Tarquini's *à priori* system of the Perfect Society, we do not know; but any one referring to our analysis of it will see how closely it corresponds with the following, in which Quirinus sums up the doctrine of these Draft Decrees—

Three main ideas run through the Schema, and are formulated into dogmatic Decrees guarded with anathemas. *Firstly*, to the Pope belongs absolute dominion over the whole Church, whether dispersed or assembled in Council. *Secondly*, the Pope's temporal sovereignty over a portion of the Peninsula must be maintained as pertaining to dogma. *Thirdly*, Church and State are immutably connected; but in the sense that the Church's laws always hold good before and against the civil law, and therefore every Papal ordinance that is opposed to the constitution and law of the land, binds the faithful, under pain of mortal sin, to disobey the constitution and law of their country (p. 204).

One incidental notice of the Draft by Quirinus is, "regulating all relations between Church and State, and restoring the Papal supremacy over the bodies and souls of men" (p. 209).

The *Rheinischer Merkur* (p. 22) quotes the Ultramontane *Hausblätter* as asserting that the twenty-one Canons had all been long recognised as part of

the Catholic faith. No, says the *Merkur*, some of them were repudiated as calumnious by the Catholic bishops of England and Ireland in 1826. On the same page it says:

We do not want a centralized power of a theocratic complexion, claiming the right of interfering at will, and disturbing our political and social relations, and of reducing princes to vassals—a centralized power claiming that its Decrees shall bind the conscience as divine.... We do not want this apparatus of coercion for the Church—*contumaces salubribus pœnis coercendi*—for compelling the contumacious by wholesome penalties;—we know what that means!... We do not want under-satraps armed with whips; we do not want despotism, which, as well as heresy, is one of the gates of hell. Ready to render to God what is God's, we also wish to render to Cæsar what is Cæsar's, and we count it a precious birthright to be reckoned as good subjects by our lawful sovereigns; but just on this account do we regard Drafts of Decrees, the execution of which would cause us to appear as enemies of public safety and of dynastic order, in the light of attacks on our civil existence, and as calculated to bring us into the same position as that in which our fellow Catholics in the Russian Empire groan.

What would these Liberal Catholics have said had Reisach's Drafts not been "shipwrecked"? The twenty-one Canons place the affairs of this world so much at the discretion of the Pontiff, that proposals which alarmed the same men who brought these forward, must have been startling. In principle, they could hardly have claimed more than is claimed here; but possibly they contained formulæ for the application of principle, which might have attracted the attention even of those politicians who think it wise and practical to ignore principles. In nothing is Rome stronger than in her consciousness that when once she has succeeded in getting a principle recognized, she can afford to temporize as to its application, and for a while to temporize as to its application, and for a while to compromise as to details. As the preparations of Reisach had been kept back, and the Canons which carried the principles were presented, so we shall find that the Canons were eventually sacrificed, as too much entering into detail, in order to carry what embraced all.

The Decrees in question were clearly intended as a vehicle to carry over the doctrines of the Syllabus respecting Church and State from the domain of ideas into that of facts. The *Chapters* would furnish text for professors and preachers. The *Canons* would bind the conscience of every Catholic, on pain of anathema. Nothing further could be wanting than executive contrivances, such as probably the Drafts of Reisach were intended to provide.

The following is an abridged view of the *substance and effect* of the twenty-one Canons (*Documenta*, ii. p. 101):—

1. If any man say that the religion of Christ is not made manifest in a society, let him be anathema.
2. If any man say that the Church has no certain and immutable form, let him be anathema.
3. If any man say that she is not external and visible, let him be anathema.
4. If any man say that she is not one body, let him be anathema.
5. If any man say that she is not a society necessary to the obtaining of eternal salvation, let him be anathema.
6. If any man say that her intolerance in the condemnation of all sects is not divinely commanded, or that such sects ought to be tolerated, let him be anathema.
7. If any man say that she may err in doctrine, depart from her original institution, or cease to exist, let him be anathema.
8. If any man say that she is not a final dispensation, let him be anathema.
9. If any man say that her infallibility extends only to things contained in revelation, let him be anathema.
10. If any man say that she is not a Perfect Society, but an association (*collegium*) which may be subjected to secular rule, let him be anathema.

11. If any man say that bishops have not by divine appointment a proper power of ruling, which they are freely to exercise, let him be anathema.

12. If any man say that the power of the Church lies only in counsel or persuasion, but not in legal commands, in coercion and compulsion by external jurisdiction, and in wholesome pains, let him be anathema.

13. If any man say that the true Church, out of which none can be saved, is any other than the Roman, let him be anathema.

14. If any man say that Peter was not prince of the apostles and head of the whole Church, or that he received only a primacy of honour and not of jurisdiction, let him be anathema.

15. If any man say that he had not successors, or that the Roman Pontiff was not his successor in the primacy, let him be anathema.

16. If any man say that the Roman Pontiff has only a right of supervision or direction over the Universal Church, and not a full and supreme power of jurisdiction, or that his power over the Churches, taken separately, is not immediate and ordinary, let him be anathema.

17. If any man say that the power of the Church is not compatible with that of supreme civil power, let him be anathema.

18. If any man say that the power necessary to rule civil society is not from God, let him be anathema.

19. If any man say that all rights among men and all authority are derived from the State, let him be anathema.

20. If any man say that the supreme rule of conscience lies in the law of the State, or in public opinion, and that the judicial power of the Church does not extend to pronouncing them legitimate or illegitimate, or that by civil law that can become legitimate which by divine law is illegitimate, let him be anathema.

21. If any man say that the laws of the Church have not binding force unless confirmed by the civil power, and that it is competent to the civil power to judge or decree in causes where religion is implicated, let him be anathema.

The logical succession of ideas was manifest. The first five Canons established the principle that the Christian Church is a society which has Form, Visibility, Unity, and is necessary to salvation. The next series pronounced this Church to be Intolerant (6), Infallible (7), Final as a dispensation (8), Infallible in matters not contained in revelation (9), a Perfect Society not subject to the civil power (10), ruling by bishops (11) and possessing legislative, judicial, and compulsory power (12), because none can be saved out of her (13). The fourteenth Canon, and the two following ones, establish the unlimited dominion of the Pope over all bishops; while the eleventh establishes the ruling power of bishops, but leaves the sphere of it undefined, not even saying that it is over the Church. And this undefined ruling power of bishops is placed between the independence of the Church in relation to the civil power on the one hand, and her own compulsory power and the absolute authority of the Pope over the bishops on the other.

The seventeenth Canon affirms that the power of the Church is compatible with civil authority,—which without a doubt it is, so long as the civil authority abides within the limits traced for it by the Church. That authority may also, in the sense of Rome, be, in its order, supreme,—that is, not subject to any other civil authority, but always subject to the Pope, who is an authority of a higher order than the civil. The eighteenth Canon bases all civil authority on divine right. This is capable of more than one interpretation. First, it may mean that all existing authority is to be viewed as from God, whether it originated in conquest, prescription, or vote; or, secondly, it may mean that no civil authority is legitimate which has not divine sanction; and as among the baptized that sanction cannot be received except through the Pope, the consequence of such an interpretation would be obvious. The nineteenth Canon deliberately confounds natural and legal rights, as if the laws that create and protect legal rights were not themselves the outgrowth of natural rights. In the same way it confounds natural authority and legal authority. The twentieth seems to put civil law and mere public opinion on the same level, and places both one and the other under the judgment of the Church, and that as to their legitimacy or illegitimacy. *Judgment*, of course, does not mean criticism, instruction, remonstrance, or warning. It means what the word would mean anywhere, in such solemn legislative language, namely, judicial sentence. *Legitimacy* or *illegitimacy*, again, does not mean wisdom or folly, goodness or badness, but means what

it says. Divine law includes Church law, and what it forbids no civil law can warrant. Therefore the power claimed in this fundamental proposition is that with which we are already acquainted in the literature of the movement for reconstruction, that, namely, of declaring what laws of a particular State are or are not legitimate; every such State being considered as a province of the universal theocratic monarchy.

Perhaps no principle embodied in these Canons lies so deep under the whole movement against free government in religious and civil society as the principle that confounds civil rights with natural ones, and, by denying that the State is the source of all rights, covers the denial of the fact that it is the source of legal rights. As to legal rights, we, sitting free and thankful amid our books, our friends, and our blessings, no more know of any source of such rights except that benign ordinance of our Father in heaven, the civil law, than did the teacher of Plato, when by law deprived of his natural rights, he sat in his cell while the deadly cup was being prepared.^[306] No, the State is not the author of rights, but it is the guardian of them. Practically all our natural rights are but a common for any beast to trample and to browse upon till the State surrounds them with the sacred fence of law; then do they turn into garden sward, and well-watched flowers and fruits exceeding fair. But these principles, which strip the State of all moral mission, which empty law of all moral character, which rob society itself, and all the institutions of society, of any aim moral and eternal, of any but a temporary, material end, and which transfer all that is noble to the priesthood alone, cover one of the darkest attempts that art could direct against all the foundations of public life. The moral mission of the State is written on every page of the Bible, and the political mission of Christian priests not on a single one.

The State in renouncing for itself the right to dictate to men their faith and worship, does not empty itself of a moral character, but, on the contrary, takes the highest possible moral ground. In that renunciation it does not disavow the faith and fear of God, but, on the contrary, avows its persuasion that the rights which affect the conscience of His creatures are so sacred as not to be sufficiently guarded except in His hand alone. Of shallow pretexts for oppression, none was ever shallower than the assumption that because society as such says that it dares not to come between God and the soul, therefore does it say that as society it has nothing to do with God.

The Court was evidently not disposed to leave politicians under any delusion. The *Civiltá* wrote on the politicasters and the Council, ^[307] as if to make statesmen feel that they had either to submit or else to bear the brunt of the revolutionary forces, from below and from above. A principal object of the Council, says the article, had avowedly been "the restoration of peace in the orders, even the political ones, of Christendom." Confessing that statesmen, or *politicasters*, as it called them, evinced anxiety, the *Civiltá* named measures to which they might be tempted to resort. These were threefold—first, making new preventive laws; secondly, restoring obsolete ones; thirdly, separating the Church and the State. By preventive laws must be understood any legal bar set up to impede the Pope in any exercise of his legislative, judicial, or coercive power in a given realm. Preventive laws, old or new, it pronounces to be weapons which would infallibly "burst or break in the hands of governments, if they attempted to use them."

The method by which this result would be brought about is indicated in a way which shows how *divine* law can loose what civil law binds.

There are two cases in which a subordinate is not obliged to obey a superior; the first, when a contrary precept exists of greater authority; the second, when the superior gives commands in things in respect of which the subordinate is not placed under him.... An inferior authority is not to be disobeyed when a superior one prohibits. Now, the authority of the Church, assembled in Council, is superior to the authority of the State.... It is superior in the sense in which the reasoning faculty in man is superior to the sentient and vegetative faculties.... Since the ecclesiastical authority is superior to the civil in such wise that, in matters affecting both, the acts of the civil must be subject to those of the ecclesiastical, it is manifest that if a collision arose between the definitions of the Œcumenical Council and the laws of the State, the latter would cease, by that fact alone, to have any binding force whatever.

The same conclusion may be deduced from the words in which the divine Founder of the Church gave authority to His disciples to teach His doctrine to all nations. *All power is given to Me in heaven and in earth. Go and teach all nations.* From the fact that, in virtue of His divine generation, the Father had conferred on Him all power, celestial

and terrestrial, Christ argued thus, Therefore, go ye and teach all nations my doctrine; and thus He clearly demonstrated that His Church was invested by Him with *such a right of teaching that it would never be lawful for any power to offer to her opposition*. Therefore, should the State require obedience to laws contrary to the definitions of the Council, it would do so without a true legal right. And if, notwithstanding, it employed force to procure obedience, it would fall into tyranny, odious to the conscience and ruinous to itself.... By no means does the authority of governments extend to commanding what the Œcumenical Council may prohibit, or to prohibiting what it may command; and if governments should arrogate to themselves the right of doing so, in vain would they presume upon being able to oblige Catholics subject to submit; and should they have recourse to force, they would plunge themselves into tyranny which would not long serve the interests of those who displayed it.

The principles are very simple and firmly fixed. While submission to *legitimate* authority is a duty, resistance to "tyranny" is a right. Any authority used in contravention of the decrees of the Church ceases to be legitimate, runs into tyranny, and is to be disobeyed. Hence the duty of obedience to civil rulers is taught in the term "*due* obedience," and only the Pope can judge when obedience ceases to be due; but it is judged already that due it never can be, in any possible case, wherein the civil law contravenes the directions of the ecclesiastical authority. How States which profess to accept the corporation which insists on these principles as a true and worthy teacher, or which look on it as anything but an erring and dangerous caste, are to escape dissolution, it is not easy to see.

It is not hard to call the hopes of victory in the impending struggle monkish dreams, nor easy to dispel the show of probability in the following argument. Hundreds of examples in the past, where persistent ecclesiastical agitation triumphed over political instability, would rise up to the memory of well read Jesuits, as making their calculations seem like those of positive philosophers, and the hopes of journalists and members of Parliament like those of enthusiasts, in the sense of men who look for ends without using means.

"What would such laws come to in case they were enacted? They would come to be laws of no validity and no effect in what touches belief: of no validity because essentially null as to binding force; of no effect because unable to prevent Catholics from a full adhesion of mind and heart to the dogmatic definitions of the Church. And as to external acts and matters of discipline, such laws would become a dead letter, or a criminal oppression. A dead letter if the governments did not feel that they had nerve to put forth the strong hand and enforce the execution of them, in which case the laws would become a *ridiculous comedy*. Or a criminal oppression if, feeling themselves possessed of force, they should employ it to execute laws tyrannical, as being opposed to public liberty, public religion, and public faith."

As to separating the Church from the State, the *Civiltá* proudly quotes the *Monde* of Paris:—

The Catholics have number and force on their side ... before apostatising the French government would think twice ... the government surely would not give the signal for its own fall, and for a long revolution.

The separation of Church and State is here spoken of evidently in the ordinary sense; but the charge of having already separated the State from the Church was one frequently brought against the government of France, when the language employed was that of the initiated. In that language the Draft of Decrees now under consideration described separation of the State from the Church as the denial of the right or duty of the State to coerce by the appointed penalties, except so far as may be demanded in the interests of public peace, those who violate the Catholic religion. [\[308\]](#)

FOOTNOTES:

[304] *Unitá Cattolica*, March 4, quoting *Volksblatt*.

[305] See exposition of Ezek. xxxvii. 21-24, *Civiltá*, VII. vi. 293.

[306] Compare the *Crito* and the *Phædo*.

[307] Serie VII. ix. 257 ff.

[308] Cap. xii. *Doc. ad. Ill.* ii., p. 96

CHAPTER IX

The Courts of Vienna and Paris manifest anxiety—Disturbances in Paris—Daru's Letters—Beust moves—His Despatches—His Passage of Arms with Antonelli—Daru's Despatch and Antonelli's Reply—Daru's Rejoinder—Beust lays down the Course which Austria will follow—Arnim's Despatch—The *Unitá* on the Situation—Veuillot on the Situation—Satisfaction of the Ultramontanes.

THE fire of small arms from the press only irritated the Curia; but presently the sound of heavy guns began to be heard, and ended in a boom, first from the Burg and next from the Tuileries. The two Emperors who, with the Pope, held a share in the sovereignty of Austria and France respectively, began to be aware of the fact that they might find themselves left by their senior partner exactly in the legal position which we have seen Phillips describe as that of the State in relation to the Church—the position in law of a married woman as compared with her husband. It will be remembered that, according to the doctrine of the *Civiltá*, every Catholic State must have two kings. It will further be remembered that all the Pope's subjects are bound to observe his law before that of the nation. If, therefore, the universal ruler could promulge what laws he pleased, and all these laws were to take the foreway of any competing laws of the State, it was plain that of the two kings in each State, the local one was at the mercy of the universal one.

On January 18, the very day on which Gratry dated his famous letter, and on which, probably, Döllinger penned his protest dated one day later, Count Daru wrote a letter, of which the press got hold: "They cannot be so blind," said the Foreign Minister of France, "as to suppose that it would be possible for us to keep our troops there a day after infallibility was proclaimed." He hoped that the Holy Father would yield to the counsel of the most illustrious of the French bishops. A fortnight later (Feb. 5), in a second letter, he expressed fears that the majority would take advantage of its powers, and said that he had caused Cardinal Antonelli to be apprised of the truth through M. de Banneville; but he adds: "It is clear that everything may be thrown into uncertainty by the conduct of the Italian, Spanish, and missionary bishops, who seem to live in a world apart." He again speaks of the impossibility of keeping up a French garrison, and declares that the Propaganda seems to take no account of the Concordat, and that perhaps violence may be done to the pact which unites France with Rome. The revolutionary party, he affirms, is not only conspiring, but actually moving, and Rome must be blind to put weapons in their hands by breaking the force of the Conservatives, and compelling rebellion by the Syllabus.

This language betrays the weakness of statesmen who rely on Rome, as if it was a Conservative agency, but it would cause little anxiety to the Curia. They had forty thousand drilled men in France holding important places under the State. At this very time the movements of the revolutionary party in Paris were dwelt upon by Don Margotti in the tone of an enthusiastic bone-setter, who, hearing of accidents, felt sure that he must be called in. On February 11 the *Unità Cattolica* said that—

"Bonaparte had cause to fear barricades in Paris. He and his minister had been setting up barricades against the Council, and so the revolutionists were setting up barricades against him. The Church always conquered the barricades of Gallicanism, but Bonaparte may not conquer those of Paris. Some morning we may find that he has fled. The Emperor would have set his house in order in a better manner, if, instead of launching into the parliamentary system, he had declared from the day the Council was announced that he would submit himself and France in everything and for everything to its decision...."

The very next day it is added—

"The troubles in Paris are a vengeance of divine justice on Napoleon for his misconduct in Italy. Had he not prevented the Pope from sending his cousin, Count Pepoli of Bologna, to the galleys, he would not have had to imprison Rochefort."

If the same men who thus detested Napoleon threatened the Italians with French arms, it was simply from the belief that the Papacy had a stronger hold upon France than the empire. After saying (February 8) that modern society is to the Church what the world was to Christ, and that the first Syllabus against the world was compiled by Christ, Don Margotti says on the next day to the Italians—

You will not go to Rome, because France will always oppose you; and she does so because, if she did not, the world would. If the free-thinkers do not believe in miracles, let them see one in this—that Rome will never be taken from the Pope. Even a government with Rochefort at its head would defend the temporal dominion of the Pope-king.

There is a solemn passage in Vitelleschi where he speaks of the frequency with which governments find that they have to face some revolutionary movement at one and at the same time as that in which the claims of the Church are being pressed upon them. He does not pronounce that the two facts are in individual cases connected, but he does say that the frequent recurrence of the two simultaneously is "an organic phenomenon worthy of the deepest attention" (p. 235). Rechtbaur in Vienna said, "They threaten revolution if the State does not renounce its rights"; and a couple of days after it had quoted this remark, the *Unità Cattolica* said—

Diocletian left a long tail behind him. His tail consists of those politicians who protest against the Syllabus as a declaration of war against modern society. Beust in Vienna, Hohenlohe in Munich, Ollivier in Paris, were not tranquil like the priest in Rome. Sooner or later they would all be engulfed in the stormy sea of revolution—all but the Church and the Pope. The Syllabus would abide for ever, and with it the Canons of the Vatican Council.... The Pope has proved by

facts that he knows how to govern better than any other sovereign. We defy any emperor whatever to govern a country fourteen years as Pope Pius IX has governed Rome.

The letters of Count Daru, quoted above, caused inquiry in Rome. Quirinus asserted that the only existing copy of them was in the hands of the English government. It was known that Lord Acton was a near relation of the English Minister for Foreign Affairs. Putting this and that together, the Curia was inclined to say that Quirinus must be Lord Acton; and it is confidently affirmed that Monsignor Randi, whose spiritual duties were those of Director of Police, was taken into consultation with the Pope as to whether it would or would not be expedient to banish the suspected English nobleman.^[309] The *Unità* tried to make capital against Dupanloup out of these letters. It could not believe that the Bishop of Orleans would write to Daru and tell him what passed in the Council (March 8).

The anxiety felt at Courts in Catholic nations had now penetrated the mind of Count Beust. On February 10 he penned a remarkable despatch, in which he recited his pacific intentions and his innocent hopes, as indicated in his treatment of the Council hitherto, and especially in his rejection of the overtures of Bavaria. He was now, however, obliged to confess that, in Rome, there was a manifest determination not to acknowledge, nay, more, not to tolerate, that liberty which Austria claimed for the State in civil legislation. He now confesses to "alarm," and affirms that the Decrees of the Church "would dig an impassable gulf between the laws of the Church and those which govern the greater part of modern societies." He plainly declares that Austria would reserve to herself the right of interdicting the publication of any Act infringing the majesty of the law, and that every person who should disregard such prohibition must bear the legal consequences. This despatch was followed by one to Berlin,^[310] pointing out how delicate had been the position of Austria in the present transaction. The empire was passing through an internal transformation. Hence arose a special necessity of maintaining the supremacy of law, and a corresponding expediency of avoiding internal conflict. In addition to reasons of State for not identifying his policy with that of the minority of the bishops of the Council, Count Beust alleged that those prelates found that any interference on the part of governments turned to an embarrassment for themselves, because they were accused of being the instruments of the political rulers,

and he felt that it was not the bishops but the Cabinets that must defend the rights of States. A third despatch was directed to Munich.^[311] In this, Count Beust intimated that Prince Hohenlohe might naturally think that it would have been better had the Count in time seen the force of his recommendations. Parrying this objection, he strongly urged united action, and stated that Austria was now ready to co-operate in a matter that evidently affected the common interests of all governments. The effect of all this was a formal visit of Count Trauttmansdorff, the Austrian ambassador, to Cardinal Antonelli. According to the report of the Count, the Cardinal had really nothing to say beyond the most commonplace evasions. The Decrees were still subject to discussion, and, on the other hand, interdicting the publication of Decrees in a certain country did not deprive them of their validity. Besides, he could not see how prohibiting the publication of the laws of the Church could be consistent with the policy which consisted in giving liberty to the publication of anything. Moreover, all the world knew that, while Rome affirmed principles, she would be very reasonable and gentle in the application of them, and none need to take the least alarm. Count Trauttmansdorff expresses his satisfaction with the attitude of the German bishops, but thinks that Austria has lost her influence by her recent changes of policy, and especially by her attacks upon the Concordat. He expects, on the contrary, great effect from the exercise of French influence.

The reply of Count Beust to this despatch was prompt and clear. True, he said, Decrees of the Church retain their validity though rejected by the government; but this was the very circumstance that showed the gravity of the position. It would become a serious matter, both for the Church and for Catholic governments, if laws which were valid for the one, were repudiated by the other. Again, as to the Cardinal's remark that refusing the Church liberty to promulge her laws was scarcely consistent with professions of giving liberty to publish anything, Count Beust thought that this remark could hardly be serious. "Respect for the law is the basis of all liberty," said the Count, "and liberty which passes that boundary, becomes licence." But this arrow would fall blunted from a conscience covered by the buckler of the Vatican. Any Vaticanist would simply say, Respect for a higher law is not disregard of law; and whenever Rome has spoken, her word is the higher law, respect for which is the real basis of order.

The reply of Antonelli to the despatch of Beust is a singular document. He is so generally credited with ability as a diplomatist that one would fear to say, even if one thought, that it is anything but an able paper, whether viewed in an intellectual or a diplomatic aspect. He states that the remonstrances of Beust were expressed in "not very delicate terms," and in weaker and much less courteous forms puts forward the arguments which we shall presently find employed in his reply to Daru. So far from accepting the reproach of want of delicacy, Beust instantly and formally repelled it, and said that the Pope's Nuncio, when appealed to, could hardly find an expression in his despatch on which to attempt to sustain the allegation of the Cardinal. He demanded a copy of the despatch, and, as soon as he had obtained it, instructed the ambassador at Rome to thank Antonelli for granting it, and to tell him that he had immediately laid it before the Emperor.^[312] Whether the Emperor thought the despatch respectful to a power such as his we cannot say.

The day after that on which Count Trauttmansdorff reported his interview with Cardinal Antonelli, Count Daru, in Paris, despatched an important document to the Vatican. According to an analysis of it, contained in the reply of Antonelli,^[313] the Count summed up the effect of the Canons in two propositions. First, the infallibility of the Church extends, not only to the deposit of faith, but also to all that is necessary to its preservation. Secondly, the Church is a divine and perfect society, and exercises its powers in two tribunals, the interior and the exterior. She is absolute in the domain of legislation, judicial procedure, and coercive force; and moreover exercises her power with full liberty, and in independence of any civil power whatever. The Count points out that the claims of the Church are now extended to authority over history, philosophy, and science, and involve an absolute subordination to the authority of the Church of the very principles of a national constitution, the rights and duties of governments, with the political rights and duties of citizens, both electoral and municipal. They are extended even to everything included in judicature and in legislation, in respect both of persons and things; to the rules of public administration, to the rights and duties of corporations, and in general to all the rights of the State, not excepting the right of conquest, and that of peace and war. Is it to be imagined, asks Count Daru, that princes will bow their sovereignty before the supremacy of the Court of Rome? Considering the

protection granted by France to the Holy See for twenty years past, she has special duties before the world, and he, therefore, claims that projects of laws which are to be laid before the Council shall be communicated to the French government, and that time shall be allowed to forward the observations that may be deemed desirable before they are pressed for decision.

The reply of Antonelli to Daru has been generally looked upon as one of the ablest specimens of his skill. Unless at the moment the greatest daring was the greatest skill, we must think the impression of skill is made chiefly on the minds of those who have not carefully studied the Vatican dialect. It would seem that Count Daru, or his advisers, were perfectly aware of the meaning of the document; and to any one who was so, a more absolute statement of Papal suzerainty can scarcely be conceived. The technical term "direct" plays an important part in the various assertions. The Cardinal does not deny the extension of the Papal authority to any one of the matters pointed out by Daru. He never denies that that authority is absolute, but always takes care to couple with the word "absolute" the word "direct"—it is not "direct and absolute"; and the real meaning of much of the despatch would be brought out by the simple question, which any ecclesiastical adviser of the French Foreign Office *who was true to the government* would ask, Is it indirect and absolute? Moreover, the blank statement that the kingly power depends upon the priestly, is, in the form in which Antonelli puts it, an extension even of the ordinary Jesuit doctrine, which couples the dependence of the kingly power upon the priestly with several qualifications, practically not amounting to much, but theoretically necessary to be kept in view, because they enable men to seem to deny what they mean to maintain. Commencing by a complimentary paragraph as to the protection of France and the gratitude of the Pope, Antonelli goes on to express great surprise that the Canons should cause so much uneasiness. They only expressed the maxims and fundamental principles of the Church, published in all forms, taught in the schools, maintained for ages, and often approved of even by civil governments. The Church, continues Antonelli, never claims to exercise a "direct and absolute" power over the political rights of the State. Having received the mission to lead men, whether as individuals or as constituted into societies, to a supernatural end, the Church had received the corresponding authority to judge the morality of all acts interior or exterior, in respect of their conformity to laws natural and *divine*.

"As no action, whether commanded by a supreme power or freely performed by a person, can be divested of a quality of morality or justice, it follows that the judgment of the Church, though directly turning upon the morality of actions, indirectly extends *to all matters with which morality is connected*." But this is not the same as direct interference in political affairs, which, by the order established by God, and by the teaching indeed of the Church, belong to the temporal power without any dependence on any authority. The subordination of the civil power to the religious one is in the sense^[314] of the superiority of the priesthood. Hence the authority of sovereignty depends on that of priesthood, as human things depend on divine, and temporal on spiritual. And if temporal felicity, which is the end of civil power, is subordinate to eternal felicity, which is the spiritual end of the priesthood, it follows that to attain the end towards which God would have them respectively tend, the one power is subordinate to the other; and thus, as between them, there exists in one of the two a subordination of functions as there exists a subordination of ends.

Therefore, proceeds the despatch, if infallibility does extend to all that is necessary to conserve the faith, no prejudice will, on that account, arise to science, history, or politics. Of course (we may interject) the reasoning is, that any subordination arising from a divinely-appointed order cannot be the cause of prejudice, but only of advantage. Infallibility, he proceeds, has been exercised in times past, and princes have had no occasion to disquiet themselves. If the Church has been constituted by her divine founder a true and perfect Society distinct from the civil power and independent of it, with a plenary threefold authority, legislative, judicial, and coercive, no confusion will arise in the movements of human society, or in the exercise of the rights of the two powers. The Church does not exercise, in virtue of her authority, "a direct and absolute" interference in the principles and constitutions, in the forms of civil power, in the political rights of citizens, in the duties of the State, and in the other matters enumerated in the despatch of the minister.

Almost the only thing not clear in the remarkable State paper in which Daru replied to this despatch,^[315] is the way in which he understood the last remarks we have quoted from the Cardinal. He speaks of them as being important, but in what sense? As showing a wish to allay the impressions made by the Draft of Decrees, which is all the Cardinal really professes? or

as containing any statement properly calculated to allay those apprehensions? Count Daru had evidently not read hastily, and had not been without clear-headed interpreters. He could not, for a moment, think that Antonelli had said that the Church had no authority to interfere in political matters, when he really had said no more than that she did not *exercise* a "direct and absolute" interference, by virtue of her authority. No more could Count Daru suppose that saying that she did not do so was a promise that she would not do so, although, even had such a promise been made, couched in the terms employed by Antonelli, the word "direct" would have deprived it of any practical value. Every other portion of Count Daru's Memorandum must have made the Pope, to whom it was submitted, feel that the Minister of France understood the intentions of the Vatican.

The more one examines the doctrine of this document, the more impossible does it become to overlook the fact that, in the main, it amounts to the complete subordination of civil power to the religious society.... Unless we refuse to words their true and natural meaning, we cannot escape the conviction that the Draft Decree on the Church has, for its object and end, the re-establishment, in the entire world, of doctrines which would place civil society under the empire of the clergy.... Under the formidable sanction of the anathema, the infallibility and authority of the Church are to be extended, not only to truths handed down by revelation, but to all things that may appear necessary for preserving the deposit of tradition. In other words, her infallibility and authority have no other limits than those which the Church may herself assign to them; and all principles of civil order, politics, and science, fall, directly or indirectly, within their range. It is on this almost boundless field that the Church is to exert the right of pronouncing decisions and promulgating laws, binding the conscience of the faithful, independently of any confirmation on the part of the political authority, and even in direct opposition to laws emanating from it. It is on this domain, the bounds of which, it appears, the Church alone may fix, that the Canons ascribe to her a complete power, which is at once legislative, judicial, and coercive, and is to be put forth in the external tribunal as well as in the internal,—a power the exercise of which the Church may assure by material penalties, and Christian princes and governments would be bound to lend their

assistance by chastising all who should attempt to withdraw themselves from under her authority.

No wonder that Count Daru draws the inference that "governments would retain no power, and civil society would retain no liberty, but the power and the liberty which it might please the Church to leave to them." The dearest rights of States, their political constitution, their legislation on property, on the family, and on instruction, "might any day be called in question by the ecclesiastical authority." Moreover, it is now proposed that to all this shall be added Papal infallibility. *"That is to say, after having concentrated all political and religious powers in the hand of the Church, they will concentrate all the power of the Church in the hand of her head."*

As to the artifice, that only principles were to be carried, but that the application of them would not be enforced, Daru says, No such statement suffices to reassure us. What, he asks, Are people in the forty thousand parishes of France to be taught that they are free to do that which they are not free to believe? He will not even treat this representation as grave. He gives the Church credit for intending a serious work, and, therefore, when once she has inscribed a maxim among the immutable truths, she will try to bring it into practice. The Pontiff has not assembled the bishops of the whole world to promulgate sterile laws.

Antonelli had alleged that the principles in dispute were not new. That, replied Count Daru, he knew too well, but kings and nations had never accepted those principles, and the attempt to establish them had always, even in the middle ages, caused bloody conflict. He concluded by declaring that if the propositions were adopted, they would have the inevitable consequence of bringing about grievous troubles.

The French government declared its intention of demanding that a special ambassador should be admitted to the Council. This Don Margotti hailed, first as a victory of the Council, and then as one of the most splendid victories of Pius IX. The ground of this professed exultation was that abstinence from the Council meant the separation of Church and State. "The Lord be praised, who is preparing greater triumphs for His spouse!" France trembles for her revolution and her Gallicanism. [\[316\]](#) So can voice and face be changed in a moment.

Beust, in further despatches, declined any proposal for sending ambassadors to the Council, on the ground that governments would, by such an act, make themselves, in some sort, parties to its proceedings. He had laid down and firmly adhered to the principle of abiding within the line of purely political action. That principle, he declared, fully covered the two steps of interdicting all publications exciting to contempt of the law, and punishing all persons guilty of any contempt of it.^[317] But he instructed Count Trauttmansdorff to support the French with all cordiality, in the demand that matters touching political interests, which were submitted to the Council, should be communicated to France before being enacted. But, on the part of the State, he could not take up theological arguments or plead the interests of the Catholic Church. He would take his stand on the interests of the State only, and tell the Court of Rome that, if it provoked a conflict, Austria would not give way to its decisions. For similar reasons, he must abstain from identifying the government with the bishops of the minority. Approving and sympathizing with their position, he nevertheless felt that they might come to change their ground, and accept what the government could not accept.

The French government applied, also, to the North German Confederation to support its representatives. Bismarck was deliberate but firm. On April 23,^[318] Arnim sent in a despatch, cordially supporting the claims put forward by Daru. He said, that the Decrees, so far from being any vague menace for the future, were rather calculated to revive, and surround with a new dogmatic sanction, certain pontifical Decrees sufficiently known, and constantly combated by civil society in every age, and of every nation. An earnest wish to shun a collision pervaded the despatch.

The impression made upon the Curia by these appeals may perhaps be better gathered from Don Margotti and M. Veuillot than from Antonelli's despatches. On March 3 the *Unità Cattolica* says, France and Austria have really remonstrated against the proposed definition of infallibility. They are afraid of the doctrine of Christ. If they would only adopt the Council and its doctrine, it would restore even their finances. "Do make an experiment. You have tried a thousand constitutions in France and Austria: why should you disdain to try the true Catholic constitution?" Let those two countries faithfully proclaim the doctrine, accept and spread it among the people, "and in less than a year you will confess that it is a great salvation for the

French and Austrian empires." This is followed by a letter from a professor of theology on the opportuneness of defining the dogma of the personal infallibility of the Pope. He contends first that it would—

give a blow to Liberalism, which is the doctrine of human infallibility; for representative assemblies claim a true infallibility, because the decrees of such assemblies *are not reformable by the Church*; but if a single man alone is declared infallible, they all, whether individually or collectively, become fallible, and must receive from him their rules in jurisprudence and legislation, and every institution or ordinance declared by the Pontiff not to be good is, without appeal, rejected as false and corrupt. Liberalism, wherever it prevails, converts rulers into tyrants and subjects into slaves! The spectacle of seven hundred bishops giving up all to the Pope will restore the idea of legitimate authority.

Anticipating the *final* struggle against the Church, he says, "It is of the utmost importance that the Church bind up her people in the firmest unity; for the battle will be sore, and she will escape only by divine intervention." On March 4, the *Unitá* says that the Council is assailed by traitors. The devil always has a foot in good things, but he has two in the Council. Satan entered into the deputies of Italy, then into the body of Prince Hohenlohe, then he passed on to Döllinger, to Père Hyacinth, and to Père Gratry. The devil had entered into the cabinets of Beust and Daru, and into the palace at Munich, where Döllinger had been admitted to the same honours as formerly had been granted to Lola Montez.

M. Veuillot^[319] imagines a conversation between a Catholic and a Liberal Catholic, of which the following is a condensation. It shows the kind of information which was granted, and the kind of argument which was welcome, to the forty thousand educated men on whom largely depends the fate of all French governments *which attempt to govern through them*:—

The governments are displeased.— Why?— Because!—-- What of that?— You offend common sense. The cause is the dogma of infallibility.— But the Holy Spirit?— It was not the Holy Spirit that signed the petition for infallibility.— Did He sign the other? — The other is inspired by the highest wisdom.— So be it. Both

call upon the Holy Spirit and He will come.— He will not come. —Why?— The Rules of the Council are bad, the Hall is defective, discussion is impossible, the Council is not free.— What? the Fathers can read, study, pray, speak, and the Council is not free!— - No, discussion is physically impossible, and it is from the shock of discussion that light breaks out just as from the concussion of flints. — The Council has no need of that kind of light which fires powder. — The governments are up against infallibility.— Let them come down.— They'll make you come down yourself.— Allow me, if you speak to me, upon my word of honour, I am not the Council; and if you speak to the Council, it will answer, as it always has done to good advisers of your sort.

I fear God, dear Abner.

After this comes what with M. Veuillot's readers passes for argument, In the present state of law in regard to religious liberty, governments have nothing to do with infallibility but to study the new situation which it will create, and to conform their conduct to it, as liberty requires of them. Either they will voluntarily respect liberty, or they will encounter its defenders and sustain the combat. The governments ought to know that Catholics mean not to give up anything of their right, and of the fulness of their life. As to the Church, continues M. Veuillot, she manages her affairs as it suits her. She looks beyond governments, beyond generations. She sows for the future, she constructs for centuries. Although she desires not to put governments to inconvenience, *it must be allowed that her compassion and her complaisance towards these foreigners must have their limits*. She bears the heavy burden of freedom of worship, and she takes the light advantages of it.

Further on we find the same sinister reference to disturbances as in Don Margotti (p. 246):—

A letter is talked of from one of our ministers, who, it would appear, says that the difficulty of the government is not in Paris but in Rome. While this letter of the statesman is being read in Rome, barricades are springing up under his feet in Paris, and barricades are difficulties.... The head of the Church is always a great statesman, and ends by

solving the difficulty. When statesmen will go to school to the Pope they will do marvels; but the world must not look for that just yet.

It is well known, says M. Veuillot, returning to the sore point of the hints thrown out by Daru about withdrawing the troops, that if Daru withdraws the French sentinel from the door of the Council, many sentinels would be withdrawn from other doors in France (vol. i. p. 328). No wonder that Italians speak of the *Univers* and the *Rappel* as kindred, if hostile. Rochefort and Veuillot are the two poles of the same violent hatred of ordered liberties and moderated power.

FOOTNOTES:

[309] *Fromman*, p. 91.

[310] *Friedberg*, p. 547.

[311] *Friedberg*, p. 549.

[312] *Friedberg*, p. 563.

[313] *Friedberg*, p. 533.

[314] The expression is peculiar. It is, *E nel senso della precellenza del Sacerdozio sull' Impero* a motive della superiorità del fine dell' uno sopra quello dell' altro; quindi l'autorità dell' Impero da quella del Sacerdozio dipende, come le cose umane dalle divine, le temporali dalle spirituali.

[315] *Friedberg*, 538 ff.

[316] *Unitá*, March 8 and 9.

[317] *Friedberg*, p. 557.

[318] *Ibid.*, p. 567.

[319] Vol. i. p. 239.

CHAPTER X

Personal Attack on Dupanloup—Attempts at a Compromise—
Impossibility of now retreating—Daru Resigns—Ollivier's Policy
—Feeling that the Proceedings must be Shortened—The Episode
of the Patriarch of Babylon—Proposal for a New Catechism—

Michaud on Changes in Catechism—The Rules revised—An Archbishop stopped—Protest of One Hundred Bishops—Movement of Sympathy with Döllinger—The Pope's Chat—Pope and M. de Falloux—Internal Struggle with Friedrich.

THE Villa Grazioli was one of the houses angrily pointed at by the zealots of infallibility. There resided Dupanloup, too much courted for the pride of those who thought that any man in Rome who opposed the Curia ought to be ostracised. We do not remember any public hint given to the police to watch the villa, such as the *Unità Cattolica* broadly gave as to the Palazzo Valentini, the residence of Cardinal Hohenlohe (February 26). But the amiabilities of the "good press" were not denied to the Villa Grazioli. Bishop Wicart, of Laval, wrote to his local organ, insisting that every word of his letter should be printed, and saying that the talk about Monseigneur Dupanloup in the diocese of Laval must be put an end to. "I declare, before God, and in readiness to appear at His judgment-seat, that I had rather die—fall dead on the spot—than follow the Bishop of Orleans in the course he is now taking."^[320]

It was not to this attack exclusively that Dupanloup referred in a letter to the chapter of his cathedral:—

The spectacle will have been exhibited of a bishop who had, during a life already long, given strong proofs of devotion to the Church and to the Papacy, becoming all at once the butt for insult and for those indignities against which you protest, because on a capital question he said what he believed, and still believes, to be for the true interests of religion and of the Papacy.^[321]

Ebullitions like this were but a sample of the increasing irritation on both sides. The majority naturally wanted to have done with the strife, the result of which was already certain. Vitelleschi says that the Curia desired that the Council should be merely a great ceremony for the solemn fulfilment of a pre-arranged program (p. 76). They bitterly accused the minority of egging on the governments to oppose the Council, to menace the Church, to insult the Holy Father, or even to dictate to the Holy Ghost. Every objection to the new dogma was denounced as rebellion against the Pontiff, hostility to the Council, disloyalty to Peter, and so forth. Documents such as those of Beust

and Daru were a complete reversal of all that was right. At the moment when Rome was "officially taking the affairs of the world in hand," it was insufferable for people representing provinces such as Austria or France, to attempt to control the Mistress of the world. Strictly speaking, Beust and Daru did not represent those two provinces any more than Menabrea represented Italy. They represented only the carnal and inordinate jealousy of the supernatural order entertained by the natural order in those provinces. They must be made to learn the meaning of the commission, "Teach all nations."

The members of the minority, trained by Rome to rush to statesmen and importune them for everything that could serve the Church, now that they believed her to be drifting to a terrible peril, did as they had been accustomed to do. Personally they were stung by hard words, not only from the Pope, but from all officials down to small diocesan editors, emulous of Don Margotti and M. Veuillot. Even priests in their own dioceses were set against them. As a party, the minority were irritated by restraint, suspicion, manœuvres, affronts, offers, and even by *espionage*. Their one solace was, they felt, a vain one. They could indeed speak, but they could not really debate. Their one refuge was vainer still. They could draw up petitions, but they might as well address them to Julius Cæsar for any answer that was ever vouchsafed. The air was full of complaints of long speeches. Some proposed that no more should be read, some that no more should be delivered in any form; but that they should be written, printed, and distributed among the Fathers. Some combined the two propositions, suggesting that only *they* should deliver speeches who could do so *extempore*, and that the others should print theirs for those who liked to read them. The *Unità Cattolica* hailed the proposal to have no more speeches; it would shorten the Council.

Others, again, tried to form a third party, on the basis of some compromise which would satisfy the Court by giving it in substance all the concentration of power it wanted, and yet would save the minority from the difficulty of accepting Papal infallibility in express terms. Bishop Vitelleschi was named in connexion with this attempt. They who made it did not fully realize either the political or the theological bearing of the points at issue. The whole conduct of future operations must depend on the ability of the central authority to act at any moment and in any place, without the remotest fear

of hesitation or delay on the part of the instruments; above all, without any possibility of that old bugbear, an appeal to a General Council, being raised up again.

The pretensions which Pius IX had set up under the veil of secrecy now began, through publicity, to drag Rome on to her doom. She would not have dared, at first, to face governments with her present claims. She had silently spread them in her schools, had excited her fancy with the echoes of them coming back mysteriously from provincial synods and from episcopal thrones, had shaped them into formulæ, one part of which her fears had cast away, and another part of which publicity had put to shame. Some now asked her to stop when the coach was at full swing down hill! The attempt to do so would be attended with extreme danger. She would lose, not only the new authority at which she had been grasping, but also a considerable part of the old authority, out of which that was to have been developed.

The Canons which had been the occasion of the protest from governments could indeed well be spared, if the supreme authority and infallible judgement of the sovereign were proclaimed but without that the Canons would be paper laws in the hand of a discredited administration. The Syllabus, cried M. Veuillot, had lighted a torch, five years beforehand, by which to study the objects of the Council (vol. i. p. 55). The Curia had studied the objects during the five years by that light. For it retreat on the main point was now an absolute impossibility. Had France really withdrawn her troops, the Curia could have broken up the Council under the justification of physical fear, and so would have escaped the dilemma by an intervention of Providence. But it was not to be. And we may as well here slightly anticipate our narrative, in order to complete the incident of the French note. Daru was one of the ministers who resigned on finding out that the Emperor's professions of setting up a responsible ministry were such as to remind one of the *mot* attributed to Dupin, at the very height Napoleon's power: "It is really too bad: one cannot now believe even the opposite of what he says."

It was reported in Rome that, within twenty-four hours, two telegrams had arrived from Paris. The first read: "Decidedly Daru will not have infallibility. He announces that there will be a rupture." The second read: "Daru retires. Ollivier replaces him. The Council free." If it is true, cried M. Veuillot, it is glorious for M. Ollivier (vol. i. p. 462). The despatch of

Ollivier, on taking over the office of Foreign Affairs from Daru, would have been thought straightforward if proceeding from any Court but such a one as that of the Tuileries then was. After stating that the Emperor had not sent an ambassador to the Council, and had scrupulously abstained from interfering with its proceedings, but that recently, when warned by the rumours in Europe of dangers menacing the cause of religion, he had for a moment stepped out of his reserve and offered counsel, Ollivier proceeds:

The Holy Father has not seen it right to listen to our counsels, nor to accept our observations. We do not insist, and we resume our attitude of reserve and expectation.

You will not seek or accept, henceforth, any conversation, either with the Pope or with Cardinal Antonelli, on the affairs of the Council.

You will confine yourself to gaining information, and keeping yourself acquainted with facts, with the sentiments which have prepared them, and with the impressions which have followed them. [\[322\]](#)

So terminated an incident that caused, for a time, a considerable flutter, and seems to have offered to the Curia the only fair escape from the dilemma into which it had got. It was now felt that the legislation necessary to put the new constitution into working order, must be pressed into as small a space of time as possible. The restoration of ideas had not advanced satisfactorily since the meeting of the Council and the restoration of facts had made no progress at all. The voluminous Drafts had already brought Court theology into contempt.

Friedrich had spent an evening and morning in writing to Lord Acton on the Papal system as developed in the Draft Decree on the Church, and in expressing his fears that the bishops would not see through it, when a piece of news reached him, which though at ordinary times it would scarcely have been talked of in Rome, just then caused some excitement (p. 143). It was, as he relates, to the effect that Audu, Patriarch of Babylon, after having spoken in opposition to the Curia, had, as we have seen (page 107 of *this* edition), been sent for at night by the Pope, who allowed no witness of the interview but Valerga, the so-called Patriarch of Jerusalem, who, however, as Vitelleschi says, was, previous to his elevation, simply a Roman

ecclesiastic. Valerga acted as interpreter. The Pope raged, commanded the weak old man to resign his patriarchate, forced a pen into his hand, and ceased not storming till it was done. Then, to give practical effect to the resignation, two bishops, not chosen by Audu, were appointed, and he must consecrate them.^[323] Such was the tale. Friedrich took it as a sample of infallibility in practice even before the Council had sanctioned it in theory. In itself, the story would seem very improbable in London, but not at all so in Constantinople or Rome. In the latter city the reputation of Pius IX is high for fits of rage, in which his best friends are treated like lackeys. Liverani, who over and over again calls him an angel, tells nevertheless several stories of conduct to those about him which, if they could be told of an English squire, would not get him the name of angel from his stewards and bailiffs. Even the all but adoring editor of the *Speeches* gives a specimen which evidently hammered a deep dint into his Neapolitan sensibilities. If the tales are true, the rage passes away, giving place to habitual jocoseness.

Vitelleschi says that an alternative was set before the Chaldean Patriarch—either he must submit to the Pope's authority as to certain appointments, or resign. Being reduced to this extremity by his imperious brother, the poor old man did resign, and the event "created a great sensation." To the Roman nobleman the scene presented no improbability. He does not even hint that it is a rare specimen of the tranquil waters which lie behind St. Peter's Rock. The noise made by the rumours forced even so great a person as M. Veuillot to take notice of them. His usual style of contradiction is very striking, and perhaps instructive. He will spend, it may be, pages in making somebody, who has said something, look extremely ridiculous; but, at the end, you wonder what he has contradicted. On the present occasion, however, M. Veuillot did stoop to particulars. First, he says that the Patriarch had himself chosen two bishops, but after the Pope had approved of them, he refused to consecrate them. This is in direct contradiction of a statement, on the other side, that the Propaganda had chosen the two bishops in question and that the Patriarch refused to consecrate them. The latter version gives a clear cause of dispute, whereas that of M. Veuillot leaves the resistance of the Patriarch, as he himself says, inexplicable. But as to what took place, his account is this:—

The Pope called the Patriarch into his cabinet, and told him to consecrate the two suffragans in twenty-four hours, or to sign his resignation. The Patriarch asked for a delay of three days, then of two days. The Pope was inflexible; he required that the Patriarch should forthwith sign the engagement to obey. The Patriarch took a pen, and began to write; but he stopped, saying that the pen would not go. The Pope presented him with a penknife. The Patriarch of Jerusalem, who acted as interpreter, mended the pen. The Chaldean Patriarch resisted no further. He wrote the engagement to consecrate the two bishops, or to abdicate in twenty-four hours, and pushed his precision so far as to affix the date—half-past seven in the evening. The next morning he performed the consecration.

M. Veuillot vehemently denies that the Pope was in a rage, or that he broke pens with his fist, or that he played the part of a tyrant. He seems to take it for granted that good Catholics ought to be edified with his own account of this rehearsal of a scene in the forthcoming drama of "ordinary and immediate jurisdiction" in all dioceses of the world.

We have hinted that Vitelleschi expresses no feeling of improbability as to the tale of the Chaldean Patriarch. On the contrary, he immediately follows it up by alluding to rumours of proceedings contemplated by the Propaganda against certain bishops under its jurisdiction, who had manifested a want of docility in seconding its projects (p. 82). These rumours, he says, revived uncomfortable recollections of the Inquisition, adding that events of this nature are of common occurrence, and might happen a thousand times without attracting much notice. But the moment was exceptional.

The interest of the General Congregations, from the time when the movement for the definition of infallibility declared itself, centred in that impending question, and but faintly, and intermittently, swayed towards any other. The particular matter now on hand was a proposal to do away with the diocesan Catechisms throughout the world, and to adopt a uniform one for all. Outside the Church of Rome this would probably have seemed a natural point of uniformity, but, inside of it, the determination of the municipal *coterie* to drive roughshod over all that was homely or ancient, all that was national or local, roused the spirit of opposition. It was clearly

felt that taking away from the bishops the right of approving their own Catechisms was a further blow at their authority. For many years past the Jesuits had been altering Catechisms, and so gradually naturalizing the doctrine of infallibility on soil hostile to it, especially through schools conducted by nuns.^[324] They had made the Catechism a great financial success. A new one for the whole world would be an estate for the Curia.

The book of the Abbé Michaud, *De la Falsification du Catéchisme*, is a curious study. He expresses the sum of his researches by saying that Catholicism has been replaced by Popery. The old Paris Catechism did not use the expression "the *Roman Church*." It always said, "the Catholic Church"; and in some Catechisms, in France, the word "Roman" first came in as late as 1839, and that only in a profession of faith at the end: "I acknowledge the Holy Catholic Apostolic and Roman Church." Noting the progressive change in definitions of the Church, Michaud gives examples, showing that the earliest do not even mention the Pope, and that the latest speak of nothing but the Pope (p. 23). The early Catechisms call Christ the Foundation of the Church; succeeding ones give this title to the Confession of St. Peter; next to the Apostles, then to Peter, and, finally, to the Pope; and some recent ones even say that the Church is founded on the Papacy (p. 34). The designation the "Head of the Church," is gradually withdrawn from Christ, to be bestowed upon the Pope. One Catechism, as early as 1756, said that the visible Head of the Church, being subordinate to the Invisible one, made only one Head with Him. On the question of the seat of authority in the Church, a precisely similar process has taken place; and infallibility has followed in the same track. Formerly, says the Abbé it was believed that the Pope had no authority or infallibility but through the Church. Now, it is declared that the Church has no authority or infallibility but through the Pope. We may remark that the terms of the Vatican Decrees do not go so far as the last assertion. The framers meant to do so, but their logic failed them, and they have left a dualism full of future perplexity. The Abbé shows that the Catechisms of the seventeenth and eighteenth centuries, and many down to the year 1843, always speak of the infallibility of the Church. Later, the term, "the infallibility of the Teaching Church," is introduced. That means, of the Pope and the bishops. Michaud does not quote any with this terminology earlier than 1786. But that could not suffice for the Romanists. The Abbé says that, at the present time they teach, not only that the Pope is infallible, but that he is the source of infallibility. "As the Church was

replaced by the Teaching Church, the Teaching Church has been replaced by the Pope." A religious and political system shifting in this fashion does not well bear even that kind of check which is afforded by the existence of different Catechisms in neighbouring dioceses. It was not quite so easy to teach at Rouen that the Pope singly is infallible, when at Paris the Catechism said that the Church was infallible, and at Cologne it said plainly that the Pope was not infallible. And the fact of this tendency to change doctrine downward, and further downward, was a reason for a feeling against one Catechism stronger than could be understood in any community with a fixed rule of faith.

The changes made in the application to the Church of the word "believe," are equally curious. The old form of words as to believing in one Catholic Church was first changed into believing in the Teaching Church. Then "respect and obedience to the Pope" began to be inserted, from the end of the seventeenth century onward. In 1819 an Arras Catechism claimed "sovereign respect"; but so far there is no mention of belief in decisions of the Pope. It was in 1834 that the Catechisms of Avignon and Amiens prepared for the transition from "respect" to "belief," by teaching the necessity of inviolable attachment to all that the Pope teaches. The consummation so prepared for was not far off. The St. Briec Catechism of 1835, and that of the Abbé Guillois of 1851, taught that it is necessary and Catholic to believe in the Pope as well as in the Church.

The transition from "belief" to "the faith" is very easy. Originally, the *dépôt* of the faith, which the Church had to guard, and to which no man could add, and from which no man could take away, was called The Doctrine of Christ. Then it began to be called The Doctrine of the Apostles; later, The Doctrine of the Successors of the Apostles; and, after that, The Doctrine of the Prince of the Successors of the Apostles; and, finally, of course, The Doctrine of the Pope (p. 76). The new and uniform shorter Catechism (*De Parvo Catechismo*) was to be modelled on that of Bellarmine, others being consulted. No hint was given as to how it was to be prepared, and the bishops raised many doubts. Should it not be submitted to the Council? Or, if that was not done, surely it would not be made obligatory, but only recommended. Others would have twelve bishops elected by the Council itself to prepare it. Some wished that, when prepared, three years should be given for the bishops to examine and test it; and then that only after having

been approved by them should it be made binding. None of these guards against centralization found any favour.

The complaints about the Rules, and the desire of the majority for something to expedite business, were to produce some effect at last. When between two and three months had passed without a single one of the much-prepared Drafts being homologated, as the Scotch would say, by the Council, it was time to do something. The plan of shaping Rules for the Council without the bishops was resorted to once more. New Rules were given out as an edict, just as the original ones had been, and were headed *A Decree*, as if the Council itself had framed them. To allow the conclave to make rules for itself, or to amend those imposed upon it, would have been a dangerous approximation to ancient conciliar forms. It had become even clearer than had been foreseen, that a free Council would be a less docile instrument than the sort of Secret Consistory which had been so cleverly devised.

The statement of Vitelleschi, that the Rules provided for the printing of the speeches and their distribution among the Fathers, is not correct; and his further statement, that they gave the Presidents the right of cutting short any speaker, is inexact. All they give is the ordinary right of calling a speaker back to the question, *ad propositam quæstionem ipsum revocare*.^[325] But it is a different question, whether the Presidents did not take this as containing the power of cutting a speaker short. Immediately after its promulgation, Haynald made a quotation to prove that a Pope had, at the time when the Breviary was being revised, expressed an opinion contrary to that now held by the majority, and the President immediately requested him, says Vitelleschi, to come down from the pulpit. That certainly is much more than calling him back to the question. Friedrich relates this scene as one in which signs of impatience, given both by voice and feet, were general among the majority, even Cardinals making demonstrations. So Cardinal Capalti seized the bell and called the speaker to the question. The Archbishop insisted that it was the duty of the majority to hear him; but Capalti told him that they evidently would not hear him, and he must stop.^[326]

La Liberté du Concile adds an important particular.^[327] Haynald had been attacked by a Belgian bishop for an opinion expressed by him in a speech. He immediately asked leave to reply; and, in order to observe the Rules to

the letter, he went to the *bureau* of the Presidents, and requested leave to speak on a personal point—the false interpretation put upon his speech. Leave was refused, but the Presidents told him that he could take the opportunity of explaining when he should speak in another debate. He waited for weeks. On the day now in question, before commencing to speak, he told the President that, after his speech, he meant to reply to the attack which had long before been made upon him. He was authorized to do so. But no sooner had he begun to present his personal defence, than the majority interrupted him with violent clamour. Instead of enforcing respect for the dignity of the Council and the liberty of speech, one of the Presidents cried to the speaker, "You see that they will not hear you." And when Haynald represented that he had been authorized to defend himself, "Hold your peace and come down" (*Taceas et descendas*), cried Cardinal Capalti, who thus took the place of Cardinal De Angelis, the Senior President.

It was on February 22 that the new Rules were delivered, and on March 1 more than one hundred prelates, of all nations, sent in a solemn protest to the Presiding Cardinals. This was all they could do, short of leaving the Council. They begin by pointing out that the new Rules professed to preserve the liberty due to bishops of the Catholic Church; but that, in most respects, it seemed as if their liberty was diminished by them, and even exposed to abolition.^[328] The Rules said that, when new Drafts of Decrees were distributed, the Fathers were to send in their remarks and suggestions in writing, and the Presidents would allow a suitable time for so doing. The petitioners represent that this might do for ordinary matters, but when grave questions of dogma were to be discussed, the time allowed should be very ample, and the wishes of those who wanted an extension of it should be met.

The Rules said that, after the committee had considered such remarks and suggestions as might have been sent in, they should present the Draft to the Council amended, and with it a summary report containing a *mention* of the remarks and suggestions which had been made. The hundred bishops say that a mention is not enough. That would leave the committee free to omit what it pleased. The remarks and suggestions ought to be given at full, else the committee would become the entire Council, and, in most things, the only judge.^[329] Moreover, the reasons assigned by authors of remarks and

suggestions should also be given. They request, further, that authors of suggestions should have the right of explaining them, and, if need be, of defending them before the committee. The idea of a right of reply, which the original Rules had completely ignored, had been, after a fashion, introduced into the new ones. That is, the members of the committee were to have the right of reply, either at once or on a later day, to any one speaker, or to a number of them. The hundred bishops do not challenge this immense power granted to the committee, but they demand that the speaker so replied to shall have his right of rejoinder.

The hundred strongly reclaim against a provision for closing a discussion by a rising and sitting vote. This, they say, is a mode of voting unknown in Councils, and is liable to haste, to error, and to the contagion of momentary feeling. It might be quite allowable in parliamentary proceedings, where a thing done this year may be undone the next. But it is not admissible in a case where the matters in hand are so awful and irrevocable as Decrees, which once adopted are never to be amended or discussed again. They demand that no question should be closed so long as any one who had not spoken claimed his right to do so as a witness and a judge of the faith. They demand also that speakers should be heard alternately, one for and one against any proposal under consideration; and, moreover, in matters affecting the faith, that no discussion should be closed so long as fifty Fathers objected. They strongly urge that, in a General Council, neither precedent nor propriety requires that many Decrees rashly adopted shall be preferred to a few thoroughly sifted.

They then come to the solemn point, as to how many votes suffice to make a dogma? The new Rules did not require a majority of two-thirds, as many political constitutions provide in a case of importance. They left the decision open to a simple majority. This the hundred bishops treat as a total and astounding novelty. In General Councils, moral unanimity in matters of dogma had been the rule. It was a rule accepted, and avowedly acted upon, at Trent, by Pius IV. No other rule would be consistent with the principle of Vincent of Lerins, "What has been believed always, everywhere, and by all." Catholic dogmas being formed by consent of the Churches, it followed that they could not be defined in a Council except by the consent, morally unanimous, of the bishops who represent those Churches. They assert that this condition is the pivot on which the whole Council turns. This condition,

they proceed to say, seems to be the more urgent in the Vatican Council, because so many Fathers were admitted to vote, as to whom it was not clear whether they held their title to do so by ecclesiastical or by divine right.

Thus indicating the fact that, first, a majority had been made up largely of men who represented nothing, and that now that majority was to be used to change, not only the dogmas of the Church, but the very source and criterion of dogma, they proceed to a sorrowful declaration, that unless the point as to the numbers voting was conceded, their consciences would be burdened with an intolerable weight. They should have fears that the œcumenical character of the Council would be called in question; that a handle would be given to enemies for attacks on the Holy See and on the Council; and that thus the authority of the Council would be undermined among the Christian people, as though it had been lacking in truth and liberty; and in these troublous times that would be a calamity so great that a worse could not be imagined. [\[330\]](#)

"Thus," cries *La Liberté du Concile*, "you have a hundred bishops who say, Oppression is couched in these Rules. We have liberty indeed, but liberty restrained, garrotted; which can be choked whenever they like. *Imo etiam tolli posse videatur*. They say more. They say that these Rules contain a grave menace, a flagrant violation of Catholic tradition, an intolerable oppression of their conscience, pregnant with the greatest perils for the future, capable of striking the Council to the heart and of inducing incalculable misfortunes. That is said by one hundred bishops."

The foundation formed by such a rule of faith as the consent of the Churches seemed solid as long as streams were shut off, but now that the waters were rising the bishops began to feel symptoms of a shaking. They did not, however, yet know that one rush from a sluice, to be suddenly opened by the Pope himself, was, ere they rose, to bear that sand clean away, and to drop them down on to a rotten rock of Roman infallibility. Even the consent of the Church was to be dispensed with.

In the meantime, learned bodies in Germany had hastened to support Döllinger. Public addresses came to him from the universities of Bonn, Prague, and Breslau, and from colleges in other places, bearing the best

names of German Catholics in letters and science. The towns, emulating the colleges, joined in the movement; Cologne, Kempten, Freiburg-in-Brisgau, and other places sending in addresses. Munich voted to the venerable scholar an honorary citizenship, which he modestly declined. It was evident that the German people would have followed in large numbers in the movement thus begun, but the bishops who, in Rome seemed to be earnest in opposing the Curia, suppressed all attempts to discourage it on the part of their clergy or people. They had woven a tangled web at Fulda, and were getting deeper and deeper into its meshes. On the other side, the Pope, the Curia, and the Infallibilist bishops did everything possible to bring pressure to bear upon the bishops of the Opposition, both from the clergy and from the people. As with Hildebrand, so now, all authority which did not move at the beck of "Peter," was overturned or overmatched by raising subordinates at the call of the higher power. Döllinger had said, in reply to an address, that he had done no more than maintain views in which, as to the substance, he was at one with the majority of the German prelates. This was in Rome skilfully turned into a reason for demands upon those prelates. Signor Aloysi, evidently by commission of the Pope, proposed to the Archbishop of Munich to disavow Döllinger, and to procure a collective disavowal from the German bishops. This the Archbishop declined to do.

It is hardly fair to conclude that the German bishops made a show of opposition merely to be able to say to the people, We resisted till the word was spoken, as you did; but now that it is spoken, we submit, and so must you. In addition to calculations of this kind there was probably a consciousness that a mortal struggle was rising between Rome and all the religion, freedom and light in the outside world, and that it would go hard with Rome. The only possible counterpoise to their fear of the Pope would have been a movement on the part of governments to separate the Church from the State. But the politicians were as little prepared for that as the bishops were for schism. So, both the one and the other, however involuntarily, concurred in helping Rome on towards the catastrophe. Ketteler proposed that the German bishops should disavow Döllinger, but could not carry his point.^[331] He disavowed him on his own account. Senestrey forbade theological students of his diocese to attend the classes of Döllinger; but Scherr, Archbishop of Munich, refused to do even this. The press, however, made amends for the slackness of the Ordinary. M. Veuillot told how Döllinger's father had said that the devil of a boy had two heads

and no heart, and how, in his Cathedral stall, he did not know how to handle his breviary, and sometimes read, instead of it, proofs of his books. Quirinus might, indeed, say, "It is no longer possible to conceal by any periphrasis the fact that the spirit the Opposition has to combat is no other than the spirit of lying" (p. 260). But the writers of the Curia charged upon all Opposition writers, not only hatred, malice and all uncharitableness, but especially lying, with the loving and making of lies.

The Pope, whose jokes and outbursts alternately supplied gossip, is reported by Friedrich as saying that Döllinger was a heretic, or very near it, and that Günther was much more respectable, as he had been quiet for a long time (dead). Some one observing to him that Döllinger was a harmless old man, he replied, Pretty kind of old man that receives addresses from every quarter. He made no secret that he took the Opposition bishops generally for "softheads," but thought they must have some one behind them. He knew who nodded approval while Strossmayer spoke, and who pressed his hand when he came down. He said that Cardinal Schwarzenberg played the part of the sub-deacon in the manger; that is, the part of the ass in the scene of the Nativity. Schwarzenberg, he said, had been the only person who declared that the definition of the Immaculate Conception would draw bad consequences after it. But "the definition took place on a morning when the sun shone so wonderfully that I recognized in it the confirmation of my design." Much more chat of the same quality is given.

Friedrich has one short paragraph to the effect that it was confidently asserted that Veuillot had a seat behind the scenes in the Council Hall. A man deeply initiated in the secrets of the Council did not deny it (p. 165). If this was the case, it would be curious to compare it with M. Veuillot's account of his being on the Pincio, instead of in the Cathedral, on the opening day. That meditation in the rain seemed rather eccentric.

The Pope had arranged for an exhibition of Catholic art, and opened it in person with a speech. The passage which made the greatest impression was that in which he alluded to a recent saying of M. de Falloux, a zealous French Catholic politician, and the actual author of the Education Bill which embodied Montalembert's policy, to the effect that the Church had never had her '89, and she needed one. The Pope declared, "I say that is blasphemy." There were many versions of the utterance, but M. Veuillot, evidently by authority, stuck to this one. M. de Falloux, after a considerable

time, wrote to Bishop Freppel, saying that he had not used the phrase alleged. Bishop Freppel told the Pope that M. de Falloux wrote that he had not used it. The Pope replied that if M. de Falloux had not used it, he had not condemned M. de Falloux. There the tale is left by Veuillot (i. p. 360).
[\[332\]](#)

A case like this indicates the struggles between old opinion and the new light of unforeseen circumstances, through which many must, at this time, have been passing. In the case of Hyacinth and Gratry, the struggle had come to the surface; in that of Döllinger, it put on the solemnity of age; in that of Montalembert, the awe of death. From the oratory at Birmingham to the chambers of the Quirinal, from under the roof of the Vatican to lone stations in some mission wild, were men moaning with a conscience-ache. The coming on of an eclipse could hardly be more awful to a meditative Magus than the advancing shadow of heresy on the Church herself to one who had believed her infallible. The dread images of doubt and uncertainty not only haunted, but threatened many a brave spirit. If the infallibility of the Church was to be reduced to the level of that of the Popes, in the doctrines and morals they had solemnly taught; to the level, for instance, of Pius IX and his Syllabus—alas, alas for the great ideas of the past! And was it so clear that it had been innocent to lay those under anathema who, looking away from man to Christ, from Councils to the Bible, had meekly said, The only infallible guide over life's broad sea is not the church steeples, but the stars.

The veil is partly lifted off from one such struggle. Friedrich's stay in Rome had been harassing. Suspected of being the correspondent of the *Augsburg Gazette*, he had been denounced in the papers, treated rudely by bishops, jeered at by the Pope, reported as being banished, and dogged by police spies even in the house of Cardinal Hohenlohe. All this would intensify his perception of the moral corruption of the city, of which many a priest before him had spoken, from Luther to Liverani, or Lammenais. It would also give a keener edge to the theological debates which were going on in his own mind. After an interval of five days in his diary, he writes, under date of February 25 (p. 195)—

At last I must once more take up the pen. If the last few days have been important for the history of the Council, still more important have

they been for my own life-history. A mental struggle within me has reached its close, one which was hard to undergo, and which shook my entire mental and physical being. Now all stands clear before my eyes. I know the end toward which I am to steer. The Lord has once more led me a stage further in my life-path. It was truly a melancholy thought for me when, finding for a moment a point of rest in the midst of this struggle, I looked back upon my peculiar course. From that decision to become a Jesuit, onwards to this journey to Rome, an unseen hand has so perceptibly led me, almost always without design of mine, that even here, in the midst of the new storms, I have been able to take fresh courage. I stand here in Rome only through the unseen guidance of the Lord; for it was not I that ever took a step to come here; indeed, all was done without me. But I see clearly that even that dispensation was to purify my views and intentions, and to lead me on towards the sole prescribed end of my life.

At one time, how much was Rome for me! How did I, in a sense, worship all that came from it! Now I see that here reign not only the most horrid ignorance, but, still more, pride, lies, and sin. Henceforth my life has its task marked out for two ends. Henceforth it is devoted to the struggle against the Curia (not primacy), and to that against the Jesuits. If I fall in it, I shall believe that the Lord has so willed, and that there can be, and that there is, a martyrdom for Christ, and for His Church, among the faithful. If I have had to learn here that the Curialists and the Jesuits are enemies not less furious than the heathen, I shall openly show the world that they do not scruple to devise the death of their enemies. The *Univers* may erroneously write, "The scandal in Rome is great," because I am here and am betraying the secrets of Rome; but one may say with full right, "The scandal in Christendom is great."

The bishops of the minority still declared their determination to resist every attempt to concentrate infallibility in the Pope; but Darboy said to a diplomatist, What use is it to send in protests that never receive an answer? [333] The last protest, however, contained the grave matter in which a hundred bishops pledged themselves to language casting doubt upon the œcumenicity of the Council. Of no use for its immediate purpose, that document will always be of real use in judging of the value of much that

has been said by its signers since the Council. Prominent Infallibilists intimated that the dogma would not be so defined as to declare the opposite opinion a heresy. Yes, says Friedrich, they would leave it as Trent left the Immaculate Conception—in such a position that some day, when the sun shines fair upon a Pope, it may be promulged as a dogma. Then he adds, what many may have heard stated in Rome, It is strongly asserted that the very reason why the Council Hall has been placed where it stands, is that there at a certain hour the sunbeams fall upon the Papal throne (p. 219).

Vitelleschi says that the visitors to the Exhibition of Church Art did not generally exceed the number of the *gendarmes*, and expresses an opinion that the real Christian arts are better represented in such international exhibitions as might be seen elsewhere. Anything less like Christianity than many of the objects which in Rome are called objects of Christian art, is hard to conceive, or anything more fitted to turn men into triflers, if once they give themselves up to such baubles as the great concern of life, either social or religious. In this exhibition, Friedrich was struck with a statue of the Pope defining the Immaculate Conception, and with pictures of the same event, "with the inevitable sunbeams." He was also arrested by a group of the Risen Christ, with Pius standing before Him in a flowing pluvial. He says that when one looks at the humble figure of our Lord, and then at the self-conscious Pius, one is inclined to surmise that the latter is thinking, "I am not only what Thou art, but much more. I command all; Thou didst serve all" (p. 220). Quirinus quotes, without translating it, a saying of an Italian noble, which might have suggested the very thought: "Other Popes believed that they were Vicars of Christ; but this Pope believes that our Lord is his Vicar in heaven" (p. 326). These are the things which the worshippers of Pius IX call blasphemy, while most Italians smile if you doubt their legitimacy. Friedrich tells how the auditor of Cardinal Hohenlohe, an ecclesiastic, expressed the horror that had been caused in Rome by Friedrich's articles on Manning in the *Literaturblatt*. He added that Hohenlohe would have been a great Cardinal but for two blunders, that of visiting Cardinal Andrea when he returned to Rome, and that of bringing Professor Friedrich to the Council (p. 220).

The ministry of Prince Hohenlohe, in Bavaria, had fallen under the hostile influences of the Church party. On the other hand, the recent action of France and Austria had shown that possibly the Curia, if not prompt, might

meet with more formidable checks than any that could arise from Bavaria. As to France, the Curia would seem, rightly or wrongly, to have felt that if Napoleon dared them to the worst, they could shake him out of his place, if not as easily, yet as surely as the bearers of the Pope's portative throne could upset a Pontiff. Daru's demands were officially made known by the reluctant, indeed the all but recalcitrant M. de Banneville, no earlier than March 1. At this very time Dupanloup was drawing up, and the French bishops were preparing to sign, the protest against the new Rules. The adhesion of the German and Hungarian bishops to this protest was to be foreseen. The Curia, therefore, took the decision to face both Bonapartes and bishops, and to throw down the gauntlet.

The meetings of General Congregations had been suspended to give the Fathers time for study. On the evening of March 7 a short notice was sent round to their houses, saying that an additional chapter, to be called the Eleventh, would be inserted in the Draft of Decrees on the Church. This new chapter was simply that declaration of Papal infallibility which had been asked for by the famous Address. So the die was cast. All uncertainty as to the designs of the Curia was at an end. Not only was the dogma to be defined, but all who should deny it were to be excluded from the unity of the Church. Quirinus says that the Pope gave his sanction to this critical act under great personal excitement. For four-and-twenty years had he sought the crown of infallibility, believing himself to be wrongfully deprived of it by the error and unbelief of mankind. In 1848, when Count Mamiani, after ceasing to be the Prime Minister of the new Pontiff, met his friends in Florence, he said, "It is utterly impossible to act as the constitutional minister of a Pope who is stark mad on the subject of his own personal infallibility."^[334]

The bishops found that they had only ten days allowed them to send in their written comments upon the fundamental change now impending in the constitution of the Church, in their creed, and in their standard of faith. Vitelleschi remarks that the brevity of the time given will remain as a testimony to the pressure exercised, and will lower the impression of the wisdom of men who hurried the Church through such a transformation.^[335] The *Civiltà* states that the time was afterwards extended by a week.^[336] If it was proposed to give to Orders of the Queen in Council all the scope and effect of Acts of Parliament, our Lords and Commons would expect at least

one week beyond ten days' notice before meeting the Court party in the lists, and more particularly if the right of moving that the Bill should be read that day six months had been for ever snatched away from them.

A visit of the ex-Grand Duke of Tuscany, or, as the *Civiltá* takes care to call him, the Grand Duke, is formally recorded, as if to show the proper relations between princes and the Pontiff. On his arrival, the Grand Duke was waited upon by the majordomo and chamberlain of the Pope; and next day by Antonelli, as Secretary of State. The day following, the Grand Duke "went to the apostolic palace to do homage to the Holy Father." This is the true language of vassalage. To make it plainer, the Pope, on the same day, "admitted the Archduke Charles of Tuscany to an audience."^[337] It was, however, not encouraging for the projectors of "a new world" that the only princes who came with suitable reverence to the door which formed the entrance to it were princes who represented a world that had waxed old, had decayed, and indeed had vanished away.

FOOTNOTES:

^[320] *Friedberg*, p. 112.

^[321] *Friedberg*, p. 114.

^[322] *Friedberg*, p. 138.

^[323] *Vitelleschi*, p. 81.

^[324] *Quirinus*, p. 267.

^[325] *Friedberg*, p. 415; *Acta*, p. 18; Freiburg ed., p. 163.

^[326] *Friedrich*, p. 198.

^[327] *Doc. ad Ill.*, i. 164.

^[328] "*In pluribus Patrum libertas inde minui, imo etiam tolli posse videatur.*"

^[329] *Alioquin jam deputatio esset totum concilium et in pluribus solus iudex.*

^[330] *Documenta*, i. p. 263. Here *veritas* seems to mean reality "quasi veritate et libertate caruerit."

^[331] *Quirinus*, p. 261.

^[332] Strangely enough, in April 1876, the papers spoke of the excitement caused in France by the fact that Bishop Freppel had positively excommunicated the zealous M. de Falloux for some breach of the ecclesiastical law, in a matter connected with Church property.

^[333] *Tagebuch*, p. 219.

[334] See a very life-like sketch of Pio Nono in the *Manchester Examiner and Times* of December 17, 1874, which, in Rome, is ascribed to the pen of Mr. Montgomery Stuart.

[335] *Vitelleschi*, p. 177.

[336] *Serie II.* x. 112.

[337] *Civiltà*, VII. x. 118.

BOOK IV

FROM THE INTRODUCTION OF THE QUESTION OF INFALLIBILITY TO THE SUSPENSION OF THE COUNCIL

CHAPTER I

Joy of Don Margotti—New Feelers for an Acclamation—Suggested Model of the Scene—Its Political Import—A Pause—Case of the Jesuit Kleutgen—Schwarzenberg out of Favour—Politics of Poland—Döllinger on the New Rules—Last Protest of Montalembert—His Death—Consequent Proceedings in Rome.

"THE Vicar of Jesus Christ for ever" was the title of the article in which Don Margotti announced the fact that the Pope had sent in the proposal of infallibility. Ollivier, said Don Margotti, once stated that he loved strong powers with confidence in themselves, and as the Pope always wished to be loved by ministers of Napoleon III, he had showed them that he was strong. [338] "It is a great spectacle, but it will be a still greater one when infallibility is proclaimed, and the Syllabus is proclaimed, in spite of the opposition of governments, of revolutions, and of all hell."

But the speedy closing of the question, now formally opened, was indispensable. The suggestion of an acclamation on the day of Mary in December had proved vain; but the day of Joseph was now approaching.

The term allowed for sending in written observations on the Draft would expire on March 17, and the *Unitá*, in its number of the 11th, put up the following prayer: "O Blessed St. Joseph, grant us the grace that on the 18th of March may be discussed, and on the 19th, the day of thy Festival, may be proclaimed, the most pleasant and most wise doctrine of the infallibility of the Vicar of Jesus Christ." The correspondent of the *Unitá* from Rome said, "We hope for the definition on the 19th, St. Joseph's Day"; and its correspondent at Paris stated that no doubt existed that the dogma would be proclaimed on that day. Two days before the one so anticipated, the *Unitá* published suggestive accounts of the scenes in 1854, when the Immaculate Conception was acclaimed. It quoted Canon Audisio, a well-known writer, and one sometimes called a Liberal Catholic. Just after the noontide bell, when the two hundred bishops had knelt to repeat the Angelus, as soon as they resumed their seats, a cry speedily broke out from among them, *Petre, doce nos: confirma fratres tuos*: (Peter, teach us! strengthen thy brethren!) The teaching desired was a definition of the Immaculate Conception. The whole assembly wept. "It was a weeping so cordial and sublime that you cannot imagine it, and pen cannot describe it."

After this hint, as to what the scene—always a chief point—on the 19th should be, the principles of polity involved in the scene are indicated; for in Rome all acting is for the purpose of ruling. Some prelates, said the *Araldo di Lucca*, as quoted by the *Unitá*, had thought that the Bull announcing the dogma of the Immaculate Conception should make mention of the assembly of the bishops; but a prelate from France, rising *in the spirit of Athanasius*, said, "No; the episcopate should not decide, but only the chief Pontiff; he alone must speak." He went on to argue that, by showing obedience to the Pontiff, they would secure the obedience of the people, and strengthen the principle of authority. The *Unitá* significantly adds, "It appears to us, and it will appear to all, that not only the dogma of the Immaculate was defined on that memorable sitting of the 24th of November, 1854, but also that of Papal infallibility."

While the party of movement was full of hope, the minority were in dismay. Their chosen ground of inopportuneness had been cut from under their feet. The Pope and five hundred bishops had decided that the question was opportune. They now felt that if the dogma should be suddenly defined, they must either submit or be outside of the Church. The new Rules

permitted the discussion to be closed at the will of the majority. It was notorious that any discussion whatever, on a point so immediately affecting the authority of the Pope, not only in the Church, but also in the world, was hateful to every right-minded Curialist, and, in fact, that as taking place hard by the tomb of St. Peter, such a discussion was regarded as a thing all but intolerable. The suggestions in the *Unità* from Rome, Paris, and Turin had not been put out without high sanction. Was it possible that, on St. Joseph's Day, all would be ended by an irresistible acclamation?

Some think that so deep a feeling was now produced in the minority, and that so clear did they make it that they would not acquiesce in an acclamation, that they impressed the Vatican for a time. Friedrich repeats, on the authority of one who was intimate with the Pope, a saying of the latter, "The Jesuits have set me on this road, and now I shall go on in it, and they must bear the responsibility." The personal position of members of the minority became more and more trying, owing to the increasingly active part taken by the Pontiff in the discussion. A second brief to the Jesuit Ramière^[339] followed the one which ridiculed Maret, commending another publication of the same author, in which, alluding to the possibility that some now opposing the infallibility of the Pope would secede from the Church, Ramière said, "These form the secret enemy who impedes our march, and, in driving him from our ranks, the sacred army will obtain the most precious guarantee of its future success."^[340] Friedrich adds, what agrees with much that is said, or hinted, by other Liberal Catholics, strange as it sounds in our ears, "Any one who knows the Jesuits can explain the closing words of the pamphlet, 'Then, truly will the Council have realized the most ardent desire of the Saviour, and established the conditions on which this divine Master makes the submission of the entire world to the yoke of the faith depend.'"

"That is," explains Friedrich, "the yoke of the Society of Jesus; for even under the name Jesus, 'we are only to understand the Society of Jesu.' At the Festival of St. Ignatius Loyola, priests must repeat the words, with great emphasis, 'At the name of Jesu every knee shall bow.' The former Confessor of the Pope, now replaced by a Jesuit, always felt scandalized by this, on the eve of the Festival, and earnestly wished to have those words removed from the Mass for Loyola's Day."

Archbishop Cardoni, being asked what had become of the Draft Decrees on Faith, said that the committee first examined them, after which Deschamps, Pie, and Martin, as a sub-committee, partly prepared a revised form, and finally the recasting of them was completed by Kleutgen, the Jesuit. What, it was asked, the Kleutgen who was condemned by the Inquisition? Yes, replied the Archbishop faintly. This Kleutgen had been a German political refugee, but joined the Jesuits, and became confessor to a nunnery. One of the nuns, a German princess, was dying. Her relations, through interest with the Pope, succeeded in procuring her release. It proved to be a case of poisoning. The Inquisitors took proceedings, and Kleutgen was somehow incriminated. The convent was closed, the nuns were dispersed into other establishments, and the confessor was sentenced to prison for six years. The imprisonment was changed into reclusion in one of the Jesuit houses, in a delightful neighbourhood near Rome. Kleutgen found means to regain favour, and was now remoulding the faith for the benefit of reconstituted society.^[341]

Cardoni told how he, an Archbishop, had been received the preceding day by the Pope before Schwarzenberg, a Cardinal and a prince, and it was added that Schwarzenberg had been obliged to wait a fortnight for his audience, whereas a Cardinal was entitled to have one after two days. Cardinal De Angelis alleged that the Pope had seen Schwarzenberg behind the Vatican smoking a cigar, with a "small hat" on his head. To this the Germans replied that it was well known that Schwarzenberg did not smoke.^[342] We cannot state what would be the penalty for a Cardinal convicted of wearing a small hat, but they are a class of "creatures" whose eternal salvation may, by the will of their lord, be declared to depend on matters the connexion of which with the Christian religion it takes a Pontiff to find out. Sixtus V decreed the penalty of excommunication against any Cardinal who should open a letter bearing the plain address "Cardinal," without the title "Most Illustrious and Most Reverend." They were to burn such letters. (*Fronde*, ii., p. xiii.)

Archbishop Ledochowski, whose name has frequently been heard of since the Council, had been made Primate of Poland by the Pope. This office, in olden time, carried with it the regency of the country, in the interregnum between the death of one king and the election of another. As primate, the Archbishop put on the colours of a Cardinal. Count L—— told Friedrich

that Ledochowski had said that he was right glad that he had so early joined the Infallibilists, for Rome was certain to carry through what she had taken in hand, and therefore the bishops of the Opposition would gradually come over to the right side, and would cut a poor figure at the last. Count L—— expressed himself as indignant at this morality. But, said Friedrich, scarcely had the Count ended, when I read in the *Univers* that Ledochowski was mentioned for promotion as a Cardinal. We may here, as illustrating the bearing of titles and colours on very serious affairs, interject a statement of what happened later.^[343] Ledochowski, after the Council, at once took up a new position. When the German bishops next met at Fulda, he would not join them. As Primate of Poland, he said, he belonged to the tomb of St. Adelbert rather than to that of St. Boniface. He would no longer admit Germans to his seminary for priests. In places where preaching had existed alternately in German and Polish, he suppressed the German. His organ, the *Tyotnick*, related how, during the Council, the Pope had given him the title of Primate of Poland, but denied that he *used* the political powers attached to the title. Nevertheless, the *Catholic Calendar* for 1872, published in Thorn, placed the name of Ledochowski in the list of reigning princes, as Primate of Poland and representative of the King of Poland. So that, if the powers attached to the title were not used, the reasons were not far to seek.^[344]

While early converts were joyful, Ketteler continued to be mysterious. In a meeting of German prelates he declared that, though all his life he had worked for infallibility, he could not do so now. This Draft Decree was a crime. But what was to be done? Send in another protest? All cried out at once, No! no! they have treated us like domestics, and not even given us an answer.^[345]

On February 27 Don Margotti had said that even a Protestant or a Mohammedan, a Schismatic or a Jew, would see from the new Rules that no assembly could be freer. Döllinger, on the other hand, had published a letter on the new Rules. He took the ground indicated in the protest of the one hundred bishops. In matters of faith, as he contended, the Rules shifted the source of authority from tradition to majority. This he showed to be a direct departure from the doctrine of the Catholic Church.

The days which some had fixed upon for the triumph of an acclamation were passed in excitement of a different kind. A letter appeared in the *Gazette de France* and the *Times*, from Montalembert, addressed to some gentleman who had challenged his present opposition as inconsistent with his former championship of the Church. The dying man then delivered his last public utterance. He protested that, in his early days, the pretensions now put forth were unheard of. In language already cited he described the incredible change of the clergy after 1850, and their present shortsighted prostration before the idol they had set up. He showed that in his speech of 1847 there was not a word of the doctrine of Papal infallibility. He might have indicated also the still more celebrated speech on the restoration of Pius IX. He quoted that remarkable letter of Sibour, Archbishop of Paris, in which he depicted the difference between the old Ultramontanism and the new. Montalembert then declared that his whole regret was that illness prevented him from descending into the arena to join Dupanloup and Gratry, to contend on his own ground, that of history and of social consequences. "Then should I merit—and it is my sole remaining ambition—a share in the *litanies of insult* daily launched against my illustrious friends by a portion, too numerous, of the clergy—that poor clergy which is preparing for itself so sad a destiny, and which formerly I loved, defended, and honoured, as no one in modern France had done." The *Unità* cried, "Better for Montalembert had he died a year ago; better indeed had he never been born."^[346] While these words were ringing in the ears of all, came a telegram announcing that Montalembert was no more. That evening the Pope had one of those audiences in which he delights; a kind of public meeting, with three hundred persons present. Of course every one expected that the little member which in the days of Pius IX has done much to make the Pope an entertainment for Italians, would not be able to keep off the exciting topic. "A Catholic has just died," said his Holiness, "who rendered services to the Church. He wrote a letter which I have read. I know not what he said at the moment of death; but I know one thing—that man had a great enemy, pride. He was a Liberal Catholic—that is to say, a half-Catholic.... Yes, Liberal Catholics are half-Catholics."^[347]

About the time when the Pope was thus speaking of him whose eloquence had been worth regiments to him, Father Combalot was crying from the pulpit of Notre Dame Della Valle—

"Satan has entered into Judas! There are men who were Christians, and who on the brink of the grave become enemies of the Pope, and speak of torrents of adulation, and accuse us of erecting him into an idol. To speak so is Satanic work. There are three academicians who do it" [Montalembert, Gratry, and Dupanloup].^[348]

Archbishop De Mérode, brother-in-law of Montalembert, and almoner to the Pope, arranged that a High Mass should be celebrated in the Aracœli on the height of the Capitoline, that is, the church of the Roman municipality, in which Montalembert was entitled to the honour of such a solemnity because of the dignity of Roman citizen which had been conferred upon him for his distinguished services to the Church. On the 16th a notice was circulated, announcing the intended Mass, in publishing which the *Univers* stated that it was known that there would be no oration—a record which spoiled subsequent fables. Late that evening, in the great church of the French, a preacher dwelt upon the memory of Montalembert, inviting the audience to the solemn service at the Capitoline the next morning. At the same time the rooms of Archbishop Darboy were crowded. French prelates related what remarks they had written on the proposal for infallibility. Each one beheld in his own a great and heroic act. Landriot, Archbishop of Rheims, had employed a quotation from Bessarion against the curial system, and expected to be called Jansenist, Gallican, Febronian, and such like. Friedrich, we suspect, was making prelates understand that if once they allowed themselves to recommence deliberation under the new Rules, all hope of successful opposition would be idle, and hinting his belief that under such Rules the Council had no proper œcumenicity. Suddenly news came from Mérode. Something was wrong. It proved that the High Mass for Montalembert had been forbidden by the Pontiff. What! the departed spirit of the foremost Frenchman in the chivalry of the Church to be insulted on the Capitoline by the Pope in person! Among all those Frenchmen, many were old enough to remember the most brilliant of Montalembert's sallies, and all were old enough to have witnessed the public disgust when a Court chamberlain turned him out at the election of 1857, half of the clergy voting against him, and the other half staying at home. But this beat all. A Cardinal present could not restrain the confession, "Now I am well ashamed of being a Roman Cardinal."^[349]

The announcement was too late to reach all, and when the hour for the service came, some twenty bishops and many French notables assembled. Father Beckx, the General of the Jesuits, had come from the neighbouring *Gesù*, thinking, doubtless, of the splendid services to the Order which had been rendered by the confiding genius of the man for whose soul he was now to pray. Even Louis Veuillot came, trying to forget the irritations of recent years, perhaps hoping in part to make reparation for ingratitude and insolence, and unable now to see the opponent, seeing only as in old days the "son of the Crusaders," facing, provoking, and dominating a hostile Parliament, with his head back and his blue eye flashing, till at some turning-point in his theme the fountains of a great deep broke up, the deep of his mighty emotions, and then gushed out a flood which carried all before it. When they reached the steps of the Aracœli, an official, who was one of the subordinates of Mérode, cried out in a French phrase which he had learned on purpose, that they must go away, that the Mass was forbidden. It is evident that they were all overcome with mortification, not to use stronger language. Even M. Veuillot pushed by and said, "It can do no harm to repeat some paternosters for him."^[350]

Quirinus says that probably it was De Banneville who represented to the Pope the serious effects that would be produced in France by this proceeding. So, on the evening of the 17th, instead of arranging for the acclamation of infallibility, the Pope was making the small amends of sending a private message to have a Mass celebrated, on the following morning, on behalf of a certain deceased Charles, in the Church of Santa Maria Traspontina. No public notice whatever was given of this service. The bishops were all shut up in a General Congregation. The Pope went privately, without any suite, sat hidden in a latticed "tribune," and then had it announced to the world that he had personally attended a Mass on behalf of Montalembert. When the exceedingly painful feeling he had caused began to appear, an attempt was made to turn the occasion to account by throwing the blame on Dupanloup. It was declared that it had been announced that he would deliver an oration, and indeed that the proposed function had been got up by him as a party demonstration. This gave Dupanloup the opportunity of writing^[351]:—

This is an outrage at once upon the Holy Father, Monsignor De Mérode, the bishops, and myself. This entire tale, Sir, is false from the

first word to the last. I did not appoint the service. I was not to officiate. I have had nothing whatever to do in distributing cards of invitation. Whatever may have been my profound and inviolable affection for M. De Montalembert, it belonged to the members of his family present in Rome, Monsignor De Mérode and the Count De Mérode, and not to me, to arrange the details of this religious ceremony. It is within my knowledge that in doing so they conformed to all the laws and formalities usual in Rome in similar cases.

The last statement was made to upset one of the excuses, that proper leave had not been asked for the service. So those false stories, at least, were stayed.

As the news spread in succession from place to place, the imaginations of Liberal Catholics all over Europe would restlessly wander up and down the Capitoline, seeing on that historical slope the signal given for their eternal disgrace in the Holy City. It was given too by an arrow shot from the Pontiff's own bow, and aimed at the shade of Montalembert. We do not profess to know what injury the imagination of such men might picture as having been done to the spirit that was gone, but those Christians who believe in a God who, not even in this world, much less in the great hereafter, trusts any child of man, though the least of all the little ones, to a Vicar—those who believe in a sacrifice which no man can repeat, prohibit, or buy, when they heard what had occurred, saw the spirit pass into the true temple, *and outfly all the arrows of death*. Oh, how benign is that light of immortality which shows us the spirits of the departed resting in the hands of their Father, altogether above dependence on the malice or the compassion, on the liberality or the avarice, on the devotion or the unbelief of living men; and which, with the same blessed beam, shows us the living protected from all possible malice, raised into independence of all possible goodwill of the dead, by a near and solicitous paternal Watcher. All the traffic of the markets of Purgatory, a traffic as low and demoralizing as any traffic can be, scarcely exposes the system which has sprung up around that invention so much as one broil like that which the traffickers raised around the soul of Montalembert—no, not around his soul, that was beyond their reach, only around his memory.

FOOTNOTES:

[338] *Unità Cattolica*, March 10.

[339] *Friedberg*, p. 491.

[340] *Tagebuch*, p. 221.

[341] *Tagebuch*, p. 230.

[342] *Ibid.*, p. 231.

[343] Menzel, *Jesuitennumtriebe*, p. 297.

[344] The following passage in the speech made to the Pope by Ledochowski on his elevation to the purple, is taken from the *Emancipatore Cattolico*, April 22, 1876:—"And as the persecution was most bitter in that part of Poland which is now under Prussian occupation ... the honour of this sacred purple falls like a celestial dew upon my oppressed and agonised country, and seems silently to say to her, that if forgotten and abandoned of the world, she is still loved and blessed by God, of whom your Holiness is the Vicar." The very next paragraph in the same paper is headed, *The Heresy of Love of Country*.

[345] *Tagebuch*, p. 236.

[346] March 11.

[347] This is the version quoted from the *Moniteur Universel* in *Ce Qui se Passe au Concile*, p. 154. M. Veuillot acknowledged that the "hard word" was in the speech, and the above version has not been denied.

[348] *Ce Qui se Passe au Concile*, p. 155, quoting *Gazette de France*, March 20. In the *Univers* of April 4, quoted on the same page, Combalot acknowledged the words, and said that he was preaching at the time "by the grace and the mission of the infallible Pontiff."

[349] *Tagebuch*, p. 259.

[350] This trait of kindly feeling is given by Friedrich.

[351] The fullest account of the whole transaction is that in *Ce Qui se Passe au Concile*. But Friedrich, Quirinus, Veuillot, and Fromman have all been consulted, and show that the main particulars admit of no doubt. Dupanloup's letter is both in *Ce Qui se Passe au Concile*, and in German, in *Friedberg*, p. 110.

CHAPTER II

Threat of American Prelates—Acclamation again fails—New Protest
—Decrees on Dogma—Ingenious connexion of Creation with the

Curia—Serious Allegations of Unfair and Irregular Proceedings of the Officials—Fears at the Opening of the New Session—The Three Devotions of Rome—More Hatred of Constitutions—Noisy Sitting; Strossmayer put down—The Pope's Comments—He compares the Opposition to Pilate and to the Freemasons—He is reconciled to Mérode—The Idea of Charlemagne—Secret Change of a Formula before the Vote.

"**T**HAT took effect," wrote Quirinus, for once, in noting a step of members of the minority. The step so spoken of was a simple one. Four American prelates sent in a declaration that if any attempt was made to carry infallibility by acclamation, as had been suggested, they would leave the Council, go home, and publish their reasons for so doing.

Whether this proceeding alone, or this together with other indications, influenced the majority, certain it is that when the General Congregations were resumed, on March 18, there was no acclamation. St. Joseph did not avail more for his day than the Immaculate had done for hers. All that we hear of any attempt to provoke an acclamation is the statement of Vitelleschi that one prelate tried to get infallibility carried "by chance," but received countenance only from very few. The minority gave in their protest against the new Rules to the Presiding Cardinals. We need not say that neither then nor at any later time did they receive an answer. The business now placed before the Fathers was the Draft of Decrees on Dogma as revised. The eighteen chapters had, under the hands of the committee, the sub-committee, and Kleutgen, shrunk to four. Even as they now stood, the chapters had to undergo considerable alteration before taking the shape in which they appear upon the *Acta*. As they stand there, they are not at first sight capable of interesting the theologian for their theology, or the politician for their bearing on politics. At the time, they led many to wonder why grave men should have spent years in formulating rudimentary principles, and that not very successfully. The alleged reason was that everything being wrong in the ideas of the age, the Church must commence by asserting the existence of a God, and the fact that He had created the world. An attempt was made to throw some dignity about this proceeding by quoting a prophecy of some saint, to the effect that an age would come when a General Council would have to do this. On the other hand, as Vitelleschi shows, Roman wit said that really, after sitting four months and

a half, the Vatican Council would vote almost unanimously that God created the world. Friedrich, however, saw that the Curial system was insinuated in these Decrees, but it took a theologian to discern it, and one who was not a mere theologian. Yet when it was pointed out there could be no doubt of the fact. The simple headings, "God, the Creator of the World," "Revelation," "Faith," and "Faith and Reason," would to Protestant eyes seem very unlikely to cover any such purpose. Nevertheless, they are made to serve the purpose of laying a foundation for the dominion of the Church, over all science and knowledge, for the dominion of the Pope, ay, even that of the Roman Congregations, over the Church, and for the lifting of men out of civil control into the higher sphere of Christian liberty, or, as the world would call it, for placing them under the dominion of ecclesiastical law. The process by which this is done is simple, and had been clearly indicated in the officious expositions of those judgments of the Syllabus which condemned "naturalism." First, God, as a personal Being, exists, has created the world, and rules it. Secondly, He gives a revelation by which man is raised above natural knowledge and perfection to a higher knowledge and perfection. Thirdly, this revelation is a deposit committed to the Church, which holds in charge the Word of God, *written and traditional*; and all things are to be believed which she propounds as divinely revealed, whether they are propounded by solemn judgment, or by the ordinary teaching authority. Hence, naturally, all science must be held subject to this faith, and therefore subject to this Church; and *all things condemned in the Decrees of the Holy See* are to be held as anathema, even though not specified in the present Decrees.

The four chapters containing these principles would not fix the attention of any student if he took them up in a village of the Campagna or of Connaught as the work of the priest of the parish. He would be tempted to doubt whether the worthy man who faced Atheism and Pantheism with these weapons had ever really met with them face to face in either their ancient or modern forms. He might even be tempted to think that the intellectual life of the author had been passed within walls, and that so far as concerns the books and the minds which really sway contemporary thought in either of the directions indicated, he had scarcely ever felt their grip. But when we look at this document as the work of a great society, on the preparation of which had been employed the leisure of years by a few, and then the united counsels of a large yet elect number, it certainly does

not exalt our idea of human gifts. But it is not well to let the critical contempt which German scholars especially have displayed for the Drafts while under discussion, and for the Decrees when ultimately framed, blind us to the practical success of this late but adroit creed. For the purpose of laying a colourable theological basis under a municipal arrangement for governing mind and knowledge, belief and morals, laws and institutions all over the world, by a college of Augurs called Christian priests, it was not a mere superfluity of the professors, as many seemed to think. Sambin, Guérin, and other writers, not to mention prelates in abundance, struck a note, which is now taken up in colleges, seminaries, and schools. These compact chapters, being once exalted to the level of the Word of God, formed a short and easy method for connecting the Creator and the creation of the world with the last edict of the Vatican.

One of the startling statements in the secret memorandum, *La Liberté du Concile*, touches this Decree. A conclusion to it was proposed which to many appeared to include infallibility. This was strongly opposed. The committee withdrew it, saying that it would be reserved to the end of the final chapter on Faith. This step was applauded. The next day, or the next but one, however, the reporter announced that the vote upon it would be taken then and there. Eighty-three, in voting, demanded modifications; which, according to the Rules, compelled a consideration by the committee of the amendments they proposed. The committee finally resolved, with one dissentient, to substitute a new wording which would satisfy all. But when the moment came to vote, before the reporter mounted the pulpit, a communication was put into his hands. This attracted the attention of the Fathers. He mounted the pulpit, but did not report what the committee had adopted! He did report what it had set aside! The vote was instantly called for—no one could speak, the Rules did not allow it. The majority did its duty; and the wording, surreptitiously reported, was made "of Faith."^[352]

Strong and circumstantial confirmation of this incredible statement is given in Kenrick's unspoken speech.^[353] Incidentally he says, "The reporter, while we wondered what was the matter, suddenly recommended this conclusion, which had been first submitted and then withdrawn." This he says only on his way to tell Archbishop Manning that if the sense put by him upon this famous conclusion was the true one, the reporter was either himself deceived or had, knowingly, deceived the bishops. Deceiver or deceived,

his declaration had won many votes. To get the clause passed, the reporter said it taught no doctrine, and was only a conclusion to round off the chapters. But when once passed, Manning cited it as concluding the question of infallibility, and making it improper for the bishops to discuss that question any longer.^[354] Kenrick confesses that at the time he feared a trap. The writer of *La Liberté du Concile* declares that if the liberty of the Council was doubtful, this incident proved the liberty of the committees to be more doubtful still.

The sitting was opened with evident anxiety on both sides. The minority feared the threatened attempt at acclamation; the majority feared that the minority would formally refuse to enter on deliberation under the new Rules. When, however, instead of action, the paper protest was given in, and the reporter for the committee, Simor, Primate of Hungary, had mounted the pulpit, and things had resumed their course, the majority were evidently relieved. They knew that the minority had now committed themselves to the new Rules; and that, however they might recalcitrate hereafter, they would no more be able to shake off the meshes of the net than they had been in the past to shake off those of the old Rules. Five speakers had inscribed their names. They were supporters of the committee. It proved that the acoustics of the Hall had really been improved by a boarded partition which had been substituted for the curtain. When three had spoken the bell of the President rang, and the speaker then in possession was stopped. The Pope was descending to view the sacred relics, and the Fathers had to break up to form a procession in his train. Not one of them had been called to swell that train in the morning when he went, not to see and to be seen, but to the mass for "a certain Charles." At the close of this anxious sitting Bishop Pie congratulated Cardinal Bilio, "It has gone off well." So it had; the minority were now fairly enclosed in the net.

M. Veuillot cries, "There are three great devotions in Rome: the Holy Sacrament, the Holy Virgin, and the Pope. Rome is the city of the Real Presence, and the city of the Mother of God, and the city of the Vicar of Jesus Christ."^[355] That saying sheds a clear light on the effect of materializing and localizing the idea of the *divine presence* by such notions as that of transubstantiation. The show of constitutional reforms just then being made in Paris by Napoleon III, contrasting as it did with what was being done in Rome, naturally disgusted M. Veuillot. He said that the title

of Emperor now seemed grotesque. It was sad to witness the crown turned into a curiosity of the museum, or an accessory of the theatre. This was his idea of a constitutional crown. He consoled himself, however, by the thought that the tiara remained to us. Happily it was more solid than the crown. Pius IX., he said, would bequeath it to his successor more brilliant and more indestructible. Scandal of the world! kingdoms everywhere and no kings! Here is a king, but no kingdom! Let Liberals come to the Vatican and attempt to take liberties with the constitution. Let even universal suffrage attempt it; let it try to make any change here in which the guardian of the constitution does not concur.^[356]

The noisy sitting of March 22 has had its echoes all over the world. The contradictions given by inspired writers to the uninspired ones appear to be even less definite than usual. We may content ourselves with giving that of Cardinal Manning as the sum of them all:—

Having from my earliest remembrance been a witness of public assemblies of all kinds, and especially of those among ourselves, which for gravity and dignity are supposed to exceed all others, I am able and bound to say that I have never seen such calmness, self-respect, mutual forbearance, courtesy, and self-control, as in the eighty-nine sessions of the Vatican Council. In a period of nine months the Cardinal President was compelled to recall the speakers to order perhaps twelve or fourteen times. In any other assembly they would have been inexorably recalled to the question sevenfold oftener and sooner. Nothing could exceed the consideration and respect with which this duty was discharged. Occasionally murmurs of dissent were audible; now and then a comment may have been made aloud. In a very few instances, and those happily of an exceptional kind, expressions of strong disapproval and of exhausted patience at length escaped. But the descriptions of violence, outcries, menace, denunciation, and even of personal collisions, with which certain newspapers deceived the world, I can affirm to be calumnious falsehoods, fabricated to bring the Council into odium and contempt.^[357]

La Liberté du Concile confirms that portion of this statement which says that the speakers were often allowed to deliver irrelevant matter, when, in

other assemblies, they would have been called back to the question. It says that no bishop of the majority could be named who was ever interrupted, although some of them strayed from the question so far that, in the first stages of the proceedings, they rushed into the question of infallibility.^[358]

The first speaker in the celebrated sitting of March 22, was Schwarzenberg. He was not favourable to the Curia, their proceedings, or their plans. He had not felt an impression in the Congregations as if a Council was being held. At last the terrible bell was heard. It was faint, but it was certainly sounding. What! a Cardinal rung down?—and Schwarzenberg, with his princely rank, his historical name, his age, and his majestic presence! Even among the Cardinals, it is said, there was a slight murmur—a greater one among the bishops. But Schwarzenberg himself heard bravos for the President.^[359] But the stately old man held his own.^[360] After two other prelates had succeeded to the precarious honour in which the Prince Cardinal had been challenged, Strossmayer mounted the pulpit.

He attacked the statement contained in the Draft Decrees, that Protestantism was the source of the several forms of unbelief specified in that Draft. Strossmayer showed that the worst revolutions and the worst outbursts of infidelity had not been in Protestant countries, and that Catholics had not produced better refutations of atheism, pantheism, and materialism than had Protestants, while all were indebted to such men as Leibnitz and Guizot. The Senior President, Cardinal De Angelis, cried, "This is not a place to praise the Protestants"; and having got so far in Latin, he declined into some other tongue.^[361] No, says Quirinus, it was not the place, being within some few hundred paces of the Inquisition. The excitement had now become great. Strossmayer proceeded, amid partial clapping of hands and general murmurs of disapproval, to demand how they meant to apply the principles embodied in the new Rules, of making a dogma by a majority. When he cried "That alone can be imposed on the faithful which has in its favour a moral unanimity of bishops," up rose Cardinal Capalti, rang the bell, and, in a voice anything but courteous, as Vitelleschi says, ordered the speaker to stop. Strossmayer replied that he was tired of being called to order, and of being thwarted at every point; that such proceedings were incompatible with freedom of debate, and that he protested.^[362] Then burst out an uproar that alarmed all who were outside in the church. Strossmayer stood, lifted up his hands, and thrice cried solemnly, "I protest! I protest! I protest!"

Some one shouted, "You protest against us, and we protest against you." As the Archbishops of Rheims afterwards related, one of the majority stood up and shouted to Strossmayer, "We all condemn thee!" Bishop Place, of Marseilles, cried, "I do not condemn thee." Some one called Strossmayer a cursed heretic. Some shook their fists, some crowded round the pulpit, some cried "Pius IX. for ever!" some cried, "The Cardinal Legates for ever!" and others, as Vitelleschi adds, made noises equally serious and serene. *La Liberté du Concile* speaks of the unheard of violence, of the cries which rang through the basilica outside, and of the menaces of a large number who rushed to the tribunal and surrounded it.^[363] Friedrich speaks of clenched fists, and of fears lest the prelates should tear one another's hair.

The people in the church interpreted the commotion each man according to his own mind. Some—and that wild interpretation is laid to the door of the English—thought the Garibaldians had attacked the Fathers; some, that the long looked for dogma had at last sprung, full armed, out of the head of the assembly, and that all the uproar was caused by alarm at the portent. These raised cries of "Long live the Infallible Pope!" The crowd pressed round the door of the Hall, and there was danger of a tumult in the church. The servants of the bishops tried to enter the Council Chamber, fearing that their masters were being harmed in the disturbance. But the *gendarme*, whom Vitelleschi calls the most effective instrument of every sort of infallibility, cleared off the throng, resisted only by the servants, who clung to the door in the hope of rescuing their masters.

An American bishop said, with some patriotic pride, "Now I know of an assembly rougher than our own Congress."^[364] Archbishop Landriot, of Rheims, said he was quite in despair.^[365] Even Ketteler said, "It is too bad, the way they handle us here. I do not know how we shall go back to our dioceses and exist there."^[366] Namszanowski, the Prussian military bishop, said to Friedrich that he had told an Italian prelate, "Things are more respectably done with us in a meeting of shoemakers, than here in the Council." Going on to express his impression that the only hope for the Church was in the fall of the temporal power, and the assumption of control over patronage and Church affairs by a temporal government, which would get rid of the excessive number of clergy, he continued, "The most humiliating thing for us German bishops is, that here we are forced to learn

that it is the Freemason and Liberal papers that are correct, and that our Catholic ones, if we must call them Catholic, *lie*, LIE."

The Pontiff soon made his voice heard as to the scene of this loud resounding Tuesday. On the following Friday he had the missionary bishops, numbering a hundred, assembled in the Sala Regia. There the pictures of St. Bartholomew, of Barbarossa, and of the League against the Turks, had time to suggest hopes of future triumph before the Pontiff made his appearance. No sooner had he done so, than all fell on their knees. He had gathered them for a practical purpose. The Dorcases of the Church had been making, not coats and aprons for the widows, but raiment rich and rare for the prelates, and costly attire for altars and images. It was to distribute these goodly garments that his Holiness had now convoked them, but, of course, the great thing was the speech. Pointing clearly to the Opposition, he said, "We are surrounded by great difficulties, for some, like Pilate when terrified by the Jews, are afraid to do right. They fear the revolution. Though knowing the truth, they sacrifice all to Cæsar, even the rights of the Holy See, and their attachment to the Vicar of Jesus Christ. Wretches! what a fault they commit! The warfare of bishops," he went on to say, "is to defend the truth with the Vicar of Christ. My children, do not forsake me. Attach yourselves to me. Be with me. Unite yourselves to the Vicar of Jesus Christ."

We follow the version of M. Veuillot (vol. i. p. 372). Vitelleschi reports one of the Pope's expressions as "Be united to me, and not with the revolution" (p. 129), and asks, Who could have imagined that the good bishops who had been all their lives fighting the revolution should now be accused of revolution? He adds, "Rulers who endeavour to degrade Strossmayer to the level of a Rochefort, not unfrequently reverse the intended result, and raise a Rochefort to the height of a Strossmayer" (p. 130).

"And you, my dear Orientals," said the Pope, "I have ornaments also for you, but not enough of them. I give you what I have." Then he tried to calm their fears, excited by recent collisions. He concluded by the supreme disclosure, "We have in the Council the organs of the Liberal party, whose word of command is to gain time by opposing everything, and to wear out the patience of the majority." The allusion of the Pope was understood. Bitter, indeed, was it for the bishops of the minority to find themselves thus stigmatized before all men by the sovereign. But the effect was practical.

The day following, ten Orientals announced their adhesion to the denunciation of Gratry by the Archbishop of Strasburg. Presently, forty-three missionary bishops published their concurrence in the profound discovery of Bonjean, of Ceylon, that the dogma of infallibility would conduce to the conversion of Buddhists, Brahmans, Protestants, *and other difficult religionists of the East.* ^[367]

As the Pope went to St. Cross of Jerusalem for the *Agnus Dei*, M. Veuillot heard cries of "The Infallible Pope for ever!" and said that this was a reply to the objections raised about the heresy of Pope Honorius. Hefele had unpleasantly brought this heresy into notice in a Latin pamphlet, which he had been obliged to print at Naples. Of inopportune things, few had been more inopportune of late than the appearance in Paris of a new edition of the *Liber Diurnus*, by Rozière. This ancient monument, with its simple formula? and infallible evidence, enabled every one to lay his finger on the fact that for centuries Popes had on oath abjured the heresy of Pope Honorius. But M. Veuillot heard an answer to all this in the cries of "The Infallible Pope for ever!"

But of all that the Pope passed on his route to Holy Cross, that which most excited the imagination of M. Veuillot was the Holy Stair and the *triclinium*, where Charlemagne received the sword kneeling. Charlemagne, he says, ruled only long enough to indicate the place and form which he wished to give to his throne; but now, after a thousand years, his conception is one of the victorious apparitions.

When the world merits to re-enter on the path of unity, God will raise up a man, or a people, which will be Charlemagne. This Charlemagne, man or nation, will be seen here, at the Lateran, kneeling before the Pope, returned from dungeons or from exile; and the Pope will take the sceptre of the world off the altar, and put it into his hands. ^[368]

M. Veuillot knows better than he here seems to know. Charlemagne's conception was that of Constantine over again—a State Church; and over a State Church Charlemagne reigned. The conception of Hildebrand, now to be acted out, was that of a Church State, for which any Charlemagne might conquer, but over which no second head should reign. Unity, as M. Veuillot well knew, was now to comprehend not only one *fold*, but also one

shepherd. No more dualism! no more two-headed monsters! We had come to the dispensation of the spiritual David, Shepherd and King in one. It is, however, clear that the vision revealed to M. Veuillot, as in 1867, still disclosed a struggle to come before the victory; for his Pope, on taking his place as disposing of the sceptre of the world, comes back from dungeons or from exile. Moreover, Veuillot still smothers the poor kings in ambiguity. The new and final Charlemagne is to be a man *or a nation*.

The sittings which followed the stormy one were remarkably still; and it is said that Haynald and Whelan from Wheeling were allowed to say very strong things without interruption. It might be supposed that a short chapter on God the Creator of the World, could hardly give rise to a discussion on the Curial system; but when Rome set out to speak about the Creator, she first of all made mention of herself. The opening words of the chapter were, "The Holy Roman Catholic Apostolic Church." To this form exception was taken. One proposed that the word "Roman" should be omitted, which was, of course, offensive to the Curia, the municipal spirit always forcing into view the shibboleth, quite unconscious that it marred the show of universality. Indeed, it is asserted by many that the extreme Curialists wanted the words "Roman Church" alone, without Catholic. Others proposed that the word "Catholic" should stand before "Roman," or at least that a comma should be inserted between the two. It is a singular fact that a vote of the Council was actually taken on this question of the comma. On this great question of the comma the committee for once did not tell the majority how to vote. *La Liberté du Concile* thinks that the majority voted for the comma. The numbers, however, were not reported in that sitting; and when the next one was opened, and all waited to hear on which side was the majority, lo! the reporter gets up, and, contrary to all rule, usage, and decency, quietly sets aside the vote as if it had never taken place; does not, indeed, mention it! He simply says that the committee has rejected the comma! Now the majority, knowing how it ought to vote, did its duty faithfully. So even about a tittle, in the literal sense, the writer of *La Liberté du Concile* was highly incensed, contending that the rights of deliberation were ridden over roughshod. Finally, the phrase came out as "The Holy Catholic Apostolic Roman Church." Friedrich thinks that this phraseology compromises the claim to represent the Universal Church, and must be taken as only professing to represent the Roman Patriarchate.

Meantime the minority held anxious deliberations. They doubted whether they should not require a positive promise that no Decree touching faith should be carried by a majority, and whether if this was denied they should not refuse to take part in voting. They finally resolved that they would reserve their opposition, as completely as possible, for the all-important question of infallibility. They hoped by this means to secure the double end of showing a conciliatory disposition in everything in which they could give way with a good conscience, and of preventing a precedent from being established for carrying articles of faith by majorities. The last piece of strategy seemed specious. It, however, obviously laboured under the infirmity that they were all the time giving strength to the Rules which established the principle of majorities.

The preamble to the revised Draft of Decrees on Dogma contained not only the passage about Protestantism which Strossmayer had criticized, but also a clause suggested by the Bishop of Moulins, which virtually contained the doctrine of infallibility. This was strongly resisted by the minority, but all attempts to get it withdrawn had proved vain. In the sitting of the 26th, the order and method of voting, which was now for the first time to be put in practice, was fully read out. But before the vote was taken, a paper was sent in to the Presiding Cardinals, said to proceed from Bishop Clifford of Clifton. The Presidents left the Hall, and on their return to the surprise of all, the preamble, instead of being put to the vote, was withdrawn. When it reappeared, the objectionable passage about infallibility was removed, and the phrase as to Protestantism was moderated; and so the impending collision was averted. But the way of doing this showed that majority and minority were equally far from possessing the guarantees of legislative freedom. What would a powerful majority in our Parliament say if, after the clauses in a Bill had been settled in Committee, the Ministers should retire and decide on altering them, and without a word present them in a new form to the House for the final vote when no one could speak?

FOOTNOTES:

[352] *Doc.*, i. 176.

[353] *Ibid.* i. 225.

[354] Kenrick's words are: Dixit verbis clarioribus, per illud nullam omnino doctrinam edoceri; sed eam quatuor capitibus ex quibus istud decretum compositum est imponi tanquam cis coronidem convenientem; eamque disciplinarem magis quam doctrinalem characterem habere. Aut deceptus est ipse, si vera dixit Westmonasteriensis; aut nos sciens in errorem induxit, quod de viro tam ingenuo minime supponere licet. Utcumque fuerit ejus declarationi fidentes, plures suffragia sua isti decreto haud deneganda censuerunt ob istam clausulam; aliis, inter quos egomet, dolos parari metuentibus et aliorum voluntati hac in re ægre cedentibus.

[355] Vol. i. 389.

[356] Vol. i. p. 398 ff.

[357] *Pet. Priv.*, iii. 27, 28.

[358] *Doc.*, i. p. 172.

[359] *Tagebuch*, 277.

[360] *Lib. du Con.*, Doc. i., p. 172.

[361] *Tagebuch*, 278.

[362] *Vitelleschi*, 128.

[363] *Doc.*, i. p. 172.

[364] *Quirinus*, 388.

[365] *Tagebuch*, 278.

[366] *Ibid.* 278.

[367] *Ce Qui se Passe au Concile*, 163.

[368] Vol. i. p. 443.

CHAPTER III

Important Secret Petition of Rauscher and others—Clear Statement of Political Bearings of the Question—A Formal Demand that the Question whether Power over Kings and Nations was given to Peter shall be argued—Complaints of Manning—Dr. Newman's

Letter—The *Civiltà* exorcises Newman—Veuillot's Gibes at him—Conflicts with the Orientals—Armenians in Rome attacked by the Police—Priests arrested—Broil in the Streets—Convent placed under Interdict—Third Session—Forms—Decrees unanimously adopted—Their Extensive Practical Effects.

THE dangers opening in the future defined themselves more and more clearly to the eyes of the bishops as the import of the constitutional changes now in progress was more fully apprehended. Reflection, conversation, and reading had done much since they came to Rome to clear their views. Even if they read as little of Church history, or of the current Curial literature, as is intimated in the oft-repeated laments of Friedrich, and in the less frequent but equally strong hints of Quirinus and others, they must surely have read something of the *Unità* if not of the *Civiltà*, or at least of the sprightly *Univers*. Any one of the three, in spite of that pious style of mystery which Vitelleschi speaks of, would soon have made a very dull bishop indeed conscious that the world was going to be transformed.

The sagacious Rauscher put the forecast of the time into the form of a petition, dated April 10, which states the case of the future position of Roman Catholic citizens more strongly than some statements of it in our country, which have been treated as the invention either of Mr. Gladstone, or at best of Lord Acton, or of some other Liberal Catholic.^[369] The petition is headed as being from several prelates of France, Austria, Hungary, Italy, England, Ireland, and America. The editor of the *Documenta* says that Germany should have been added. Among the prelates from that country who signed it he specifies the Archbishops of Munich and Bamberg, the Bishops of Augsburg, Trêves, Ermland, Breslau, Rottenburg, Maintz, Osnabrück, and the Prussian Military Bishop. According to this statement, the name of Ketteler was to this document. When the German bishops met again at Fulda, after the Council, they put forth the very interpretation of the Bull *Unam Sanctam* which is here solemnly treated as both false and absurd. Of course they were confronted with their own words. Friedrich says, in a note (p. 349), that Ketteler in the *Reichstag*, and in the well-known *Germania* No. 146, for 1872, asserted that no German bishop had signed the petition, and that, therefore, the word "Germany" was not found in the superscription:—

But all this is vain lying and cheating, such as we are well accustomed to in the Ultramontane press and its episcopal inspirers. In No. 242 of the *Germania* Ketteler himself owns that two German bishops, not Prussian, signed it. In reference to this, a theologian, deeply initiated in the secrets of the minority, writes to me under date June 20, 1871, that there are many Germans among the signatories.

Rauscher, and those who signed with him, alleged that the point about to be decided bore directly on the instruction to be given to the people, and on the relations of civil society to Catholic teaching. Disclaiming any thought of accusing the Popes of the middle ages of ambition, or of having disturbed civil society, and asserting their belief that what the Pontiffs then did was done by virtue of an existing state of international law, they go on to say that those Popes held that our Lord had committed two swords to the successors of Peter; one, spiritual, which they themselves wielded; the other material, which princes and soldiers ought to wield at their command. Then dealing with the attempt to represent this Bull as requiring only that all shall acknowledge the Pope as the head of the Church, they declare that gloss to be irreconcilable with love of the truth on the part of any one who is acquainted with the circumstances as between Boniface VIII and Philip le Bel; and that, moreover, it is a mode of treating the subject which puts weapons into the hands of the enemies of the Church to calumniate her. They add, "Popes, down to the seventeenth century, taught that power over temporal things was committed to them by God, and they condemn the opposite opinion." Mark, they do not say temporal authority, but power over temporal things. With them temporal authority is authority of temporal origin.

Now follows a historical statement of great importance. "We, with nearly all the bishops of the Catholic world, propound another doctrine to the Christian people as to the relation of the ecclesiastical power to the civil." They then make the stock comparison of the heavens and the earth, as indicating the relative dignity of the spiritual and temporal power, and say that each is supreme in its own sphere. The ambiguous phrase "supreme in its own sphere," means, in Ultramontane language, as we have seen, only that the temporal prince is not subject to any other temporal power. But these bishops evidently meant at the time to be clear of ambiguities. They added an explanation of immense significance—"Neither power in its office

is dependent upon the other." This is a formal and total denial of what the *Civiltá* had long been preaching, of what Phillips and Tarquini and all the accredited modern writers taught. The utmost they ever admit is, that in its *nature*, and in its *origin*, temporal power is, or may be, independent of the spiritual. But in office all impersonated authorities must be dependent on the impersonated authority of the Vicar of God. The next stroke of the petitioners was still bolder. Admitting that princes, as members of the Church, are subordinate to her discipline, they affirm that she does not in any way hold a power of deposing them, or of releasing their subjects from their allegiance. Still more incisive was the stroke that followed, for it was aimed at the whole principle of Papal authority over the State. They declared that the power of judging things, which the Popes of the middle ages had exercised, came to them by a certain state of public law; and that, as the public institutions and even the private circumstances which then existed had changed, the power itself has with the foundation of it passed away. This was the language which might be used before the Bull *Unam Sanctam* had received the stamp of infallibility. It was language in which the claims founded on the text "Teach all nations," or "I have set thee this day over the nations, and over the kingdoms," are met with a downright denial. The fact that the Popes had at one time acted as supreme judges was accounted for by a state of political relations, not by a divine right, just, we may say, as the fact would have been accounted for that the kings of Persia were appealed to as arbiters by Greeks. Still further, the change which had taken place was not only admitted, but it was held to have annulled the former relation between the power of the Papacy and civil society. A careful consideration of the positions thus stated, and a comparison of them with matter in the Curial writings of the present pontificate with which we are already familiar, afford some measure of the distance separating the Ultramontanes north of the Alps, of the old type, like Rauscher among the clergy and Montalembert among the laity, from the new school formed by the development of the Jesuits into what had now become the Catholic party. We do not say that the old Ultramontanes did not give the Pope authority irreconcilable with Holy Scripture, and power dangerous to civil society. All we can say is that the authority and power which they did give to him was bounded by a frontier tolerably defined, and therefore capable of being defended.

The remark of the Pope, carried away from the Vatican by numbers of bishops and not a few laymen, and repeated in every form of gossip printed or spoken, to the effect that the bishops of the Opposition were only time-servers and Court ecclesiastics, is, in Rauscher's petition, repelled with dignity and force. Their opinions, as just stated, they declare are not new but ancient. They were those of all the Fathers, and of all the Pontiffs down to Gregory VII. They believed them to be the true doctrines of the Catholic Church; for God forbid that, under stress of the times, they should adulterate revealed truth. But they must point out the dangers which would arise to the Church from a Decree irreconcilable with the doctrines that they have hitherto taught. No one, they affirm, can help seeing that it is impossible to reform (they do not say reconstruct) society according to the rule laid down in the Bull *Unam Sanctam*. But any right which God has indeed given, and any obligation corresponding to such right, is incapable of being destroyed by the vicissitudes of human institutions and opinions. If then the Roman Pontiff had received the power of the two swords, as it is asserted in the Bull *Ex Apostolatus Officio*, he would, by divine right, hold plenary power over nations and kings; and it would not be allowable for the Church to conceal this from the faithful. But if this was the real form of Christianity as an institution, little would it avail for Catholics to assert that, as to the power of the Holy See over temporal things, that power would be restrained within the bounds of theory, and that it was of no importance in relation to actual affairs and events, seeing that Pius IX was far from thinking of deposing civil rulers.

This last statement was directly aimed at Antonelli's habitual mode of putting the case in conversation with diplomatists, and also as we have seen in his despatches. But our prelates contend that, in reply to such assertions,

"opponents would scornfully say, We do not fear the sentences of the Pontiffs; but after many and various dissimulations, it has become evident at last that"—(the italics are our own)—"*every Catholic, whose actions are ruled by the faith he professes, is a born enemy of the State, since he finds himself bound in conscience to contribute, as far as in him lies, to the subjection of all nations and kings to the Roman Pontiff*".

On these solemn grounds they formally demand that the question whether our Lord did or did not commit power over kings and nations to Peter and to his successors shall be directly proposed to the Council and examined in every aspect. In order that the Fathers may not be called without adequate preparation to decide a question the consequences of which must profoundly affect the relations of the Church and civil society, they demand further that this point shall be brought on for discussion before that infallibility. Their petition was not addressed to the Pontiff in person, but to the Presiding Cardinals.

No efforts made since, or which may be made hereafter, can erase this record of the views of the bishops at the time in question. Their conduct since the Council proves that for themselves, as individuals, conviction is lost in submission. For the dogma has conquered history. With the German bishops submission passed beyond silence, and proceeded as far as deliberately certifying to the public as ancient views and sincere ones the very views which they had secretly shown to be innovations and pretences, alien to ancient teaching and to their own belief. God's two priceless jewels, conscience and conviction, are here sent to the bottom of the stagnant pool of submission to a human king. It is by contemplating such a course of conduct in men with a position to hold in the eye of the sun, that we learn the force of such words as those of Vitelleschi, when he says that the frequent collision in Catholic countries between a man's civil conscience and his ecclesiastical one is the reason why so often there is no conscience at all. And men such as these German bishops are the moral guides of millions! and out of millions so guided States have to be built up, and men have to be fitted for the judgment of Him who requireth truth in the inward parts! And Vitelleschi evidently thinks that, in a moral point of view, the German bishops were the best!

Gossip in Rome spoke of Dr. Manning as burning with impatience at the delays which had been interposed in the way of the forthcoming dogma. Baron Arnim told Freidrich how it was said that the Archbishop prophesied that the governments would be annihilated for their resistance to it.^[370] Quirinus speaks of the Archbishop as expecting a wonderful dispensation of the Holy Ghost to follow the promulgation of the dogma, and to smooth the way of the Church in her regeneration of the nations. Whatever may have been the amount of correctness in these details, the fact remains that at that

moment a mind which had attracted notice to itself as urging Englishmen to Rome for unity, was bitterly complained of by Liberal Catholics as being the very genius of contraction and division, urging their Church either to beat them down or to cast them out—to make herself too narrow for them, and to tell them that they should be endured only on new conditions.

At the same time a cry came from our own shores. It was the voice of one who had made himself conspicuous by alluring Englishmen towards Rome for certainty, and on whose spirit the shadow of a new and dark uncertainty was now settling down—uncertainty as to the future source of doctrinal truth; uncertainty as to the doctrinal authority of existing documents; uncertainty, in fine, as to what had been, and as to what was to be, the oracle; uncertainty as to the future work of God. At the same moment when Dr. Manning was accused by Roman Catholics of violating the old terms of unity, Dr. Newman was turned into a warning to Protestants as a victim of uncertainty. When describing how he and his party fared when first, after shifting from the rock of Holy Scripture, they settled on another foundation, which they called Anglicanism or the *Via Media*, Dr. Newman had said:—

There they found a haven of rest; thence they looked out on the troubled surge of human opinion and upon the crazy vessels which were labouring without chart or compass upon it. Judge, then, of their dismay when, according to the Arabian tale, on their striking their anchor into the supposed soil, lighting their fires on it, and fixing in it the poles of their tents, suddenly the island began to move, to heave, to splash, to frisk to and fro, to dive, and at the last to swim away, spouting out inhospitable jets of water upon the credulous mariners who had made it their home. [\[371\]](#)

We can hardly doubt that some English parson who in his youth had for a moment felt attracted by the notion of unity and certainty, by the charm of vestments, processions, and banners, thanked God on the morning after he had read the following letter, when he looked at the family Bible, that he had not left the solid ground and set up a tent on what Dr. Newman and his Anglicans told people was solid ground, but which proved to be the sporting and frisking monster that he himself described. Ay, and perhaps some Cornish miner, as he went down into his darkness, happy in his

Saviour—a Saviour who seemed to come nearer to him as day and man, as home and the fair sky, went farther away—so happy that he hummed—

In darkest shades, if Thou appear,
My dawning is begun:
Thou art my soul's bright morning star,
And Thou my rising sun—

perhaps this miner put up a prayer for the poor gentleman in Birmingham who was in such uncertainty about what might be his creed by next Christmas, and yet knew no better than to beg of Augustine and Ambrose to prevail upon the Almighty not to let His Church tell out all the truth about the Vicar whom the gentleman fancied that He had set over her, but to cause her to practise reserve, or to speak in non-natural senses.

To avoid contamination by impure authorities we shall follow only the *Civiltá* in its narrative of the Newman incident.^[372] The *Standard* stated that Dr. Newman, in a letter to his bishop, then absent in Rome, had called the promoters of infallibility an insolent and aggressive faction, and had prayed to God to avert from His Church the threatening danger. The *Weekly Register* declared itself authorized by a personal friend of Dr. Newman to give the most absolute denial to this deliberate fiction. Dr. Newman himself wrote to the *Standard* to deny that he had written to his bishop and called the promoters of infallibility an insolent and aggressive faction. Yet, after Dr. Newman's method, there were words and words about it. Soon appeared in the *Standard* a second letter from him, confessing that he had been informed from London that several copies of his letter existed in that city, containing the affirmation which he had denied. He now said that, before sending his contradiction, he had looked at the notes of the letter to his bishop, and had not found the words "insolent and aggressive faction." But he confessed that since learning that several people in London had those words in their possession, he had looked again and found them. He added that by the faction he did not mean that large number of bishops who had declared in favour of infallibility, nor yet the Jesuits. He meant a collection of persons of different countries, ranks, and conditions in the Church.

The *Civiltá* was careful to remark that Dr. Newman had not withdrawn his offensive words. Others no less remarked that he had never confessed to a single point in his own statement till compelled to do so. He had published

a contradiction which to ordinary Englishmen would seem to carry an almost complete denial of the whole allegation. But the *Standard* on April 7 published the following letter, showing that not only the substance of the allegation was correct, but also its details:—

Rome ought to be a name to lighten the heart at all times, and a Council's proper office is, when some great heresy or other evil impends, to inspire hope and confidence in the faithful; but now we have the greatest meeting which ever has been, and that at Rome, infusing into us by the accredited organs of Rome and of its partisans (such as the *Civiltá*, [the *Armonia*], the *Univers*, and the *Tablet*) little else than fear and dismay. When we are all at rest, and have no doubts, and—at least practically, not to say doctrinally—hold the Holy Father to be infallible, suddenly there is thunder in the clearest sky, and we are told to prepare for something, we know not what, to try our faith, we know not how. No impending danger is to be averted, but a great difficulty is to be created. Is this the proper work of an Œumenical Council?

As to myself personally, please God, I do not expect any trial at all; but I cannot help suffering with the many souls who are suffering, and I look with anxiety at the prospect of having to defend decisions which may not be difficult to my own private judgment, but may be most difficult to maintain logically in the face of historical facts.

What have we done to be treated as the faithful never were treated before? When has a definition *de fide* been a luxury of devotion and not a stern, painful necessity? Why should an aggressive, insolent faction be allowed to "make the heart of the just sad, whom the Lord hath not made sorrowful"? Why cannot we be let alone when we have pursued peace and thought no evil?

I assure you, my lord, some of the truest minds are driven one way and another, and do not know where to rest their feet—one day determining "to give up all theology as a bad job," and recklessly to believe henceforth almost that the Pope is impeccable, at another tempted to "believe all the worst which a book like *Janus* says," others doubting about "the capacity possessed by bishops drawn from all corners of the earth to judge what is fitting for European society," and

then, again, angry with the Holy See for listening to "the flattery of a clique of Jesuits, Redemptorists, and converts."

Then, again, think of the store of pontifical scandals in the history of eighteen centuries, which have partly been poured forth and partly are still to come. What Murphy inflicted upon us in one way M. Veuillot is indirectly bringing on us in another. And then again the blight which is falling upon the multitude of Anglican Ritualists, etc., who themselves perhaps—at least their leaders—may never become Catholics, but who are leavening the various English denominations and parties (far beyond their own range) with principles and sentiments tending towards their ultimate absorption into the Catholic Church.

With these thoughts ever before me, I am continually asking myself whether I ought not to make my feelings public; but all I do is to pray those early doctors of the Church, whose intercession would decide the matter (Augustine, Ambrose, and Jerome, Athanasius, Chrysostom, and Basil), to avert this great calamity.

If it is God's will that the Pope's infallibility be defined, then is it God's will to throw back "the times and moments" of that triumph which He has destined for His kingdom, and I shall feel I have but to bow my head to His adorable, inscrutable providence.

You have not touched upon the subject yourself, but I think you will allow me to express to you feelings which, for the most part, I keep to myself....

This letter could not, because of Dr. Newman's reputation, be passed over in silence. The *Civiltà* well knew how to utilize that reputation, yet it indicates by its mode of dealing with him that it does not set Dr. Newman so high, either intellectually or morally, as his own countrymen do. It treated the whole affair as a temptation of one of a pious imagination but a sickly judgment. The temptation was one peculiar to Englishmen—it was low spirits. An Englishman labouring under that temptation would read the *Civiltà*, the *Armonia*, the *Univers*, etc., with sombre-coloured spectacles. It was a disease in the eyes. Those affected by it looked upon the definition of a verity as a scourge of God, an affliction not merited! Still, as Dr. Newman did not for himself fear it, he would be able to explain it to others. But the

definition of a truth was to prove a blight for the poor Anglican Ritualists:

Do you not perceive that it is only temptation that makes you see everything black?... If the holy doctors whom you invoke, Ambrose, Jerome, etc., do not decide the controversy in your way, it is not, as the Protestant *Pall Mall Gazette* fancies, because they will not or cannot interpose, but because they agree with St. Peter and with the petition of the majority.... Would you have us make processions in sackcloth and ashes to avert this scourge of the definition of a verity? And if it is defined, when the Fathers chant *Te Deum* will some of you intone the *Miserere*? On the contrary, you too will applaud it.... Dupanloup will not merely be resigned, he will be a champion of infallibility, and we shall all together say, Amen, hallelujah! and it also will be a hymn like the song in the Apocalypse.... Get rid of this ugly melancholy temptation. It makes you lose your logic and your English good sense. Even the Protestant journals teach you better, and as one devil cast out another, a Protestant article may serve to cast out a temptation.

The compassionate Jesuits of the *Civiltá* then proceed to cast the one devil out of Dr. Newman by the aid of two others, which are respectively the *Pall Mall Gazette* and the *Manchester Examiner and Times*—the former in an appearance of April 8, the latter in an appearance of April 9. Lest this exorcism should not suffice, it calls to its aid seven other spirits equally evil—the *Times*, the *Saturday Review*, the *Telegraph*, the *Daily News*, the *Spectator*, the *Standard*, and the *Echo*. All these, fallen angels though they were, had agreed in the opinion that a religious truth had better be told than hidden, and that a Church which had an infallible head ought to know it. Though on this one point right, these Protestant journals had, however, held up the letter of Dr. Newman as a proof of internal division underlying a vaunted unity. But in this they were illogical. With this boast the *Civiltá* fitly couples a declaration of Dr. Newman, in which the tortured spirit, whose piercing cry had reached the ear of the world through thick walls, and had been identified in spite of artful windings, puts on, in presence of Protestants, another voice, wishing them to become partakers of its satisfaction and repose! M. Veuillot was not the man tamely to find himself coupled with Mr. Murphy by one like Dr. Newman, whom, if repute in

England set extravagantly high, certainly he did not. He told how the *Univers* had begged four thousand pounds for Dr. Newman and sent it to him, on the occasion when he was cast in damages for a libel on Achilli, an ex-censor of the press, at Viterbo, who had become a Protestant:—

"The respectable convict," says Veuillot, "received it and was pleased, but he gave no thanks and showed no courtesy. Father Newman ought to be more careful in what he says; everything that is comely demands it of him. But, at any rate, if his Liberal passion carries him away till he forgets what he owes to us and to himself, what answer must one give him, but that he had better go on as he set out, silently ungrateful?"^[373]

Such were the inhospitable jets spouted out upon Dr. Newman by the floundering creature on the back of which the twice "credulous mariner" had pitched his tent. Englishmen may smile at finding Dr. Newman aspersed with the reproach of Liberalism. His puerile spite at the very name of it, as shown in his writings, thus found its Nemesis. M. Veuillot, by a link of connexion which is not obvious, confesses that he too, in youth and inexperience, indulged in dreams of peace. But his mature ideas were ruled by a manlier spirit. "I dream of a long war—long, hot, inexorable, and one that will change the face of the world."

For some time past the Orientals had been receiving and giving cause for solicitude. The incident already related of the Chaldean Patriarch was but a symptom of general uneasiness. The Pontiff had resolved on abrogating the old right of electing bishops, under which the communities nominated three persons, of whom the Patriarch instituted the one whom he preferred. We have seen how the Chaldean Patriarch was overcome. Jussef, the Melchite Patriarch, refused to surrender his rights, and it is said that, in an audience before other Orientals, the Pope went so far as to seize him by the shoulders.^[374] The Syrian Patriarch, on receiving the Pope's command, had taken to his bed, and had not yet answered. The Maronite Patriarch had refused his consent, and had, notwithstanding repeated invitations, stayed in Antioch, instead of coming on to the Council.

The Armenians, however, excited more attention than all the others. Their Patriarch, Hassun, had, some time before, surrendered his rights, and while,

in consequence, rising high in favour with the Curia, had incurred ill-will among his own people. Rome, taking advantage of his concessions, had made new and exorbitant claims, on which the yoke of the Papacy was thrown off. Imperative orders to submit were disregarded. A special commissioner was sent from Rome to allay the disturbance, but his success was very limited.

For some time rumours had been floating about the city that two Oriental bishops had been thrown into prison. These changed to rumours of an arrest, and an escape. At last the *Univers*^[375] published an account, stating that the theologian attached to an Armenian bishop had used such language respecting the authorities, that Cardinal Barnabò, Prefect of the Propaganda, had ordered him to the Convent of the Passionists. But he refused to go in such terms that the Cardinal Vicar was obliged to employ force. The theologian was then taken from the residence of the bishop, and put into a vehicle. He was, however, so violent that the "agents" let him escape into the house again, and though they there attempted a second time to take him, they finally gave way before the opposition of the bishop.

At the same time the *Univers* mentions "a much graver fact." The Pontiff had ordered an apostolic visitation of the convent of the Armenians, which stands just behind the Colonnade of St. Peter's. The twelve who once walked among men with the humble name of apostles would have little thought that an apostolic visitation should come to mean an inspection by an officer of the King and Pontiff of Rome. The Bishop Ksagian (*sic*) refused to receive the visitor. The Pope ordered the bishop to the Convent of St. Sabina. The bishop, however, refused to go, and appealed to Bishop Place, of Marseilles, to procure French protection for him.

Ce Qui se Passe au Concile (p. 144) says that Bahtiarian, an Armenian Archbishop, had his Vicar-General with him, against whom some one informed, as having spoken with hostility of Hassun, the Romanized Patriarch whom we have just mentioned, and of Valerga, the so-called Patriarch of Jerusalem. Cardinal Barnabò ordered the Vicar-General to a Jesuit convent, but the Archbishop insisted that he would not allow him to go, except upon a written order from the Pope himself. We are not sure whether this represents the first scene in the account of the *Univers*.

Some days afterwards, proceeds *Ce Qui se Passe au Concile*, as Bahtiarian was going to say Mass, his Vicar-General followed him, carrying the missal, accompanied by another Armenian priest. In the street the Archbishop passed through a group of police, headed by an officer. They seized the two priests who were walking behind him, and dragged them to a vehicle. The Orientals valiantly defended themselves, and a struggle ensued. Hearing cries, the Archbishop turned back, and saw his Vicar-General down, and the missal on the ground being trampled upon. He rushed forward, pointing to the book, and crying, "It is the Gospel: it is the Gospel of Christ! Do you treat the Gospel like that?" The officer did not dare to do violence to the Archbishop, who managed to carry off his Vicar-General, and that day both of them took refuge in the Armenian Convent. It would seem that now followed the order for a visitation of the convent, which Archbishop Casangian (as this account correctly gives the name and title) resisted; and he, in turn, received an order to go to a convent for "retirement." It is even said that leave to quit Rome was refused by the police to all the Armenians, not excepting a bishop who was furnished with a medical certificate that it was necessary for his health.

The *Civiltá* and the *Acta Sanctæ Sedis* do not mention the arrests. The one says that Kasangian, as they spell his name, was Abbot-General by arbitrary election, the other that he was so by tolerance of the Pope. The visitation was first attempted by a Passionist Father, delegated by Pluym, a bishop *in partibus*, who had been by the Pope appointed Visitor-General of the Order. The attempt was resisted. The document which gives to Pluym his powers calmly says that "*power divinely conferred resides in the Pope of loosing, by his sentence, the things bound by sentence of any judges whomsoever.*" [\[376\]](#) The disobedient Archbishop and the local Abbot were both ordered to another convent, *for spiritual exercises*, as long as the Pope should appoint. They both refused to go. Fresh letters gave the powers of visitor to no less a person than Valenziani, the bishop who in the Council read the Decrees. These letters declared Archbishop Kasangian deposed from the office of Abbot-General of the Order; declared the office of the Abbot of the monastery vacant, and all other offices within it whatsoever; declared that no authority existed in that house but what flowed from Valenziani, and declared that all pains and penalties he might impose should be ratified.

So armed, Valenziani presented himself with consummate address and admirable suavity. Even according to the *Acta Sanctæ Sedis*, he declared that his visitation had no object but to lead the Armenians to fulfil their duty. But the Orientals knew the double tongue. In his own words, they lent no obedient ear. Others say that they would not allow the Pope's brief to be read. Defied and defeated in the very "street of the Holy Office," Valenziani had the once terrible interdict fastened to the door of the rebellious convent. It was owing, says the *Acta Sanctæ Sedis*, to the clemency of the Holy See that the *severest punishment*, such as was due to the offence, was not inflicted. ^[377] Others told of different causes.

The protection of France being refused to the Armenians, the strange spectacle was seen, as Vitelleschi puts it, of brethren in Christ being forced to seek protection against His Vicar from a Turk (p. 130). Rustum Bey, the Ottoman ambassador, came from Florence, and, it is said, was not well received, by Antonelli, who gave him to understand that, in Rome, all priests were subjects of the Pope. But the ambassador would not waive the rights of the Porte, which, he alleged, was obliged to show favour to the Armenians, to prevent them from throwing themselves into the arms of Russia. The day of unity had not yet dawned. The poor world had still to suffer from more heads than one. Finally, after specious attempts of the authorities to get the Armenians into their power, and wonderful wariness and dexterity on the part of the Orientals, one morning the convent behind the colonnades of St. Peter's was found empty—not the first time that a convent had been left empty in Rome. The monks had somehow managed to take their flight from a spot only a few yards from the Inquisition and within rifle shot of scores of convents—in which "retirement" for "religious exercises" might have been, for them, a very serious matter. It is said that, before the flight, Rustum Bey told the monks, in case of need, to hoist the Turkish flag, and threatened that, if any harm was done to them, reprisals should be taken on Romish convents in Turkey. Indeed, M. Veuillot goes so far as to assert that they actually did hoist the Turkish flag, and also the French. He says that they executed the sentence of excommunication upon themselves (ii. 87). If they did hoist the Turkish flag, it would have been a curious sight to see the two emblems of religion and physical force which still survive in Europe—the crescent, and the keys and tiara—floating side by side, close by the prisons of the Inquisition and the circus where Nero gave to unity by physical force, his pontifical sanction. It was asserted that

attempts were made to put the Armenian Archbishop of Tarsis also into "retirement."^[378]

The exaggerated rumours afloat regarding espionage would be stimulated by anecdotes like the above. It seems to have been agreed, on all hands, that during the Council the force detailed for that important duty had been increased manifold. Friedrich mentions one Papal officer who said that out of every fifty persons fifteen were spies. He gave examples of people now living handsomely who were known to have nothing. One Marchese had set up his carriage. Why, Friedrich says, even the train-bearer of a Cardinal will give a dinner to the train-bearers of the other Cardinals in order to spy them out. He naturally enough remarks that a historian learns a good deal by finding himself amidst such a state of things. It enables him to understand many things in history. But, strangest of all, reflects the Professor, is it to find people looking on this worn-out system as the model for the whole earth. It is, however, just the fact that such a state of things was looked upon as the model for the whole earth, that gives a deep interest to every trait showing what that state of things really was.

Friedrich, remarking that the Count De Chambord, as a dispossessed prince who expected his throne back from the infallible Pope, very naturally was an Infallibilist, goes on to say that only dispossessed princes are papistically minded. They were nearly all waiting in Rome, and he had reason to know that they expected that the declaration of infallibility, and the things connected therewith, would lead to their restoration, as the Pope certainly expected that it would lead to the recovery of his own States.^[379]

April 24 was the day fixed for the third public session. The first had been devoted to the opening ceremony, the second to the swearing of the Creed; but this was one for the promulgation of Decrees. Up to the last it was doubtful whether all the bishops of the minority would adopt the policy recommended by the leaders, not to cause any division into majority and minority till the struggle on infallibility itself came on. Some say that Kenrick and Strossmayer held out so far as to stay away. But Kenrick voted, although, as we have seen, he expressed regret at having yielded to others instead of following his own judgment. The robes for the day were red. The doors of the house were thrown open, and non-members who had a place in the galleries were not required to withdraw at the time when the Rules prescribed that they should do so. When the Decrees were handed from the

throne, Valenziani read them out from the pulpit. Jacobini, the Sub-Secretary, then ascended it, and called out the name of Cardinal Mattei. "*Absent!*" cried a voice from near the throne. "*Absent!*" cried a voice from near the door, at the other end of the Hall. Jacobini then called out, "Constantine, Bishop of Porto"; and Patrizi, rising, said "*Placet.*" "*Placet,*" cried the voice from near the throne. "*Placet,*" cried the voice from near the door, and the scrutineers and officers registered the vote. It was not long before a test name was called—that of Schwarzenberg, one of the few Cardinals older than the present pontificate. He had already advised the policy of concession for to-day, saying, "We must not blow our powder away." But this was not known to all the majority, and when the magnificent prince pronounced his *Placet*, there was a manifest expression of relief. When the Cardinals had all been called the names were no longer repeated—only the title of the See.

Cardinal Manning relates how diplomatists, who had hoped to see division, were struck as they looked from their galleries, and saw the leaders of the Opposition, one after another, stand up and pronounce their *Placet*. Friedrich says that the countenances of the Jesuits changed from gloom to delight, when Schwarzenberg, Hohenlohe, Darboy, and others, gave in their votes, and that they manifested a particular interest in that of Hefele. He also says that the gentlemen who were with him in the tribune figuring as theologians, but whom he calls train-bearers, were intensely anxious about the indispensable sunbeams, which, however, he adds, were for that day cut off from the Hall. Just as the Pope entered the assembly, the sunbeams did pass the threshold; and the gentlemen around him cried out, "The sun, the sun!" their eyes dancing for joy. After the Decrees had been passed, the Pope pronounced a short allocution, rejoicing in their unity, and saying, "Our Lord Jesus Christ gave peace to His apostles, and I also, who am His unworthy Vicar, in His name give peace to you." Friedrich says that some French bishops hailed this with clapping of hands, but that, instead of this being general, there were signs of dissatisfaction, and particularly from the galleries. The first statement is confirmed by the *Acta Sanctæ Sedis*.

Friedrich could hardly catch the formula in which the Pope announced his passing of the Decrees; but it struck him that it was not the same as that prescribed in the Rules; and on receiving the text as passed, he found that a change had been made without any intimation whatever having been given

of it. To him the change was nothing, as the new form only said what he knew the previous one meant, although bishops had seriously differed with him for saying so. The Rules prescribe the formula, "We decree, enact, and sanction"; and this was now changed to the more compact and expressive Papistical formula, "We define, and, by apostolic authority confirm." The word "sanction" had a flavour of historic dualism.

The Curialists boasted, after this session, that they had gained three points, and the statement of them shows a clear conception of their own strategy and of the positions to be won:^[380] first, the Pope had, for the first time in three hundred and fifty years, proclaimed Decrees in a Council in his own name only, merely mentioning the Council as approving; secondly, the new Rules had been accepted; thirdly, the final clause of the Decrees carried the conclusion that the former dogmatic Decrees of the Popes were accepted as of authority. This last point alone was of prodigious consequence, and vindicates Friedrich's discernment in tracing the Curial system at first sight in these apparently elementary and rather feeble chapters. Only one fortnight earlier, as we have seen, Cardinals and prelates declared that they and the majority of bishops in great nations had taught in direct contradiction to the Bull *Unam Sanctam*. But from to-day both that Bull and, among others, the *Ex Apostolatus Officio* of Paul IV, the father of the Roman Inquisition, were of Divine authority! Or, as Quirinus puts it, "Rules of faith for the whole Catholic world, and thus it will be taught universally in Europe and America, henceforth, that the Pope is absolute master in temporal affairs also; that he can order war or peace, and that every monarch or bishop who does not submit to him, or helps any one separated from him, ought to be deprived of his throne, if not of his life" (p. 471).

The Decrees contain eighteen anathemas! Vitelleschi says, that of those in the cathedral who paid any attention to the proceedings, none seemed ever to reflect that, as Catholics, they would lie down that night with new articles of faith and new declarations (anathemas) weighing on their intellect and conscience. "Authority" teaches men to admit new creeds with awful facility, and to utter anathemas almost as readily as a primitive Christian would have said, God bless you! The Curialists did not exaggerate the substantial victory which had been won, or the practical importance of the three points already specified. The legislative effect of those points upon what little of constitutional arrangements had still been left in the Romish

communion was very great. They linked all the past dogmatic Decrees of the Popes to the authority of the Creator of the world. The unfailing interpreter of the view taken by the Court of the position of affairs, M. Veuillot, says (i. 472), "The last paragraph confirms all the Constitutions, and apostolical Decrees, which condemn the errors of the times. Thus have the condemnations pronounced in the Syllabus received the official stamp." [381]

Even the anathemas were pleasant to M. Veuillot's cultured taste. "You have read the eighteen anathemas against errors pronounced in the old form of the sovereignty of the Church." Some had said that there would be no more anathemas, some that they did not want any more. "But there they are, and there they are for eternity. In my view, the work of revolt accomplished during a hundred years falls smitten with old age" (ii. 45, 46).

Not long afterwards, chiding the *Figaro*, the *Gaulois*, and other journals, for asking what the Council was doing, he replied, "The Council is making a wide and deep furrow like the grave of a world. You will go down into that furrow, and you will not spring up" (ii. 58). As to the *plébiscite* then about to be taken in France, he said that he could not vote Yes, because that would be permanently handing oneself over to princes who would not take any engagement to the Church; and he would not say No, for he did not wish to precipitate disasters (ii. 66).

FOOTNOTES:

[369] *Documenta*, ii. 388.

[370] *Tagebuch*, p. 283.

[371] *The Tractarian Movement*.

[372] VII. x. 348 ff.

[373] Vol. ii. pp. 31-34.

[374] *Tagebuch*, p. 344.

[375] *Ibid.* p. 304.

[376] *Acta Sanctæ Sedis*, v. 447.

[377] *Acta Sanctæ Sedis*, vol. v. 501-7.

[378] Compare *Tagebuch* (pp. 304, 324, 325, and 344) with *Quirinus* (p. 432) and *Vitelleschi* (p. 130).

[379] *Tagebuch*, p. 358.

[380] *Quirinus*, p. 477.

[381] The *Civiltá*, without naming the Syllabus, asserts that by this paragraph the Council itself has put a new seal on all the acts of the Pontiff condemning erroneous opinions. It says the mouths are shut of those sowers of tares who would pretend that opinions not branded as heresies were left free by the Council, because not separately named (VII. x. 524).

CHAPTER IV

To the End of the General Debate on the Decrees *De Ecclesia*, June 3
—Temporal Benefit to the Curia of Spiritual Centralization—
Spalding's Proposals—Impatience of the Pope and Veuillot—
Outcry against *Ce Qui se Passe au Concile*—All other Subjects to
be Postponed, and Infallibility to be brought on out of its order—
Renewed protest of Minority—Open Change of Dispute from one
on Opportuneness to one on the Merits of the Dogma—Anecdotes
of Bishops—Violations of Rules—Private Notes of Bishops on
the Dogma—Doubts cast on the Authority of the Council—
Formula of New Decree—How it will Work.

"**W**HO would not gladly pay a handsome sum to be armed with an infallible decision which will at once crush all opposition and put down all adversaries?"[382] This was the practical question suggested by the speculations of Romans. Increased resort to the oracle would certainly follow the lifting of its Decrees above all dispute. What, indeed, they might well ask, would not a party in some hot dispute pay for a Decree that could never be disturbed? and in high affairs of State, when some Cræsus had set his heart on a great enterprise, would he not make offerings to the oracle, which even a Herodotus might rejoice to immortalize? Moreover, as Quirinus adds, almost every Roman had a brother, an uncle, or a cousin, in the clerical circle around which the profits would be distributed. If bishops, with countries to call their own, feared the result of the attempt to set up clerical authority above civil, Roman prelates who had no country, but were only the political dependents of foreigners, openly declared that they looked upon the restoration of spiritual authority over temporal affairs as the one

thing called for by the times. So long as this notion was confined to the Roman prelates proper, one could comprehend it. They had lived apart from men and affairs, except their own affairs, and were absolute strangers to the actual age and world. But that bishops from free countries or great ones should entertain such dreams, or while not themselves sharing in the illusions, should adopt the religious expedients by which it was hoped to give them effect, is marvellous. Perhaps it may be partly explained by that weakening of the individual conscience and will, through the principle of authority, to which Vitelleschi so instructively refers; by that complete personal dependence of bishops on the Curia for consideration, and even for means, which is noted on all hands; by the unbroken habit of yielding to Rome, or of being beaten in every attempt at resistance; by old age, and by the incurable isolation of the men themselves from humanity. They were men bound, as we view it, only by artificial ties, to a guild bent upon ruling the world, while they themselves received gold rings and goodly apparel for bearing their share in the enterprise. Or, as they viewed it, they were men separated from the world, identified only with the Church and the clergy, and utterly dependent upon the Vicar of God. What could they do? A quarrel with a government had hitherto always brought a bishop glory, but not so a quarrel with the Curia. In the former case, the Pope took care to make up to the bishop in professional advantage more than he could lose by political collision. In the latter case, no government could or would make up to him for disgrace or ruin. A martyr bishop was one of the most effective figures in every Church display. A great occasion would be comparatively dull without one. Governments could make no such use of bishops who might suffer for loyalty.

It is curious to find in the Archbishop of Baltimore one of the keenest partisans of infallibility. Formerly, Dr. Spalding had foretold that the dogma would only occasion difficulties, and had advised resistance. The causes of his new zeal were of course discussed in Rome, where changes of opinion are liable to be assigned to personal rather than to public motives. Spalding prepared a formula of infallibility to the effect that all Papal decisions must be received with internal assent. It is even said that he took this for a mild form compared with the direct declaration of the doctrine. Two of his American colleagues, on the other hand, the Archbishops of St. Lewis and of Cincinnati, bore a distinguished part among the prelates of the minority,

as did also the Archbishop of Halifax.^[383] Kenrick, of St. Lewis, left an impression of force equalled only by few prelates in the assembly.

The question of infallibility had been a good while in the hands of the committee before the latter gave any sign of being ready with the formula. Some thought that the committee was not unwilling to let time pass before forcing matters to an issue. The minority had now become anxious for delay, in the hope that the dreaded Chapter XI. would not be brought on before the heats of the Roman summer should disperse the Council. They had the whole of the Decrees on the Duty of Bishops, on the Life of the Clergy, on the Catechism, and ten chapters of the Decree on the General Constitution of the Church, to discuss before the critical eleventh chapter would come on. But these hopes of delay on the part of the minority were perfectly understood by the Curia. It was determined not to let the patience of the majority be worn out. The impatience of men like Mermillod may be imagined when even Bishop Martin is quoted by Friedrich as expressing a wish that the Garibaldians would come and scatter the Council. But most impatient of all was the Pontiff. Briefs and speeches equally tingled with the same excitement. M. Veuillot found it necessary to declare that the Pope was not impatient, but resolute. Still he let it out that something had been hoped for even at the last public session (ii. 45). The voice of the people crying, "The Infallible Pope for ever," had sounded in Veuillot's ears during the Easter festivities, and again on the anniversary of the return from exile. But when, oh when would the voice of God sound? Pius IX would know God's moment, and would take it. As to the cries which nourished the faith of M. Veuillot, the deaf ears of Quirinus and Friedrich heard only faint ones—two voices or three. These writers, at least one or other of them, suggested a calculation as to how many *baiocchi*, or halfpence, the cries cost.

The mission of Pius IX was but half fulfilled. He had secured the Immaculate Conception, but not yet the Infallibility; and this was to be, and it must be soon. What Quirinus says (p. 526) of the Pope's two fixed ideas is in harmony with the general belief; they were, first, a persuasion of the infallibility of all his predecessors; and, secondly, a persuasion of his own special inspiration by the Virgin.

Excitement was created in Rome by the appearance of *Ce Qui se Passe au Concile*. It was believed to be written by the Abbé Gaillard, and said by M.

Veillot to be at least by a theologian; but he did not hesitate to insinuate that it was written under the eye of bishops.^[384] By all Liberal Catholics, entitled to be heard, it was and is looked upon as an undeniable summary of facts. The Council condemned it, the organs denounced it; but none the less, when you inquire even in Rome for good information, it is sure to be named, sometimes even by privileged men. M. Veillot gives its official character thus: "Lies, calumnies, defamations, beyond count. Lies double, fourfold, tenfold. The general lie contains another, and that another, and that yet another, so there is no end." But many pages of righteous indignation expressed in this style leave you to ask, what single fact has been disproved by this gentleman who gives the lie so spiritedly? (ii. 98). Much the same may be said of the other of "the two modern Fathers," Margotti.

The day previous to the late public session, a deputation of bishops had been received with great distinction by his Holiness. They said that they spoke on behalf of four hundred prelates, and requested that he would be pleased to order the question of infallibility to be immediately brought before the Council, postponing other subjects which had precedence. The Council itself was not able to fix even the order in which questions were to be taken up. There soon was a sign that the change of plan thus recommended had actually been adopted. The proposed Decrees touching the duties of bishops and the life of the clergy were set aside; and the Decree on the shorter catechism was taken first in order. The former could well wait. The latter was really an important element of centralization. But, it may be asked, Was not the Council in possession of a subject after it had once been proposed and discussed? The reply must be, No, for such subjects could be withdrawn from its cognizance at any moment without its leave.

No sooner were the minority aware of the intention to take the discussion on infallibility out of its order, than they resolved on sending a solemn deputation direct to the Pope to make urgent representations. Purcell, Archbishop of Cincinnati, was to be the spokesman.^[385] But this movement was forestalled by one from the other side. The *Synopsis of Notes*, written by the Fathers upon the Dogma, was suddenly distributed. This not only marked the resolution of the Curia to press forward, but it accomplished a step in the progress. Either from discouragement, or from a calculation of the futility of the step, the bishops allowed their intended deputation to fall

through. They resorted once more to a paper protest, which was signed by sixty-six prelates.^[386] The true spirit of an Oriental Court made them conscious that a petition and a surrender were the measures of which they were capable. In fact, as will presently appear, they had passed the stage even of petitioning, and had come to that of hopeless complaint.

As if to console themselves by strong words for doing nothing, they recalled the fact that as soon as the *Civiltá* hinted that the work of the Council was to be the proclamation of infallibility, all the enemies of the Church had exclaimed that the Holy Father, after having made a pretext of the general good, had really convoked the bishops for his own exaltation. This they had then treated as a calumny. But if the weighty matters already laid before the Council were to be put aside, and nothing was to result from their labours during six or seven months but the one Decree already adopted, with the second now proposed on infallibility, they would find on returning home that those calumnies against the Church would have acquired life and force such as they could not contemplate without deep sorrow.

The sixty-six bishops formally announce that they do *not make any request*. They simply state their convictions. Again, to prefer requests would, they feel, be no longer consistent with their episcopal dignity, with their position, or their rights, as members of the Council, since they have already learned sufficiently, and more than sufficiently, by experience that any prayers of theirs are so far from being granted that they are not even answered.

Nothing now remains to us but to disclaim for ourselves, as far as may be, all accountability before men, and before the dreadful judgment-seat of God, for the ill-omened events which, beyond all doubt, will soon arise, and indeed are already arising; and of this our disclaimer the present document will abide the perpetual witness.

If the Decree to be pronounced *De Ecclesia*, putting aside controverted points, aimed only at displaying to the eyes of all men the beauty and majesty of the Spouse of Christ to the greater glory of God and the salvation of souls, how easily might we set forth the whole of the doctrine of the Church; and, perhaps, we might all on the approaching festival of Pentecost, wherein the foundation of the Church is annually called to mind, celebrate it together. Then indeed would a right solemn

Pentecost shine upon our Synod, whereof the splendour streaming over the entire world would fill all Christians with mighty gladness. But, alas! so far is such gladness from being granted to us, that it would appear that on the approaching Pentecost we must look forward rather to a day of mourning than to one of joy. The accountability for this would rest on those who—no necessity of the Christian commonwealth demanding it—would, by means of the Council, wave the victor's palm because certain opinions of the schools had triumphed, not over the enemies of the Church, but over brothers, and who would thus inflict the gravest injury upon the Church; injury which, both at the present time and in view of the circumstances of future times, would give cause for abiding fear and pain of heart.

May it please the almighty and merciful God to avert so great an evil from the Vatican Council, and to lead us all by His heavenly grace to a sense of true concord and unity!

Among those who sign are Prague, Munich, Colocza, Cologne, St. Gall, Maintz, Halifax, Clifton, St. Louis, Paris, St. Augustine in Florida, Cincinnati, Chatham, Plymouth, Kerry, Milan, and Sault St. Marie in Michigan.

For us it is hard to account for the fact that language so strong, from men representing interests so large, should be deemed not even worthy of the courtesy of an answer. Why did the bishops not go to the Pope directly?

"Sad as it is to confess it," says *La Liberté du Concile*, "the Pope does not easily grant audiences to bishops of the minority. Many have been expressly solicited, as to which up to this hour no reply has been received. We know several of the oldest and most respected bishops of France, who have been six months in Rome, and have not yet been admitted to the presence of the Pope. Of those who have been admitted, to none, with two or three exceptions, has the Pope given any opening for conversation on the concerns of the Church, or for exchanging a single word with the Holy Father on the position of affairs."[\[387\]](#)

Quirinus represents the Roman prelates as saying that the German bishops at Fulda had already showed that they felt how unity was to be preferred to veracity. Thus the Curia had implicit faith in the feebleness of conviction, compared with the force of the habit of submission. Only two things would they have feared—a schism on the part of the bishops, or a separation of the Church from the State on the part of the politicians. But they confidently reckoned on the submission of the one, and on the political calculations of the other.

The pretext that all the objections to infallibility related only to opportuneness, had been gradually dropped. In fact, neither side could keep it up, even before the public. It was possible to conceal most of the speeches, and to deny everything that was reported of them; and it was hoped that the secret petitions would never see the light, but tracts and pamphlets could not be so readily hidden. So the Jesuits at last boldly turned round and accused the opponents of attacking the doctrine itself. *Observationes Quædam de Infallibilitatis Ecclesiæ Subjecto* is the title of one publication, in treating of which the *Civiltá* said that opportuneness no longer related to the character of the times, but to the character of the doctrine. The doctrine itself was declared to be alien from Catholic tradition,—a new doctrine, and consequently a false one.^[388] Ketteler had brought a pamphlet to Rome, in Latin, composed under his authority. It was long detained by the police, but, after vexatious delays, was released. One of the things which exposed him to the charge of being double-faced was the fact that he "hawked" this pamphlet about among the bishops, and yet said that it attacked only the opportuneness of the definition.^[389] Hefele said, "You are a Rhine Frank, and the Rhine Franks are clever people. I am only a Swabian, and I cannot see it."

As Bishops Krementz and Namszanowski left Friedrich on April 25, they met Bishop Martin. He told them with delight how the King of Prussia, their own monarch, had written to his ambassador not to trouble himself further with the decisions of the Council. Martin extolled the king to the skies, and declared that he would now make a Prussian Propaganda. But Namszanowski replied, "If that is your idea, you are greatly mistaken. The king at first believed that in Rome one had to do with reasonable and sensible men; but now, seeing that he was misled, he says, "Do what you like, and we shall let you do it quietly. If you adopt conclusions which are

injurious to us, we shall draw the sword." That is the language which the consciousness of power inspires."^[390]

The Congregation of April 29 was occupied in discussing the Decree on the Catechism. Hefele read a speech of Rauscher. The Cardinal affirmed that, according to the Concordat, the Catechism in Austria could not be changed without the consent of the government. He demanded therefore that the new Catechism should not be declared obligatory. The majority burst out into loud laughter. Hefele looked firmly and indignantly at the disturbers. The noise ceased, and he proceeded. A second time the laughter occurred. At the conclusion, he went to the Presidents and complained. One of them observed that as a historian he must know that even at Trent there had been interruptions. Yes, he said, but he did not know that interruptions were essential to a Council; and he would call attention to the fact that such proceedings would cause the freedom of the Council to be called in question, and possibly its œcumenicity.^[391]

On May 2, as afterwards appeared by a letter found among papers in the Tuileries, Darboy was writing to Napoleon III stating that the minority was compact, would do its utmost, and did not despair of victory. On May 4 the Council came to a vote on the Catechism, when as many as a hundred voted *Non placet*. Then occurred a recess of several days; but twenty-four French bishops put in that day a protest against arbitrary violations of those very Rules which had been imposed upon the Council by the Pope himself. In the late public session the Rule that non-members should be excluded during the legislative acts had been departed from without the Council being consulted. Further, this day, they add, when the votes on various amendments to the Decree on the Catechism had been taken, the Rule required that the vote on the whole should be deferred to another day. But, against the Rule, it was taken on the spot. Several Fathers, who had counted that the Rule would be kept, were absent. It is further alleged that no opportunity of pointing out these irregularities was given; because, say they, contrary to the rule of all deliberative bodies, it is not allowed in the Council to speak even to order, unless the name of the speaker has been inscribed the day before, which of course is impossible in unforeseen circumstances.^[392]

During the recess the Fathers could study the contents of the notes on infallibility. The Synopsis of them, as we have already mentioned, had been put into their hands. Some of these notes are printed entire, some are abridged; but there does not appear to have been much complaint that this was unfairly done. The two sides were represented by about an equal number of memoranda. The Synopsis contained two hundred and forty-two pages, consisting of one hundred and thirty-nine memoranda. Sixty-five of these were adverse to the definition. Of these, again, only thirteen advanced merely the plea of inopportuneness, and fifty-two opposed the doctrine itself. Yet Cardinal Manning never heard of five bishops who denied the doctrine of Papal infallibility!^[393]

Adepts readily traced many of the anonymous memoranda to their authors, and, of course, the authors frequently acknowledged their handiwork. The first memorandum was by Rauscher, the last by Kenrick—two men who showed as much capacity as any of the minority. In these notes, the student will find a real source of light on the thoughts and principles which were then common to all men convened to reconstitute human society, as well as on those in which they disagreed.^[394] They are almost the only portion of the proceedings which have real interest for the pure theologian. Attempts have been made since the Council, by many bishops, to represent the whole amount of difference of opinion as having been a trifle, touching only the question of opportuneness. The character of those statements is sealed by these notes. We shall not attempt to give a general outline of them; but the very first memorandum, that of Rauscher, is perfectly explicit. He immediately handles the doctrine, not the prudence or expedience of proclaiming it. It was fair to treat an objector like Dr. Newman as opposing on grounds not either theological or moral, but from subtle expediency. Such men were simply afraid of hurting the credit of their Church, though admitting that the claims she advanced were warranted. They counselled a reserve which would have been thought natural for Italians, but impossible for Englishmen, before the time when Dr. Newman's power of making the flow of our mother tongue smooth and winning began to be used, in order to rob it of its good name for straightforwardness. But Rauscher showed cause. He declared that it had never yet been proved that the alleged authority which the new claims professed to formulate, had any existence. He declared that the attempts made to prove it were partly artifices and

partly fallacies. Two positions so distinct as this simple one of Rauscher and the double one of Newman could not be confounded, even by men much less apt at splitting hairs than Roman Catholic bishops.

"The subterfuges," indignantly writes Rauscher in his first paragraph, after alluding to the necessity, under which he lay in Germany, of showing reasons, and tacitly contrasting such a position with the facility of demanding submission in Rome,— "The subterfuges employed by not a few theologians in the matter of Honorius, would expose me to derision. To employ sophisms seems to me unworthy both of the dignity of a bishop and of the nature of the subject, which ought to be treated in the fear of God; but prudence itself would put me on my guard against artifices." What a testimony! delivered in the face of Rome at that moment, it showed the effect of free enquiry in compelling men to be truthful, as compared with the effect of what Rome calls "authority" in making them first supple and then deceitful. It is a testimony of permanent value in the three spheres of history, morals, and theology.

His next blow is at a logical trick, which, however, is one employed by Roman Catholic theologians at almost every step in their attempt to prove Romanist as distinguished from Christian doctrine—the trick of begging the question. It is inferred that the Decrees of the Pope, in matters of faith and morals, must be infallible, because the power of legislation in faith and morals for the whole Church having been conferred on Peter and his successors, it is clear that what was false could not be allowed to enter into such Decrees. Very good says Rauscher; but this is calling the thing to be proved to give evidence for the thing to be proved. The question turns on the very point whether any such power of universal legislation, in faith or morals, without appeal or revision, ever was conferred on Peter and his successors. Even here Rauscher assumes as proved what is altogether incapable of proof, that the Roman Pontiff is the successor of Peter. That Peter ever was in Rome is not proven; that he ever was Pontiff is absurd; that he ever was the Christian bishop of the city admits of scarcely a show of proof, except on those principles of evidence which have been naturalized in Romish theology by the necessity of supporting fables and forgeries.

Not only do men like Rauscher show that they dispute the doctrine itself, but the memoranda of many who commence by alleging inopportuneness,

end by attacking the substance of the doctrine. For instance, No. 136 says, "Finally, I cannot find this infallibility in the acts of the General Councils. On the other hand, it is certain that three General Councils condemned Honorius for heresy." Yet this prelate seemed, in his first sentences, only to oppose the opportuneness of the definition. Kenrick takes the opposite course. He begins by saying that the doctrine is not so certain that it can be defined as an article of faith, and then takes up lower ground, that, even if it were certain, it would not be expedient that it should be defined by the present Council. We do not wonder at any man who could put upon paper the last principle, submitting to anything, or concealing anything, or professing anything, if it is expedient. What, it may be true that, on earth, God has set up a man as His representative who, whenever he puts on his full official character, utters the Word of God without error or possibility of erring, and yet it may not be expedient to tell this most pregnant of truths by any and every organ possible! How can any moral foundations exist in men whose whole substance is honeycombed by principles like these? When they submit, their submission has not the grace of any real sacrifice. When they affirm, their affirmation has not the authority of any real conviction.

This moral obscurity does not prevent Kenrick from clearly seeing theological points. He boldly says that the doctrine expressed in the proposed definition is wanting in authority both from Scripture and from ecclesiastical tradition. We shall not enter into his examination of the alleged scriptural proofs, but it is well worth the attention of theologians. He clearly puts the retrospective and prospective aspects of the new dogma, when contrasting it with an ordinary point of doctrine like that of the Immaculate Conception—

The new dogma not only impairs the rights of bishops, but imposes on the faithful the necessity of believing that the Roman Pontiffs never did err in faith, which indubitable monuments of history seem to disprove; and that they never will err in the future, which we hope, but are not able to believe with the certitude of divine faith. [\[395\]](#)

Kenrick says that, in defining the Immaculate Conception the Pope proposed the greater glory of the Mother of God, and previously to doing so consulted all the bishops, and acted on their advice. Now, however, he proposed his own infallibility, to be defined by a Council, which seems to

have been convened for that purpose, although many bishops, and those representing the principal Churches of the Christian world, do not approve of it either in itself or in its concomitants.

Kenrick embraces under the head of expediency matter very different indeed from what one would have anticipated. He barely indicates the social and political dangers likely to arise out of the contemplated changes in dogma and polity. Having done this, he at once declares that the authority and œcumenicity of the Council are liable to be called in question, and will be called in question, on two separate grounds: first, the composition of the Council, and, secondly, its defect of liberty. As to its composition, he divides the members of it into five classes—

1. Diocesan bishops having Sees and governing them by ordinary episcopal authority.
2. Bishops of the *Ring*—*episcopi annulares*—who have the orders of bishops, but have neither Sees nor flocks, and who, with few exceptions, hold offices in the Court of Rome.
3. Other bishops *in partibus*, who, under the designation of Vicars Apostolic, preside over missions, and are all of them so immediately dependent upon the Holy See as to be removable at the discretion of the Pope.
4. Cardinals who are not bishops, and Cardinals who, having the orders of bishops, have no Sees.
5. Abbots and Generals of Orders.

Kenrick asserts that out of all the five classes the right of definition in matters of faith belongs, by a certain and universally acknowledged title, to diocesan bishops alone. The right of the Bishops of the Ring to define in matters of faith is a subject of dispute among theologians. The right of the Vicars Apostolic is disputable, but on different grounds. They have Sees, yet they are immediately dependent on the See of Rome, even to the extent of being removable at the will of the Bishop of Rome. As to Cardinals who are not bishops, with the Abbots and Generals, there is no doubt. They are confessed by all to have no right of definition in matters of faith, except as derived from custom.

Having thus described the composition of the Council, he adds the following solemn words—

In this Council the subject in hand affects the conflicting claims of the Pope and the bishops. If the Pope alone is infallible, the bishops do not exercise the office of judges, and, in a Council, they are only his councillors. Hence it ought to belong not to the Pope singly, but to a Council of diocesan bishops presided over by the Pope, to determine what right properly belongs to the other four classes; for otherwise the Pope would seem to dominate the Council.

How that argument to prove that the proper constitution of a Council was violated at the Vatican is to be met, it is not easy to see. The point next touched by Kenrick is one that has been less dwelt upon in public, but which would probably have some weight in a legal argument. In the Bull of Convocation it was enjoined upon bishops who should not be able to attend, to send their deputies furnished with proper credentials. Forty such deputies actually presented themselves; they were refused admittance, not by the Council, but by the Pope acting alone! Now, insists Kenrick, diocesan bishops would appear to have a strict right to send deputies to the Council when themselves unable to attend, which right was recognised by the ancient Councils. The exclusion, therefore, of those deputies from the Vatican Council *by the sole authority of the Pontiff*, would seem to raise a doubt of its œcumenicity. Had there been any question as to their title, it belonged to the Council itself to determine, but permission was not given to take the opinion of the Council on the point!

Kenrick further specifies, as a blot upon the authority and œcumenicity of the Council, the withdrawal from the bishops of the right of proposition by a mere Papal constitution. He adds the important fact that, owing to the privation of this right, many Fathers who wished to take the opinion of the Council on the admission of the deputies of absent prelates were unable to do so, although they left no means untried. Yet one at least who was born an Englishman can say that this Council was as free as our Parliament—a Council that had not even the right of verifying the titles of its own members! Kenrick concludes by expressing his persuasion that if the definition of Papal infallibility should go out in the name of this Council, it would rather increase dissension than promote peace, and would lead to a

diminution of the rights of bishops and to the dishonour of the Pontiff himself.

The Liberal Catholics began, about this time, to notice the frequent expressions in Curialistic circles anticipating a war, in 1871, between France and Prussia.^[396] The *Univers* now fixed a new date for the settlement of the great question—Ascension Day. All that could be said *pro* or *con* had been said, according to this journal, in the memoranda written by the prelates; and so in the Council there would be only an exposition of the Decree prepared by the committee, after which the Fathers would at once proceed to the vote. No doubt the avoidance of further discussion was a matter of great account with those who were looking to the future. The effect of the new constitution, at least its immediate effect, would greatly depend upon the *éclat* with which it should be promulged, and on the state of preparation to which the Catholic populations might be brought. If a tale of Friedrich, at the expense of Cardinal Capalti, be anything more than a joke, the question might have been settled by leaving it open. The Cardinal declared that he should be content with a definition of the infallibility of the Pope, whether it was infallibility with the bishops or without them.^[397] The circulation of such a tale illustrates an impression prevailing, that even many of those in high places had not mastered the bearings of the question in dispute.

It was on May 10 that the proposed Decrees of Infallibility were distributed. "I shook all over my body," says Friedrich; "my senses seemed to forsake me as I read on." What was the amazement of the Professor to find not only all the mediæval pretensions taken up again, but the cool assertion made in notes, that all monuments of antiquity showed that the infallibility of the Roman Pontiff had been held as a truth divinely revealed. Another assertion which he noted, is that infallibility could never be disproved by history; but if any historical facts did appear to conflict with it, in so far as they did so they must be taken to be false. Again, the conclusions of any science, even those of ecclesiastical history, if opposed to the infallibility of the Pontiff, must be held to be errors. This is a very practical way of carrying out the principle announced by Cardinal Manning as to the dogma conquering history.

After reading this sort of matter, the indignant Professor cries, "Will our bishops dare to return home with such a verdict against all science, and

against all sound reason? Does not this amount to saying—I believe it because it is absurd?" The Archbishop of Bamberg gave Friedrich some light on the way in which history was to be kept right. He said that the Pope was irritated at Hefele's pamphlet on the case of Honorius, and said, "There must be falsification of documents. The documents must be in the archives. Let them seek and they will find them; I am persuaded of it." It was publicly announced that the Pope had appointed two men to perform this duty. The Archbishop thought that the Curia would shrink from facing the judgment of the world. He placed his finger on his forehead, and said, "I cannot understand how a man in his senses can think of a personal infallible Pope." Archbishop Scherr having joined them, Deinlein added, "The world must rescue us. Had it not rescued us, we were already lost, and the Council over."^[398] To this Friedrich adds that Bishops Krementz and Namszanowski are already thinking of the coming excommunication; and that Hefele had said gladly would he lay down the mitre and crozier, but what would become of his diocese?

Friedrich, wearied out in spirit, now spoke of going home. "You must stay," said Bishop Namszanowski, "for the historians must sit in judgment over this perfidious proceeding. It is impossible any longer to speak of a General Council. I only wonder that the German bishops have not already jumped out of their skin."^[399]

One of Friedrich's notes is to the effect that the Nuncio in Munich having reported that Archbishop Scherr in opposing infallibility commanded no sympathy among his people, the Pope sent for the Archbishop, and asked him why he took the side of the minority when he was isolated in his own diocese. The Archbishop asked Friedrich to tell Döllinger that even at this peculiar audience he had stood by him. Still he wished Döllinger not to do anything more; it would only increase the difficulties.^[400]

The proposed Decrees on the Church were wonderfully changed. The celebrated twenty-one Canons were now omitted. The whole Draft was compressed into four chapters, with three Canons. Vitelleschi, as we have seen, cannot understand how governments, especially the government of France, should attach so much importance to the Canons, and so little to the dogma of infallibility. The latter, as he well says, virtually includes them all, and as many more besides as may spring from the sole and irresponsible

will of an individual. John Lemoine had hastily said that Infallibility affected France no more than the doctrine of the Immaculate Conception; but Prévost Paradol had, with better insight, shown that, on the contrary, it gave the Pope everything in theory, and left him in the position, step by step, first to assume and next to acquire everything in practice. The Immaculate Conception seriously affected France; not the doctrine, but the proceeding which set up a single master over the faith of France. That proceeding paved the way for Infallibility, which in its turn was to confirm for ever and render ordinary a despotic procedure which otherwise might have been treated as exceptional.

The *Univers* of April 29, after asking whether objectors meant to remain Catholics after the definition, and saying that if they answered No they were judged already, went on to remark, If they answer Yes they are preparing themselves for a kind of faith and obedience that is hardly reasonable; preparing to believe that what was black has become white through a Council invested with power to make true that which was false. Poor Montalembert did not live to read that taunt and menace both in one. Mrs. Oliphant mentions someone who said that the Count had expressed his intention to submit at last, for he must do so. That is one thing, and expressing an intention to believe is another. But those who know how such statements as that quoted by Mrs. Oliphant are made, would not give much for it if it came only from a female or a priest.

Bishop Martin related how Friedrich, as he walked on the Pincian the evening before leaving Rome, said, pointing to St. Peter's, "If only the lightning fell from heaven and annihilated St. Peter's with all its glories!" "No," retorted Friedrich, "I never said anything so silly. What I once did say on the Pincian was, referring to the superstition of the Pope, 'Nothing can restrain the Pope from the definition, unless, indeed, at the critical moment, the well-known sunbeam fails, and some other natural phenomenon comes in its stead.'"^[401]

To understand the line of thought by which calculating men connected the dogma with the prospect of universal dominion over the world, it is necessary to recall the primary elements of Church jurisdiction. As a kingdom appointed to govern the world, which is the ineradicable Papal conception, the Church rules through three tribunals—the internal, the external, and the supreme. Technically they are two, internal and external;

the Pope being supreme in both. In the *internal tribunal* the Church cites; the cited are all the faithful. The person appearing is himself accuser and witness; the confessor is judge and jury. This tribunal, popularly called the Confessional, rules the conscience, the board, the bed, the purse, the family life, and the action of the individual in public life. In the *external tribunal* it is the ecclesiastical law which cites. Those cited are persons against whom any one either secretly or publicly complains. The witnesses may be either secret informer or open witness. The judge and jury are the ecclesiastical magistrate. This tribunal, popularly called the Ecclesiastical Court, rules all social questions whatever that have any moral interest or any colourable connexion with religion. Finally, in the supreme tribunal the Curia cites. The parties cited are all against whom any appeal or any information has been laid. The witnesses are those whom the Curia chooses to call, or its informers. The Pope is judge and jury. This tribunal, popularly called the Pope, acting through some Roman congregation or court, settles all points as between confessor and penitent, as between priest and bishop, as between magistrates and parties to a process, as between rulers and subjects, as between State and State, and above all, as between any State with its ruler and the supreme tribunal.

These three tribunals between them give a complete control of the tangled web called the world, excepting only that ill-defined if not invisible selvage of it which consists of affairs not included within the domain of morals. And that web, with its cunning shots and all but invisible devices, is that "large and variegated web," which, when unfolding its program, the *Civiltà* showed, would, after lustres had come and gone, appear as the fabric woven with the simple threads of its title, *Catholic Civilization*; or the Catholic Civil System.

Now, in the chaotic condition of recent times, President Moreno and Queen Isabella were the only two rulers that even seemed to be dutifully disposed to the Church in her tribunals; and poor Queen Isabella had already fallen.

In most countries, one who never entered the internal tribunal, might conduct a business, indeed he might even write a newspaper, or fill a professor's chair, ay, might make laws, or occupy a throne. Hence the crying need of a central authority so strong as to give to the external tribunal control over every bench, and to make the internal bear rule in every home, especially in every home wherein dwelt a ruler.

The proclamation of infallibility would be a complete restoration of the supreme tribunal, not indeed as to all the facts, but complete as to the ideas. This would bring about the restoration of facts in time. It is plain that the great majority of the bishops calculated how the supreme judge, when once enthroned and acknowledged, would awe wayward kings and politicians; how, waiting for favourable political conjunctures, Nuncios would be able to move the bishops, and the bishops the clergy, and the clergy the people, till the patient power of the Church would bow all to her own laws. The hold already acquired upon schools, especially in France, was the most solid element in the entire calculation. The progress made within the last thirty years held out flattering hopes as to the future. The architects forgot that they had climbed up by a ladder which they had now kicked away. The voice to which concessions had been made was that of the Liberal Catholics pleading in the name of liberty, and they and their plea had now been unblushingly disowned.

FOOTNOTES:

[382] *Quirinus*, p. 482.

[383] *Quirinus*, p. 253.

[384] "What stupefaction to think that perhaps serious men have been engaged in getting these things written about themselves!" (vol. ii. 125).

[385] *Quirinus*, p. 508.

[386] *Quirinus* says by seventy-seven; but we give the numbers as we count them at the foot of the document in the *Documenta ad Illustrandum*, ii. p. 392.

[387] *Doc. ad Ill.*, i. 178.

[388] *Serie VII.* x. p. 291.

[389] Printed in *Documenta ad Ill.*, i. p. 1-129.

[390] *Tagebuch*, p. 365. Friedrich adds a note to his second edition:—"Bishop Namszanowski had this statement denied in the *Germania* of 1872, No. 132. This is really disgusting. I declare here, as I have done already in the *Cologne Gazette*, that the Bishop himself told me in his own house immediately after the meeting with Martin. I was so struck with the expression that I entered it under the heading, 'Certain Notes touching Rome and the Council.'"

[391] *Ibid.*, p. 380; *La Liberté du Concile*, *Doc.* i. p. 173.

[392] *Documenta*, ii. p. 391.

[393] *Pet. Priv.*, iii. p. 27.

[394] *Documenta*, ii. 212-89.

[395] *Documenta*, ii. 287.

[396] *Tagebuch*, p. 375.

[397] *Ibid.* p. 391.

[398] *Tagebuch*, p. 398. Friedrich in a note says that when he made this statement in Nuremberg the Vicar-General of Archbishop Deinlein published invectives against him, but could only say that such language does not come out of the mouth of the Archbishop—which Friedrich calls ridiculous absurdity.

[399] "*Noch nicht aus der Haut gefahren sei.*"—*Tagebuch*.

[400] *Ibid.*, p., 400.

[401] *Tagebuch*, p. 423.

CHAPTER V

The Great Debate—Bishop Pie—The Virgin Mary on Infallibility—Cullen claims Ireland and MacHale—Kenrick's Reply, and his Account of the First Introduction of the Doctrine into Maynooth—MacHale speaks—Full Report of Darboy's Speech—The Pope gives Signs of Pleasure at Saldanha's Assault on the King of Portugal—New Date fixed for the Great Definition—Manning's Great Speech—Remarkable Reply of Kenrick—McEvilly ascribes Catholic Emancipation not to the Effect of Oaths, but to that of the Fear of Civil War—Kenrick's Retort—Clifford against Manning—Verot's Scene—Spalding's Attack on Kenrick—Kenrick's Refutation—Speeches of Valerga, Purcell, Conolly, and Maret—Sudden Close of the Debate.

ON May 13, began the great debate, if anything that took place in the Vatican Council may be called by that name. This conflict was to be the death of real parliamentary debating in all countries. It ranged over the whole Draft of the proposed Decrees. The scope of them is well indicated by M. Veuillot, when he calls the Draft the *Schema* of the Pontiff. It treats only of primacy and infallibility. The first chapter treats of the institution of primacy in the person of Peter; the second treats of its descent through the Roman Pontiffs; the third, of its nature and scope; the fourth, of Papal infallibility.

Bishop Pie, of Poitiers, opened this famous field by a discourse much praised and much ridiculed. He argued for infallibility on the ground that Providence permitted St. Paul to be beheaded, and not St. Peter,^[402] and on the further ground that Peter was crucified with the head downwards, to show that the body was to be supported by the head; but he who supports is infallible, and not he who is supported.^[403] This truly Romish argument evoked, as Vitelleschi intimates, from the majority enthusiasm, and from the Opposition sarcastic smiles. We do not know whether any divine put before Bishop Pie the difficulty thrown in the way of his argument, by the fact that Providence must have permitted Peter to be beheaded after death, seeing that his head was with that of Paul in the Lateran, and only his trunk in St. Peter's.

On the next day, no less a person than the Cardinal Vicar ascended the tribune to plead for the glory of his chief. By a leap from centre to circumference, he was followed by the Archbishop of St. Francisco. The Archbishop of Messina relieved the gravity of the debate by relating how Peter had preached in Sicily; but when he told the people that he was infallible they doubted. They, however, sent an embassy to the Virgin Mary, to ask if she had heard of the infallibility of Peter. The Virgin replied that she certainly remembered being present when her Son conferred this prerogative upon him.^[404] This speech has caused some correspondence in the Italian papers, especially touching the letter of the Virgin, which is still in existence, and has an annual feast all to itself. Somehow we are not ourselves clear as to the history of the embassy and of the letter. It is said that the letter was let down from heaven by the Virgin; but if that be so, where did the ambassadors go to with their message? But as the events took place before the age of reconstruction, we shall not digress further.

The discussion proceeded from day to day, a long and increasing list of names promising endless speeches. Three Cardinals spoke on May 18—Schwarzenberg, Rauscher, and Donnet, Vitelleschi reports Schwarzenberg as having said (p. 159), "It is said that you really believe in this dogma; but, if that be true, you cannot insist that I and my companions ought to acknowledge what seems to us absurd; and if you do insist, be sure that schisms will arise, and abjurations will follow within the Church of Rome." On May 19 the pulpit was ascended by Cardinal Cullen, carrying with him the confidence of power in Ireland, and of favour with the Curia. Coming of

"a right noble Irish family," as the official history says,^[405] and trained after the heart of the Curia, he had well justified their expectations in carrying out the centralizing system, to which he owed his mitre. He addressed himself particularly to the task of refuting Hefele's pamphlet on the heresy of Pope Honorius, contending that it could not be reconciled with what that prelate had written in his history of Councils.^[406] But he also attacked Kenrick for his memorandum already spoken of. He charged the latter with impairing the argument for the primacy of the Pope, by asserting that the other apostles were also called foundations as well as Peter. Furthermore, Kenrick had asserted that the words "lambs" and "sheep" in the Vulgate (John xxi. 16, 17) both stood for one and the same Greek word, and hence he had contended that the stock Curialistic argument, that the bishops, "sheep," are placed under the Pope as well as the people, "lambs," had actually not even the show of a foundation in the passage. This was a sore point, for what would the Papal system have done before infallibility was proclaimed without this passage? It was as important as "Obey God rather than man," or as "Teach all nations." *It is not true*, asserted Cullen, that the two Latin words in those verses represent one and the same Greek word in the original. He quoted Oriental versions. *It is not true*, he repeated, with emphasis.

As to the word "faith," a word which Rome has, like so many others, killed, disembowelled, and embalmed, Kenrick had asserted that our Lord never employed it as meaning a *body of doctrine*, and that He employed it not more than once or twice as meaning the act by which we believe in God as revealing Himself; but that He generally employed it as meaning trust or confidence. This, Kenrick had asserted, was the sense of the word in the passage on which the attempt was made to build the infallibility of all dogmas found in the Decrees of the Roman Pontiff. The words are, "I have prayed for thee that thy faith fail not." That is, our Lord had prayed that the trust and confidence of Peter should not entirely fail; and Rome argued that He thereby promised that everything in the Decrees of the Roman Pontiffs, affecting doctrine or morals, should be for evermore free from error. Kenrick's exposition of what our Lord really did say made this argument appear not only futile but unfair. Cullen met him by declaring that his views savoured of the Calvinian heresy. The Cardinal proceeded to deny that bishops, as successors of the apostles, possessed that universal jurisdiction

in the Church which the apostles themselves had received from Christ. He quoted a work of a deceased brother of Kenrick, formerly Archbishop of Baltimore, on the Primacy of the Apostolic See. Cullen, moreover, claimed Ireland and the Irish for infallibility in the teeth of oaths, catechisms, records, and living memories. In doing so, he was indiscreet enough to name, as on his side, MacHale, the lion of St. Jarlath, who had sat silent under the weight of his nearly fourscore years.

Kenrick, feeling that Cullen had said things which touched his honour,^[407] prayed for leave to reply, either at once or at the end of the sitting. This was refused. Archbishops must wait till all the Cardinals who chose to speak had spoken, and Kenrick must wait till all archbishops senior to himself had been heard. He prepared a speech, but the debate was cut short before he had the opportunity of delivering it. Thereupon he resorted to the expedient of printing. To this document we are indebted for some of our most trustworthy information as to the real position taken up by different speakers.^[408]

Kenrick said that Cullen had, in very severe language, charged him with impairing the argument for the primacy of the Pontiff, by alleging that the other apostles were called foundations as well as Peter. That, however, was not his language, but must be laid at the door of the "divine" Paul and John. Kenrick admitted primacy, but denied infallibility. He also denied that Christ had made the stability of the Church dependent on Peter as the foundation. He had provided for her stability otherwise, by saying. "Lo, I am with you always, even unto the end of the world." Cullen had further said, and that repeatedly and with much energy of expression, It is false, because Kenrick asserted that one and the same Greek word was translated both "sheep" and "lambs" in the sixteenth and seventeenth verses of John xxi. But, in so doing, replied Kenrick, the Cardinal had betrayed a little infirmity.^[409] The fact remained, that in those two verses the Vulgate did translate one and the same Greek word by two Latin ones. Moreover, in the reading adopted by Tischendorf, there was no word in any of the three utterances of our Lord which properly represented the word "sheep"; and the reading adopted by Tischendorf was confirmed by that which they might see inscribed on the arch of the Vatican Church, over the throne of the Pontiff.^[410] In answer to the assertion of the Cardinal, that his exposition of the meaning of the word "faith" savoured of the Calvinian

heresy, Kenrick said that perhaps his Eminence had not weighed the full significance of such language. He showed that out of twenty-nine places in the Gospels where the word occurred, in all but two it clearly meant confidence, or else the faith that works miracles; and that in only two could it be taken for the theological virtue of believing in God's revelation of Himself. He was still fully persuaded that its real meaning, in the words addressed by our Lord to Peter, was that of trust or confidence.

But Kenrick contended that Cullen had, by his own method of reasoning, taken away all the force usually ascribed by theologians to the words, "Thou art Peter." He had said that the privileges given to the other apostles by our Lord did not descend to their successors. If that was the case with the other apostles, surely it would be also the case with Peter. Kenrick, however, firmly contended that apostolic authority did not emanate from the Pontiff, but was given to the bishops by Christ Himself, and that the restriction of it to certain localities was merely by appointment of the Church.

After showing that the interpretation of the words "Upon this rock," which was supported by the greatest number of the Fathers, was that which regards the faith declared in the Confession of Peter as the foundation on which the Church was to be built, he pointed out that the word "foundation" has two clearly distinguished and well-defined meanings. First, the natural foundation, or that to which a wise builder clears his way before laying a stone—the living rock. Secondly, the architectural foundation, namely, the first course of stones laid on this rock. He contended that attention to this simple fact made the language of both classes of passages perfectly clear; those in which our Lord alone is called the Foundation, and those in which the apostles are so called. At the same time it cut away all the ground on which an argument in favour of the infallibility of the Roman Pontiff is built, because he is the foundation of the Church.

As to the testimony of the Church with regard to the proposed dogma, Kenrick states it thus—

The dogma is not contained in the creeds; it is not given in the Catechisms as an article of faith; it is not found as such in any monument of public worship. Therefore the Church has not heretofore

taught it as being of the faith; and had it been a doctrine of faith, she ought to have taught it, and to have handed it down.

Not only has the Church not taught it in any public standard, but she has permitted it to be impugned, and not in one place alone, but in almost all the world, Italy excepted, and that throughout a great length of time.... To speak of the nations which use the English tongue, in no one standard or catechetical book of theirs is this opinion enumerated among the verities that are of faith. In the United States, as in Ireland, all books of piety and doctrine were drawn from England till the opening of this century, and later. In the greater part of those books, the opposite opinion is contained. In none is this opinion found as being of faith (p. 212).

He shows that recently a few books had appeared as if to prepare the people for the new dogma. Alluding evidently to the work of the Jesuit Weninger, which the Pope had praised, he calls the author a zealous but unlearned man, and says his work was more calculated to excite ridicule than anger, and that when the author had applied to himself for some commendation, he had incautiously promised him the charity of silence.

As to the use made by Cullen of his brother's work, he said he had felt as if the dead had been commended in order to rebuke the living. As to the faith of the Irish, he remarked that a smile had been raised when Verot, of Augustine, in Florida, said that the Irish believed even their priests to be infallible. But it was true, for believing the Church to be infallible, and the priest to be in harmony with the Church, they believed him to be infallible, and with the difference of his more exalted rank, it was precisely in the same sense that they believed the Pope to be infallible. But as to their understanding the question now agitated, or being able to form an opinion concerning it, that was too ridiculous to need confutation (p. 216). He even doubted if a meeting in Cork, over which the bishop of the see was said to have presided, had understood the question; and indeed it was apparent, from what had passed in that Hall, that there were bishops there who were not clear as to what Papal infallibility meant.

Turning from the populace of Ireland to the prelates and doctors, he was ready to grant that now, influenced by some distinguished names, the preponderating opinion might be in favour of Papal infallibility; on that

point, however, he knew nothing more than what he had been able to learn since coming to Rome. But in the beginning it was not so. His proof of this was the almost universal applause with which the writings of Dr. Doyle had been received, and those of the Rev. Arthur O'Leary. Further, he cited answers given to a committee of the British Parliament in 1825 by the Archbishops of Dublin and Tuam, Murray and O'Kelly, as well as by Bishop Doyle. These answers he printed with his speech, both in the original English and in a Latin translation. He further cited a manifesto of all the Irish bishops in the year 1815, addressed directly to the Holy See, which clearly shows that they did not hold the views embodied in the proposed Decrees. He prints this document also.

Next, passing from the Irish prelates to the priests, Kenrick confidently affirms that they in former times did not differ from the prelates. Long after the establishment of Maynooth College, the professors, he declares, came from France, and their treatises were in the hands of the pupils long subsequently to their own death. He calls the Archbishop of Cashel as a witness, while he relates how the change of teaching was first introduced in that college. They were there at the time as fellow-students. Forty years ago, says Kenrick, John O'Hanlon was Tutor in Theology, as he is now Moderator of the higher theological sciences in the college. The text-book *De Ecclesia* at that time was *Delahogue*. It contained nothing, says Kenrick, about Papal infallibility, except a proposition in these or similar words, "It is not of faith that the Pope is infallible" (p. 218).

In the year 1831, O'Hanlon gave his pupils, as a theme, the following proposition: "The Pope, speaking *ex cathedrâ*, is infallible." O'Hanlon did not indicate any opinion of his own, and did not urge the pupils in discussing the thesis to take either one side or the other, but left them to argue for the negative or affirmative at their discretion. Kenrick was one of those who took the affirmative; but he adds, Language *so new, and hitherto unheard of*, did not please all the professors. One of them, who subsequently became President of the college, strongly expressed his dissatisfaction to my fellow-student, now the Bishop of Clonfert, from whom I had the statement. Kenrick then makes a confident appeal to MacHale, to whom Cullen had made a presumptuous one—

There sits here a venerable man, who many years ere I entered that college expounded theology within its walls, who is by good right looked upon as the Nestor of the Irish bishops, for he has lived with almost three generations of men; one who with eminent theological learning combined a glory of classic lore, and also had intimate acquaintance with the prelates whom I have cited, and with other men of learning whose bright and venerable names are inscribed on the hearts of the Irish, and among their glories.... He, with rare moderation, had not given expression to his views on the matter now under discussion. So that his Eminence of Dublin did not hesitate to speak for him, and to claim him as being upon his own side. Those who feel with me, and who had known him, desiring to see him contending by our side, were grieved to behold him sitting apart like another Achilles. I was filled, therefore, with an unlooked-for joy when I heard him say that in judgments on matters of faith the head ought to be conjoined with the body; not, as his Grace of Westminster would have it, that the head of itself, communicating infallibility to itself, should draw the body along with it, but that head and body, conjointly bearing witness to the faith delivered to the saints, should declare it with one mind. As the Archbishop of Tuam descended from this pulpit, I congratulated him in these words: 'You have vindicated Ireland—*Vindicasti Hiberniam.*' If witnesses of the faith of the Irish are to be, as they ought to be, weighed and not counted, the Archbishop of Tuam, at least in the capacity of a witness, will easily surpass the other Irish bishops, not even excepting his Eminence of Dublin (p. 218).

The above important statement of Archbishop Kenrick shows that the new dogma, according to which the Bull *Unam Sanctam* becomes of divine authority in doctrine, was not kept out of Maynooth very long after the oaths and denials of preceding years had served their purpose. It was introduced as early as 1831.

The day following the speech of Cardinal Cullen—for our light on which we are indebted to Kenrick's important contribution—the Primate of Hungary appeared in the pulpit. His position as a member of the Committee on Faith, his doubtful bearing, and, above all, rumours of a hat, had made an impression that he had gone over to the side of the Infallibilists. On the contrary, he now spoke with decision and force against them. It was after

the courage of the minority had been for a moment revived by this speech, that one ascended the desk, who to most present was only a feeble old man, but to Irish prelates, and to some of Irish origin, he represented one who, in the thundering days of the Liberator, was spoken of, at every wake and "patron," as a mighty son of hail and storm. It was he to whom Cullen had appealed, on the previous day, as a witness to the ancient faith of the Irish in Papal infallibility. But Kenrick has already shown us that John MacHale stood as a hoary monument of departed principles; and it was when he came down that Kenrick cried, "Thou hast vindicated Ireland." Leahy, Archbishop of Cashel, was the next called up; but after the speech of MacHale he declined to speak. [\[411\]](#)

The archbishops were still on the roll, so the same day the Archbishop of Paris had his turn. Here again we get an indisputable glimpse into the arcana. Like Kenrick's speech, that of Darboy is printed; but unlike Kenrick's, it was actually delivered. [\[412\]](#) We shall, therefore, give the principal portions of it, wishing that we were in a position to do so with a speech from the other side—

Most eminent, most reverend Fathers,—I approach the consideration of the First Dogmatic Constitution, *De Ecclesia*, submitted to your examination,—a task which would be ungrateful did not love of the truth and affection and reverence towards the brethren render it easy and not unwelcome. I will treat the proposed Decree with a mind, as I trust, free from all party spirit, wishing not to offend any one, and fervently hoping that you will ingenuously receive what I am about to say, as I shall ingenuously present it.

It seems to me that there are three things to be looked at: first, the origin of this proposed Decree; secondly, its scope and nature; thirdly, its practical consequences.

As to the origin of this proposed Decree, and its introduction at the present time into the Council, I shall state a few self-evident propositions without discussing them, or rather shall recall to mind a few facts, from which the reverend Fathers will be able to judge whether the whole matter has been conducted according to order, and whether the dignity of an assembly so venerable has been sufficiently consulted:—

1. It is certain that the pivot on which our proposed Decree altogether turns is the fourth chapter—that which treats of the infallibility of the Pontiff.
2. It is certain that this question of infallibility has been the principal object of the Vatican Council—so much so indeed that it has been indiscreetly said by many that, in a certain sense, it was the sole object of it.
3. It is certain that this principal question of infallibility was not intimated in the Bull of Convocation, nor in the documents relating to the convocation of the Council.
4. It is certain that this question has been urged forward from without, that is, by writers lay and clerical, in a way contrary to ecclesiastical and traditional methods, adopted against all rules of subordination and decorum; an agitation got up by means of demagogues, so to speak, in order that the consciences of the bishops sitting here might be placed under pressure, and that they might be subjected to fear that, if they resisted they should not be able to return to their dioceses and govern them without difficulty.
5. It is certain that thus the matter has been brought to such a pass that the Vatican Fathers, albeit piously and generously following their own conscience, have been said, nevertheless, to have conceded more than was meet to these violent manifestations, and to factitious opinions, when they petitioned for the introduction of the question of infallibility; and because of this tumult, which has been raised at the doors of the Council Hall, the liberty and the dignity of us all have evidently been somewhat lowered. This is unbecoming, and opens the way to grave inconvenience; indeed, it is not to be tolerated without injury and opprobrium to this venerable assembly, which ought to act from its own impulse, and ought to be not only free, but manifestly free.
6. It is certain that the question, as this day proposed, comes on out of the natural and logical order; and thus occasions some prejudice which will damage the cause itself.

7. It is certain that the premature introduction of the question, especially with the present inversion of proper order, is of little service to the Holy See—nay, is detrimental to its honour; for since, according to the Rules of Procedure, contained in *Multiplices Inter*, petitions are remitted to a Special Congregation, which reports upon them to the Pontiff, and since the Pontiff can freely accept or reject the conclusions of that Congregation, it follows that the promoters of the petition for introducing the question of infallibility, and for placing it first in order, publicly led the Holy Father into the position of enacting and deciding in his own case, and for his personal privilege; in doing which—certainly without intention on their part—they have ill consulted his high dignity, if they may not be said to have even detracted from it.

If these seven positions be true—and they seem to be most true—we cannot approach and determine this question of infallibility, raised under such circumstances, and introduced in such a manner, without preparing the way for the cavils of the impious, and for objections lowering to the moral authority of this Council. This is the more to be guarded against, because already writings and documents are in circulation which aim at shaking its strength and title; so that, far from calming the minds of the people, and securing the things which make for peace, it would seem, on the contrary, to be sowing the seeds of new disputations and discords among Christians.

If, therefore, I may give a practical conclusion to this portion of my speech, I would say: (1) They did well who held this question to be inopportune; (2) They will do well who shall judge it opportune to abstain from a definition.

Now, as to the second portion of my speech,—the scope and nature of this proposed Decree,—I shall indicate a few points, but not develop them.

1. The object of the proposed Decree is not to frame a doctrine on infallibility, for all know and with Catholic faith believe in the infallibility of the Church, which has held that tenet for nearly twenty centuries. Its object is to define, and to propound as an article of faith, that the chief Pontiff is infallible by himself alone, and that indeed this privilege of inerrancy extends as widely as the infallibility of the

Church itself. It is to be noted that the proposed Decree does not treat of the former kind of infallibility, admitted by all, according to which the invincible and irrefragable force of Decrees or dogmatic decisions commanding the faith of all the faithful, as of all pastors, lies solely in the common consent of the bishops conjoined with the Pontiff. But this proposed Decree treats of the separate and absolute personal infallibility of the Pontiff, though it is not openly called so.

2. The proposed Decree does not treat of personal infallibility as a mere opinion, or as recommending a point of doctrine, but as declaring a dogma of the faith. Heretofore, indeed, there was some discussion as to the opportuneness and expediency of introducing this question in the present Council; but that discussion was closed from the time that the chief Pontiff decreed that the subject could no longer be passed over in silence. But now the other part of the question has come to be discussed, namely, whether or not the personal infallibility of the Supreme Pontiff can opportunely and expediently now be declared an article of the faith, and ought to be so declared? This is precisely the matter and object of the present discussion.

3. Further, in order that the object may be rightly carried through, and may have a successful issue, these three things are necessary: (1) A formula, or definition of the doctrine; (2) Proofs of it, both solid and excluding all doubt; (3) Its acceptance by all with moral unanimity.

The first necessity:—It is necessary to compose a formula or definition of the doctrine. That this is most difficult is apparent from the case of those who first drafted the proposed Decree, as well as of those who revised it. Terms are used which are vague, and fitted to give rise to endless discussion. What is meant by exercising the office of supreme teacher of all Christians? What are the complete external conditions which mark the exercise of this office? When will it be known that the Holy Pontiff has spoken in such a character? The promoters of the proposed Decree say that this will be obvious, as for instance the meaning of the term "œcumenical" is obvious; but they inflict a wound on themselves. For a Council is not held to be œcumenical by the faithful dispersed throughout the world, unless it is received as such by them perhaps with what amounts to moral unanimity. Hence if the nature, character, and force of Decrees emanating from the Pontiff are

to be declared and known by the same method, the promoters of the Decree have accomplished nothing, since the ultimate reason for admitting infallibility will be the universal consent of the bishops. Do they or do they not regard the consent of the bishops as unnecessary in laying down definitions of the faith? If they do regard it as unnecessary, they do a thing that is new, unheard of, and intolerable. If they do not regard it as unnecessary, they say a thing that is old, and received by all, and draw up their battle array against a foe that is not in the field. In either case they neither can nor ought to be silent as to the necessity or inutility of the concurrence of the bishops. Silence on their part in such a matter, and in such circumstances, would drive the faithful to new doubts, and would prepare the way for new difficulties. They do not define the matters to which infallibility extends, otherwise than by saying that it extends to those to which the infallibility of the Church extends; but such an indication is altogether insufficient till the holy Council shall have defined the matters to which the infallibility of the Church does extend. Hence, again appears the logical vice from which this proposed Decree on the primacy suffers through being brought forward before the Decree on the Church in general. Moreover, when dealing with the Church, we know that her infallibility is always exercised within the limits of matters to which it extends, both because we are advised that it is so by the common consent of the bishops, and also because the Church is holy and cannot sin. But, on the contrary, when dealing with the Holy Pontiff, the promoters of the proposed Decree, whatever they may say, exclude on the one hand the consent of the bishops, and on the other hand they have not yet attempted to prove that every Pontiff is holy and impeccable. So far for what relates to the discovery of a formula.

The second necessity:—A formula of definition having been found, it is necessary to prove it by solid arguments, excluding all doubt. Let it then be proved:—(1) That this doctrine of personal infallibility is contained in Holy Scripture interpreted always in one sense, as well as in the tradition of all ages;—(2) That it has always been received by consent of the Fathers, the doctors, the bishops, and theologians; not only by some of them, but by so many as amounts to a moral whole;—(3) That it perfectly accords with all the Decrees and authoritative acts of Œcumenical Councils, or even with the Decrees passed in the fourth

and fifth sessions of the Council of Constance. Even were the œcumenicity of those sessions to be denied—which I do not admit—they still show what was the common opinion of theologians and bishops;—(4) That this doctrine is not gravely impugned by historical facts, and that other acts of the Holy Pontiffs are not in conflict with it;—(5) And, finally, that this is one of those truths which can be defined by General Councils in union with the Pontiff, as being demonstrably one of those which had been received by all, everywhere, and always as revealed truth.

The proposed Decree does not supply such arguments, and the Fathers, as you well know, have not had time to weigh it; therefore we ought to refrain from defining it. In a matter of this kind, which involves the laying of an irrevocable burden on the conscience of the faithful, there is grave peril if you act prematurely, without absolute certainty. But there is no risk to be run in deciding it to be a matter that requires to be more fully discussed, and then afterwards determining it with all safety of conscience.

The third necessity:—It is necessary that this doctrine of personal and independent infallibility, clearly stated, as we have said, and solidly proved, should be received by the Fathers with moral unanimity; else it is to be feared that this declaration of doctrine will seem to many to be a pontifical Constitution indeed but not a Decree of a Council. To impose a truth upon all Christians, to be held as an article of faith, is a duty and a right so grave that a bishop must not exercise it without great circumspection.

Hence, as you well know, the Tridentine Fathers, whatever sophists may say to the contrary, did not arrive at their decisions in matters of dogma by majority, but with moral unanimity.

As to the practical consequences of the proposed Decree, I would particularly note two points; for this personal infallibility is not required and proposed as a matter of faith, except in order that unity in the Church may become closer and that the central authority may be stronger, and that thus a remedy may be more effectually applied to every evil. As to unity and central authority, they ought to exist and to be maintained, not as we may fancy them, or as our reason may

persuade us, but just as our Lord Jesus Christ instituted them, and as our Fathers hitherto have held them. For it is not for us to constitute the Church arbitrarily, and to change the conditions of a divine work. The necessary unity, that namely of faith and communion under the paternal rule of a central authority, exists and always has existed among Catholics; and that unity of doctrine and communion, and that central authority of the Holy Pontiffs, which flourished without a dogmatic definition of infallibility, abides unimpaired.

Let it not be said that this unity would become stricter after the central authority had been rendered stronger, for the consequence does not follow. It is not enough to be one, but we must also have that kind and that degree of unity which are required by the nature and character of the case, and by the law and necessity of life. Nay, it may be that a thing shall wretchedly perish, precisely for the reason that it has been reduced to an overstrained unity; for in that condition its internal forces cannot exercise themselves and discharge their vital functions, being broken and crushed by the bond of an overstrained and exaggerated unity. So in respect of moral force, the unity of men, when acting freely and with vigour under law, is looser yet more comely than is the unity of bondsmen sluggishly existing under tyranny.

Therefore, let us not separate the bishops from the Holy Pontiff, nor the Pontiff from the bishops. Let us faithfully hold the ancient rule of faith and the things ordained of the Fathers, and that all the more because the proposed definition will give rise to many and serious inconveniences.

It can scarcely be doubted that this remedy will be powerless for healing the evils of the day; and indeed it is to be feared that to very many it will be injurious. The matter must be looked at not merely in a theological point of view, but also in its aspects towards civil society; for surely we do not sit here as so many head-sacristans, or superiors of little Congregations, but as men received into a share of his solicitude by the chief Pontiff, who holds the care of the entire Church. Let us, therefore, prudently survey the condition of the world.

Will personal and independent infallibility raise again from the grave the extinct Churches on the African shores? or will it awake out of

sleep that East which once bloomed with so many talents and virtues? Will it be easier for our brethren, the Vicars Apostolic, to bring back Pagans, Mohammedans, and Schismatics, to the Catholic faith, if they teach them that the Pope is infallible by himself? Will the definition encourage and animate Protestants, and other heretics, to draw near to the Roman Church, laying aside all their prejudices and animosities? So far for distant regions.

But what of Europe? I say it with grief—the Church is banished from everything. She is banished from those Congresses in which peace and war between nations is determined, and in which, in former times, the authority of the Holy See prevailed; whereas now decisions affecting that See itself are taken, and it may not give its opinion. The Church is banished from the legislative bodies in several kingdoms of the Church; and if here and there some prelates or priests are found in them, it seems a wonder. She is banished from the schools where grave errors stalk with impunity; from the laws which profess to be secular in their nature, and hence are irreligious; from the family where civil marriage taints morals. Almost all those who are at the head of human affairs in Europe either shun us or keep us at a distance.

Again, in these straits of the Church, what remedy is offered to the world in travail? The promoters of the proposed Decree wish us to lay a new and, therefore, heavy and odious load on those who are already shaking from their indocile shoulders burdens imposed of old time and rendered venerable by usage of our Fathers. They almost crush all who are of weak faith, with a new and inopportune dogma, a dogma never heretofore defined, and to some extent damaged by wounds received in this discussion, and one to be pronounced by a Council, of which many assert and declare that its liberty is less evident than it should have been. It is hoped by this definition of a personal and separate infallibility to be able to heal everything, to strengthen faith in all, and to improve morals. But in vain is it hoped. The world is sick or dying, not for want of knowing the truth, or the teachers of it, but because it shuns the truth and will not submit to it. If, therefore, the world rejects the truth, when it is preached by the whole body of the Teaching Church—that is, by eight hundred bishops scattered all over the world and infallible in connexion with the Holy Pontiff—how much more

will it reject that truth when it is preached by one Infallible Teacher, and that teacher recently declared to be such! But again: in order that authority may prevail and effectually operate, it is not enough that it be affirmed; it must also be accepted. It does not suffice, therefore, to declare the Pope infallible, personally and separately from the bishops, but he must be received as such by all, if he is not to exercise his office in vain. For instance, what avails an anathema when the authority of him who excommunicates is disregarded? And, most reverend Fathers, pray permit one instance more. The Syllabus went all through Europe, and what evil has it healed, even in those places where it was received as an infallible oracle? At that time two kingdoms remained wherein religion still flourished, ascendant not only in fact, but also by law; I mean Austria and Spain. Yet in those two kingdoms this Catholic order has fallen to the ground, although commended by infallible authority,—ay, perhaps, at least in Austria, exactly for the reason that it was commended by it.

Let us, therefore, look at matters as they stand. The separate and independent infallibility of the most Holy Pontiff, so far from removing the objections and prejudices which turn many away from the faith, is increasing and aggravating them. Very many even of those who are not hostile to the Catholic religion are now meditating what they call separation of the Church from civil society. Not a few of those who lead public affairs lean in this direction, and they will gladly seize the opportunity, given by the proposed definition, to carry this separation into effect. Besides, what will be done in France will soon be imitated more or less throughout Europe, certainly not without serious loss to the Church and the clergy. Whether they mean it or not, the promoters of the proposed Decree are, by their definition, instituting a new order of things full of risks, and that all the more if they do not more exactly determine the matters to which personal infallibility extends; and [if they do not determine] whether it will be possible to assert that the Pope, when defining in matters pertaining to morals, does by that act pronounce as to the civil and political conduct of kings and nations, and as to the laws and rights which are now reputed to belong to the public authority. No one skilled in politics can fail to see what seeds of contention our proposed Decree contains, and to what perils the temporal power of the Holy See itself is exposed.

But to enter into this fully would be tedious, perhaps indiscreet; for certainly I could not adduce here all the arguments which come to my hand, without touching upon several things which prudence counsels me to avoid. I have relieved my conscience as far as possible. Accept my words for the worth which your judgment may award to them. I know, indeed, that disadvantages are attached to any course, and that we are not always to abstain from acting because disasters may follow; but I do not ask the venerable Fathers to fall suddenly into my views, but rather ask that they may maturely consider and balance the arguments in favour of the one view and the other. I also know that we are not to make puerile concessions to public opinion, but no more are we pertinaciously to thwart it. It is wiser and more adroit to adjust many things with it, and in any case to take it into account. And, finally, I know that the Church does not need the temporal arm, but neither does she repel the assent and aid of civil society; and, as I take it, she did not, in the days of Constantine, weakly sigh for a renewal of the days of Nero.

Quirinus says that a suppressed murmur running through the ranks of the majority as Darboy spoke, seemed to herald coming storms (p. 553).

On May 23, Ketteler is said to have made a real impression—indeed, Vitelleschi intimates that he made converts (p. 162)—by a strong representation of the effect of the proposed Decrees on what remained of episcopal jurisdiction. On the same day Ginoulhiac, who had been Bishop of Grenoble, but had just been made Archbishop of Lyons, did what was looked upon as a deed of high courage by opposing the definition.

At the same time an incident occurred which caused all Rome to talk of the Pope's personal energy in pushing his policy, and to whisper as to the mysterious connexion of political movements in different countries with the silent will of Rome. Though Portugal no longer occupied, in the eye of the world, the place she once held, her importance to the Papacy was still great. News arrived that the Duke of Saldanha had, by a military *pronunciamento*, assailed the King in his palace, and compelled him to accept a new Ministry, with himself for its head. He was of the clerical party, and immediately found a pretext for quarrelling with the minister representing Italy. The tidings of these events no sooner reached Rome than the Pope

visited the national church of the Portuguese in the city. His organ, the *Osservatore Romano*, in announcing the fact, said that his Holiness had wished to inspect the restoration of the Church made by the Duke of Saldanha when ambassador in Rome. The impression made was that the Pope wished, before all the bishops and princes, to give the Duke the only mark of approbation in his power. Vitelleschi observes that a *pronunciamento* is the worst form of revolution, because it disturbs the highest expression of order and violates the faith which holds soldiers to their flag (p. 165). What, however, is revolution when directed against the supernatural order, is restoration and reconstruction when it favours the sacred cause.

The time for the definition was now rather peremptorily fixed by the authoritative organs. The day of Mary, the day of Joseph, the Epiphany, and the Ascension, and other very good days, had all in turn failed; but it was to be on St. Peter's Day, and was not that the fittest day of all?

The Archbishop of Westminster, in the name of the committee, spoke, on May 25, for nearly two hours. Indeed, morning by morning the committee availed itself of the right of reply granted to its members exclusively, by setting up one of them to refute the objections advanced in the previous sitting. Kenrick says that he knew not which to admire most—Manning's diction, his delivery, his power, of command and frankness, or his ardour in urging and almost commanding the new definition. [\[413\]](#)

"I thought," says Kenrick, "of what used to be said of Englishmen living in Ireland, that they were more Irish than the Irish themselves. The Archbishop is certainly more Catholic than all the Catholics I have known hitherto. He himself feels no doubt as to pontifical infallibility, personal, separate, and absolute; and he will not permit others to feel any. He asserts that the doctrine is of faith, and as such he hardly asks the Council to define it, but rather predicts that it will do so—perhaps after the manner of those prophets who strive to bring events to pass by foretelling them. So far as concerns myself—as one whom sixty years that have passed over me since I began to learn the rudiments of the faith, have perhaps left as well instructed on the point in question as one who joined the Church about twenty years ago—I dare to assert that the opinion, as it is found in the proposed Decree, is not a doctrine

of faith, and that it cannot become such by any definition whatsoever, even that of a Council. We are custodians of the deposit of faith, not lords of it. We are teachers indeed of the faithful committed to our care, in so far as we are witnesses."

Manning resented, *graviter illud tulit*, the attempt which had been made to raise a case of conscience in the mind of the bishops by asserting that any bishop would incur the guilt of a mortal sin who gave a vote in favour of infallibility without having duly investigated the question for himself; because his act would contribute to impose a new yoke on the faithful. This Manning held to be injurious to the dignity and the honour of the bishops; as if, says Kenrick, he denied that bishops could sin, or denied that they would be guilty of mortal sin if through negligence or idleness they failed rightly to inform their judgments.

Manning contended that infallibility was a supernatural grace—*charisma*—and, therefore, that it properly attached to a person. He would not hear of conditions being connected with the exercise of infallibility. He asserted that he who had bestowed this supernatural grace would also give the means for its due exercise.^[414] Moreover, he took the ground that the Council had already, in the conclusion of the Decree which had been passed, committed itself to the doctrine of infallibility, and that it could not now recede. Kenrick replied that the assertion of Manning was one of several things which he had heard with stupefaction. They had been assured, he stated, as we have already seen, in the clearest terms by the reporter of the committee, that the clause referred to contained no doctrine, and that it was only a fitting conclusion to the four chapters of the Decree. Then follows the statement that the reporter had either himself been deceived or had knowingly deceived the minority.

In the sitting of May 25, MacEvilly, Bishop of Galway, also referred to Kenrick's argument, drawn from the fact that the Catholics of England and Ireland had been admitted to equal civil rights on the faith of repeated declarations, and even of oaths, to the effect that the doctrine of Papal infallibility was not binding on Catholics, and that consequently such edicts of Pontiffs as the Bull *Unam Sanctam* had not doctrinal authority. To this MacEvilly replied that the Catholics in England had been admitted to equal civil rights, not because of their declarations, but because the English

government feared a civil war. The reply of Kenrick to this straightforward utterance is worthy of being given word for word—

The doctrine of Papal infallibility was always odious to the English government, and had it been really a doctrine of the faith, Protestants would have understood Papal doctrine better than English and Irish Catholics; for they knew that Roman Pontiffs had claimed the highest power in temporal things for themselves, and had attempted to drive several English kings from the throne by absolving their subjects from the oath of allegiance.

Catholics, by public oath repeatedly made, denied that such power belonged to the Roman Pontiff in the realm of England, and had they not done so, they never would have been or ought to have been admitted to equal civil rights.^[415] How the faith thus pledged to the British government is to be reconciled with the definition of Papal infallibility may be looked to by those of the Irish prelate who have taken that oath as I myself did I cannot solve the difficulty as yet. I am Davus, not Ædipus. Nevertheless those civil rights were conceded to Catholics by men who through a long life had strongly opposed that course. They did indeed apprehend civil war; but they did not dread it in this sense, that a war of that kind could not be otherwise hurtful to the power of the government than by causing a disturbance of the peace for a certain time.

They feared the occurrence of a war, not the result of it, as to which no sensible man could have been uncertain. Those great men preferred to yield rather than to conquer by the slaughter of a brilliant nation, and of a people worthy of a better fate, even in what seemed to them its errors. Oh that here the same spirit of moderation which they exhibited may be displayed by the majority of the bishops who are listening to these words, and that by a prevision of the calamities which may arise to us from this hapless controversy, they may, in circumstances calling for consummate moderation, ward off from us, who are fewer, but who represent a greater number of Catholics than those who are opposed to us, evils which it is not possible to anticipate without horror, and which it would be impossible to repair by a late repentance.

On the one hand, we cannot but regret that these words, fitly written, were not actually spoken in the deaf ears of the resolved majority. On the other hand, we remember that had they been spoken, they would have sunk into the Vatican archives, and would never have been heard of more till those graves give up their dead. They now belong to history, and furnish a living link in a chain of memorable professions and performances. The denationalizing influence of the Papacy had still left something of the citizen alive in the soul of Kenrick. During his stay in Rome, when witnessing the paltry tyrannies that flounced about under the dependent banner of the Pope, all of the citizen that was left in him must have turned with fresh respect to the two flags of the free under which he had spent his days—the flags of England and America. And yet there were those sitting there, each with all the rights of a free man in his hands, planning to reconstruct the society of England and America on the degraded and fettered model of the States of the Roman Bishop. There is a crime which no code has defined—the crime, not of breaking one specific law of one's country, but of contriving, with a foreign pretender, how to overturn everything vital in a venerable and generous legislation.

It was not merely by a pupil of Maynooth that the eager ex-Anglican was considered extreme in his views. Clifford, Bishop of Clifton, spoke on the same day, refuting the notions of Manning about the favourable effects to be produced by his beloved dogma in England, and appealing to him as a witness that an eminent statesman had represented the influence of the recent course of the Curia upon public opinion in England as being much to the disadvantage of their own cause, and greatly to the encouragement of extreme Protestants. [\[416\]](#)

In the next Congregation, on the 28th, it was Senestrey who took the post occupied on the last morning by Manning, that of official respondent against attacks. On that day, a scene was raised by Verot, of Florida. He declared that they were making innovations in the Church, and that such an innovation as the personal infallibility of the Pope was sacrilege. That horrid word applied in the sacred place to an object so dear to the Pope, touched indeed the apple of the eye. Sacrilege! The Cardinals de Angelis and Capalti, says Vitelleschi, quite lost their temper; and a scene ensued which for anger and excitement is said to have fallen but little short of Strossmayer's scene in March. [\[417\]](#) The odious, and to well-tuned Curialistic

ears the inconceivable, task of hearing the infallibility of the Pope denied, and of seeing his pleasure daily thwarted under the roof of St. Peter's, was not to be endured any longer. The word passed that the power given by the new Rules to close the debate must be called into requisition.

A trusty American was set up in the next meeting, by the committee, to repair the mischief done by Verot—Spalding, of Baltimore. Here, again, we are indebted for light to Kenrick's unspoken speech. Referring to the moral question which had been raised by Kenrick, to which we have already seen allusions, Spalding said that it called for as much investigation to justify one in giving a negative as in giving an affirmative vote on the question of Papal infallibility, and that in withholding an affirmative vote one would confirm the celebrated Gallican articles.

On May 31, Valerga, the Patriarch of Jerusalem, made a vigorous attack on the minority, speaking cleverly, and hitting hard. Spirited, *piquant*, and insolent, is the description of Quirinus. Soon afterwards, another American was in the desk, Purcell, of Cincinnati. Quirinus says that he affirmed that the Americans abhorred every doctrine opposed to civil and spiritual freedom; and that the American sons of the Church loved her, because she was the freest society in the world. He also took the position that, as kings existed for the good of the people, so the Pope existed for the good of the Church. On the same day spoke Conolly, Archbishop of Halifax. He seems to be the only one in the Council who really related a theological experience, declaring that he had formerly believed in the personal infallibility of the Pope, and had come to Rome believing that the *Augsburg Gazette* had circulated a calumny in representing the dogmatizing of this opinion as the real object of the Council. He went on to say that, on finding what was expected of him, he determined to sift the arguments of the Roman theologians and the proofs by which they supported them. He now bore witness to the result upon his own views. All antiquity, he declared, explained the passages harped upon by those theologians, in a sense different from theirs. All antiquity bore witness against the notion that the Pope alone, and separate from the bishops, was infallible. He further took the ground that to found a dogma on the rejection of the traditional interpretation of Scripture was pure Protestantism. I will have nothing, he said, turned into dogma but the indubitable Word of God. Ten thousand theologians do not suffice for me, and on the present subject no theologian

should be quoted who lived subsequent to the Isidorean forgeries. To define the dogma would be to bring the Vatican Council into contradiction with the three General Councils which had condemned Pope Honorius as a heretic, to narrow the gates of heaven, to repel the East, and to proclaim, not peace, but war. In reply to Manning, he protested that no one was justified in calling an opinion proximate heresy when it had not been condemned as such by the Church. ^[418]

On June 3, Gilooly, Bishop of Elphin, replying to some observation of Purcell as to the oaths and declarations, said ^[419] that Catholics had not denied that they held the infallibility of the Pope as a doctrine of the faith, but as a dogma of the faith; that is as a dogma defined by a General Council. To this, Kenrick's unspoken speech replies, "If that is what was meant, which I do not believe, we might be reproached, and that rightfully and deservedly, with not shrinking, in a very grave matter, from the concealment of our meaning by scholastic distinctions." ^[420] According to Quirinus (p. 661), Cardinal Bonnechose prevailed upon Cardinal de Angelis to ask the Pope, directly, if he would not consent to a prorogation of the Council on account of the heat, now intolerable to all but Romans, or men from the southward of Rome. The reply was stern and, according to many, savage. Whatever were the terms of it, the substance was indubitable—no adjournment was to be allowed till the Decree of Infallibility was passed. It is said that when Bishop Domenec, of Pittsburg, in America, began his discourse, he was greeted with laughter by the majority, and when he made the very plain and simple statement—one which he might have picked up from any intelligent or travelled Italian any day in the year—that American Catholics were not merely nominal ones, as the Italians were, Cardinal Capalti imperiously commanded silence. ^[421] Strossmayer had spoken at length on June 2, and with such moderation as to escape even a call to order, yet, it is said, with very great force. On the 3rd, Moriarty, of Kerry, took the side of Purcell, Kenrick, and MacHale, but we have no particulars of his speech. ^[422] That day Maret was in the desk speaking in the loud and labouring tone of a deaf man, arguing, not only against the convictions and feelings of the majority, but against their personal detestation of himself. He made a point that either the Council was to give infallibility to the Pontiff, in which case the Council must be a higher authority than he, or else the Pontiff was to give to himself an infallibility which he had not previously

possessed, in which case he would change the constitution of the Church by his own power alone. Then Cardinal Bilio interrupted, and cried, "The Council does not give anything, nor can it give anything. It gives its suffrage, and the Holy Father decides what he pleases."^[423] The representative of all that was left of the once courageous Gallican liberties asked if he might be allowed to proceed, and did so. The minority had a long list of speakers still inscribed. Kenrick was waiting for his turn, and so were Haynald, Dupanloup, and many others; but a fresh surprise was at this point sprung upon them. The Presidents produced a requisition for the close of the general debate, signed by above one hundred and fifty bishops.^[424] De Angelis at once called on those who were for the closing of the debate to stand up. He then declared, "A large majority have stood up, and by the power conferred upon us by Our Most Holy Lord (the capitals are official), we close the debate on the general question." The *Acta Sanctæ Sedis* say that about fifty remained sitting. No wonder that, after hearing sixty-five speakers, the Fathers were weary. Yet, no wonder, on the other hand, that the minority should allege that, while it was perfectly reasonable to close a debate in this manner when the object was that of making temporal laws liable to be unmade, or re-made, a year later, it was neither reasonable nor fair, and above all, it was not agreeable to any precedent, to past professions, or to any ecclesiastical principle, to close a debate upon a dogma while yet there were prelates wanting to bear witness to the tradition of their respective Churches. According to all their theologians, dogma was not to be made by mere opinion, but by evidence of the fact that the opinion in question had been believed from the beginning. Protestants would naturally say that it was time to bury this pretence under any heap; but men whose life had been spent under the illusion of the pretence naturally felt otherwise. They had not seen that when the Church adopted the principle of tradition instead of that of Scripture, the Spouse, while professing only to supplement the word of her Lord, really entered on a course which must lead to setting it aside in favour of her own word, and that when she had adopted the principle of general consent, instead of that of clear apostolical tradition, she had set aside the principle of antiquity for that of a majority amounting to a moral whole, and that now she was only proceeding a step further in substituting the principle of a numerical majority for that of moral unanimity. But one step more remained, and that was not far off. The Spouse who had put aside the authority of her Lord to exalt her own, was to

find, not only her authority, but even her consent, formally repudiated before all men by the master whom she had, in the house of her Lord, set up in His place. In that house the talk was evermore of her authority, her wisdom, her infallibility, her glory, her stores of merit and her streams of blessing, and but rarely was her Lord heard of, except as having conferred the regency on her. Now drew nigh the day when the self-asserting Spouse was, before all men whom her loud vauntings had aroused, to receive on her brow such a stigma from her self-chosen Master as has seldom in set terms been affixed to a society by its head. Meantime the blow which had just been dealt seemed fatal to all the hopes of the minority. So once more they dragged their robes down the marble way of St. Peter's with defeat behind them, but this time with annihilation close before, though not till after further strange experiences.

FOOTNOTES:

[402] *Vitelleschi*, p. 158.

[403] *Quirinus*, p. 532.

[404] *Quirinus*, p. 533.

[405] *Fronde*, vol. ii.

[406] *Documenta ad Illustrandum*, ii. 209.

[407] "*Meum honorem graviter læserunt.*"—*Documenta ad Illustrandum*, i. 189.

[408] *Documenta ad Illustrandum*, pp. 187-224.

[409] *Aliquid humani passum esse.*

[410] He showed that Tischendorf read προβάτια in both cases, and that other editors had read πρόβατα in both. Of course, in the fifteenth verse, the word "lambs"—ἀρνία—is the proper translation.

[411] *Acta Sanctæ Sedis*. As to MacHale, Kenrick omits what *Fronde* states, that he was of a "very ancient" family.

[412] *Documenta*, ii. pp. 415-24.

[413] *Documenta*, i. 209.

[414] *Documenta*, i. 223.

[415] "*Quod si non fecissent nunquam ad libertatis civilis consortium admissi fuissent aut debuissent*" (p. 219).

[416] *Quirinus*, 584.

[417] *Vitelleschi*, p. 168.

[418] *Quirinus*, p. 597.

[419] *Documenta*, i. 215.

[420] *Ibid.*, 215.

[421] *Quirinus*, p. 661.

[422] His name does not occur in the *Acta Sanctæ Sedis* for the third.

[423] *Quirinus*, p. 608.

[424] *Acta Sanctæ Sedis*. *Friedberg*, p. 47, says there were two hundred and fifty signatures, but this is evidently a mistake.

CHAPTER VI

To the Close of the Special Debate on Infallibility, July 4—Proposal of the Minority to resist—They yield once more—Another Protest—Efforts to procure Unanimity—Hope of the Minority in Delay—Pope disregards the Heat—Disgrace of Theiner—Decree giving to Pope ordinary Jurisdiction everywhere—His Superiority to Law—Debate on Infallibility—Speech of Guidi—Great Emotion—Scene with the Pope—Close of the Debate—Present view of the *Civiltà* as to Politics—Specimens of the Official Histories—Exultation.

ANY one who had observed the course of the minority in emergencies would have probably foretold that, under the new trial, they would feel indignant, would speak of doing something, and would end with a protest. So it proved. The very day of the forcible conclusion of the general debate, the French bishops met, and were favourable to some determined action. [\[425\]](#) But the next day, eighty congregated in the rooms of Cardinal Rauscher. The Hungarians, French, and Americans, with Strossmayer, Clifford, and Conolly, are named by Quirinus as recommending that the Fathers of the Opposition should cease to take any part in the Council, reserving themselves for the final vote, and should then give their *Non placet*. The Germans, however, always marplots, urged that the better course would be to adopt a protest, and continue to take part in the proceedings. This counsel prevailed. Rauscher drew up a form of protest, which was signed by some eighty prelates, and many of the bishops took a trip to Naples or elsewhere.

Among the things represented by Quirinus as having been said on this occasion, one was to the effect that in a Parliament speeches were of some use, for if they did not influence votes, they did enlighten public opinion; but in this Council, most of the hearers were, from their degree of culture, quite incapable of apprehending theological arguments, not to add that, in a moral point of view, many of them stood so low that even if convinced they would not act on their convictions. The ground taken in the protest is clear, namely, that the right of supporting their votes by a statement of reasons, is one which, by the very nature of a Council, belongs not only to some of its members, but to them all, and that such a right could not be taken away by any vote of a majority. [\[426\]](#)

The Hungarians now declared that they would take no further part in the debates. On the other hand, the *Unità Cattolica* foretold how those who had written or spoken as Gallicans would be converted by a miracle of the Holy Ghost, even in the Council Hall; and as the Galileans had been constrained to speak in other tongues, so would the Gallicans be constrained to proclaim in that Hall before the astonished multitudes the doctrine they had gainsaid.

The absorbing care of the Curia and its instruments was now directed to the one end of constraining all to vote *placet*. The victory was no longer doubtful, but to procure unanimity was of great practical moment. The Pope himself was indefatigable. His admirers resented such epithets as "unscrupulous" when applied to his conduct. But they took good care not to grapple with the details of alleged facts which, if they could be credibly told about the conduct of one of our sovereigns in respect to his nobles or to Parliament, would be described in much stronger epithets than unscrupulous. His tongue was evermore scattering rebukes or blandishments, and enlivening the city with crackling sparks of gossip. There were but few bishops of note among the minority whose portraits, etched by the infallible acid, were not handed round the *salons*, lay and clerical. His letters were bitter and undignified. Quirinus quotes the words of a French bishop (p. 627): "There is no longer any scruple as to what is done to gain votes. It is a horror. There has never been anything like it in the Church." These words recall to us a scene in Rome. A remarkable head—one of those heads which bear on the brow a diploma of gifts and letters—was stooping in the light of a lamp by which pages had been penned that had been heard of beyond Italy. The stoop was pensive, and the thinker said, "I saw so much of what was done during that Council, that it has destroyed all my faith in anything that ever was done in the Church before."

It would seem as if, at the last, argument and appeal had begun to tell on some of those who were of a milder mood among the Curialists. It is said that even of the chosen three champions, Manning, Deschamps, and Pie, the last wished to find some formula less offensive than the one projected. Martin of Paderborn even proposed a note which contained a recognition of the teaching authority of bishops, though in an indirect way. On the other hand, the members of the Opposition tried to discover some turn of expression which would save the Church from the shame of being publicly disavowed by her wilful lord. Conolly spoke of proposing, as a formula

which would still give her a recognised voice, words declaring the Pope infallible when he spoke, "as head of the Church teaching with him." Others again wished to reinstate the formula of St. Antoninus, of Florence, declaring the Pope infallible when he acts with the counsel of the universal Church. ^[427]

Men now began to realize the full effect of the proposed dogma, both in its executive and in its retrospective aspects. Many must have remembered how happy they had been in argument, or in diplomacy, when the ambiguous state of the case, as it had hitherto existed, enabled them to evade the charge that such and such were the principles of the Church. It was so convenient to be able to say No, they have never been sanctioned by a Council; they are only the words of a Papal Decree. Now, however, all these words were to have fresh life breathed into them, and whatever they contained affecting a general principle of belief, or practice, was to be taken for divine,—was, in fact, to rank as the word of God.

Delay now became the forlorn hope of the minority, and expedition the watchword of the majority. The minority were sure that the Pope would not be so cruel as to force them to continue in Rome during the summer heats. Hence, they thought that by delay they were certain of a prorogation before the fatal deed was done. They forgot the history of the Pope's prisons and executions. Perhaps they had never read it, or had used their fatal facility of calling an unpleasant statement a lie. Antonelli had generally carried away the chief part of the blame for the blood of the political victims. However, he seems completely to have escaped reproach for the broiling of the bishops. Whether the fierce language ascribed to the Pope was correct or not, nobody doubted its aptness. ^[428] When even the faithful M. Veuillot said, Since they have put the Council upon the gridiron, they shall broil (ii. p. 352), everyone treated him as only echoing the language of his idol. When once the heats had begun to tell, the feelings of majority and minority, as Vitelleschi points out, changed. Men from the north, accustomed to the bracing air and pure streams of Germany, could ill bear up against the miasma from the Roman marshes and the torrid heats that were withering the city and making even natives look pale. They therefore began to long for an escape, and not a few of them took their way homewards. They received not only ready but glad permission. Thus every day was diminishing the strength of the Opposition. The majority, on the

other hand, consisting of Italians, South Americans, and Spaniards, were inured to the heats, if not to the malaria, and felt that the sun and the marshes were conspiring with them. Apollo had come to camp shooting over the heads of the natives, but laying low the men from beyond the sea.

There was now only one consideration that would make the Pope anxious for despatch, and that was the daily pressure upon his finances caused by supporting his three hundred boarders. This certainly had proved a useful ground of appeal for funds. The sums collected everywhere had been great. The *Civiltà* reproaches the Liberal Catholics with not sending money any more than they had sent men to fight for the Holy Father, and sets in contrast with their stinginess and want of military spirit the fact that the *Univers* alone had sent in more than nine thousand pounds (234,410 francs).^[429] The Holy Father said, "They fear making the Pope infallible, but they do not fear making him fail."^[430] But M. Veuillot, on the contrary, did not fear making him infallible, and did everything possible to prevent him from failing. Hence it was no wonder that he should have briefs to publish which would perform a service for the exchequer of the *Univers* similar to what the *Univers* performed for the exchequer of the author of the briefs. The words of the Pope spoken to the deputation of scientific men were representative words, "Here I am to receive your offerings."

Theiner, the celebrated Prefect of the Vatican archives, now fell publicly under displeasure. He had allowed Hefele and Strossmayer, and perhaps others, to see the order of procedure of the Council of Trent, and probably had in other ways shown leanings not acceptable to the Jesuits. He was ordered to give up his keys to Cardoni, who had been the first chosen secretly to prepare Drafts of Decrees on Infallibility before intentions were disclosed, and had kept his counsel well. The archives were actually closed against Theiner. It is said that the passage into them from his own rooms was walled up. The disgrace of Theiner, and the honour of Cardoni, sharply symbolized the favourite saying that the dogma must conquer history. Here again Antonelli escaped all reproach of a share in the blundering injustice. Cardoni was one singled out by name in a celebrated letter of Döllinger as having largely employed falsified authorities. But that charge, to us so revolting, is a familiar sound wherever the shadow of the Curia extends.^[431] We ourselves once heard a member of the Congregation of the Index claim,

unmindful of the presence of a Protestant, "You must never trust any edition of any work whatever that has passed through the hands of the Jesuits."

The exciting matters now remaining to be treated in the Council were the all-important particulars of those Drafts which had already been under a general review. The two chapters teaching the institution of the primacy in the person of Peter, and the transmission of that primacy through the Roman Pontiffs as his successors, were speedily disposed of. Had all the fathers attempted to answer the arguments of Desanctis on these points, arguments familiar to many Italians, they would not have found it light work. But the third chapter was one of immense importance. It defined the scope and nature of primacy, distending that term till it was made to cover absolute, immediate, and ordinary control in the whole domain of the Church—control over bishops and people, control over not only all matters ordinarily included under the expression "faith and morals," but over all things held to be necessary for the government or discipline of the Church. This last expression, as any one acquainted with the views of those in authority, even so far as they are recorded in our preceding pages, must know, covers almost every possible question that can arise. The words of Vitelleschi (p. 174) are well considered. He speaks of the "supreme jurisdiction, ordinary and universal, of the Pope over all Churches, singly and collectively, over pastors as well as flocks; from which doctrine it follows that bishops in exercising any jurisdiction or authority, only do so as official delegates of the Pope." Dr. Langen puts it thus: "Seeing that there can be only one bishop in a diocese, as soon as the Pope is declared to have ordinary jurisdiction in that diocese, he becomes its Ordinary, and the other person called a bishop is nothing more than his delegate and representative."^[432] Men who cover a dominion of this sort under the pretext of primacy, and who advance a claim of primacy in order to deduce from it an absolute dictatorship, never do anything more sensible than when they decry reason and relegate Scripture to the tradition-heap; when they call for pictures instead of books, and processions and fireworks instead of a free press and free discussion. There was political philosophy in M. Veuillot's exclamation on witnessing the Easter rejoicings in Rome, especially the fireworks representing "the heavenly Jerusalem," that it was impossible not to respect a people for whom such entertainments were provided.

The first assertion in the Decree of ordinary and immediate jurisdiction over all Churches, oddly does not describe that jurisdiction as belonging to the Pope, but as belonging to the Roman Church (par. 2). No sooner, however, has principality been ascribed to the Roman Church than it is instantly transferred to the Pontiff, and is again instantly affirmed to be a truly episcopal power. This confusion, in such a document, would be amusing if the matter were not so serious. That a Church should be a bishop is certainly new; and that a truly episcopal power should reside in a Church which is not a bishop, is one of the many mysteries created by the Vatican Council. But that the source of the Pontiff's authority should in this very Decree be sought in the Church, is a proof how hard a task is theirs who determine to make dogma conquer history. In the very language of the Decree, history conquers the dogma.

If the document contains this one taint of dualism as between Church and Pope, it is clear of all reproach of dualism as between the Pope and Princes. The latter are legislated out of all rights that could possibly conflict with those of their Lord Paramount. Notwithstanding the slight dualism as between Pope and Church, the latter is also legislated out of all her ancient claims; but incidentally she appears in clauses which, if she was only infallible without the consent of the Pope, as he is infallible without her consent, might in time prove very awkward. He has only as much infallibility as she has: that is a clumsy admission just before the assertion that he is infallible without her consent. However, wherever the power resides, or springs from, it is a power over all pastors and all believers, and extends, as we have said, not only to faith and morals, but to all things which affect the government of the Church. Thus it includes every mixed question whatsoever, and all things of any kind which in the estimation of the Pope of Rome may relate to the interests of that kingdom of which he is the king. This power, moreover, is immediate, and as such can act without being legally restricted to any processes, any agencies, or any forms. Being ordinary, it can never be obliged to wait until the ordinary jurisdiction has been tried and failed. Being immediate, it can never be told that it must take this, that, or the other line of procedure. This language for ever settles the point which had been contested in the famous passage of letters with Darboy.

How it could be necessary to add another word after these affirmations we can hardly see. Even Councils, or the pastors collectively, had but one office assigned to them—the office of obeying. After this the abstract proclamation of Infallibility, or Irreformability, or Inerrancy, could add nothing to a power that was universal, ordinary, and immediate, and towards which the people or bishops, singly or collectively, stood in one relation only—that of subjects in presence of an authority which they were bound absolutely to obey. It naturally follows that it is in this obedience that Rome finds unity. That is, in fact, her ideal of unity. Christians are Churchmen, not by being Christians, but by obeying the Roman Pontiff. Under the Papacy a Christian is outside the family of God if he does not obey the Cæsar of the Church.

Absolute authority over bishops and people having been asserted, next comes the assertion of authority over princes. This is done in a paragraph in which only students would see anything of the kind. The fourth paragraph of the third chapter begins by speaking of the Pope's right to free communication with the pastors and flocks of the whole Church. What could appear more natural, or less dangerous? Had we not seen how much the communications of the Pope amount to, we should have taken that as a meek and harmless claim. But the close of the paragraph shows that what the Pope means is the right of giving to his own edicts the binding force of a higher law in every country, whether the government consents or does not consent. As primacy means dictatorship, so communication means promulgating laws in regard to which no human being has the right of reply, inquiry, complaint, or appeal; has, we repeat, no office whatever except that of obedience. We have seen that "teach" in our Lord's commission to the apostles means so to give law to the *nations* that they can never be justified in resisting. No prince can have any title to exercise an *exequatur*, *placet*, or any other form of check upon an edict of the Pope. Every man who denies the validity of a Papal law, because it is prohibited by the government of the country, is solemnly condemned; he interrupts the communication between the authority of the Pontiff and the conscience of his subjects. Indeed, the condemnation extends to all who even say that his decrees may be lawfully impeded in their execution. The reason of this appears in the next paragraph. The Pope is there formally declared the Supreme Judge of the faithful. Therefore all may justly resort to his judgment in all matters subject to ecclesiastical inquiry, and none may appeal from his judgment,

for there is no authority greater than his. Matters subject to ecclesiastical inquiry must always include all those wherein the interests of the Papacy are in anywise involved. Next, even the old appeal to a General Council is formally condemned. Yet even that condemnation is bungled. None may appeal from the judgment of the Pope to a General Council "as an authority superior to the Roman Pontiff." Then, will lawyers say, we can only appeal to a General Council as an authority equal to the Roman Pontiff.

If these fourth and fifth paragraphs of the third chapter of the Decree on Primacy were read by a dozen educated Englishmen unused to Roman Catholic interpretations of Papal laws, nearly all of them would put aside clause after clause as not being of importance. They would take the *damnamus* and *reprobamus* as so much sulphur, and let it pass. Far otherwise Vitelleschi. "From a practical point of view," he says, "the declarations of infallibility could add nothing to the weight of this paragraph" (p. 177). Vitelleschi looks upon the express declaration of infallibility, in the next chapter, as no more than "indulgence in the luxury of self-assertion, to which absolute principles are prone." Yet when Mr. Gladstone pointed out the true range of the authority here set up, many of our politicians treated him as a statesman who had strayed out of his domain into theology. Since then, specimens of minimizing interpretation have been put into our own tongue, as curious as any furnished by the history of *finesse*. If there be one Canon expressing a rule absolute that needs no exception to prove it, we have it in the words, Rome never minimises. She always interprets her own documents as a legatee interprets a will, that is, in her own favour.

On June 15 the Council disposed of all the matters that stood in the way of the great question. Seventy-five speakers had entered their names. Two speeches were actually made on that day by Cardinals Mathieu and Rauscher.^[433] The latter said that he could never assent to the doctrine of the Draft without mortal sin. "We knew all that from your pamphlet," cried Deschamps, interrupting. "But you have never refuted it," replied the Austrian.^[434] The following day was the grand procession of the Corpus Christi. If the "good press" was parsimonious in information regarding debates and decrees, it was profuse in description of the spectacles. On the 17th, Pius IX entered on the twenty-fifth year of his pontificate. This year, according to Roman tradition, is fatal to the Pontiffs, it being held that Peter

reigned twenty-five years, and that none of his successors was to reign longer. Vitelleschi declares that the twenty-fifth year proved fatal to Pius IX, as well as to the rest, because in the course of it he ceased to be a mere mortal. This phrase from a Liberal Catholic will seem natural when set beside one of M. Veuillot, on the day on which Pius IX completed the twenty-fifth year of his pontificate: "We are reminded of the radiance of Jordan and of Tabor, of the thunders of the Temple, 'This is my beloved Son, hear ye him'" (vol. ii. p. 468). On the next page he says, "God has left us His priest, His angel, the sacred interpreter of His law, the anointed intercessor between Him and the world ... a second Peter, a second Moses on the threshold of a new world." It remains to be seen whether the twenty-fifth year of Pius IX was or was not that of the final fall of the temporal power. If the speeches on the doctrine and polity of the Church were concealed, the Pope's speech this day, in reply to the Sacred College, was blazed abroad. He divided the bishops into three classes—the ignorant, the time-serving, and the good. So flowed abroad fresh streams from that fountain which, all the time, was sending forth both sweet waters and bitter.

On June 18, the debate on the fourth chapter, that is, on infallibility, really began. It was a day of Cardinals. Pitra, Guidi, Bonnechose, and Cullen were the sole orators. Hitherto, what with the heat and what with the feeling that all was over, no interest had attached to the renewed debates after the violent close of the general discussion. But the torpor was suddenly shaken. A speech by a Roman, a Dominican and a Cardinal (Guidi), came upon the city, says Vitelleschi, like a sudden thunderclap in a cloudless sky. The Cardinal, like nearly all the members of the Sacred College, was a "creature" of Pius IX. According to Vitelleschi, he began his speech as a Cardinal should, but, according to Quirinus, he offended at the very first. Unhappily, in a matter of difference of this kind, the writers who enjoyed "the radiance of infallibility" give us no light. So we are left at the mercy of those whose assertions were all lies in general, but somehow, when attacked in detail, generally proved to be truths in particular. In the present case, we do not remember that even M. Veuillot attempts to impugn any of the facts stated. However Guidi may have begun, he affirmed that the doctrine of Papal infallibility, as contained in the proposed Decree, was unknown to the Church up to the close of the fourteenth century. Proofs of this doctrine were to be sought in vain in either Scripture or tradition. As a practical question, when had the Pope ever defined one dogma alone, and without the

Church? An act, he continued, might be infallible, but a person never. Hitherto infallible acts had proceeded from the Church, either by counsel of the Church dispersed, or by a Council. Inquiry was indispensable to ascertain "what was believed everywhere, and whether all Churches were in agreement with the Roman Church." After such inquiry, the Pope sanctioned "finally," as St. Thomas says; and thus only could it be said that "all taught through the Pope." Quoting Bellarmine, and even the modern Jesuit Perrone, he showed that "the Popes had never acted by themselves alone in defining doctrine, or by themselves alone in condemning heresies." At these words, *Spaccapietra*, an Italian, but Bishop of Smyrna, led in a disturbance. One bishop cried "Scoundrel!" another cried "Brigand!" Vitelleschi even speaks of violent gestures (p. 189). Guidi said he had the right to be heard, and that no one had given the right of the Presidents to the bishops; but he added, "You will have the opportunity of saying *Placet* or *Non placet*." Hereupon, from all ranks of the Opposition burst out a cry of "*Optime! optime!*"—excellent! excellent! "Do you agree with us?" asked a bishop of Manning. "The Cardinal's head is bewildered," was the reply. On this, says Quirinus, a bishop could not refrain from saying to the powerful Archbishop of Westminster, "It is your own head, Monsignor, that is bewildered, and more than half Protestant." If this language was really used, we must doubt whether it was infallible.

Guidi went on to advocate a change in the wording of the Decree, to the effect that the Pope acted with the concurrence of the bishops, and that after having, at their request, occasioned by prevalent errors, made inquiry in other Churches, he acted with the consent of his brethren, or with that of a collective Council. He contended that this was the doctrine of St. Thomas; that the word "final" implied something to precede, and that "supreme teacher and judge" presupposed "other teachers and tribunals." He concluded by proposing two Canons, the first of which declared Papal Decrees or Constitutions to be entitled to cordial faith and reverence, and not to be reformable; but the second said, If any one shall say that, in issuing such Decrees, the Pope can act arbitrarily without the counsel of the bishops as testifying to the tradition of the Church, let him be anathema. [\[435\]](#) On finishing his discourse, he at once handed his manuscript to the secretaries.

Quirinus relates that Valerga audibly said, in reply to some question, "Guidi is misguided." But his neighbour replied that Guidi's speech contained nothing but the truth. "Yes," rejoined the Patriarch of Jerusalem, "but it is not always expedient to speak the truth." The excitement was great. Groups of prelates who had left the Hall might be seen standing about everywhere in earnest conversation, while within doors Bonnechese and Cullen were discoursing to a thin audience with absent minds. It was related that Guidi did not speak as a solitary individual, but represented fifteen bishops belonging to the Order of Dominicans. He had gathered them together in the central convent of the Minerva, where he himself resided. They had considered the question, and accepted the views which he had now presented to the Council. This was much against the feeling of Father Jandel, their general, who was perfectly free from any taint of the episcopal system, a thoroughly right-minded Papist. Guidi asked how the Cardinals had taken his speech, and Cardinal Mathieu replied, "With serious and silent approval."

Rumours were soon afloat in Rome as to what followed between Guidi and his royal master. What we now give is traced by Quirinus to the authority of the Pope himself, who is notoriously fond of telling the people with whom he chats how he has lectured this or that dignitary.^[436]

The "creature" was summoned to the presence of his master soon after the sitting, and was greeted with the words, "You are my enemy. You are the *coryphæus* of my opponents. Ungrateful towards my person, you have propounded heretical doctrine." "My speech is in the hands of your Presidents, if your Holiness will read it and detect what is supposed to be heretical in it. I gave it at once to the Under-Secretary, that people might not be able to say that anything had been interpolated into it."^[437] "You have given great offence to the majority of the Council. All five Presidents are against you, and are displeased." "Some material error may have escaped me, but certainly not a formal one. I have simply stated the doctrine of tradition, and of St. Thomas." "I am tradition. I will require you to make the profession of faith anew. *La tradizione son' io, vi farò far nuovamente la professione di fede.*" "I am and remain subject to the authority of the Holy See, but I venture to discuss a question not yet made an article of faith. If your Holiness decides to be such in a Constitution, I certainly shall not dare to oppose it." "The value of your speech may be measured by those whom it

has pleased. Who has been eager to testify to you his joy? That Bishop Strossmayer, who is my personal enemy, has embraced you. You are in collusion with him." "I do not know him, and have never before spoken to him." "It is clear you have spoken so as to please the world, the Liberals, the Revolution, and the government of Florence." "Holy Father, have the goodness to have my speech given to you."

It was said that the Pope stated afterwards that he had not sent for Guidi as a Cardinal, but as Brother Guidi, whom he had himself lifted out of the dust. The saying, "I am tradition," made an impression in Rome much like the celebrated one of the French monarch, "I am the State." It simply packed up and labelled the thought that had been more or less confusedly before the minds of all. Quirinus speaks of having often had the words "I am the Church" in his thoughts—*l'Eglise c'est moi*. We do not see that the Pope could have said anything more sensible or more exactly representing the theology and history which the favourite champions had put before the world. Quirinus very properly thinks that this formula fits well with the pregnant saying of Boniface VIII, "The Pope holds all rights locked up in his breast." Truths and rights go together. Tradition consists of truths, and the Pope is all truth. Rights are based upon the truths, and the Pope holds them all in his own breast. And if the poor old man himself at last uttered these sad words, it was only after the incense had smoked around him thousands and thousands of times, hiding the realities of heaven from him by clouds that were only fumes. For this others were responsible, at least in part. Under the influence of it, what wonder if his senses had become confused? Mankind will have reason to be thankful that one Pope lived long enough to be thoroughly overcome by the smoke of the sacrifices. The ordinary reason assigned in Rome for Popes being short-lived is, that it is necessary to prevent the effects of their power upon themselves.

The *gravamen* of Guidi's offence could not be removed by any subsequent submission. Seeing that the Canon he proposed had emerged into the light, the record could not be got out of the book of history that a Dominican, a divine of repute, a Cardinal in high credit, did up to that last hour of liberty hold that it was a heresy worthy of anathema to affirm the very doctrine which was soon to be part of "the faith." The record could not be prevented from going down to future ages that what was, on June 18, and under the dome of St. Peter's, liable to be called a heresy, was on July 18 under the

same dome, promulgated by the voice of the Pope as truth, and as binding on every human being who would be saved. Nor can craft ever blot out from the history of the eccentricities of intellect the instance offered by the fact that after this had been done, grave and learned men, even of advanced age and high office, went throughout the civilized world soberly affirming that the only reason why the dogma was then proclaimed, was that it had been clearly revealed by our Lord and His apostles, and had in every age been held as revealed truth by all Catholics, in all places.

Vitelleschi is not quite clear as to whether all the incidents reported of the interview between the Pope and the Cardinal were correct. To him that is of no importance; Roman-like, he did not want anything to illustrate the relation of the Pope to his courtiers or to the Church. A few such scenes, more or less, would to him make no difference whatever.

As if to prepare for the deeds directly tending to the restoration of facts when the Council should have completed the restoration of ideas, the tales of the *Crusaders of St. Peter* continued to appear side by side with the notices of the legislative proceedings in the successive numbers of the *Civiltà*. To us one episode comes near home. It was on an April day that a company leaving Rome bore across the Campagna, with all the solemnity of a relic of the saints, the heart of one whose body, in the Agro Verano, the cemetery of St. Lorenzo, slept close by the tombs of the ancient martyrs, and amid those of the martyrs of Mentana. As the party reached a point on the hill within a few steps of the village,—a point from which St. Peter's appeared in the distance,—they saw a block of white marble, surrounded by four little columns, hung round by an iron chain. "Here," cried some zouaves who were of the party,—"Here is the spot to which Julian pushed on, chasing the enemies of God with fire and sword, passing through a thousand bullets, of which one carried away his cap; and here he fell shot down at point blank." Above the marble block rose "the cross of Mentana," and on it was cut the inscription, "Here fell, fighting for the See of St. Peter, Julian Watts-Russell, pontifical zouave, a young Englishman of 17 years and 10 months old, the most youthful who fell on the field of victory, and the nearest to Mentana." In this "angelic sepulchre," as the courtly historian calls it, the solemn party deposited their holy relic. Around were grouped the villagers, with a few zouaves, among whom were Mr. Vansittart, who had come to take up the arms of his fallen friend, and Wilfred Watts-

Russell, the brother and the fellow-crusader of Julian. The rites were celebrated by a venerable old man, yet, says the narrator, a new priest, who now, perhaps, for the first time performed the funeral service. It was the father of Julian and Wilfred. "As we returned," moralizes the zealous historian, "we felt that we had committed to the ground the seed of martyrs."[\[438\]](#)

After the Guidi incident the debate dragged on. The heats were growing worse and worse. At length, on July 2, the weary wheels seemed as if they would go no longer. The list of speakers still inscribed threatened very considerable detention. Hefele had entered his name among the earliest, and when he applied for his turn found he was somewhere "in the fifties," and when he next applied, that he was in "the seventies." Had the minority foreseen what was hidden behind clouds, but ready to thunder forth, they would perhaps have kept the debate open; and so the Papacy would have been saved from the last fatal step. Just now, by a strange coincidence, appeared in the *Civiltà* the tale describing the march of the newly landed French troops for Mentana in 1867, with their sisters of mercy. "O France!" cried the literary crusader, "may the angels of God who to a field of just but terrible vengeance accompanied that host, warring only for celestial charity, evermore protect the land of generous hearts."[\[439\]](#) But, not knowing what was so near at hand, the minority at last reached the point at which men are ready to say, We are fighting in vain, and therefore fighting without justification. They agreed among themselves that they might as well give up their right to speak, and let matters be brought to a crisis. On July 4, when the Council met, Schwarzenberg and others gave up their right. The formidable name of Darboy was called. No Darboy was there. So that instead of a final argument in opposition, there was his conspicuous example in favour of withdrawing. For a long time every one who had done so had received marks of approbation both from the Council and from the Presidents, and every expedient had been used to induce men to abridge the discussion. It was soon apparent that the leaders of the Opposition had adopted a common policy. One after another waived his right. A couple of inconsiderable men claimed their turn, but said little. The bulk of the men on both sides entered into the general movement, and to the relief of all, and the delight of the triumphant majority, Cardinal De Luca announced that the list of the speakers was exhausted, and that the debate was closed. So, as

early as half-past nine o'clock, people saw the Fathers gliding down the cathedral and dispersing over the city. They wondered what had released them so early, and, as Vitelleschi says, little realized the importance of their decisions, either to the Church or to the world.

Dated on the very day on which the discussion closed, the *Civiltá* issued an article on the Decline of Liberalism, which shows how the political aspects of the legislation, now nearly completed, were kept in view.^[440] A Catholic gale, says the writer, seems to be passing over the world, vivifying and gladdening society, corrupted and worm-eaten by Liberalism.

A single people, the Roman, finds itself, by the special providence of God, free from this universal Liberal domination; and this Roman people alone, still happily governed according to the laws of God, in contradiction to the great principles of modern society, enjoys the sweet fruits of true progress, and is the object of admiration and envy; for of it alone can it be said, Happy is the people whose God is the Lord. As a drunken slave used to be exhibited to the Spartans to inspire them with hatred of intemperance, so Providence in almost every part of Europe has allowed slaves drunk and mad with Liberalism, slaves of tyrants sprung out of the dung-hill, to be exhibited till Europe, now weary of Liberalism, could only look to Rome and to her civil and religious head, not merely the sole guardian and faithful depositary, but the infallible herald of the principles of universal religion and truth, civilization and prosperity, even natural and social, among nations as well as among individuals. We may say that from the first stage of the movement to the last, it is nations and not individuals that are kept in view.

In Bavaria, Belgium, and Portugal, the writer asserts, the Catholics are escaping from the trammels of the Masons. In Austria the same process is in preparation. In France they are more resolved than ever to sustain Rome. In Italy Liberalism is exhausted, despised, divided, and falling. "Even in Protestant and heterodox countries, Rome, with her civil and religious prince, stands in much higher credit than Italy and other Liberal governments apparently stronger."

Sneering at an allusion of the *Journal des Débats* to the vaunted hopes of the Catholics, accompanied by the remark that in spite of their absurdity it was nevertheless prudent to keep an eye on the clock which was to sound

the return of the hour for great things the *Civiltá* says it will not deny that Liberalism has some "bad quarters of an hour" before it. It equally thinks that now it is neither imprudent nor rash "to hope, and that within a time not remote, for the victory of Rome and its Pontiff-king, so far as Italy is concerned, and for the victory of the social, civil, and religious principles which that king represents and preclaims."

The triumph over intellect it holds to be patent and ascertained, and therefore this hope of a triumph in facts is reasonable.

Providence, continues the soothsayer, cannot permit the Church to be long the victim of the devices of the gates of hell, particularly of those devices with which the States of the Church are now beset. After making allusion to hopes which had been entertained of the Pope's death, and asserting his florid health and his prospect of living many years, he proceeds: "The Pontiff lives and reigns in Rome more secure, more glorious, more influential, more beloved than his enemies." Not only is the fact that this potentate was defended by the arms of France entirely absent from the consciousness of the writer, but he indulges in jibes clearly addressed to the very Emperor who had restored the Pontiff and kept him up. "Sound Catholic principles now seem to politicians the only support of material order and of economical interests." The writer goes on to show that all the implements of Liberalism have been employed on behalf of the Papacy, and that with success—meetings, addresses, collections, votes, illuminations.

Writing with an expectation that before its words came under the eye of his readers (p. 174) they would have already learned that the great word had been spoken, and that Papal infallibility had taken its place among revealed truths, the writer proceeds to indicate the range of the new attribute:—

The Roman Pontiff is the Vicar of Christ. Therefore is he the continuator of the work of Christ in the world. He, standing in His stead, is the witness to the truth in the midst of us. Christ is the voice of the Father, and the Pontiff is the voice of Christ. The Father, in the fulness of time, spake unto us by His Son. The Son, after His return to the Father, continues to speak to us by His Vicar. Now, is it conceivable that a lie can ever be found in such a mouth, in such a word?—and if it could be found, would not the mission of Christ and the duration of His reign have vanished *ipso facto*? Affirming the

infallibility of the Pontiff, therefore, means no less than affirming the duration of the reign of Christ upon earth.

Many who, on beginning to read this work, would have shrunk from interpreting language as to the Kingdom of Christ or the reign of Christ in the Jesuit sense, will by this time be prepared to see how a fallen faith which in effect brings down our Lord to the level of the Pope, must impress itself on the language of those who hold it. Any thoughtful man who will spend a few minutes in calmly setting out before his mind the ideas here shown to rule the mind of a Jesuit, will ever after attach a more definite meaning to the language of Ultramontanes when they speak of the Word of God, the Kingdom of God, the Christian civil system, or use any other terms, affecting the relative positions of the Pope and of the rest of the human race.

The writer of this article gratefully recognizes the surpassing zeal of France and her title to the first place among nations devoted to the Church. Those who form exceptions to the general devotion of France do not belong to her. The Opposition in the Council are called the new Arians, a clear analogy being discerned between denying to our Lord His divinity and denying to the Pope his place as the infallible representative of the Lord. The dogma, continues the *Civiltá*, would now come forth with the double advantage of an acclamation and a discussion. The famous petition for the definition, by a vast majority of the bishops, was indeed an acclamation, and to this had been added an ample discussion. It asserts that there never had been in the history of the world so full and exhaustive an examination of any question. The writer is unconscious of the fact that before changing a principle of law, or even a fiscal arrangement like a duty on corn, we slow English sometimes employ as many years as they had employed months in settling the source of all principles for ever. Not only so, but with us each new thread shot into the progressive web of the discussion is laid bare to every eye and to every magnifying glass that nature and art can lend. The *Civiltá* puts in even the word "ventilated" among the epithets denoting the unparalleled winnowing of this great question. Why, the *Civiltá* itself, during the progress of the discussion, readily told, indeed, who celebrated mass, who died, who received a title, a distinction, or a place, who got leave to stay away; but it did not even tell who spoke, much less anything about what was said. It gave not a word of information to the whole Catholic

Church of what was proposed to be done with its creed, or of what the assembled bishops thought of the proposal. In the very same volume where these fine words are written, we have this specimen of the *Civiltá's* history, with which we connect one from Monsignor Guérin, as showing what free air will blow around the chairs of history in our colleges and around the tables of our editors when once dogma has achieved its Sedan (VII. xi. 237). "Our readers will be gratified"—a blundering English journalist would have commenced such a paragraph with apologies for not being able to tell his readers anything worth knowing, but the accomplished Jesuit begins with congratulating them on the amount of information he is about to give—"Our readers will be gratified to have under their eyes a view of how many spoke, or gave up the right of speaking, in the discussion on the 4th chapter,"—that is, on the great chapter containing the express statement of infallibility.

June 15, 1 Reporter and 2 Speakers.

June 18, 3 Speakers.

June 20, 1 Reporter and 4 Speakers.

June 22, 7 Speakers.

June 23, 5 Speakers.

June 25, 6 Speakers and 2 gave up their right.

June 28, 6 Speakers.

June 30, 6 Speakers and 2 gave up their right.

July 1, 6 Speakers.

July 2, 9 Speakers and 14 gave up their right.

July 4, 2 Speakers and 42 gave up their right.

The excellent Monsignor says (p. 113),—and it is for thoughtful men to spend a little time in forming a clear idea of what would be the condition of the world if its information on its supreme affairs was supplied in this fashion:—

There were General Congregations on the 8th of January, the 10th, the 14th, the 15th, the 18th, the 19th, the 21st, the 22nd, the 24th, the 25th, the 27th, the 31st, on the 3rd of February, the 4th, the 7th, the 8th, the 10th, the 14th, the 15th, the 18th, the 21st, the 22nd. An interruption of the General Congregations for a month; a resumption of the Congregation on the 18th of March, (thirtieth Congregation), the 22nd,

the 23rd, the 25th, the 26th, the 28th, the 29th, the 30th, the 31st, the 1st of April, the 4th, the 5th, the 6th, the 7th, the 8th, the 12th, the 19th.

We do not know why this instructive method of writing the most important of histories, that of the process of making laws for the whole world, is not continued through and through. Vestments and processions, bulls or Papal briefs, are not in the same manner hidden behind Arabic numerals. Any one may, at the British Museum, feast his own eyes on a specimen of such luminous history. The seventh volume of Frond is the History of the Council. The student will find it a folio in sumptuous Morocco, with gilt edges, and paper thicker than vellum. He will find it faultless and very full in matters of rank, precedence, forms and ceremonies; each cope and favour, each lappet, and each heave of the censer is well and duly noted. But as to questions respecting what men thought, said, proposed, deprecated, or took delight in, the poor student may open three leaves in succession and find both sides filled with mere numerals, names, and titles. [\[441\]](#) One grave historical error is confessed in the corrigenda. On a certain occasion even the pen guided by the "radiance of infallibility" slipped so far as to say that their Eminences the Cardinals were to be in black stockings. The correction shows that "black slippers" were the proper words.

It would for a time have seemed as if the glories once foretold to follow the dogma had considerably faded from the eyes of the seers during the wearying months of debate. Now, however, that the goal was in sight, the vistas reopened, and if translucent clouds rendered the distant view indistinct, they greatly enhanced its splendour. Still there was no weak expectation that the great results would be instantly attained. As centuries were required to bring the Anti-Papal movement in society to the present pass, so was it calculated that centuries would be required to bring the counter-movement to its full development.

It is not to be believed that an event so glorious, and one brought about by God with dispensations so singular, is to remain confined within itself. It will be prolific of prodigious effects in every social sphere for the salvation of the *nations*. God does not work by accident, or set in motion great means for small ends. We do not hesitate to affirm that just as the subversive negations of authority which prevailed at the

Council of Basle indicated the principles of the great politico-religious revolution of modern times, so the reparative affirmation of all the privileges of the See of Peter now so solemnly made by the Vatican Council will indicate the principles of restoration in every public and private sphere of Christendom. Hence in the series of the centuries this of ours will be a day blest and magnified as that in which, thanks to the Council held under Pio Nono, the light again dawned on an oppressed world wrapped up in the darkness of the Revolution (pp. 178-9).

The writer does not overlook us non-Catholics. For us also the great event was pregnant with blessing, showing us, above all things, "the divine organization of the Church," and in it showing us the "remedy for the unbridled excesses of private judgment, the parent of that Babel confusion in which we are involved." Therefore,

to Mary, sweet Lady and Queen of this kingdom of Christ, be loving thanksgivings rendered, for after God to her favour do we trace the benefit obtained. Scarcely had we read in the Bull of Convocation that the Council would open its sittings on the day sacred to the Immaculate Conception of Mary, before we felt a firm and immovable hope of the definition of pontifical infallibility. It was fitting that the Pontiff who, amid the applause of the Christian world, had dogmatically asserted the highest prerogatives of her holiness, should himself behold the highest prerogatives of his apostolic ministry dogmatically affirmed (p. 180).

FOOTNOTES:

[425] It seems that the Bishop of Orleans, and most of the French prelates in opposition, wished to make a solemn protest against the treatment they had met with; against the advantage taken of the hot season to weary them; against the want of fairness shown towards them by the Presidents all through the discussion; and, lastly, against the excesses, insults, and affronts of which the majority had been guilty with regard to them. Having made this protest, they proposed to leave Rome immediately.—*Vitelleschi*, p. 200.

[426] *Quirinus*, p. 624.

[427] We have avoided noting the charges of misquotation and falsification of authorities made on the one side and the other. It would be endless.

[428] Quirinus says that he should think it a sin to print it, but that the Romans freely credited and repeated it.

[429] Serie VII. xi. p. 94.

[430] *Veillot*, ii. p. 389.

[431] *Friedberg*, 688; or a French translation in *Le Concile du Vat. et le Mouvement Anti-infallibiliste*, p. 212.

[432] *Das Vatikanische Dogma*, p. 5.

[433] *Stimmen and Acta Sanctæ Sedis*.

[434] *Quirinus*, p. 684.

[435] *Friedberg*, p. 144.

[436] *Quirinus*, p. 714.

[437] The *Difficultés de la Situation* says that Guidi replied, "Holy Father, I have spoken to-day what I taught for many years, in broad daylight, in your College of the Minerva, without any one ever having found my doctrine blameable. The orthodoxy of my teaching must have been certified to your Holiness when you selected me to go to Vienna to combat certain German doctors whose principles were shaking the foundations of the Catholic faith." Printed in French in the Appendix III. to *Quirinus* (p. 848).

[438] *Civiltá*, VII. xi. 424-5.

[439] VII. xi. 37.

[440] *Civiltá*, VII. xi. p. 129.

[441] E.g. pp. 224, 226, 228.

CHAPTER VII

To the Eve of the Great Session, July 18—A Fresh Shock for the Opposition—Serious Trick of the Presidents and Committee—Outcry of the French Bishops—Proposal to Quit the Council—They send in another Protest—What is Protestantism?—Immediate War not foreseen—Contested Canon adopted—The Bishops threatened—Hasty Proceedings—Final Vote on the Dogma—Unexpected Firmness of the Minority—Effect of the Vote—Deputation to the Pope—His incredible Prevarication—Ketteler's Scene—Counter Deputation of Manning and Senestrey

—Vast Changes in the Decrees made in a Moment—Petty
Condemnations—The Minority flies.

IT might have been thought that incidents of public interest had now terminated. On the very next day, however, after the close of the great discussion, occurred a collision which, had the opposition been morally capable of saving anything, would have given it the opportunity of saving the Roman Catholic Church from falling into the condition of a body without any constitution, except the "inner light" of one man. It opened their eyes, perhaps not more widely, but once more. It smote their feelings, excited a momentary effort at action, and ended in a protest drawn up by Bishop Dinkel.

One Sunday the Fathers were studying sixty-two amendments proposed on the second chapter of the great Decree. It seemed awful work to decide so many points affecting the faith on a single Monday morning! But behold, in the evening come in one hundred and twenty-two amendments on the fourth chapter, to be voted upon on the Tuesday!

The procedure was on this wise. Amendments suggested, after being in the hands of the Committee, were reported in print, and then put to the vote. The Sub-Secretary said, The committee oppose the amendment: let those who oppose it stand up. Or, The Committee accept the amendment: let those who accept it stand up. So by scores at a time were questions settled on which men had had no chance of reflecting. Only once, says *La Liberté du Concile*, did the Fathers succeed in obtaining from the Presidents a delay. It was on the very occasion just mentioned, when they showed that the only time permitted to them to read over the hundred and twenty-two amendments to be despatched on the Tuesday, would be what would be left of the Monday after they had despatched no less than sixty-two. They did obtain twenty-four hours' extension of the time. "You are convoked on purpose to vote," says the writer, who, be it remembered, printed only fifty copies, for Cardinals alone, "and you have not time to study not even to read it over again" (Doc. i. p. 175).

If ever an important act was passed by an assembly it was the Canon which closes the third chapter of the great Vatican Decree. Quirinus hardly exaggerates its importance when he speaks of it, if interpreted by the rules of Canon law, as handing over the bodies and souls of all men to one. On

July 5, the Fathers had in print before them a formula for this Canon, and three proposed amendments. The Bishop of Rovigo, as reporter for the committee, broke all rule first by saying that amendments No. 70 and 71 should not be voted upon, as the committee had adopted No. 72, with a modification. It would appear that, utter as was the disregard here manifested even of the Pope's own Rules as well as of the rights of the proposers of the amendments and of those of the Council, this was allowed to pass. But soon even that broken-spirited Opposition was roused. It was plain to some that what the Bishop read as No. 72 was not what was in print as 72. The Presidents wanted to put what had been read, but then, according to the *Acta Sanctæ Sedis*, arose Haynald and protested. Though the Council itself had no right to shape the amendments, the Rules required that all amendments should be put before it as they had been shaped by the committee, and it was for the Council to say Yea or Nay. Darboy also rose, and more fully entered his protest. The protest could not at the moment be brushed aside. Here was obviously a proposal differing from that of the committee, foisted in against all rule, and without notice. For once the prohibition against speaking to order had been defied. The Presidents, thrown into confusion, could not conceal the attempted trick; yet they durst not abandon the spurious Canon. They therefore said something about inadvertence, and withdrew it for the present, to be submitted to the committee, then to be printed and voted upon at another time.

The fact was that the difference between the two forms involved the whole question of jurisdiction between bishops and Pope. One form had been withdrawn by the committee, and an amendment had been accepted. The Pope was incensed. He ordered the third Canon to be altered back to the form which had been objected to, and even this was greatly strengthened. He never submitted the alteration to the committee, but sent it direct to the reporter to be then and there put to the vote instead of the Canon which stood on the printed Order of the Day. How great was the difference in the wording of what the Fathers had before them in print, and what was attempted to be palmed upon them, is obvious on reading the two—

THE CANON AS IT WAS IN
PRINT

THE CANON AS IT WAS READ AND
ATTEMPTED TO BE PUT TO THE VOTE

If any shall say that the Primacy of the Roman Pontiff is only an office of supervision and direction, and that his supreme jurisdiction over the universal Church is not plenary, but only extraordinary and mediate, let him be anathema.

If any one shall say that the Roman Pontiff has only an office of supervision or direction, but not plenary and supreme power over the whole Church, both in things pertaining to faith and morals, and also in those pertaining to the discipline and government of the Church dispersed through all the earth, or that he has only the chief portion but not the entire fulness of this supreme power, or that this his power is not ordinary and immediate, whether over the Churches all and singular, or over pastors and believers all and singular, let him be anathema.

Meditation on what was involved in these claims to all-absorbing power was not likely to relieve the bishops of the pain caused by the stealthy attempt upon their vote. What the Presiding Cardinals and the Bishop of Rovigo had tried to steal from them, was not trash. It was all that ancient bishops, even when acknowledging the primacy of Rome, would have fought for with at least ecclesiastical weapons. Of the Committee not a man spoke his scorn, and the steady majority was not shaken. The world accused it of conspiring against the rights and liberties of mankind. It might full as well have been accused of conspiring against the rights and liberties of bishops. If the official organs had often, during the Council, used such language as "lying" and so forth, they were quiet now, while words like "lying," "cheating," "deceiving," etc., flew freely about, and, if Quirinus be correct, were repeatedly used in the meetings of the bishops of the minority.

But if the majority was not disturbed, a note rang out from the French minority which might remind any one who has lived in their country through a revolution, of the *Prend ton sac*—Take thy sack!—the three sudden taps which at such a time make timid hearts in a house beat as if they had been hit by the drumstick.

"1. The hour of Providence has struck," cries this voice, with the true French ring. "The decisive moment for saving the Church has arrived.

2. By the additions made to the third Canon of the third chapter, the committee, *de fide*, has violated the Rules, which permit not the introduction of any amendment without discussion by the Council. 3. The addition surreptitiously made is of importance beyond calculation. It changes the constitution of the Church. It enacts the monarchy of the Pope pure, absolute, and indivisible. It carries the abolition of the judicial rights and the co-sovereignty of the bishops, and with it the affirmation and anticipatory definition of separate and personal infallibility. 4. Duty and honour permit us not to vote this Canon without discussion, as it contains an immense revolution. The discussion can and may last six months, for it affects the capital question, the very constitution of the sovereign power in the Church. 5. This discussion is impossible, because of the pressure of the season and the disposition of the majority. 6. One thing alone, worthy and honourable, remains to be done—to demand the immediate prorogation of the Council till the month of October, and to present a declaration, in which all the protests already sent in shall be enumerated, and the last violation of the Rules shall be set forth, as well as the contempt shown to the dignity and liberty of the bishops. At the same time, we must give notice of our intended departure, which can no longer be deferred. 7. By the departure, on such grounds, of a considerable number of bishops of all nations, the œcumenicity of the Council would be at an end, and all acts which it might subsequently adopt would be null in point of authority. 8. The courage and devotedness of the minority would produce an immense effect in the world. The Council would meet in the month of October in circumstances vastly more favourable. All the questions now only broached would be taken up again and treated with dignity and liberty. The Church would be saved, and the moral order of the world."[\[442\]](#)

Had this energetic advice been adopted, the Roman Catholic Church would for the time have been saved from the last step in a downward series; but whether the moral order of the world would have been the better is another question. Those who seek a moral order higher than could be given by the men who attempted to palm the new Canon upon the Council, may well be content to have the lines drawn and the forces defined. The Council has given to all men an opportunity of knowing, if they will, what are the

morals of the Pope and his officers, and what is order in their vocabulary. The moral order of the world must now be secured either under the absolute dominion of the Pontiff, or, as it has been best secured before, over the remains of his pretensions.

But the bishops of the minority were not the men to give the Church a further chance of continuing that confusion of all moral order which resulted from her old ambiguities. They did now as they had done before—let her take her way, and sent in a protest stating the main facts of the deception and breach of Rules.^[443] One can almost see the smiles of the men in power at the sight of one piece of paper more.

If ever there was a case to justify the hasty saying ascribed to Burke, that Protestantism is a mere negation, it was that of the Vatican minority always protesting and never maintaining its ground. Of course, every protest has its negative side, but that is the side turned towards him who is protested against. It always has its positive side; that is, the side of him who makes the protest. He asserts a right. Dr. Newman, in a moment of sound sense, said, "What is the very meaning of the word 'Protestantism,' but that there is a call to speak out?"^[444] So, when in a day of mercy, nations, hearing from heaven a call to speak out, protested against the sins and follies of the Pontiff, their protest was indeed a mere negation to him whose pretensions were rolled back; but to those who made the protest good, it was a positive upholding of existing rights, a positive recovery of lapsed rights, a positive deliverance from great evils, and a positive entrance into possession of great and heritable good. They protested against the doctrinal authority of the Pontiff, and maintained the doctrinal authority of the Bible. They protested against the authority of ecclesiastical courts or Councils to fetter the press, the pulpit, or the private conscience. In doing so, they maintained a duty imposed, and a right given, by God. The negative result was to the Inquisition and the Curia. The positive result was to the Press, the Pulpit, the Civil Court, and the silent tribunal of the Soul, with its reinstated jury of accusing and excusing thoughts. They protested against indulgences, purgatory, and all the commerce of the mass, and maintained the free gift of God's unpurchaseable grace, the sovereignty of His judgment, the finished and all-perfect sacrifice of His Son. They protested against sensuous and idolatrous spectacle, and upheld scriptural worship; protested against colours, scents, and gorgeous dress, and upheld sound teaching, borrowing

all its glory from spiritual elements, none from physical; they protested against priestly caste, and upheld a brotherhood, a royal nation of priests; they protested against progressive conformity to newly-invented superstitions, against the service of local and subordinate divinities, and at the same time upheld progressive conformity to the standard of our Lord and His apostles. They protested against the idea of one fold or one pen, but upheld that of one flock diversified in its members, various in its folds, but one in love to the common Lord and in likeness to the common Father.

When Darboy and Dupanloup, on July 4, gave up the attempt of averting the definition by delay, how little did they know that a couple of days later and the whole prospect of the Papacy would be changed. When the Pope on the morrow of that day followed up his victory by the additional blow which the surreptitious Canon dealt at the very semblance of liberty or rule in the Council, how little did he suspect that the visions of restoration long floating before his fancy were to give place to real scenes of fresh disaster. It was only on June 10 that Ollivier, in the Chamber of Deputies, gave confident assurances of peace, while on July 6, in the same Chamber, Gramont sounded an unmistakable blast of war. Even now, human foresight did not measure the rapidity with which events were to rush to a collision, and then to a catastrophe. Napoleon III had so often seemed bent on measuring himself with Prussia, and had so often drawn back, that it was not unreasonable to hope that, even after bellicose words, he might be prudent once more.

The next week following that day which placed in hazard the fortunes of the restorer of the Papacy and those of the Papacy itself, was spent in the Council in voting the chapters in their final shape. The Canon which had been brought surreptitiously forward on the fifth was produced in the regular manner on the thirteenth, and after all the outcry it was passed; "the most pregnant article," says Quirinus, "that had been laid before any Council for six hundred years." It was now voted by rising and sitting,—which is not to be wondered at when originally the Presidents had wanted it to be voted without being even known. We must not blame the minority for not now debating it. The Rules did not allow of this. It had been adopted by the committee and must be met with a Yea or Nay. How many voted against this pregnant act is uncertain. Some say fifty or sixty, some ninety or a hundred. ^[445] In that act every shred and tatter of the Gallican liberties, or

any other liberties, except that of doing the Pope's will, passed from the Papal officers, whom, as Quirinus says, the Roman Chancery still calls bishops. The chapter to which this Canon was attached annulled all national rights whatever, whether Gallican, Josephine, or parliamentary, which might conflict with the supreme authority. Vitelleschi (p. 202) says that the Secretary of State appeared very uneasy as to the opinion of governments on this fresh declaration. The bishops naturally would have similar apprehensions, but as to them, fear cast out fear. They had good reason to believe in the gentleness of Liberal governments, and they had no reason to believe in the gentleness of the Pope. They trusted, says Vitelleschi, to the tolerance and freedom of thought which has everywhere triumphed in modern days. With the Papal government, on the other hand, they had neither tolerance nor freedom to trust to. They knew that if they dared to provoke it, the stroke of Pius IX would come down hot and heavy. The oath of a bishop to the Pope, which obviously aims more at feudal vassalage than at spiritual works, had made the Emperor Joseph II feel that men bound by it were not citizens in the sense of free men. "It does not accord with the fidelity or obedience due by a bishop, as a subject, to his sovereign.... A bishop who feels himself bound by that oath must become perjured."^[446]

Many writers mention what is clearly stated in a letter of Hefele, under date of July 9:—^[447]

The intention of the Pope is, in spite of the minority, to proceed at once to the publication of the new dogma, and forthwith to hand to every bishop two documents for his signature: (1) A profession of faith containing the article of infallibility; (2) A solemn declaration that the Council has been a free one. So you see into what a position we are brought, and that it does not depend on our own will whether we shall remain in our places or not. He that will not sign will instantly be placed under censure.

According to Vitelleschi, this threat terrified the poor bishops of the Opposition. If they refused to acknowledge the validity of the Council, nothing, as he says, was before them but to resign their Sees. If they meant to impugn the validity of the Council, Rome was not the place in which to

do it, and, what is still more significant, they themselves "were not the men to do it."

It proved on the next day that the candidature of a Hohenzollern prince for the vacant crown of Spain, which had given to France the occasion for a quarrel, had been withdrawn. But it also appeared that Lord Lyons had to reproach the Duke De Gramont with a breach of promise, inasmuch as the Duke had authorized him to assure her Majesty's Government that if the withdrawal of the prince could only be procured the affair would be at an end. It was plain that the long-propheesied attack of France was resolved upon at last. What with the impatience of the majority for the fruits of their victory and the disgust and discouragement of the minority, the sufferings from the heat and the solicitude occasioned by approaching war, the assembly had ceased to be, in any serious sense of the word, deliberative. Amendments literally by the score were now produced and disposed of with a haste which was in shocking contrast with the gravity of the subjects. *La Liberté du Concile* says that on the all-important chapters on faith there were proposed two hundred and eighty-one amendments. The Fathers were called on to vote them by standing and sitting, and this was done in such haste that they had not even time to re-read them. The Under-Secretary did not read them out. He cried, "Number ten, number fifty, or number seventy-seven," as the case might be, "the committee rejects: those who are in favour of its rejection stand up." The solid majority stood up, and all was over. So in another case he cried out, "Number five or fifteen," adding "The committee accepts: those who are in favour of accepting stand up"; and the same result. "I do not vote," said one bishop, "because not only am I unable to form a conviction, but I am unable even to form a clear idea of what is the point" (*Documenta*, i. 174). And each minutest point was to be irreformably fixed! We had, says this writer, four hundred quarto pages on the subject of infallibility, including notes, remarks, and all, while only a few days were allowed to study it. So when the Draft Decrees on Faith were for the second time brought out new cast, with a preamble, four chapters, and eighteen canons, twenty-four hours were allowed to prepare to discuss them; and the preparation must be in Latin. Twenty-four hours for an accountable creature of God to prepare himself to say whether he would take a side for or against laying upon himself the obligation to pronounce eighteen curses more against his fellow creatures!

The hope had been flattered all along that no anathema would be attached to the dogma of infallibility. But at the very last Bishop Gasser, of Brixen, one of the keen Curialists, produced the formula enriched with an anathema against any one who should presume to contradict it. Quirinus says that Gasser was unwilling to be left behind by Manning, Deschamps, Dreux-Brézé, and the Spaniards. Finally the whole was submitted to the solemn decision on that very day on which the French Chamber, that had so long voted money for the forces to support the Papacy in Rome, voted five hundred and fifteen millions of francs to break up united Germany once more.

On the morning of July 13 the hour had come. Up to the last it had been asserted that no bishops but two or three would say *Non placet*. Every form of assurance had been spoken and printed that this would prove to be the case. The Virgin, the Saints, ay, and even the Holy Spirit, had been over and over again pledged to procure this result. At last, Ketteler and Landriot of Rheims made a clever attempt to bring it about by proposing to the Opposition, with which they had seemed to be at one, that they should all vote *Placet juxta modum* (content on certain conditions).^[448] This would have enabled the Court to say that there were no votes of "non-content." The Archbishop of Milan said, "The only befitting course for us who are convinced of the falsehood of the doctrine is to say, No."^[449] The Pope, it is said, told Darboy that not above ten would vote *Non placet*.^[450] Certain it is that bets would have been freely taken in Rome the night before that not a dozen would do so. The devout were confident because the Virgin would order it otherwise, and the worldly were confident because they thought the bishops would not be unmindful of their own interests.

The Hall once more received its aged senators. Eighteen centuries called to them to remember what a Church Christ had set up; how pure in principle, how free in regulations, how plain in forms, how simple in organization, how far from pomp or dreams of domination, from cursing, or from use of physical force; how little of a body, how much of a spirit, was that real Church. It was a leaven moving by the force of an inward and self-propagating life to leaven the whole lump, in which for itself it only asked to lie hidden, and by its innate force to determine the quality of the meal, not stooping to design a mould for the shape of the loaves, on a model as irreformable as the patterns of a Hindu artisan. Many bishops had said that

they had found themselves called together to gratify one self-asserting man of ordinary gifts, and less than ordinary acquirements, by giving him a diploma as the titular Lord of the world, which would have no practical effect except that of making him dictator of the Church, and bringing them and their people into collision with everything bright and noble, which he, in his infatuation, had set himself to put down. Many of them, at considerable risk to their own interests, were determined to register their solemn No! In spite of all hopes previously entertained, the feeling that the minority were resolved had spread among the majority. Quirinus tells how Deschamps, who had drafted a set of supererogatory anathemas, and had only withdrawn them in face of serious threats from Maret, and who was therefore known as having sought to place every man of the minority in the dilemma between giving an instant affirmative vote, or being immediately outside the Church by anathema, now approached the leaders of the Opposition. "With humble gestures and whining voice," he entreated them to do as Ketteler and Landriot, professedly belonging to them, had proposed, namely, to vote "Content on certain conditions," and said that really there was a disposition on the part of the authorities to insert qualifications. "The trick was too bare-faced to succeed." Darboy called the attention of the three Cardinals to this attempt to divide the Opposition at the last, and the bishops said to the new Primate of Belgium, on whose head the gifted already saw the mitre kindling into the flame-colour of a hat, "It is unexampled impudence." We shall find hereafter, in the *Acta Sanctæ Sedis*, what would appear to be an allusion to this scene.

The voting then began. It appeared that there were six hundred and one bishops present, showing that many of those who were in the city had stayed away. Antonelli was not there. Of course all the men belonging to Rome and the patrimony of St. Peter were for the Pope. So were nearly all those of the Neapolitan States, and the overwhelming majority from the other portions of Italy; Spain, South America, and the missionary bishops, might be said to be as one man. But to the surprise of every one, several of the Orientals, under the Propaganda as they were, and terrorized as they had been, had the heart to say No. Even poor old Audu, Patriarch of Chaldea, dared to say *Non placet*, knowing, from his experience by night in the Vatican, to what he might be exposed. Of course Ballerini and Valerga, and other Romans, whose Orientalism went no deeper than their vestments, were Roman still. When the important preliminary votes had been taken by

rising and sitting, the Sub-Secretary ascended the pulpit. He called out name after name, each one replying by the words, *Placet*, *Non placet*, or *Placet juxta modum*; that is, Content, Not Content, or Conditionally Content. The vast majority said *Placet*; but the stateliest of Cardinals, Prince Schwarzenberg, said No. Milan said No; Paris, No; Munich, No; Vienna, No; Gran, the Primatial See of Hungary, No; Lyons, the Primatial See of France, No. In all, no less than eighty-eight living witnesses that day lifted up their testimony, and sent it on to all after-time, that, so far as they knew, the doctrine of Papal infallibility had not been, and was not then, the faith of the Churches which they represented. Nearly all these did represent Churches, many of them the oldest, the most educated, and the most numerous in the Papal world. Maret, who was a bishop *in partibus*, being among the minority, was like a bird in the wrong flock.

Strange to say, no less than seven Cardinals then present in Rome abstained from voting. The abstentions altogether numbered eighty. Poor Cardinal Guidi, who had been sadly belaboured for his fault, had been forbidden to receive visitors, and had been made miserable by all the arts which priests can practise, and to which priests are exposed, now voted *Juxta modum*; that is, conditionally content. The number who did the same were sixty-two. A false impression was spread among the Liberal Catholics that these were all adverse to the definition. Not so. Some of them did not think the formula now before them strong enough, and had notable additions to propose. The Contents were, 451; the Non-contents, 88; and the Conditional Contents, 62.^[451] The *Acta* of the Council contain not a syllable of this sitting, any more than of all the others of the General Congregations.

The effect of this vote in Rome was immense. No class of men had counted upon it. Even ardent supporters of the minority had shown a want of any confidence that they would stand fast up to this point. The impression got abroad, for the moment, that not even Pius IX, little delicate as he was, would accept an apotheosis, as it was called, which had been publicly discredited by nearly all the bishops of great Sees, who were in any sense independent of the Bishop of Rome. "According to general belief, especially in Rome," says Vitelleschi (p. 206), "the Church never creates a dogma new in itself; but in defining a dogma, simply attests some belief which has been always and universally professed." The Romans saw that both the "always" and the "universally" were for ever disproved by the vote.

They knew how speedily black could be made white, but they did not see how the device could this time succeed. There was the vote, saying what had been the belief of the bishops up to that hour. But probably the Romans soon corrected their first impression by their habitual estimate of Pius IX. They never accuse him of pride, although they always accuse him of vanity and vainglory. A case in which the common voice so sharply draws the distinction is exceedingly rare in public life. He is not above accepting anything that is agreeable. Quirinus will have it that he still declared that the vote of the Opposition would be reversed, and that these misguided men would be so enlightened by the Holy Spirit, that they would publicly vote for the right.

From Munich a telegram was sent to Hefele bearing many names, among them that of Reithmayer, announcing universal "joyful sensation" at the vote, and calling for "immovable perseverance," otherwise "incalculable mischief."[\[452\]](#)

Nothing further now remained but the great solemnity for promulging the Decree, and gathering the fruits of nearly eight months' toil. Only five days' delay was taken—days of intense excitement, and of incidents striking at the time, and important for all time. The minority saw how their hopes that the Pope would recoil before a vote so solemn as that recorded had been vain. The war-horse was prancing outside the door of the Council, and the fighting sons of Loyola could already tell what tidings he would bring. Louis Napoleon might have doubts, but the Fathers of the *Civiltà* had none. "Everything is always directed and turned by Providence for the good and the triumph of the Church." (VII. xi. 379). The crisis, they knew, would give the Vicar of God an opportunity of intervening, with his newly certified authority and infallibility, as mediator. This office once accepted would easily be turned to that of supreme judge. So would his new reign be grandly commenced. The *Monde*, of Paris, said to be the organ of the Nuncio, already called the war a religious war against Protestantism. France had been assured in every form that she had only to attack Prussia, and all the Catholics of Southern Germany would join her. Without the miscalculation at the Tuileries caused by these statements, it is not probable that the French would have been hurled into the ditch of Sedan. Both the precepts and the prophecies of the reconstructionists failed. The cry, "The Church," raised by the Bavarian priests was not so strong as that of "The

Fatherland," raised by the patriots. This fact was still unknown at the Vatican. Though the inflation manifest before the Council was somewhat reduced, too much remained.

The prospect was not so bright to the bishops. They had not been always cooped up within the walls of Rome. Hints of how thoughts were turning reached them from home. They knew that men of study and of wisdom were either hostile to the new Constitution, or painfully solicitous. Some of the bishops had deep personal convictions, which experience during the Council had intensified; convictions that the whole proceeding was neither more nor less than the adoption of a false doctrine to sanction a fatal policy, and that the error was so fundamental as to involve the acceptance of a purely human fountain of doctrine for all time to come. They met and debated whether they should vote in the open session. Only twenty, according to Archbishop Scherr, were in favour of this course, and these did not insist on their own views, lest they should divide the eighty-eight.

On the evening of July 15, about eight o'clock, a deputation entered the Vatican, composed of the Primates of France and Hungary, with the Archbishops of Paris and Munich, and the Bishops of Mainz and Dijon. They had to wait an hour—a time doubtless filled up with meditations more ecclesiastical than those which sometimes occupy the moments lost in the ante-rooms of the Vatican; rooms full of traditional tales of the pomps and vanities of this wicked world, and the sinful lusts of the flesh; such tales as good men, who had been forced to hear them, would not easily be forced to repeat. [\[453\]](#)

They were admitted about nine o'clock. They came from the minority to urge that the Pope should withdraw the additions made to the third canon of the third chapter, that canon the attempt to snatch an unconscious vote upon which had caused so profound an impression. They also wished the addition of a limiting clause to the definition of infallibility in the fourth chapter. Quirinus seems afraid to report the answer given by the Pope, and that for a reason which we suspect has often prevented English correspondents writing in Italy from telling true tales. They know that we judge of Popes and Cardinals by some such standard as that of our own public men, and that therefore to us the true tale would look like an invention. In the present case the answer was, "I shall do all I can, my dear sons; but I have not yet read the proposed Decree, and I do not know what it contains." [\[454\]](#) His

Holiness requested to have the petition in writing. The spokesman, Darboy, replied, with French tact, that he would have it sent to His Holiness, and would take the liberty of forwarding at the same time the proposed Decree, which the Commission and the Presiding Cardinals had omitted to lay before his Holiness, though it wanted only two days of the public session, and thus had exposed him to the danger of promulging a Decree of which he was ignorant. Darboy not only did this, but also took care that others should know what the Pope had actually said. He wrote to the Committee on Faith, strongly censuring them for their neglect in not laying the proposed Decrees before the Pontiff!

It is curious to observe how all the Liberal Catholic writers who had come to Rome began by speaking of the Pope with the deference usual on this side of the Alps, but finally slipped into the habit of calling him "Pius." They evidently often had difficulty between their sense of the conventional respect due to a personage whom so many own as their head, and their feelings as honest men. The latter would have often prompted them to speak of Pius IX as Italians do, and not as Englishmen or Germans are wont to do. [\[455\]](#)

"Pius," continues Quirinus, added that if they would increase their eighty-eight votes to a hundred he would see what could be done. Only those who know the opinions entertained by that writer of the Pope's personal ignorance, and of his habit of speaking as if he knew everything, can appreciate the statement that his Holiness concluded by assuring the deputation that it was notorious that the whole Church had always taught the unconditional infallibility of the Popes.

Bishop Ketteler now threw himself on his knees before the Pontiff. For some time he remained in that position, entreating his sovereign to make some concession, and thus to restore peace and unity to the Church and to the Episcopate. This was the very scene to please one like Pius IX. And so the deputation left him with some hopes of concession—"full of the best hopes," said the Archbishop of Munich. [\[456\]](#)

Two men speedily sought to undo any impression that might have been made. Many a Roman Catholic has, in imagination, hovered over that scene, returning again and again to watch the figures of the agents of the Committee on Faith as they glided into the presence-chamber. Such

Catholics in their imaginings have scowled at, ay, have cursed Senestrey the pupil of the Jesuit College *Germanicum*, and Manning the pupil of Oxford, as the instruments of the Jesuits going at this moment to harden the heart of the Pontiff, which some hoped had begun to relent. It is said that this remarkable pair urged that all was now ripe, that the majority were enthusiastic, and that moreover if the Pontiff made concessions he would be dishonoured in history as a second Honorius.^[457] This "frightened the Pope," said Archbishop Von Scherr.

The hopes brought back by the deputation to the minority were speedily dispelled. In the course of the morning Cardinal Rauscher waited on his Holiness to thank him in the name of the minority for the gracious reception of their deputation. The shrewd Austrian pointed out to his royal master the effects which would flow from the definition as framed by the majority. "It is too late," said the Pope; "the formula is already distributed to the bishops and has been discussed. Besides, the public session is convened. It is now impossible to yield to the wishes of the minority."^[458] On Friday night the Pope said that he had not seen the formula; on Saturday morning the Pope said that the formula was already distributed and discussed. And this formula was unchangeably to determine the fountain of doctrine, of ministerial authority, and of all power in a so-called Church. Friedrich, on writing down these words from the lips of his Archbishop, adds in a parenthesis, "One is ready to go crazed at the measureless frivolity with which the holiest questions are handled in Rome."

That same morning a Congregation was held to consider the suggestions made by those who had given conditional votes. Two Spaniards, according to Quirinus (p. 804), had made two propositions tending to complete the repudiation of the collective authority of the universal Church by the Bishop of Rome. The proposed Decree, as it stood, limited his definitions to "matters which the Holy See had held from ancient times in common with other Churches."^[459]

This language, however vaguely, did recognize both antiquity and catholicity. The worthy Spaniard doubtless felt that the Vicar of God ought not to be limited by any such things; that he should be left free to define what he felt called to define. The committee had been of the same mind, and had adopted the proposal of the Spaniard that the above-quoted clause

should be struck out. The Sub-Secretary cried, "The amendment proposed to 76 is accepted by the committee: those who are in favour of accepting it, stand up." Nearly all stood up. Ten or twelve stood up against it, and away went the antiquity and catholicity as expeditiously as any Cardinal could desire. [\[460\]](#)

The inner lights of the Pontiff were thus freed from any restraint arising out of ancient views, and the local creed of Rome was freed from any restraint arising out of a common Christianity as between that city and other Churches.

Now, however, came to pass a marvel, if anything could be marvellous there and then. The venerable men seated all around had spent their long lives in hearing and telling of one thing—the glory, the authority, the divinity of the Church, and the overwhelming conclusiveness of her consent. All who did not hear the Church were, according to them, lost. Even when, in preparing the way for the change of base which they had foreseen before leaving home, some of them had appeared to throw tradition altogether overboard, it was only in order to substitute for it the general consent of the Church. Which of us would have dared to tell devout Roman Catholics that their own bishops, when once in Rome under the terror of the Pontiff and the Jesuits, would disavow the consent of the Catholic Church, and say that without it the word of a single man was quite as good? They may now attempt to explain the words "not by consent of the Church," as meaning something small; or even to say that Popes ever and always formally disclaimed the necessity of her consent. The world must leave them to do so; but they know, as well as we do, that had we said that their bishops would of a sudden put words like these into the creed, they would have called us calumniators. Yet what came to pass?

That came to pass which had often been hinted as necessary by the zealots during the Council, but had always been looked upon as impossible by most men of the minority, although a few had openly said that in such a Council nothing was impossible. Another Spaniard, when he gave his conditional vote, had proposed that the words of the Decree which said, "The definitions of the Roman Pontiff are of themselves irreformable," should be amended so as to read, "The definitions of the Roman Pontiff are of themselves, *and not by consent of the Church*, irreformable." Vitelleschi says that no information was given as to the authority at whose suggestion

these metamorphic words were approved by the committee, but approved by the committee they were. So, without any opportunity of debate, the Under Secretary cried, "The amendment under number 152, having been modified, is accepted by the committee"; and reading it, he added, "Let those who are in favour of accepting it stand up." The great majority stood up. "Let those who are against accepting it stand up." "About thirty" stood up. ^[461] Thus were those ancient men called upon in their episcopal robes to extinguish the light of that lamp to which they had ministered oil all the days of their lives. They obeyed like soldiers, and the old, old light of a catholic consent was quenched for ever. Many of the eighty-eight were absent, and knew not of this new, swift, and crowning victory of the guild over the hierarchy.

Done in a moment! the Romish bishops had effaced from their law, and from their rule of faith, the consent of the Catholic Church! Talk of revolutions, of hasty parliamentary votes, of the sudden impulse of a mob; but where in history is there an instance of breaking with a long and loud resounding past, in such haste, and so irrevocably; irrevocably, not by the ordinary law which entails the consequences of an act upon the future, but irrevocably by the form and intent of the action itself? We know, alas! what these bishops are capable of representing; but it is for the unborn to judge the men who did that act and then faced round, saying that they changed nothing. And these men are to teach the human species the art of conserving all that they have "inherited and proved"! The Church of the Popes had long ceased, in the eye of Protestants, to have a claim to catholicity. Now, however, in the eye of Liberal Catholics she explicitly rejected catholicity by statutory and irreformable law. They saw her contract herself to the sect of one man and his retainers, to a religion made up of faith in one man, his inner light, and his *faits accomplis*.

The slow but irresistible operation of principles had at last worked out its ultimate issue. Liberal Catholics were the first to see that the religion of the Pope had now really ceased to be Catholic, or even national, or indeed municipal—that it had in fact become only palatial. They at once named it the religion of the Vatican. They did not so soon admit that the principle of one city church—not the mother, and not a model—being the mistress of all others, and practically the fountain of their faith, contained in itself the germ of all that had now come to fruit.

The sitting which began with deeds so very solemn ended in another way. For once the poor Pope had been exposed to the plague of pamphlets in the Holy City. It is pathetic to read the wailing over the destiny that subjected so holy a being to this in addition to his other "martyrdoms," "Calvaries," "crucifixions," and such like words, to win a tear. Many of the vexatious writings were in Latin. Thus if they had the additional bitterness of being the work often of bishops, always of priests, they still had the veil of a dead language. Not a few, however, had been written in living tongues. Two of the latter, which cut dreadfully deep, were in French—*What is going on in the Council?* and *The Last Hour of the Council*. We are now to see how these are dealt with. It is announced by the First President that a certain protest will be distributed. So papers are handed round. During this process the Under-Secretary calls out, Let the Fathers take notice that the sitting is not over! Then from the pulpit, in the name of the Presidents, he reads a protest against false reports in general, and the two pamphlets in particular. They were stinking calumnies and shameful lies—*putidissimæ calumniæ ... probosa mendacia*. The Italians and Spaniards, who could not have read them, cried, "We condemn them." The minority cried, "We do not condemn them." The President called upon those who did condemn them to stand up. Sambin says that so few remained seated that, to avoid exposing them to humiliation, the contrary was not put. Among these men Friedrich names Rauscher and Schwarzenberg. Two copies of the condemnation had been handed to every one of the bishops. The President now read a request that each would return one of them signed with his own name. This trap, however, was not successful. Haynald said that if the Presidents would translate *La Dernière Heure* into Latin, he and the rest of the Hungarians would be able to see if it was as bad as their Eminences had said it was. ^[462] The *Acta Sanctæ Sedis* make no mention of any demur, but notes that many prelates said, "Willingly, with all my heart, yes, even to blood!" But why giving bad names to two pamphleteers should call forth such heroic resolutions is not obvious. Thus did an Œcumenical Council spend its last legislative moment in recording a condemnation of two pamphlets which obviously the bulk of those who gave sentence could not have read. The presentation to every man personally of the two papers, and the call to sign, coming from the chair, was a symptom not calculated to dissipate certain fears that had got abroad among the minority. It was reported that if they dared to give an adverse vote in the public session, two papers would be

immediately presented to them, the one being a subscription to the dogma, the other being the resignation of their sees. If they did not sign the first, they must sign the second. They knew that in case they refused to sign both, they were within the walls of Rome. And suppose a bishop to have signed his resignation and then to find himself in the hands of the Papal police! And men liable even to the suspicion of such menaces were free "judges and legislators!"

So ended the last of the General Congregations, being the eighty-sixth since the beginning. It will be ever memorable—a monument of despatch and versatility. It renounced, as lights in doctrine, antiquity, catholicity, and the consent of the Church, and it denounced two French pamphlets, and gave to *Ce Qui se Passe au Concile* and *La Dernière Heure du Concile* an immortality in the formal Acts of that assembly denied to all the petitions, suggestions, deliberations, and votes of the whole hierarchy of the Roman Catholic Church in their fourscore and six anxious and pregnant sittings in General Congregation.

For awhile the protest against these pamphlets, of which the wording is named by Vitelleschi as a sample of the violent language common in the Roman *bureaux* at the time, is actually printed among the Acts of the Council, those Acts contain not a word of the votes, proposals, or discussions of the General Congregations; not a hint of all the protests put in by the minority, not a hint of the voting in the great Congregation on July 13, or, in fact, of anything that could give a knowledge of the processes, or of any other results than the lists of committees and the formulated Decrees. By processes we do not mean the ceremonial ones, for they are briefly described, but the legislative and deliberative ones, which are entirely omitted. The Bulls of the Pope and the Decrees of the Presidents as to procedure are printed; but no action of the bishops. When what has passed through the hands of the bishops becomes a Papal constitution, it of course appears. As to the historians, they indeed do give the voting on July 13; but we believe that not one of those who wrote by or under authority gives one of the documents of the protesting bishops, from the beginning of the Council to the end, or any indication of where they may be found. Vitelleschi tells how, on this same day, Cardinal Rauscher himself made a last desperate effort to impress the immovable Pope, and was received with scant courtesy.

That Saturday night a number of downcast old men, each with more or less of a retinue, took leave of Rome. Some went by the desolate way to Civitá Vecchia. On reaching that city, and beginning to breathe the free air of the sea, they might well wonder how long the red, white, and blue flag would warn away the red, white, and green; how long the eldest daughter of the Church would help the autocrat to impose his obscure tyranny on this threadbare patch of land,—a land whereof the natural lot was neither poverty nor dependence upon the foreigner. Some of them took the less desolate way towards the North. In the clear July night they passed by Monte Rotondo, with Mentana not far off. When would Garibaldi be heard of anew? Or would the next dash at Rome be left to Garibaldi? Spoleto, Terni, and other places lost in 1860, would suggest the question: Will Ireland and Belgium find men for new crusades, and if so, will they be more successful? The lamps of Perugia, high on the hill, would recall tales of slaughter under Pius IX. Perhaps the prelates had not heard them, or had said that they were all lies. All of the Frenchman, or of the German, in their hearts would be drawn in one direction; all of the Papist in another. The Frenchman would naturally say, He who has repaid the restoration of twenty years ago, and the support given since then, by deliberate insult of the greatest names of the Gallican dead, by coarse offences against every man of mark among the French living that dared to speak a dissentient word, and by the ostentatious abrogation of all the Gallican liberties, deserves not that the flag of France should longer shelter his policy. The German would naturally say, The attempt to undo the unity of the Fatherland, and once more to expose us through division to the incursions, the burnings, and the plunderings of the French, is no less than diabolical; and he that aims at breaking up Germany for the sake of weakening Italy, should be left to his deserts. But in such men, after all, the Frenchman or the German represented but the human instincts, not the drilled, trained thoughts, and the unchangeably moulded habits. The German, or the Frenchman, represented the boy, but the Papist represented the man. "The weakening of the individual will in the priest," of which Vitelleschi speaks, as one of the secrets of that mysterious zeal to-day for things which were esteemed untrue yesterday, is scarcely more striking than is the weakening of national sympathy, except when the interests of the Papacy are supposed to be connected with those of the nation.

We may close this chapter with one specimen more of the practical preaching for the establishment of the new moral order, of the real Christian civilization, which the scribes of the Court had kept under the eyes of all who sought, in their pages, for tidings of the great things which the Council was doing. Our last specimen was that of an English youth: this is that of a French one. Bravely fighting his gun at Monte Rotondo, fell young Bernard Quatrebarbes, the son of a Breton marquis, mortally wounded. When the victors of Mentana delivered the prisoners, no less than four cousins gathered around the pallet of the wounded Bernard. At Rome he was joined by his father, his sister, and other female relations. The day after his arrival in the city, his humble room in the hospital having been entered by Pius IX, "radiant with sovereign sweetness," as the writer expresses it, Bernard was naturally in ecstasy at such an august apparition. The Pope desiring to see the wound of his crusader, and making the sign of the cross over it, said, "God will bless thee, my friend, as I bless thee." The Marquis announced to his wife the departure of her boy in three words, "Bernard in Paradise." "Words," exclaims the author, unconsciously signaling the fall of Rome from Christian hope—"Words worthy of the primitive Christians." Ay, but, thank God, primitive Christians before saying over their dead "in Paradise" instead of "in Purgatory," did not wait till one fell fighting for the royalty of a bishop! Over the fisher drowned with his nets, over the mother who died in childbirth, they rejoiced with the joy of hope eternal. It was for later, darker ages to drag them back again into a dim region where a crowd of intervening patrons and all manner of priestly spells came between them and the bosom of a Father, between them and the home where all the brothers meet.

Maria Sophia, ex-Queen of Naples, came so often to the bedside of the dying Bernard, that our narrator says she almost seemed to have taken up her abode in the hospital, and sometimes she was moved to tears. By that bedside also did her husband say to the Marquis, "How noble is your son!" To the Marquis also wrote another expectant exile, the Count of Chambord, saying that he admired "the short but bright career of Bernard, and his marvellous end." It was the Colonel of Bernard that told the father of his departure, and in these words: "I have another patron in heaven." But above all when the news was conveyed to the Pope, he said: "Bernard Quatrebarbes is a saint in heaven." At home in Brittany, while the corpse lay in the chapel of the château, the people flocked around the bier; but it was

"more to invoke the departed than to pray for him." The new Hermit who preaches the new crusade thus concludes his memoir:—

The death of Bernard Quatrebarbes, who sacrificed to God youth, fortune, and pleasure, a tranquil life and the joys of home, in order to march in the defence of the truth, of virtue, of the Church, will awaken the drowsy soul of more than one young cavalier. Bernard is already a martyr, and he will be an apostle. ^[463]

FOOTNOTES:

[442] *Friedberg*, 145; *Quirinus*, 788.

[443] See Protest with signatures. *Doc.*, ii. 400-403.

[444] *Apologia*, p. 327.

[445] *Quirinus*, p. 792. The *Acta Sanctæ Sedis* does not think it worth while to count;—"fifty or thereabouts," "quingenta circiter patribus dissentientibus" (vi. p. 31).

[446] *Le Con. du Vat. et le Mouvement Anti-Infallibiliste*, pp. 6-10.

[447] *Friedrich*, p. 405.

[448] *Quirinus*, p. 771.

[449] *Ibid.*, p. 772.

[450] *Ibid.*, p. 773.

[451] *Civiltà*, VII. xi. 362. *Acta Sanctæ Sedis* has the same numbers.

[452] *Friedrich*, 406.

[453] When, in 1860, writing *Italy in Transition*, I read, on the recommendation of an Italian gentleman, a book by a well-known writer professing to describe the interior life of the Vatican; but found it too low to allow me even to allude to it, much less to quote it. What was my surprise when, a year or so later, appeared the work of Liverani, to find this very book—which even now I do not care to name—cited with that of About and of others, as a work the *substantial* accuracy of which the learned Domestic Prelate and Protonotary of the Holy See could not deny.

[454] *Quirinus*, p. 801. This astounding assertion does not rest upon the sole authority of *Quirinus*. *Friedrich*, in reporting the sayings of the Archbishop of Munich to the Faculty of Theology in that city on his return, gives the same assertion as repeated by his Grace. It had been a favourite theory with official writers that *Quirinus* was *Friedrich*, but as the latter left Rome in May, and *Quirinus* continued to write to the last, that theory had dropped out of sight. It is a curious coincidence in the present case that nearly all the incidents of this interview, mentioned by *Quirinus* writing in Rome on July 19, were repeated by

Archbishop Scherr in Munich to the Faculty two days later. The substantial agreement of the two accounts is quite as great as that in several other cases which have induced men like Hergenröther to argue that Friedrich and Quirinus were one. The agreement is such as would be found between two practised writers hearing an account from the same eyewitness, or from two or three eyewitnesses, and immediately writing down what they had heard. *Friedrich*, p. 408 ff.

[455] An instance of the effect of perfect knowledge of Rome by personal residence, on the style of expression and description, may be seen in Mr. T.A. Trollope's interesting book, *The Papal Conclaves*, as compared with the unreal and conventional forms kept up by Englishmen who know neither the language nor the spirit of the people. Some of the latter, ever since the days of the *Tracts for the Times*, provoke smiles, and have gradually been acquiring for our country a reputation very unlike the old reputation of England for strong common sense, love of reality, and contempt for shows and fables.

[456] *Friedrich*, p. 409.

[457] *Quirinus*, p. 803; also the words of Archbishop Scherr, as quoted in *Tagebuch*, p. 409.

[458] Related by Archbishop Scherr to the Theological Faculty at Munich. *Friedrich*, pp. 409, 410.

[459] *Quirinus*, p. 804. See the Draft in *Doc. ad Illus.*, ii. pp. 317, 318,—"*Quod antiquitus Apostolica Sedes et Romana cum cæteris tenet perseveranter ecclesia.*"

[460] *Acta Sanctæ Sedis*, p. 33.

[461] The *Acta Sanctæ Sedis* does not even profess to count exactly,—"*about thirty*" (*triginta circiter*).

[462] *Quirinus*, pp. 806-7.

[463] *Civiltá*, VII. ix. 542-48 and 664-70.

CHAPTER VIII

Grief of M. Veuillot—Final Deputation and Protest.

SUNDAY, July 17, was rather more of a fast than of a feast for M. Veuillot. He says, "War and oppositions are cruel clouds." Bad as were the rumours of war, those of "rebellion" among the bishops were still worse. It had evidently become known that the minority were not to be cowed into gracing the public solemnity with their compulsory *Placet*. It was even

rumoured that the bishops would go into the open session and disturb the solemnity by saying *Non placet*—ay, M. Veuillot had heard, by shouting it and outrageously repeating it in the face of the Pope.^[464] While nothing was more desirable than that, to prove the freedom of the Council, two or three should say *Non placet*, any serious number doing so would be detestable. The refusal of the non-contents to vote at all would be only one degree less bad. M. Veuillot, however, discovered that many whose departure, "or rather desertion," had been reported were still really in Rome. But, on the other hand, he saw carriages at the doors of leaders of the "tormenting and tormented" Opposition; at those of the Archbishops of Paris and Lyons, and of Cardinals Rauscher and Matthieu. Even the Via Frattina was visited to note the symptoms at the door of Maret. After night-fall, Veuillot cries, "Many are gone, and many more are going in the morning. They will really absent themselves. I cannot help thinking of a caricature. It represented some seditious fellows in a scare, who said, 'Now is the moment to show ourselves; let us hide!'"

As the noontide of that July Sunday blazed upon the Vatican, a deputation had entered the presence chamber, headed by Darboy and Simor, Primate of Hungary. They came to make one last attempt to procure the prorogation of the Council without the promulgation of the dogma. Their only answer was the old *Non possumus*. Then the last of the luckless series of protests was solemnly delivered. They had not heart enough to fight, and had too much conscience to submit. So they took the middle course, and spoiled for ever the pretext of moral unanimity except the dead unanimity of form. Their fears, or their views of unity and reverence would not allow them in public to withstand the Pope. He had justly calculated the effect upon them of throne and tiara, with the fear of possible degradation. They had not, perhaps, sufficiently calculated what might have been the effect on him of honest men standing up one after another in their appointed place, and saying before all the Churches, as a wiser than they had done of a better than he, that he was to be blamed. They would have exposed, it is true, Pope Pius IX to a temporary check, yet they might have saved the Papacy from an irrevocable error. But in proportion as the Papacy had become weak in producing conviction, it had concentrated its strength on the means of producing submission. Its success in that art was now to be its own punishment. No Protestant had expected any effectual resistance from men trained as Romish bishops. Any real tenacity of conscience shown during

the Council, was due to nobler influences spread abroad in countries where the ascendancy of Rome is not complete. There is, to our mode of thinking, something not merely incongruous and grotesque, but a great deal worse, in putting forward the paltry plea of personal offence, or personal consideration, when the matter in hand is a dogma that is to mould the religion of millions for ever. The fact that these prelates do put forward such a notion countenances the statements often made about men giving as the reason for their votes that they could not refuse the Holy Father or hurt his feelings. Vitelleschi thinks that the fear of being required to resign their Sees or subscribe the dogma was one of the elements in determining the minority to leave Rome before the definition (p. 212). If so, seeing them escape from that dilemma would be one of the causes of the mortification shown by the majority, as expressed by Veuillot. We give the last of the protests in full^[465].—

Most Blessed Father, in the Congregation held on the 13th of this month we gave our votes upon the proposed Decree of the first dogmatic constitution of the Church of Christ.

It is known to your Holiness that there were eighty-eight Fathers, who, pressed by conscience and moved by love of the Holy Church, gave their votes in the words *Non placet*, that sixty-two others voted in the words *Placet juxta modum*, and that, moreover, about seventy were absent from the Council and abstained from voting. To these are to be added a number who, from infirmity or other serious reasons, have returned to their dioceses.

In this manner, our votes have been made known to your Holiness and to the whole world, and it has been made evident by how many bishops our opinion is approved; and thus have we discharged our office and duty.

From the time above stated, nothing has occurred to change our judgment; but, on the contrary, several things have been added, and those exceedingly serious, which have strengthened us in our purpose.

Confirming, then, by this document our votes, we have determined to abstain from the public session to be held on the 18th. That filial piety and reverence, which lately brought our deputies to the feet of your

Holiness do not permit us openly, and in the Father's face, to say *Non placet* in a case so closely concerning the person of your Holiness.

And, indeed, the votes that would be given in the public session could only repeat those already given in the Congregation.

We, therefore, return to our flocks without delay, for after so long an absence we are much needed on account of the rumours of war, and especially on account of the great spiritual necessities. We return grieving that, because of the sad juncture of circumstances, even peace and tranquillity of conscience is disturbed among the faithful.

Meanwhile, commending with all our hearts the Church of God, and your Holiness, to the grace and protection of our Lord Jesus Christ, we are of your Holiness the most devoted and most obedient sons.

Leaving, then, in the hands of the Pope this solemn confirmation of a belief registered by a formidable array of bishops, that he ought not to be proclaimed as the infallible representative of God, they turned their backs on the palace which had witnessed their many humiliations. Their allusion to the things which had been added since the 13th as being "exceedingly serious," is another of the many witnesses out of their own mouths against their subsequent statements. Their clear statement that did they vote in the session it could only be to repeat their former vote, seals with the seal of deliberate misrepresentation many solemn assertions since that day made under mitres.

It was a grief to the soul of M. Veuillot to learn that the Ambassador of France had graced with his presence the departure of Darboy. De Banneville had accompanied the Archbishop to the station, escorted by Mérode, with Monsignor Vecchiotti, and Father Trullet. The recalcitrant Archbishop was even placed in "a kind of carriage of honour"; a fact which reminded the *Argus* of the *Univers* that a certain bishop had said, We go away conquerors, but we leave some wounded on the field. "This fine carriage seemed to me an ambulance."^[466] Thus, poor Darboy took his way towards the storm-cloud, blackening behind the hills, in the after clap of which he alone of all the host was to find a bloody grave.

The Monday morning dawned heavily over Rome. As the eyes of the last portion of the fleeing minority were sadly tracing the outlines of the hills on

the upper course of the Tiber, while those of the first portion were tracing the forms of the outlying Alps and a few were watching morn as it spread over the waves of the Mediterranean, a Pope for the first time rose in Rome with the consciousness that ere sunset he would be infallible, not only in fact, but also in law. His less happy precessors had claimed that crown, but never had received it. Now he was about, with the consent of the Church, to put on the power to be infallible for ever, "without the consent of the Church." Had ever diplomacy won such a victory? had ever an oligarchy so completely signed itself away? Tell him that the temporal power was of no spiritual value! But could all that have been accomplished except within the walls of a strong city? As Pius IX looked from the Papal apartments across the Tiber, the Pincian was gloomy, and the Sabine Hills were hid in clouds under a threatening sun. But he would remember the day of his taking possession, and how gloom had turned to rainbow; the day of the return from Gaeta, and how the sun had opened from the west at the right moment; above all, the day of "The Immaculate," and how the sun had seemed glad of the sight. True, the dutiful luminary had failed on the opening day of the Council, but the Jesuit Fathers had written that the solemnity would be brilliant at its close, and that the city would blaze with triumph, as Ephesus had done in the year 431. And was not the throne so placed in the Council Hall, that, all being propitious, the beams would fall as they had done on the day of the Immaculate; and surely the Virgin would not fail to send them. At all events, it was certain that he would lie down that night not only the Pope of the Immaculate, but the Pope of the Infallible—the first human being in the records of the world to whom a number of the creatures of God had deliberately given the right of telling to them and to their succeeding generations what they were to believe for ever and ever. The deifying of an emperor, either in the plains of Babylon or in the temples of Rome, was a little thing as compared with the apotheosis now about to be performed. The dogmas of the emperor were not to be eternal on earth, though he might cause himself to be decreed immortal in heaven. The word "apotheosis" was perfectly natural to the pen of Vitelleschi, or of any other Liberal Catholic who dared to speak what he thought. But it is nevertheless true that deification among the heathen, whether ancient or modern, involved little exaltation compared with that now to be given to the Bishop of Rome. A Theseus or a Rama, an Antinous

or an Augustus, had a lowly part in ruling eternal destinies compared with that to be now assigned to the Count and Priest Mastai-Ferretti.

The monasteries and nunneries sent forth a contingent, as on the opening day; but where were the proud vehicles and the pressing throngs? Vitelleschi says that two or three houses in the city were decorated. How dead was the indifference denoted by such language on an occasion absolutely unprecedented, cannot be conveyed to the minds of those who do not know what the people of a southern city can do when they really mean to decorate. As the places for spectators in the Hall filled up, it was whispered from one to another, "No crowned heads." An Infanta of Portugal was the lone flower of royalty

"Where once a garden smiled."

Even ambassadors failed. France, the eldest daughter, was not there. Spain, the Catholic, was not there. Portugal, the faithful, was not there. Austria, the apostolic, was not there. Bavaria was not there. Poland was dead. Italy was alive again, but her heart and hope were elsewhere. Belgium and Holland had each sent a consul, the one to welcome infallibility, with its constitution condemned by the Church, the other with its heresy. Vitelleschi mentions a representative of the Principality of Monaco. The *Giornale di Roma* is not so worldly minded as to specify any state, but says that members of the diplomatic corps were present.^[467]

About nine o'clock the Cardinals, Patriarchs, Archbishops, Bishops, Abbots, and Generals, all in red, began to stream in. Five hundred and thirty-five seats were soon occupied. It thus appeared that there were some two hundred less than at the opening. About twenty had died.^[468] Several were ill. Some, in Rome, were absent from disinclination to attend.^[469] Of the minority only two now changed sides. Of these, one was a demonstrative Oppositionist—Landriot, of Rheims. This conspicuous absence of the minority was a disappointment and a humiliation, though it was nothing more. Even the *Acta Sanctæ Sedis* says that its effect was traceable on the countenances of the Fathers. They grieved for the obstinacy of their brethren. Indeed, in the Congregation where the vote was taken, some, with clasped hands, had implored their friends to give up their false opinion at last. Still the conqueror had his triumph, though he had not the satisfaction of seeing the captives follow in his train. It was Cæsar without

Vercingetorix. It would have been a proud moment for the resident Cardinals had Rauscher and Schwarzenberg made Vienna and Prague bow down to Rome. Had the sturdy Darboy done homage for Paris, it would have been a sign to the Curia that the new world of the Jesuit seers was at last actually above the horizon. The readers of M. Veuillot can well imagine into what ecstasies he would have fallen, and with what dithyrambs his pages would have detonated, had his ears been permitted to hear Dupanloup pronounce his *Placet*. This was not to be. Those bishops were not the men to stand up in their places and contend; yet were they not so thoroughly beaten as ostentatiously to submit. Their paper confirmation of their legislative vote came like an impertinent parley to tease the conquerors. What ought to have been either a combat or a *fête*? was neither. It was a ceremonial of which even the *Civiltà* quotes its description from the *Giornale di Roma*, while M. Veuillot himself is too much affected to write more than a few lines—as if silence was the vestment which his strong emotions were wont to put on. In his after touches he often speaks of the glory of the dogma, but we do not remember that he ever alludes to the glory of that day. The Protestant *Fromman*, whom we have not been accustomed to quote, though very glad to consult, called the ceremony tedious; but that was unpardonable.

The Pope did not enter on this occasion, as on former ones, between Antonelli and Mertel, but between Grassellini and Mertel. Had Antonelli, because of having failed to give his vote in the Congregation, lost his wonted place on the day when the fruit was to be plucked? The hall and city, according to Vitelleschi, "wore a cold and severe aspect." December 8 seemed to have dropped its mantle on July 18. Perhaps, however, ere the moment of promulgation arrived, the Roman azure would be in the ascendant, and hearts would be gladdened at the right time. Indeed, the *Acta Sanctæ Sedis*, in contradiction to all profane authors, states that just before the Pope uttered his sentence the gloom somewhat cleared up. It does not attempt to say that the sun shone.

After the preparatory ceremonies, Fessler and Valenziani approached the throne. The Secretary handed the constitution *Pastor Eternus* to the Pontiff, with its chapters and its canons making a new Church, if ever a new constitution made a new corps, and making, as Pius IX hoped, the commencement of a new era for the kingdoms of this world, all of which,

with the glory of them, had been by some one promised to him after this day. That constitution professed to give to him, or rather to recognize as inhering in him, authority over all territories on earth, and over all those actions of man that possessed any moral character. Over the entire sphere of human accountability henceforth and for ever it was for him to reign as should seem to him right. Valenziani ascended the desk, and read out the title of the Decree. He then sat down, and while the sky grew blacker, the house darker, and the hearts of men more heavy with an impression of something terrible, he read chapter after chapter, until at last he reached the close, and the house echoed back his cadence, with the word of the Pope's self-written doom, *Irreformable*,—"The definitions of the Roman Pontiff are of themselves, and not by consent of the Church, *irreformable*."

After a moment's pause came the sealing Canon, "If any shall presume to contradict this our definition, let him be anathema."

The reader ceased. The storm alone was speaking. For a moment no human tone disturbed the air. But memory was repeating two terrific words, and imagination kept saying that the winds were whispering.

Irreformable! Anathema!

Valenziani rose, and sending his voice athwart the gloom, said, "Most Reverend Fathers, are the Decrees and Canons contained in this Constitution agreed to?"

Upon this he left the desk, and Jacobini, the Sub-Secretary, ascending it, called out the name of Cardinal Mattei, who was absent from old age. He then called "Constantine, Bishop of Porto"; and Cardinal Patrizi, rising, and taking off his mitre, said, *Placet*. The voice near the throne made the darkening hall to echo *Placet*, and the voice near the door repeated the echo, *Placet*. Then the scrutineers recorded the vote. Cardinal Amat was next called, and his *Placet* and some five or six others sounded harmoniously in the deepening gloom. Jacobini then called Frederick Joseph, Archbishop of Prague. The princely priest who from the age of thirty-three had worn the purple, and who was to represent the house of Schwarzenberg and the Church of Bohemia,—that Church imposed by burnings and by blood,—responded not. There was a moment's pause and a sense of a want. *Absent*, cried the voice near the throne. *Absent*, replied the voice near the door; and the influences from without were seconded by a

damping influence from within. The next name was that of Cardinal Corsi, a man of repute for piety, who was well known to be averse to the definition. According to Vitelleschi, he and the other dissentient Cardinals drew their scarlet hats over their eyes and remained silent. But they wore mitres, not hats. Of the rest, Quirinus asserts that, besides the Cardinal Vicar, Patrizi, only two put into their *Placet* spirit enough to stand up, and they were Bonaparte and Panebianco. Fourth after Corsi came the name of the senior French Cardinal. "James, Archbishop of Besançon," cried Jacobini; but Cardinal Mathieu did not respond. *Absent*, cried the official voice. *Absent*, echoed the fellow official. Even France seemed failing. Thrice had the tranquillizing *Placet* cheered the still deepening shadows, when Jacobini came to the notable name of "Joseph Othmar, Archbishop of Vienna." But Rauscher was far away, and once more did the thunderous air thrill with the depressing sound, *Absent*. Now followed a successive roll of more than twelve *Placets*, and then came the name of Philip, Archbishop of Bologna. All watched Cardinal Guidi, who pronounced a *Placet*. The Pope closely eyed him, and when the creature delivered his judgment before earth and heaven in favour of the dogma which just one month previously he had, in the same place, solemnly proposed to lay under an anathema, his royal master said, "Poor man!" or, as others report it, "Good man!" but Vitelleschi remarks that in Italian they might both mean the same thing. To Guidi succeeded two staunch *Placets*, from Bonnechese and Cullen, but next was called Gustavus of Santa Maria Traspontina. Eyes looked for another prince-priest who represented the house of Hohenlohe and the feelings of Bavaria, but there was no response. Hohenlohe, like Rauscher and Schwarzenberg, was *absent*.

After the list of Cardinals was exhausted, the patriarchal Sees were called. Two Sees were especially connected with the tradition of Peter. After men of genuine Italian name, Antici-Mattei and Ballerini, had, for Constantinople and for Alexandria, answered *Placet*, was called the name of Antioch. Its Patriarch was named Jusseff, and the call evoked no response; so Antioch, the See of Peter, and *absent*, the sign of disapprobation, were set in men's minds together. Of course the Roman Valerga said *Placet* for Jerusalem. Then came the other city connected with the life of Peter, and when Audu, whose secret experience after his first audacity in venturing to differ from Pius IX was known to all, was called to answer for Babylon, all expected that he would have been overcome like

Guidi. But no. Oriental servility did not equal Rome, and so the reply made for Babylon was *Absent*. *La Dernière Heure du Concile* asserts that as Audu had been sent for by the Pope, so had Jusseff been sent for by the authorities of the Propaganda, "to know by what right he dared to bear testimony to the belief of the East without having previously submitted his speech to revision" (p. 4). Next came the primatial Sees. Where was the Primate of France? Where the Primate of Hungary? They, too, among the *absent*. And of the Archbishops, where were those of Paris, of Milan, and of Munich? Where the Nestor of the English-speaking group, John of Tuam? These were painful deficiencies. Still, in numbers if not in influence the roll of *Placets* from among the Archbishops presented a very large majority. Among the bishops, the first name called was that of the very aged Losanna, of Biella, one of the staunchest opponents. So the first reply, though for an Italian bishop, was *Absent*. Then a flow of *Placets*, frequently chequered by an *Absent*. In all, says Vitelleschi, nearly one hundred and fifty bishops were absent, many of them men who held the most illustrious Sees.^[470] The *Acta Sanctæ Sedis* confesses to one hundred and twelve absentees from among those called; which number did not, of course, include men who had already obtained leave of absence. The number who were present was five hundred and thirty-five. In this whole list the uniform responses were either *Placet* or *Absent* till the name of the Bishop of Caizzo, a Neapolitan, was called. The official reported his vote as *Placet*. Caizzo raised his voice and loudly uttered *Non placet*. Then, again, to the end, *Placet* followed *Placet*, alternating with the voice of the rolling thunder. Finally was called Fitzgerald of little Rock in America. Thinking that he alone of the Fallibilists was present, he had begged not to be brought forward; but now that another bishop had given a negative vote he responded, *Non placet*.^[471] This set tongues agoing. It was roundly asserted that the appearance of the Neapolitan and the American had been arranged for, in order to give an air of freedom. Vitelleschi naturally thinks that it is needless to search so far for motives. Yet, the *Civiltà* makes a display of these two votes, saying that without them it would have been alleged that the Fathers were not free. It tells of a correspondent of some of the "bad" papers who on hearing the first *Non placet* was evidently annoyed, and being asked by a friend the cause of that annoyance said, "This negative vote spoils all for us."^[472] The *Civiltà* quotes a description of how Riccio, the Neapolitan, after the definition, went down on his knees and said,

Credo, I believe; and how Fitzgerald pressed his episcopal cross to his breast and said, "Now I believe. Now do I also firmly believe."^[473] When all the votes had been delivered, the scrutineers and notaries brought to the Secretary of the Council a statement of the result. The Secretary, followed by the scrutineers and notaries, advanced to the steps of the throne. There they all knelt down. The Secretary ascended the steps and read, "Blessed Father, the Decrees and Canons are agreed to by all the Fathers, two excepted."

All this time the gloom was deep. "The voice of the Lord" again and again pealed over the city. Thunderbolts more than once struck close to the Cathedral. Some glass in the windows of the apse just behind the throne was broken. Some, according to Jesuit writers, said, Providence is proclaiming the downfall of Gallicanism. Some, according to the *Acta Sanctæ Sedis*, said, The demon is disturbed, the storm shows that this does not please him. This interpretation would seem to have been that of the learned editor, for he adds, "The thunderbolts which Jupiter of the Pagans forged did the city no harm." Many said, God is installing the new Moses upon the new Sinai. This, at least with those who wrote, was evidently the prevailing interpretation.

The moment had come. Now was to be spoken the word so oft invoked in apostrophe, apologue, and prayer,—the word for which many had pictured a universe in chaos as waiting in blind but agonizing throes,—the word which so-called Christian journals and Christian ministers had, times unnumbered, described as the voice of God pronouncing the creative fiat, Let there be light. But where was the sun? According to many promises and to careful arrangements, he was at this moment to pour down upon the Lawgiver while announcing to all people, nations, and languages, the new law that changeth not, a radiance which would be as if angels were unfolding their wings above him and around. But the sun would not! The priest, in his conflict with chaos, was, at the supreme moment, left to the light of his own beloved wax candles. That light which his taste tells him adorns the house of God in the eye of day, and teaches celestial truths to immortal men, became at last of real use.

The High Priest arose from his throne. All hearts stood still. He thought, and they thought, that he was about to proclaim himself unerring. But had not the wine been spirited away between the cup and the lip? The faults

incident to composing in a committee, and those incident to amending in a hurry, were both embedded in the Decree. All it said of the infallibility of the Pope was derived and comparative; he is possessed of that infallibility with which the divine Redeemer willed that His Church should be endowed in defining doctrine regarding faith and morals. History had conquered dogma here as it had done in the chapter on authority. The declaration was not that the Church was as infallible as the Pope, which would have been the order had the historical consciousness traced the infallibility of the Church as derived from that of the Pope. The declaration was that the Pope was as infallible as the Church,—a proof that his infallibility was derived from hers, and that historical consciousness dictated that order. This comparative infallibility was all that was ascribed to the Pope in this artful but unskilful composition. But to what, according to the same article, did the infallibility of the Church amount? This was rendered by the wording the point all essential, and the standard beyond which infallibility could not extend. The Church was in the same article, and in words the most positive, dealt with as a body the consent of which was not to be taken into account. All, therefore, which the great Word had brought forth, was a declaration that the Pope was as infallible as a body whose consent was not to be taken into account. The world may be well content. The crafty were caught in their own gin when they renounced the consent of the Church. When men have long and successfully argued in a circle, it is a delicate thing all at once, in the heat of a July day, to break one half of the circle, and then to declare that the other half is perfectly round, quite as round as the whole. Historically, the infallibility of the Church was first of all made the base and measure of that of the Pope. Then, diplomatically, the infallibility of the Church was reduced to a nullity. This nullity, by inexorable logic, falls back on all the infallibilities grown out of it, or measured by it. So the Decree is chaos in spite of all the candles. But on one point it speaks not comparatively but positively. Without comparison with anything on earth or above the earth, the Decrees of the Pope are pronounced irreformable. That is the one and the only indisputable result.

The aspirant after infallibility stood, about, as he imagined, to pronounce the word. He opened his lips, and by the candlelight read: "The Decrees and Canons contained in the constitution just read are agreed to by all the Fathers, two excepted. We, therefore, with the approval of the Sacred

Council, confirm these and those as now read, and define them by apostolic authority."

The anathema attached to the definition of infallibility strikes below the feet of Protestants. It only anathematizes those who contradict the definition. Protestants do not stoop to do so. They may freely admit that the Pope is as infallible as the Church which made him irreformable, and for once they may believe more than the Pope, by admitting that the Church is as infallible as he. They certainly are not tempted to deny that the Pope, whether in his Decrees or out of them, is irreformable. Here, again, they believe more than the Pope.

The *Civiltà* states that now burst out a loud acclamation among the Fathers, accompanied with salvos of artillery. The small crowd of priests and nuns, and such like, as Vitelleschi says, about the door of the Hall raised a shout. Quirinus says that the nuns cried "*Papa mio*"—My Pope. According to the *Acta Sanctæ Sedis*, St. Peter's was very full of people, who broke forth in such applause that you would scarcely have believed that you were in the temple of the Prince of the Apostles, hearing it echo again and again with these unwonted sounds.

The Irreformable then addressed his Bishops in the following allocution. In order to do so, according to the *Stimmen*, he had to make several vain attempts, owing to the repeated applause of the Fathers; an applause which recalls a sad word of Vitelleschi, that some are never so jubilant as when they have placed a new yoke on their necks. At length the thunders of applause were still, and the waiting world was ready to hear the first utterance of the first human being ever set up on a throne in a temple, by hundreds of men of full age and of sound reason, to utter to all the earth words never to be questioned or amended, much less recalled. Hush! *The Infallible* gives forth the first oracle in his now acknowledged plenitude of power. Does it sound like "the word of God," at whose potent spell a disordered world will rise to new order and repose, or like that of an old man chiding the absent bishops who had not adorned the triumph of the day?

This exalted authority of the Roman Pontiff, venerable brethren, does not oppress, but assists; does not destroy, but builds up and often confirms in dignity, unites in affection, and strengthens and protects

the rights of brethren—that is, of the bishops. Let those who now judge in the earthquake know that the Lord is not in the earthquake. Let them remember that, a few years ago, holding different views, they copiously expressed themselves as of our own opinion, and that of the majority of this great assembly; but they then judged in the calm. In judging of the same case, can we have two opposing consciences? God forbid! May God, therefore, enlighten their minds and their hearts; and as He alone works great marvels, may He illuminate their minds and hearts, so that all may come to the breast of their Father, that of the unworthy Vicar of Jesus Christ on earth, who loves them, who esteems them, and who longs to be one with them. And so, bound together in the bond of charity, may we be able to fight the battle of the Lord, so that our enemies may not deride us, but may rather fear us, and may in time lay down the weapons of wickedness before the truth; and may we all be enabled to say with St. Augustine, "Thou hast called me into Thy wonderful light, and lo, I see!"^[474]

The bishops applauded, and the journals found the allocution divine. The Liberal Catholics, however, felt that when the Pope said, "I desire to be one with them," he meant, "I desire to see them submit to me." The grave point was, that this being the first utterance from the chair after he had been solemnly declared to be as infallible as the Church, an utterance made—if ever one could be made—in the exercise of his office as pastor of the universal Church, it contained a misstatement of fact and a misconception of doctrine. The Pope, occupied with the absentees, ventured roundly to assert that they who now opposed had been a few years ago fully of his opinion and of that of the majority. If ever a public misstatement deserved to be called by a strong short name, this one did. Had the language of the Decree, now lifted to the level of the law that changeth not, been put by a Protestant, as the doctrine of their Church, before Schwarzenberg and Rauscher, before Darboy and Dupanloup, before Strossmayer, Kenrick, Clifford, and MacHale, any day previous to the year 1870, they would have railed at the Protestant as a slanderer, and perhaps would not have let him escape without an episcopal curse. Would not Spalding have sneered at D'Aubigné as a fool and a false witness had he said that the Pope could make a dogma without either the counsel of bishops or the consent of the Church? No, the ears of the Pope were full of words of witness; the bureaux

of the Council contained document after document in evidence that the statement which he now dared to make when none dared to contradict, was not true, and was known not to be true. Those bishops, in order to please the Pope, had unwisely, as they now felt, stretched the doctrine of primacy, which they did hold, till it looked to unpractised eyes very like Papal infallibility. True, they had done this in what seemed rather to be addresses of ceremony than formularies of doctrine; for whenever infallibility itself had been nakedly presented to them, even without the adjunct of ordinary jurisdiction in every diocese, and without any repudiation of the consent of the Church, they had mustered the manhood to oppose it. The Pope neither stated the facts nor discriminated between opinion and opinion. He did state as fact what was not fact, and confounded opinions that differed. Friedrich, with the acute author of the *Epistolæ Obscurorum Virorum*, and not a few others, thinks that he is personally incapable of understanding theological distinctions, and that he could not explain what the doctrine of Papal infallibility means. This seems to be impossible, and yet there is very much to prevent one from pronouncing it ridiculous. But whether he is capable of distinguishing in such a case or not is a very slight matter. The fact that remains for us is, that his first utterance from the acknowledged seat of infallibility was wholly occupied with the absent bishops, that he insinuated that they had a double conscience, and that the grounds on which he made that insinuation were incorrect in fact and inaccurate in thought. Had the question whether the Papacy was a divine organ of truth, or merely a contrivance of clever old men, liable to be overseen, like other mortals, in their words and deeds, been designedly subjected to a fair test, we can with difficulty conceive of one fairer or more conclusive, than that first utterance from the recognized seat of inerrancy. There is nothing divine in it, and the human elements do not rise above a very ordinary level.

The city was silent and chill. We can form but a faint idea of how much, in such a case, mere external impressions sway a community trained like the one of which we speak. It was as if the salvos from St. Angelo, the feeble voice of the Irreformable, had been swallowed up in the salvos of the skies, the voice of the Sole Infallible. The *Giornale di Roma* and the *Civiltà*, the *Univers* and the *Unità*, would have spared no epithets in denouncing the man who three months before should have said that, on the night when the creative word, the fiat, Let there be light, should be uttered; on the night when the patient voice of the people and of the priests should be hushed

under "the voice of God" proclaiming infallibility, a noble Roman would pen what Vitelleschi that night quietly wrote down: "The government offices, the religious establishments, and a few private houses, were illuminated; but the rest of the city remained in perfect silence and profound darkness."

The concluding words of the Roman writer, in narrating the triumph of the day, are not wholly indifferent to us in England (p. 221)—

History is bound to award to the author and originator of every work the praise or blame which is due to him. All must remember the part taken by the Fathers of the *Civiltà Cattolica*, and Monsignor Manning, Archbishop of Westminster, in promoting the dogma of the personal infallibility of the Pope, and all know that it was their mind and their will that carried it. On the day of the promulgation of the dogma, Monsignor Manning received as a gift from the Society of the Jesuits, a portrait of Bellarmine, with the following inscription—

Henrico Edwardo Manning,
Archiep. Westmonast.
Sodales Soc. Jesu;
Collegii Civilitatis Catholicæ,
Sessionis IV Concilii Vaticani
Mnemosynon.

It is said that the portrait was really that of St. Charles Borromeo.

One other note was often made as to this memorable day. It was the same day on which was done the deed that irrevocably sealed the fall of the Second Empire, and consequently the fall of its pendant and *protégé*, the Papal throne. The declaration of war was delivered in Berlin on the day following, and must have left Paris that day!

The reader having already had several specimens, and fair ones, of *Ce Qui se Passe au Concile*, is in a position, so far as relates to it, to form his own opinion of its "stinking calumnies," to adopt the characteristic language of the Most Eminent, Most Reverend, and Right Reverend Fathers of the Council. But as to *La Dernière Heure du Concile* (The last hour of the Council), we may at this point fitly give a few examples. It speaks of "Rules imposed in violation of the most manifest rights of the Council, of

Commission chosen beforehand, of illusory votes, of an oppressive tutelage, of discussions without order and without aim, of modifications of the Rules as arbitrary as they were multiplied." It asserts that as to the minority public calumnies were not spared them; that their speakers were more than once forced to leave the desk without being able to explain, much less to defend their views; while the majority from the beginning took the reasons of the minority for insults, and rendered back insults for reasons; and that the petitions of the minority were not only left without effect, but without answer. It pictures the Jesuits as meeting the bishops after three centuries of feigned truce on the ground where their General Laynez, defeated at Trent, had left them; but as now coming perfectly prepared for the battle, while the bishops had not foreseen anything—

To-day it is not the episcopate that refuses to hear Father Laynez, but it is Father Laynez who, master of the field, does not even deign to listen to the episcopate, and announces to it that the question has been long decided.... The day that Pius IX said, There shall be a Council, the Company of Jesus said, I shall be the Council. We have seen three of its doctors absorb both the doctrinal power of the august assembly, and its right of initiative. The bishops have been called to sanction what the Jesuits have written, and there is the whole history of the Council.

Speaking of the Propaganda, the writer declares that it holds in its hands all the Vicars Apostolic, and most of the Oriental bishops. Taking advantage of its annual grants, it gives week by week to the prelates who are supported by them that special impulse which shapes the Council. In winter it set watch before the doors of the poor Oriental bishops and obliged them to shut their cells against brethren who came to visit them. Thus it comes to pass

that the word of two hundred Fathers of the œcumenical assembly always remains the word of the Pope alone. In fact, hitherto it is a thing unheard of that a single one of these prelates, sons of the Propaganda, should have the courage to speak before the Council or to vote otherwise than it would have them do. This single proof is of incomparable and demonstrative force, as against the reality of their freedom; for while all the other Churches, without exception, have had

some independent voices, the Church which I shall call that of the Propaganda has not hitherto produced one.

Proceeding to the most tender point of all, the writer says—

Above this *surveillance* of an institution the Jesuits have contrived another, which is shown more rarely, and is reserved for great events. This reaches the heads that are loftiest, even when they are held up, and it makes those who might feel a movement of independence tremble in spite of themselves. I mean the authority of Pius IX. Too long it has been sought to keep his action in the background, in the private history of the Council, by casting into the shade a figure which is entitled to stand in a strong light. Hitherto the writers of history have, at each new incident in the Council, been content to say, It is the work of the Roman Court. Well, the Roman Court is Pius IX, and history, when the hour comes, rending the covering of mystery, must let every one bear the responsibility which belongs to him. It will have to say that it is Pius IX who would have the Council in spite of the Cardinals, and who now will have, in spite of them, his personal infallibility. It is he who required for the Council this hall where one cannot hear; it is he who became irritated with Audu and tore from him the abdication of his rights; it is he who refused to receive the petition of the minority requesting that unhappy debates should be averted; it is he who violated all rule in bringing on the burning question; it is he who suddenly smothered discussion when it became menacing for his pretensions; it is he who from the clergy of Rome required an address which they had at first refused; it is he who dismissed Theiner to reward Cardoni; it is he who by a classification to be much regretted distressed the prelates who on the anniversary day of his election came to congratulate him; it is he who called Guidi after his speech to subdue his independent spirit; is it he who from the Council demands either his personal infallibility or else the courage to die from the heat of the sun and of the fever; it is he who will be everything, both the universal faith and tradition—*La tradizione son io!* Never was absolutism seen so near at hand, in an institution which Jesus Christ had founded free and independent in spite of its monarchical and indivisible unity.

The aspect of the case which most distressed the writer seemed to be that studied humiliation of the bishops which marked the whole procedure of the Pope, and especially that raising against them of their own subordinates which bishops probably thought was a measure reserved only for employment against civil rulers, not against "Venerable Brethren." Contrasting the present excesses with those of the Popes of the middle ages the writer proceeds—

At present we stand in presence of the Papacy struggling, not against princes, but against the episcopacy; as if Pius IX could find on the ruin of his brethren a more elevated throne, or in their annihilation a more impregnable fortress. O misfortune of the times and abuse of the most holy institutions! They want to have only a single real bishop in the world—the Pope; a single infallible and authorized doctor—the Pope! Let every voice be silent unless to say what he has said; let no action be performed but under his episcopal jurisdiction—universal, immediate; let those who have been appointed by God to govern, renounce their imprescriptible rights; let them tear the pages of the gospel on which those rights are graven; we do not any longer want more than one mouth, one hand, an absolute monarch; then, say they, only then, shall we have universal order.... At present the Caesars disappear everywhere and visibly; in vain do I look for a Louis XIV or a Joseph II; governments are essentially transformed and are confounded with the country which at least has no courtiers. There now remains in reality but one Caesar, who is himself everything both in spiritual matters and in temporal, dispensing his favours to those who defend him, and making those who contradict him feel his wrath; and this Caesar is not called either Francis Joseph or Napoleon III.

And while this time all temporal powers have scrupulously respected the liberty of the Council, a single one has hampered it in every way, has dreaded and destroyed it. I need not name the one. Thus the Church which had furnished to modern civil societies the model of a monarchy, in which the aristocratic and popular elements effectually tempered the excess of the supreme power, the Church which had first of all given to the modern world the example of its great assemblies, discussing in freedom the rights of truth and justice—this Church

presents to us to-day the spectacle of a Council without liberty and the menace of an absolutism without control.

This will suffice to account for the displeasure of the Pope and the Jesuits; but whether it sufficed to warrant the action of the Council and its language, posterity will judge. In our climate the allusion to the cruelty of keeping the old men in Rome in what is there called "the severest season," would seem overstrained. But the danger of attending a conclave in that season will be found described by Mr. T.A. Trollope as greater than that of a soldier on the field of battle. And his details of a conclave held in July to elect the Barberini Pope, gives frightful corroboration of that serious statement. [\[475\]](#) As M. Veuillot, looking from the point of view of the initiated, had at once leaped to the conclusion of the Pope only; and as Vitelleschi, reasoning from the data furnished by the Canons presented to the Council, inferred that all that would remain of earthly authority would be the Pope only; so this writer, starting from the episcopal point of view, and with difficulty rising above it, at last stands face to face with the sole figure of authority left, the Pope only; and he finds that while the spirit of Christianity has been changing Caesars into mild and patriotic princes, another spirit has changed the Bishop of Rome into a Caesar, claiming all supremacy in things temporal and spiritual.

FOOTNOTES:

[464] Vol. ii. 427.

[465] *Friedberg*, p. 622; *Quirinus*, 797.

[466] Vol. ii. p. 436.

[467] *Civiltá*, VII. xi. 367.

[468] The names are given in *Friedberg*, p. 149.

[469] *Vitelleschi* says that of 157 absent only 38 were accounted for. The rest represented the Non-contents.

[470] P. 216.

[471] *Vitell.* and *Acta Sanctæ Sedis*.

[472] *Civiltá*, VII. xi. 347.

[473] *Ibid.*, VII. xi. pp. 479, 480.

[474] *Civiltá*, VII. xi. 366.

[475] *Papal Conclaves*, p. 312.

CHAPTER IX.

From the Great Session to the Suspension of the Council, October 20, 1870—The Time now come for the Fulfilment of Promises—Position and Prospects—Second Empire and Papacy fall together—Style of Address to the Pope—War for the Papal Empire foreshadowed—Latest Act of the Council—Italy moves on Rome—Capture of the City—Suspension of the Council—Attitude of the Church changed—Last Events of 1870.

THE reader may perhaps feel that we have now reached a point at which many prophecies await their fulfilment, and many calculations their test. The enthusiasts had, on religious grounds, foretold that the utterance of the "creative word," would be attended with portentous religious effects. A Baptism of Fire, a New Pentecost, a rapidly diffused reign of righteousness all the earth over, and other such expressions, intimated the marvels that were to inaugurate the fresh era. The calculating men had counted on the

display of power and union, whereof the Papacy was made the centre, to produce a great impression upon princes and politicians; an impression to which they would, on the other hand, be predisposed by the fear of revolution.

Thus, when the consummation should be reached, and a ruler should be solemnly set up by the bishops of the whole Church before the kings of the earth, like, to use the favourite simile of the time, the Lord setting His King upon His holy hill of Sion; and when this king should be officially declared to have the government upon his shoulders, to be invested with all authority for the moral regulation of human affairs, they expected that the princes, bowing down, would accept him as their supreme judge and arbiter. Indeed, at one time, the confident talk, not merely of men among themselves, but of the publications most in the confidence of the guiding men, had been about laying down conditions to kings and governments on which they might hope to rule in peace. Hints had not been spared, that only two alternatives could be allowed to them—the acceptance of the new moral order on the one hand, or the loss of their places on the other.

The restoration of society to what was called the Catholic ideal, its reconstruction on the new divine basis, its deliverance from the chronic plagues which in modern times had wasted it, were at once to begin, and moral order was to smile where of late chaos had lowered. Already these theorists beheld society crying for the Pope as its saviour. Furthermore, during the days of preparation for the Council, and during its deliberations, only one among all the nations had been singled out for solemn blessing and glowing assurances that God would not forget her services to the Church. Italy had been warned and cursed. Austria and her new constitution had been formally condemned. Russia had been laid under every possible anathema. Spain, ever since her change of government, had shared the same condemnation. As to the heretical countries, they were generally left, without separate mention, in the depths to which their sins had sunk them. But the Ultramontane organs in Germany and France had marked Prussia out for signal detestation, and denounced the union of Germany under the leadership of Prussia for the relentless opposition of the Church of God. France alone was blessed with the withering benediction of the priest.

The hour had come that was to show how far the seers had read the future, and how far the calculators had reckoned well. So far as related to the great

dogma, and the definition of it, all that had been designed was happily accomplished; indeed, more completely accomplished than had been proposed in any design avowed up to the eleventh hour. So far, therefore, both seers and calculators were justified. They had not seen a false vision, so long as they contemplated the dogmatic issue; nor had they reckoned without their host, so long as they had reckoned upon bishops, priests, and friars. Events were now to tell how far the transformation of Society into the accepted model, how far the homage of kings, how far the self-surrender of Parliaments, how far the submission of codes to be remodelled by the Church, and how far the general consent of the human race to be guided by him who claimed to hold the place of God among men, were to pass from the realm of hope into that of experience.

The progress of the Council, and of opinion contemporary with its sittings, had dissipated many illusions. Even the bishops had to be conquered, and were not won. Europe had been awakened and had not been attached, but alienated. Great as the glories of the spectacles had confessedly been, and much as they dazzled spectators, they had not carried legislative effect, except where the artistic legerdemain had admitted of immediate application. The vote of the minority on July 13 was one symptom of failure. Their final record of dissent, put into the Pope's own hand, was a more serious symptom. Their flight from the last public session was more serious still. The absence of the representatives of the governments from that session was yet far more depressing. All, therefore, that was now to be hoped for from the Church was submission; and the very utmost that any calculating man dared to hope for from governments was endurance. The worst was that statesmen had learned much more than they were ever meant to learn, and had seen into matters a deal further than laymen ought to see. And so the first night of the new dispensation closed in under dull skies, both physically and morally.

When the Romans, always curious to see how facts can be dressed for appearance outside of the walls, looked to the *Giornale di Roma* for an account of the session, they found there that all the bishops who had not appeared—upwards of two hundred—were placed in one class, "absent from different legitimate and recognized reasons." This was followed by the assertion that "the great majority of them held the same doctrine as that which had been defined." Accustomed as the Romans are to this method of

putting facts in vestments, the occasion was solemn before God and exposed to the eye of man. Vitelleschi wrote that in these representations the minority might find "a foretaste of the false statements and judgments they must in future expect." Some readily account for such assertions by saying that it was hoped that the documents which proved the contrary would never come to light. But much is due to the habit of reckoning on the power of a great organ to set officials upon repeating what it says, till the facts are forgotten. The *Civiltá* copied these statements, and yet at a later date gave a truer account of the absentions.

It said: Cardinals, 42 *pro* and 4 *contra*; Patriarchs, 6 *pro* and 2 *contra*; Primates, 6 *pro* and 2 *contra*; Archbishops, 80 *pro* and 18 *contra*; Bishops, 349 *pro* and 47 *contra*; Abbots and Generals, 40 *pro* and only 1, a Chaldean, *contra*. The same article, however, does not shrink from asserting that "many" of the minority voted *Placet* in the public session.

The heaviest solitudes of the Curia were now to begin. Events had been so guided that so long as they were dealing with their own instruments, the bishops and the clergy, they were left completely to effect their purpose. Now came the point where they were to operate upon mankind. That society which they had meant completely to subjugate, flattering themselves that they were about to restore it, was now placed face to face with them in an awful aspect, one which neither priests nor kings could fully interpret. Certain it was, however, that neither kings nor "peoples" were upon their knees before the Vicar of God, or were inclined to go down upon them. Some feared that instead of kings and nations appealing to him to save them, he would soon be found appealing to some one to save him. The fortunes of the restored empire of the Bonapartes, and those of the restored Papacy, had been bound up together. Men now watched and whispered, saying that as they had been strangely united in their lives, perhaps they would not be divided in their fall. The 13th of July, the day of the voting which gave the Pope his fatal majority, was the day of the incident at Ems. It was the day also on which the Duc de Gramont informed the French Chambers that, although the Hohenzollern candidate for the throne of Spain had been withdrawn, that did not close the dispute. The 18th of July, the day on which the Pope read out by candlelight the Decree upon his own infallibility, was the day on which Napoleon despatched his fatal declaration of war to Berlin. A baptism of fire had been often and

pompously foretold as the result of the great dogma. After its promulgation all that the world ever heard of a baptism of fire was when Napoleon telegraphed to the Empress, whom the devout regarded as the true author of the war, telling her, in loud brag before the nations, how her boy had received his baptism of fire. That again was but two days before simultaneous sorrows sounded the knell of the empire and of the throne which sheltered under the shadow of its wing—the two embodiments of arbitrary will calling itself authority.

On August 4, the Pope was chafing at the news that the French troops at Civitá Vecchia had actually commenced embarkation. On the same day Bonaparte read the telegram from Wissenberg. On August 6, Count Arnim on the Capitoline was writing to Berlin to tell his government that Napoleon had declined an offer of the Pope to mediate between the belligerents, assigning as the ground that after the declaration of war negotiations were too late. That same day came upon Napoleon the double disasters of Wörth and Spichern. The reply of the King of Prussia to the same offer of mediation on the part of the Pope was to the effect that if the Pontiff would procure for him assurances of the pacific intentions of Napoleon, and guarantees against similar violations of the peace in the future, he would not refuse to receive them from the hands of his Holiness.^[476] The total result then of the first attempt at political action abroad, in the new character, was a simple failure. At the same time political embarrassments at home were thickening, as they had done every day since the fatal July 13.

It was after Rome had learned that the sun of Austerlitz had not shone on the fields of Wörth and Spichern, that the first formal act occurred showing that the Council had neither been dissolved nor prorogued. All that the Pope had done was to give the bishops a general leave until November 11. Had everything gone smoothly, this arrangement would have enabled the men of the Curia to go on as if they were a General Council. The step to which we allude was merely the formal addition of certain names to the Committee on Church Discipline, to replace those who had left Rome. And this is registered on August 13.

Meantime an intimation was given of the style of adhesion to the Papacy in its renewed glory which would be acceptable at the Vatican. The *Civiltà* selected for publication, "by preference," as it expresses it, an address from the Society of Catholic Youth in Bologna. It stated that, as if in recompense

of the new and lofty honour to the Virgin Mary procured by the word of Pius IX, Divine Providence had exalted in his person the divine dignity of the successor of Peter to the summit of glory and power—

We shall ever keep our eyes fixed on Thee, the mirror of eternal Truth. We shall ever keep them directed to this Apostolical Chair, whence the waters of true wisdom and of eternal life perennially flow. Speak, then, O Infallible Teacher, and we, the youthful sons of the Catholic Church, will hear Your words as the words of eternal wisdom; Your judgment shall be for us the judgment of God; Your definition shall be as the definitions of God; Your instruction as the instruction of God. In your authority as Vicar of Christ we venerate the authority of God, and submitting our mind and our heart to that authority, we have faith to sustain the dignity of human nature in face of the pretentious tyranny of haughty intellect spoiled and blinded by guilty passions. ^[477]

The historical tales which had for years been carried on in the pages of the *Civiltà* under the title *The Crusaders of St. Peter*, from which we have occasionally given scenes, rather strangely happened, in the number of the *Civiltà* for August 24, to come to an end. It concluded with the list of the immortal dead, as recorded for the world in a monument which Italy may well preserve. The Pope did not know what a record of the exotic character of his own power he was putting up. The ideal of this monument, and of the methods by which the world was to be made Catholic, is given by the *Civiltà* in a very few words—

It was the conception of Pius IX that, in the Agro Verano, on soil consecrated by the tombs of the ancient martyrs, should arise the memorial of the crusaders of the nineteenth century. And another conception of Pius IX was the colossal group in marble which represents St. Peter in the attitude of committing the sword to a warrior in armour, who with the cross bears a flag, with the legend, *The Catholic World*. Peter is Pius; the warrior is the Christian army. The idea of the mission of that army glows in the authoritative action of him who gives the commission, and in the humble and generous action of him who receives the commission, and is admirably expressed in two texts of Scripture beneath, drawn from the Book of the

Maccabees: "Take this holy sword, a gift from God, wherewith thou shalt overthrow the adversaries of my people Israel.... For victory standeth not in the multitude of the army, but strength cometh from heaven."

The names of the martyrs of this crusade are given, and among those who fell in the Battle of Mentana is only one Italian. France, Belgium, Holland, England, Ireland, and Germany are all represented, and Switzerland still more strongly. In the other most considerable engagement, that of Monte Libretti, there is again but a single Italian. Among those who perished by being blown up in barracks in Rome were several Italians, in large part musicians. That record is certainly worth the keeping of Italy at any cost, and the setting of it up is only one of the manifold evidences of how blinded the Papacy was in the last days of its temporal power.^[478] Well might the Pope in the Syllabus condemn the doctrine of non-intervention.

On August 15, a great "function" was celebrated at Rome, in the Church of St. Louis of the French, in commemoration of the name-day of the Emperor Napoleon—that modern Charlemagne who restored the Roman Catholic Church in France, and whose nephew restored the Pope to his holy city. Cardinal Bonaparte, the Marquis de Banneville, and all the French notables attended in state. About the same time a sorely smitten man, accompanied by his boy, was crossing the drawbridges of Metz, turning their faces to the rear, amid gibes and nicknames from the French soldiery. While winding up the heights of orchard and of vineyard which overhang the beauteous dale of the Moselle, and when looking on the fair uplands of Lorraine, upon which were sleeping, in happy obscurity, villages like St. Privat and Gravelotte, like Rezonville and Mars La Tour, the withered Emperor and his yet unripe son might see French soldiers marching in retreat, but could not see the Germans by whom they were being already outmarched. Meanwhile in Paris the two elect ladies of the Golden Rose—Isabella and Eugénie—were spectators, the first sighing after a crown already lost, the second trembling for a regency attained as if only to expedite the breaking of the sceptre of her husband. Had either of them faith enough to believe that the Virgin could reward them for services done to the Holy Father by giving them the necks of their enemies? Our Lady of Victories, "terrible as an army with banners," to quote a favourite text with Jesuit writers, was propitiated at least by the Empress Regent.

So far the political calculations of the Curia had all been turned to vanity. Bavaria had not fraternized with the French, much less carried Würtemberg and Baden with her. The blast of invasion which was to sound the death-knell of German unity had proved to be its mustering-cry. Italy up to the present moment had stood in awe of France, but if the latter should receive another blow or two, matters might reach a pass at which the Italian government would have more cause to fear Garibaldi than Napoleon—and then?

News soon arrived that the Germans, out-marching the French, had met them in the villages which we have lately mentioned, the names of which were by that meeting written large on the memory of nations. The poor Pope saw that Bonaparte, whom he had used and hated, was not likely to retain power any longer to guard his temporal throne. He knew that Italy was wiser than the first Bonaparte, who taught the French that the Pope was to be treated as if he had two hundred thousand bayonets—a lesson that has cost them dear. Italy adopted the principle that, in respect of bayonets, the Pope was to be counted as worth just as many as he could command. Italy would also treat him more wisely as a teacher. She would not incarcerate, exile, or personally insult him, but would leave him free to bless or curse as he felt moved, and to be heeded or disregarded according as every man felt persuaded in his own mind.

It was with hearts weighted with the heavy news from the banks of the Moselle that the Fathers of the Council met in their Congregation on August 23. How changed that gathering from the proud assembly of last December, which challenged the homage of all kings, and at the sight of which the Margottis and the Veuillots spoke of our Parliaments as puppet-shows! Those whose organs of the Press a few months before wrote as if neither kings nor presidents had any long tenure of power, except as they might make their peace with the Church, felt themselves to sit amid the indifference of mankind, and under the menacing strokes of Providence. The bishops who had warned them of their ignorance and folly, but had been crushed, were now far away. In the Congregation, the Fathers discussed some matters of Church discipline, but as the shadow of Sadowa had arrested all preparations for the Council during fourteen months, and that of Garibaldi for three or four, now a darker shadow, projected from Wörth and Gravelotte, was falling upon the remaining ecclesiastics, as the

evening gloom of the Aventine falls on late gamblers in what was once the Circus Maximus. They had played for the certainty of the temporal power, and for the reversion of the lordship of the world. They had boldly staked all episcopal and clerical rights. The upshot was that the losers had lost, and that the one winner was to be a loser too. The next news showed them that, on the very day when they thus met, was completed the investment of Metz. Thus did they see the thrice beaten but still coherent army of Bazaine altogether cut off from the routed and disorganised army of MacMahon. They had fixed to meet again on September 1.

The Fathers probably felt that it was doubtful whether the Congregation fixed for September 1 would meet; but it was highly politic to keep up the airs of a General Council, because it increased the sanctity of the city, and made it morally more difficult for Italy to attack. Ere they met, it became known that at Beaumont, Faily—the faithful General Faily, the leader of the expedition of Mentana, lauded and blessed for his "prodigious chassépots"—had met the Bavarians, soldiers of that king whom the *Unità* never wearied of insulting, and that at their hands Faily had lost his guns, his baggage, and his camp, a large part of his men, and all his reputation. The Congregation of September 1, did meet, and it was the last. While Bishop Quinn, of Brisbane, in Australia, was offering up the Mass, the undulating plateaux around Sedan were reeking with an incense which had, within the last few years, been invoked with lamentable frequency by the organs of the Vatican. As the Fathers were rising from their afternoon siesta, tens of thousands of blue and grey eyes, from all the heights commanding the city of Turenne, began to dance for joy at seeing the white flag waving from the old castle lying low down in the hollow—ay, the white flag waving over the Imperial head of him who to them represented the traditional devastators of the German Fatherland, but who was, to the bishops of the Council, the prince who for twenty years had been the stay of the temporal power.

No sooner had the news from Sedan reached the Agro Romano, than Curia and peasant alike knew all that was to follow. One week after that day the Fathers gathered, on September 8, for the last great ceremony, or, as it was called, "the last extra conciliar act."^[479] The remains of the world-transforming host of December now speckled the noble Piazza del Popolo, pressing to the great church of Santa Maria. It was the Festival of the

Nativity of the Virgin. All that the *Civiltá* tells of the day is that there were great expectations, and that the Feast of the Immaculate Conception, then three months distant, would witness a splendid session. We should say that there was no expectation of the sort, except indeed among the few who really counted on the Virgin as being certain at last to work for the Pope the miracles which it had been so often suggested that she was in gratitude bound to perform. The majority calculated that she had acquitted all her debts to him by making him infallible. Desirable as it was to keep up the appearance that Rome was just then the seat of a General Council, they knew that though for us and other remote people beyond the mountains that might have a sacred sound, for the Italians it was not a name to conjure with.

On the very day when the Fathers were cheerlessly performing this final ceremony, a notification was sent forward by Victor Emmanuel that he was unable longer to stay the impetus of the nation, which panted to take possession of its capital. The letter of the king was weak and disingenuous. It was more like the work of a priest than of a soldier. He affected to be a good Catholic, while deliberately dethroning the Vicar of God. He affected to hope that the Pope would acquiesce in his own dethronement. The reply of the Pontiff was more worthy of his position, and more becoming his professions.

This hostile movement called out a quality in which Popes are surely infallible, that of appealing to foreigners for armed intervention against their own countrymen. Of all men, to whom should the Pope now turn but to the King of Prussia—as if the King of Prussia did not know at what the Pope and his instruments had been aiming! The date of the reply of King William was in itself a history. He wrote from the capital of fair Champagne. Already had the tide of war closed round the hot infallibilist Räss in his stately Cathedral of Strasburg; and, rolling on, it had, under the shadow of St. Remy, enveloped the deserter from the Opposition, Landriot, in his thrice beautiful fane at Rheims.

St. Remy sent no sufficing homage by the hand of King William. The soldier-king quietly declined to undertake any such political intervention as the priest-king desired. In one word, he dispelled the idea of the venerable applicant, that the cause of Prussia was implicated. The matter, said King William, is one "which does not, as your Holiness appears to think, in any

way affect the interests of Prussia." That calm word would provoke many a vow to make the heretic feel that the Pope could affect the temper of millions of his subjects, and therefore the interests of his government.

Yet one week from the notification of Victor Emmanuel, and on September 15, rode up an Italian staff officer, with all the forms of war, to the Milvian Bridge—that *Pons Milvius* ever memorable for the victory of Constantine and the death of Maxentius. The latest addition to its history of military incidents, which began with the conspiracy of Catiline, had been made one-and-twenty years previously, when the insurgent Romans defeated an attempt to carry the bridge made by the French under Oudinot. The point of meeting did not, therefore, seem to be one of good omen for Pius IX. The Italian officer was Colonel Count Caccialupi, or Chase-the-Wolves. He came from General Cadorna to demand, in the name of the King of Italy, the surrender of the city. On behalf of his Holiness, General Kanzler at once gave his reply. The place was to be defended. General Bixio on that day closed in upon Civitá Vecchia.

Meanwhile, Count Arnim, in the hope of averting bloodshed, plied between the city and the Italian camp. The Pope, however, was resolved upon resistance. He did, indeed, give orders that it should be continued only so long as to compel the Italians to open a breach, in order, as he said, to attest the fact that his capital fell by violence. That end, we might have thought, would have been equally well answered, without bloodshed, by surrendering after the first gun. The forces of the Pope numbered eight thousand, and those of Cadorna fifty thousand. Rapidly as the temporal power and the Second Empire were both rushing downhill, it appeared as if they were constantly to keep step. So did it fall out that on that very September 19, when the Prussians, defeating Vinoy, closed round Paris, Cadorna, coming up from the north, sat down before gates of Rome. His lines stretched from the Salara Gate to the Gate of San Giovanni, thus enclosing that cemetery of St. Lorenzo, where stood the monument to the Crusaders, with so many foreign and so few Italian names. Coming up from the south, General Angiolotti stretched from the Gate of St. Giovanni to that of St. Sebastiano. Early the next morning Bixio, coming up from Civitá Vecchia, which he had captured, took post before the Gate of San Pancrazio, remembered for the contest between Garibaldi and the French.

With the first light of September 20 did the chambers of the Vatican begin to rattle with the sound of other artillery than the joy-guns of St. Angelo. The last time that sound had disturbed those vaults was when it came as the voice of a French republic, commanding a Roman republic to make way for the most despotic rule in Europe. Now France was learning for herself what it is to hear the guns of the stranger before the gates of the capital; and Rome was feeling what it is to hear the voice of the Fatherland bidding the stranger depart. Of the two potentates who in 1849 thundered at the weak walls of poor old Rome, he who then acted the restorer was now an exile and a captive, while he who was then an exile panting for return, now sat in the halls to which he was then restored, but sat feeling in the thud of every gun that even within those halls he too would soon call himself a captive.

While the din pained the spirit of the aged Pio Nono, forty of the Italians attacking and twenty of the foreigners defending were killed, and a hundred and fifty of the assailants and fifty of the garrison were wounded. Reports came that the heaviest fire was directed against the Porta Pia, the gate particularly connected by name with his own name, adorned and restored by his liberality, and endeared to his military recollections by the triumphal entrance of his crusaders from Mentana less than three years before. A letter is published in which the Pope ordered General Kanzler to surrender as soon as a breach should be made. But it would not appear that he had really granted him power to do so; for the *Civiltá* expressly says that the order to hoist the white flag was given by the Pope himself, and accounts for needless bloodshed by the delay which occurred ere that order could reach the gate that was beleaguered. [\[480\]](#)

Some five hours had passed since the horrid din began. No Michael with his legions of angels, no Madonna terrible as an army with banners, smote the host of the aliens. No Peter struck the barbarians with blindness. No Dominic, with a cohort of sainted Inquisitors; no Ignatius, with a celestial "Company," flashed death upon the worse than Moslems who fought for uprisen Italy. All these things had been expected. They came not, but instead of them came the news that a breach at the Porta Pia invited the Italians in. At last the poor old priest-king made up his mind to stay the futile flow of blood. He knew the temper of his zouaves. They would have stood and died like crusaders; but at last the word was given. There on the dome of proud St. Peter's was the white flag, and there did it float out upon

the September breeze, and waved in the forenoon sun—waved over Pontiff and Cardinal, over the Circus of Nero and the Inquisition of the Popes. Was it real? Eyes would be wiped to see if they did not deceive. Eyes, ay, the eyes of soldiers, would be wiped from thick, hot tears. Could it be—could it ever be? Come at last! The hour for which ages had impatiently waited, for which myriads of Italians had died. Italy one! her arms outstretched from Etna and from Monte Rosa, clasping at last every one of her children, and even availing by their returning strength to lift up her poor old Rome from under the load of the priest and the stranger.

He who two brief months before had, amid deep darkness at noonday, read out, by artificial light, the Decree of his own unlimited power and irreformable law, lay down that night amid a rude and intrusive glare streaming from across the Tiber into the multitudinous windows of the Vatican. It came from the lights of Rome all ablaze with illuminations for the fall of the temporal power. In the piazza below lay the Pope's little army of foreigners, passing their last night in the Holy City under shade of the basilica in which they had consecrated their bayonets to St. Peter, and within embrace of the two arms of the glorious crescent colonnade. For true it is that stone cupolas, and stone columns, put up by the distant dead, may be of real avail as stays of a power after the hearts and hands of willing men have ceased to hold it up. The soldiers passed the next morning in confused preparations for a departure. At noon a cannon was fired, and the Pope appeared on his balcony. He could not conceal his overpowering emotion. With the retreating steps of these prisoners of war, were about to vanish mystic visions of martial feats crowned by divine miracle. The soldiers raised their old cry, *Viva Pio Nono*, in loud and ringing tones; which, smiting against the basilica and the palace, were from thence rolled back, and flew across the stream, till the sound of *Viva Pio Nono* once more floated along the neighbouring streets of the capital. Uprisen Italy, quietly sustaining her uplifted Rome, hearkened in silence to the foreign cheer. Then, for the last time, did the Pope give to his beloved soldiers what they had so often received, his benediction. As he withdrew, when the corridors opened lone and long before him, when the doors closed behind, cutting him off from the only bayonets on which he could rely, no wonder if he felt that the palace of the Pontiffs had become a prison.

The crusaders, turning to the left, passed out of the Gate Angelica; then winding round under the windows of the Vatican, close by the garden walls, and along the Janiculum, they finally reached the Gate of San Pancrazio, where Cadorna and his staff awaited them to receive the formal surrender. Proud were the men under the red, white, and green, with the cross of Savoy, as they saw the head of the approaching column. As the first men of the French legion came up they insulted the Italian staff. According to the *Civiltà*, Bixio was so incensed that he reproached Cadorna for having conceded to such troops the honours of war. The friendly writer extenuates their misconduct by alleging the irritation cause by affronts received from the rabble in the streets on the previous day. But when the zouaves came up led by the brave Colonel Charette, they behaved like soldiers (*Civiltà*, VIII. i. 212).

When the crusaders of Pio Nono passed away from the Gate of San Pancrazio, who would have dared to say that the sixty dead and the two hundred wounded of the day before were to be the last victims of war provoked by Popes abusing the name of the Prince of Peace? And who would not feel for the French crusaders, who, led by their priests, and thinking that they did God service, had for twenty years inflicted upon Italy, at the behest of the Pope, the miseries of foreign occupation, and now, in facing their own fair land, were to behold the foreigner seated in her proudest palaces.

From that day forth, when the Roman met the priest on the street, he felt that he was no longer bound, except at the dictate of his own conscience, to confess to him his sins; that, indeed, he was not even bound to purchase an Easter ticket, to be produced as evidence that he had duly presented himself in a tribunal in which, in fact, he had never set foot. From that day forth, when the friar entered the church of St. Ignatius, neither the great picture of the torments of the heretics, nor what, in his dialect, he might call the "divine" *lapis lazuli*, retained all its old brilliancy; for within those sacred walls the internal tribunal of the kingdom of God was no longer anything more than a voluntary confessional. From that day forth disappeared from the seats of justice on the Seven Hills the ecclesiastical magistrate, and with him the external tribunal of the Church. From that day forth appeared for the first time for long and weary ages, the civil magistrates, sitting in open court under the eye of all, to administer, with whatever shortcomings, a law

which accepted the Christian principle of even-handed justice to Jew and Gentile; to those who said, We are of Cephas, and to those who only said, We are of Christ. In the eye of the Vatican this was the fall of the supernatural order, the godless triumph of naturalism; but in other eyes it was the substitution of God's good ordinance for the contrivance of priestcraft, which, conscious that it was not natural, called itself supernatural. From that day forth the Roman noble ceased to be a mere title-bearer and jewel-stand, for now a career in the government of his country opened before him. From that time forth the people ceased to be a mere populace, and entered on the dignities of a democracy. Law, letters, science, politics, diplomacy, and oratory now called upon the bright-browed child of the working man to come and grace them with his gifts, and not to sit doomed to the destiny of the incapable, unless he would put on the frock of the priest. From that day forth the double office of Despot-Pontiff, answering to the ideal of later Pagan Rome, was replaced by the mild office of the monarch, reigning at the head of an aristocracy and a democracy. The priest as a teacher of doctrines, as a celebrant of rites, or as a practitioner of charms, remained as free as ever he had been before; but as a power to impose himself upon all, and as exclusive king of men, his reign had passed away. Italy said, "For ever"; the priest replied, "Only for a very little time"!

On October 2 the Italian government took a plébiscite in the Roman States, to enable the people by a vote to record their own desire as to whether they would belong to the kingdom of Italy or to the Spiritual State. According to the *Civiltà*, the voting in the Holy City was 40,835 in favour of Italy, and 46 against. It must not be imagined that the total amount of dissent was represented by the 46. The partisans of the supernatural order generally abstained; but probably they would have done otherwise had they not known that, even if they all mustered, the majority would be overwhelming. They, as usual, cried out against bribery, coercion, and similar wrongs. Indeed, to read the Papal organs at this day, one might believe that ever since the national movement began, every vote and every battle has been carried against the preponderating mass of Italians by some few Freemasons, Jews, and invisible conspirators.

The Council which was to restore all things still sat. Not even a prorogation had taken place. Now, however, the Pontiff, though not intending to dissolve it, determined to suspend it until a happier time. Exactly a month

after Rome had passed into the hands of Italy, appeared on October 20 the Act by which the Council was suspended. In the Bull of Convocation the Pope had spoken of his intentions for the general benefit of society. In the Bull of Suspension it appeared that the particular society which best knew him and his remedies had spewed them out of her mouth. After having for many centuries had experience of his spiritual supremacy and temporal power, Italy had mournful proofs that they were socially evil. No land in Europe could produce a record of any dynasty which had so often brought into it foreign armies, to beat its people down, and to keep them under. No land in Europe could, from times within the memory of living men, produce such lists of the executed, the exiled, the imprisoned, and of those submitted to torture. No land in Europe had a ruling class among members of which public justice, when once free, had, week after week, to deal with such vile immoralities as the Courts of Italy had to punish in members of the priesthood. Italy had made the last trial of priestly rule with a prince personally free from the social blots which in the case of many of his predecessors had complicated questions of the public weal with questions of personal vice. Under Pius IX the system stood out more fairly to be judged by its principles and by its fruits. And under Pius IX Italy had rung with accounts of moral wrongs, of crimes of power, of curses uttered by the subject, such as had long since ceased to be heard of in other countries of Europe free from Turkish rule. The monstrosity that called itself a Spiritual State, and sneered at Lay States, was carnal, and vile to the core. The wave which, as soon as the breakwater of the Second Empire had been removed, rolled in at the Porta Pia, was even more a wave of moral scorn and of social execration than of political hostility.

The Council met amid florid promises that princes generally, at least Catholic ones, would accept the Vicar of God as their supreme judge, mingled with terrible citations of them all to appear before him, in order to find at one and the same time their correction and their deliverance in his infallible sentence. All this was uttered with the haughty spirit that goes before a fall. The fall after the haughtiness did not tarry, and was strikingly indicated by a phrase under the hand of the High Priest himself, in the Bull of Suspension: "We have been brought into such a position as to be entirely under a hostile dominion and power, God in His inscrutable judgments having so permitted it." Society had already beheld its self-proffered saviour clinging to the skirts of Napoleon III, and then crying to King

William to save him from his fellow-countrymen. Now the kings heard their self-proffered judge himself declare that by a judgment truly supreme the temporal power had fallen—that power which he and all his bishops had separately and unitedly assured the Church was altogether necessary to the proper exercise of his office of universal bishop.

We heard the *Civiltá*, in September, foretell that when December 8 should come it would witness a splendid session. Now at last it came, a waymark noting the end of a very eventful year—eventful in the life of France, in the life of Italy, in the life of the German nation, and in that of the Papal Church. But the anniversary of the Immaculate, of the Syllabus, and of the opening of the Vatican Council, brought with it no splendid session. They who twelve months ago had met to sit in judgment on the nations were scattered, and were in various languages making strange explanations and dexterous appeals to allay the general disquiet relating to their political plans; and in doing so were creating in the minds of all who understood what they said, and who knew what they had done, an impossibility of ever hereafter trusting to representations of theirs. Meantime, without his seven hundred bishops, without his adoring crowds, without the glitter of fallen royalties and of quasi-civic dignitaries, without his beloved zouaves, yet still guarded by his stalwart and fantastic Swiss—for at that Court it is ever foreign steel that is true—the Pope, sitting in a palace of eleven thousand apartments, rich as any king, and free as any bishop in the world, yet felt and called himself a prisoner. Therefore when the day of exciting memories came, it was, says the *Civiltá*, spent in mourning and desolation. But a new offering to the Virgin was to raise the sacredness of December 8, even in this year of sorrow, to a higher pitch than ever. Hitherto the patron of the Holy Church had been St. Michael the Archangel, under whose spear the first rebel fell—which rebel, as some time ago we saw, prefigured the latest rebel, Garibaldi. Indeed, after Mentana, St. Michael was, as military men say, "mentioned" in the Court journal. For the *Civiltá*, in relating the overthrow of the Garibaldians, did not fail to note the fact that "it was on the day consecrated to the Prince of the Angelic Host, to the Patron of the Holy Church, St. Michael," that the invaders crossed the border. But now the Immaculate, who alone is terrible as an army with banners, who alone destroys all heresies, was to be further exalted, by the raising of her husband to that celestial dignity which had hitherto been borne by the great archangel. It was, say the reverend college of writers in the ruling

periodical, a grand consolation that amid the mourning and desolation wherein December 8 was passed, the Decree proclaiming St. Joseph as the Patron of the Catholic Church was promulged. They add that this Decree was issued to satisfy the Fathers of the Council, and that it might be considered as a firstfruit of devotion and piety reaped from the Council. The Italians said that St. Michael, as captain of the Lord's host, had not in late years wielded the sword to the satisfaction of the authorities. Others said that the reason of the slight put upon him was simply that St. Joseph was the patron of the Company of Jesus. Others again looked no further for an explanation than to the fact that a form of religion which now—whatever was imagined and in theory professed—had in reality no standard of faith left but that of the *fait accompli*, would naturally seek change for the sake of rest.

Certain it is that from centre to circumference of the Papal orb, the devout were besieging the altars of those powers among whom Modern Rome distributes the affairs of that department which was by Ancient Rome assigned to Mars. In England, as the *Civiltà* proudly tells, was formed "The Prayer League of our Lady of Victories, entirely composed of innocent children." In Vienna the arch-confraternity of St. Michael called the citizens to a solemn novena; Belgium moved in a similar manner, and Spain on December 8 beheld the faithful thronging to the altars of Mary. "Processions and pilgrimages" added a "splendid" demonstration, in which Belgium, Germany, and the Tyrol merited particular mention. The tomb of St. Boniface was besieged with pilgrims, praying that the tomb of Peter might be redeemed from the hands of the Italian Islamite. And the tomb of Henry the Emperor Saint, "fierce defender of the rights of the Holy See," was so beset with pilgrims on the day two months after the commencement of the captivity, that the streets of Bamberg resounded with the suppliant song of *eighty-two* processions seeking to move the warrior saint. In Munich, after exhibiting in "functions" within the Churches "all that is grand in the Catholic cult," the clergy, the archbishop, and the devout, in crowds said to comprise all Munich, paraded the streets chanting prayers for the ransom of the Pontiff.

If St. Michael had not retained his militant position, his confraternity in Vienna, conscious of where lay the sinews of war, sent loads of Peter's Pence. So in point after point of Europe the vows and bonds assumed in

favour of Peter's Pence by fresh associations from Holland to Portugal, and from England to Hungary, are recorded. In England it was to the ladies that the "work" of raising Peter's Pence was assigned. The ladies of Vienna claimed it, the ladies of Madrid followed the example. And a valiant meeting in Belfast, and a meeting in Galway, resolved largely to swell the tide of Peter's Pence. The Catholic clubs joined in the movement, not only to console the Holy Father, but to condemn "the guilty policy of spoliation." Italy was grievously complained of for having dealt, by law, with certain Catholic Associations as political bodies, committing offences against the nation. But the great and splendid "work" of the Pence of Peter is not enough. The meetings and manifestoes are equally necessary, and of the manifestoes the spirit is breathed in these words, addressed to governments: "Do us justice; or if not, to shake you out of your indifference, we shall avail ourselves of every means which the law allows."

One brave claim of German Catholics is this: "As loyal subjects we demand that our rights and our interests shall be protected even in the territories of the Church." And politicians, *knowing these things*, will say and write that men moved from a foreign centre to make such claims of intervention on their governments are as good subjects as other men! They well know that such an agitation raised in the midst of a mortal struggle, if it succeeds, plunges the nation into a second war; and even if it does not succeed, diverts the nation from its own defence, and tends to divide it. But these German patriots say that they will embrace every opportunity that arises of pressing such rights as those above indicated upon their governments, by the Press, by "councils," by meetings, and especially by sending men to Parliament who will have courage to take up the Catholic cause. The *Civiltà* characterizes this language as the proclamation "of a vigorous, a continued, and a legal struggle against all governments which do not care for the cause of the Pontiff." "What the law allows," would, in the mind of many an honest Catholic, mean the law of the land; but on how many of such men could reliance be placed when, after all had been done which the law of the land allowed, they were instructed by sacred lips that when it contradicted the "divine" law it ceased to be binding, and that then the law in the case was God's law, which was whatever the Church declared it to be?

Geneva was made a chosen centre of activity, and the names of great and famous personages were paraded. While the ultimate ends to be aimed at

were fitly expressed as "reinstating the Holy Father in his temporal sovereignty, and re-establishing the social reign of the gospel," the proximate ends were, to move the heart of Christ to mercy by pilgrimages and prayers, to act upon governments, to excite opinion by the Press, and to procure for the Pope means. Fifty meetings in the middle of December in the diocese of Fulda alone, while Germany was in the crisis of the war; the object of those meetings being to plunge her into a war with Italy! Indeed, it seemed to the *Civiltá* as if, awoke from the slumber of ages by the prayers of the Catholics around his tomb, St. Boniface had gone out anew upon his apostolic pilgrimage, to rouse up the ancient devotion of the people to the Holy See. ^[481]

One new society, which has not its name specified, is said to be already a great one. It is composed of all who had borne arms in the crusade of Pius IX. From Holland to Marseilles, from Canada to the Tyrol, they had bound themselves together in a common bond. We are not left in doubt as to what that bond might be. Indeed, we are told that "what it is cannot be obscure; their former enterprise makes it clear." To us the former enterprise would make the means clear—namely, war; but not so clear the end. They formerly warred to avert the fall of the temporal power. Were they now to go to war for the immediate and local object of "reinstating the Holy Father," and at the same time for the ulterior and world-conquering object of "re-establishing the social reign of the gospel"; that is, of forming the world into Spiritual States, or at least into States under the spiritual reign of the clergy? The object is prudently veiled in vague language, but language clear enough for the instructed; "full of warlike ardour in a meeting of Dutch and Belgians at Lovaine, they said that the aim of their union was to meet the future wants of the Church, was to conquer all the forces of impiety." ^[482] But even in the language put into the lips of soldiers, and into the resolutions of public meetings, the object is never defined so as to limit it to restoring the temporal power, and generally a wide object beyond that narrow one is allowed to transpire. When old crusaders undertake with "warlike ardour" to meet the future wants of the Church, we may divine of what kind her future wants are to be; and when such men undertake to conquer all the forces of impiety, we may expect a social reign of the gospel, ushered in by the zouaves—such a social reign of it as some of the spiritual princes of the Continent re-established when, after their Spiritual

States had been shaken by the Reformation, Catholic leagues reinstated the prince-bishops in power. As to England, the *Civiltá*, at a date subsequent to notices already alluded to, names the Duke of Norfolk as heading a protest against the occupation of Rome from the noblest of the nation; Lord Campden and "Giorgio Clifford" as leading a universal subscription of English youth; the ladies as conducting the "work" of Peter's Pence; R. Martin as forming a league of prayer for persons of all grades; and Warteton (*sic*) as instituting "the crusade for Pius IX, a league of our Lady of Victories entirely composed of children."^[483] How many British children are learning in this much-mentioned league by the inspirations of our Lady of Victories, to covet their baptism of fire in the projected crusade, we do not know, nor yet how they are to be taught to select the particular branch of the "forces of impiety" against which their first arms are to be proved. But, says the *Civiltá*—

there will be a struggle, there will be travails, there will be sorrows. But the victory is in their [the Catholics'] hands: of this the proof more than manifest is found in eighteen centuries of continuous combats and victories of Catholicism. As the great Matthias, indignant because before his eyes an officer of the king dared to burn incense to an idol, rose up crying, "Let him that is true to the law follow me," and commenced those grand struggles and grand victories of the Maccabees which are known to all, so the most fervent Catholics, indignant and horrified at the capture of Rome, pointing out the Revolution, in the meetings at Fulda and at Malines, at Ghent and at Geneva, as the cause of so much evil, as the enemy of Christ and of His Vicar, cried, "Let all that are Catholics at heart rise up and follow us in the fight." Their cry has been heard, and the general crusade is already begun.^[484]

The development of the *general crusade* has been slower than the seers in their many Maccabean visions saw; but at the end of six years all the preparations for it are in progress, and the two-fold end is steadily kept in view: first, Rome is to receive back the Pope at the point of the bayonet; and secondly, the whole world is to accept "the social reign of the gospel" at the point of the bayonet too, unless nations, being timely wise, bow the neck and lick the dust where marches the Vicar of God. So man proposes.

But since the day in 1850 when, as we heard at the beginning, a "salutary conspiracy and a holy crusade" were formally announced as the two things needful, much that man astutely planned and firmly proposed has not come to pass according to man's design, but has been strangely turned to the purposes of a clearer wisdom, and a kinder will. Even the monument in the cemetery of St. Lorenzo to the Crusaders, which exhibits Peter, under the effigy of Pio Nono, giving the sword to the Christian army, and commanding it to make a Catholic world, now bears, in addition to its texts from the Maccabees, a fresh inscription: "Ransomed Rome leaves to posterity, as a lasting sign of calamitous times, this monument, erected by the theocratic government to foreign mercenaries."

On the last day of 1870—that year of which the echoes will sound all down the vale of time, repeating the cry, "Man proposes but God disposes"—a strange sound was heard in Rome. Floods had brought sorrow into the city. Victor Emmanuel left Florence, and at four o'clock in the morning of December 31, for the first time, as king in his capital, set foot in Rome. In its sovereigns the city was familiar with titles of Saints, of Great, of Holiness, and of Blessedness, and with ancient titles noting many a shade of skill and power. But there was a title which was not only unknown, but seemed alien to all the traditions that had gathered around the place from the days of Sulla and of Catiline till now. As the burly king, amid the frantic joy which had marked his brief visit, was about to enter the carriage to return, a little girl approached with a nosegay of fair flowers, and said: "Take this, KING HONEST MAN!"

If with the expiring hours of 1870 the reign of Craft died in Rome, and that of Honesty began, it would mark the mightiest of all the modern revolutions.

FOOTNOTES:

[476] *Civiltá*, VII. xi. 760.

[477] *Civiltá*, VII. xi. 481-2.

[478] *Civiltá*, VII. xi. 559 ff.

[479] *Civiltá*, VIII. i. 66.

[480] VIII. i. 108.

[481] VIII. i. pp. i. 155-69.

[482] *Civiltá*, VIII. i. 293.

[483] VIII. i. p. 288.

[484] VIII. i. pp. 421-22.

CHAPTER X

How far has the Vatican Movement been a Success, and how far a Failure?—As to Measures of the Nature of Means a Success—As to Measures of the Nature of Ends hitherto a Failure—Testimony of Liberal Catholics to the one, and of Ultramontanes to the other—Apparatus of Means in Operation for the Ultimate End of Universal Dominion—Story of Scherr as an Example of the Minority—Different Classes of those who "Submit"—Condition and Prospects of the Two Powers in Italy—Proximate Ends at present aimed at—Control of Elections—Of the Press—Of Schools—Problem of France and Italy—Power of the Priests for Disturbance—Comparison between Catholic and Non-Catholic Nations for last Sixty Years—Are Priests capable of fomenting Anarchical Plots?—Hopes of Ultramontanes rest on France and England—The Former for Military Service, the Latter for Converts—This hope Illusory.

BEFORE allowing ourselves to form any opinion on the question how far the attempt to place all authorities under the Pontiff has been a failure and how far a success, it is necessary that, in our own thoughts, two classes of measures should be set well apart. If we look only at measures which the leaders of the movement regarded in the light of ends, it is easy to pronounce it an utter failure, as most Italians and many of other nations have done. If, on the other hand, we look only at measures which the leaders regarded in the light of means, it is easy to proclaim, as all the voices of the Vatican have proclaimed, that so far the movement has been a success, wondrous even to the point of being manifestly divine.

We think it impossible to deny the complete success of the Vatican movement in perfecting the measures devised as means. Those Liberal

Catholics who at present loudly pronounce the movement a failure, have only to read their own writings of 1869 and of the earlier months of 1870, to find that at that time certain advances in the policy of the Curia were described as unattainable. Those advances have been accomplished. As to certain measures, it was said that governments, bishops, clergy, people, would unite to make them impossible. Those measures are now statutes and ordinances. The Liberal Catholics, indeed, may pensively say that the gains of the Curia are the losses of the Church. That may be. Time will tell. The fact now to be registered is simply this: Certain changes were declared necessary, and at the same time sufficient for the attainment of the great end of universal domination. Those changes were pronounced to be revolutionary in the Church, dangerous to society, and, in fine, impossible. They were resisted, were urged on, and were triumphantly carried.

We also think it impossible to deny that up to the present time (1876) the movement, viewed in relation to ultimate ends, has been a complete failure. We do not say as much of proximate ends. As we have used the writings of Liberal Catholics to measure the success in regard to means, so would we use the writings of the Court party to measure the failure in regard to ends. It is already familiar to us that in those writings the moral renovations which were to attend the dawn of the new era, could not be indicated by any metaphor short of the primal burst of light on the horror of chaos. It was to be! So soon as the Lord should manifestly set His king upon His holy hill of Sion, all kings were to fall down before him, and his enemies were to lick the dust. Parliaments were to recognize their impotence and expire. Populations, suddenly illuminated, were to behold the saviour of society, and were lovingly to bow to his law. As to any possible opposition, it was described as the heathen raging—as the people imagining a vain thing. It was only the kings of the earth setting themselves and the rulers taking counsel together against the Lord and against His anointed.

Now, in fulfilment of these promises, what has come to pass? The Pope has fallen from his temporal throne. A long and bloody war, carried on with a view to place Don Carlos on the throne of Spain, has failed. Contrary to the fairest promise, hopes of placing the Count of Chambord on the throne of France have faded away. The tentative federation of Germany has been consolidated by an imperial crown, hereditary in the reigning house of Prussia. Austria has persisted in her anti-Catholic legislation, as it was

called, and has extended it by abrogating the Concordat. Switzerland and Germany have both returned the attacks of the ecclesiastical power upon the civil power, by laws reasserting the national supremacy in every sphere of public life. Italy, in the act of overturning the temporal power, has completed her own unity. In the act of completing her own unity, she has, in the city of Rome, violated what the Pope calls Catholic unity, by admitting religious liberty within the sacred walls. In America no great State has modified its law in favour of the new theocracy. Several of the Catholic States have shown a consciousness of its aims, and jealousy of its accredited agents. In Canada, leading Liberal statesmen have clearly evinced a rising consciousness of what the Papacy is, and of what it aims at. The one ideal ruler of the Curia, the one set before the youth of nations as their model, Garcia Moreno, President of Ecuador, has fallen, openly assassinated in broad daylight. Thus, at the time when, according to his seers, the Pontiff was to survey a new cosmos rising out of the chaos of the Modern State, he, all round the horizon, beholds only confusion worse confounded. Not one nation has submitted its code to his revision. Not in one kingdom of the earth has a ruler been installed to reign under the laws of the Syllabus.

Does not this statement concede all that is claimed by those who say that the movement is a failure not redeemed by one success? What it does really concede is, that of the two ways, in one of which the ends aimed at were to be accomplished, the first has disappointed all hope. The ends proposed were so grand that only in one of two ways could they be realized; and whatever may be said of the enthusiasm of the projectors, it is not to be denied that they never lost sight of this fact, and never concealed it. The two ways were either such an intervention of Providence as would amount to a cosmopolitan miracle, or else the slow operation of means extending over ages. While the Pope and his more superstitious followers seemed to expect that the Virgin and the new-made saints would obtain miraculous transformations, the more calculating, even at moments when the flow of money and of friends seemed not only to exhilarate the Vatican, but to intoxicate it, did not fail to keep in view the fact that centuries might intervene—centuries marked by many a partial success and many a temporary discomfiture—between the day when the perfected machinery of means should be set in motion, and the day when the crowning victory should lead the head of the human species in triumph to the goal. The

Jesuits are now entitled to point to that fact in bar of any premature exultation over their disappointment. At the same time, with all their power of simulating the joy of victory in defeat, they have been unable to prevent chagrin from tinging much of their later language. The great spectacle did not operate as a charm. The sublime revelation of a central authority for all human affairs did not subdue any wayward institutions. Providence put no seal on the deeds done. The replacing of St. Michael in his office of patron of the Church, was symptomatic of considerable dissatisfaction with the departmental divinities in general.

On the other hand, this complete failure of supernatural aid, or of any favouring current in public events, does not alter the fact that a system of means, contemplated and desired for ages, has at last been perfected, and that it is now over all the world being gradually brought into operation. The magnitude of the means indicates the universality of the ends. The fact that centuries upon centuries have elapsed since Popes began to claim what Pius IX has now acquired, that more than three centuries have passed even since, at Trent, the Jesuit General set up the pretensions which have now, at last, become the law of one hundred and seventy millions, is a consideration not lightly to be set aside, particularly when we contemplate the strife for universal dominion now openly inaugurated as a continuing struggle, to be handed down from generation to generation of men trained and consecrated to this very thing.

The stupendous scope of the ends might well demand as means measures exceptionally great, and the magnitude of the measures already carried as means may now well excuse, if not justify, confidence that the ends after they shall have been steadily pursued for ages will also be attained. Those ends were not less, when united into one, than the dominion of the world.

The Internal Tribunal, seated in every church, in every palace, in every castle, and at need in every private chamber, would always in point of authority take precedence of any local law, and would rule bed, board, purse, family, and all action which conscience determines.

The External Tribunal, seated in every city, would maintain the headship of the bishop over the civil magistrate, and the supremacy of spiritual over civil law and authority, as sacredly as we should maintain the supremacy of our civil law and authority over military law and authority.

The External Tribunal would make the Internal an establishment of the law. Every man, every woman, ay, every child of a certain age, who should not appear at least once in the year in that tribunal, would run into a punishable offence.

The Supreme Tribunal in the person of the Pope, acting either directly or through any Court or Congregation he might appoint, would be the final bar at which would appear contending kings, contending nations, or other appellants whatever, as also all whom he might, for any cause, be pleased to cite. From that judgment-seat would fall the sentence that only the Almighty could challenge. According to the well-known formula, the Supreme Judge would carry all rights in the shrine of his own breast.

Such a universal dominion was the end, the ultimate end in view. The end was hallowed to the mind of those proposing it by the persuasion that this dominion of the priest of God is the veritable kingdom of Christ. It is only by realizing how conscientious is this view of the spiritual empire, or the Roman Empire in a spiritual form—a view which, founded on a historic ideal, fascinates the imagination of Romanists—that we can either be just and charitable to the men who move for these ends, or can arrive at any reasonable estimate of the amount of future force in their movement. Mere politicians, say some, who have no religious feeling! Yes, many such; but these politicians well know that their power is proportioned to the amount of religious feeling which they can create and make ready to be acted upon. It is by putting together the political skill of the one set of men and the religious feeling of the other, that we obtain means of judging as to the quality of the directing and the amount of the impelling forces to be developed in the future struggle.

After all that they have recently accomplished within the Church, what can be too hard, they ask, to accomplish outside? They wanted to make the entire Church an instrument in which every joint, to the remotest limb, should infallibly respond to the will of the central director, so that at any given moment, and on any one point, the whole of its force could be brought to bear wherever resistance might be encountered, or wherever an advance might promise success. To make it such an instrument required changes which were pronounced unattainable, but they laughed the discouragement to scorn. Those changes affected all the three spheres of organization, constitution, and dogma. In *organization* every clergyman had

to be made movable at the will of the bishop, and every bishop had to be made dependent on the will of the Pope. The franchises of both the parish and the diocese had to be revoked. It is done. But it could not be done without a constitutional change. In the *constitution* the Bishop of Rome had to be made by law the Ordinary of every diocese in the world, and every other bishop in the world had to be made by law a mere surrogate of the Bishop of Rome. That one bishop had to be made by law the sole lawgiver even when the entire episcopate meets in a General Council, and the whole episcopate in General Council assembled had to be by law reduced from a co-ordinate branch of a legislature to what is, in effect, a mere privy council to the Bishop of Rome. It is all done. But it could not be done without a dogmatic change. In *dogma* it had to be determined that the edicts of the Bishop of Rome embodied in themselves all the alleged infallibility of the Church; ay, and even the consent of the Church, as a necessary sanction, had to be in dogma disavowed. We blame not any Liberal Catholic who said that these things were impossible. But the impossible is done. The new organization is not a mere administrative change, but rests firmly on a new legislative constitution. The new constitution is not a mere legislative change liable to legislative revision—it rests irreformable on adamant dogma.

Thus, then, are the hundred and seventy millions, or two hundred millions, as they are called, bound into one very compact bundle, to be thrown into this scale or that by a single hand. Within the Church, says Vitelleschi, resistance is impossible. No obstruction can now arrest the current of command from Pope to nuncio, from nuncio to bishop and regulars, from bishop to canons and parish priests, from regulars to all manner of confraternities, from parish priests to unions and to voters. Where governments have one officer the Church has many. Where the government officer has no time to shape public opinion, the Church officer has little else to do. Where the lackeys in government service wear fine liveries, and the lords walk about like our fellow-creatures, the lackeys of the Church have fine liveries too, but the lords outshine even the theatre. Where, in Catholic countries, the officer of government comes into his seat of authority, or returns into it quietly, care is taken that the bishop shall, at his coming, appear exalted above all principality and power. In proportion as States, becoming more Christianized, have risen above show, the Papal Church, becoming more paganized and materialized, has sunk deeper into the craft

and the love of display. While the officers of government see that the young are taught the material processes necessary to future power, the officers of the Church see that they are taught for what ends it will be good, noble, and martyr-like to employ power when they shall take their future share in governing the world. Bishop Reinkens, in a little work that ought to be read by every man who means to understand the questions that are to come up—*Revolution und Kirche*—declares that the policy of the Papacy is now revolution. Certain it is that for effecting a world-wide revolution, never did instrument exist so generally outspread and so perfectly centralized, so elaborately ramified and yet so pliant, as will be the society ruled over at the Vatican when once all the old men who resisted the changes have died off, and the new generation instructed in the spirit of the Syllabus has slowly grown up, as the generations formed by Trent grew up wherever the canons of that Council were received.

Such a growth is too slow to be waited for before partial results are secured; and every partial result it is hoped will be a stepping-stone towards the complete one. Therefore is every agency already named employed in promoting the organization of forces to bear a part in the grand struggle when it comes; but meantime in every local struggle. Associations of children, associations of peasants, associations of artisans, associations of old soldiers, called veteran associations, and numerous associations besides, are formed in various countries and on several models. On the social side clubs and "circles" contribute the convivial element, and on the devotional side orders and confraternities contribute the ascetic element to the common organization. New "devotions," new visions, new places of pilgrimage, new images, new prayers, new relics, new charms, new waters of virtue, new shrines, new patrons, new miracles, and new wonders feed the flame. By tens of thousands, and by hundreds of thousands, men take an oath of obedience to the Pope. By tens of thousands volunteers pledged to shed their blood for him are enrolled—"On paper," say the Italians, mocking; but 1867 showed that the crusaders meant crusading; and if tens of thousands of such volunteers under leaders such as Charette are enrolled they are not to be laughed at. The schools have not been in operation during the last ten years for nothing. Associations in France bear the portentous names of Jesu-Workman and Jesu-King (*Jésu-Ouvrier* and *Jésu-Roi*)—the one aiming at organizing workmen, the other at organizing courts. The name of Jésus set up on these associations clearly points to the central organizing Company

which Liberal Catholics with reverent indignation charge with daring to give a double meaning even to the all-blessed Name, not excepting its use in the solemn words, "At the name of Jesus every knee shall bow."

Even after July 18 the Liberal Catholics did not give up the Church as irrevocably sunk into the hands of the Jesuits. They counted on the eighty-eight bishops who had voted Nay, and on their promise one to another not to act separately. Had that promise been kept, it was just possible that, under favouring circumstances, the fatal steps of July might have been modified or even recalled, for by all tradition the acts of any Council were supposed to remain within its power, and to be open to its revision till it was legally dissolved. The Curia put this tradition under its heel. It posted up the Decrees on the doors of the Lateran and in other public places in the city, and certified the whole world that by this act they had become its supreme and irreformable law. How did the eighty-eight deport themselves? They had tamely allowed all manner of revolutionary acts, when done from above, and they allowed this last one as tamely as the rest. The erring Peter of the Vatican was not at the head of a community capable of producing a man who could withstand him to the face, and could tell him, as one told the erring Peter of Antioch, that he was to be blamed. Indeed, logically, the bishops seemed to have no ground of objection. The Decrees did not profess to be those of a Council, but those of the Pope, a Council having approved of them. If, then, the Pope by promulging any doctrinal Bull without citing the approbation of a Council, could give to it the force of irreformable law, unless it should be rejected by the bishops, how much more was he entitled to give that force to these Decrees. Even had their tenets afforded them ground for resistance, the eighty-eight were not the men to avail themselves of it. From one we may learn the complexion of them all.

At midnight on July 19, Von Scherr, Archbishop of Munich, who had throughout the Council acted with the Opposition, re-entered his city. He came, as the Germans say, without song or chime—that is, in strict privacy. At first many thought—and Friedrich was one of the number—that this demeanour was adopted, on the part of his Grace, to shun any public demonstration which the people might have made in honour of his attitude in Rome. But the whisper soon crept round, "Gregory has submitted."

Presently the Faculty of Theology, with Döllinger at its head, came in all form to present the Archbishop with an address of congratulation on his happy return. After the formal reply to the address, his Grace said, "Rome has spoken: you gentlemen know the rest. We could do nothing but give in." Friedrich says that he saw how Döllinger was boiling, while the rest were also moved. "We struggled long," continued the Archbishop, "and gained much, and we also averted a deal of evil." This remark, says Friedrich, evidently encountered general incredulity. The Archbishop then told of the deputation to the Pope—of which he was a member—on July 15; of the hopes raised by the reply it received; of how those hopes were dashed by the influence of Senestrey—for he does not seem to have named Manning; and finally, of the sad disappointment of Cardinal Rauscher on going the next day to thank his Holiness for yielding, and on hearing from those lips which to the "Catholic" world are the fount of truth, that the formula which, on the previous evening, the Pope denied having seen, was actually distributed among the prelates, and was declared to be irrevocable.

At the close of the conversation, Scherr, turning to Döllinger, said, "Shall we start afresh to work for the Holy Church?" The aged *Probst* replied, "Yes, for the OLD one." It was evident that, if Scherr had just then had any other man before him, his anger would have waxed hot. He suppressed it, however, and replied, "There is only one Church, not a new one and an old." Then were the words pronounced by Döllinger, "They have MADE a new one." The note was sounded. The Archbishop could only say, "There have always been alterations in the Church and in the doctrines." This speech played upon the countenances of the Professors, calling up in each case a look characteristic of the man. "Never shall I forget," says Friedrich, "the respective bearing of Döllinger and Haneberg." Döllinger was soon excommunicated; Haneberg was soon in a bishop's palace, but ere long he died. No one took up the conversation, and as the Archbishop turned from Döllinger to address some one else, Friedrich saw tears in his eyes.

In the hall of the university where the Professors had robed, and where they now unrobed, they spent a quarter of an hour in talking over the scene. Döllinger, however, did not stay. Rather early the next morning, the Archbishop deigned to visit the plain house in Von der Tann Street. Döllinger plainly told him that he could not receive the dogma of July 18, being, as it was, in open contradiction to the past teaching and history of the

Church. In that dogma the worst thing of all was the addition made after the discussion, "not by the consent of the Church." Here was a surprise for the Archbishop. He knew nothing of that addition. He had left the field before the last gun was fired. He had now to learn the shape which his new faith had actually taken, and to learn it from the lips of Döllinger. The venerable Provost who was to be excommunicated had to tell the Archbishop who was to do the deed what the change of creed actually was for not conforming to which he was to be given over to Satan. That scene might have afforded Kaulbach another picture.

Von Scherr at first spoke in Munich of the promise made by the bishops of the minority to one another not to act separately. By the end of August he had forgotten all about it. A "highly placed" layman was informed by the Archbishop that he need not trouble himself with infallibility, as the Decree would not be promulgated in the diocese, and what was not promulgated was not binding. Almost immediately afterwards it was printed in his own paper. Ere long, Scherr was as hot for infallibility as if his object had been to make the Curia forget in his present zeal any unpleasant impressions made by his former opposition. He was exemplary in protesting, threatening, and excommunicating. Friedrich gives particulars to prove, in the case of Scherr, that disregard of truth which is so freely alleged against the bishops generally, into which we will not enter.

As we have said, from one of the minority we may judge of all. Neither Hefele nor Kenrick, neither Dupanloup nor Strossmayer, displayed any Christian fortitude sufficient to arrest their Church in her downward course, or indeed displayed anything to give the Curia aught but food for scorn of the Opposition. Their convictions had been solemnly stated and ably argued. Those convictions did suffice to cause hesitation. But the force of conviction only tested the force of habit, and did not break it. The new submission made them tenfold more than ever the creatures of that overweening power which they had spent their lives in exalting, which for a moment they had attempted to moderate, but to which they now succumbed in its most heinous assumptions.

The lower clergy have followed the bishops in submission. At one time it seemed as if many of them would withstand. Except, however, in the two countries nearest to Italy—Switzerland and Germany—no appreciable resistance has been offered. In Germany the men in whom the force of

belief overcame the habit of submission were almost exclusively those whom the elevating influence of university life had lifted above the ordinary level of the clergy. Their number is not large; but the valuable writings which they have already produced show that they have no mean power of influencing the future currents of theological thought. Spirited France, in spite of its Gallican traditions, was a pattern of tameness. The striking examples of Loyson and Michaud found exceedingly few to follow. Gratry "submitted." Throughout the rest of the world the exceptions have been isolated and without influence.

Among the laity, again, it is only in Switzerland and Germany that success has been even chequered. The otherwise uniform submission has there been broken by numbers considerable to-day, but more considerable for the future. Yet compared with the mass in submission, those numbers are soon told. But, on the other hand, that mass in submission is not of uniform value to the future theocracy. It contains the cordial adherents who already believed; the dutiful adherents who doubted, but at the word of the Council said, It is decided, and I now, as in duty bound, believe; the reckless adherents, who, like most in Italy and many in France, would as cheerfully have submitted to a dogma declaring the Popes imponderable, as to one declaring them infallible, and who do really believe that they are irreformable. Differing from all these are men who had an intelligent conviction against the new dogma, or against the new constitution, or against both. These, brought face to face with the alternative—submit, or bear the curse of the Church; submit, or survive the rending in twain of every life-tie—did sadly and slowly submit—submit without attempting to reconcile things to their reason, as it is said that Montalembert declared he would do. These men may never make apt instruments of the priests, but they do make their proud trophies. One strong man silently submitting is a statuesque monition to many others not to think. A still further element of unknown extent mingles with the mass. It consists of those who, without either formal submission or open breach, do not believe the new dogma, and do not approve of the new constitution. This now inert bulk may turn to a force bearing in either direction, or may divide into two portions; one giving the priests control over profession and appearance, without any corresponding control over belief—which is, perhaps, of all their triumphs the most practical; and another in which conviction, growing at last too strong for the habit of submission, breaks by its divine force the human

bond, and throws men upon their conscience, their Bible, and their God. But when men have once really believed in a God who leaves the rule over His redeemed offspring to a Vicar, and have believed in man as a creature whose conscience another man is to keep, it is hard to find in them foothold for solid Christian convictions. They are kneaded to the hand of the priest. If they leave him, they become infidels, who though in feeling his opponents, perhaps his persecutors, become in argument and action his practical allies. Joining him in rooting out faith in the Bible and in primitive Christianity, they urge men to his two extremes of doctrine, the authority of the Church or Atheism, and consequently to his two extremes of government, the Papacy or the International. One Auguste Comte is worth many a monastery.

It is this "sublime" spectacle of success with hierarchy, clergy, and laity, which makes the recent past, to the augurs of reconstruction, a certain presage of a triumph, perhaps distant, but complete, in the future. No recalcitrating bishop now; or if a few worn-out men are still secretly of the old inclining, they are rapidly dying off. The list of the eighty-eight is already a short one. No bishop is now installed who to the old oath which already made him a vassal of the Pope does not add the new articles of the Vatican Decrees. No seminaries are now training priests to deny the infallibility of the Pope, or his ordinary, immediate, and omnipresent authority. In most the Jesuit text-books are adopted. No catechisms are now teaching against Papal infallibility, or teaching ambiguously. The new doctrine will be couched in terms clearer or less clear, according to political and theological necessities; but, whether in Prague or Sydney, in Florence or Liverpool, in Boston or Warsaw, in Berlin or Lima, the catechism will contain a text from which the friar or priest will put the same principles of social reconstruction into the minds of boys and girls. To the view of the Jesuits, the future unfolds like a peacock's tail, all sparkling with the eyes of the young. The outward loss to the Church which has been sustained was reckoned upon before hand. They hold that it is more than compensated by the perfect internal compactness gained. When once the preparations are complete—and a few score years are of no account—a generation well trained will be ready at the call of him who holds among men the place of God, to take up the cross of St. Peter, to cry, "God wills it," and to march till all high things that exalt themselves against Christ shall be pulled down,

and the Church alone shall stand, the one all-perfect society embracing the human species.

The loss of the temporal power affected all the calculations of the foregoing period. It came with appalling suddenness. It startled all men to see the Emperor who had been the sole prop of the temporal power fall, not like a prince put to the worst amid a loyal people, but with an unheard-of crash like a log upon ice, while his empire instantly went under; and to see in another moment the Italian sentries standing round the Vatican. All efforts had first to be turned to a restoration. As if to illustrate the weakness which the subjects of the Pope form for any State, while yet the war was raging King William had to negotiate with Ledochowsky,^[485] and ere yet the blood was dry, a petition signed by fifty-six members of the Prussian Parliament prayed the new Emperor of Germany to restore the Pope—which meant to declare war on Italy. While the Emperor still lay at Versailles a deputation, headed by three counts, passed through bleeding France to pray the victor to flesh his sword anew. Emperor William well knew that if all the powers of the Papacy sufficed for the task, the new empire would be rent to shivers in a day. The army which had taken Paris did not march on Rome. France had next to exhibit herself as a suppliant at the feet of the Holy Father—a Holy Father who wanted her with her right arm broken to draw with her left and cut down the Italians. She met this wicked suggestion with humble requests that the Holy Father would show forbearance and not demand services for which she was not prepared. Incredible as it may seem, Father Hyacinth Loyson stated, in the *Journal des Débats*, that French bishops, before thus attempting to entangle their own government, had actually applied to the invading Germans.^[486] Refused by the invader, refused by their country, they hated where they could not smite. Germany was marked for destruction; and France was held to future service when the time should come. Meantime, every effort was put forth to check and disunite Italy, but in vain. She has strained the religious toleration which the Pope abhors so as even to cover overt political hostilities. She has allowed him to issue all manner of incentives to undo the Italian kingdom by either domestic revolt or foreign intervention, or if possible by both. She has allowed him to gather together crowds of hostile foreigners and to excite them to affront and revile the nation. She has grown stronger and more solid during the process, laughing equally at the Napoleonic idea that the Pope was to be

treated as if he had two hundred thousand bayonets, and at the Bonaparte violence which inflicted personal insult, prison, and exile. At this moment, after six years have passed, the Vatican as unblushingly asserts that Italy—the real Italy—is on its side as it did in the years preceding Solferino.^[487] Victor Emmanuel has tried the experiment of letting the Pope play the prisoner or the freeman, the prophet, priest, or Caesar, the tribune or the medicine-man, just at his wayward will. The enmity of the Pope has been good for Italy as for England, Germany, America, and all countries favoured with it; but if the day comes when the Pope meets the bow of any future Prime Minister of Italy with a responsive bow, then may we begin to look for fresh cycles of conspiracy and convulsion.

The future must be its own interpreter. Meantime in the Vatican sits a king calling himself a prisoner, though he is free to go where he will; and in the Quirinal, a king calling himself a good Catholic, though he is a rebel against the Vicar of God. If the wisdom of Italy in allowing to the Pope unlimited personal freedom has been great, the want of wisdom in professing to exalt his spiritual authority, and in giving in to his sole hand the ancient powers of both the crown and the people in the election of bishops and clergy, amounts perhaps to the grossest political folly of our age. When Bonaparte dealt with the Pope as sole arbiter of the bishoprics of France, he opened a mine against the national authority whether seated on a throne or on a president's chair, over which it has never sat securely, and in which it will one day sink if France goes on as she has done of late, giving the priests increasing power in education. But when Victor Emmanuel repeats this blunder in a form more completely providing for future Papal power, he digs a grave under the feet of his own dynasty. To Italians, unhappily, a great hypocrisy may be a great triumph of skill; they smile at principles, admire shifts, and are wondrously clever at them. In politics, till they found the principle of constitutional monarchy, they, in spite of all their shifts, floundered between fruitless conspiracy and repression—never ending, still beginning. In religion they want what in politics they have found, a principle and a basis. Ancient scriptural Christianity, the Christianity of the Epistle to the Romans, would give them the firm rock between the quicksands of sacerdotalism and the floods of infidelity; a rock on which a nation might securely rise to take its place with realms which own no other foundation. But hitherto scarcely a glimmer of light on this matter has appeared among Italian statesmen. They sadly underrate the power of the

Curia. The Curia know their weakness, and count upon their fall. To bring it to pass may, they think, take time; but the Pope well knows how to play upon the king for the undoing of the nation. Any ruler who does not in his conscience believe the Pope to be a pretender in his claims to represent God and to rule the universal Church, and who does not believe him to be the worst and greatest corrupter of the Christian religion ever brought to light by time, is in constant danger of risking all by some act of compliance induced perhaps by his religious sentiments, by the remorse of his vices, by the intrigues of the women about him, or by the guile of the ecclesiastics who lie in wait.

For the time being the Vatican is placed at the disadvantage of complicating the general struggle for supremacy with the particular one for the restoration of the temporal power. The ultimate end being now manifestly distant, the whole power of the perfected mechanism is turned to the gaining in detail of the proximate ends which will lead to it. These, roughly stated, are, control over elections, control over the Press, and control over schools. If we take Bavaria and Belgium as favourable specimens of Roman Catholic countries, the priestly power in elections has already become a source of bloodshed, and threatens to be so in continuance. The Catholic and the Liberal parties stand arrayed as two forces, not representing, like our Conservatives and Liberals, two tendencies necessary to balance one another, but two hostile principles one or other of which must perish. In Germany the power of the Pope in elections has proved to be a real not to say a terrible one. In France it was found such at the first election after the war as to be all but sufficient to place the destinies of the country at his disposal for a time. The last general election showed a decided recoil from this danger. In Italy it had come to that point that in municipal elections the moderate party, in several instances, made common cause with the Papal one. But there, again, the last general election has given a result in the opposite direction. The terror which the priests can turn to account in elections is threefold—dread of civil hurt or loss, for which contrivances are manifold; dread of personal violence, which of course supposes a strong Catholic party; and dread of eternal ruin, which the priest of God can inflict for voting against the interests of the Church. Even on Roman Catholics not brought up in the schools of priests, these influences are powerful. What will they become with generations brought up in schools under the new inspiration of the Syllabus?

"In every mode and by every means that is not contrary to our conscience" is the formula expressing the solemn pledges of all Catholics to war against the revolution, or the Modern State. Not merely as to the occupation of Rome, but in its very principles, says the *Civiltá*, will we oppose it—

We shall fight it with Catholic associations, we shall fight it with the Press, we shall fight it in parliament. We shall confront theory with theory, morality with morality, school with school, the flag of Christ with the flag of Satan, raised by the revolution. Catholic societies where they existed are being multiplied, where they did not exist they are being planted. The number of Catholic members in the Prussian Parliament has increased beyond hope, and in Belgium they have drawn closer together. The struggle against the Austrian ministry which favoured the revolution has grown hotter, and *obligations in defence of Catholic principles will be imposed upon the future Members of Parliament of England and Ireland*. With whom will be the final victory?—there can be no doubt. [\[488\]](#)

As to the Press, the "work of the 'good Press'" is one of the most meritorious of the many "works" in operation for the new celestial empire. From the great *Civiltá*, the mainspring of the whole, to the episcopal organ in the remotest diocese, it moves for one end, whether in the form of review, magazine, journal, pamphlet, or book. It represents a literature really prodigious, and is in its own eyes on the high road to supremacy. Of journals it is said that in Germany alone hundreds are subsidized. [\[489\]](#) How far the assertions are true or false we know not, which are frequently made, that the most rabid and blaspheming organs of low and anarchical demagogues are in Jesuit pay; but those assertions in themselves are a serious symptom. In Italy it is often popularly said that there are one hundred and eighty thousand nuns, friars, and priests, all counted. In France of priests alone there are forty thousand. In Germany, as Schulte has shown, in certain cities the ecclesiastical persons, male and female, number from ten per cent. upwards of the *adult* population. If we extend to the whole Roman Catholic population of the world calculations of an organization on a scale somewhat similar, we cannot do otherwise than regard a Press which controls such a cosmopolitan force as a serious power.

At the same time a twofold weakness of the "*good Press*" is obvious. First, it does not carry with it the Press which really leads nations, though it runs strong in by-channels of its own. And, again, it tends to change the ignorance of the general Press into knowledge. In Germany this is already done. There the pious and mystic style of the Vatican dialect has ceased to be an unknown tongue. Men of letters and jurists who twenty years ago would have passed over the ecclesiastico-political phrases of a bishop or cardinal as unwittingly as an English Member of Parliament, now read them with luminous and searching insight. Even in England and America a process of self-instruction is rapidly going on in the best journals. Lord Beaconsfield, in *Lothair*, has shown that he is awake to the social and scenic aspects of the Ultramontane movement, and has displayed more insight into the genealogy of its cult than have the men in this nation to whom the country has a right to look for something better than slipshod arguments, and well-played parodies. Mr. Gladstone has shown himself awake to the national and international, to the moral and political aspects of Ultramontanism. Mr. Cartwright's work on the Jesuits shows that younger politicians are beginning to do the best thing they can do, that is, to study at original sources, and to give solid information. Mr. T.A. Trollope's work on Papal Conclaves shows that all Englishmen are not able in Rome to resist the rational tendency to see the place with unveiled eyes, and to speak of it and its ways in plain English, and that some of those who thoroughly know it are not disposed to enhance the reputation which the English of late years have been earning for love of monkish finery and open-mouthed credence of monkish fables. Perhaps in time some ecclesiastic of a rank, in the religious world, corresponding to that of Lord Beaconsfield and Mr. Gladstone in the political world, may show some grasp of the subject. The relation of our jurists to the movement is hardly so close as to warrant the hope that they will be led to such a study of it as is now manifest among the jurists of Germany. Yet no result is so much to be desired. In fact the whole question belongs much more to the jurist and the politician than to the theologian; although theological ideas are throughout employed as the motive power.

Desirable as is the control of elections and of the Press, still more desirable is that of universities, colleges, and schools, for they now bear within their bosoms the electors and lawgivers, the writers and readers who will hereafter mould statutes and determine the temper of armies as well as their

destination. The establishment throughout Europe of universities canonically instituted was, at the commencement of its career, pointed out by the *Civiltá* as a leading object in the movement it projected. When we trace with Ranke the Papal restoration which in part repaired the great revolt of the sixteenth century, we find that the greatest results of that movement were not won till after a generation or two had passed away. It was only south of the Pyrenees and the Alps that the arms of Charles V and Philip II effectually stayed the Reformation. In central Europe and in France the Bible, the school, and the Reformed Churches continued to spread long after the Council of Trent. When the two princely youths Ferdinand of Austria and Maximilian of Bavaria were still imbibing the Jesuit lessons of Ingolstadt, the memory of Alva had long been execrated in the Low Countries, and the songs of England had long thanked God for the overthrow of the Armada. At the same time imperial cities on the Danube, and castles in Austria, Styria, and Bohemia, were becoming more and more centres of the Reformed doctrine. The decisive check to the spread of that doctrine was not given till education had done its work. Education did not supply the check otherwise than by ensuring the command of the sword. The schoolmaster made the Thirty Years' War. It was the teaching of Ingolstadt that trained Ferdinand to the cool, conscientious, adroit, and unrelenting use of physical force for the greater glory of God. No sooner had the young Archduke begun to rule, than week after week, in one town or another, Styria beheld the repression of the Reformed worship, till with quiet but dreadful strength Ferdinand had shut up every heretical temple, "to the astonishment of all Germany," as Schiller naïvely says. In this manner did he kindle the flame; and at the end of thirty years the Protestantism of Austria, Bohemia, Styria, and other states was no more. This work went on till the revocation of the Edict of Nantes well nigh accomplished for France what had been completely accomplished for Austria by Ferdinand, and for Bavaria by Maximilian.

The fighting Company of Jesus now looks to a similar process for results similar in nature, but on a wider scale. Colleges and high schools are preparing young princes, nobles, and gentlemen to bear the part of leaders, one at the Court, another in the parliament and a third in the camp. Elementary schools are training the followers. All round the Catholic horizon, in the literature of the new dominion, one object looms up out of clouds of hazy words, dilates before the imagination of the devout, and

towers till others are dwarfed; and this object is the Crusade of St. Peter. Lads with old blood in their veins are learning how glorious it will be to lead a charge or to command a division in the greatest of all Crusades, for the most glorious of all restorations; and poor lads are learning how they that smite like Peter Jong will win in death the palm of the martyr.

M. Veuillot's description of the duty of governments in respect of education was terse: "To allow men to be made against this perpetual plague of revolution." To do this, governments must set aside all other moral authorities but one. The authority of parents may, indeed, determine for their children questions of diet and of dress, of calling or of fortune, but the priest is the father of the child's soul, and must determine the whole of its moral regimen. In keeping with this, the authorities of a parish or a commune, as representing the parents of a neighbourhood; a corporation, as representing the parents of a city; a legislature, as representing the parents of the whole land, can nowhere else be so effectually shut out from the realm of morals as in the school. Not, we would once more say, that the devout Ultramontane believes that by shutting them out he is loosening moral ties, for he thinks that by ensuring full scope to the sole authority, of the priest, he best defends every moral right. The object of training that union of families which we call a State, to regard itself as a union without any higher end than a material one, having in it neither divine office nor divine authority, is an object which cannot be so impressively advanced by any other means as when, at the bidding of priests, a government by law renounces control over the moral portion of the training of its own citizens, conducted under its own direction and paid for out of its own funds. The object of training the laity to own that it is not for them to have any opinion as to what, in morals or in faith, is true or false, or for them to assume any responsibility as to what is right or wrong, saving always the responsibility of fulfilling the directions of their spiritual guides, can never be more effectually promoted than when the representatives of the households of an entire community, having set up schools and provided for their maintenance, hand over to priests the power to determine whether any moral training shall be given in those schools or not, and, if any, what. When all this can be carried out in the normal manner, matters are so arranged that throughout the days of impressible youth, no authority shall be heard of, as deciding any moral question, but that of the priest of God. When circumstances prevent the normal arrangements from being carried

out, the way for them will be best prepared by whatever compromise leads the State furthest away from principles opposed to those of the Pontiff, and entangles it in what is called a practical solution wherein his principles are, if only virtually, conceded. In preparing such a solution, dangers to be shunned by his agents are anything that would practically recognize the right of parents, singly or collectively, to decide moral questions for their children independently of the priests; anything that would recognize in the laity a right of moral or religious self-direction; anything that would, in practice, show that others than Romanists have the power of uniting for moral and religious purposes; anything that would allow the Bible to be honoured as a public standard without a priest; anything that would embody the hateful and condemned principle of the equality of different denominations before the law.

Bishop Reinkens has described what is the practical effect of the training now being given to very large portions of the children in Europe. It is, he says, to fix in the mind the conviction "that Roman Catholics have a divinely guaranteed right, under certain circumstances, violently to overturn existing authorities, and the chiefs of those authorities, if they have only the power to do so, and that it is an exercise of virtue to employ all means for that end." Bishop Reinkens^[490] asserts that what formerly was regarded as a mere theory of the Curia is now its practice, namely, that, in the language of John Capestrano, the Pope "can abrogate all human rights," and that "what has the force of law is just what is pleasing to him." Even already, according to Bishop Reinkens, does the denominational instruction given in schools in Germany justify the prediction of Hefele to the effect that, for scholastic purposes, the new exaltation of the Papal power would be made the primary dogma. The bishop solemnly adds: "The divine power of the Pope over all human beings perplexes the children in the schools; they early learn to obey the Vicegerent of God against the empire and the emperor. In the superior schools, the higher scholastic clergy attend to the same thing" (p. 8).

The most urgent question appears to be, How far will the control of schools in France ultimately enable the priests to determine the destination of French armies, and how far will their partial control of schools in other countries enable them to support any movements of France, so as to sway Roman Catholic governments, and to paralyse even Protestant ones? The

enthusiastic priest strangely exaggerates the power of his order. The superficial politician no less strangely underrates it. What we at present know is, not what the clerical party will be able to accomplish, but the simple fact that the hold which it now has upon schools in France, Spain, Germany, England, and elsewhere, assures to it, in the next generation, a vast number of men trained in the doctrine of the Syllabus, and imbued with the antipathies and the hopes which, in the eye of a Jesuit, form the cardinal virtues of a soldier of God. Jesuits are often very unsuccessful in training the convictions, turning as they do many of their pupils into deadly foes. But they seldom fail to train the antipathies. Hatred of scriptural Christianity is almost invariably a ruling passion with both classes of their pupils, the Papists and the infidels. To all true disciples of the new school, the holiest of public ends will be the reconstruction of society in every country under the sky, according to the outline of the Syllabus. In pursuit of that end all means will to them be not only fair but meritorious, if adopted with a real intention to the greater glory of God. And the States of Europe have put it into the power of priests to train millions for the new school. And England has given to the effort very considerable encouragement, though doubtless that encouragement is praiseworthy in such eyes as those of the Marquis of Ripon and Lord Robert Montagu, both of whom have held high place in our department of education.

The *Stimmen aus Maria Laach* met the first mutterings of discontent with the Syllabus by saying that when those who, in pride of power, were resisting its authority, had passed away, those judgments of the Pontiff would be taught from every chair in the Catholic world. That forecast is already fulfilled. The politics of the Syllabus and the morals of teachers like Gury are now everywhere forming the clergy of the future. And very carefully are the laity being trained in the same principles, less expanded. To them the ideal of the one commonwealth, with its one pastor-king, its unity of faith, its glory of ceremonial, its divine law, and its supernatural magistracy, is made to appear as the fairest of ideals, as one, indeed, truly divine. Many brave English boys—heirs, some of them, to what once were noted Protestant names; boys whose fathers or grandfathers our great schools and noblest colleges trained up in gross ignorance of the principles that are contending for the government of the world—are now imbibing from continental priests principles and passions that will one day appear in our mess-rooms and our legislature. And what are our great schools and

colleges even now doing to prepare our youth generally to understand what the pupils of priests approve, what they condemn, and what they mean when, to innocent Englishmen, they appear to assert one thing and to deny another? Has the Papal cry for the exclusion of modern history from national universities been met by any sensible attempt to teach anything as to the elements struggling in contemporaneous history, especially the most potent ones?

In that strange literature to which the Prefects of the Pope give the name of pastorals, it is in mystic phrases often indicated that the flocks of the bellicose shepherds are to be prepared for a terrific combat. Sometimes the veil is dropped and in plain language war is spoken of as the only means of avenging the Church for her wrongs. Men called bishops in the vineyard of Jesus Christ speak of the mustering of the opposed hosts, and of the inevitable collision, covering the design of raising nation against nation, and of raising the people against their own rulers, by allusions to the fact that in the beginning the Church had to act without the kings, and that once more she will be obliged to throw herself upon the people. In Protestant countries, or in mixed ones, aged men in sacred vestments will say, without a blush, that the Pope himself would not make war. But let only a glimmer of political hope invite, and then kings and queens, ay, ex-kings and ex-queens, are applied to; and could the Pope only find bayonets, the same aged men in the same sacred vestments, and again without a blush, would be heard proving that in making war the Pope was only fulfilling a painful duty imposed upon him by his office as the Vicar of Christ! At this day Europe witnesses a stage of the movement of reconstruction, at which every cope and mitre in the Papal hierarchy covers a centre of force impelling to a general war. Every grey-headed bishop is an official promoter of a cataclysm that shall engulf all that opposes the Syllabus. Every friar schoolmaster and every quiet nun who teaches school is a trainer for future bloodshed. Even at his audiences the man of more than fourscore years old fans the flame in little children dressed as soldiers, sometimes the boys of English converts; and convert fathers flatter him by hoping that their sons will yet bear his banner, so are womanhood, childhood, and old age all fascinated by the war passion of the priest. [\[491\]](#)

We do not pretend to know how it is calculated that the great struggle is to be brought on. We should think that, confidently as its approach is foretold,

it must be doubtful to all but those whose faith rests only on the divine destiny of the Papacy. Yet many who may not believe that the Pope is about to recover Rome, and then to make Rome the capital of the world, and who do not even believe that he will succeed in bringing about a general struggle with a view to those ends, do nevertheless fully believe that he will succeed in leading forth France once more against the Italians, and that he will, in some general complication, be able to find means of unsettling other interests so as to advance his own. To this it is replied that the Jesuits who foster these hopes are poor politicians; and that is perfectly true. Yet they are skilled in intrigue, and versed in the ways of courts and of cliques. They proudly note their hold upon schools in France, their growing hold upon colleges, the zeal of General Charette and his ex-pontifical zouaves, the military preaching of Count Mun, the adhesion to the dominion of the Syllabus publicly signified by many French generals whose names are trumpeted with a joyful noise; and with special pride do they note such an incident as that which occurred at a recent examination in the great military college of St. Cyr, when, out of twenty-eight candidates for admission, no less than twenty-two came from one Jesuit college. They note the clubs and associations everywhere spreading; that of the Sacred Heart, said to number a million of members; that of Jesu-Workmen and that of Jesu-King, meant to organize in factory, workshop, and palace a company of soldiers as true to the chair of St. Peter as the central Company of Jesus. They note the numbers of the official class who believe that "moral order" is to be promoted by the priests. They note the zeal of ladies, and of the aristocracy.

Beyond those encouragements openly proclaimed, lies that mystery which, in Roman Catholic countries, envelopes all Courts. At the time when Thiers was taking counsel with Louis Philippe for the fortification of Paris, or even when Guizot was making himself the tool of the court for compassing the Spanish marriages, who would have dared to tell those statesmen that both of them would survive to see the day when the fate of France for peace or war, slipping out of the hands of an exhausted Bonaparte, would virtually fall into those of one who was then a Spanish girl in a private station, one whose very name was unknown to the people of France? To this Court element of strange uncertainty—and women and priests can weave webs around presidents as well as around emperors—is to be added the solid fact that even Frenchmen, who hate the priests and dread their politics, are not healed of the idea that it is well to have weak neighbours, so divided that, at

any time, an invasion of their territory is more a matter of excitement than of serious peril. Against all this what have we to set? Humanly speaking, only the fund of good sense and good feeling which, in spite of all appearances to the contrary, does exist among the French people to a degree far greater than they who do not know them well can realize. And beyond this, the good providence of God; for surely France is not to become a second Spain, or else to be partitioned, one or other of which lots would seem to be before her if the priests can drive her as they hope to do.

The "good Press" gloats over every prospect of a general broil of nations. The failure in 1870 of calculations as to what would occur in the Catholic portions of Germany on the breaking out of a war between France and Prussia, did not change the current of Ultramontane hope. Any great conflict, it seems to be assumed, must somehow lead to a restoration of the Pope. The poor old man has himself all along fed a belief in the certainty of that restoration. At first he seemed to emit tentative prophecies giving mystic hints of dates. Time blotted out the dates hinted at. Then came declarations more general but perhaps more impressive to the conscience of his disciples. On the second anniversary of the Roman *plébiscite*, after many promises of restoration had been long overdue, the aged high priest said to the nobles of Rome—

Yes, this change, this triumph is to come: and IT IS OF FAITH. Whether it is to come while I am living, while this poor Vicar of Jesus Christ is living, I know not. I know that it is to come. *The resurrection is to take place*, and this great impiety is to have an end (*Discorsi*, ii. p. 82).

When from the lips of the Pontiff speaking as Vicar of Jesus Christ fall the words "It is of faith," it is hard to see how the body which has now bound itself to take the faith from his lips can help accepting them as a prophecy which that body is bound to see fulfilled. And it is no insignificant proof of the portentous contents of that one dogma called Papal infallibility that so soon after it had been adopted, the creature invested by his fellow-creatures with such control over them should, in the name of the meek Prince of Peace, commit what they consider their faith to a temporal throne for a minister of the gospel.

On the very day on which the nobles received the above prophecy, the same lips told the youths of the Catholic Association that the faithful, now passing through the deep, would soon reach the further shore of the Red Sea, and would cry with Moses, "We will sing unto the Lord, for He hath triumphed gloriously: the horse and his rider hath He thrown into the sea." So were the Italians to fall, for as the *Civiltá* expresses it, "Which is of more account, the greatness of one human kingdom, or the independence and the liberty of the kingdom of God?" (X. ii. 143).

When the Pope said, The resurrection is to take place, he reflected language used in an address presented to him a few days previously, on the sad anniversary of the commencement of the "captivity," as it is called, the second time it came round. The *Piana Federation* said—

Similar in your passion to the God-man of whom You are the Vicar on earth, the second day of Your mystic burial is fulfilled, amid the confusion of society and of Your impious guards, destined, in spite of themselves, and in the day which God shall appoint, to bear testimony to Your resurrection. In the august sepulchre wherein those whom You had laden with benefits have confined You, wrapped in the sweet spices of the lamentation and the love of Your sons, You also descend into the abyss of society as now existing, and there does Your voice resound, casting down the demons of sect, and consoling those who anxious and trembling await the blessed hour when with You they are to rise again. And the third day is already commencing; but, as it was not completed for the Divine Saviour, so have we confidence that no more will it be completed for You, O Holy Father: the prayers of the blessed Virgin whom You have so greatly honoured, the prayers of the Saints, Patrons of the Church and of Rome, with those of so many souls who suffer and who weep to obtain Your liberation, your triumph, will shorten this day of utmost anguish, and God, God whom your enemies do with Satanic impiety unceasingly defy, will not permit the day to close without having witnessed the fulfilment of the devout desires of Your sons. [\[492\]](#)

Notwithstanding these promises, not only did the third "day" run its course but the sixth has set, with the Satanic guards still standing around the august sepulchre. For six years Italy has held Rome as her capital, and Pius IX has

confined himself to the Vatican, making speeches. But at this moment the hope of a general complication, and of a restoration as the effect of it, is very likely. The present obscurity of the Papacy is treated as if it were passing and light as the shadow of an April cloud on the Alban Hills. The shadow will pass and the hills will abide. Rome, for a moment the mere capital of a kingdom, is to be the capital of the world. Let but the temporal power be once restored, and then the steps to the universal theocratic monarchy can be taken both with deeper secrecy and with greater force.

Even those who most despise the political influence of the priests must own that for disturbance their power is great. Taking the sixty years which have elapsed since the peace of 1815, let us, for a moment, look at the Roman Catholic countries of Christendom, and at the non-Catholic ones, in respect of the one blessing of public repose. In those sixty years the three great Protestant powers—England, Prussia, and America—have not drawn the sword one against the other. The smaller Protestant powers have not fought among themselves. No Protestant capital has undergone a foreign occupation. With the exception of America, no Protestant State has been desolated by civil war. No Protestant army has been given to military insurrection, or has, in the day of trial, proved untrue. No Protestant sovereign has been expelled by his own people. No Protestant President of a Republic has been executed, or exiled, or condemned as a traitor. No Protestant monarchy has been changed by violence into a republic; no Protestant republic into a monarchy. If we set off as one against the other, the war of German unity which partly occurred in the one group of States, and that of Italian unity which occurred in the other group, the only case of war between Protestant States, in the two generations, has been that of Prussia and Denmark, and the only case of war between two great powers non-Catholic has been that of Russia and England, in the Crimea. But how has it been on the Papal side of the line?

No leading Catholic power can be named which has not within the sixty years made war on other Catholic powers as well as on non-Catholic ones. France has fought with Spain, with the Italians, with Austria, as well as with Russia, with Prussia, with Holland, and has even gone away to Mexico to seek a war of which the Vatican spoke as if it were a campaign of the Church. Austria has fought with Italy and with France, as well as with Prussia and with Denmark. As to the wars of Catholic States in America

with one another, they have been numerous. Rome has undergone twenty years of foreign occupation; France has undergone two; and Austria has had recourse to foreign intervention. Civil war in Portugal, civil wars in Spain, civil war in Austria, civil war repeatedly in Italy apart from the great war of unity, civil war chronically in the American Catholic States, have made that plague familiar in Roman Catholic countries. The foremost, and the least priest-ridden of them, France, has had her three days of July, her three days of February, her four darker days of June, her bloody days of December, her awful weeks of the Commune. Military insurrections properly so-called have not occurred in the great Catholic nations that refused to submit to the disciplinary decrees of the Council of Trent. But in Spain, Portugal, and the nations of America, military insurrection, that worst of anarchies, seems to have acquired a sort of prescriptive place in the Constitution. In Italy, till 1860, the armies of the princes faithful to the Papacy were largely foreign. As to conspiracies and risings, it is strange that where they have occurred out of Roman Catholic States they have often been among the Roman Catholic portion of the population; and in Roman Catholic States they have been much more frequent within the circle of countries where the decrees of Trent had been fully accepted, than in those which, by Gallican liberties, Josephine laws, or in some other form, uphold national supremacy. As to thrones in Roman Catholic countries, the difficulty is to name those which during the sixty years have not been emptied by violence; Austria and Sardinia, perhaps, exhaust the list, in both of which, however, an abdication, compelled by misfortune, has taken place. Twice has a limited monarchy, once an empire, and once a republic, been overthrown in France by revolution. As to Spain and South America, it were weary work to count up catastrophes. The discrowned princes who, like ghosts, haunt Europe, and the ex-presidents under ban who prowl in America, are nearly all Roman Catholics.

Perhaps the entire course of history does not afford an example of any contemporaneous development of four great Powers, bringing with it in the aggregate such an increase of territory, population, and strength, as that which within the sixty years since the peace of Vienna has occurred in the case of the four non-Catholic Powers, Russia, Prussia, America, and England. No corresponding development has taken place in Roman Catholic or in Moslem nations. Italy, indeed, has risen up, but only by

breaking the yoke of the Papacy, and by swimming against a sulphurous stream of anathemas.

It would be a curious and not altogether an idle speculation did some clear-headed and calm economist carefully work out the question, What would be the effect in the course of three hundred years, upon the peace of Europe, on the bulk of standing armies, on the stability of thrones, on the development of arts, sciences, laws, and morals, on the security of life and property, and on the general spread of charity, brotherhood, and virtue among men, supposing that by some unseen power the hundreds of thousands of priests, now working to bring about the dominion of the Pope over our species, could be instantly changed into simple ministers of the gospel, without a political head or a political aim, but each one seeking only to bring the wicked to repentance and to lead the godly onward, adding virtue unto virtue and grace to grace? Would the change bring France more wars and more revolutions? Would the change make the new career opened to Italy more obscure or thorny? Would the change make Austria feebler, or make Spain less united and prosperous? Would it bring a blight upon Mexico? and in South America would it make the rulers less tranquil, the people less obedient to law, and less attached to order? Would the south and west of Ireland less strongly attract capital and residence? Would Croatia be less refined? Would the island of Sardinia be less highly civilized? Would Sicily be less secure? Would the dominion of Canada be more difficult to govern? Would the city of New York and other cities of the United States in which the political power of priests is now formidable be worse ordered and more corrupt? In Hayti and St. Domingo, would public affairs be more unstable, would family life be more blameworthy?

Or conversely: What would be the effect of a change in the opposite direction? Suppose that at once every Protestant minister could be changed into a zealous priest, and that the Headship of the Pope could exert its full influence unshackled by those restraints which have hampered him ever since the Reformation—partly, indeed, ever since the large-eyed man of Lutterworth brought into existence that terrible thing the English Bible—and suppose that with all the liberty of power and all the power of liberty he could rule over the whole of Christendom as completely as he formerly ruled over his own States, what would be the practical effect? Would Scotland produce more authors, heroes, and worthies, fewer beggars,

thieves, rioters, and assassins, than she does to-day? Would England produce more good landlords, more comfortable tenants, more honest merchants, more bright men of letters and science, more deeds of Christian charity, and fewer civil wars, fewer conspiracies, fewer insurrections, fewer military revolts, fewer beggared nobles, and fewer ill-cultivated estates than she does to-day? Would Germany be more united? Would Holland, Denmark, and Sweden be more stable? Would the United States be more prosperous, more free, and more peaceable? Would the British Colonies be increasing tranquil and enlightened?

With the facts of the past, and the principles of the present which are to be the plastic forces of the future, before him, a calm and wide-minded observer, taking long stretches of time and great varieties of circumstance to illustrate any hypothesis and to test any conclusion, might form an estimate which would not be without a properly scientific value. We are often told by one class of writers that Roman Catholics are as good subjects as Protestants, and by another that in proportion to their numbers they yield a much greater amount of illiteracy, of turbulence, of pauperism, and of offences against the law. These are points which statesmen have no right to leave to theologians, and on which they have no right to remain themselves in doubt. Above all, they have no right if not in doubt about them, but if they have on sufficient grounds a clear opinion, to keep that opinion back, or to cloud it by ambiguities. Both in England and in America there are intelligent and loyal men who believe that they are more burdened and that public law and order are less well observed in proportion as priests have power over any section of the population. These are questions of fact capable of a scientific solution, and it is the duty of statesmen scientifically to solve them. If the authorities, which are clearly natural and Christian, clearly both divine and human, are undermined where priests do not rule and are built up where they do, let statesmen tell mankind that it is so. If the unnatural, the merely artificial authority of the priest is proved, on a test of ages, of various races, and of various polities, to be unfriendly rather than helpful to the stability and vigour of lawful authority, then let all incumbents of that authority—kings, presidents, nobles, lawgivers, magistrates, parents, and husbands—lift up a clear voice, the voice of intelligent conviction, and tell all men how the matter stands. "The sword of the mouth" is the only sword which ought to be drawn in this war; and if they to whom God has given real authority draw that sword against the

spurious authority of the priest, it will prevent the call which otherwise will surely come to draw a feeble sword but a bloody one. Priestcraft, mighty against artifice, subtle against force, invincible against compromise and subterfuge, is strangely weak against a calm and Christian denial of its authority.

Long since this chapter was written, we find that the Italian journals while noting the base immorality which week by week is brought to light among the priests, and pointing to their multitude and the low repute of many of them as a moral plague, now (1877) fasten upon them even more than of wont charges of exciting anarchical conspiracies. The *Emancipatore Cattolico*, the organ of what is called the Italian National Catholic Church, formed by the priests who belonged to the Society for the Emancipation and Mutual Aid of the Clergy, writes as follows—

The *red* International, in appearance with a different end and program, but in reality in full accord with its *black* sister, after the stimulus from the Vatican sets itself in motion, and lifts up its head.... We ask, Has the alliance of this double International a probability of success in a future nearer or more remote? We do not hesitate to reply affirmatively if the powers and States in the two hemispheres do not agree rather to overthrow the *black* international which is the true and efficient cause of the other, than the *red* which is the effect.... Christian governments of Europe, open your eyes! the international that truly menaces you, and that will undo you if you are not wise, is that of the Vatican. You accept it and smile upon it because you suppose it to be the conservator and champion of order and authority; but the order and the authority which it represents and champions are those of the absorption of all the social powers into the despotic and arbitrary will of a miserable mortal who believes himself to be God, and who as such imposes himself upon the entire universe. [\[493\]](#)

While these last sheets have been passing through the press, events have occurred which illustrate many of the hints contained in this chapter. Many who, when we first began to write this work, would have seen nothing "practical" in that solemn hint of Vitelleschi when, speaking of the frequent occurrence of disturbances at the same time when the Church is pressing some point upon a government, he says that the circumstance is an organic

phenomenon deserving of the most serious attention, now begin to feel that it is scarcely rational any longer to be insensible to facts which day after day rise into the view of Europe.

In March 1877, Pius IX delivered a carefully-prepared Allocution, full of bitter attacks on Italy, and manifestly intended to raise once more the Roman Question. A feverish agitation becoming speedily discernible in different countries, none could help noting the coincidence of the two events. In Italy broke out an attempt at insurrection in Benevento, professedly by socialists, but as the Italian papers believed fomented and directed by priests. This was speedily followed by a vote of the Italian Senate, by which that body threw out a Bill, that had been passed by the Lower House, for restraining ministers of religion, of all denominations, from certain abuses of their office. Italian journals of different shades intimated their impression that this event was solely due to the direct action of the Pope upon the king, and of the king upon a number of courtier senators.

Shortly afterwards the Prime Minister of France, M. Jules Simon, explained in debate, with all propriety of language, that the popular idea about the Pope being a prisoner was unfounded. The Pope, in that characteristic style which has never risen to the level even of municipal, much less of national public life, stated that a certain government had said that the Pope was a liar; and as if to rehabilitate any one who might have been so impertinent, he added that he did not know what government it was! Soon afterwards, on May 16, 1877, M. Simon was abruptly dismissed by Marshal MacMahon, and the Assembly, of which a majority supported M. Simon, was silenced by an enforced adjournment. This pale edition of a *coup d'état* was hailed and claimed by the clerical papers as a direct result of the interference of the Pope. Its ill effects in France forced upon many the reflection, how enviable is the lot of nations in which the influence of the Pontiff is feeble, and how well would it be with any nation in which that influence should be *nil*!

Strange does it seem that the prophets of reconstruction should for encouragement point more frequently to France and England than to any other countries. To France they look for military service, to England for religious converts. The one is to glorify the Church by a sacred war, the other by an edifying submission. In France they count upon the

schoolmasters, the army, the ancient aristocracy, and many of the politicians. In England they count upon that portion of the clergy which they call the Puseyite party, upon a portion of the aristocracy, upon the ceremonies in the churches, and the teaching in the denominational schools. Grossly exaggerating, as they do, the position and the influence of Cardinal Manning, and speaking at times as if the whole English hierarchy, unable to face him, were trembling and falling down before him, they also exaggerate the strides actually made by the Ritualistic party in carrying the whole nation towards submission to Rome. They boast, in the language of Dr. Newman, that the English Church is, through that party, "doing our work;" [\[494\]](#) and they always seem to have taken to heart the principle which he taught them as long ago as 1841: "Only through the English Church can you act upon the English nation."[\[495\]](#) They are not much read in our political literature, and when they meddle with it, often make strange blunders. But some of them are shrewdly aware of the services done to their cause by writers who treat Ritualism as a matter of aesthetics, and treat each particular ceremony as a trifle.

Looking back on the turns and windings of the movement for reconstruction, and remembering how little human foresight would have availed to predict either their successive phases or the results up to the present hour, it is natural to feel that as to those further turns and windings which as yet lie out of ken, hidden behind the veil of an inscrutable Providence, it is not for us presumptuously to divine. Rather would we, in humble hope, await the future, so far as to us it may be permitted to witness its unfolding. In the sixty years since the peace of Vienna the Papacy has passed through two distinct stages, of thirty years each; the one up to the beginning of the present pontificate, the other during the course of it. In the first thirty years the flag displayed was that of Liberal Catholicism. During that time the Papacy gained emancipation in England and Ireland, a footing in the schools of France and Belgium, a repute of liberality and other great advantages; while on the whole it held its ground in Italy, Spain, Austria, and the minor States. But a true instinct taught the Curia that temporary gain was preparing final ruin. Since 1849 the policy has been reversed, and the external results to the Papacy so far have been disadvantageous. "Catholic unity" has been lost in Italy, Spain, Portugal, Austria, Mexico, Brazil, and elsewhere. In Poland the losses to the Church have been

immense, whether they may be due to the persecuting policy of Russia, as the Catholic party alleges, or to the rebellious excitements of the Pope and the priests, as others allege, or to both these causes united, as seems most probable. In Switzerland and Germany the Papacy has had heavy loss, and its future is gloomy. In France it has made immense gains; in Ireland heavy loss; in England gain, and that of the kind it values most—gain by the help of the clergy, of the aristocracy, and of a great university. But still, while the population of the United Kingdom has much increased, Pius IX cannot count among the thirty millions now inhabiting it so many Roman Catholics as he found among, say, five millions less. He has to note a decrease in Poland concurrently with persecution, and one in the British Isles concurrently with extended political privileges. The Curia, if not unconscious of these losses, never confesses to them, and avers that the increased compactness gained by recent changes far more than compensates for any increased opposition, and in fact insures the overthrow of all resisting forces; while the submission of England—Queen, bishops, lords, and people—is spoken of as a thing nigh at hand to the eye of faith. Firmly, however, do we believe that in mercy to this great empire, within which dwells in peace and with ample privileges a portion of mankind larger than ever before under one sceptre enjoyed the blessings of free government, and in mercy also to the whole redeemed race in the midst of which this empire holds a place so influential and on the whole so beneficent, never will England justify the promises of submission to the Pope wherewith continental priests are wont to cheer the courage of their partisans, albeit they proudly point to men in important places, and boast how the triumph of the Vatican is being prepared under the patronage of both Church and State.

All this notwithstanding, we do not believe that the English commons are to be reduced into a populace without constitutional representation; or that the English aristocracy is to be reduced into an order of nobles without constitutional powers; or that our magistracy, from squire up to chancellor, is to be put under the bishops' courts; or that our chairs of philosophy, science, and literature are to be placed under the tutelage of chairs of theology filled by Jesuits, or by men of whom Jesuits approve; or that our universities are to be placed under Romish canon law; or that the priest, to the exclusion of the State and of the laity, is to be made as completely moral lord of all the schools in England as he is now of his denominational

schools; or that the works of our authors are to wait till a Dominican has cut out what he deems amiss, and has written on the remainder *Imprimatur*; or that our printers are to wait for a licence from the friars; or that our journals and periodicals are to be cut down to the proportions which were allowed to the Press in the Model State; or that our armies are to be composed of men so schooled that to them the word of the priest shall take the lawful command out of the lips of the king. No more do we believe that from these English shores the dear old English Bible is to be driven away as a forbidden book. Neither do we believe that for these fair fields of Britain that dark Saturday night is to come after which will no more dawn the English Sunday morning—a morning when streets thronged and country lanes enlivened with families wending their way to worship God, each as led by the voice of conscience, and each jealous for the religious liberty of its neighbours as well as for its own, present a more Christian-like and more solid display of unity in variety, and of catholicity in charity, than ever can be gained by any preciseness of constrained uniformity. Never will our own happy Sunday morning cease to shine; never instead of it will a dismal day come when the sound of the church-going bell shall be the signal of physical force, and when every one whose conscience will not let him obey the official call shall be spied out by the familiars of the Inquisition.

When priests tell Englishmen that such things as are here indicated are not really embraced within the ultimate objects of their movement, they well know that they can deceive only those who have not sought out their principles at the fountain. And under all their illusions, they must surely have some consciousness that such as have done so can feel but shame and pity when they see any man, born to the blessings of English citizenship, sinking to a moral level at which he becomes capable of attempting to move the noble power of Britain to abet the crime of once more imposing by fire and sword upon Italy the domination of the Pontiff; and who, indeed, even to that can add the second crime of endeavouring to throw back the families of this goodly realm to the same condition as that in which the people of the Papal States lay before their yoke was broken. These things would be mournful, but no more than mournful, did the guilt of them rest only upon one English soul in which still survived a clear consciousness of how repugnant they were to religion and to morals, how offensive to humanity, how subversive of good order; for when conscience still spoke, repentance might be at hand. But such things become more than sad, they become

really formidable, when conscience itself is so warped that it learns to acquit them of all guilt—learns even to regard them as actions in which the violence and bloodshed proposed are sanctioned by religion, and become works of Christian merit; and in which the changes contemplated would, if indeed hurtful to nations in things temporal, be for their eternal weal.

In this land of manifold privilege hereafter, as in the time gone by, yea, more than in the time gone by, will the people fear God, honour the king, and prize the family Bible. They will hereafter, more than heretofore, send forth into every region under heaven their happy sons, bearing the glorious gospel of the blessed God, and with swift feet running to tell to all men the way of salvation. In England, in Ireland, and in Scotland; in every place where our own blood flows in the veins of kinsmen; in every broad State of the Transatlantic Union; in every thriving colony that boasts the British name—may the Churches dwell together in unity—may the people grow in wisdom, in virtue, and in faith! May this realm hereafter afford an example of laws being evermore ameliorated under the leavening influence of the kingdom which cannot be moved, of manners ever becoming purer, and of blest contentment growing, year after year, in households over every one of which shall hover the more than earthly charm of domestic bliss, hallowed at the family altar! And may the remote descendants of Victoria and Albert reign, in the love of God and in the love of man, as Christian princes over a happy Christian people, and age after age may the throne be established in righteousness!

GOD SAVE THE QUEEN!

FOOTNOTES:

[485] See *Civiltà* VIII. i. 46.

[486] Quoted in *Le Concile du Vat. et le Mouvement Infaillibiliste*, p. 62.

[487] *Civiltà Cattolica*, passim, especially the number of December 16, 1876.

[488] VIII. i. 421.

[489] Italian papers sometimes give the total number of journals on the Continent pledged to the Pope as 580, and of these 258 as published in Germany alone.

[490] *Revolution und Kirche*, p. 5.

[491] At the last moment of reviewing this chapter, before sending it to press, months after it was written, we find Italian and French journals ringing with language ascribed to a Bishop in a pastoral, which may pass as an example of the work which the officials styled bishops are preparing for Europe. He describes his entrance into the Vatican, his finding the Swiss guards and the manners of another age, and proceeds: "Pius IX is still a king, even in the eyes of his enemies and of his spoilers. They are obliged to admit that the unity of Italy is not effected, that the temporal power is to be re-established, and that after some *profound commotions which, it may be, will entomb many an army and many a crown*, there will be heard among the nations, from one end of Europe to the other, a single cry, Restore Rome to its ancient lords; Rome belongs to the Pope, Rome belongs to God."

[492] *Discorsi*, ii. p. 70. The capitals to the "divine pronouns" are not ours.

[493] *L'Emancipatore Cattolico*: Napoli, Anno XVI, No. 14.

[494] *Apologia*, Appendix, p. 27.

[495] *Ibid.*, p. 313.

APPENDIX A

THE SYLLABUS WITH THE COUNTER PROPOSITIONS OF SCHRADER

*By reading the latter in the right-hand column the view which the Church
asserts is at once obtained*

SYLLABUS OF THE PRINCIPAL
ERRORS OF OUR TIME, WHICH

PROPOSITIONS OF FATHER SCHRADER
being in each case the logical

ARE STIGMATIZED IN THE
CONSISTORIAL ALLOCUTIONS,
ENCYCLICAL AND OTHER
APOSTOLICAL LETTERS OF
OUR MOST HOLY LORD,
POPE PIUS IX. [\[496\]](#)

contrary or *contradictory* of the propositions condemned; and therefore, being those which the Church would assert as opposed to those denied. Schrader says, "The *contradictory*, and not the *contrary*, is to be taken by the Catholic as the rule to guide his thoughts, words, and actions, as to the sense in which the several errors must be considered as being rejected, forbidden, and condemned according to the will and command of the Pope." Schrader himself, however, sometimes gives what is clearly not the *contradictory* but the *contrary*.

SECT. I.—*Pantheism, Naturalism, and Rationalism Absolute.*

SECT. I.—*Pantheism, Naturalism, Absolute Rationalism.*

(*Note of Schrader.*—Absolute rationalism is that error which holds that revelation is impossible.)

1. There exists no Divine Power, Supreme Being, Wisdom and Providence distinct from the universe, and God is none other than nature, and is therefore mutable. In effect, God is produced in man and in the world, and all things are God and have the very

1. There is one most high, all-wise, all-provident, and divine Being, distinct from this universe of things; and God is not the same as nature, and therefore not subject to change. God does not actually come into existence in men and in the world. All is not God and has not the proper essence of God. God is not one and the same with the world,

substance of God. God is, therefore, one and the same thing with the world, and thence mind is the same thing with matter, necessity with liberty, true with false, good with evil, justice with injustice.

and hence mind is not the same as matter, necessity not the same as freedom, truth not the same as falsehood, good not the same as evil, nor righteousness the same as unrighteousness.

(*Remark of Schrader.*—But God is in man and in the world, because He is omnipresent.)

2. All action of God upon man and the world is to be denied.—(All. *Maxima quidem*, June 9, 1862.)

2. All operation of God upon the world and upon man is not to be denied.

3. Human reason, without any regard to God, is the sole arbiter of truth and falsehood, of good and evil; it is its own law to itself, and suffices by its natural force to secure the welfare of men and of nations.

3. Human reason is not to be the arbiter of truth and falsehood, of good and evil, without any regard to God. It is not a law to itself; and it is not sufficient, by its native powers, to provide for the welfare of man and of nations.

4. All the truths of religion are derived from the innate strength of human reason, whence reason is the master rule by which man can and ought to arrive at the knowledge of all truths of every kind.

4. All the truths of religion do not flow from the natural force of human reason; therefore reason is not the highest rule by which men may arrive at the knowledge of truths of every kind.

5. Divine revelation is imperfect, and, therefore, subject to a continual and indefinite progress which corresponds with the progress of human reason.

6. Christian faith is in opposition to human reason, and divine revelation not only does not benefit, but even injures the perfection of man.

7. The prophecies and miracles told and narrated in the Sacred Scriptures are the fictions of poets, and the mysteries of the Christian faith are the result of philosophical investigations. In the books of the two Testaments there are contained mythical inventions, and Jesus Christ is Himself a mythical fiction.

SECT. II.—*Rationalism moderate.*

5. Divine revelation is not imperfect, and therefore is not subject to a continual and unlimited progress which would respond to the progress of human reason.

6. The Christian faith is not contradictory to human reason; and the divine revelation not only is no hindrance to human perfection, but is serviceable to it.

7. The prophecies and miracles reported and related in Holy Scripture are no inventions of poets; and the mysteries of faith are not the sum of philosophical research. In the books of the two Testaments there are no mythical inventions, and Jesus Christ Himself is not a mythical fiction.

SECT. II.—*Moderate Rationalism.*

(*Note of Schrader.*—Moderate rationalism is the error of those who do not hold revelation to be impossible, but would have it subjected to reason.)

8. As human reason is placed on a level with religion, so theological systems must be treated in the same manner as philosophical ones.

9. All the dogmas of the Christian religion are, without exception, the object of natural science or philosophy; and human reason, instructed solely by history, is able by its own natural strength and principles to arrive at the true knowledge of even the most abstruse dogmas, such dogmas being proposed as subject-matter for the reason.

10. As the philosopher is one thing and philosophy is another, so it is the right and duty of the philosopher to submit himself to the authority which he shall have recognized as true; but

8. As human reason may not be placed on a level with religion, theological studies are not to be treated exactly as philosophical ones.

9. All doctrines of the Christian religion are not, without distinction, subjects for natural science or for philosophy, and human reason cannot from its natural powers and principles arrive at the knowledge of all, even the most obscure, dogmas, if such dogmas be only proposed to reason as its object.

(Note of Author of the present work.
—In this proposition Schrader omits one clause of the original—
Historice tantum exculta. This is evidently a mere oversight. These words should come after "human reason.")

10. Although the philosopher is one thing and philosophy another, the former has not only the right and the duty to subject himself to the authority which he recognizes as true, but also philosophy itself can and must submit to authority.

philosophy neither can nor ought to submit to any authority.

11. The Church not only ought never to animadvert upon philosophy, but ought to tolerate the errors of philosophy, leaving to philosophy the care of their correction.

(Remark of Author of the present work.

—"Animadvert" is the reproduction of the original word, not the English of it. The French renders it *sévir*, to act rigorously towards; the German, *vorgehen gegen*, to proceed against; the Italian, *corregere*, to correct, making it synonymous with "correct" in the last clause. Even the maddest theorist would hardly deny to the Church the right to "animadvert upon philosophy" to her heart's content.)

12. The decrees of the Apostolic See and of the Roman Congregations fetter the free progress of science.

11. The Church must not only sometimes proceed against philosophy, but she must not tolerate the errors of philosophy itself, and must not leave it to correct itself.

(Remark of Schrader.—The Church has the right and the duty of proceeding against false philosophy. She must not tolerate the errors of this philosophy, but must expose them to it, and demand from it that it put itself into harmony with revealed truth.)

12. Decrees of the Apostolic See, and of the Roman Congregations, do not hinder the free progress of science.

(*Remark of Schrader.*—Because the Apostolic See is appointed by God Himself as the teacher and defender of the truth.)

13. The method and principles by which the old scholastic doctors cultivated theology are no longer suitable to the demands of the age and the progress of science.

13. The method and the principles according to which the old scholastic doctors pursued the study of theology completely correspond with the wants of our time and with the progress of science.

(*Remark of Schrader.*—They have been frequently quoted by the Church with the highest expressions of praise, and have been earnestly recommended as the strongest shield of faith, and as formidable armour against its enemies, and have been productive of great utility and splendour to science, and perfectly correspond with the wants of all time and the progress of science.)

14. Philosophy must be treated of without any account being taken of supernatural revelation.—(Id., *ibid.*)

14. Philosophy must not be pursued without regard to supernatural revelation.

N.B.—To the rationalistic system belong in great part the errors of Antony Günther, condemned in the letter to the Cardinal Archbishop of Cologne, *Eximiam tuam*, June 15,

N.B.—The errors of Antony Günther for the most part were connected with a system of rationalism, which errors were rejected in a brief to the Archbishop of Cologne, *Eximiam tuam*, June 15, 1847; and in the brief to the Bishop

1847; and in that to the Bishop of Breslau, *Dolore haud mediocri*, April 30, 1860.

SECT. III.—*Indifferentism*
—*Toleration*.

(*Note of Author of the present work.*—The original word is not *toleration*, but, as Schrader gives it, *latitudinarianism*.)

15. Every man is free to embrace and profess the religion he shall believe true, guided by the light of reason.

16. Men may in any religion find the way of eternal salvation, and obtain eternal salvation.

17. The eternal salvation may at least be hoped for of all those who are not at

of Breslau, *Dolore haud mediocri*, April 30, 1860.

SECT. III.—*Indifferentism and*
Latitudinarianism.

(*Note of Schrader.*—Latitudinarianism is that error which although it does not declare all religions to be alike good, yet does not hold the Catholic Church to be the only one which brings salvation.)

15. Every man is not entitled to embrace and to profess that religion which he may hold for the true one, led by the light of reason.

(*Remark of Schrader.*—But he must embrace the revealed truth in the Catholic religion.)

16. Men cannot find the way of eternal salvation, and obtain eternal blessedness, in the practice of every kind of religion.

(*Remark of Schrader.*—For it is to be held as of faith that out of the Apostolic Romish Church no one can be saved.)

17. The eternal salvation of all those who do not live in any way in the

all in the true Church of Christ.

true Church of Christ is not to be hoped for.

(*Remark of Schrader.*—But only are we to admit that they who suffer from ignorance of the true religion are not held guilty on that account before God if their ignorance be invincible.)

18. Protestantism is nothing more than another form of the same true Christian religion, in which it is possible to please God equally as in the Catholic Church.

18. Protestantism is not merely a different form of the same Christian faith; and it is not given to be equally well pleasing to God as in the Catholic Church.

(*Remark of Schrader.*— But it is a falling away from the full revealed truth.)

SECT. IV.—*Socialism, Communism, Secret Societies, Biblical Societies, Clerico-Liberal Societies.*

SECT. IV.—*Socialism, Communism, Secret Societies, Bible Societies, Liberal Clerical Associations.*

Pests of this description are frequently rebuked in the severest terms in the *Encyc. Qui pluribus*, November 9, 1846; *All. Quibus quantisque*, April 20, 1849; *Encyc. Noscitis et nobiscum*, December 8 1849; *All. Singulari quadam*, December 9,

(*Note of Schrader.*—Liberal Catholic associations mean associations of Italian priests who are enthusiastic for a free Church in a free State. Such pests have often, and in the severest words, been condemned, as in the *Epist. Encycl. Qui pluribus*, Nov. 9, 1846; in *Alloc. Quibus quantisque*, April 20, 1849; in *Epist. Encycl. Noscitis et*

1854; Encycl. *Quanto conficiamur mærore*, August 10, 1863.

SECT. V.—*Errors concerning the Church and her Rights.*

19. The Church is not a true and perfect and entirely free association: she does not enjoy peculiar and perpetual rights conferred upon her by her Divine Founder, but it appertains to the civil power to define what are the rights and limits within which the Church may exercise authority.

20. The ecclesiastical power must not exercise its authority without the toleration and assent of the civil government.

21. The Church has not the power of defining dogmatically that the religion of the Catholic Church is the only true religion.

22. The obligation which binds Catholic teachers and authors applies only to

nobiscum, Dec. 8, 1849; in Alloc. *Singulari quadam*, Dec. 9, 1854; in Epist. Encycl. *Quanto conficiamur mærore*, Aug. 10, 1863.)

SECT. V.—*Errors respecting the Church and her Rights.*

19. The Church is a true and perfect society, entirely free, and possesses her proper and permanent rights granted to her by her divine Founder, and it does not belong to the State to define what are the rights of the Church, and what are the limits within which she can exercise them.

20. The Church may use her authority without the permission or consent of the State.

21. The Church has the power dogmatically to decide that the religion of the Catholic Church is the only true religion.

22. The obligation which completely binds Catholic teachers and authors must not be limited only to subjects

those things which are proposed for universal belief as dogmas of the faith by the infallible judgment of the Church.

23. The Roman Pontiffs and Œcumenical Councils have exceeded the limits of their power, have usurped the rights of princes, and have even committed errors in defining matters of faith and morals.

24. The Church has not the power of availing herself of force or of any direct or indirect temporal power.

25. In addition to the authority inherent in the Episcopate, further temporal power is granted to it by the civil authority either expressly or tacitly, which power is on that account also revocable by the civil authority whenever it pleases.

26. The Church has not the natural and legitimate right

which are propounded to all, to be believed as articles of faith by an infallible utterance of the Church.

23. The Pope of Rome and the General Councils have not exceeded the limits of their power. They have not usurped the rights of princes, and in defining doctrines of faith and morals they have not erred.

24. The Church has the power to use external force. She has also a direct and an indirect temporal power.

(Remark of Schrader.—Not minds merely are subject to the power of the Church.)

25. Beyond the power inherent in the Episcopate no other temporal power has been conceded to it by the State either expressly or tacitly, and therefore not any power which the government of the State can at its pleasure withdraw.

26. The Church has an innate and legitimate right of acquisition and

of acquisition and possession.

27. The ministers of the Church and the Roman Pontiff ought to be absolutely excluded from all charge and dominion over temporal affairs.

28. Bishops have not the right of promulgating even their apostolical letters without the sanction of the government.

(Remark of Author of the present work.—Apostolic Letters mean Papal not episcopal manifestoes; therefore the expression "their apostolic letters" is not clear, and is not in the Latin.)

29. Dispensations granted by the Roman Pontiff must be considered null, unless they have been requested by the civil government.

30. The immunity of the Church and of ecclesiastical persons derives its origin from civil law.

possession.

27. The ordained servants of the Church and the Roman Pontiff are by no means to be excluded from all control and dominion over temporal affairs.

28. Bishops themselves may publish apostolical letters without permission of the government of the State.

29. Graces granted by the Pope are not to be regarded as invalid if they are not requested by the government of the State.

30. The immunity of the Church and of ecclesiastical persons has not its origin in civil law.

(Remark of Schrader.—But has its root in the proper rights of the

Church granted her by God.)

31. Ecclesiastical jurisdiction for the temporal causes, whether civil or criminal, of the clergy, ought by all means to be abolished even without the concurrence and against the protest of the Holy See.

31. Spiritual jurisdiction for temporal causes of the clergy, both civil and criminal, is not, by any means, to be abolished, and not without consulting the Apostolic See or against its protest.

(Remark of Schrader.—For it is founded in the proper right of the Church, and can be handed over to the temporal tribunals only through the express consent of the Pope.)

32. The personal immunity exonerating the clergy from military service may be abolished without violation either of natural right or of equity. Its abolition is called for by civil progress, especially in a community constituted upon principles of liberal government.

32. The abolition of the exemption of the clergy and students for the priesthood from military service cannot take place without a violation of natural right and of justice; and the progress of the State does not demand its abolition, especially in a State which is constituted with a free government.

*(Note of Author of the present work.—Most English translations make this apply not to students for the priesthood, but only to the clergy. The word in the original is not *clerus*, but *clericus*, which*

(Remark of Schrader.—The abolition of the personal exemption of from military service violates not only natural right and justice, but also the rights of the Church. The progress of the State does not only not demand it, but is opposed to it; and the more freely a society is

certainly in Rome means not only clergyman, but also one in training for the clerical office.)

33. It does not appertain exclusively to ecclesiastical jurisdiction by any right proper and inherent, to direct the teaching of theological subjects.

34. The doctrine of those who compare the Sovereign Pontiff to a free sovereignty acting in the Universal Church is a doctrine which prevailed in the middle ages only.

35. There would be no obstacle to the sentence of a General Council or the act of all the universal peoples transferring the pontifical sovereignty from the Bishop and city of Rome to some other bishopric and some other city.

constituted, so much the more must it respect the personal exemption of the clergy and the student for the priesthood from the military service.)

33. It belongs exclusively to the power of ecclesiastical jurisdiction, and that of proper and innate right, to control theological studies.

34. The doctrine which compares the Roman Pontiff to a free prince employing his own power in the Church, is not a doctrine which prevailed only in the middle ages.

(Remark of Schrader.—But is one which corresponds with the constitution of the Church, and therefore must prevail in all times.)

35. There are grounds which forbid that either through the decisions of a General Council or the act of all nations the pontificate should be withdrawn from the Bishop of Rome, and handed over to another bishop or another city.

(Remark of Schrader.—Neither through the decision of a General Council, nor through the deed of all nations, can it be overthrown that the pontificate is given to the Bishop of Rome and to the city of Rome.)

36. The definition of a National Council does not admit of any subsequent discussion, and the civil power can settle an affair as decided by such National Council.

36. The decision of a National Council does admit of further discussion; and the government of a State cannot submit any matter to this decision.

(Remark of Schrader.—The decision of a National Council requires in order to its validity the consent and confirmation of the Holy See; and the government of the State cannot appeal to the decision of a National Council as the ultimate tribunal, but must appeal to that of the See of Rome.)

37. National Churches can be established after being withdrawn and separated from the authority of the Roman Pontiff.

37. No National Churches can be erected which are withdrawn from the authority of the Pope of Rome, and fully separated from him.

(Remark of Schrader.—National Churches which are withdrawn from the authority of the Pope of Rome, and fully separated from him, cannot be set up; because that is no less than rending and breaking up the unity of the Catholic Church, and

because the power and manner of this unity imperatively require that as the members are connected with the head, so all believers upon earth must be united with, and joined to, the Roman Pontiff, who is the viceregent of Christ upon earth.)

38. Many Roman Pontiffs have, by their too arbitrary conduct, contributed to the division of the Church into Eastern and Western.

38. The excessive and arbitrary acts of the Roman Pontiffs have had no part in bringing about the division of the Church into Eastern and Western.

SECT. VI.—*Errors about Civil Society, considered both in itself and in its relation to the Church.*

SECT. VI.—*Errors relating to Civil Society, both in itself and in its relations with the Church.*

39. The State is the origin and source of all rights, and possesses rights which are not circumscribed by any limits.

39. The State does not possess as the origin and fountain of all rights an unbounded right.

(*Remark of Schrader.*—The State is not the origin and fountain of all rights, and hence does not possess any unbounded right.)

40. The teaching of the Catholic Church is opposed to the wellbeing and interests of society.

40. The doctrine of the Catholic Church is not contrary to the welfare and advantage of human society.

(*Remark of Schrader.*—But even helpful to it.)

41. The civil government, even when exercised by an infidel sovereign, possesses an indirect and negative power over religious affairs. It therefore possesses not only the right called that of *exequatur*, but also that of the (so-called) *appellatio ab abusu*. [*"Appel comme d'abus."*]

42. In the case of conflicting laws between the two powers, the civil law ought to prevail.

43. The lay power has the authority to rescind, declare, and render null solemn conventions or *concordats* relating to the use of rights appertaining to ecclesiastical immunity, without the consent of the Apostolic See, and even in spite of its protests.

(Note of Author of the present work.—It is noteworthy that while in Rome the doctrine of concordats, as taught by Tarquini and in the pages of the Civiltá, was that they were not bipartite treaties, but laws issued by

41. The State has not a direct and positive nor an indirect and negative right in religious things, and still less when its power is wielded by an unbelieving prince. It has neither the right of *exequatur* nor the right of *appellatio* which is called *ab abusu*.

42. In case of conflict between the laws of the two powers, the temporal law does not prevail.

43. The temporal authority has not the power to revoke solemn treaties commonly called concordats, which have been made with the Holy See in respect to the exercise of the rights of ecclesiastical immunity without its consent or against its opposition, nor the right to declare or make them void.

the Pontiff at the instance of the temporal prince, in Austria and Germany, Schrader and Bishop Martin (see his *Katechismus des Kirchenrechts*), in order to uphold concordats, taught that they were solemn treaties.)

44. The civil authority may interfere in matters related to religion, morality, and spiritual government, whence it has control over the instructions for the guidance of consciences issued, conformably with their mission, by the pastors of the Church. Further, it possesses power to decree in the matter of administering the Divine Sacraments and as to the dispositions necessary for their reception.

45. The entire direction of public schools in which the youth of Christian States are educated, except (to a certain extent) in the case of episcopal seminaries, may and must appertain to the civil power, and belong to it so far that no other authority

44. The authority of the State cannot interfere in matters of religion or morals, or of spiritual government. It cannot therefore judge of the admonitions which chief pastors of the Church in pursuance of their office issue as a rule for the guidance of consciences. Also it cannot decide upon the administration of the Holy Sacraments nor the dispositions necessary to their reception of them.

45. The entire direction of public schools in which the youth of a Christian State are educated, excepting episcopal seminaries in some particulars, cannot and must not be given to the State, even so that no right of any other authority to interfere in the discipline of the school, in the arrangement of studies, in the conferring of degrees,

whatsoever shall be recognized as having any right to interfere in the discipline of the schools, the arrangement of the studies, the taking of degrees, or the choice and approval of the teachers.

or in the choice and approval of teachers can be recognized.

(*Remark of Schrader.*—The supreme direction of public schools in which the youth of a Christian State are educated *pertains to the Church*. It is her duty to watch over all public and private schools, so that in the entire school system, but especially in what relates to religion, teachers may be appointed and books may be employed which shall be free from every suspicion of error; and that thus masters and mistresses of the most approved rectitude may be chosen for the schools of the children and youth in the earliest years. The Church would act against the commands of her Divine Founder, and would be unfaithful to her most important duty committed to her by God, to care for the salvation of the souls of all men, if she gave up or interrupted her wholesome ruling influence over the primary schools, and she would be compelled to warn all believers and to declare to them that schools out of which the authority of the Church is driven, are schools hostile to the

Church, and cannot be attended with good conscience.)

46. Further, even in clerical seminaries, the mode of study to be adopted must be submitted to the civil authority.

46. The direction of studies in clerical seminaries is in no way in the hands of the State authority.

47. The best theory of civil society requires that popular schools open to the children of all classes, and, generally, all public institutes intended for the instruction in letters and philosophy and for conducting the education of the young, should be freed from all ecclesiastical authority, government, and interference, and should be completely subjected to the civil and political power in conformity with the will of rulers and the prevalent opinions of the age.

47. The best mode of regulating a State does not demand that the national schools, which are open to all classes of the community, and generally public institutions destined for the higher scientific instruction, and the education of youth, should be withdrawn from all ecclesiastical authority, and completely handed over to the direction of the temporal and political authority, and should be conducted according to the pleasure of the government and the standard of current opinion.

(Remark of Schrader.—Such a corrupting method of instruction separated from the Catholic faith and the influence of the Church already exists, and is of great disadvantage to individuals and society in respect to learned and scientific instruction, and to the

education of youth in public schools and institutions destined for the higher classes of society. But still greater evils and disadvantages spring out of this method if it is introduced into the national schools; and all efforts and attempts to exclude the influence of the Church from national schools emanate from a spirit extremely hostile to the Church, as from all the efforts to extinguish the light of our most holy faith among the people.)

48. This system of instructing youth, which consists in separating it from the Catholic faith and from the power of the Church, and in teaching it exclusively the knowledge of natural things and the earthly ends of social life alone, may be perfectly approved by Catholics.

48. Catholic men cannot put up with a kind of education of youth which is entirely separated from the Catholic faith and the authority of the Church, and which keeps exclusively in view the knowledge of natural things and the ends of earthly social life as the great object.

(Remark of Schrader.—An instruction of youth which imparts only the knowledge of natural things, and keeps in view only the ends of earthly social life, cannot lead youths to necessary salvation, but must draw them away from it.)

49. The civil power is entitled to prevent ministers of religion and the faithful from

49. The State authority is not allowed to hinder bishops and believers from holding free

communicating freely and mutually with each other and with the Roman Pontiff.

50. The lay authority possesses as inherent in itself the right of presenting bishops, and may require of them that they take possession of their dioceses before having received canonical institution and the apostolical letters of the Holy See.

51. And, further, the lay government has the right of deposing bishops from their pastoral functions, and is not bound to obey the Roman Pontiff in those things which relate to bishops' sees and the institution of bishops

52. The government has of itself the right to alter the age prescribed by the Church for the religious profession both of men and women; and may enjoin upon all religious establishments to admit no person to take solemn vows without its permission.

communication with the See of Rome.

50. The temporal authority has not the right of itself to present bishops, and cannot demand of them that they shall enter upon the administration of their dioceses before they have received canonical institution and the apostolic letters from the Holy See.

51. The temporal government has not the right to withdraw from bishops the exercise of their pastoral office, and it is bound in whatever relates to the episcopate and the appointment of bishops to obey the Pope of Rome.

52. The government cannot of its own right alter the age prescribed by the Church for the taking of vows, whether by men or by women. Nor can it forbid religious orders to admit any one to the taking of vows without its permission.

53. The laws for the protection of religious establishments and securing their rights and duties ought to be abolished; nay, more, the civil government may lend its assistance to all who desire to quit the religious life which they have undertaken, and to break their vows. The government may also extinguish religious orders, collegiate churches, and simple benefices, even those belonging to private patronage, and submit their goods and revenues to the administration and disposal of the civil power.

53. Those laws may not be abolished which relate to the protection of religious orders, and to their rights and duties; and the government of the State cannot grant support to all who forsake their chosen condition in any order, and wish to break their solemn vows. Also it cannot abolish houses belonging to the orders, the collegiate churches, or their endowments, even when they are subject to a right of patronage, and cannot hand over their property to the administration and discretion of the State.

*(Remark of Schrader.—*Those laws which relate to the protection of religious orders, to their rights and to their duties, must not be abolished, but every government must far rather grant protection to the religious orders. If the government of the State grants support to those who forsake their chosen condition in any order, and wish to break their solemn vows, it acts against the spirit and the will of the Church. If they do away with the houses of the orders, their collegiate

churches, or private endowments, even though they are subject to rights of patronage, and if they hand over their property to the administration and discretion of the State, they thereby rob the Church of her legitimate property, and they fall under the greater excommunication, as also under the other censures and pains which have been established by the Apostolic Constitutions, the Holy Canons, and the Decrees of General Councils, in particular of the Council of Trent. Sec. 22, cap, ii., against the violators and desecrators, and against the usurpers of the rights of the Apostolic See.)

54. Kings and princes are not only exempt from the jurisdiction of the Church, but are superior to the Church in litigated questions of jurisdiction.

54. Kings and princes are neither excluded from the jurisdiction of the Church, nor do they stand higher than the Church in determining questions of jurisdiction.

(Remark of Schrader.—But as members of the Church they are subject to the decision of the pastors, and especially of the chief pastors. Princes should much rather remember that the kingly power has not been delivered to them only for the government of the world, but especially for the protection of the Church, and what is done by them for the welfare of the Church is done for their kingdom and for its peace.)

55. The Church ought to be separated from the State, and State from the Church.

SECT. VII.—*Errors concerning Natural and Christian Ethics.*

56. Moral laws do not stand in need of the divine sanction, and there is no necessity that human laws should be conformable to the law of nature and receive their sanction from God.

57. Knowledge of philosophical things, and morals, and civil laws, may, and must be, independent of divine and ecclesiastical authority.

58. No other forces are to be recognized except those which reside in matter, and all moral teaching and moral excellence ought to be made to consist in the accumulation and increase of riches by every possible means, and in the enjoyment of pleasure.

55. The Church is neither to be separated from the State, nor the State from the Church.

SECT. VII.—*Errors relating to Natural and Christian Ethics.*

56. Moral laws need a divine sanction, and it is necessary that human laws should be brought into accord with natural right, and should receive their binding force from God.

57. Philosophy and philosophical ethics, as well as civil laws, should not and must not deviate from divine revelation, and from the authority of the Church.

58. Other powers are to be acknowledged besides those found in matter, and the discipline and comeliness of manners should not be placed in the accumulation and multiplication of riches of every kind, and in the enjoyment of pleasures.

(*Remark of Schrader.*—There are other powers to acknowledge,

belonging to a higher mental order than those which are found in matter, and also morality and propriety is destroyed in the mere accumulation and multiplication of riches, and the indulgence of evil lusts according to the words of the Scripture—"If ye live after the flesh ye shall die, but if ye through the spirit do mortify the deeds of the body ye shall live.")

59. Right consists in the material fact. All human duties are vain words, and all human acts have the force of right.

59. Right does not consist in the material fact. The duties of men are no empty name, and all human facts have not the force of right.

60. Authority is nothing else but the result of numerical superiority and material force.

60. Authority is something more than numbers and the sum of material forces.

(Remark of Schrader.—Otherwise fools would form the highest authority, for it is said of them in the Scripture that their number is infinite.)

61. An unjust act being successful inflicts no injury upon the sanctity of right.

61. Unrighteousness, even when attended by good fortune, tarnishes the sacredness of right.

62. The principle of non-intervention ought to be proclaimed and adhered to.

62. The so-called principle of non-intervention is not to be proclaimed and not to be observed.

(Remark of Schrader.—For it is a fatal principle, and opposed to the spirit of love and order.)

63. It is allowable to refuse obedience to legitimate princes; nay more, to rise in insurrection against them.

63. Obedience must not be denied to legitimate princes, much less must they be rebelled against.

(Remark of Schrader.—For it is written, "Be subject to every human creature for God's sake; whether to the king, who is the highest, or to his lieutenants as such, who are appointed by him;" and he who sets himself against the ruler with force, he resists the ordinance of God, and they that resist shall receive condemnation.)

64. The violation of a solemn oath, nay, any wicked and flagitious action repugnant to the eternal law, is not only not blameable, but quite lawful, and worthy of the highest praise when done for the love of one's country.

64. The breach of every oath and every godless and shameful action in contradiction to the eternal laws are not only worthy of condemnation, but also are eternally to be reprobated, and are not praiseworthy even when they are done out of love to one's native country.

(Remark of Schrader.—But by such criminal and perverted reasonings all propriety, virtue, and righteousness are entirely destroyed, and the evil conduct of the thief and assassin is defended and

recommended with unheard-of impudence.)

SECT. VIII.—*Errors concerning Christian Marriage.*

65. It cannot be by any means tolerated to maintain that Christ has raised marriage to the dignity of a sacrament.

66. The sacrament of marriage is only an adjunct of the contract and separable from it, the sacrament itself only consists in the nuptial benediction.

67. By the law of nature the marriage tie is not indissoluble, and in many cases divorce, properly so called, may be pronounced by the civil authority.

SECT. VIII.—*Errors relating to Christian Marriage.*

65. It is not to be in any way denied that Christ has elevated marriage to the dignity of a sacrament.

(*Remark of Schrader.*—Many proofs can be brought forward that Christ did elevate marriage to the dignity of a sacrament.)

66. The sacrament of marriage is not something simply accessory to the contract, and to be separated from it, and the sacrament does not lie simply and only in the benediction of the marriage.

67. By natural law the marriage bond is indissoluble, and in no case can divorce in the proper sense be legally pronounced by the temporal authority.

(*Remark of Schrader.*—Christian marriage is truly and properly one of the seven sacraments of the evangelical law, instituted by Christ the Lord. Therefore it belongs altogether to the ecclesiastical

authority to decide upon anything which in any way regards marriage.)

68. The Church has not the power of laying down what are diriment impediments to marriage. The civil authority does possess such a power, and can abolish impediments that may exist to marriage.

68. The Church has the authority to set up impediments invalidating marriage, but this does not belong to the temporal power, neither does it belong to the latter to annul impediments already existing.

69. In the later ages, the Church, when she laid down certain impediments as diriment to marriage, did so not of her own authority, but by a right borrowed from the civil power.

69. The Church has not only in later centuries begun to set up impediments invalidating marriage, and she has done so out of her own rights, and not out of rights lent to her by the temporal authority.

70. The canons of the Council of Trent, which pronounce censure of anathema against those who deny the Church the right of laying down what are diriment impediments, either are not dogmatic, or must be understood as referring to such borrowed power.

70. The canons of the Council of Trent which pronounce an anathema upon those who dare to deny the right of the Church to set up impediments invalidating marriage are dogmatic in their nature, and are not to be understood as of a borrowed power.

71. The form of solemnizing marriage prescribed by the said Council, under penalty of nullity, does not bind in

71. The Tridentine form is binding under penalty of invalidity, even where the law of the State has prescribed another form and makes

cases where the civil law has appointed another form, and decrees that this new form shall effectuate a valid marriage.

the validity of marriage dependent upon it.

(Remark of Schrader.—The State law is invalid.)

72. Boniface VIII. is the first who declared that the vow of chastity pronounced at Ordination annuls marriage.

72. Boniface VIII. has not been the first to declare that a vow of chastity taken in ordination renders marriage null.

73. A merely civil contract may among Christians constitute a true marriage, and it is false either that the marriage contract between Christians must always be a sacrament, or that the contract is null if the sacrament be excluded.

73. No true marriage can exist between Christians by force of a civil contract, and it is true that either the contract of marriage between Christians is always a sacrament, or that the contract is null if the sacrament has been excluded.

(Remark of Schrader.—And thus, therefore, every connection entered upon between man and woman among Christians, by virtue of a civil law, and without the sacrament, is nothing else than a shameful and corrupt concubinage condemned by the Church. Therefore the marriage tie can never be separated from the sacrament.)

74. Matrimonial causes and espousals belong by

74. Matrimonial causes and causes arising from betrothals, from their

their nature to civil jurisdiction.

N.B.—Two other errors may tend in this direction upon the abolition of the celibacy of priests and the preference due to the state of marriage over that of virginity. These have been refuted; the first in the Encyclical *Qui pluribus*, November 9, 1846; the second in the Letters Apostolical *Multiplices inter*, June 10, 1851.

SECT. IX.—*Errors regarding the Civil Power of the Sovereign.*

75. The children of the Christian and Catholic Church are not agreed upon the compatibility of the temporal with the spiritual power.

76. The abolition of the temporal power of which the Apostolic See is possessed would contribute in the greatest degree to the liberty and prosperity of the Church.

nature do not belong to the temporal jurisdiction.

SECT. IX.—*Errors relating to the Temporal Principality of the Roman Pontiff.*

75. There is no contention among the sons of the Christian and Catholic Church in regard to the compatibility of the temporal dominion with the spiritual.

(*Remark of Schrader.*—Because they are persuaded of it.)

76. The abolition of the temporal dominion possessed by the Apostolic See would not at all contribute to the freedom and to the happiness of the Church.

(*Remark of Schrader.*—The happiness and the welfare of the Church will be much more compromised, if not annihilated, since it is through a special decree of Divine Providence that after the division of the Roman Empire into several kingdoms and various territories, the Roman Pontiff, to whom the government and care of the whole Church is entrusted by the Lord Christ, received the temporal power, certainly for this reason, that he might possess that entire freedom for the government of the Church, and the preservation of her unity which is demanded for the fulfilment of his high apostolic functions.)

N.B.—Besides these errors, explicitly noted, very many others are rebuked by the certain doctrine which all Catholics are bound most firmly to hold touching the temporal sovereignty of the Roman Pontiff. These doctrines are clearly stated in the Allocutions *Quantis quantumque*, April 20, 1849, and "*Si semper antea*", May 20, 1850; Letters Apost. *Quam Cattolica Ecclesia*, March 26, 1860; Allocutions

N.B.—Besides these expressly stated errors, many are implicitly rejected, through the statement and assertion of the doctrine which Catholics must hold with respect to the temporal dominion of the Pope of Rome. This doctrine is clearly set forth in the Allocutions of April 20, 1849; May 20, 1850; in the Letters Apostolic of September 28, 1860; March 18, 1861; and June 9, 1862.

Novos, September 28, 1860; *Jamdudum*, March 18, 1861, and *Maxima quidem*, June 9, 1862.

SECT. X.—*Errors having reference to Modern Liberalism.*

77. In the present day it is no longer necessary that the Catholic religion shall be held as the only religion of the State, to the exclusion of all other modes of worship.

78. Whence it has been wisely provided by the law, in some countries called Catholic, that

SECT. X.—*Errors relating to Modern Liberalism.*

77. In our time, it is still essential that the Catholic religion should be held as the only State religion, to the exclusion of all other forms of religion.

(*Remarks of Schrader.*—The Pope also demands in those States in which only Catholics reside, the domination of the Catholic religion alone, to the exclusion of every other form of religion, and therefore has he in the Allocution of July 26, 1856, reclaimed against the violation of the first article of the Spanish Concordat; in which the exclusive dominion of the Catholic religion in Spain had been stipulated; and he rejected the law by which freedom of worship had been introduced, and declared it for null and void.)

78. Therefore it was not well that in certain Catholic lands immigrants should be guaranteed the free exercise of their religion.

persons coming to reside therein shall enjoy the free exercise of their own worship.

79. Moreover it is false that the civil liberty of every mode of worship and the full power given to all of overtly and publicly manifesting their opinions and their ideas conduce more easily to corrupt the morals and minds of the people, and to the propagation of the pest of indifferentism.

80. The Roman Pontiff can and ought to reconcile

79. It is true that freedom of worship granted by the States, and permission given to every one to publish all manner of opinions and views, leads easily to the corruption of manners and of sentiments among the nations, and to the diffusion of the bane of indifference.

(Remark of Schrader.—Through the unbridled freedom of thought, speech and writing morals are deeply sunken, says Pius IX in his Encyclical of November 9, 1864. The holy religion has fallen into contempt, and the majesty of divine worship is despised; the authority of the Apostolic See attacked, and the authority of the Church contested and laden with shameful fetters. The rights of bishops are trampled under foot, the holiness of marriage is violated, every authority of government is shaken, and thus many other damages arise both to Church and State.)

80. The Roman Pontiff cannot be reconciled to modern civilization

himself to, and agree with, progress, liberalism, and modern civilization.

and progress, or compromise with them.

(*Remark of Schrader.*—For those who defend the righteousness and the rights of our holy religion do rightfully demand that the unchangeable and immovable principles of eternal righteousness shall be observed entire and unimpaired, and that the power of our salutary and divine religion shall be upheld. The faithful shall be led in the sure way of salvation, and not upon the downward road of destruction. The Holy See is the highest support, protector, and pastor of the faithful. Therefore it cannot connect itself with liberalism, and with modern civilization, without the most serious violation of conscience, and without the greatest universal scandal.)

FOOTNOTES:

[496] To give a translation from a Catholic source we use one issued at the office of the *Weekly Register*.

APPENDIX B

RELATION OF THE CHURCH TO THE BAPTIZED, AND ESPECIALLY TO HERETICS

The following passages from the standard work of Phillips indicate the tenets of Rome on this subject, in the more moderate aspect of their recent phases. They are all found in the *second* volume of the *Kirchenrecht*, and we give the page with each separate citation—

P. 435. "By virtue of the supreme powers given to her, the Church has indeed a dominion over those who are without [not baptized]; but over these she does not give sentence in the same sense as over those who through the door of baptism have entered into the Church, and who through this sacrament have received the indelible token of membership in the kingdom of Christ. These latter have in baptism sworn the oath of allegiance; they have sworn *Fidelitas* and *Homagium*, the oath of personal believing fidelity [*fidelitas*] and that of the vassal (*Lehnseid*), of true and active service with the talents which have been granted to them in fee (*Zu Lehen*)."

P. 436. "No one is exempt from this obedience—all are confided to the Church to be guided and brought up for heaven; for all, therefore, without exception, is the Church an authority instituted by God. The possibility of attaining to his highest end, that of glorifying God, which man through disobedience had lost, Christ has given back to him again; but this end can be attained only in the way of obedience. Disobedience against the divine Word, the *rejecting or doubting even of a single one of the divine truths announced by the Church*, puts the individual human being again in the way of perdition, on which our first parents entered to their own ruin and that of their posterity, when they, instead of believing the simply and clearly announced Word, chose another exposition of the same, which was more agreeable to them."

P. 438. "Hence in particular must they grievously offend God who either directly put away from them the faith of the Church, or else accept it only in so far as it appears to them correct according to the selection [out of her tenets] which they have made; or, again, who so break the bond of the unity of the Church as to declare themselves loose from obedience to the lawful authority which in her has been set over them by God. Thus are we led to speak of the three ecclesiastical crimes—apostasy, heresy, and schism."

P. 440. "As to apostasy, which is the total rejection of the Christian faith, and the falling away into Judaism, or heathenism, or Islamism, it is here only to be remarked that in the view of the Church it is as the crime of insulting the majesty of God. The apostate must be compelled to return to the Church by force, and a milder judgment may be pronounced upon him only in the case of one who was compelled to deny his faith by the unbelievers."

P. 441. "In opposition to the entire rejection of the Christian faith, heresy implies the wilful selection of a number from out of the dogmas of the Church which are to be believed by men in all their fulness, and the restricting of faith to such selected doctrines as the man still adheres to; in general to this is added the acceptance of false articles of faith. In this wider sense, all those are called heretics who accept only particular doctrines of the Church; but we must distinguish between such. We must part off error from heresy. Any man may fall into error, with regard to one or another doctrine of the Church, against his own will, out of simplicity, or from want of instruction, or because he has received wrong instruction. Such an error of the understanding is called 'material heresy'; but proper heresy, which is called 'formal heresy,' has its seat in the will. The latter consists in this, that to error is added obstinacy of the will, which is disinclined to depart from it. If any one announces a doctrine and then learns that the Church teaches otherwise, thus discovering that he was in error, he does not fall into heresy if he only ceases to defend the doctrine which he has set forth, and submits himself to the teaching of the Church. On the other hand, one who does know that the Church teaches otherwise, and still affirms that something is an article of belief which is not so, or, contrariwise, that something is not an article of belief which is so, doing this in spite of the fact that the Church has delivered the truth upon the subject, he by so doing haughtily prefers his own judgment to that of the Church; and through this obstinacy, the characteristic mark of heresy, he becomes a heretic in the strict sense of the word.

"It is not necessary to heresy that the person shall, as a heresiarch, found a new sect, or that, by free choice, he shall go over to a sect condemned by the Church; but heresy is already present whenever any one in the bosom of the Catholic Church departs from only one single point of the faith, or understands one single passage of Holy Scripture otherwise than as the

Church, with the assistance of the Holy Ghost, expounds them. For so great is the importance of heresy that through want of faith even on one point, the proper foundation of faith itself is destroyed, so that he that makes himself guilty with regard to one dogma, becomes at the same time guilty as to every dogma of the Church. Thus not only is he who rejects one of the articles defined by the Church a heretic, but also he who after such a definition maintains that the point is still doubtful."

P. 445. "The Church prays for the return of her separated members, and she is entitled to proceed to compulsion by virtue of the jurisdiction over heretics as baptized persons which belongs to her; but she uses, by prayer and by the instruction which is permitted to all, the only means by which she can now enter into communication with them, at least as relations at present stand.

"She may, indeed, tolerate the heathen, because they err through ignorance; she may tolerate the Jews as witnesses for the truth; but she cannot tolerate heresy, because this shakes the foundation of the entire faith. The synagogue makes way for the Church as a dutiful handmaid, bringing her the Holy Scriptures. Heresy, however, lifts itself up as a mistress above the Church, discredits her utterly, sets itself to judge over her, and would condemn her out of Holy Scripture according to its self-chosen exposition, closing her mouth like that of Christ. It commences with the divine Word, but it treats that word like a lyre, from which every one at pleasure, may draw whatever note will suit him.

"The Church pardons error, but she cannot subject herself to the obstinately erring will, but must destroy its dominion and its tyranny. She, as the teacher of the truth, cannot conclude a peace with such a will. She cannot lift it up to the throne beside her, she cannot share her dominion with it. Understood in its proper and true signification, heresy is a frightful crime. Do the heathen blaspheme God out of ignorance? Heresy tears truth to pieces consciously. Did the Jews crucify Christ according to the flesh? Heresy fastens the Church, His mystical body, to the cross. Therefore the Church cannot at all tolerate heresy, because the greatest danger of seduction is attached to it. The Christian can easily shun the heathen and the Jew, but not the Christian who by the baptismal vow is connected with him, but by heresy is separated from him.

"On these grounds is explained the complete intolerance which the Church, in all her laws, and especially in the *Bulla Cæna*, has manifested against heresy. Hence are explained the certainly hard-sounding expressions with which she speaks of heresy. Hence the punishments against heretics, the delivering up of the same to the temporal arm, and the calling upon temporal princes by law and by arms to come to her help in rooting out heresy. When the Church pronounces *excommunication* upon heretics, it is nothing more than a declaratory sentence of that which had already been announced by the heretics themselves; for, all the more because these are Christians, must she separate them from herself, that they may not be accounted as of her, and that she may not appear as chargeable for their obstinacy.

"Hence it will be understood that the Church employs all means to keep her members from being infected with heretical teaching. She has therefore, with the apostle, forbidden *intercourse* with heretics; yet she makes this apply, according to the Bull of Martin V, *Ad evitandos*, only to those who are personally, and by name, *excommunicated* on account of their obstinacy. To a like end the Church forbids to the faithful the reading of heretical writings, which still retain that character even when the author perhaps erred only out of ignorance, and has given his books to the fire. So according to the diversities of times and circumstances does she require from her members the assurance of fidelity in making the confession of faith, causing those who return into her bosom to abjure heresy, and prohibiting all to preach who have not thereto an express mission, and forbidding the laity to dispute as to the faith, except in cases in which especial exceptions are justified."

P. 451. "*Schism*, in its proper meaning, consists in this, that the baptized person, while not doubting as to the faith, and while not intending to separate himself from it, declares himself free from the authority which God has set over him in the Church. In a looser sense of the word, schism may refer to one's own bishop, as well as to the Pope; properly, however, it requires separation from the centre of Church unity, from the Pope, to constitute a schism, although revolt against the proper bishop, recognized by the head of the Church, comprehends in itself separation from the entire Church. And how will the schismatic, separated from ecclesiastical unity, preserve himself in purity of doctrine? Does heresy lead to schism? So

infallibly does schism lead to heresy, inasmuch as only through false doctrine can it be justified. Therefore does the Church regard schism as a crime just as great as heresy, and in general has dealt with it in the same manner."

APPENDIX C

THE CONSTITUTIONS "*DEI FILIUS*" AND "*PASTOR ÆTERNUS*"

(From the "Catholic Directory" for 1871, pp. 55 ff.)

DOGMATIC CONSTITUTION ON THE CATHOLIC FAITH

Pius Bishop, Servant of the servants of God, with the approval of the Sacred Council, for perpetual remembrance.

Our Lord Jesus Christ, the Son of God, and Redeemer of mankind, before returning to His Heavenly Father, promised that He would be with the Church Militant on earth all days, even to the consummation of the world. Therefore He has never ceased to be present with His beloved Spouse, to assist her when teaching, to bless her when at work, and to aid her when in danger. And this His salutary providence, which has been constantly displayed by other innumerable benefits, has been most manifestly proved by the abundant good results which Christendom has derived from Œcumenical Councils, and particularly from that of Trent, although it was held in evil times. For, as a consequence, the sacred doctrines of the faith have been defined more closely and set forth more fully; errors have been condemned and restrained; ecclesiastical discipline has been restored and more firmly secured; the love of learning and of piety has been promoted among the clergy; colleges have been established to educate youth for the sacred warfare; and the morals of the Christian world have been renewed by the more accurate training of the faithful, and by the more frequent use of the sacraments. Moreover, there has resulted a closer communion of the members with the visible head, and an increase of vigour in the whole mystical body of Christ; the multiplication of religious congregations and of other institutions of Christian piety, and such ardour in extending the

kingdom of Christ throughout the world, as constantly endures, even to the sacrifice of life itself.

But while we recall with due thankfulness these and other signal benefits which the divine mercy has bestowed on the Church, especially by the last Œcumenical Council, we cannot restrain our bitter sorrow for the grave evils which are due principally to the fact, that the authority of that sacred Synod has been contemned, or its wise decrees neglected, by many.

No one is ignorant that the heresies proscribed by the Fathers of Trent, by which the divine teaching (*magisterium*) of the Church was rejected, and all matters regarding religion were surrendered to the judgment of each individual, gradually became dissolved into many sects, which disagreed and contended with one another, until at length not a few lost all faith in Christ. Even the Holy Scriptures, which had previously been declared sole source and judge of Christian doctrine, began to be held no longer as divine, but to be ranked among the fictions of mythology.

Then there arose, and too widely overspread the world, that doctrine of rationalism, or naturalism, which opposes itself in every way to the Christian religion as a supernatural institution, and works with the utmost zeal in order that, after Christ, our sole Lord and Saviour, has been excluded from the minds of men, and from the life and moral acts of nations, the reign of what they call pure reason or nature may be established. And after forsaking and rejecting the Christian religion, and denying the true God and His Christ, the minds of many have sunk into the abyss of Pantheism, Materialism, and Atheism, until, denying rational nature itself and every sound rule of right, they labour to destroy the deepest foundations of human society.

Unhappily, it has yet farther come to pass that, while this impiety prevailed on every side, many even of the children of the Catholic Church have strayed from the path of true piety; and by the gradual diminution of the truths they held, the Catholic sense has become weakened in them. For, led away by various and strange doctrines, wrongly confusing nature and grace, human science and divine faith, they are found to deprave the true sense of the doctrines which our Holy Mother Church holds and teaches, and to endanger the integrity and the soundness of the faith.

Considering these things, how can the Church fail to be deeply stirred? For, even as God wills all men to be saved, and to arrive at the knowledge of the truth; even as Christ came to save what had perished, and to gather together the children of God who had been dispersed; so the Church, constituted by God the mother and teacher of nations, knows its own office as debtor to all, and is ever ready and watchful to raise the fallen, to support those who are falling, to embrace those who return, to confirm the good and to carry them on to better things. Hence, it can never forbear from witnessing to and proclaiming the truth of God, which heals all things, knowing the words addressed to it: My Spirit that is in thee, and My words that I have put in thy mouth, shall not depart out of thy mouth, from henceforth and for ever (Isaias lix. 21).

We, therefore, following the footsteps of our predecessors, have never ceased, as becomes our supreme Apostolic office, from teaching and defending Catholic truth, and condemning doctrines of error. And now, with the Bishops of the whole world assembled round us and judging with us, congregated by our authority and in the Holy Spirit in this Œcumenical Council, we, supported by the word of God written and handed down, as we have received it from the Catholic Church, preserved with sacredness and set forth according to truth—have determined to profess and declare the salutary teaching of Christ from this chair of Peter, and in sight of all, proscribing and condemning, by the power given to us of God, all errors contrary thereto.

Chap. I. Of God the Creator of all things.

The Holy Catholic Apostolic Roman Church believes and confesses that there is one true and living God, Creator and Lord of heaven and earth, Almighty, Eternal, Immense, Incomprehensible, Infinite in intelligence, in will, and in all perfection, who, as being one, sole, absolutely simple, and immutable spiritual substance, is to be declared as really and essentially distinct from the world, of supreme beatitude in and from Himself, and ineffably exalted above all things beside Himself which exist or are conceivable.

This one only true God, of His own goodness and almighty power, not for the increase or acquirement of His own happiness, but to manifest His perfection by the blessing which He bestows on creatures, and with

absolute freedom of counsel, created out of nothing, from the beginning of time, both the spiritual and the corporeal creature, to wit, the angelical and the mundane; and afterwards the human creature, as partaking, in a sense, of both, consisting of spirit and of body.^[497]

God protects and governs by His Providence all things which He hath made, "reaching from end to end mightily, and ordering all things sweetly" (Wisdom viii. 1). For "all things are bare and open to His eyes" (Heb. iv. 13), even those which are yet to be by the free action of creatures.

Chap. II. *Of Revelation.*

The same Holy Mother Church holds and teaches that God, the beginning and end of all things, may be certainly known by the natural light of human reason, by means of created things; "for the invisible things of Him from the creation of the world are clearly seen, being understood by the things that are made" (Romans i. 20): but that it pleased His wisdom and bounty to reveal Himself, and the eternal decrees of His will, to mankind by another and supernatural way, as the Apostle says: "God, having spoken on divers occasions, and many ways, in times past, to the fathers by the prophets; last of all, in these days, hath spoken to us by His Son" (Hebrews i. 1, 2).

It is to be ascribed to this divine revelation, that such truths among things divine as of themselves are not beyond human reason can, even in the present condition of mankind, be known by every one with facility, with firm assurance, and with no admixture of error. This, however, is not the reason why revelation is to be called absolutely necessary; but because God of His infinite goodness has ordained man to a supernatural end, viz. to be a sharer of divine blessings which utterly exceed the intelligence of the human mind: for "eye hath not seen, nor ear heard, neither hath it entered into the heart of man, what things God hath prepared for them that love Him" (1 Cor. ii. 2).

Further, this supernatural revelation, according to the universal belief of the Church, declared by the Sacred Synod of Trent, is contained in the written books and unwritten traditions which, received by the Apostles from the mouth of Christ Himself, or by the Apostles themselves, from the dictation of the Holy Spirit, transmitted, as it were, from hand to hand, have come down even unto us.^[498] And these books of the Old and New Testament are to be received as sacred and canonical, in their integrity, with all their parts,

as they are enumerated in the decree of the said Council, and are contained in the ancient Latin edition of the Vulgate. These the Church holds to be sacred and canonical: not because, having been carefully composed by mere human industry, they were afterwards approved by her authority; nor merely because they contain revelation, with no admixture of error; but because, having been written by the inspiration of the Holy Ghost, they have God for their author, and have been delivered as such to the Church herself.

And as the things which, in order to curb rebellious spirits, the Holy Synod of Trent decreed for the good of souls concerning the interpretation of Divine Scripture, have been wrongly explained by some, We, renewing the said decree, declare this to be its meaning: that, in matters of faith and morals, appertaining to the building up of Christian doctrine, that is to be held as the true sense of Holy Scripture which our Holy Mother Church hath held and holds, to whom it belongs to judge of the true sense and interpretation of the Holy Scripture; and therefore that it is permitted to no one to interpret the Sacred Scripture contrary to this sense, or, likewise, contrary to the unanimous consent of the Fathers.

Chap. III. *On Faith.*

Man being wholly dependent upon God, as upon his Creator and Lord, and created reason being absolutely subject to uncreated truth, we are bound to yield to God, by faith in His revelation, the full obedience of our intelligence and will. And the Catholic Church teaches that this faith, which is the beginning of man's salvation, is a supernatural virtue, whereby, inspired and assisted by the grace of God, we believe that the things which He has revealed are true: not because the intrinsic truth of the things is plainly perceived by the natural light of reason, but because of the authority of God Himself who reveals them, and who can neither be deceived nor deceive. For faith, as the Apostle testifies, is "the substance of things hoped for, the conviction of things that appear not" (Hebrews xi. 1).

Nevertheless, in order that the obedience of our faith might be in harmony with reason, God willed that to the interior help of the Holy Spirit there should be joined exterior proofs of His revelation: to wit, divine facts, and especially miracles and prophecies, which, as they manifestly display the omnipotence and infinite knowledge of God, are most certain proofs of His

divine revelation, adapted to the intelligence of all men. Wherefore, both Moses and the Prophets, and most especially Christ our Lord Himself, showed forth many and most evident miracles and prophecies; and of the Apostles we read: "But they going forth preached everywhere, the Lord working withal, and confirming the word with signs that followed" (Mark xvi. 20). And again it is written: "We have the more firm prophetic word, whereunto you do well to attend, as to a light shining in a dark place" (2 St. Peter i. 19).

But though the assent of faith is by no means a blind action of the mind, still no man can assent to the Gospel teaching, as is necessary to obtain salvation, without the illumination and inspiration of the Holy Spirit, who gives to all men sweetness in assenting to and believing in the truth.^[499] Wherefore faith itself, even when it does not work by charity, is in itself a gift of God, and the act of faith is a work appertaining to salvation, by which man yields voluntary obedience to God Himself, by assenting to and co-operating with His grace, which he is able to resist.

Further, all those things are to be believed with divine and Catholic faith which are contained in the Word of God, written or handed down, and which the Church, either by a solemn judgment or by her ordinary and universal teaching (*magisterium*), proposes for belief as having been divinely revealed.

And since without faith it is impossible to please God, and to attain to the fellowship of His children, therefore without faith no one has ever attained justification; nor will any one obtain eternal life, unless he shall have persevered in faith unto the end. And, that we may be able to satisfy the obligation of embracing the true faith and of constantly persevering in it, God has instituted the Church through His only-begotten Son, and has bestowed on it manifest notes of that institution, that it may be recognized by all men as the guardian and teacher of the revealed Word; for to the Catholic Church alone belong all those many and admirable tokens which have been divinely established for the evident credibility of the Christian Faith. Nay, more, the Church by itself, by reason of its marvellous extension, its eminent holiness, and its inexhaustible fruitfulness in every good thing, its Catholic unity and its invincible stability, is a great and perpetual motive of credibility, and an irrefutable witness of its own divine mission.

And thus, like a standard set up unto the nations (Isaias xi. 12), it both invites to itself those who do not yet believe, and assures its children that the faith which they profess rests on the most firm foundation. And its testimony is efficaciously supported by a power from on high. For our most merciful Lord gives His grace to stir up and to aid those who are astray, that they may come to a knowledge of the truth; and to those whom He has brought out of darkness into His own admirable light, He gives His grace to strengthen them to persevere in that light, deserting none who desert not Him. Therefore there is no parity between the condition of those who have adhered to the Catholic truth by the heavenly gift of faith, and of those who, led by human opinions, follow a false religion; for those who have received the faith under the teaching (*magisterio*) of the Church can never have any just cause for changing or doubting that faith. Therefore, giving thanks to God the Father who has made us worthy to be partakers of the lot of the Saints in light, let us not neglect so great salvation, but with our eyes fixed on Jesus, the author and finisher of our Faith, let us hold fast the confession of our hope without wavering (Hebrews xii. 2; and x. 23).

Chap. IV. *Of Faith and Reason.*

The Catholic Church with one consent has also ever held and does hold that there is a twofold order of knowledge, distinct both in principle and in object: in principle, because our knowledge in the one is by natural reason, and in the other by divine faith; in object, because, besides those things to which natural reason can attain, there are proposed to our belief mysteries hidden in God, which, unless divinely revealed, cannot be known. Wherefore the Apostle, who testifies that God is known by the Gentiles through created things, still, when discoursing of the grace and truth which come by Jesus Christ (John i. 17), says: "We speak the wisdom of God in a mystery, a wisdom which is hidden, which God ordained before the world unto our glory: which none of the princes of this world knew; ... but to us God hath revealed them by His Spirit. For the Spirit searcheth all things, yea, the deep things of God" (1 Cor. ii. 7-9). And the only-begotten Son Himself gives thanks to the Father, because He has hid these things from the wise and prudent, and has revealed them to little ones (Matt. xi. 25).

Reason, indeed, enlightened by faith, when it seeks earnestly, piously, and calmly, attains by a gift from God some, and that a very fruitful, understanding of mysteries; partly from the analogy of those things which it

naturally knows, partly from the relations which the mysteries bear to one another and to the last end of man: but reason never becomes capable of apprehending mysteries as it does those truths which constitute its proper object. For the divine mysteries by their own nature so far transcend the created intelligence that, even when delivered by revelation and received by faith, they remain covered with the veil of faith itself, and shrouded in a certain degree of darkness, so long as we are pilgrims in this mortal life, not yet with God; "for we walk by faith and not by sight" (2 Cor. v. 7).

But although faith is above reason, there can never be any real discrepancy between faith and reason; since the same God who reveals mysteries and infuses faith has bestowed the light of reason on the human mind, and God cannot deny Himself, nor can truth ever contradict truth. The false appearance of such a contradiction is mainly due, either to the dogmas of faith not having been understood and expounded according to the mind of the Church, or to the inventions of opinion having been taken for the verdicts of reason. We define, therefore, that every assertion contrary to a truth of enlightened faith is utterly false.^[500] Further, the Church, which, together with the Apostolic office of teaching, has received a charge to guard the deposit of faith, derives from God the right and the duty of proscribing false science, lest any should be deceived by philosophy and vain fallacy (Col. ii. 8). Therefore all faithful Christians are not only forbidden to defend, as legitimate conclusions of science, such opinions as are known to be contrary to the doctrines of faith, especially if they have been condemned by the Church, but are altogether bound to account them as errors which put on the fallacious appearance of truth.

And not only can faith and reason never be opposed to one another, but they are of mutual aid one to the other: for right reason demonstrates the foundations of faith, and, enlightened by its light, cultivates the science of things divine; while faith frees and guards reason from errors, and furnishes it with manifold knowledge. So far, therefore, is the Church from opposing the cultivation of human arts and sciences, that it in many ways helps and promotes it. For the Church neither ignores nor despises the benefits to human life which result from the arts and sciences, but confesses that, as they came from God, the Lord of all science, so, if they be rightly used, they lead to God by the help of His grace. Nor does the Church forbid that each of these sciences in its sphere should make use of its own principles

and its own method; but, while recognizing this just liberty, it stands watchfully on guard, lest sciences, setting themselves against the divine teaching, or transgressing their own limits, should invade and disturb the domain of faith.

For the doctrine of faith which God hath revealed has not been proposed, like a philosophical invention, to be perfected by human ingenuity; but has been delivered as a divine deposit to the Spouse of Christ, to be faithfully kept and infallibly declared. Hence also, that meaning of the sacred dogmas is perpetually to be retained which our Holy Mother the Church has once declared; nor is that meaning ever to be departed from, under the pretence or pretext of a deeper comprehension of them. Let, then, the intelligence, science, and wisdom of each and all, of individuals and of the whole Church, in all ages and all times, increase and flourish in abundance and vigour; but simply in its own proper kind, that is to say, in one and the same doctrine, one and the same sense, one and the same judgment (Vincent of Lerins, *Common.* n. 28).

CANONS.

I. Of God the Creator of all things.

1. If any one shall deny One true God, Creator and Lord of things visible and invisible; let him be anathema.
2. If any one shall not be ashamed to affirm that, except matter, nothing exists; let him be anathema.
3. If any one shall say that the substance and essence of God and of all things is one and the same; let him be anathema.
4. If any one shall say that finite things, both corporeal and spiritual, or at least spiritual, have emanated from the divine substance; or that the divine essence by the manifestation and evolution of itself becomes all things; or, lastly, that God is universal or indefinite being, which by determining itself constitutes the universality of things, distinct according to kinds (*genera*), species, and individuals; let him be anathema.
5. If any one confess not that the world, and all things which are contained in it, both spiritual and material, have been, in their whole substance, produced by God out of nothing; or shall say that God created, not by His will, free from all necessity, but by a necessity equal to the necessity

whereby He loves Himself; or shall deny that the world was made for the glory of God; let him be anathema.

II. Of Revelation.

1. If anyone shall say that the One true God, our Creator and Lord, cannot be certainly known by the natural light of human reason, through created things; let him be anathema.

2. If any one shall say that it is impossible, or inexpedient, that man should be taught by divine revelation concerning God and the worship to be paid to Him; let him be anathema.

3. If any one shall say that man cannot be raised by divine power to a higher than natural knowledge and perfection, but can and ought, by a continuous progress, to arrive at length, of himself, to the possession of all that is true and good; let him be anathema.

4. If any one shall not receive as sacred and canonical the Books of Holy Scripture, entire with all their parts, as the Holy Synod of Trent has enumerated them, or shall deny that they have been divinely inspired; let him be anathema.

III. Of Faith.

1. If any one shall say that human reason is so independent that faith cannot be enjoined upon it by God; let him be anathema.

2. If any one shall say that divine faith is not distinguished from natural knowledge of God and of moral truths, and therefore that it is not requisite for divine faith that revealed truth be believed because of the authority of God who reveals it; let him be anathema.

3. If any one shall say that divine revelation cannot be made credible by outward signs, and therefore that men ought to be moved to faith solely by the internal experience of each, or by private inspiration; let him be anathema.

4. If any one shall say that miracles are impossible, and therefore that all the accounts regarding them, even those contained in Holy Scripture, are to be dismissed as fabulous or mythical; or that miracles can never be known with certainty, and that the divine origin of Christianity is not rightly proved by them; let him be anathema.

5. If any one shall say that the assent of Christian faith is not a free act, but necessarily produced by the arguments of human reason; or that the grace of God is necessary for that living faith only which worketh by charity; let him be anathema.

6. If any one shall say that the condition of the faithful, and of those who have not yet attained to the only true faith, is on a par, so that Catholics may have just cause for doubting, with suspended assent, the faith which they have already received under the teaching (*magisterio*) of the Church, until they shall have obtained a scientific demonstration of the credibility and truth of their faith; let him be anathema.

IV. *Of Faith and Reason.*

1. If any one shall say that in divine revelation there are no mysteries, truly and properly so called, but that all the doctrines of faith can be understood and demonstrated from natural principles by properly cultivated reason; let him be anathema.

2. If any one shall say that human sciences are to be so freely treated, that their assertions, although opposed to revealed doctrine, can be held as true, and cannot be condemned by the Church; let him be anathema.

3. If any one shall assert it to be possible that sometimes, according to the progress of science, a sense is to be given to doctrines propounded by the Church different from that which the Church has understood and understands; let him be anathema.

Therefore We, fulfilling the duty of our supreme pastoral office, entreat by the mercies of Jesus Christ, and, by the authority of the same our God and Saviour, We command, all the faithful of Christ, and especially those who are set over others or are charged with the office of instruction, that they earnestly and diligently apply themselves to ward off and eliminate these errors from Holy Church, and to spread the light of pure faith.

And since it is not sufficient to shun heretical pravity, unless those errors also be diligently avoided which more or less nearly approach it. We admonish all men of the further duty of observing the Constitutions and Decrees by which such erroneous opinions as are not here expressly enumerated have been proscribed and condemned by this Holy See.

Given at Rome in Public Session, solemnly held in the Vatican Basilica in the year of our Lord one thousand eight hundred and seventy, on the twenty-fourth day of April, in the twenty-fourth year of our Pontificate.

In conformity with the original,

JOSEPH, *Bishop of St. Polten,*

Secretary of the Vatican Council.

FIRST DOGMATIC CONSTITUTION ON THE CHURCH OF CHRIST.

Pius Bishop, Servant of the servants of God, with the approval of the Sacred Council, for perpetual remembrance.

The Eternal Pastor and Bishop of our souls, in order to continue for all time the life-giving work of His Redemption, determined to build up the Holy Church, wherein, as in the House of the living God, all who believe might be united in the bond of one faith and one charity. Wherefore, before He entered into His glory, He prayed unto the Father, not for the Apostles only, but for those also who through their preaching should come to believe in Him, that all might be one, even as He the Son and the Father are one (St. John xvii. 21). As then He sent the Apostles whom He had chosen to Himself from the world, as He Himself had been sent by the Father; so He willed that there should ever be pastors and teachers in His Church to the end of the world. And in order that the Episcopate also might be one and undivided, and that by means of a closely united priesthood the multitude of the faithful might be kept secure in the oneness of faith and communion, He set Blessed Peter over the rest of the Apostles, and fixed in him the abiding principle of this two-fold unity and its visible foundation, in the strength of which the everlasting temple should arise, and the Church in the firmness of that faith should lift her majestic front to heaven.^[501] And seeing that the gates of hell with daily increase of hatred are gathering their strength on every side to upheave the foundation laid by God's own hand, and so, if that might be, to overthrow the Church: We, therefore, for the preservation, safe keeping, and increase of the Catholic flock, with the approval of the Sacred Council, do judge it to be necessary to propose to the belief and acceptance of all the faithful, in accordance with the ancient and constant faith of the universal Church, the doctrine touching the institution, perpetuity, and nature of the sacred Apostolic Primacy, in which is found the strength and

solidity of the entire Church; and at the same time to proscribe and condemn the contrary errors, so hurtful to the flock of Christ.

Chap. I. Of the Institution of the Apostolic Primacy in Blessed Peter.

We therefore teach and declare that, according to the testimony of the Gospel, the primacy of jurisdiction over the universal Church of God was immediately and directly promised and given to Blessed Peter the Apostle by Christ the Lord. For it was to Simon alone, to whom He had already said, "Thou shalt be called Cephas" (St. John i. 42), that the Lord, after the confession made by him, saying, "Thou art the Christ, the Son of the living God," addressed these solemn words: "Blessed art thou, Simon Bar-Jona, because flesh and blood have not revealed it to thee, but My Father who is in heaven. And I say to thee that thou art Peter, and upon this rock I will build My Church; and the gates of hell shall not prevail against it. And I will give to thee the keys of the kingdom of heaven. And whatsoever thou shalt bind upon earth, it shall be bound also in heaven; and whatsoever thou shalt loose on earth, it shall be loosed in heaven" (St. Matthew xvi. 16-19). And it was upon Simon alone that Jesus after His resurrection bestowed the jurisdiction of Chief Pastor and Ruler over all His fold in the words: "Feed My lambs; feed My sheep" (St. John xxi. 15-17). At open variance with this clear doctrine of Holy Scripture, as it has been ever understood by the Catholic Church, are the perverse opinions of those who, while they distort the form of government established by Christ the Lord in His Church, deny that Peter in his single person, preferably to all the other Apostles, whether taken separately or together, was endowed by Christ with a true and proper primacy of jurisdiction; or of those who assert that the same primacy was not bestowed immediately and directly upon Blessed Peter himself, but upon the Church, and through the Church on Peter as her minister.

If any one, therefore, shall say that Blessed Peter the Apostle was not appointed the Prince of all the Apostles and the visible Head of the whole Church Militant; or that the same directly and immediately received from the same our Lord Jesus Christ a primacy of honour only, and not of true and proper jurisdiction; let him be anathema.

Chap. II. On the Perpetuity of the Primacy of Blessed Peter in the Roman Pontiffs.

That which the Prince of Shepherds and Great Shepherd of the sheep, Jesus Christ our Lord, established in the person of the Blessed Apostle Peter, to secure the perpetual welfare and lasting good of the Church, must, by the same institution, necessarily remain unceasingly in the Church; which, being founded upon the Rock, will stand firm to the end of the world. For none can doubt, and it is known to all ages, that the holy and Blessed Peter, the Prince and Chief of the Apostles, the pillar of the faith and foundation of the Catholic Church, received the keys of the kingdom from our Lord Jesus Christ, the Saviour and Redeemer of mankind, and lives, presides, and judges, to this day and always, in his successors the Bishops of the Holy See of Rome, which was founded by him, and consecrated by his blood.^[502] Whence, whosoever succeeds to Peter in this See does by the institution of Christ Himself obtain the Primacy of Peter over the whole Church. This disposition made by Incarnate Truth (*dispositio veritatis*) therefore remains, and Blessed Peter abiding in the rock strength which he received (*in acceptâ fortitudine petræâ perseverans*), has not abandoned the direction of the Church.^[503] Wherefore it has at all times been necessary that every particular Church—that is to say, the faithful throughout the world—should come to the Church of Rome, on account of the greater principedom it has received; so that in this See, whence the rights of venerable communion spread to all, they might, as members joined together in their head, grow closely into one body.^[504]

If, then, one shall say that it is not by the institution of Christ the Lord, or by divine right, that Blessed Peter has a perpetual line of successors in the primacy over the universal Church; or that the Roman Pontiff is not the successor of Blessed Peter in this primacy; let him be anathema.

Chap. III. *On the Power and Nature of the Primacy of the Roman Pontiff.*

Wherefore, resting on plain testimonies of the Sacred Writings, and adhering to the plain and express decrees both of our predecessors the Roman Pontiffs, and of the General Councils, We renew the definition of the Œcumenical Council of Florence, by which all the faithful of Christ must believe that the Holy Apostolic See and the Roman Pontiff possesses the primacy over the whole world; and that the Roman Pontiff is the successor of Blessed Peter, Prince of the Apostles, and is true Vicar of Christ, and Head of the whole Church, and Father and Teacher of all

Christians; and that full power was given to him in Blessed Peter, by Jesus Christ our Lord, to rule, feed, and govern the Universal Church: as is also contained in the Acts of the Œcumenical Councils and in the Sacred Canons.

Hence we teach and declare, that by the appointment of our Lord the Roman Church possesses a sovereignty of ordinary power over all other Churches, and that this power of jurisdiction of the Roman Pontiff, which is truly episcopal, is immediate; to which all, of whatever rite and dignity, both pastors and faithful, both individually and collectively, are bound, by their duty of hierarchical subordination and true obedience, to submit, not only in matters which belong to faith and morals, but also in those that appertain to the discipline and government of the Church throughout the world; so that the Church of Christ may be one flock under one supreme Pastor, through the preservation of unity, both of communion and of profession of the same faith, with the Roman Pontiff. This is the teaching of Catholic truth, from which no one can deviate without loss of faith and of salvation.

But so far is this power of the Supreme Pontiff from being any prejudice to that ordinary and immediate power of episcopal jurisdiction, by which Bishops, who have been set by the Holy Ghost to succeed and hold the place of the Apostles,^[505] feed and govern each his own flock as true pastors, that this same power is really asserted, strengthened, and protected by the supreme and universal Pastor; in accordance with the words of St. Gregory the Great: "My honour is the honour of the whole Church. My honour is the firm strength of my brethren. Then am I truly honoured, when the honour due to each and all is not withheld."^[506]

Further, from this supreme power possessed by the Roman Pontiff of governing the universal Church, it follows that, in the exercise of this office, he has the right of free communication with the pastors of the whole Church, and with their flocks, that they may be taught and ruled by him in the way of salvation. Wherefore We condemn and reprobate the opinions of those who hold that the communication between the supreme Head and the pastors and their flocks can lawfully be impeded; or who make this communication subject to the will of the secular power, so as to maintain that whatever is done by the Apostolic See, or by its authority, for the government of the Church, cannot have force or value unless it be

confirmed by the assent of the secular power. And since, by the divine right of Apostolic primacy, the Roman Pontiff is placed over the universal Church, We further teach and declare that he is the supreme judge of the faithful,^[507] and that in all causes the decision of which belongs to the Church recourse may be had to his tribunal;^[508] but that none may re-open the judgment of the Apostolic See, than whose authority there is no greater, nor can any lawfully review its judgment.^[509] Wherefore they err from the right path of truth who assert that it is lawful to appeal from the judgments of the Roman Pontiffs to an Œcumenical Council, as to an authority higher than that of the Roman Pontiff.

If then any shall say that the Roman Pontiff has the office merely of inspection or direction, and not full and supreme power of jurisdiction over the universal Church, not only in things which belong to faith and morals, but also in those which relate to the discipline and government of the Church spread throughout the world; or assert that he possesses merely the principal part, and not all the fulness of this supreme power; or that this power which he enjoys is not ordinary and immediate, both over each and all the Churches, and over each and all the pastors and the faithful; let him be anathema.

Chap. IV. *Concerning the Infallible Teaching of the Roman Pontiff.*

Moreover, that the supreme power of teaching (*magisterii*) is also included in the Apostolic primacy, which the Roman Pontiff, as the successor of Peter, Prince of the Apostles, possesses over the whole Church, this Holy See has always held, the perpetual practice of the Church confirms, and Œcumenical Councils also have declared, especially those in which the East with the West met in the union of faith and charity. For the Fathers of the Fourth Council of Constantinople, following in the footsteps of their predecessors, gave forth this solemn profession: The first condition of salvation is to keep the rule of the true faith. And because the sentence of our Lord Jesus Christ cannot be passed by, who said, "Thou art Peter, and upon this Rock I will build My Church" (St. Matthew xvi. 18), these things which have been said are proved by events, because in the Apostolic See the Catholic religion has always been kept undefined and her well-known doctrine has been kept holy. Desiring, therefore, not to be in the least degree separated from the faith and doctrine of this See, we hope that we may

deserve to be in the one communion, which the Apostolic See preaches, in which is the entire and true solidity of the Christian religion.^[510] And with the approval of the Second Council of Lyons, the Greeks professed: That the Holy Roman Church enjoys supreme and full Primacy and principedom over the whole Catholic Church, which it truly and humbly acknowledges that it has received with the plenitude of power from our Lord Himself in the person of Blessed Peter, Prince or Head of the Apostles, whose successor the Roman Pontiff is; and as the Apostolic See is bound before all others to defend the truth of faith, so also, if any questions regarding faith shall arise, they must be defined by its judgment.^[511] Finally, the Council of Florence defined:^[512] That the Roman Pontiff is the true Vicar of Christ, and the Head of the whole Church, and the Father and Teacher of all Christians; and that to him in Blessed Peter was delivered by our Lord Jesus Christ the full power of feeding, ruling, and governing the whole Church (John xxi. 15-17).

To satisfy this pastoral duty, our predecessors ever made unwearied efforts that the salutary doctrine of Christ might be propagated among all the nations of the earth, and with equal care watched that it might be preserved genuine and pure where it had been received. Therefore the Bishops of the whole world, now singly, now assembled in synod, following the long-established custom of Churches^[513] and the form of the ancient rule,^[514] sent word to this Apostolic See of those dangers especially which sprang up in matters of faith, that there the losses of faith might be most effectually repaired where the faith cannot fail.^[515] And the Roman Pontiffs, according to the exigencies of times and circumstances, sometimes assembling Œcumenical Councils, or asking for the mind of the Church scattered throughout the world, sometimes by particular Synods, sometimes using other helps which Divine Providence supplied, defined as to be held those things which with the help of God they had recognized as conformable with the Sacred Scriptures and Apostolic Traditions. For the Holy Spirit was not promised to the successors of Peter, that by His revelation they might make known new doctrine, but that by His assistance they might inviolably keep and faithfully expound the revelation or deposit of faith delivered through the Apostles. And indeed all the venerable Fathers have embraced and the holy orthodox Doctors have venerated and followed their Apostolic doctrine; knowing most fully that this See of Saint Peter remains ever free

from all blemish of error according to the divine promise of the Lord our Saviour made to the Prince of His disciples: "I have prayed for thee that thy faith fail not, and when thou art converted, confirm thy brethren" (St. Luke xxii. 32).^[516]

This gift, then, of truth and never-failing faith, was conferred by Heaven upon Peter and his successors in this Chair, that they might perform their high office for the salvation of all; that the whole flock of Christ, kept away by them from the poisonous food of error, might be nourished with the pasture of heavenly doctrine; that, the occasion of schism being removed, the whole Church might be kept one, and, resting on its foundation, might stand firm against the gates of hell.

But since in this very age, in which the salutary efficacy of the Apostolic office is most of all required, not a few are found who take away from its authority, we judge it altogether necessary solemnly to assert the prerogative which the only-begotten Son of God vouchsafed to join with the supreme pastoral office.

Therefore, faithfully adhering to the tradition received from the beginning of the Christian faith, for the glory of God our Saviour, the exaltation of the Catholic Religion, and the salvation of Christian people, with the approval of the Sacred Council, We teach and define that it is a dogma divinely revealed: That the Roman Pontiff, when he speaks *ex cathedrâ*, that is, when in discharge of the office of Pastor and Teacher of all Christians, by virtue of his supreme Apostolic authority, he defines a doctrine regarding faith or morals to be held by the universal Church, is, by the divine assistance promised to Him in Blessed Peter, possessed of that infallibility with which the divine Redeemer willed that His Church should be endowed in defining doctrine regarding faith or morals; and that therefore such definitions of the Roman Pontiff are of themselves, and not from the consent of the Church, irreformable.^[517]

But if any one, which may God avert! presume to contradict this our Definition; let him be anathema.

Given at Rome in Public Session, solemnly held in the Vatican Basilica in the year of our Lord one thousand eight hundred and seventy, on the eighteenth day of July, in the twenty-fifth year of our Pontificate.

In conformity with the original,

JOSEPH, Bishop of St. Polten,

Secretary to the Vatican Council.

FOOTNOTES:

[497] Fourth Lateran Council, cap. i. de fide Catholica.

[498] Council of Trent, sess. iv. de Can. Script.

[499] Second Council of Orange, confirmed by Pope Boniface II, A.D. 529, against the Semipelagians, can. vii. See Denzinger's *Enchiridion Symbolorum*, p. 50. Würzburg, 1854.

[500] From the Bull of Pope Leo X, *Apostolici regiminis*, read in the viii. session of the Fifth Lateran Council, A.D. 1513. See Labbé's *Councils*, vol. xix. p. 842. Venice, 1732.

[501] From Sermon IV. chap. ii. of St. Leo the Great, A.D. 440, vol. i. p. 17, of edition of Ballerini, Venice, 1753: read in the eighth lection on the Feast of St. Peter's Chair at Antioch, February 22.

[502] From the Acts (session third) of the Third General Council of Ephesus, A.D. 431. Labbé's *Councils*, vol. iii. p. 1154. Venice edition of 1728. See also letter of St. Peter Chrysologus to Eutyches, in life prefixed to his works, p. 13. Venice, 1750.

[503] From Sermon III. chap. iii. of St. Leo the Great, vol. i. p. xii.

[504] From St. Irenæus *against Heresies*, Book III. cap. iii. p. 175, Benedictine edition, Venice, 1734; and Acts of Synod of Aquileia, A.D. 381, Labbé's *Councils*, vol. ii. p. 1185, Venice, 1728.

[505] From chap. iv. of xxiii. session of Council of Trent, "Of the Ecclesiastical Hierarchy."

[506] From the Letters of St. Gregory the Great, Book VIII. 30. vol. ii. p. 919. Benedictine edition. Paris. 1705.

[507] From a Brief of Pius VI. *Super soliditate*, of November 28, 1786.

[508] From the Acts of the Fourteenth General Council of Lyons, A.D. 1274. Labbé's *Councils*, vol. xiv. p. 512.

[509] From Letter VIII. of Pope Nicholas I. A.D. 858, to the Emperor Michael, in Labbé's *Councils*, vol. ix. pp. 1339 and 1570.

[510] From the Formula of St. Hormisdas, subscribed by the Fathers of the Eighth General Council (Fourth of Constantinople) A.D. 869. Labbé's *Councils*, vol. v. pp. 583, 622.

[511] From the Acts of the Fourteenth General Council (Second of Lyons), A.D. 1274, Labbé, vol. xiv. p. 512.

[512] From the Acts of the Seventeenth General Council of Florence, A.D. 1438. Labbé, vol. xviii. p. 526.

[513] From a Letter of St. Cyril of Alexandria to Pope St. Celestine I. A.D. 422, vol. vi. part ii. p. 36, Paris edition OF 1638.

[514] From a Rescript of St. Innocent I. to the Council of Milevis, A.D. 402. Labbé, vol. iii. p. 47.

[515] From a Letter of St. Bernard to Pope Innocent II, A.D. 1130. Epist. 191, vol. iv. p. 433, Paris edition of 1742.

[516] See also the Acts of the Sixth General Council, A.D. 680. Labbé, vol. vii. 659.

[517] That is, in the words used by Pope Nicholas I. Note 13. and in the Synod of Quedlinburg, A.D. 1085, "it is allowed to none to revise its judgment, and to sit in judgment upon what it has judged." Labbé, vol. xii. p. 679.

APPENDIX D

THE POPE PERSONALLY PREPARING CHILDREN FOR WAR

The *Times* of Tuesday, February 29, 1876, has the following—

"The Vatican *Voce della Verità* gives an account of a reception by the Pope of foreign families, recent converts to the Church, and mostly English and Americans. The Pope took particular notice of a little boy, six years old, the child of Mr. William Hutchinson, a graduate of Oxford. The child was dressed as a Pontifical Switzer, and offered the military salute. The Pope smilingly took hold of his *baton*, and said, 'Where is your halberd, Switzer?' To which the child spiritedly said, 'Holy Father, I hope if God gives me health when I grow up to carry your Holiness's banner.' The Pope, stooping down, and imitating the beating of a drum with his hand, said it was necessary to begin by beating the drum, and added, 'God bless you, Switzer, and preserve you to defend the Holy See in His own good time.' He addressed some affectionate words to the parents and all present."

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